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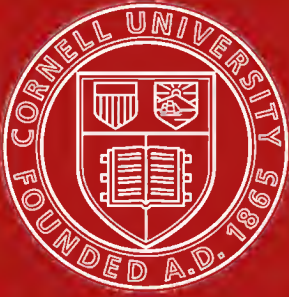
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RECORDS  
OF  
PLYMOUTH COLONY.  
COURT ORDERS.  
VOL. I.  
1633—1640.





RECORDS  
OF THE  
COLONY  
OF  
NEW PLYMOUTH  
IN  
NEW ENGLAND.

PRINTED BY ORDER OF THE LEGISLATURE OF THE  
COMMONWEALTH OF MASSACHUSETTS.

EDITED BY  
NATHANIEL B. SHURTLEFF, M.D.,  
MEMBER OF THE MASSACHUSETTS HISTORICAL SOCIETY, FELLOW OF THE AMERICAN ACADEMY OF ARTS  
AND SCIENCES, MEMBER OF THE AMERICAN ANTIQUARIAN SOCIETY, FELLOW  
OF THE SOCIETY OF ANTIQUARIES OF LONDON, ETC.

COURT ORDERS:  
VOL. I.  
1633—1640.



BOSTON:  
FROM THE PRESS OF WILLIAM WHITE,  
PRINTER TO THE COMMONWEALTH.

1855.

*Edw*

A. 3112.



# Commonwealth of Massachusetts.

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SECRETARY'S OFFICE,

BOSTON, MARCH 26, 1855.

IN virtue of the following Resolve of the Legislature, I have appointed DR. NATHANIEL B. SHURTLEFF, of Boston, to prepare for the press the Records of the Colony of New Plymouth, and superintend the printing of the same to their completion, in such manner and form as he may consider most appropriate for the undertaking.

These volumes, possessing uncommon interest, as containing the earliest extant records of the oldest English colony in New England, and fast going to decay by constant use and the ordinary effects of time, will, in their reproduced form, be preserved, undoubtedly, beyond any of the probable contingencies which usually occur to cause the loss or destruction of ancient manuscripts.

The very careful manner in which the Massachusetts Records have been edited and conducted through the press by Dr. Shurtleff, affords sufficient assurance of the creditable performance of the new trust thus so unreservedly committed to him.

EPHRAIM M. WRIGHT,

*Secretary of the Commonwealth.*

---

*Resolved*, That eight hundred copies of the Records of the Colony of New Plymouth, with suitable Indexes, be stereotyped and printed, under the supervision of the Secretary of the Commonwealth, who may appoint some competent person or persons to prepare said Records for printing, and take charge of the same.

Approved by the Governor, March 24, 1855.





## INTRODUCTORY REMARKS.

---

THE Records of the Massachusetts Colony, in five manuscript volumes, containing all the proceedings of the Governor and Company of the Massachusetts Bay in New England that have been preserved,—commencing with the minutes made in England previous to the removal of the company and charter to America, and terminating in 1686, when the colonial government was superseded by the council, under the presidency of Joseph Dudley, Esq.,—having been printed by order of the two preceding Legislatures, it pleased his Excellency HENRY J. GARDNER, Governor of the Commonwealth, in his inaugural address of the ninth of January last, to call the attention of the Legislature to a consideration of the necessity of continuing the work until the colonial archives of Massachusetts should be secured in a permanent and enduring form.

The portion of his Excellency's address relating to the ancient records having been referred by the General Court to the appropriate committee, Honorable ROBERT B. HALL, on the twenty-first day of the ensuing February, submitted to the Senate a report recommending the passage of resolves for the printing and distribution of the Records of the Colony of New Plymouth, which resolves were subsequently passed, and received the executive sanction on the twenty-fourth of the following March.

Honorable EPHRAIM M. WRIGHT, Secretary of the Commonwealth, having, in accordance with the resolves of the Legislature, appointed an editor to take charge of the undertaking, the work of preparation and publication was immediately commenced.

A short description of the manuscript volumes, which have been so faithfully preserved, with almost reverential regard, in the archives of Plymouth county, is absolutely necessary to give the reader of the printed reproductions an accurate idea of the venerable and time-worn originals; and it may not be considered irrelevant to the subject to give also a brief idea of the position which the Plymouth Colony held, when the volumes were written, in relation to the State of which it now forms but a part.

It is well known by those conversant with the history of Massachusetts, that the present territorial limits of the Commonwealth, for many years after the first settlement of New England, contained two colonies, governed by separate and distinct political bodies acting under different charters; and that these colonies, designated by peculiar titles, had records in no way common to each other. The Colony of the Massachusetts Bay comprised, together with other territory, the most northerly and western portions of the Commonwealth as it is now bounded; and the Colony of New Plymouth, more familiarly known as the Old Colony, on account of its more ancient settlement by European colonists, embraced the south-eastern part of the State, now included within the counties of Barnstable, Bristol, and Plymouth, excepting the town of Hingham, which from the first appertained to the Massachusetts Colony. It also included a portion of the present State of Rhode Island. The island counties, during the colonial period, were not, strictly speaking, within the jurisdiction of either of these colonies, but were annexed at a later date to Massachusetts, at the same time with the Plymouth Colony, by the Provincial Charter of William and Mary, which passed the seals on the seventh of October, 1691.

No State in the American Union, nor foreign country, is more rich in early records than is the Commonwealth of Massachusetts; and nowhere have these original documents been preserved with more care than within its archives; although, from constant use and the effects of time, very perceptible marks of decay are noticed in them, to such an extent as to excite reasonable fears that their legibility and usefulness may be soon impaired by these influences, if their ultimate destruction is not accomplished, unless they are relieved and protected by the use of their copies. Since the printing of the Colony Records of Massachusetts there should be no fear in this respect regarding that portion; and it is hoped that the appearance of the volumes of the Plymouth Records will also be a safeguard for the preservation of their valuable originals.

Perhaps, in all the archives in which the records of the past are preserved, there are no volumes which possess more intrinsic value to the student of New England history, or are more interesting as furnishing personal items relating to the adventurous forefathers who laid the foundations of our peculiar institutions, than do those which have proceeded from the exact pens of Bradford, Winslow, and Morton, and which have been so reverentially guarded and transmitted to the present generation by faithful custodians. With the exception of the private writings of these historical fathers of the Plymouth Colony, very little can be found on record relating to the earliest years of this settlement in America. Previous to the year 1627, when Governor Bradford first put pen to the records, nothing seems to have been recorded; for the early entries in the first volume of deeds, relating to the garden plots laid out in 1620, the division of land for continuance made in the spring of 1623-4, and the division of cattle in 1627, were unquestionably written by him in the last-mentioned year; and, very probably, as may be inferred from their incompleteness, and, in some instances, erroneousness, were partially from memory and partly from private minutes.



It is a source of much regret, that among the things that are lost is the original manuscript of the famous social compact,—that early mutual covenant of the pilgrim fathers for a constitutional form of government, the germ of the American republic,—signed on board the May Flower in Cape Cod Harbor, a short time previous to the ultimate landing on Plymouth rock, on Monday the eleventh day of December, O. S., being the twenty-first day of the same month, according to the present style of computing time. In order to preserve a copy of this instrument, in connection with the records of the colony, it is reprinted in this place from Governor Bradford's History of Plymouth Plantation, now in course of publication for the Massachusetts Historical Society, under the careful editorship of Charles Deane, Esq.

IN Y<sup>E</sup> NAME OF GOD, AMEN. We, whose names are underwritten, the loyall subjects of our dread soveraigne Lord King JAMES, by y<sup>e</sup> grace of God of Great Britaine, Franç & Ireland King, Defender of the Faith, &c.,

Haveing under-taken for y<sup>e</sup> glorie of God, and advancemente of y<sup>e</sup> Christian faith, and honour of our King & Countrie, a voyage to plant y<sup>e</sup> first colonie in y<sup>e</sup> northerne parts of VIRGINIA, doe by these presents solemnly & mutually in y<sup>e</sup> presence of God and one of another, covenant, & combine our selves together into a civill body politick, for our better ordering & preservation, & furtherance of y<sup>e</sup> ends aforesaid; and by vertue hearof to enacte, constitute and frame such just & equall lawes, ordinances, acts, constitutions, & offices, from time to time, as shall be thought most meete & convenient for y<sup>e</sup> generall good of y<sup>e</sup> Colonie; unto which we promise all due submission and obedience.

In witnes wherof we have hereunder subscribed our names at Cap-Codd y<sup>e</sup> 11 of November, in y<sup>e</sup> year of y<sup>e</sup> raigne of our soveraigne Lord King JAMES of England, France & Ireland y<sup>e</sup> eighteenth, and of Scotland y<sup>e</sup> fiftie-fourth, An<sup>o</sup> Dom. 1620.

The volumes of Plymouth Records consist of the original minutes of proceedings at the General Court of that colony and of the Courts of Assistants, all held in the town of Plymouth. Consequently they contain the Court Orders, grants of land, the laws, the judicial acts of the Courts, all recorded matters relating to the probate of wills and the administration of estates, deeds of land from the Indian aborigines, and the only evidences in relation to the landed property of the section of the Commonwealth included within the limits of that colony under its charter. Besides the above mentioned, there are lists of the freemen of the colony, and many of the early marriages, births, and deaths, which were returned to the colonial secretary for record by the town clerks of the several municipalities which were under its jurisdiction. There are also among these manuscript records others of great value, relating to the history of the ancient confederated colonies of New England — the original minutes and records of proceedings of the Commissioners of the United Colonies of the Massachusetts Bay, New Plymouth, Connecticut, and New Haven, in New England.

The manuscript volumes are in the handwriting of many different individuals. The Court Orders, of which this introduction is more particularly applicable, are in the well-known chirography of Governor William Bradford, Governor Edward Winslow, and of the secretaries of the colony, namely, Messrs. Nathaniel Souther, Nathaniel Morton, Nathaniel Clarke, and Samuel Sprague. The styles of penmanship of these gentlemen differed much, and can be readily distinguished in the original manuscripts by those familiar with their writing. Care has been taken by the editor to make apparent in the printed reproductions the clerical labors of each of these persons; and therefore the portion of each writer will be found noted as far as could be determined.

The original manuscript volumes of Court Orders, which contain all of the proceedings of the General Court and of the Court of Assistants of the Colony of New Plymouth, are six in number. They embrace a

period extending from the year 1633 to the year 1691, inclusive, with the exception of a few years during the time of the usurpation of Andros. Originally these volumes constituted portions of others, being bound up with records of deeds, wills, judicial actions, and miscellaneous matters relating to the colony, oftentimes with misplaced and inverted leaves. The present arrangement of the volumes was made about the year 1818, when the manuscripts were repaired and carefully rebound. At this time a copy was taken of a portion of the records by the late BENJAMIN R. NICHOLS, Esq., which has been used as far as possible in printing these volumes. Indexes, which were prepared at the same time, have been very much enlarged and adapted to the printed pages.

In performing the duty of editing the records, the greatest care has been taken that the printed copies should be, as far as practicable with movable types, reproductions of the original manuscripts; and for this purpose, typographical symbols, representing the contractions found in ancient manuscripts, and such as were used for the Massachusetts Records, have been freely employed in printing. A key to these characters will be found in a subsequent page of this volume, and the same will be printed in connection with each succeeding volume of records. Capitals and other letters have been employed in the manner most in accordance with the best modern printing, and a free use of punctuation, according to the rules of the present day, has been adopted, where assistance could thereby be afforded to the reader, the greatest care being taken not to affect or change the meaning of any passage, preferring rather that doubtful passages should be printed with the original punctuation, and the interpretation of them left for the determination of persons using them.

The editor has, with especial care, compared every word and letter of the printed copy with the written record, deeming exactness of the greatest importance in every particular, especially in orthography. When, therefore, letters or words are omitted, or superfluous or incorrect

ones are inserted in sentences, and obscurities are found existing in passages, the reader must attribute the fault to the original record, and not to the editor. In general, obliterations intentionally made in the originals have been omitted in printing, and interlineations arising from clerical mistakes have been printed in their proper places in the text as though they had not occurred as such. Occasionally redundancies in the manuscript have been printed in Italics; and, when desirable, certain words, which were cancelled for subsequent purposes by the original writers, have been printed in a manner to show the fact, as also have particular interlineations. Words and parts of sentences, supplied by the editor, have been placed within brackets.

All the marginal entries in the original volumes have been preserved in the printed copies. The original paging has also been retained, by placing in the text a star at the commencement of each page of the manuscript, and the numbers of the pages enclosed in brackets in the margins of the printed volumes.

In order to furnish assistance to the reader, marginal dates have been introduced throughout the volumes, that of the first day of each of the sessions of the Courts being adopted for the purpose, as nearly as possible, leaving the dates of matters of minor consequence to be determined by the context; and double dating has been used in these cases, in all instances, for events happening between the first day of January and the twenty-fourth of March inclusive, thereby preventing doubt as to a knowledge of the exact year of any occurrence,—the first figure indicating the legal year, commencing on the twenty-fifth of March, and the last the historical year, commencing on the first day of January.

Those who consult the Plymouth Records should be reminded that they were written at a time when the Julian method of computing time, commonly known as the Old Style, was in use in England and its dependencies, and that therefore in New England the legal year commenced on Conception day, the twenty-fifth of March. The addition of ten days

to any date given in the printed volumes of records, all the facts contained therein having transpired in the seventeenth century, will reduce it to New Style.

Occasionally the calendar months were distinguished by numbers instead of names, and in this respect the numbers given to the months of the Julian calendar differed from those of the Gregorian, now in use. The months were numbered by the former method thus :—

|           |               |               |
|-----------|---------------|---------------|
| 1. March. | 5. July.      | 9. November.  |
| 2. April. | 6. August.    | 10. December. |
| 3. May.   | 7. September. | 11. January.  |
| 4. June.  | 8. October.   | 12. February. |

The title pages of the volumes of Plymouth Records are embellished with a correct engraving of the colony seal, executed after an ancient copy on the title page of the oldest extant printed edition of the colony laws. The original seal, which disappeared during the administration of Andros, is supposed to have had its origin in the advice of Mr. Robert Cushman, the early agent of the colonists, as given in the following words under date of the eighteenth of December, 1624, in a letter sent from England to Governor Bradford: "Make your corporation as formal as you can under the name of the Society in Plimouth in New England."

To the Secretary of the Commonwealth the editor is much indebted for the facilities afforded him in the performance of his labors, and for the kindness exhibited to him in the discharge of his duties, in conducting the work, thus far, in a successful manner, through the press.

N. B. S.

BOSTON, DECEMBER, 1855.



## MARKS AND CONTRACTIONS.

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A Dash (or straight line) over a letter indicates the omission of the letter following the one marked.

A Curved Line ~ indicates the omission of one or more letters next to the one marked.

A Superior Letter indicates the omission of contiguous letters, either preceding or following it.

A Caret ^ indicates an omission in the original record.

A Cross x indicates a lost or unintelligible word.

All doubtful words supplied by the editor are included between brackets, [ ].

Some redundancies in the original record are printed in *Italics*.

Some interlineations, that occur in the original record, are put between parallels, || ||.

Some words and paragraphs, which have been cancelled in the original record, are put between ‡ ‡.

Several characters have special significations, namely: —

@, — annum, anno.

ā, — an, am, — curiā, curiam.

ā, — mātrate, magistrate.

ḃ, — ber, — numḃ, number; Roḃt, Robert.

č, — ci, ti, — acčon, action.

čō, — tio, — jurisdicčōn, jurisdiction.

č, — cre, cer, — ačs, acres.

ḍ, — ḍḍ, delivered.

ē, — Trēr, Treasurer.

ē, — committē, committee.

ḡ, — ḡñal, general; Georgḡ, George.

ḥ, — chr, charter.

ī, — begīg, beginīg, beginning.

ł, — łre, letter.

m̄, — mm, mn, — coṃittee, committee.

m̄, — recoṃdačōn, recommendation.

m̄, — mer, — formly, formerly.

m̄, — month.

n̄, — nu, — Pcñ, Penn; año, anno.

ñ, — Dñi, Domini.

n̄, — ner, — manñ, manner.

ō, — on, — mentiō, mention.

ō, — mō, month.

ṑ, — par, por, — ṑt, part; ṑtion, portion.

p, — per, — pson, person.

p, — pro, — pporčōn, proportion.

ṑ, — pre, — ṑsent, present.

q, — qstion, question.

ṙ, — esṙ, esquire.

ř, — Apř, April.

š, — š, session; šd, said.

š, — ser, — švants, servants.

ť, — ter, — neuť, neuter.

ť, — capť, captain.

ŭ, — uer, — seŭal, seueral.

ŭ, — abou, above, above.

v̄, — ver, — seŭal, several.

ŵ, — ŵn, when.

y<sup>e</sup>, the; y<sup>m</sup>, them; y<sup>n</sup>, then; y<sup>r</sup>, their; y<sup>s</sup>, this; y<sup>t</sup>, that.

z, — us, — vilibz, vilibus.

ℓ, — es, et, — statutℓ, statutes.

ℓč, &č, &c<sup>a</sup>, — et cætera.

vizℓ, — videlicet, namely.

/, — full point.



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PLYMOUTH COURT ORDERS.

1633—1640.



# PLYMOUTH RECORDS.

## THE RECORDS OF THE COLONY OF NEW PLYMOUTH IN NEW ENGLAND.

[The first volume of Court Orders of the Colony of New Plymouth commences here. As the writing is chiefly on one side of the paper only, and as the even pages, although blank, are numbered in the original manuscript volume, the folios of all blank pages have been omitted in the margins. Dispersed throughout the volume are imperfect indexes to its contents, occupying the chief part of pages 2<sup>a</sup>, 3<sup>a</sup>, 4<sup>a</sup>, part of pages 1, 2, 8, and seven pages bound between pages 63 and 64, which are omitted here to give place to a general index of more value, into which they have been incorporated. Until January, 1636-7, the records were kept in the handwriting of the Governors for the time being, the largest portion of them being in the well-known chirography of Mr. William Bradford and Mr. Edward Winslow. Subsequent to this period the records in the first volume were written by Mr. Nathaniel Souther.]

*\*The Names of the Freemen of the Incorporaçon of Plymoth in New* 1633.  
*England, An: 1633.* [\*1<sup>a</sup>.]

|                                    |             |                                |
|------------------------------------|-------------|--------------------------------|
| Edward Wynslow, Gov <sup>r</sup> . |             | Jonathan Brewster,             |
| Cap <sup>t</sup> Myles Standish,   | } Cowncell. | John Wynslow,                  |
| William Bradford,                  |             | John Coombs,                   |
| John Howland,                      |             | John Shaw,                     |
| John Alden,                        |             | Anthony Annable,               |
| John Done,                         |             | ‡ John Adams, ‡                |
| Stephen Hopkins,                   |             | ‡ Stephen Deane, ‡             |
| William Gilson,                    |             | Stephen Tracy,                 |
| Isaack Allerton,                   |             | William Basset,                |
| Thomas Prence,                     |             | Raph Wallen,                   |
| Raph Smith,                        |             | William Palmer,                |
| William Brewster,                  |             | ‡ Godbert Godbertson, ‡        |
| ‡ Samuell Fuller, senior, ‡        |             | Liuetenant Witt Holmes,        |
| John Jenny,                        |             | Edward Dowty,                  |
| Rob <sup>t</sup> Hickes,           |             | James Hurst,                   |
| Manasseh Kempton,                  |             | John Dunham,                   |
| ‡ William Wright, ‡                |             | William Pontus,                |
| Franc <sup>s</sup> Cooke,          |             | ‡ Franc <sup>s</sup> Weston, ‡ |
| ‡ Franc <sup>s</sup> Eaton, ‡      |             | Josuah Pratt,                  |



1633.

Phineas Prat,  
 ‡ Peter Browne, ‡  
 George Sowle,  
 Edmund Chandler,  
 Christopher Wadsworth,  
 Thomas Clarke,  
 Henry Howland,  
 Kenelm Wynslow,  
 Josias Wynslow,  
 Richard Sparrow,  
 人 Humphrey Turner,  
 Anthony Savery,  
 Roger Chandler,  
 Robt Bartlet,  
 Expience Michael,  
 Edward Bangs,  
 Nicholas Snow,  
 [ \*2<sup>a</sup>. ] John Phance,  
 Richard Church,  
 Joseph Rogers,  
 Henry Cobb,  
 Samuell Nash,  
 Samuell Eedy,  
 Phillip Delanoy,  
 Abraham Peirce,  
 ‡ Raph Fogge, ‡  
 Mr William Collier,  
 John Cooke,

Thomas Willet,  
 Thomas Cushman. (See p. 45.)

The rest admitted afterw<sup>ds</sup>.

John Barnes,  
 George Watson,  
 Isaacke Robbinson,  
 Jams Coale,  
 Sammell Fowler,  
 James Cudworth, (p. 74.)  
 Samuel Howse,  
 ‡ William Palmer, Junior, ‡  
 John Holmes,  
 William Hoskins,  
 John Cooper,  
 Henry Rowl[ey],  
 \*Richard Higin,  
 Moses Simonson,  
 Richard Cluffe,  
 Thomas Atkinson,  
 Jan. 5, Timothy Hatherley,  
 1635, John Browne,  
 Henry Samson,  
 William Hatch,  
 George Kenrick,  
 Mar. 1, Loue Brewster, (p. 87.)  
 Oct. 4, Nathaniell Sowther.  
 (p. 99.)

ACTS AND PASSAGES OF COURT, AND GRAUNTS OF LANDS,  
FROM Y<sup>E</sup> YEAR 1632 UNTILL THE YEAR 1640.

PLYMOTH. M<sup>R</sup> WILL: BRADFORD, GOV<sup>R</sup>. Jan. 1, 1632.

*\*At a Court held the first of January, 1632, in the eighth Yeare of the* 1632-3.  
*Raigne of our Sovereigne Lord, Charles, by the Grace of God King*  
*of Engl., Scotl., Fr., & Irel., Defender of the Faith, &c.* 1 January.  
[\*1.]

IT was enacted by publick consent of the freemen of this society of New Plymouth, that if now or heereafter any were elected to the office of Governour, & would not stand to the election, nor hold & execute the office for his yeare, that then he be amerced in twenty pound<sup>l</sup> sterling fine; and in case refused to be paid upon the lawfull demand of the ensuing Governour, then to be levied out of the good<sup>l</sup> or chattels of the said pson so refusing.

It was further ordered & decreed, that if any were elected to the office of Councill, and refused to hold the place, that then he be amerced in ten pound<sup>l</sup> sterling fine; and in case refused to be paid, to be forthw<sup>th</sup> levied.

It was further decreed & enacted, that in case one & the same pson should be elected Gov<sup>r</sup> a second yeare, having held the place the foregoing yeare, it should be lawfull for him to refuse w<sup>th</sup>out any amerceament; and the company to proceed to a new election, except they can prevaile w<sup>th</sup> him by entreaty.

At this Court Kenelme Wynslow, Josias Wynslow, Samuel Eedy, & Phillip Delany were admitted into the freedome of this society, & received the oath.

At the same Court Edward Wynslow was chosen Gov<sup>r</sup>, & held and was sworne to administer justice in that place for the yeare to come.

Likewise M<sup>r</sup> William Bradford, Cap<sup>t</sup> Myles Standish, John Howland, John Alden, John Done, Stephen Hopkins, & William Gilson were chosen for the Councill the same yeare at the same Court, who held & received the oath.

Peeter Browne was amerced in 3<sup>ss</sup> fine for not a<sup>p</sup>earing at the same Court.

\*Jan. 2<sup>d</sup>, 1632. Whereas, in the beginning & first planting of this colony, it was ordered that all should plant their corne, &c, as neere as might be to the towne of Plymouth aforesaid, and for that end an acre of land was allowed & allotted to each pson for their p<sup>r</sup>nt use, & so to them & their heires for ever,

PLYMOTH.  
WYNSLOW,  
GOV<sup>R</sup>.  
2 January.  
[\*3.]

1632-3.

2 January.  
PLYMOUTH.  
WYNSLOW,  
Gov<sup>r</sup>.

and whereas the said acres lay open, w<sup>th</sup>out inclosure, divers lawes & orders haue been made to prevent such damage as might befall the whole by kine, swine, goat℥, &c, that so by hearing, or other courses, mens labours might be preserved, & such damage or losse as fell upon any to be made good by the owners of the same cattle trespassing; but since the said acres are for the most p<sup>t</sup> worne out, and cattle, by God℥ blessing, abundantly encreasing, and necessity constraining to inclose elsewhere: Act 1. It was thought meet, at a Court held the 2<sup>d</sup> of Jan., 1632, that the former priuiledges of the said acres should be laid downe, and that, as elsewhere, no man set corne upon them w<sup>th</sup>out inclosure but at his pill.

Act 2. And whereas our ancient worke of fortification by continuance of time is decayed, and Christian wisdome teacheth us to depend upon God in the use of all good meanes for our safety, it is further agreed by the Court aforesaid, that a worke of fortificaçon bee made about the said fort in March or Aprill next ensuing, by the whole strength of men able to labour in the colony; and that the Gov<sup>r</sup> and Councell measure the worke, and appoint the whole their joynt & severall p<sup>ts</sup> of labour; and that in case any shall faile their appointed time, by themselues, or assignes for their persons, or serv<sup>ts</sup>, they forfeit ten shillings a day for each default, and to pay for his or their p<sup>t</sup> of labour as the overseers of the worke shall agree notw<sup>th</sup>standing.

Act 3. In regard of our dispision so far asunder, & the inconveniency that may befall, it is further ordered, that every freeman or other inhabitant of this colony provide for himselfe, & each under him able to beare armes, a sufficient musket, & other serviceable peece for war, w<sup>th</sup> bandeleroes, & other apurtenance℥, w<sup>th</sup> what speede may be; and that for each able pson aforesaid, he be, at all times after the last of May next ensuing, furnished w<sup>th</sup> two pownd℥ of powder & ten pownd℥ of bullet℥; and for each default in himselfe or serv<sup>t</sup> to forfeit ten shillings.

Act 4. At the same Court Richard Church was admitted into the freedom of this society, & reç the oath.

[\*4.]

Act 5. \*An action tryed between John Washburne, plaintiffe, & Edw Dowty, defendant, about an hog the defendant had taken wrongfully from the plaintiffe, as hee alledged; but the jewry, Rob<sup>t</sup> Heeks being foreman, fownd the plaintiffe to be faulty, & acquitted the defendant. According to this verdict judgem<sup>t</sup> pronounced ag<sup>t</sup> the plaintiffe.

Act 6. Joseph Rogers complayned in Court of Edward Dowty for nonpformance of cov<sup>ts</sup> in a contract between them wherein six pigges of fve weekes old were due unto the plaintiffe. The case being heard, the defendant was cast in fowr bushels of corne.

Wilt Bennet complained of Edward Dowty for divers injuries, w<sup>ch</sup> was referred to the Councell to be ended by them. 1632-3.

Peeter Browne was amerced in 3<sup>ss</sup> fine for not appearing at the Court.

2 January.  
PLYMOUTH.  
WYNSLOW,  
GOV<sup>r</sup>.

*\*The Acts of the Councell between the Court held the 2<sup>d</sup> of Jan., 1632, & the ~ of Aprill, 1633.* [\*5.]

Jan. 3<sup>d</sup>, 1632.

**W**ILLIAM BENNET complained of Edw. Dowty to haue dealt fraudulently w<sup>th</sup> him about a flich of bacon he was to haue at the rate of three pownd℥ of beaver, w<sup>ch</sup> being viewed was esteemed but at halfe the value, & to be made good in beaver or so much bacon as Robt Heekes & Franc℥ Eaton should thinke meete betweene man & man. 3 January.

2. The said plaintiffe, having sold the defend<sup>t</sup> a pcell of board℥ for beaver, demaunded p<sup>nt</sup> pay. The matter being heard, it was determined that the def<sup>t</sup> should pay him so much bacon in hand as the foresaid Robt & Franc℥ should value to be worth three pound℥ of beaver, and the remainder to be paid by the said Edw. at or before the first of March next ensuing to Richard Church of Plymouth aforesaid, being the assignē of the said Wilt Bennet; and for default of paym<sup>t</sup>, upon the desire of the said Willi: or his assignē, to haue order to strai<sup>ne</sup>.

3. Whereas the said Wilt had employed the serv<sup>t</sup> of the said Edward one moneth in sawing of board℥ w<sup>th</sup> Edw. Shaw, it was ordered he should allow him so much for his serv<sup>t</sup> as the said Edw had w<sup>ch</sup> wrought w<sup>th</sup> him, and not to be p<sup>d</sup> for a moneth of daies, being the weather was very unseasonable by reason of raine, &c.

Jan. 10<sup>th</sup>. Thomas Brian, the serv<sup>t</sup> of Samuell Eedy, was brought before the Gov<sup>r</sup>, & M<sup>r</sup> Wilt Bradford, M<sup>r</sup> John Done, Steph Hopkins, & Wilt Gilson, Assistant℥, because the said Thomas had runne away & absented himselfe fve daies from his masters service, and being lost in the wood℥, & fownd by an Indian, was forced to returne; and for this his offence was privately whipped before the Gov<sup>r</sup> & Councell aforementioned. 10 January.

\*Jan. 20, 1632. Robt Barker, serv<sup>t</sup> of John Thorp, complained of his m<sup>r</sup> for want of clothes. The complaint being found to be just, it was ordered, that Thorp should either foorthw<sup>th</sup> apparrell him, or else make over his time to some other that was able to provide for him. 20 January. [\*6.]

1632-3.

7 January.  
PLYMOUTH.  
WYNSLOW,  
GOV<sup>R</sup>.

Jan. 7. Whereas there were divers account<sup>l</sup> between Samu<sup>l</sup> Fuller, the elder, & Peter Browne, wherein they differ, the said Samu<sup>l</sup> being plaintiffe, upon th<sup>e</sup>xamining of things, they agreed to refer their cause to Rob<sup>t</sup> Heeks & Franc<sup>l</sup> Cooke, & to haue the hearing of their recconing<sup>l</sup>, and according as they shall thinke meete & just to make even & sett streight the same at or before the last of this p<sup>r</sup>nt moneth; and if either party shall fayle to stand to their arbiterm<sup>t</sup>, then to forfeit the full sum of fve pound<sup>l</sup> starling.

8 January.

Jan. 8. Franc<sup>l</sup> Eaton acknowledgeth that he hath sold to Kanelm & Josias Wynslow the now dwelling howse of the said Franc<sup>l</sup>, w<sup>th</sup> other appurtenanc<sup>l</sup> thereunto belonging, expressed in a cov<sup>t</sup> between them; the possession whereof the said Franc<sup>l</sup> is to deliver unto the said Kanelme & Josias at or before the first of March next ensuing, for & in considera<sup>o</sup>n of twenty-six pownds, to be p<sup>d</sup> according to cov<sup>ts</sup> bearing date the day of this p<sup>r</sup>nt; the s<sup>d</sup> Franc<sup>l</sup> warranting the same to be free from him, his *his'* heires, &c, or any other intanglem<sup>t</sup> w<sup>t</sup>soever, to them & their heires for ever.

[\*7.]

\*Stephen Deane, desiring to set up a water worke, to beate corne uppon the brooke adjoyning to the towne of Plymouth, for the benefit of the com<sup>o</sup>n wealth, was referred to the Gov<sup>r</sup> & Councell for ans<sup>w</sup>, who agreed w<sup>th</sup> him upon these following termes: That, provided the place he made choyce of were no hinderance to a grinding mill intended heereafter, he might bring his worke neere the towne. 2. That hee should receiue one pottle out of every bushell for toll, & no more. 3. That in case the said Stephen can beate all the corne that is or shall be used in the colony, it shall not be lawfull for any other to set up a worke of that kinde, except it be for his owne use, or freely, w<sup>th</sup>out toll or any other considera<sup>o</sup>n whatsoever, to giue leaue to others to make use of the same.

W<sup>ch</sup> condi<sup>o</sup>ns the said Stephen accepted, & promised to bring his p<sup>r</sup>nt worke to towne w<sup>th</sup> all convenient speede; and this so<sup>m</sup>er to build such a worke as might serue the whole colony.

16 February.

Febr. 16. Richard Church hyred Wilt Baker from the first of March to the last of September to doe him service for & in considera<sup>o</sup>n of fowrteen bushels of corne & 12 ss. of money. Also the said Richard to giue him one moneths dyet after th<sup>e</sup>xpira<sup>o</sup>n of the said terme, & to provide a sufficient mate to saw w<sup>th</sup> the said Wilt, & the said Richard to giue him the squaring & help for pitting of so much timber as the said Wilt can saw in the moneth aforesaid; the board being sawen to be equally devided betweene the said Richard & the said Wilt. This they both acknowledged before the Gov<sup>r</sup>.

1633.

25 March.

March 25, 1633. Tymothy Hatherly, merch<sup>t</sup> of London, hath sold unto Edw. Holman, of this place, one heyfer, for thirteen pound<sup>l</sup> starling, to be p<sup>d</sup>

at or before the 24 of June next ensuing, in money, merchantable beaver, or fish, at the ordinary rates accustomed. 1633.

March 25, 1633. Tymothy Hatherly, merch<sup>t</sup>, of London, hath sold unto Joh Barnes, of this place, one heyfer, for thirteen pounds starling, to be pd in money or merch<sup>t</sup> beaver, at or before the last of June next ensuing, the sd Tymothy being to winter the said heyfer for the said Joh at his prop costs & charges, the said John standing to the adventure of the beast.

25 March.  
WYNSLOW,  
Gov<sup>r</sup>.

\*According to an order in Court held the 2<sup>d</sup> of January, in the seaventh yeare of the raigne of o<sup>r</sup> soveraigne lord, Charles, by the grace of God King of Engl., Scotl., France, & Irel., defendor of the faith, &c, the psons heere under menconed were rated for publike use by the Gov<sup>r</sup>, M<sup>r</sup> Wilt Bradford, Cap<sup>t</sup> Myles Standish, Joh: Alden, Joh: Howland, John Done, Stephen Hopkins, Wilt Gilson, Sam<sup>l</sup> Fuller, Senior, John Genny, Godbert Godbertson, & Jonathan Brewster, to be brought in by each pson as they are heere under written, rated in corne at vi<sup>s</sup> p bushell, at or before the last of November next ensuing, to such place as shall be heereafter appointed to receiue the same. And for default heereof, the value to be doubled, & accordingly leavied by the publick officer for y<sup>t</sup> end.

[\*9.]

|                                              | l  | ss | d  |
|----------------------------------------------|----|----|----|
| Edward Wynslow, Gov <sup>r</sup> , . . . . . | 02 | 05 | 00 |
| Mr. Wilt Bradford, . . . . .                 | 01 | 16 | 00 |
| Cap <sup>t</sup> Myles Standish, . . . . .   | 00 | 18 | 00 |
| Wilt Brewster, . . . . .                     | 01 | 07 | 00 |
| Isaack Allerton, . . . . .                   | 03 | 11 | 00 |
| Thomas Prence, . . . . .                     | 01 | 07 | 00 |
| John Howland, . . . . .                      | 00 | 18 | 00 |
| John Alden, . . . . .                        | 01 | 04 | 00 |
| John Done, . . . . .                         | 01 | 07 | 00 |
| Sam: Fuller, Senior, . . . . .               | 00 | 18 | 00 |
| John Jenny, . . . . .                        | 01 | 16 | 00 |
| Stephen Hopkins, . . . . .                   | 01 | 07 | 00 |
| Jonathan Brewster, . . . . .                 | 01 | 07 | 00 |
| William Gilson, . . . . .                    | 00 | 12 | 00 |
| Franc <sup>l</sup> Weston, . . . . .         | 00 | 15 | 00 |
| Rob <sup>t</sup> Heekes, . . . . .           | 00 | 18 | 00 |
| John Wynslow, . . . . .                      | 00 | 18 | 00 |
| Manasseh Kempton, . . . . .                  | 00 | 18 | 00 |
| Godbert Godbertson, . . . . .                | 00 | 18 | 00 |

**1633.**

25 March.  
WYNSLOW,  
Gov<sup>r</sup>.

[\*10.]

|                                          |              |
|------------------------------------------|--------------|
| John Coombs, . . . . .                   | 00 : 12 : 00 |
| Phineas Pratt, . . . . .                 | 00 : 09 : 00 |
| George Sowle, . . . . .                  | 00 : 09 : 00 |
| Thomas Clarke, . . . . .                 | 01 : 04 : 00 |
| John Washburne, . . . . .                | 00 : 09 : 00 |
| Nicholas Snow, . . . . .                 | 00 : 18 : 00 |
| Mr Hatherlies two men, . . . . .         | 00 : 18 : 00 |
| *Edward Bangs, . . . . .                 | 00 : 12 : 00 |
| John Browne, . . . . .                   | 00 : 09 : 00 |
| Stephen Tracy, . . . . .                 | 00 : 18 : 00 |
| Widow Warren, . . . . .                  | 00 : 12 : 00 |
| Robert Bartlet, . . . . .                | 00 : 09 : 00 |
| Anthony Annable, . . . . .               | 00 : 18 : 00 |
| Franc <sup>e</sup> Eaton, . . . . .      | 00 : 09 : 00 |
| Raph Wallen, . . . . .                   | 00 : 09 : 00 |
| Franc <sup>e</sup> Sprage, . . . . .     | 00 : 18 : 00 |
| John Dunham, . . . . .                   | 00 : 09 : 00 |
| Roger Chandler, . . . . .                | 00 : 09 : 00 |
| Samuell Nash, . . . . .                  | 00 : 09 : 00 |
| Stephen Deane, . . . . .                 | 00 : 09 : 00 |
| William Basset, . . . . .                | 01 : 07 : 00 |
| Expience Michael, . . . . .              | 00 : 18 : 00 |
| Edward Dowty, . . . . .                  | 01 : 07 : 00 |
| Peter Browne, . . . . .                  | 00 : 18 : 00 |
| * Humfrey Turner, . . . . .              | 00 : 09 : 00 |
| Sam: Eedy, . . . . .                     | 00 : 09 : 00 |
| Wilt Palmer, . . . . .                   | 01 : 07 : 00 |
| John Holmes, . . . . .                   | 00 : 18 : 00 |
| John Barnes, . . . . .                   | 00 : 09 : 00 |
| John Fance, . . . . .                    | 00 : 09 : 00 |
| Thomas Pope, . . . . .                   | 00 : 09 : 00 |
| John Shawe, . . . . .                    | 00 : 18 : 00 |
| Richard Lanckford, . . . . .             | 00 : 09 : 00 |
| John Adams, . . . . .                    | 00 : 09 : 00 |
| Abraam Peirce, . . . . .                 | 00 : 09 : 00 |
| Christopher Wadsworth, . . . . .         | 00 : 12 : 00 |
| Franc <sup>e</sup> Billington, . . . . . | 00 : 09 : 00 |
| Franc <sup>e</sup> Cooke, . . . . .      | 00 : 18 : 00 |

## COURT ORDERS.

11

|                              |              |
|------------------------------|--------------|
| Moses Symons, . . . . .      | 00 : 09 : 00 |
| Widdow Blossome, . . . . .   | 00 : 09 : 00 |
| James Hurst, . . . . .       | 00 : 09 : 00 |
| Henry Cobb, . . . . .        | 00 : 09 : 00 |
| *Henry Howland, . . . . .    | 00 : 09 : 00 |
| Phillip Delanoy, . . . . .   | 00 : 18 : 00 |
| Edward Bumpasse, . . . . .   | 00 : 09 : 00 |
| Joseph Rogers, . . . . .     | 00 : 09 : 00 |
| John Rogers, . . . . .       | 00 : 09 : 00 |
| William Sherman, . . . . .   | 00 : 09 : 00 |
| John Thorp, . . . . .        | 00 : 18 : 00 |
| Samuell Chandler, . . . . .  | 00 : 09 : 00 |
| Richard Church, . . . . .    | 01 : 16 : 00 |
| William Richards, . . . . .  | 00 : 09 : 00 |
| Thomas Little, . . . . .     | 00 : 18 : 00 |
| William Bennet, . . . . .    | ^ ^ ^        |
| Addy Web, . . . . .          | 00 : 09 : 00 |
| Mr Colliers men, . . . . .   | 00 : 18 : 00 |
| Richard Sparrow, . . . . .   | 00 : 09 : 00 |
| William Latham, . . . . .    | 00 : 09 : 00 |
| Richard Higgins, . . . . .   | 00 : 09 : 00 |
| Edward Foster, . . . . .     | 00 : 09 : 00 |
| Richard Seer, . . . . .      | 00 : 09 : 00 |
| Thomas Boreman, . . . . .    | 00 : 09 : 00 |
| Edward Holman, . . . . .     | 00 : 18 : 00 |
| Kenelm Wynslow, . . . . .    | 00 : 12 : 00 |
| Widow Harding, . . . . .     | 00 : 09 : 00 |
| ^ Rowland, . . . . .         | 00 : 09 : 00 |
| John Bowman, . . . . .       | 00 : 09 : 00 |
| John Hewes, . . . . .        | 00 : 09 : 00 |
| ^ Rowly, . . . . .           | 00 : 09 : 00 |
| Nathaniell Morton, . . . . . | 00 : 09 : 00 |

1633.

25 March.  
WYNSLOW,  
Gov<sup>r</sup>.

[\*11.]



1633.

1 April.  
PLYMOUTH.  
WYNSLOW,  
GOV<sup>r</sup>.

[\*13.]

*\*At a Court held the first of Aprill, in the eighth Yeare of the Raigne of o<sup>r</sup> Sovereaign Lord, Charles, by the Grace of God King of Engl., Scotl., Fr., & Ireland, Defendor of the Faith, &c., these Businesses ensuing were handled.*

Apr. 1, 1633.

**A**CT 1. Inpr. John Holmes was censured for drunkennes, to sitt in the stockℓ, & amerced in twenty shillings fine.

2. It. John Hews & Jone his wife adjudged to sitt in the stockℓ because the said Jone conceived w<sup>th</sup> childe by him before they were publickely married, though in the time of contract.

3. It. John Thorp & Alice his wife likewise adjudged to sitt in the stockℓ, & amerced in forty shillings fine, because his wife conceived w<sup>th</sup> childe before marriage, but in regard of their p<sup>nt</sup> poverty, twelue moneths time given for paym<sup>t</sup>.

4. It. An acc<sup>on</sup> of slander tryed between William Bennet & Edward Dowty, of New Plymouth: the said Wilt, being plaintiffe, accused the said Edward to haue called him rogue, w<sup>ch</sup> being proved by divers testimonies, the jewry, Josuah Pratt being foreman, found the def<sup>t</sup> to be guilty, & amerced him in fifty shillings fine, wherof thirty to goe to the plaintiffe, & twenty to o<sup>r</sup> soveraigne lord the King, & gaue the said Edward Dowty eight moneths day of paym<sup>t</sup>.

5. At the same Court, it was ordered, that in considera<sup>on</sup> of the want of the way about the spring, & the dangers y<sup>t</sup> may befall both man & beast by reason of it, the master of every family send one sufficient p<sup>son</sup> for labor to help to reparaire the same at such time as shall be appointed by the Gov<sup>r</sup>, and for every default to forfeit two shillings.

Munday, the 8 of this p<sup>nt</sup>, appointed for the worke, at the howre of seaven in the morning.

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[\*15.] *\*Things done by & before the Gov<sup>r</sup> & Councell between the Court aforesaid & the 1 of July.*

8 April.

April 8<sup>th</sup>, 1633.

**W**HEREAS Walter Harris had bound himselfe by indenture to serue M<sup>r</sup> Joh Atwood, of Lond<sup>t</sup>, under the com<sup>and</sup> of M<sup>r</sup> John Done, of New Plymouth, for the space of fue yeares, the said John Done hath sold all

right, title, & claime to the said service unto Henry Howland, by consent of the said Walter, for & in consideraçon of fourteen pownð sterling, to be paid at three severall paym<sup>ts</sup>, viz<sup>t</sup>: the first in hand, the second in November next ensuing, & the third in November, anno 1634, in merchantable comodities, as corne or swine, as they shall be worth at the severall times of paym<sup>t</sup>.

Apr. 9. John Barnes hath sold unto Thomas Little one shallop, in consideraçon of one pownð of beaver r<sup>d</sup> in hand, & three ewe goat<sup>l</sup> to be d<sup>a</sup> in June ensuing, whereof one to be a yeare old, & the other two between the age of two & three yeares, all giving milke at the same time.

Apr. 19. Thomas Little & Ann Warren married.

May 18<sup>th</sup>. Humphrey Turner, having obtayned leaue to make use of a peece of ground by the pond on the wester side the fort, neere the towne, & having enclosed the same w<sup>th</sup> a firme pallisado, hath sold his right & title to the same, as also the pallisado it selfe, together w<sup>th</sup> a smale randevow, to Josias Wynslow, the elder, for & in consideraçon of eight pownð sterling, to be p<sup>d</sup> in money or beaver at 10<sup>ss</sup> p <sup>t</sup>, at or before the 15<sup>th</sup> of October next ensuing.

‡ Thomas Little and Anne Warren married. ‡

1633.

8 April.  
PLYMOUTH.  
WYNSLOW,  
Gov<sup>r</sup>.

9 April.

19 April.

18 May.

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*\*At a Generall Court held the first of July, in the ninth Yeare of the Raigne of o<sup>r</sup> Sovereigne Lord, Charles, by the Grace of God King of Engl., Scotl., Fr., & Ireland, Defendor of the Faith, &c.*

[\*17.]

July 1, 1633.

1 July.

THESE things following were determined & enacted.

Inpr: That the pson in whose howse any were found or suffered to drinke drunck be left to the arbitrary fine & punishm<sup>t</sup> of the Gov<sup>r</sup> & Councell, according to the nature & circumstance of the same.

2. That the whole tract of land between the brooke at Scituate, on the norwest side, and Conahasset be left undisposed of till we know the resoluçon of M<sup>r</sup> James Sherley, M<sup>r</sup> John Beauchamp, M<sup>r</sup> Rich Andrews, & M<sup>r</sup> Tymothy Hatherly, as also that porçõn of land lately made choice of by M<sup>r</sup> Hatherly aforesaid.

3. That no sheep be sold out of the colony, under penalty of forfeiting their due value.

4. That unles M<sup>r</sup> Gilson, John Shaw, & the rest that undertooke the

1633.

1 July.  
WYNSLOW,  
GOV<sup>R</sup>.

cutting of the passage between Greens Harbour & the bay finish it before the first of October next ensuing, according to cov<sup>t</sup>, they be amerced in ten poundℓ; but if any of them will doe it, the fine be exacted of the rest, & they p<sup>d</sup> for their labour.

5. That all the freemen be in arms the 15<sup>th</sup> of August next ensuing, at the court of gard.

6. That none digge clay by M<sup>r</sup> Heekℓ his garden at the head of the banck, but att the foote thereof, lest the upp way in time be lost.

7. That Capt<sup>r</sup> Myles Standish, John Done, Stephen Hopkins, Josuah Prat, Edward Bangℓ, Jonathan Brewster, & Ro<sup>b</sup>t Heekℓ devide the medow ground in the bay equally, according to the propor<sup>c</sup>ōn of shares formerly devided to the purchasers at or before the last of Aug. next ensuing.

[\*19.]

*\*Orders about mowing of Grasse for the p<sup>r</sup>nt Yeare, 1633.*

July 1.

July 1.

**I**NPR. It was agreed that M<sup>r</sup> Wilk Collier mow the medow ground lying between y<sup>e</sup> west side of the brooke at Mortons Hole, & to the ground of Jonathan Brewster.

2. That Capt<sup>r</sup> Standish mow the endℓ of the growndℓ belonging to Edward Bumpasse & Wilk Latham, instead of that M<sup>r</sup> Collier hath, & he formerly mowed.

It. That Francℓ Sprague mow at the Eagle, & about his owne ground where he mowed last yeare.

It. That Wilk Basset mow at the endℓ of his owne ground.

It. The watering place & thereabout for M<sup>r</sup> Fogg & M<sup>r</sup> Weston, ||M<sup>r</sup> Combs,|| together w<sup>th</sup> that M<sup>r</sup> Weston ||Joh Fans|| had last yeare.

It. For Goodman Cutberd at Wellingly, & y<sup>t</sup> he mowed the last yeare.

It. For Joseph Rogers that w<sup>ch</sup> he mowed last yeare.

It. To Joh Wynslow, ||Allerton, M<sup>r</sup> Fuller, Wid<sup>o</sup> Wright,|| & Joh Adams that w<sup>ch</sup> M<sup>r</sup> Gilson mowed last yeare, & the rest adjoyning unmowed.

It. To Liuetenant Holmes that w<sup>ch</sup> is against his ground.

It. To Stephen Tracy w<sup>th</sup>in his owne ground.

It. To Manasseh Kempton that at the Iland Creeke abutting upon Stephen Tracies ground & Edmund Chandlers.

It. To Tho. Prence that w<sup>ch</sup> was mowed last yeare for M<sup>r</sup> Hatherly & Manasseh Kempton, at Jones River.

It. To M<sup>r</sup> Smith y<sup>t</sup> he mowed last yeare.

It. To M<sup>r</sup> Williams y<sup>t</sup> w<sup>ch</sup> Fr. Eaton cutt last yeare, except y<sup>t</sup> at the upp<sup>r</sup> path, w<sup>th</sup> some by him at home.

It. To Christopher Wadsworth & Will<sup>t</sup> Wright where they mowed last yeare, & at the upp<sup>r</sup> path where Franc<sup>l</sup> Eaton mowed last yeare.

It. For the stock of cattle belonging to the pore, where they cutt last yeare.

It. For Edw. Wynslow that against his own ground, & from the marsh over against Slowly House up the river.

\*It. That M<sup>rs</sup> Warren & Rob<sup>t</sup> Bartlet mow where they did last yeare, & the marsh adjoining, as high as Slowly Howse. [\*21.]

It. That George Sowle mow for a cow neere his dwelling howse.

It. That M<sup>r</sup> Hopkins & Tho. Clarke ^ where they mowed last yeare, except George Sowles cow, as before appointed.

1633.

1 July.

WYNSLOW,  
Gov<sup>r</sup>.

*\*Things done by the Gov<sup>r</sup> & Councell betweene July the 1 & October.* [\*23.]

July 23.

23 July.

**W**ILL. MENDLOUE, the serv<sup>t</sup> of Will<sup>t</sup> Palmer, whipped for attempting uncleanes w<sup>th</sup> the maid serv<sup>t</sup> of the said Palmer, & for running away from his master, being forcibly brought againe by Penwatechet, a Manomet Indian.

*\*Divers Covenant<sup>l</sup> & Contract<sup>l</sup> acknowledged before the Gov<sup>r</sup>.* [\*25.]

July 23, 1633.

23 July.

**W**ILL. MENDLOUE bound to serue Richard Church the full terme of seaven yeares in the trade of carpentry, wherein the said Richard sufficiently to instruct & teach him, & at the expira<sup>o</sup>n of his terme to giue him two sute<sup>s</sup> of ap<sup>p</sup>ell.

July 23. Will<sup>t</sup> Palmer sold the time of service he had in Will<sup>t</sup> Mendloue to Richard Church, for & in considera<sup>o</sup>n of three pound<sup>l</sup> starling, to be p<sup>d</sup> in money or corne, in November next ensuing. 23 July.

July 25. John Beaven hath covenanted to serve Joh. Wynslow or his 25 July.

**1633.** assigns the full terme of six yeares, according to the nature of an apprentise, beginning June 24, 1633. And at thēnd of his said terme, the s̄d John Wynslow, his master, to giue him twelue bushells of Indian corne, & 25 acres of unmanured land.

25 July.  
WYNSLOW,  
GOV<sup>r</sup>.

July 25. John Smith hath covenanted to serue John Jenny the full terme of seaven yeares, after the manner of an apprentise, beginning the 24 of June, this p̄nt yeare; at thēxpiraçōn whereof, the s̄d John Jenny to giue him twelue bushels of Indian corne, & twenty-fue acres of land.

15 August. Aug. 15. Whereas Robt Barker had bound himselfe an apprentise to John Thorpe, in the trade of carpentry, the said Thorp being dead, Alice, his wife, hath turned over his time, w<sup>ch</sup> will be expired the first of Apr. 1637, to William Palmer, nayler, of Plymouth, by the free consent of the said Robert; the said William promising to instruct & teach him his said trade of nayling, & at the end of his time to giue him onely two sutes of apparell.

25 July.  
[\*27.] \*July 25. Wilt Honywell hath cov<sup>t</sup> to serue Thomas Prence the full terme of seaven yeares, after the nature of an apprentize, his time beginning the 24 of June, 1633; and at the end of his said terme, to haue, in consid<sup>r</sup> of his said service, twenty-fue acres of unmanured land, & twelue bushels of Indian corne.

12 September. Sept<sup>r</sup> 12. John Barnes married unto Mary Plum<sup>r</sup> the tweluth of September.

7 October. Octob. 7. Richard Higgens hath bought of Thomas Little his now dwelling howse & misted, for & in consideraçōn of twenty-one bushels of merchantable corne, whereof twelue bushels to be p<sup>d</sup> in hand, & the remainder at harvest next ensuing.

17 October. Henry Rowly married Anna, the late wife of Tho: Blossome, the 17 of October, 1633.

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[\*31.] \**At a Generall Court held the 28<sup>th</sup> of Octob<sup>r</sup>, in the ninth Yeare of the Raigne of our Sovereigne Lord, Charles, by the Grace of God King of Engl., Scotl., Fr., & Irel., Defendor of the Faith, &c.*

28 October.

Oct. 28.

**A**CT 1. It was by full consent agreed upon & enacted, that the chiefe governm<sup>t</sup> be tyed to the towne of Plymouth, and that the Gov<sup>r</sup> for the time being be tyed there to keepe his residence & dwelling; and there also to hold such Court<sup>l</sup> as concerne the whole.

2. It was further enacted, that whereas formerly a smale moyety of land was allotted to each family, for their convenient subsistence in the towne, viz<sup>t</sup>, to each pson an acre, and that now the said acres lie void, the ancient inhabitant<sup>l</sup> being for the most p<sup>t</sup> removed from thence, insomuch that as formerly they were the meanes of subsisting in towne, now the propriety of psons in them elsewhere seated hinder others from coming into the towne, by w<sup>ch</sup> meanes the s<sup>d</sup> towne is like to be dispeopled, it was therefore agreed upon, by the mutual consent of the whole, (two psons excepted,) that all & every such pson & psons should surrender & cast up their right in the said acres, that they may be disposed of to such as doe or shall inhabite the said towne of Plymouth, as also other the wast grownd<sup>l</sup> about the said towne, by such an orderly & equall cowrse as shall be thought meet by the Gov<sup>r</sup> & Cowncell of the said colony; and that the said Gov<sup>r</sup> & Cowncell thinke of some equall cowrse where any haue been purchased, & the psons not able to make satisfacc<sup>o</sup>n.

1633.

28 October.  
PLYMOUTH.  
WYNSLOW,  
GOV<sup>R</sup>.

3. That whereas God, by his providence, hath cast the fish called alewiues or herring<sup>l</sup> in the midst of the place appointed for the towne of Plymouth, and that the ground thereabout hath been worne out by the whole, to the damage of those that inhabite the same, that therefore the said herring, alewiues, or shadd<sup>l</sup> co<sup>m</sup>only used in the setting of corne be appropriated to such as doe or shall inhabite the towne of Plymouth afore<sup>s</sup>d, and that no other haue any right or propriety in the same, onely for bait for fishing, & that by such an orderly cowrse as shall be thought meet by the Gov<sup>r</sup> & Cowncell.

\*Act 4. That the wills & testam<sup>ts</sup> of those that die be proved orderly before the Gov<sup>r</sup> & Cowncell w<sup>th</sup>in one moneth after the decease of the testator; and that a full inventory, duly valued, be presented w<sup>th</sup> the same, before t<sup>rs</sup> of administrac<sup>o</sup>n be granted to any, of all the good<sup>l</sup> & chattells of the said psons. Also, if in case any man die w<sup>th</sup>out will, his good<sup>l</sup> be by his wife, or other neerest to him, inventoried & duly valued & presented to the Gov<sup>r</sup> & Cowncell w<sup>th</sup>in one moneth after the decease of the same pson so dying; and if it be a single pson, w<sup>th</sup>out kindred heere resident, that then the Gov<sup>r</sup> appoint some to take a just inventory of the same, & to present the same upon oath to be true & just, as in other the cases before men<sup>o</sup>ned.

[\*33.]

In this Court, Mary, the late wife of Peter Browne, deceased, who dyed w<sup>th</sup>out will, presented an inventory of the good<sup>l</sup> & chattells of her said husb. upon oath, & was referred for administrac<sup>o</sup>n to another Cou<sup>r</sup> of Assistant<sup>l</sup>, to be held *the* on Munday, the 11<sup>th</sup> of Novb<sup>r</sup> next ensuing.

1633.

28 October.  
PLYMOUTH.  
WYNSLOW,  
GOV<sup>R</sup>.

At the same Court was presented, upon the oath of Josuah Pratt, an inventory of the goodℓ of Rich: Lanckford, late deceased, Edward Wynslow administring upon the same.

At this Court the will & test. of Sam. Fuller was proved, upon the oath of the witnesses, John Wynslow & Rob<sup>t</sup> Heekℓ.

At the same Court, John Done presented an inventory of the goodℓ & chattels of Martha Harding, deceased, who, in the behalfe of her son, was allowed the administrator of the said Martha.

[\*35.] \*At the same Court, Alice, the late wife of John Thorp, appointed to bring in an inventory of the goodℓ & chattells of her deceased husband on Monday, the 11<sup>th</sup> of November next ensuing.

Phineas Pratt referred to further hearing at the same time about the goodℓ of Godbert Godbertson & Zara, his wife.

At the same Court, a misted that was granted formerly to Richard Warren, deceased, & forfeited by a late order, for want of building, the said misted was granted to M<sup>r</sup> Raph Fog & his heires forever, provided the said Raph w<sup>th</sup>in twelue moneths build a dwelling howse upon the same, & allow the widow Warren so much for her fence remayning thereon as Rob<sup>t</sup> Heekℓ & Christopher Wadsworth shall thinke it may be serviceable to the said Raph.

[\*37.] \**At a Court of Assistantℓ held the 11<sup>th</sup> of Novembr, in the ninth Yeare of the Raigne of our Sovereigne Lord, Charles, by the Grace of God King of Engl., Scotl., France, & Ireland, Defendor of the Faith, &c.*

11 November.

Novb<sup>r</sup> 11<sup>th</sup>.

**I**T was ordered, that whereas Peter Browne dyed w<sup>th</sup>out will, having divers children by divers wiues, his estate amounting to an hundred powndℓ, or thereaboutℓ, it is ordered, that Mary, his wife, who is allowed the administratrix of the said Peter, forthwith pay downe fifteen powndℓ for the use of Mary Browne, daughter of the said Peter, to M<sup>r</sup> Joh. Done, of Plymoth aforesaid, w<sup>th</sup> whom the said Court haue placed the said Mary for nine yeares; at the end whereof the said John is to make good the said fifteen powndℓ to her or her heires, if in case she die. Also it is further ordered, that the said widow Mary Browne pay or cause to be paid into the handℓ of M<sup>r</sup> Wilt Gil-

son the full sum of fifteen pownd℥, for the use of Prisilla Browne, another of the daughters of the said Peter, the Court having placed the said Prisilla w<sup>th</sup> the said Wilt for 12 yeares, at thēnd whereof the said Wilt is to make good the same unto her, as her fathers legacy as aforesaid; & to that end the said John & Wilt either stand bound for other for pformance of the severall paym<sup>ts</sup>, as also for such other pformanc℥ of meat, drinke, cloathing, &c, during the said terme, as is meet.

And for the rest of the estate, the widow having two children by the said Peter, together w<sup>th</sup> her owne 3<sup>d</sup>, it is allowed her for bringing up the said children, provided that shee discharge w<sup>ts</sup>soever debt℥ shall be proved to be owing by the said Peter, & the legacies given by the Court. For pformance whereof shee & M<sup>r</sup> Wilt Brewster bownd in two hundred pownd℥.

At this Court, Phineas Prat appointed to take into his possession all the good℥ & chattels of Godbert Godbertson & Zarah, his wife, & safely to preserve them, according to an inventory presented upon oath to be true & just by M<sup>r</sup> Joh. Done & M<sup>r</sup> Steph. Hopkins.

\*At the same Court, the widow Ellen Adams presented an inventory of the good℥ & chattels of her late husband, John Adams, deceased, upon oath. And whereas the said John dyed w<sup>th</sup>out will, it was ordered, that if in case the said Ellen shall haue an inclinacōn to marry, shee, before her said marriage, estate the three children of her former husband, deceased, James, John, & Susan, in fve pownd℥ starling apeece, to be paid when they shall come to yeares of discretion, according to the statutes of Engl.; for pformance whereof, as also to make full paym<sup>ts</sup> of all & every the debt℥ of the said John Adams, the said Hellen & John Barnes are bound in the sum of 140<sup>l</sup>; the said Hellen being allowed the administratrix of her said husband.

1633.

11 November.  
NEW PLYM.  
WYNSLOW,  
GOV<sup>R</sup>.

[\*39.]

*\*.At a Court of Assistant℥ held the 25<sup>th</sup> of Novemb<sup>r</sup>, in the ninth<sup>th</sup> Yeare of the Raigne of our Sovereigne Lord, Charles, by the Grace of God King of Engl., Scott., France, & Ireland, Defendor of the Faith, &c.*

Novb<sup>r</sup> 25.

25 November.

**I**T was ordered: 1. That whereas Franc℥ Eaton, carpenter, late of Plymouth, deceased, dyed indebted far more then the estate of the said Franc℥ would make good, insomuch as Christian, his late wife, durst not administer,

[\*41.]



1633.

25 November.  
NEW  
PLYMOUTH.  
WYNSLOW,  
GOV<sup>R</sup>.

it was ordered, that M<sup>r</sup> Thomas Prence & M<sup>r</sup> John Dunc, in the behalfe of the Court, should enter upon the estate, according to the inventory brought in upon oath the day of this p<sup>r</sup>nt, that the creditors might haue so far as the estate will make good, & the widow be freed & acquitted from any claime or demand<sup>l</sup> of all or any his creditors whatsoever.

2. That whereas John Thorp, carpenter, late of Duxburrow, in the liberties of Plymouth aforesaid, deceased, dyed indebted far more then the estate of the said John would make good, insomuch as Alice, his wife, durst not administer, it was ordered, that Capt<sup>r</sup> Myles Standish, Gent., & Stephen Hopkins should enter upon his estate, according to an inventory presented upon oath by the said Alice, his wife, in the behalfe of the Court, that so the creditors might be satisfyed, so far as the estate will make good, and the widow be freed from & acquitted of all & all ma<sup>n</sup>r of claime or claimes or demand<sup>l</sup> by all & every his creditors whatsoever.

3. That whereas Godbert Godbertson & Sara, his wife, dyed indebted more then their estate amount<sup>l</sup> unto, M<sup>r</sup> William Bradford was appointed to administer in the behalfe of the Court, & enter upon the good<sup>l</sup>, according to an inventory brought in upon oath, that so the creditors may be satisfyed so far forth as the estate will make good.

2 December.

[\*43.]

\*Dec<sup>br</sup> 2<sup>d</sup>. Whereas M<sup>r</sup> Wilt Bradford was appointed, in the behalfe of the Court, to enter upon the estate of Godbert Godbertson & Zarah, his wife, & to discharge the debt<sup>l</sup> of the said Godbert, so far as his estate will make good; and whereas the greatest p<sup>t</sup> of his debt<sup>l</sup> are owing to M<sup>r</sup> Isaack Allerton, of Plym., merch<sup>t</sup>, late brother of the said Zarah, the said Isaack hath given free leaue to all other his creditors to be fully discharged before he receiue any thing of his p<sup>t</sup>icular debt<sup>l</sup> to himselfe, desiring rather to lose all *rather* then other men should lose any.

24 November.

Nov<sup>br</sup> 24. Alice Grinder acknowledgeth herselfe to be the serv<sup>t</sup> of M<sup>r</sup> Isaack Allerton for fve yeares next ensuing, during w<sup>ch</sup> terme the said Isaack to maintaine the said Alice foode & raym<sup>t</sup> competent for a servant, & at thēd thereof the said Isaack to giue her two sutes of ap<sup>p</sup>ell.

This maid serv<sup>t</sup> was left heer by M<sup>r</sup> Joh. Graunt, master of the  
for M<sup>r</sup> Allerton, in his absence.

*\*At a Generall Court held the first of January, in the ninth Yeare of 1633-4.  
the Raigne of our Sovereigne Lord, Charles, by the Grace of  
God King of Engl., Scotl., Fr., & Irel., Defendor of the Faith, &c.*

1 January.  
NEW  
PLYMOUTH.  
WYNSLOW,  
GOVR.

Jan. 1, 1633.

**A**CT 1. These following were admitted into the freedom of this society, & rec<sup>d</sup> the oath of fidelity, viz<sup>t</sup>: M<sup>r</sup> William Collier, Thomas Willet, John Cooke, & Thomas Cushman.

2. At this Court, M<sup>r</sup> Thomas Prence was elected Gov<sup>r</sup> for the yeare following, and to enter upon the place the first of March or the 27 of the same, and to execute the office of Gov<sup>r</sup> for one whole yeare from the time of his entry.

3. At the same time, Edw<sup>d</sup>: Wynslow, M<sup>r</sup> Will<sup>m</sup> Bradford, M<sup>r</sup> Isaack Allerton, M<sup>r</sup> Joh Alden, M<sup>r</sup> Joh Howland, & M<sup>r</sup> Stephen Hopkins chosen to the office of Assistant<sup>ℓ</sup> to the said Gov<sup>r</sup>, & to enter thereupon w<sup>th</sup> the said Gov<sup>r</sup> elect as aforesaid.

4. It. Josuah Prat chosen to the office of messenger & constable for Plymouth, & sworne to faithfulness in the same.

5. Christopher Wadsworth chosen constable for the ward of <sup>^</sup> bounded between Jones River & Greens Harbour, and to serue the King in that office for the space of one whole yeare, & to enter upon the place w<sup>th</sup> the Gov<sup>r</sup> elect, as abouesaid.

6. It. Anthony Annable chosen constable for the ward of Scituate, and to serue the King in that office for the space of one whole yeare, & to enter upon the same w<sup>th</sup> the Gov<sup>r</sup> elect.

7. It. At the same Court, Tho. Higgens, having lived an extravagant life, was placed w<sup>th</sup> John Jenny for eight yeares, to serue him as an apprentice, during w<sup>ch</sup> time the said John competently to provide for him, & at thēd thereof to giue him double app<sup>ℓ</sup>, 12 bushels of corne, & 20 acres of land.

8. It was likewise ordered, that from hencefoorth the Gov<sup>r</sup> & other officers belonging to the severall p<sup>tℓ</sup> of this corporacōn be elected in & upon the first of January, but not to enter upon their offic<sup>ℓ</sup> till the 27<sup>th</sup> of March, when, at a publick Court, they shall be sworne & admitted.

[\*45.]

1633-4. *\*At a Generall Court held the second of January, in the ninth Yeare of the Raigne of our Sovereigne Lord, Charles, by the Grace of God King of Engl., Scotl., Fr., & Ireland, Defendor of the Faith, &c.*

2 January.  
NEW  
PLYMOUTH.  
WYNSLOW,  
GOV<sup>r</sup>.

Jan. 2<sup>d</sup>, 1633.

[\*47.]

IT was ordered,  
Act 1. That Stephen Deane haue a sufficient water wheele set up at the charge of the colony, consisting of one foot more in depth then that he now useth, at or before the 27<sup>th</sup> of March, the said Stephen finding the yron worke thereunto belonging; in considera<sup>c</sup>ō whereof, the said Stephen to surrender up his worke & that right & claime he challengeth for the beating of corne, whensoever a grinding mill shall be sett up at the order & appointm<sup>t</sup> of the Gov<sup>r</sup> & Cowncell of Assistant<sup>ℓ</sup>.

2. That the Gov<sup>r</sup> & Cowncell of Assistant<sup>ℓ</sup> hire a watch, & charge it upon the whole colony, according to the accustomed manner, for the yeare following.

3. That all & every pson w<sup>th</sup>in the colony be subject to such military order for trayning & exercise of armes as shall be thought meet, agreed on, & prescribed by the Gov<sup>r</sup> & Assistant<sup>ℓ</sup>.

4. That in case it fall out that any die more indebted then their estate of good<sup>ℓ</sup> and chattels amount unto, if the pson so deceased haue bought any land<sup>ℓ</sup> in his life time, to the impairing of his estate otherwise, that the land<sup>ℓ</sup> so bought be sold, to make satisfac<sup>c</sup>ō to the creditors. But whereas a portion is disposed of to each, for the subsistance of him or her selfe & family, that such land<sup>ℓ</sup> remaine to the survivors, his or her heires, no seisure being allowed the creditors in that case.

5. That in case a man die bankerout, as afore, considering the rawnes of the countrey, & the smale meanes for help & reliefe can yet be afforded by others, and that life must be preserved in the widow, children, or both, and considering the cases of psons cannot be alike, but some may require more help, some lesse, it is ordered & determined, that whatsoever the Gov<sup>r</sup> & Assistant<sup>ℓ</sup> shall allow the widow & fatherles or motherles in this kinde for their p<sup>r</sup>nt comfort shall be to them & their comfort, notw<sup>th</sup>standing they dare not administer; \*nor shall they be lyable to any paym<sup>t</sup> to any the creditors of the deceased, in respect thereof, provided too great detrim<sup>t</sup> come not to the creditors thereby.

[\*49.]

6. That whereas by an ancient order 2<sup>d</sup> was allowed p head to any that should kill a wolfe throughout the colony, for the encouragem<sup>t</sup> of psons to seeke the destruc<sup>c</sup>ō of those ravenous creatures, it being observed that none

purposely seeke them, but accedentially light ou them, & so unworthily receive the benefit, it is thought meet to cutt off the same, & make it of no force, except to such as by the speciall approbaçõn of the Gov<sup>r</sup> & Cowncell shall set themselves, by traps or other engines, to take the same, and to make payment to such, upon the Gov<sup>rs</sup> warrant, as before.

1633-4.

2 January.  
NEW  
PLYMOUTH.  
WYNSLOW,  
Gov<sup>r</sup>.

7. At the same Court, M<sup>r</sup> John Done, being formerly chosen to the office of a deacon in the church, at the request of the church & himselfe was freed from the office of an Assistant in the comon weale.

8. That whatsoever damage comes to any by coves, goat℥, or sheep, or any of that kinde, by coming into their corne or gardens, be made good by the owners, according as it shall be valued by two of the neighbors, notwithstanding any former law to the contrary.

9. That there be no great swine kept about the towne, to the annoyance of any in their corne, gardaines, meades, &c; but that upon due warning first given to driue them away, the owners of them make good whatsoever damage shall be given by the arbitraçõn of two of the neighbours.

10. That whereas many haue sustayned great damage by the indiscreet fying of the wood℥, it is by these p<sup>r</sup>nt order forbidden to any to set fire of them except between the middest of the moneth of ‡September‡ February & the middest of the moneth of March; and that whatsoever damag cometh to any by the breach of this order in fying the woods otherwise to be made good by the delinquent. Also, whensoever any are justly occasioned to fire the same ‡ at any other time,‡ they shall giue warning thereof to the neighbours about them.

11. That whereas John Smith, being in a great extremity formerly, to be freed of the same bound himselfe as an \*apprentice to Edward Dowty for the terme of ten yeares, uppon the petiçõn of the said John the Court toke the matter into hearing, & finding the said Edw: had disbursed but little for him, freed the said John from his cov<sup>t</sup> of ten yeares, & bownd him to make up the time he had already served the said Edward the full terme of five yeares; and at the end thereof, the said Edward to giue him dowble app<sup>e</sup>ll, & so be free of each other.

[\*51.]

11. That whereas great abuse may arise by diversity of measures, it is ordered, that all measures be brought to the messenger or constable of Plym. to be sealed, and that it be lawfull for any to refuse any that hath not the seale prefixed thereon.

12. That whereas by indenture many are bound to giue their serv<sup>ts</sup> land at thēexpiraçõn of their terme, it is ordered, that they haue it at Scituate, or some other convenient place, where it may be usefull.

1633-4.

2 January.  
NEW  
PLYMOUTH.  
WYNSLOW,  
Gov<sup>r</sup>.

13. That whereas divers foote pathes lie thorow mens inclosures, and that great damage hath & may come to many by pulling up the same for driving of cattle or the like, it is ordered, that no man pull up any but upon extreame necessity, nor then w<sup>th</sup>out leaue.

14. That the smale pcell of land lying in forme of an iland upon New-harbour Marsh, on the north side the river, & called by the name of Susanna, be granted to Raph Fogge & his heires for ever.

6 January.

[\*53.]

\*Jan. 6, 1633. Sañ Jenny, the sonne of John Jenny, by the consent of the said John, hath bound himselfe apprentice to Kanelm Wynslow, of Plymouth, joyner, for the full terme of fowr yeares, during w<sup>ch</sup> time the said Samuell shall doe faithfull service, as becometh an apprentice, to the said Kanelm. Also, the said Kanelm shall exercise the said Samuell in the joyners occupaçon, and shall doe his best to instruct him in his said trade, and at the end of his tyme shall dowble appell the said Samuell. But if the said Kanelm shall remoue his dwelling from Plymouth, or the liberties thereof, then this cov<sup>t</sup> to be void.

10 January.

Ed. Holman &  
John Barnes  
came before me  
y<sup>e</sup> 6 May, 1635,  
and acknowl-  
edged himselfe  
fully payed.

WILLIAM

BRADFORD,  
Gov<sup>r</sup>.

Jan. 10. Edw: Holman hath sold unto John Barnes one shallop, w<sup>th</sup> all thingℓ thereunto belonging. Also, one dwelling howse & twenty acres of land w<sup>th</sup> the fence & boardℓ thereunto belonging, for & in consideraçon of twenty pownℓ to be p<sup>d</sup> as followeth, vizt, 20<sup>li</sup> of merch<sup>t</sup> beaver in May ensuing at x<sup>ss</sup> p t; and in Nov<sup>br</sup> following twenty bushels of corne; and other ten pownℓ of beaver in March following. The said paym<sup>ts</sup> to be well & truly made to Edw. Wynslow, for & in the behalfe of the said Edw: Holman, his heires, &c. Also the said Joh. Barnes shall make good & possesse the said Edw: Holman of 20 acres of land in some convenient place at Scituate to be to the s<sup>d</sup> Edw: & his heires for ever.

13 January.

Jan. 13. John Barnes hath sold unto Rich. Higgens & his heires forever one dwelling howse & 20 acres of land, being lately in the possession of Edw: Holman, w<sup>th</sup> all the fence, boardℓ, timber, (squared & unsquared,) belonging to the same, in consideraçon of ten pownℓ starling to be paid in currant English money, or beaver at the rate it shall passe at the day of paym<sup>t</sup>, w<sup>ch</sup> is the 20<sup>th</sup> of March, in the yeare of our Lord 1634. And also the said Richard shall possesse the said John & his heires of 20 acres of land at Scituate, in some convenient place.

22 January.

[\*55.]

\*Jan. 22, 1633. Whereas Kanelm Wynslow & Josias Wynslow, by a joynt purchase, bought of Francℓ Eaton his then dwelling, as appeareth p contract bearing date the 8<sup>th</sup> of Jan., 1632, the said Josias hath sold unto the said Kanelm his p<sup>t</sup> of the said purchase, as also of all & singular the moveables in & about the said dwelling howse & misted in joynt p<sup>t</sup>nership between them

for & in consideraçon of seaventeen pound℥ seaventeen shillings & six pence, 1633-4.  
to be p<sup>d</sup> at two severall paym<sup>ts</sup>, viz<sup>t</sup>, fve pound℥ seaventeen shilling℥ & six  
pence at or before the first of June next ensuing, & the other twelue pound℥  
at or before the first of Jan., 1634. In consid whereof the said Kenelm &  
his heires to haue, hold, occupie, enjoy, the said dwelling howse & misted, &c,  
to him & them forever, w<sup>th</sup> all & singular the moveables before expressed.

22 January.  
NEW PLYM  
WYNSLOW,  
Gov<sup>r</sup>.

Jan. 24. Whereas John Coomb, gent., is possessed of thirty acres of 24 January.  
land neere unto the high cliffe, in the right of Sarah his wife, the said John  
& Sarah haue exchanged the same w<sup>th</sup> M<sup>r</sup> Tho: Prence for other thirty acres  
of land neere unto Wynslowes stand, to them & their heires for ever. And  
whereas the said Thomas hath a dwelling howse & other out howsing upon  
the same, the said Thomas hath sold unto the said John the said howsing,  
to him & his heires for ever, in consideraçon of twenty pown℥ starling, to  
be paid in the moneth of Septemb<sup>r</sup>, anno 1634, viz<sup>t</sup>, one third in goates,  
one third in hog℥, & one other third in merchantable corne, at the ordinary  
rates the said cõmodities shall then passe.

Febr. 14. Joh. Coomb, gent., hath sold unto Joh. Done & his heires 14 February.  
forever a dwelling howse & misted w<sup>th</sup> the inclosure & out howsing thereunto  
belonging, next adjoyning to the late dwelling howse of Godbert Godbertson,  
on the west side thereof, & the herring wire on the est, for & in consideraçon  
of nine pownds ten shilling℥, whereof eight pown℥ to be paid to M<sup>r</sup> Will<sup>t</sup>  
Bradford, & the other thirty shilling℥ to Josias Wynslow.

\*Febr. 24. Raph Wallen hath sold unto Thomas Clarke so much land 24 February.  
next adjoyning to the said Thomas, on the sowth side his dwelling, as maketh  
up a former moyety the said Thomas bought of the said Raph twenty acres, [\*57.]  
to hold proportion in breadth w<sup>th</sup> the lower end of the said p̃cell before  
spoken of. In consideraçon whereof the said Thomas is to pay unto the  
said Raph, his heires or assignes, twenty bushels of merchantable corne &  
forty shilling℥ in money at or before the first of November, anno 1634. Also  
sold one share of meadow grownd belonging to the said lott when devision  
shall be made thereof, the said Raph binding himselfe to make good the  
same to the said Thomas & his heires forever.

March 10. William Bradford, gent., the deputed administrator of God- 10 March.  
bert Godbertson, hath sold unto Steven Deane, & his heires forever, the late  
dwelling howse of the said Godbert, w<sup>th</sup> the misted, inclosures, & outhowsing  
thereunto belonging, for & in consideraçon of the full value of twenty pound℥  
starling, to be paid as followeth, viz<sup>t</sup>: three pown℥ in hand, eight pown℥ ten  
shillings at or before the last of October, an. 1634, & other eight pown℥ ten  
shilling℥ at or before the 10<sup>th</sup> of March, anno 1634.

1633-4.

10 March.  
NEW PLYM.  
WYNSLOW,  
Gov.

March 10. Whereas Phineas Prat, joyner, in the behalfe of Marah, his wife, is possessed of thirty acres of land neer unto the high cliffe, the said Phineas & Marah haue exchanged the fec simple thereof w<sup>th</sup> M<sup>r</sup> Thomas Prence for other thirty acres of land at Wynslows stand, and next adjoining to another portion of land belonging to the said Phineas. But whereas there is a brooke, w<sup>thin</sup> the said thirty acres thus exchanged & acknowledged by mutuall consent, whereat John Come, gent<sup>l</sup>, may freely make use of, it is granted to him, his heires or assignes, provided he so make use of the said water as the said Phineas be not annoyed thereby, but either by convenient inclosure, at the cost of the said Joh. or otherwise, shall saue harmeles the said Phineas & his heires from any detri<sup>t</sup> or annoyance that shall or may befall them, the said Phines & Marah, their heires & assignes.

[\*59.] *\*At a Court of Assistant℥ held the 24<sup>th</sup> of March, in the ninth Yeare of the Raigne of our Sovereign L., Charles, by the Grace of God King of Engl., Scotl., Fr., & Irel., Defendor of the Faith, &c.*

24 March.

March 24, 1633.

**E**DWARD DOWTY & Josias Cooke were amerced in 6<sup>ss</sup> viij<sup>d</sup> p man for breaking the peace of our sover. L. the K. And whereas the s<sup>d</sup> Edward drew bloud from the said Josias, the said Edward was awarded to giue him 3<sup>ss</sup> 4<sup>d</sup> for the same, w<sup>ch</sup> to be p<sup>d</sup> w<sup>thin</sup> one moneth, or levied, at the pleasure of the Gov<sup>r</sup>.

1634.

26 March.  
27 March.

March 26. John Browne & Phebe Harding were married the 26<sup>th</sup> of March.

William Palmer, Junior, & Elizabeth Hodgekins were married the 27 of March.

[\*61.]

\*According to an order in Court held the 2<sup>d</sup> of Jan., in the ninth yeare of the raigne of our sov. lord, Charles, by the grace of God King of Engl., Scotl., Fr., & Irel., defend<sup>r</sup> of the faith, &c, the psons hecrunder mençoned were rated for publick use by the Gov<sup>r</sup> & M<sup>r</sup> Tho. Prence, M<sup>r</sup> Will<sup>t</sup> Bradford, Cap<sup>t</sup> Myles Standish, John Howland, Stephen Hopkins, John Done, Will<sup>t</sup> Gilson, Will<sup>t</sup> Collier, Joh. Jenny, Rob<sup>t</sup> Heek℥, Jonathan Brewster, Kenelm Wynslow, & Stephen Deane, to be brought in by each pson as they are heerunder written, rated in corne at vj<sup>ss</sup> p bushell, at or before the last of Nov<sup>br</sup> next ensuing, to such place as shall be heerafter appointed to receiue

the same ; and for default heerof, the value to be doubled, & accordingly levied by the publick officer for that end.

1634.

27 March.  
NEW PLYM.  
WYNSLOW,  
Gov<sup>r</sup>.

|                                       |               |
|---------------------------------------|---------------|
| Edw: Wynslow, . . . . .               | 02 : 05 : 00  |
| Mr Wilt Bradford, . . . . .           | 01 : 07 : 00  |
| Capt Myles Standish, . . . . .        | 00 : 18 : 00  |
| Mr Wilt Brewster, . . . . .           | 01 : 07 : 00. |
| Isaack Allerton, . . . . .            | 01 : 16 : 00  |
| Joh Howland, . . . . .                | 01 : 04 : 00  |
| Joh Alden, . . . . .                  | 01 : 04 : 00  |
| Steph Hopkins, . . . . .              | 01 : 10 : 00  |
| Mr Wilt Collier, . . . . .            | 02 : 05 : 00  |
| Joh Done, . . . . .                   | 01 : 07 : 00  |
| Joh Jenny, . . . . .                  | 01 : 07 : 00  |
| Jonath Brewster, . . . . .            | 01 : 04 : 00  |
| Wilt Gilson, . . . . .                | 01 : 07 : 00  |
| Robt Heekel, . . . . .                | 00 : 12 : 00  |
| John Wynslow, . . . . .               | 00 : 18 : 00  |
| Menasseh Kempton, . . . . .           | 00 : 18 : 00  |
| John Coombs, . . . . .                | 00 : 09 : 00  |
| Phineas Pratt, . . . . .              | 00 : 09 : 00  |
| George Sowle, . . . . .               | 00 : 09 : 00  |
| Tho: Clarke, . . . . .                | 01 : 07 : 00  |
| Nicholas Snow, . . . . .              | 00 : 12 : 00  |
| Mr Hatherlies men, . . . . .          | ^ ^ ^         |
| Edw: Bangs, . . . . .                 | 00 : 12 : 00  |
| John Browne, . . . . .                | 00 : 09 : 00  |
| Stephen Tracy, . . . . .              | 00 : 18 : 00  |
| Widow Warren, . . . . .               | 00 : 09 : 00  |
| *Robert Bartlet, . . . . .            | 00 : 09 : 00  |
| Anthony Annable, . . . . .            | 00 : 09 : 00  |
| Franc <sup>e</sup> Sprague, . . . . . | 00 : 18 : 00  |
| John Dunham, . . . . .                | 00 : 09 : 00  |
| Roger Chandler, . . . . .             | 00 : 09 : 00  |
| Samuell Nash, . . . . .               | 00 : 09 : 00  |
| Stephen Deane, . . . . .              | 00 : 12 : 00  |
| William Bassett, . . . . .            | 01 : 07 : 00  |
| Expience Michael, . . . . .           | 00 : 09 : 00  |
| Edw: Dowty, . . . . .                 | 00 : 18 : 00  |

[\*62.]  
1633.



1634.

27 March.

WYNSLOW,  
Gov<sup>r</sup>.

|                                          |          |
|------------------------------------------|----------|
| Widow Browne, . . . . .                  | 00:09:00 |
| Widow Fuller, . . . . .                  | 00:09:00 |
| Samuell Fuller, . . . . .                | 00:09:00 |
| X Humphrey Turner, . . . . .             | 00:09:00 |
| Samuell Edy, . . . . .                   | 00:09:00 |
| Will Palmer, . . . . .                   | 00:18:00 |
| Will Palmer, Junior, . . . . .           | 00:09:00 |
| James Cole, . . . . .                    | 00:09:00 |
| John Holmes, . . . . .                   | 00:18:00 |
| John Barnes, . . . . .                   | 00:18:00 |
| John Fance, . . . . .                    | 00:09:00 |
| Thō Pope, . . . . .                      | 00:09:00 |
| John Shaw, . . . . .                     | 00:09:00 |
| Widow Adams, . . . . .                   | 00:09:00 |
| Ab <sup>r</sup> Peirce, . . . . .        | 00:09:00 |
| Franc <sup>e</sup> Billington, . . . . . | 00:09:00 |
| Franc <sup>e</sup> Cooke, . . . . .      | 00:09:00 |
| John Cooke, . . . . .                    | 00:09:00 |
| John Cooke, Senior, . . . . .            | 00:09:00 |
| Moses Symonson, . . . . .                | 00:09:00 |
| ^ Rowly, . . . . .                       | 00:18:00 |
| Henry Howland, . . . . .                 | 00:18:00 |
| Phillip Delanoy, . . . . .               | 00:09:00 |
| Edw: Bumpasse, . . . . .                 | 00:09:00 |
| Joseph Rogers, . . . . .                 | 00:09:00 |
| Sa <sup>m</sup> Chandler, . . . . .      | 00:09:00 |
| Rich Church, . . . . .                   | 01:07:00 |
| Will Richard <sup>e</sup> , . . . . .    | 00:09:00 |
| Thō Little, . . . . .                    | 00:18:00 |
| Ady Web, . . . . .                       | 00:09:00 |
| Rich Sparrow, . . . . .                  | 00:09:00 |
| *Will Latham, . . . . .                  | 00:09:00 |
| Richard Higgens, . . . . .               | 00:12:00 |
| Edw: Foster, . . . . .                   | 00:09:00 |
| Kenelm Wynslow, . . . . .                | 00:18:00 |
| John Hewes, . . . . .                    | 00:09:00 |
| Nathaniell Morton, . . . . .             | 00:09:00 |
| John Bowman, . . . . .                   | 00:09:00 |
| Raph Fogge, . . . . .                    | 00:12:00 |

[\*63.]

|                             |              |
|-----------------------------|--------------|
| Isaack Robbinson, . . . . . | 00 : 09 : 00 |
| Josias Cooke, . . . . .     | 00 : 09 : 00 |
| Walter Woodart, . . . . .   | 00 : 09 : 00 |
| James Hurst, . . . . .      | 00 : 09 : 00 |
| Henry Cob, . . . . .        | 00 : 09 : 00 |
| Richard Clowfe, . . . . .   | 00 : 12 : 00 |

1634.

27 March.  
WYNSLOW,  
Gov<sup>r</sup>.

*\*Att a Generall Court held the 27<sup>th</sup> of March, 1634, in the ninth  
Yeare of his Ma<sup>ties</sup> Raigne, etc.*

[\*64.]

NEW  
PLYMOTH.  
PRENCE,  
GOV<sup>R</sup>NOR.  
27 March.

March 27, 1634.

**T**HAT all actions, either of debt or trespass, vnder the value of fortye shilling<sup>℥</sup> ster<sup>t</sup> are to be troyed by the Gov<sup>r</sup>nor and Assistance, w<sup>th</sup>out the trouble of the whole bodie.

March 28. John Cooke, Junior, & Saragh Warren were married.

28 March.

*Att a Court before the Gov<sup>r</sup>nor & Assistance held the 28<sup>th</sup> of  
March, 1634, & in the nyynth Year of his Ma<sup>ties</sup> Raine, of Eng-  
land, Scotland, France, & Ireland, etc.*

28 March.

**E**DW: DOWTIE, plaintife, haveing arested Francis Sprage in an acc<sup>ō</sup>n of twentie sterling, it is determined that the defendent Francis Sprag<sup>ē</sup>, pay vnto the plaintife vi<sup>s</sup> and vi<sup>d</sup> ster<sup>t</sup>, w<sup>th</sup> charges, and also halfe a peeck of malt, or give him satisfac<sup>ō</sup>n for the said malt.

\*Aprill first, 1634. Samuell Godberson, the sonn of Godbar Godbarson, of New Plymoth, deseased, hath, by and w<sup>th</sup> the consent of William Bradford, Gen<sup>t</sup>, his gardian, put himselfe an apprentice vnto Richard Higgins, of Plymoth, aforesaid, taylor, for the terme of seaven yeares, according to the tenure of his indenture, beareing date w<sup>th</sup> these p<sup>s</sup>ents. And the said William Bradford doth p<sup>m</sup>ise, in the behalfe of the said Samuell, to deli<sup>u</sup> vnto the said Richard sixe bushells of corne in hand, and one cow calfe this p<sup>s</sup>ent yeare, if that it may be w<sup>th</sup> his conveniencie; if not, the next ensueing yeare; and that the said Richard is to keepe the said calfe, w<sup>th</sup> the increase of the same, to thēnd of the aforesaid tearm, & then to deli<sup>u</sup> her in to the hand<sup>℥</sup> of the said Samuell,

1 April.

[\*66.]



July 23, 1634. Mr Timothy Hatherley hath turned ouer his seruant, Ephraim Tinkcum, to dwell with John Winsloe, of New Plimouth, for the whole terme of yeares expressed in a certayne pare of indentures, and y<sup>t</sup> the sayd John Winsloe is to performe the conditions expressed in the sayd indentures vnto the said Ephraim.

1634.  
23 July.  
NEW  
PLIMOUTH.  
PRINCE,  
GOUERNOUR

July. Francis Billington and Christian Eaton, widdow, wer married.

\*September 2, 1634. William Shetle hath put himselfe an a<sup>p</sup>rentise to Thomas Clarke for the terme of eleuen yeares from the 16 of May last; and at the end of the sayd terme the sayd Thomas is to cloth him with two sutes fit for such a seruant, and also eyght bushells of Indian corne.

2 September.  
[\*70.]

October the 20, 1634. Edmund Chanler came before the Gouernour & acknowledged y<sup>t</sup> for and in consideration of the summe of twelue pound sterling he hath sold vnto John Rogers a lot of grownd adioyning to the lots of Robert Hicks, on Duxbery side, it being a lot w<sup>ch</sup> the sayd Edward bought of John Barnes. The sayd John Rogers is to pay the foresayd sume of twelue pound at or before the first day of March next ensueing, in mony or beuer at ten shillings the pound; the sayd John to haue the foresayd lot to him and his heires for euer.

20 October.

\*October the 1, 1634. At a Court holden before the Gouernour & Assistants, it was determined concerning the trade that it to continue in the hands of the parteners till the next Court, all other persons excluded as formerly; and for furthering of a course for hereafter, wer made choyse of seuerall persons to treat with the now parteners. The persons made choyce of wer Mr St. Hopkins, Mr William Colier, Mr Wit Gilson, Antony Anible, Jonathan Brewster, John Winsloe, Manaseh Kempton, John Dunham, they hauing concluded to mete together about the midle of Nouember.

1 October.  
[\*71.]

2. Apoynted for laying out of highwayes:

For Duxbery side, Cap<sup>t</sup> Miles Standish, Mr William Colier, Jonathan Brewster, William Palmer, Steuen Trace.

3. For Plimouth, John Jeney, Fra: Cooke, Manaseh Kempton, Ed. Bangs, Nicolas Snow, John Winsloë, James Hurst.

4. The high wayes to be layd out before the 15 of *of* Nouember next.

5. That noe gunnes be set but in inclosed grounds.

6. Y<sup>t</sup> the fort be inclosed with bordes of 9 foot high, and y<sup>t</sup> euery one doe pay a proportionable share before the end of Nouember.

7. For the incouragement of those y<sup>t</sup> shall kill wolues, it is ordered, that the man y<sup>t</sup> shall kill any one or more, shall haue for his so doing, fise bushells of corne, the w<sup>ch</sup> is to be leuied & brought to the towne, and here to be deliuered at the Court the first of October, yearly.

1634. \*November 27, 1634. John Cooper & Precilla Wright wer married.  
 December 11, 1634. Richard Higgins & Lidia Chandler wer married.  
 27 November. December 19, 1634. Phillip Dela noe and Hester Dewsbery wer married.  
 NEW December 19, 1634. Simon Trat was turned ouer to John Barnes to  
 PLIMOUTH. serue him till he be twenty three yeares of age, and then the sayd John, his  
 PRINCE, heires, or assignes to giue him a cow calfe, at least 8 or ten weekes old, liue  
 GOUVERNOUR. [\*72.] like, and to perform what else is expressed in his indentures.  
 11 December.  
 19 December.

1634-5. \*At a Generall Court holden the tenth Yeare of the Raigne of our  
 Soueraigne Lord, Charles, by the Grace of God of England,  
 1 January. Scotland, France, & Ireland, King, Defender of the Fayth,  
 [\*74.] January 1, 1634.

MR. WILLIAM BRADFORD was elected Gouvernour, & to enter vpon  
 it the first Tuesday in March next ensueing, & to serue from the same  
 time one whole yeare.

At the same time wer elected for Asistants, to enter with the Gouvernour  
 the day aboue mentioned, and to continue the whole yeare, —

|                    |                          |
|--------------------|--------------------------|
| Mr Tho. Prince,    | Captayne Miles Standish, |
| Mr Edward Winsloe, | Mr John Houland,         |
| Mr John Alden,     | Mr William Collier.      |
| Mr Steuen Hopkins, |                          |

At the same time it was agreed y<sup>t</sup> hencforth euery Court should be  
 holden vpon the first Tuesday in euery month, viz, ‡January‡ March, ||June,||  
 ‡July, October,‡ ||Septemb<sup>r</sup> & December.||

James Cudworth, Samuell House, William Pallmer, Junior, John Holmes,  
 William Hoskins, John Cooper, Henry Rowley, wer admitted into the freedome  
 of the colonie.

It was agreed the same time the trade to remayne as it hath done former-  
 ly till the next Court.

It was agreed at the same time the constables of Duxbery and Scituat,  
 Christopher Wadsworth and Antony Anible, to continue in ther places an  
 other yeare.

6 January. \*January 6, 1634. Edward Doten and Fayth Clarke wer married.  
 [\*75.]  
 5 January. January 5, 1634. Twenty-seuen pound of beuer, being 25 skinnes,

wherof 14 wer greate ones, & the rest small ones, wer atached & deliuered 1634-5.  
vnto John Jeney, for the vse of Mr Isaak Alerton or his asignes.

January. The seruant of Nicolas Snow was willing to serue out his time  
with John Cooper, according to the tenour of his indenture.

5 January.  
NEW  
PLIMOTH,  
PRINCE,  
GOUVERNOUR

WILLIAM BRADFORD, GOUER<sup>R</sup>.

\* JOHN WASHBORNE hath bought of Edward Bompass his house & pal- [March.]  
isado, standing of his late lote of ground which he had by William Palm- [\*77.]  
ers, beyond y<sup>e</sup> creeke called y<sup>e</sup> Eagles-Nest, which lote he gaue vp to y<sup>e</sup> company,  
for a lote of ground alowd him in an other place by y<sup>e</sup> Goue<sup>r</sup> then being ; and  
y<sup>e</sup> said lote (of w<sup>ch</sup> this house standeth) was, by y<sup>e</sup> consente of y<sup>e</sup> Goue<sup>r</sup> & As-  
sistants giuen to y<sup>e</sup> said John Washborne. In consideration of which house &  
fence y<sup>e</sup> said John was to giue to y<sup>e</sup> said Edward a milch goate, w<sup>th</sup> an ewe-  
lambe ; but for y<sup>e</sup> ewe lambe y<sup>e</sup> said Edward was to giue y<sup>e</sup> said John 35<sup>s</sup> in  
money or beauer, y<sup>e</sup> first of July, 1635, or for defalte of paimente he was to  
haue y<sup>e</sup> lambe againe. This bargaen was ratified by a writing vnder both their  
hands.

The said Ed:  
was to take  
away y<sup>e</sup> bords  
lying vnder  
foote.

Witnesses, William Palmer & Wiliam Latham.

\*At a Courte held y<sup>e</sup> 3 of March, an<sup>o</sup> 1634, William Bradford elected 3 March.  
Goue<sup>r</sup>, & Mr Winslow, Mr Prence, Capten Standish, Mr Howland, Mr Alden, WILLIAM  
Mr Hopkins, & Mr William Colier, Assistants, entered vpon their places. BRADFORD,  
GOUER<sup>R</sup>.

At y<sup>e</sup> same Court these, whose names are vnderwritten, were added to y<sup>e</sup> [\*78.]  
rest y<sup>t</sup> were aƿointed y<sup>e</sup> year before, for to cesse y<sup>e</sup> company for y<sup>e</sup> watch &  
other publick charge.

|                 |               |
|-----------------|---------------|
| Manasah Kemton, | Edward Bangs, |
| Josua Pratt,    | Steuen Tracy. |
| John Winslow,   |               |

The former order for y<sup>e</sup> repairing of y<sup>e</sup> fortification of y<sup>e</sup> forte, y<sup>e</sup> train-  
ing of men & y<sup>e</sup> like, were caled vpon, & refered to be put in execution.

The 13 of March, Thomas Boreman was agreed w<sup>th</sup> for 30<sup>li</sup>, to be paid 13 March.  
in beauer at 10<sup>s</sup> p<sup>li</sup>, or other comodities of valuable price, to be leuied of y<sup>e</sup>  
company, to doe y<sup>e</sup> forte (in mañer following) by y<sup>e</sup> last of May, an<sup>o</sup> 1635.

All y<sup>e</sup> posts are to be 10 inches square, & not to stand aboue 10 foote  
assunder, to be done with 3 rails betweene euery post, of fitt scantling. The  
post & rails are al to be sawne.

1635.

13 March.  
WILLIAM  
BRADFORD,  
GOUE<sup>r</sup>.

1 April.

28 May.

[\*79.]

He is to inclose y<sup>e</sup> whole work w<sup>th</sup> sawne bords. It is to be 9 foote high, & they are to be cut sharp at y<sup>e</sup> tope, & either listed or shote with a plaine, all which he is to buy & bring home at his owne charge.

M<sup>r</sup> Prence & Mary Collier was married y<sup>e</sup> first of Aprill, 1635.

\*The 28 of May, 1635, Thomas Litle came before y<sup>e</sup> Goue<sup>r</sup> and acknowledged that he had giuen vnto Robart Bartlet a parcell of land at y<sup>e</sup> end of his lott, beyond y<sup>e</sup> Eele Riuer, of 6 pole in length, & 4 pole in breadth, to build a house on, for him and his heirs for euer, to possess & quietly to injoy, without any molestation, claime, or trouble from y<sup>e</sup> said Thomas Litle, (his brother in law,) or any of his heirs or assignes for euer.

29 May.

An<sup>o</sup> 1635, the 29 of May. John Barnes was sommoned to apeare before y<sup>e</sup> Goue<sup>r</sup> & Assistants, at y<sup>e</sup> suit of William Tubs as plaintiue, who had sould vnto y<sup>e</sup> said John Barnes 12 bushells of corne at 5<sup>s</sup> p bushell, & giuen him  $\frac{1}{2}$  a bushell ouer & aboue to take it so. Afterwards he was able to deliuer but 10 bushels, to which he gaue y<sup>e</sup>  $\frac{1}{2}$  bushell as aforesaid, y<sup>e</sup> which 10 $\frac{1}{2}$  bushels John Barnes receiued & presently sould for ready money, at 5<sup>s</sup> 6<sup>d</sup> p bushell, some time after which sale y<sup>e</sup> plaintiue demanded his paimente for so much as he had deliuerd; y<sup>e</sup> defendante refused to pay till he had y<sup>e</sup> whole deliuered. The plaintiue haueing neede of his money, being to make paimente to others, & wanting wherwith to buy y<sup>e</sup> rest of y<sup>e</sup> corne, vnderstanding y<sup>e</sup> defendante to be going out of y<sup>e</sup> towne, desired releefe. The defendante, apeareing, refused to make paiment till he had y<sup>e</sup> whole, & pretended damage; but all y<sup>e</sup> damage apeareed to be but y<sup>e</sup> 6<sup>d</sup> in a bushell profite; so y<sup>e</sup> plaintiue was sentenced to giue y<sup>e</sup> defendante 12<sup>d</sup>, & y<sup>e</sup> defendante to pay y<sup>e</sup> plaintiue his money presently, & pay y<sup>e</sup> officer his fee for puting him to this trouble to get his due.

4 July.

[\*80.]

\*July 4. Isaak Robinson came before y<sup>e</sup> Gouverneur, the 4 of July, an<sup>o</sup> 1635, and acknowledged that he had sould vnto Joseph Bidle halfe a lote of ground lying aboue y<sup>e</sup> iland creeke, which the said Isaake bought of Edmond Chanler, and he of John Barnes. And y<sup>e</sup> said Joseph hath giuen, in consideration of y<sup>e</sup> full payment therof, vnto Isaak Robinson aforesaid y<sup>e</sup> some of 6 pounds sterling.

5 July.

*At a Court held y<sup>e</sup> 5 of July, An<sup>o</sup> 1635.*

**I**T was decreed that y<sup>e</sup> new bushell (being a seald bushell brought out of England, of Winchester measure) should be alowed, & no other; and all other measures to be brought into the constable, to be made conformable

to the same, & so to be sealed by him, w<sup>th</sup> the seale appoynted for that end; and this to be done by the last of this present month. But notwithstanding that, all former bargains & sales that were made before this day, they are to be fulfilled by old measure.

1635.

5 July.  
WILLIAM  
BRADFORD,  
GOUE<sup>R</sup>.

At y<sup>e</sup> same Courte it was agreed to be needfull to build a mille; and these 4 whose names are vnder writen were by y<sup>e</sup> Courte appoynted to collecte y<sup>e</sup> money for the building of y<sup>e</sup> same, as also to agree with workmen, and order other all things for y<sup>e</sup> dispatch therof.

Captaine Standish,  
Mr William Collier,

John Done, &  
John Winslow.

At this Court, Thomas Williams, y<sup>e</sup> saruant of widow Warren, was accused for speaking profane & blasphemous speeches against y<sup>e</sup> majestie of God, which wer these: ther being some discention betweene him & his dame, shee, after other things, exhorted him to fear God & doe his duty; he answered, he neither feared God, nor the diuell; this was proued by witnesses, and confesed by himselfe. This, because y<sup>e</sup> Courte judged it to be spoken in passion & distemper, with reprove did let him pass, vpon humble acknowledgmente of his offence; though y<sup>e</sup> Goue<sup>r</sup> would haue had him punished w<sup>th</sup> bodily punishmente, as y<sup>e</sup> ease seemed to require.

\*At y<sup>e</sup> aforesaid Courte it was coneluded & a<sup>p</sup>ointed, that from y<sup>t</sup> day forward y<sup>e</sup> new bushell, & no other, should be a<sup>t</sup>owed; and all other measures to be made conformable therunto. Allso all y<sup>e</sup> measurs were to be brought to y<sup>e</sup> officer to be sealed by the last of y<sup>t</sup> month. But all former bargens made before that day were to be fullfild by y<sup>e</sup> old measure.

[\*81.]

The 16 of September, Josias Cooke & Elizabeth Dean, widow, was maried. 16 September.

The 25 of Desember, Nathanel Morton & Lidia Cooper was maried.

25 December.

Richard Stinnings put himselfe aprentice to Robart Bartlet for nine years, his time to beginne y<sup>e</sup> 1 of Desember, an<sup>o</sup> 1635, as appeares by a covenant drawne in writing, showed vnto vs, vnder both their hands & seals; at y<sup>e</sup> end of which time he is to haue of his said m<sup>r</sup> 2 suits of apparell & 3<sup>li</sup> in money, or other marchandable comodity.

At a Courte held y<sup>e</sup> 5 of July, 1635, was granted to M<sup>r</sup> William Collier (by the consente of y<sup>e</sup> said Courte) a parcell of land lying vp in y<sup>e</sup> woods, called by the name of y<sup>e</sup> North Hill, with some tussicke march ground lying nere vnto or aboute y<sup>e</sup> same.

5 July.



1635-6.

*\*At a Courte held y<sup>e</sup> 5 of Jan., An<sup>o</sup> 1635.*

5 January.  
[WILLIAM  
BRADFORD,  
GOUE<sup>R</sup>.]  
[\*82.]

**M<sup>R</sup>** ED: WINSLOW was chosen Goue<sup>r</sup>,  
and

|                         |              |
|-------------------------|--------------|
| William Bradford,       | } Asistants. |
| Tho: Prence,            |              |
| John Alden,             |              |
| W <sup>m</sup> Collier, |              |
| Steuën Hopkins,         |              |
| Tim: Hatherley,         |              |
| John Browne,            |              |

Henry Howland constable for Duxberry, & Humfrey Turner for Sityate.

At this Court it was concluded y<sup>e</sup> y<sup>e</sup> jury should haue 6<sup>d</sup> p man, & y<sup>e</sup> foreman 12<sup>d</sup>, in shuch cases of controuersie as they shall goe vpon.

At this time, Joseph Bidle was found guilty of being drunck, by y<sup>e</sup> jury, and was amerced forty shillings.

Thomas Clarke was plaintiue against widow Warren, for taking a boat of his, which was lost in y<sup>e</sup> Ele Riuer, wher she left it, by an extraordinary storme, in y<sup>e</sup> same place; for which he demanded 15<sup>li</sup> damage; but y<sup>e</sup> jury aquite y<sup>e</sup> defendante, finding y<sup>e</sup> boat to be borrowed, & laid in an ordinary place of saftie; yet, for other considerations, they gaue y<sup>e</sup> said Thomas Clarke 30<sup>s</sup>.

At y<sup>e</sup> same Courte, Jane Warden sued <sup>^</sup> Weekes for 50<sup>li</sup>, which she had lent him, to be paid vpon demande. He was ordered to put so much  
[\*83.] goods into \*y<sup>e</sup> hands of M<sup>r</sup> Hopkins & Kenelemne Winslow as should countrauele y<sup>e</sup> money, & had 3 months time alowed to sell them, or other good, to make her paymente.

At this Court was chosen to assiste y<sup>e</sup> Goue<sup>r</sup> & Counsell, to sett shuch rates on goods to be sould, & labourers for their hire, as should be meete & juste, —

|                  |              |
|------------------|--------------|
| John Done,       | John Jeney,  |
| John Winslow,    | John Browne, |
| Manasah Kemton,  | John Barnes. |
| Kenelme Winslow, |              |

14 January. 1635, the 14 Jan.: Rowland Laherne and Flower was maryed.

6 February. Henry Samson and Anne Plum̄er was maryed the 6 of Feb.

11 February. The 11 of Feb.: 1635, Benjamine Eaton, y<sup>e</sup> sone of Francis Eaton, of late deseased, was, by y<sup>e</sup> Goue<sup>r</sup> & Assistantes, with his mothers consente, put

to Bridgett Fuller, widow, for 14 years, shee being to keep him at schoole 2 1635-6.  
years, & to imploy him after in shuch service as she saw good & he should be  
fitt for ; but not to turne him ouer to any other, without y<sup>e</sup> Goue<sup>r</sup> consente.

\*John Gardiner, the seruant of Kenelme Winslow, (bound to him by indenture,) he with his said m<sup>r</sup> came before y<sup>e</sup> Goue<sup>r</sup> y<sup>e</sup> 22 of Feb., 1635, and by both their desires, & with their mutuall consents, the rest of his time was turned ouer to Georġ Kenrick, with whom he binds him selfe to fullfill y<sup>e</sup> rest of his time specified in an indenture ; and y<sup>e</sup> said George Kenrick, whē his time is expired, is to fullfill y<sup>e</sup> conditions therof, and, moreouer, to giue him 6 bushells of Indean corne, which is not mentioned in y<sup>e</sup> said indenture. But y<sup>e</sup> said Georġ Kenrick is not bound to teach him y<sup>e</sup> trade of joynery, for y<sup>e</sup> said John Gardiner was willing to free the aforsaid Kenelme therof, vpon condition y<sup>t</sup> he would turne him ouer to y<sup>e</sup> said Georġ Kenrick abouesaid.

Twiford West, hauing bound him selfe by an indenture to serue M<sup>r</sup> Edward Winslow, of New Plimoth, or his assignes, for the terme of sixe years, vpon shuch conditions as apears more at large in y<sup>e</sup> said indenture, the said Ed: Winslow haueing assigned him to serue Nicolass Snow, of y<sup>e</sup> same towne of Plimoth, the said Twiford West (after some triall) disliking to be with y<sup>e</sup> said Nicolas Snow, came to y<sup>e</sup> afforesaid Ed: Winslow, & desird he might dwell with him selfe, and he would serue him one year more then is expresed in y<sup>e</sup> said indenture ; vpon which his request, y<sup>e</sup> said Ed: Winslow compounded with y<sup>e</sup> said Nicolass Snow for y<sup>e</sup> said Twiford West, so as the said Twiford West is now (by his own free desire) bound to serue y<sup>e</sup> said Ed: Winslow seauen years, his time begining from y<sup>e</sup> date mentioned in y<sup>e</sup> afforesaid indenture. This agreemente was acknowledged by all y<sup>e</sup> parties before y<sup>e</sup> Goue<sup>r</sup>, Feb: 12, 1635, and was desired to be recorded.

11 February.  
[WILLIAM  
BRADFORD,  
GOUE<sup>R</sup>.]  
22 February.  
[\*84.]

*\*At a Generall Court held the first of March, in the eleventh Yeare of the Raigne of our Sovereigne Lord, Charles, by the Grace of God King of Engl., Scot., Fr., & Irel., Defendor of the Faith, &c.*

1 March.  
PLYMOTH,  
WYNSLOW,  
GOV<sup>R</sup>.  
[\*86.]

EDWARD WYNSLOW entred upon the place of governm<sup>t</sup>, & r<sup>d</sup> the oath to administer justice in y<sup>t</sup> place for the p<sup>r</sup>nt yeare.

Likewise, M<sup>r</sup> William Bradford, M<sup>r</sup> Tho: Prence, M<sup>r</sup> Joh: Alden, M<sup>r</sup> William Collier, M<sup>r</sup> Stephen Hopkins, M<sup>r</sup> Tymothy Hatherly, & M<sup>r</sup> John

1635-6. Browne being chosen to assist the Gov<sup>r</sup> in case of justice, as the Councell of this corporacōn, r<sup>d</sup> the oath.

1 March.  
WYNSLOW,  
Gov<sup>r</sup>.

At the same Court, Humphrey Turner having arrested five bushels of corne belonging to        Page, of Watertowne, for so much corne the s<sup>d</sup> Page had r<sup>d</sup> of his, the s<sup>d</sup> Page, for not appearing, upon due notice, by himselfe or attorney, was cast.

At the same Court, M<sup>r</sup> John Browne had granted him a pporcōn of land, according to the same order of former devisions at Iland Creek Pond. It was then also allowed him to draine off some p̃t of the said pond, but w<sup>th</sup> this proviso: that if it proved prejudittiall to the neighbourhood, then the said John, vpon notice given, to dam up the pond againe, at his prop cost & charges.

2 March.

Mar. 2. Also, it was ordered & agreed upon, that Captaine Myles Standish and Liuten<sup>t</sup> Will<sup>m</sup> Holmes be employed in teaching the use of armes at the towne of Plymouth & Duxburrow, according to such order as shall be taken thereabout; and that the said liutenant haue likewise the charge of the gard at towne, to see their duty faithfully pformed; each of them having for their paines the sum of twenty pownds for this present yeare, to be paid in the beginning of Novemb<sup>r</sup> next ensuing, either in money, corne, or beaver, as it shall then passe.

Also, that the Gov<sup>r</sup> & Assistant℄, together w<sup>th</sup> the s<sup>d</sup> cap<sup>t</sup> & liuten<sup>t</sup>, shall set downe such orders for the exercising of the colony in arms as may be most convenient for them; and for every default of any pson fayling such order as shall be set downe, w<sup>th</sup>out just occasion, by leaue or otherwise, to forfeit three shillings for the day, & six pence if he come not at the howr appointed.

That M<sup>r</sup> John Done, John Jenny, Manasseh Kempton, Josuah Prat, John Winslow, Edw: Bangs, & Stephen Tracy be added to the Gov<sup>r</sup> & Assistant℄, for the ceasing of men for the publick charge of this p̃nt yeare.

That no serv<sup>t</sup> coming out of his time, or other single pson, be suffered to keep howse, or be for him or themselves, till such time as he or they be competently provided of arms & muniçōn, according to the orders of the colony; and that if any such be yet wanting, they be provided as aforesaid, or else provide themselues such masters as may provide for them; and this to be done w<sup>th</sup>in the space of one moneth ensuing.

That none be suffered to retale wine or strong water, & suffer the same to be drunke in their howses, except it be at some inne or victualling howse, and there onely to strangers, at their first coming, not exceeding the value of two pence a pson, and that no beer be sold in any such place to exceed two pence the Winchester quart.

That no man keep more swine then can be kept to lie ordinarily about

their owne howses; and if they driue them from home, to driue and keep them in such places where no detrim<sup>t</sup> may come to any thereby. 1635-6.

\*That at such convenient time as shall seeme meet to the Gov<sup>r</sup> & Cowncell, upon warning given, all men meet together for the mending of the high waies, w<sup>th</sup> such tooles & instrum<sup>ts</sup> as shall be appointed; and for default, every pson to forfeit three shillings.

2 March.  
PLYMOTH.  
WYNSLOW,  
GOV<sup>R</sup>.  
[\*87.]

That Joseph Rogers be allowed a constant ferry over Jones River, neer his dwelling howse, & to take a penny for the transporta<sup>cion</sup> of each pson, he, the said Joseph, maintayni<sup>g</sup> a sufficient ferry at that price.

That the Gov<sup>r</sup>, M<sup>r</sup> Prence, M<sup>r</sup> Collier, M<sup>r</sup> Alden, M<sup>r</sup> Browne, & M<sup>r</sup> John Howland view that por<sup>cion</sup> of ground on the north side the Sowth River, and if they finde it more beneficiall for farmes to Scituate then to these p<sup>ar</sup>t℄, then to allot it them; if not, to reserue it.

That upon the 14<sup>th</sup> of this p<sup>re</sup>nt moneth psons meet together for the disposing of mowing grownds for this p<sup>re</sup>nt yeare, as also to confer about our reuniting w<sup>th</sup> them of Duxburrow at Jones River, or such place as shall be most convenient.

At the same Court, a jury of twelue being impaniled and charged, in the moneth of Febr. foregoing, to enquire after the death of John Deacon, in the behalfe of our soveraigne lord, the King, gaue in their verdict as followeth, in their owne word℄, under their hand℄, viz<sup>t</sup>:—

Having searched the dead body, we finde not any blowes or wound℄, or any other bodily hurt. We finde that bodily weakenes, caused by long fasting & wearines, by going to & fro, w<sup>th</sup> the extream cold of the season, were the causes of his death.

Their names were John Jenny, John Cooke, Wilt Basset, Joseph Rogers, William Hoskins, Thomas Cushman, George Partridge, Stephen Tracy, Abraham Peirce, Richard Cluffe, Tho. Clarke, Phineas Pratt.

At this Court, Loue Brewster was admitted into the freedome of this society.

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\*At a Generall Meeting the 14<sup>th</sup> of March, concerning the Hey Grownde  
for Plymouth & Duxburrough.

14 March.  
[\*88.]

THE plac℄ heereafter men<sup>cion</sup>ed were assigned to the severall psons, for their p<sup>re</sup>nt use the yeare 1636, viz<sup>t</sup>:—

To M<sup>r</sup> William Collier & Christopher Wadsworth the ground at Mortons Hole.

1635-6.

14 March.  
WYNSLOW,  
Gov<sup>r</sup>.

To Cap<sup>t</sup> Standish, the heyground at the end of the land of William Latham & Joh. Washburne, provided the s<sup>d</sup> Washburne haue competent for one cow, & that he mow it in one entire place.

To Fr: Sprague, at the Eagle, & about his owne grownd.

To Wilt Basset, at the end of his owne grownd.

That M<sup>r</sup> Prence, Joseph Rogers, Tho: Cushman, & Edw: Dowty haue the ground upon Jones his river, where M<sup>r</sup> Prence & M<sup>r</sup> Allerton mowed last yeare.

That Stephen Tracy & Liueten<sup>t</sup> Holmes haue the grownd at the end of the said liueten<sup>ts</sup> lott.

That John, Kenelm, & Josias Wynslow & John Barnes haue that porcion of grownd upon Jones River from the point of the wood right to the coming in at Stony Brooke, & so upward on the sowth side the river.

That Joh. Dunham haue for the sheepe the watering place & the skirt of upland at Goose Point & about the first & second brooke.

That the neck of mowing grownd before Abr. Peirce his howse be reserved for the teeme at towne.

That John Jenny (and Edw. Holman w<sup>th</sup> him, for a cow & calfe) haue the grownd frō Joh. Wynslow downward to M<sup>r</sup> Allertons howse, or the creeke there.

That M<sup>rs</sup> Fuller haue the grownd from the Smelt River to M<sup>r</sup> Allertons creeke, and on the other side the Smelt River to the point of trees.

To M<sup>r</sup> Joh. Howland, where he mowed last yeare, and the quantity of two loade or jaggs of hey at the Iland Creeke.

To M<sup>r</sup> Heek & George Watson, (w<sup>th</sup> Rich. Higgens for one beast,) the rest of the s<sup>d</sup> Iland Creeke.

To Jonathan Brewster, that w<sup>ch</sup> he mowed the last yeare.

To William Paddy, between the iland & the glade, on the further side of Powder Point.

To M<sup>r</sup> Alden, where he mowed last yeare, & before his grownd so much as hee needeth.

[\*89.] \*That James Hurst haue where he mowed last yeare, and the upland somew<sup>t</sup> higher.

That M<sup>r</sup> Smith haue where John Barnes and Kanelm Wynslow mowed last yeare, and w<sup>th</sup>in his owne fence.

That M<sup>r</sup> Holmes haue between M<sup>r</sup> Smith & James Hurst.

That Phineas Pratt haue between Fr. Billington and his owne howse.

That widow Billington haue the marsh against her owne grownd, & what is too much for her is for M<sup>r</sup> Done.

That John Fans & M<sup>r</sup> Coomb haue the place over ag<sup>t</sup> M<sup>r</sup> Allertons

howse, on the north side Jones River, up to the place where M<sup>r</sup> Prence, &c, 1635-6.  
are appointed, p<sup>r</sup>vided they spare Nicholas Snow one smale jag of hey; the  
rest he is to have at Wellingly.

14 March.  
NEW PLYM.  
WYNSLOW,  
Gov<sup>r</sup>.

That M<sup>rs</sup> Warren, Rich. Church, Tho. Little, & Rob<sup>t</sup> Bartlet mow where  
they did last yeare, and that amongst them they provide for John Fans.

That Manasseh Kempton & George Sowle haue theirs against the fence  
of the s<sup>d</sup> George, & against the fence of Thomas Little.

That M<sup>r</sup> Hopkins mow the marsh between Thomas Clarke and George  
Sowle, as aforesaid.

That M<sup>r</sup> Hopkins & Tho. Clarke haue that up the river, as formerly.

That Edw: Wynslow haue against his grownd, on the sowth side the Eell  
River, as formerly, and the rest at or about his ground at Greens Harbour.

At this meeting, after much conference about the neerer uniting of  
Plymoth & those on Duxburrough side, divers were apointed to view Jones  
his river & Mortons Hole, w<sup>ch</sup> were thought the fittest plac<sup>e</sup>, & to ren-  
der a reason for their judgement. The p<sup>r</sup>ties for Duxburrow side were M<sup>r</sup>  
William Collier, Stephen Tracy, M<sup>r</sup> Joh. Howland, Edm. Chandler, Josuah  
Pratt; for the other side, Cap<sup>t</sup> Myles Standish, Manasseh Kempton, George  
Kenrick, John Jenny, & Edward Bangs. All these but Edw. Bangs went &  
conferred together, and on the 21<sup>th</sup> of the s<sup>d</sup> moneth of March brought in 21 March.  
their opinions & rendred their reasons for the same, w<sup>ch</sup> are many & still  
extant; seaven of the said nine holding Jones River to be the \*fittest place [\*90.]  
for the uniting of both p<sup>r</sup>tl into a neerer society, & there to build a meeting  
howse & towne; and the two preferred the other, w<sup>ch</sup> is Mortons Hole, before  
Jones River.

Afterward<sup>e</sup>, the Gov<sup>r</sup> & Cowncell sumoned the whole together, declaring  
what the s<sup>d</sup> p<sup>r</sup>sons deputed as before had done, & read their reasons of their  
judgem<sup>t</sup>. And after long debating of the thing, it was at length referred to  
the two churches on each side, as churches to agree upon & end the same.

*Actions entred to be tried at his Ma<sup>ties</sup> Court the 7<sup>th</sup> of June, 1636.*

1636.

JOHN DONE, yeoman, entreth an acc<sup>ō</sup> of slander, & layeth it in an  
100<sup>li</sup>, against Helin Billington, widow.

7 June.

John Tisdale, yeoman, entreth an acc<sup>ō</sup>n of battery against Steven Hop-  
kins, Assistant to the go<sup>v</sup>m<sup>t</sup>, by whom the said John was dangerously  
wounded, as he affirmeth.

1636. *\*At a Generall Court held the seaventh of June, in the twelueeth Yeare  
of the Raigne of our Soveraigne Lord, Charles, by the Grace of  
God King of Engl., Scotl., Fr., & Irel., &c.*

7 June.  
NEW  
PLYMOUTH.  
WYNSLOW,  
GOV<sup>R</sup>.

June 7<sup>th</sup>, 1636.

[\*91.]

IT was ordered,

That the next Generall Court should be deferred to the first Tuesday in October following, for speciall reasons for this p<sup>r</sup>nt yeare.

At this Court an action of slander was tried between John Done, plaintiffe, & Helin Billington, defendant, wherein the defend<sup>t</sup> was cast in fve pownd℥ starling to the plaintiffe, and adjudged to be sett in the stock℥ & be whipt.

At the same Court an accōn of battery was tried between John Tisdale, yeoman, plaintiffe, & Stephen Hopkins, Assistant to the governm<sup>t</sup>, def<sup>t</sup>, wherein the def<sup>t</sup>, Stephen Hopkins, was cast in fve pownd℥ starling to our sov. lord the King, whose peace he had broken, w<sup>ch</sup> he ought after a speciall manner to haue kept, and also in forty shilling℥ to the plaintiffe, both w<sup>ch</sup> he was adjudged to pay.

The jewry that served upon these trialls were Capt Myles Standish, Joh. Howland, Joh. Wynslow, Edm. Chandler, Joh. Dunham, Rich. Church, Joh. Cooke the yonger, Tho. Cushman, Joseph Rogers, James Hurst, Kanelme Wynslow, William Pontus.

Likewise, whereas M<sup>r</sup> John Browne, at a Generall Court held the first of March, had granted him a porcōn of land at the Iland Creeke Pond, &c., and finding the neighbours to thinke themselues prejudiced thereby, the said John Browne, upon request made, had leaue to make choice of the like quantity in any other p<sup>t</sup> undisposed of, so that, upon such choice made, the former grant be void.

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[\*92.] *\*At a Court of Assistants held the fourth of July, in the 12<sup>th</sup> Yeare of  
the Ragne of our Sov. Lord, Charles, &c.*

4 July.

July 4, 1636.

JOHN BARNES, having served Thomas Bowman by a warrant to appeare before the said Court, for want of evidence in his case was contented his accōn should fall.

July the 5<sup>th</sup>. William Fallowell hath bought for him & his heires forever, of Samuell Graue, a dwelling howse and gardaine inclosed, standing betweene the two brookes in the place called the medow, on the back side the towne, for & in consideraçon of the full sum of three pownd℥, five shillings, w<sup>ch</sup> the said Samuell acknowledgeth to be already received.

July 6. Thomas Willet & Mary Browne were married.

Aug. 13. Samuell Eaton, the sonne of Fr. Eaton, late of Plym, deceased, by the consent & approbaçon of Christian, his mother in law, hath bownd himselfe apprentize to John Cooke the younger for & during the full terme of seaven yeares, to begin at the first of October next ensuing; and at the expiraçon of the said terme, he, the said John, to giue him one compleate sute of appell, besides two other, one for ordinary weare, & the other for the Sabbath; also, twelue bushells of Indian corne, and one heyfer of a twelue-moneth old, & the advantage of the spring to y<sup>t</sup> p<sup>ř</sup>nt.

Aug. 22. Peter Talbott, the late serv<sup>t</sup> of Edw: Dowty, having a proporçon of land due unto him by the service of his m<sup>r</sup>, as appeareth by indenture, hath made over his right to James Skiffe, for & in consideraçon of six bushels of corne.

Aug. 26. Edw. Holman complayning of Joh. Jenny to the Gov<sup>r</sup> & Assistant℥, for that the said John would not make paym<sup>t</sup> for a peece he, the said Edw:, lost in his service; but the thing being heard, the said John was acquitted.

Aug. ult. William Phips, the late serv<sup>t</sup> of the p<sup>ř</sup>tners, hath sold unto Josiah Wynslow, his heires, &c., all that porçon of land w<sup>ch</sup> is due unto him by his service of apprenticeship, now compleatly ended, for & in consideraçon of the sum of fifty shilling℥ 1<sup>d</sup>.

1636.

5 July.  
NEW  
PLYMOUTH.  
WYNSLOW,  
Gov<sup>r</sup>.

6 July.

13 August.

22 August.

26 August.

31 August.

*\*At a Generall Court held the fourth & fift of Octobr, 1636.*

[\*93.]

An. 1636, Oct<sup>o</sup> 4, 5.

4, 5 October.

THE ordnanc℥ of the colony & corporaçon being read, divers were fownd worthy the reforming, others the rejecting, & others fitt to be instituted & made. It was therefore ordered & agreed, that four for the towne of Plymouth, two for Scituate, and two for Duxburrow should, as comittees for the whole, be added to the Gov<sup>r</sup> & Assistant℥, to rectefie & prepe such as should be thought most convenient, that, if approved, they may be put in force the next Generall Court.



1636.

4, 5 October.  
NEW PLYM.  
WYNSLOW,  
GOV<sup>R</sup>.

The p<sup>ties</sup> men<sup>tioned</sup> for the towne of Plymouth, M<sup>r</sup> Wilt Brewster, M<sup>r</sup> Raph Smith, John Done, & Joh. Jenny; for Duxburrow, M<sup>r</sup> Jonath. Brewster & Christopher Wadsworth; for Scituate, Anthony Annable & James Cudworth; all w<sup>ch</sup> to repaire to the Gov<sup>r</sup> & Assistant<sup>ℓ</sup> at Ply<sup>m</sup> afores<sup>d</sup> the 15<sup>th</sup> of Nov<sup>br</sup> next ensuing, and there continue their appareance till such time as the premises be determined.

That such serv<sup>ts</sup> as come out of their time, & are by their cou<sup>ts</sup> to haue land<sup>ℓ</sup>, haue onely fve acres apeece, if fownd fit to occupie it for themselues, in some convenient place.

That none be allowed to be housekeeps, or build any cottag<sup>s</sup>, till such time as they be allowed & approved by the Gov<sup>r</sup> & Cowncell.

That the towne of Scituate be allowed (viz<sup>t</sup>, the purchasers & freemen) to dispose of the land<sup>ℓ</sup> beyond the North River, except that w<sup>ch</sup> was before disposed on to others. And also it be allowed them to make such orders in their towneship for their convenient & comfortable living as they shall finde necessary, provided they haue, in case of justice, recourse unto Plymouth, as before.

The jewry empaniled this Court, for triall of acc<sup>ōns</sup> & abuses, were Jonathan Brewster, Nath. Sowther, John Cooke, Junior, James Cudworth, John Holmes, Kanelm Wynslow, Josiah Winslow, Anthony Annable, Wilt Hatch, Christopher Wadsworth, Tho. Cushman, Edw. Bangs.

By these, Tho. Savery fownd guilty of drunkennes, & thought meet he should be whipt.

Also, John Barnes, for Sabboath breaking, for w<sup>ch</sup> he was fined 30<sup>ss</sup>, & to sit an howr in the stock<sup>ℓ</sup>.

Also, Edw. Holman, for the same offence, fined 20<sup>ss</sup>, though not guilty in so high a degree.

[\*94.]

\*Oct. 5. Also, Wilt Bradford, gent., having entred an acc<sup>ōn</sup> of trespasse against Wilt Merick, George Partridge, John Vobes, & Richard Clough, in ten pownd<sup>ℓ</sup>, the jewry fownd for the plaintife, & gaue fve pownd<sup>ℓ</sup> starling & costs.

All w<sup>ch</sup> their verdict<sup>ℓ</sup> were accordingly pronounced, & the offenders punished.

At the same Court Rich. Beare was set in the stock<sup>ℓ</sup> for contempt.

Also, Joseph Beedle & Edw. Dowty, having entred crosse acc<sup>ōns</sup> against each other, their matters being raw & impfect, were by the Court referred to the arbitrac<sup>ōn</sup> of Richard Church, Josuah Prat, & Nicholas Snow, & they to stand to such order the said arbitrators should sett downe.

At the same Court Joh. Gárdner, the serv<sup>t</sup> of George Kenrick, taken from his master, & placed w<sup>th</sup> John Howland, to serue the said John Howland one

yeare more then speeified in his former indenture ; the said Joh. Howland giving his master aforesaid three pownð starling.

Last of all, that such young men or others as wanted land, should repaire to the Gov<sup>r</sup> & Assistant the next morning, that so if allowed, they might be provided for.

1636.

4, 5 October.  
NEW  
PLYMOUTH.  
WYNSLOW  
GOV<sup>R</sup>.

*\*At a Court of Assistant, held the 6<sup>th</sup> of Oct., in the twelue<sup>th</sup> Yeare of the Raigne of our Sov. L., Charles, &c.*

6 October.  
[\*95.]

Oct. 6, 1636.

**R**ICHARD BEARE, Maurice <sup>^</sup>, Geo<sup>r</sup>e Partridge, John Vobes, & Wilt Merick were appointed to haue fve acres of land for each pson, together, next to the glade on Powder Point.

At the same time Rich. Beare allowed to erect a dwelling howse, & to haue a misted appointed in place convenient, provided the s<sup>d</sup> Beare peure sufficient security w<sup>th</sup> him, to be bownd in fifty pownð bond for his good behaviour in the said howse or family.

At the same Court George Partridge allowed to build upon the same termes.

Likewise Tho. Pope, Rich. Clough, & Rich. Wright were appointed land, viz<sup>t</sup>, 5 acres to a pson, at the fishing point next Slowly Field.

And the said Thomas Pope allowed to build upon the said termes before expressed.

At the same time Edward Wynslow allowed to his dwelling house seaven acres adjoyning to the north side of the towne.

Likewise granted to M<sup>r</sup> Wilt Bradford, for Constant & Thomas Southward, the land now in occupa<sup>õ</sup>n of George Sowle, & from thence to the swamp on the north side the Eele River.

Oct. 20. Rich. More & Christian Hunt married.

20 October.

Oct. 28. Joseph Beadle & Rachel Deane ||widow|| married.

28 October.

Nov. 2<sup>d</sup>. William Hodgekins & Sara Cushman married.

2 November.

John Winslow hath turned over the service of Edmund Weston for two yeares, beginning the last of May next ensuing, to Nathaniel Thomas, in the behalfe of his ffather, M<sup>r</sup> William Thomas, in consid. of ten pownð starling, the s<sup>d</sup> William being further to giue the said Edmund six pound p annum, & fowrteen bushels of corne, at thēnd of the s<sup>d</sup> two yeares, & w<sup>t</sup> else the s<sup>d</sup> John should make good p his cov<sup>t</sup>.

1636. *\*At a Court of Assistant℥ held the seaventh of Nov<sup>br</sup>, in the 12<sup>th</sup>  
Yeare of our Sov. Lord, Charles, &c.*

7 November.

WYNSLOW,  
Gov<sup>r</sup>.

[\*96.]

WHITNEY was sett in the stock℥ for detayning another man's serv<sup>t</sup>  
w<sup>th</sup>out order.

At the same Court George More referred to Mr Bradford to view a peece of land adjoyning to Abr. Peirce, & if it shall be found meet by him then to lett the said George haue five acres thereof.

Remitted be-  
cause he had  
land elsewhere.

At the same time Tristram Clarke appointed to haue eight acres of land, fowr in breadth & two in length on the south side, a porcōn allotted formerly to Mr John Coombe, between Phineas Pratt & widow Billington.

Whereas there is reported to be certaine wast land between the lott of Stephen Tracy & that of Liuten<sup>t</sup> Will<sup>t</sup> Holmes, at the request of Mr Will<sup>t</sup> Bradford, such land was granted to him & his heires forever, having other land℥ very neere & necessary thereunto.

The land℥ at the fishing point, neer Slowly Field, being viewed & fownd too little for Tho. Pope, Rich. Clough, & Rich. Wright, at five acres p<sup>r</sup> pson, by consent was equally devided between them. Memorand. That a way was left between them & the land℥ of Stephen Hopkins next adjoyning.

Memorand. Also, that the diuision was afterwards made betwixt themselves, and was bounded to eich man, w<sup>ch</sup> bounds are to stand, by the consent of all, Richard Cloughs lot lying in the midst, w<sup>ch</sup> was acknowledged by Richard Wright, and testified by Josuah Pratt.

Memorand. That the psons heerafter mençoned had divers porcōns allowed them, 3 acres in breadth & two in length, next to the land℥ of Joh. Dunham the elder, viz<sup>t</sup> : —

To Joh. Dunham the younger, six acres.

To Joh. Wood six acres.

To Rich. Sparrow six acres.

To Sam. Eedy three acres.

To Web Addy three acres.

To Josiah Cooke six acres.

To Thomas Atkinson six acres.

To Josuah Pratt six acres.

All w<sup>ch</sup> psons haue or are to build in the towne of Plym., and these land℥ to belong to their dwelling howses there, & not to be sold frō their howses.

24 December.

[\*97.]

\*1636, Dec<sup>r</sup> 24. Joh. Harmon, the son of Edm. Harmon, of London, taylor, acknowledged himselfe to be the apprentice of Franc℥ Cooke, of New

Plymouth, for seaven yeares, viz<sup>t</sup>, from the first of Octob<sup>r</sup>, 1636, to the expira-  
cōn of the said terme, and then to be dowble apprelled by the said Franc<sup>ℓ</sup>, who  
is also to giue him twelue bushels of corne.

1636.

24 December.

WYNSLOW,  
Gov<sup>r</sup>.

30 December.

Dec. 30. Whereas the now dwelling howse w<sup>th</sup> all & singular the out-  
howsing, land<sup>ℓ</sup>, & inclosures in the use & occupa<sup>c</sup>ōn of John Done, of Plym-  
outh, neere unto Plaine Dealing, were in p<sup>t</sup>nership betweene the said John  
Done & John Atwood, late of London, gen<sup>t</sup>: Now know ye that upon ac-  
count<sup>ℓ</sup> between the said Joh. & John, the said John Atwood, for & in consid-  
era<sup>c</sup>ōn of threescore pown<sup>d</sup>ℓ, hath bought out the said John Done, his heires  
& assignes, so that it remayneth wholly to the said John Atwood & his heires  
for ever.

Jan. 2<sup>d</sup>. There were land<sup>ℓ</sup> graunted to Edmond Chandler, Josias Wins-  
low, Rich. Bourne, & to John Burne, in the behalf of his father, w<sup>ch</sup> are entred  
afterward<sup>ℓ</sup>.

1636-7.

2 January.

*At a Court of Assistant<sup>ℓ</sup> held the sixt Day of January, in the* 6 January.  
*twelft Yeare of the Raigne of King Charles, &c.*

Januar 6<sup>th</sup>, 1636.

‡THERE is threescore acres of lands lying vpon the south side of the  
Eele River, aboue the great swampe graunted vnto Josias Winslowe.‡

This graunt was made voyd vpon a graunt made to him at Greens  
Harbor.

‡Threescore acres of lands lying vpon the south side of the Eele River,  
aboue the great swampe, is graunted the same day to Kenelme Winslowe.‡

This graunt was made voyd vpon a graunt made to him at Greens  
Harbor.

A p<sup>ℓ</sup>cell of land is graunted vnto William Tubbs, lying in the poynt or  
nooke beyond Experience Michells land.

\*Januar. 14<sup>th</sup>, 1636. There is graunted this day, by the Court of Assist- 14 January.  
ant<sup>ℓ</sup>, to James Skiffe, tenn acres of lands, lying next vnto the lands graunted  
to Triston Clarke, five in length & two in breadth, betweene the lands of  
Phineas Pratt & widdow Billington, five acres whereof are part of those lands  
due vnto him for his service donn to M<sup>r</sup> Isaack Olerton, and th other five  
acres are in the right of Peter Talbott, for service by indenture pformed to  
Edward Doty. [\*98.]

1636-7.        The same day John Shaw is allowed to enlarg at thend of his lott lying  
at Black Brooke.  
14 January.        The same day John Jenkins is also allowed to enlarge at thends of the  
WYNSLOW,        grounds of Raph Wallen, at Willingsley, as the range of those lands doe  
Gov<sup>r</sup>.        butt.

3 January.        *At the Gen<sup>all</sup> Court, held the third Day of Januar., 1636.*

**M**<sup>R</sup> WILLIAM BRADFORD was elected Gouvernor.  
Mr Edward Winslow, }  
Mr Thom. Prince,        }  
Mr Tymothy Hatherley, } were chosen Assistant℥.  
Mr Wil<sup>m</sup> Collyer,        }  
Mr John Alden,        }  
Mr John Jenney,        }  
Captaine Miles Standish, }  
Mr Thom. Prince was chosen Treasurer.  
Mr Wil<sup>m</sup> Collier Corroner.  
Mr Nathaniell Sowther Clarke of the Court.  
Josua Pratt, Constable of New Plymouth.  
Edmond Chaundler, Constabl of Ducksbury.  
James Cudworth, Constable of Scituate.

[\*99.]        \*Mr. John Atwood, John Jenken, John Weekes, Josiah Cooke, Wil<sup>m</sup> Paddy, Rob<sup>te</sup> Lee, Nathaniell Morton, Edward Forster, Georg<sup>e</sup> Lewes, and Barnard Lumbard were made free this Court, & sworne accordingly.

Allexander Higgens, Humfrey Hewett, & Thomas Whitney tooke the oath of fidelitie to the go<sup>v</sup>ment, & were admitted to dwell & reside w<sup>th</sup> John Weeks & John Alden, or thereabout℥

John Em<sup>son</sup>, of Scituate, yeom., oweth o<sup>r</sup> so<sup>u</sup>aigne lord the  
King the sūme of . . . . . 100<sup>li</sup>  
Georg<sup>e</sup> Kennerich, de ead., yeom., . . . . . 50<sup>li</sup>  
W<sup>m</sup> Hatch, of the same, yeom., . . . . . 50<sup>li</sup>

Released.

The condi<sup>cion</sup> that the said John Em<sup>son</sup> shall appeare at the next Gen<sup>all</sup> Court to be holden for Mattachusett℥ Bay, there to answe<sup>r</sup> as well to all such matters as on his ma<sup>ties</sup> behalf shalbe objected against him concerneing his abuseing of Edith Pitt℥, as also to doe & receiue such thinges as by the

said Court shalbe enjoyned him, & not to dep<sup>t</sup> the same w<sup>th</sup>out lycence ; that then, &c. 1636-7.

The recognizance was taken w<sup>th</sup> condiçon, also, that if the Goũnor & Assistant<sup>ℓ</sup> should call for him otherwise, he is to appeare the next Geñall Court at Plymouth.

3 January.  
WINSLOW,  
GOÛNOR.

Samuell Jackson, of Scituate, yeom., became bound the same day } also to o<sup>r</sup> soũaigne lord the King, in the sume of . . . . . } 40<sup>li</sup> Discharged.

The condiçon that Edith Pitt<sup>ℓ</sup>, his servant, shall psonally appeare the next Geñall Court holden for Mattachusett<sup>ℓ</sup> Bay, to giue evedence for o<sup>r</sup> soũaigne lord the Kinge against John Emson, concerning his abuseing her, and also to doe, & pforme such thinges as by the said Court shalbe enjoyned her, & not dep<sup>t</sup> the same w<sup>th</sup>out lycence ; that then, &c. This recogn. was also taken condiçonally, if the Goũnor of Mattachusetts Bay should require her appearance.

John Emson abouesaid bound to the Kinge in . . . . . 40<sup>li</sup>

Respited to the  
next Court.

George Kennerick, of the same, . . . . . 20<sup>li</sup>

Wilhm Hatch, of the same, . . . . . 20<sup>li</sup>

Releascd.

That the said John Emerson shalbe of the good behauir toward<sup>ℓ</sup> our soũaigne lord the King, and all his leigh people, and appeare here at the next Geñall Court to be holden for this collony, & not dep<sup>t</sup> the same w<sup>th</sup>out lycence ; provided that if he should be called into the Bay at the tyme of the next Court, then he is to be respited to the next Court after.

*\*At a Court of Assistant<sup>ℓ</sup> held the second of January.*

2 January.

[\*100.]

January 2<sup>d</sup>.

‡THERE was graunted to Edmond Chandlor fourty acres of land lying on the east side of Moyes Symonson, where Morris formly begann to cleare for Mr Bowman.‡

This was made  
voyd, & 60  
acres granted  
afterwards.

There was graunted the same day to Josiah Winslowe, Richard Burne, and to John Burne, on the behalf of his father, Mr Thomas Burne, & to James Coale, seaven acres apeece, to belonge to their sefall dwelling houses in Plymouth, and not to be sould from them, but when such dwellings shalbe voyde, to returne in vnto the towne, to be disposed of to others ; otherwise the said lands shalbe to them and to their heires & assignes so long as their houses shalbe fitt for habitaçon, and be dwelled in.

1636-7. *At a Court of Assistant℥ held at New Plymouth, the sixt Day of February, Anno Dni, 1636.*

6 February.

WINSLOW,  
GOVERN.

**F**IVE acres of land is graunted vnto William Rhenolds, lying on Ducksbury side, in regard he hath a stock of cattle, w<sup>ch</sup> land is to be appoynted him forth by M<sup>r</sup> Collyer, M<sup>r</sup> Prince, or M<sup>r</sup> Alden, or one of them.

Five acres of land is graunted vnto James Daves, lying about M<sup>r</sup> Weekes his ꝑcell, w<sup>ch</sup> lands are in ꝑt for his service.

Tenn acres of lands is graunted vnto Rowland Leyhorne, lyinge on Ducksbury side, to be appoynted him as others are there, and one acre of meadow land lying to y<sup>t</sup>.

Three or foure acres of land is graunted to John Cooke thelder at the norwest side of Josua Pratt℥ land, & betwixt him & the brooke.

It is also agreed by the said Court, that the six acres of land in the new feild formly graunted to Josua Pratt are now graunted, by the consent of the said Josua Pratt, vnto M<sup>rs</sup> Bridgitt Fuller, widdow, to belong vnto her house in Plymouth, & be therew<sup>th</sup> used so long as the same shalbe inhabited, or be fitt to dwell in.

[\*101.]

\*Jan: 6<sup>th</sup>. It is also agreed that the six acres of the lands of John Jenney, and the two acres of M<sup>rs</sup> Fuller, lying at Strawberry Hill, enclosed by M<sup>r</sup> Raph Smyth, shalbe ycilded vpp vnto them this yeare, that they may ymproue them to the setting of corne; provided that the said John Jenney shall erect a dwelling house neere or vpon the said six acres, w<sup>ch</sup> are to belong vnto the said house as long as it shalbe a dwelling; as also M<sup>rs</sup> Fullers two acres to belong vnto her house in Plymouth so long as it shalbe a dwelling. And the residue of the land℥ enclosed by M<sup>r</sup> Smyth as aforesaid, to belong to his house at Plymouth, and to be therew<sup>th</sup> used as long as it shalbe inhabited.

A ꝑcell of land neere Goodman Hurst℥, containeing about six or seauen acres, is graunted vnto M<sup>r</sup> John Reynor, o<sup>r</sup> teacher.

Six acres of land where Wil<sup>m</sup> Richards dwelt is graunted vnto Nathaniell Sowther, to belong to his house at Plymouth, and to be therew<sup>th</sup> used so longe as the said house shalbe inhabited or fitt to dwell in.

Whereas John Jenney, Thomas Willet, and George Watson did, contrary to the auncient lawes of this colony, trade w<sup>th</sup> the Indians for corne, and thereby both the quantitie of corne & the value of thereof was forfeited to the collony, and that therevpon the corne so traded contrary to law was seized

to the vse of the collony, and that afterwards, by a publicke order made in the Court, it was referred to the bench, the said bench doth now order, that thone halfe of the said corne, and the forfeiture besides, shalbe freely giuen to them againe, and thother half of the corne shalbe deliuered to the Treasurer for the vse of the collony, to be disposed as the bench shall think fitt.

1636-7.

6 February.  
WINSLOW,  
GOVERNOR.

*At a Court of Assistant℥ held the xx<sup>th</sup> of February, 1636.*

20 February.

**R**OWLAND LEYHORNE was allowed to build on Ducksborough side by the Goūnor & Assistant℥.

*\*At a Court of Assistant℥ held the vj<sup>th</sup> of March, 1636.*

6 March.

[\*102.]

**A**ŦCELL of land is graunted vnto M<sup>r</sup> Thomas Prence, lyinge betweene the two cedar swamps at Iland Creeke Pond, the same to be set forth and vēwed by M<sup>r</sup> Collyer and M<sup>r</sup> Alden.

A Ŧcell of land containeing a knowle, or a little hill, lying ouer against M<sup>r</sup> Aldens lands at Blewfish Riuer, is graunted by the Court vnto the said M<sup>r</sup> John Alden in lue of a Ŧcell of land taken from him (next vnto Samuel Nashes land℥) for publike vse.

Whereas John Bundy stand℥ bound by indenture to serue Griffin Mountegue, carpenter, in New Engl., the full terme of eight yeares from the 14<sup>th</sup> of March, 1635, — the said John Bundy acknowledged himselfe content to serue out the remainder of his terme w<sup>th</sup> Wilt Brewster, the Elder, of Plimouth, who hath compounded w<sup>th</sup> the said Mountegue, his master.



1636-7. \**At a Geñall Court holden at New Plymouth, for the whole Gou-  
ment, the vij<sup>th</sup> Day of March, 1636, in the xij<sup>th</sup> Yeare of the  
Raigne of our Sou'aigne Lord, Charles, by the Grace of God  
of England, Scotland, France, & Ireland, King, Defendor of the  
Fayth, &c.*

7 March.  
BRADFORD,  
GOV<sup>R</sup>.  
[\*104.]

The Names of the Freeman.

|                                                |                              |
|------------------------------------------------|------------------------------|
| M <sup>r</sup> Bradford, Gov <sup>r</sup> nor, | Wilm Basset,                 |
| Edward Winslow, gen.,                          | Nathaniell Sowther,          |
| <u>William Bradford, gen.,</u>                 | Leiftennant Wilm Holmes,     |
| Thomas Prence, gen.,                           | James Hurst,                 |
| Wilm Collyer, gen.,                            | Edmond Chaundler,            |
| Cap <sup>t</sup> Standish,                     | John Dunham,                 |
| John Alden, gen.,                              | William Pontus,              |
| Tymothy Hatherly, gen.,                        | Josua Pratt,                 |
| John Jenney, gen.,                             | Phineas Pratt,               |
| Stephen Hopkins, gen.,                         | Georg Sowle,                 |
| John Browne, gen.,                             | Edward Dotey,                |
| William Brewster, gen.,                        | Christopher Wadeworth,       |
| <u>Captaine Miles Standish,</u>                | Thomas Clarke,               |
| John Atwood, gen.,                             | Henry Howland,               |
| Raph Smyth, gen.,                              | Humphrey Turner,             |
| Isaack Allerton, gen.,                         | Richard Sparrow,             |
| John Howland,                                  | Wilm Hatch,                  |
| John Done,                                     | Georg Kennerick,             |
| <u>John Jenney, gen.,</u>                      | Loue Brewster,               |
| <u>Wilm Gilson,</u>                            | Thomas Cushman,              |
| Robte Heeks,                                   | *Edward Banges,              |
| Manasseth Kempton,                             | Nicholas Snow,               |
| John Combe, + { disfranchised for } +          | John Cooke,                  |
| John Winslow, { being drunk, 213. }            | <u>William Palmer, dead.</u> |
| Kenelme Winslowe,                              | Thomas Willet,               |
| Josiah Winslowe,                               | Georg Watson,                |
| Jonathan Brewster,                             | James Cudworth,              |
| Anthony Annable,                               | Samuell Fuller,              |
| Francis Cooke,                                 | John Faunce,                 |
| John Shawe,                                    | John Barnes,                 |
| Stephen Tracy,                                 | Isaack Robinson,             |

[\*105.]

John Holmes,  
 Henry Rowley,  
 Experience Michell,  
 Anthony Savory,  
 Roger Chaundler,  
 John Cooper,  
 Robte Bartlet,  
 Richard Church,  
 Raph Wallen,  
 Joseph Rogers,  
 Henry Cobb,  
 Samuell Nash,  
 Samuell Eedy,  
 Phillip Delanoy,  
 Abraham Peirce,  
 James Coale,  
 Samuel House,  
 William Hodgskine,  
 Richard Higgens,  
 Moyses Symonson,  
 Richard Clough,  
 Thomas Atkinson,  
 Henry Sampson,  
 John Jenken,  
 John Weekes,  
 Josiah Cooke,  
 William Paddy,  
 Robte Lee,  
 Nathaniell Morton,  
 Edward Foster,  
 Georg Lewes,

Barnard Lumbard,  
 Richard Burne,  
 Georg Bower,  
 Thomas Hill,  
 Francis Sprague,  
 Mr John Lathrop, pastor of  
 Scituate.  
 Mr John Vincent,  
 Mr Edmond Freeman,  
 Mr Thomas Burne,  
 Mr William Leffedg,  
 Thomas Armitage,  
 John Paybody,  
 Henry Bourne,  
 Constance Southerne,  
 William Tubbs,  
 Mr Thomas Besbedge,  
 Samuell Hinckley,  
 John Lewes,  
 Mr John Reynor, p. 146.  
 Mr Raph Partrich,  
 Richard Sillis,  
 Edward Fitzrandle,  
 Mr Wiltm Thomas,  
 Mr Wiltm Poole,  
 Mr John Gilbert, Sen.,  
 Mr Henry Andrewes,  
 John Stronge,  
 John Deane,  
 Walter Deane,  
 Edward Case,

1636-7.

7 March.  
 BRADFORD,  
 GOUVERNOR.

of Co-  
 hannett.

\*William Bradford, gen., tooke his oathe this Court.

[\*106.]

|                          |   |                                               |
|--------------------------|---|-----------------------------------------------|
| Edward Winslow, gen.,    | } | were sworne Assistant℥.                       |
| Tymothy Hatherley, gen., |   |                                               |
| Wiltm Collyer, gen.,     |   |                                               |
| John Jenney, gen.,       |   |                                               |
| Thomas Prence, gen.,     | } | were absent, & so were not sworne this Court. |
| Captaine Miles Standish, |   |                                               |

1636-7.

7 March.  
BRADFORD,  
GOV<sup>R</sup>.

Josua Pratt was sworne the Messenger for the whole goũment, and Constable for the toune of New Plymouth.

Edmond Chaundler, Constable, of Ducksburroug, sworne.

James Cudworth, Constable of Scituate, sworne.

The Names of the Great Inquest or Grand Jury, sworne to enquire of all Abuses w<sup>th</sup>in the body of this Goũment, &c.

|                       |           |                                |           |
|-----------------------|-----------|--------------------------------|-----------|
| John Atwood, gen.,    | } sworne. | Manasseth Kempton,             | } sworne. |
| Jonathan Brewster,    |           | Edward Banges,                 |           |
| John Winslowe,        |           | <u>John Weekes,</u>            |           |
| Kenelme Winslowe,     |           | Christopher Wadeworth,         |           |
| <u>Willm Gilson,</u>  |           | John Cooke, Junior,            |           |
| <u>Edward Foster,</u> |           | Steephen Tracy,                |           |
| <u>Willm Hatch,</u>   |           | <u>Richard Church, (xvi.,)</u> |           |
| John Dunhame,         |           | <u>Mr Edmond Freeman,</u>      |           |
| Mr John Vincent,      |           |                                |           |

It is referred to the Goũnor, Treasurer, and Assistant℥, to agree w<sup>th</sup> Leiftennant℥ Holmes to exercise the inhabitant℥ of the colony in the use of armes.

[\*107.]

\*It is agreed vpon, by the consent of the whole Court, that Elizabeth Warren, widdow, the relict of Mr Richard Warren, deceased, shalbe entred, and stand, and bee purchaser instead of her said husband, as well because that (hee dying before he had pformed the said bargaine) the said Elizabeth pformed the same after his decease, as also for the establishing of the lotts of land℥ giuen formly by her vnto her sonnes in law, Richard Church, Robert Bartlett, and Thomas Little, in marriage w<sup>th</sup> their wiues, her daughters.

Concerning the trade of beaver, corne, & beads, &c, w<sup>th</sup> the Indians, it is agreed, by the consent of the Court, that they that now haue y<sup>t</sup> shall hold y<sup>t</sup> vntill the next Court, the begiũing of June ; and then further conference to be had for the mannageing thereof, that such further course may be taken therein as shalbe thought fitt. And in the meane season, Mr Hopkins, Mr Atwood, Mr Done, & Jonathan Brewster shalbe added to the Goũnor and Assistant℥, to aduise vpon such pposiçõs and wayes so as the said trade may be still continued to the benefit of the collony.

*\*At a Genall Meeting the xx<sup>th</sup> of March, 1636, according to the Order of the Court, these Hey Groundℓ were assigned to the Inhabitantℓ of Plymouth, Eele Riuer, & Ducksbury.*

1636-7.  
20 March.  
BRADFORD,  
GOVNOR.

**T**O eich pson as followeth, for their vse this p̄nte yeare following, viz<sup>t</sup>, 1637; and then were psons also appoynted to veiwe all the hey grounds w<sup>thin</sup> the limittℓ seſually followinge, before the next Court, that eich man may be assigned a porcōn as shalbe thought conuenient.

[\*108.]

|                    |   |                                                                                           |
|--------------------|---|-------------------------------------------------------------------------------------------|
| The Messenger,     | { | were appoynted to veiwe the hey groundℓ betwixt the Eele Riuer and the towne of Plymouth. |
| Mr Hopkins,        |   |                                                                                           |
| Manasseth Kempton, |   |                                                                                           |
| Edward Banges,     |   |                                                                                           |

|                 |   |                                                                               |
|-----------------|---|-------------------------------------------------------------------------------|
| The Goūnor,    | { | appoynted to view the hey groundℓ from the towne of Plymouth to Iland Creeke. |
| Mr John Jenney, |   |                                                                               |
| Mr John Browne, |   |                                                                               |
| The Messenger,  |   |                                                                               |

|                    |   |                                                                                          |
|--------------------|---|------------------------------------------------------------------------------------------|
| Mr Collyer,        | { | appoynted to view the hey groundℓ from Iland Creeke to the Riuer beyond Phillip Delanoy. |
| Jonathan Brewster, |   |                                                                                          |
| Steephon Tracy,    |   |                                                                                          |
| The Messenger,     |   |                                                                                          |

|                    |   |                                                                                              |
|--------------------|---|----------------------------------------------------------------------------------------------|
| Mr Edward Winslow, | { | appoynted to veiwe the hey groundℓ from the riuer beyond Phillip Delanoy to the South Riuer. |
| Henry Howland,     |   |                                                                                              |
| The Messenger,     |   |                                                                                              |
| Phillip Delanoy,   |   |                                                                                              |

\*The p̄ticuler psons assigned this yeare as followeth for hey : —

[\*109.]

To Mr Reynor and Mr Browne, the vpper end of Jones Riuer, where John & Josias Winslow had the last yeare; Mr Reſor to haue a full pporcōn there for foure or five head of cattle; and if the rest suffice not Mr Browne, then hee to seeke supply elswhere.

To Mr Atwood and Kenelme Winslow, the northerne poynt or poyntℓ of the beach lying against the Great Wood Iland assigned to John & Josias Winslowe.

To John Winslowe and Josias Winslow, the Great Wood Iland at Greenes Harbor, for this yeare.

To Mr Collier, the hey ground he had the last yeare, and the next nooke saue one to Bowmans ground more this yeare.

Christopher Waddesworth, the the hey ground he had the last yeare, w<sup>th</sup> the addition of some more before his house.

1636-7.

20 March.  
BRADFORD,  
GOVERNOR.

To Captaine Standish & Washburne, the hey ground they had the last yeare, and to mowe as they were appoynted.

To Francis Sprage and William Basset, the same hey ground they had last yeare ; and that Mr Brewster haue that w<sup>ch</sup> was not cutt by them the last yeare.

To Thomas Cushman, the remaynder of the marsh before the house he liueth in, (w<sup>ch</sup> M<sup>rs</sup> Fuller doth not vse,) and the little pcell at the wadeing place on thother side Joanes Riuer.

To Mr Thomas Prince & Joseph Rogers, the hey ground they had the last yeare, to be deuided pportionable to their cattle ; and what more Mr Prince shall want, to haue his supply at the Heigh Pines.

To Mr Done, to haue hey ground at the Heigh Pines.

[\*110.] \*To John Barnes and Edward Holman, to haue hey ground at the Gurnet Nose.

To John Banges and Edward Dotey, hey ground at Saggaquash.

To Steephen Tracy and Leiftennant Holmes, the hey ground they had the last yeare, and Joseph Biddle to haue hey w<sup>th</sup> them for one cowe.

To John Dunhame, for the sheepe, the hey ground hee had the last yeare, and what more can be spared at Goose Poynt.

To Mr John Jenney, where he had the last yeare, and to edge more vpon the sedgey place, that there may be hey also gott there for the teame of the towne.

To M<sup>rs</sup> Fuller, where shee gott hey the last yeare.

To Mr Howland, where he got hey the last yeare, at Iland Creeke Pond.

To Mr Heeks, Georg̃ Watson, & Richard Higgens, for one cowe, where they had hey the last yeare.

To William Paddy, betweene the iland & the glade at Pouder Poynt.

To Mr Alden, the hey ground he had the last yeare.

To Goodman Hurst, the hey ground he had the last yeare.

To Mr Smyth, the hey ground he had the last yeare.

To Mr Holmes, hey where he had the last yeare.

To Phineas Pratt and Mr Coomes, the hey ground they had the last yeare.

To John Faunce, where Mr Bradford mowed the last yeare.

[\*111.] \*To Richard Church, Robt Bartlet, & Thomas Little, hey ground where they had the last yeare, and to take further supply where they can fynd yt, in plac not graunted to others, and Robt Bartlet to haue the swampe or pitt at the head of Mr Bradford ground.

To Manasseth Kempton, pt of the meaddow at Joanes River where Mr Bradford and Constance Southerne do get hey.

To Georg̃ Sowle, where he gott hey the last yeare.

To Mr Hopkins & Thomas Clark, the hey ground they had the last yere. 1636-7.

To Mr Edward Winslow, the place he had the last yere.

To Nicholas Snow, at Wellingsley, where he had the last yere.

To Raph Wallen, where he had the last yere.

To John Cooke, in some conveyent place about Experience Michells & Henry Howland's grownds.

To Richard Burne, where Mr Reynor gott hey the last yere.

To Mr Vincent, hey ground betweene Moyses Symons feild & the land lately giuen to Edmond Chaundlor, toward that w<sup>ch</sup> is appoynted to Mr Collyer.

To Josiah Cooke, the plott of grasse for hey against John Barnes his creek, & from the ware to the milne, & vp at Fresh Lake where he can pike yt.

It is also agreed vpon that if any man shall fynd any convenient place good for hey ground w<sup>ch</sup> is not graunted to any, it shalbe lawfull for him to burne and dresse the same, and to make vse of yt for his owne p<sup>ar</sup>ticular.

20 March.  
BRADFORD,  
GOVERNOR.

*\*At a Court of Assistantes held the third of Aprill, 1637, in the xiiij<sup>th</sup> Yeare of the Raigne of our Soueraigne Lord, Charles, by the Grace of God of England, Scotland, France, & Ireland Kinge, Defendor, &c.* 1637.

3 April.  
[\*112.]

**L**IBERTY is graunted vnto Mr Bradford, Gou<sup>er</sup>nor, to take in his acres at Strawberry Hill.

It is also agreed by the Court that those tenn men of Saugust, viz<sup>t</sup>, Edmond Freeman, Henry Feake, Thomas Dexter, Edward Dillingham, William Wood, John Carman, Richard Chadwell, Wil<sup>m</sup> Almey, Thomas Tupper, & George Knott shall haue liberty to view a place to sitt downe & haue sufficient lands for three score famylies, vpon the condic<sup>ions</sup> ppounded to them by the Gou<sup>er</sup>nor and Mr Winslowe.

Liberty is graunted to George Cleare, a carpenter, to build a house vpon a garden place appoynted him by George Watsons, and to haue an acre or two of land layd to yt about Mr Hills lott at Wellingsley.

Liberty is graunted to Josias Winslow to take in a little swampe lying at the end of his new ground, contayneing about half an acre of ground.

‡A midstead is graunted to George Russell in the towne of Plymouth, and to haue land assigned vnto yt in a convenient place.‡

1637. *\*At a Court of Assistant℥ held the second Day of May, in the xiiij<sup>th</sup>  
Yeare of his Ma<sup>ties</sup> now Raigne, of England, &c.*

2 May.

BRADFORD,  
Gov.

[\*113.]

IT was ordered by this Court, that a jury should be empanelled to set forth the heigh wayes about Plymouth, Ducksborrow, and the Eele Riuer, w<sup>ch</sup> was accordinge su<sup>m</sup>oned, and vpon the ninth day of May next after they appeared before the Gov<sup>r</sup>, and tooke their oathes to lay forth such heigh wayes about the townes of Plymouth, Ducksborrow, & the Eele Riuer equally & justly, w<sup>th</sup>out respect of p<sup>er</sup>sons, and according as they shalbe directed by informa<sup>ti</sup>on of others, & as God should direct them in their discretion for the ge<sup>n</sup>all good of the colony, and w<sup>th</sup> as little p<sup>re</sup>judice to any mans p<sup>ar</sup>ticuler as may be, and to marke the treeys vpon the said way, and so it to remayne a way foreuer.

The Names of the Jury.

|                     |                              |
|---------------------|------------------------------|
| John Done,          | Francis Cooke,               |
| William Palmer,     | Richard Burne,               |
| Loue Brewster,      | John Jenkyne,                |
| Experience Michell, | Moyse Symons,                |
| Phillip Delanoy,    | Rob <sup>t</sup> e Bartlett, |
| Thomas Cushman,     | Richard Higgens.             |

7 July. The Verdict or Order of thabouesaid Jury, p<sup>er</sup>formed by them the tenth Day of May, 1637, and deliuered by them into the Ge<sup>n</sup>all Court held the vij<sup>th</sup> of July next after, and by the same confirmed in these words following, viz<sup>t</sup>:

It is agreed, that the heigh wayes, both for horse, cart, and foote, shalbe as followeth: From the towne of Plymouth to Joanes River, as it was cleared, p<sup>ro</sup>vided it be holpen at M<sup>r</sup> Allertons by going through the old cove yard at the riuer, the place being co<sup>m</sup>only called the Old Wading Place, and so through a valley vp the hill, and then to turne straight to Abraham Peirces ground, and through his ground as it is marked, and so the old path to Massachusetts, leaueing M<sup>r</sup> Bradfords house vpon the west, & from M<sup>r</sup> Bradford℥ house to Steephen Tracys ground, as the way now lyeth, being already trenched, a foote way from the lower steping stones to Steephen Tracies, the heigh way lying through Steephen Tracies feild now enclosed. Alsoe, wee allowe a way from Francis Billingtons ground through the nooke, as it now lyeth, to the ferry, and from the ferry to Steephen Tracies house, and so

through the meadow to the bridg. The heighway from Steephen Tracies ground through the other ground℄, as far as the trees were marked, to the bridg at John Rogers, & from John Rogers along as the way now lyeth to the corner of Jonathan Brewsters cow yard, and so by a valley downe his ground, nere to the house of Mr Prince, and from thence the old way to Christopher Wadsworth, whose pallasadoe is to be remooued, and a sufficient way allowed to enter into Francis Sprages ground, and there to fall into a way that lead℄ from Mortons Hole to Ducksborrow towne, and from thence a way to fall to the Captaine Standish<sup>s</sup> and Mr Brewsters, as it is now marked, the auntient foote way to be continued from Mr Brewsters to Franc℄ Sprages, and so through Wilkm Basset℄ ground to the heigh way. The heigh way leadeing from Xpofer Wadesworths to be continued through Francis Sprage and Wilkm Bassets, being his garden or orchard to the east side. Also, we allowe a heigh way from the cutt betweene Wilkm Basset℄ & Francis Sprage, to goe to \*Ducksborrow towne; the heigh way to be continued from Wilkm Basset℄ garden or orchard, through John Washburnes ground, to Wilkm Palmers gate, as it now is, and so along through Peeter Browne ground, by the outeside of which we allow a way to the marsh, and vp to the woods; the way still to passe by Henry Howland℄ house, leaueing it on the east side, so keepeing the old way through the marsh to Mr Aldens house, and from thence through a valley w<sup>ch</sup> leadeth to the corner of Phillip Delanoys feild, so to passe to Edward Bum-pas house, and fourty foote to be allowed aboue his house straight to Rowland Leyhornes house, & so passinge aboue the house to Greenes Harbor path. The vpper path also to be allowed as marked from Mr Howlands.

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GOVNO<sup>r</sup>.

[\*114.]

To the Elec Riuer, from Plymouth.

The wayes now in vse to Wellingsley bridge, and so the creeke, where wee allowe fiftie foote from the banke, & from the corner at Raph Wallens. The vpper way to Thomas Clarkes still; the lower way from Raph Wallens right out to Holmans Rock; allowed fourty foote on the west side, and so straight to Manasseth Kemptons ground, whose fence is to be remoued twenty foote inward, and so passing betweene two rocks at the brooke, straight to Edward Banges, leaueing his house west, and so along, leaueing Nicholas Snowes house east, & and so to Mr Hopkins house, leaueing it east, and so vp the valley to Thomas Clarkes vpper stile, the foote way to be continued from Mr Hopkins, in the old path, belowe Thomas Clarkes, to the heigh way. The heigh way from Thomas Clark℄ stille to passe betweene his house and his hoggs coate downe to George Soules, next the riu<sup>r</sup>, and the said Georg to allow a sufficient way from thence off the riuer by a bridge, and so to another



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heighway allowed for that neighbourhood; to the w<sup>ch</sup> neighbourhood we allow a way from M<sup>r</sup> Hopkins house downe to a p<sup>l</sup> that lead<sup>l</sup> to the fishing poynt; from whence wee allow a way to Robert Bartlett<sup>l</sup>, leaueing his house east, and so alonge, leaueing Thomas Little<sup>s</sup> east, & M<sup>rs</sup> Warrens west, and so to Richard Churches, leaueing his house on the west side; so to a place of com<sup>on</sup> ground, which is still to be left betweene.

7 June.

[\*116.]

*\*At the Gen<sup>all</sup> Court of o<sup>r</sup> Sou<sup>eraine</sup> Lord, the Kinge, holden at New Plymouth the vij<sup>th</sup> Day of June, in the xij<sup>th</sup> Yeare of the Raigne of our Sou<sup>eraine</sup> Lord, Charles, by the Grace of God of England, Scotland, France, & Ireland, Kinge, Defendor of the Fayth, &c.*

BEFORE William Bradford, gent., Go<sup>vern</sup>or,      Captaine Miles Standish,  
Edward Winslowe,      Tymothy Hatherley, and  
Thomas Prence,      John Jenney, gent<sup>l</sup>men,

justic<sup>l</sup> of the peace of o<sup>r</sup> sou<sup>eraine</sup> lord the kinge, and Assistant<sup>l</sup> in the go<sup>vern</sup>ment.

**E**XECUC<sup>ON</sup> is graunted against M<sup>r</sup> John Browne, at the suite of Frauncis Cooke, vpon the verdict reco<sup>l</sup>ed against him.

It is concluded and enacted by the Court, that the colony of New Plymouth shall send forth ayd to assist them of Massachusett<sup>l</sup> Bay and Co<sup>n</sup>ectacutt in their warrs against the Pequ<sup>in</sup> Indians, in reveng of the innocent blood of the English w<sup>ch</sup> the s<sup>d</sup> Pequins haue barbarously shed, and refuse to giue satisfac<sup>on</sup> for.

It is also enacted by the Court, that there shalbe thirty p<sup>sons</sup> sent for land service, and as many others as shalbe sufficient to mannage the barque.

Leiftennant William Holmes is elected to goe leader of the said company.

M<sup>r</sup> Thomas Prence is also elected by lott to be for the counsell of warr, and to goe forth w<sup>th</sup> them.

M<sup>r</sup> John Lathrop, pastor of Scituate, Thomas Hill, Francis Sprage, and Georg<sup>e</sup> Bower were admitted freemen, and tooke their oaths.

[\*117.] *\*The Names of the Souldiers that willingly offer themselues to goe vpon the s<sup>d</sup> Service, w<sup>th</sup> M<sup>r</sup> Prince & the Leiften<sup>t</sup>.*

Voluntaries.

Thomas Clarke,  
Richard Church,

Georg<sup>e</sup> Soule,  
Samuell Jenney,

|                                          |                           |
|------------------------------------------|---------------------------|
| Constance Southerne,                     | Thomas Redding,           |
| John Barnes,                             | Loue Brewster, or         |
| Mr Nathaniel Thomas & his mann,          | Joseph Robinson, his man, |
| Mr Goarton,                              | Edward Holman,            |
| John Cooke, if his famyly can be puided, | Wiltm Paddy,              |
| Mr Steephen Hopkins,                     | John Hearer,              |
| John Heyward,                            | Richard Clough,           |
| Thomas Williams,                         | Henry Ewell,              |
| Nicholas Presland,                       | Joseph Biddle,            |
| Thomas Pope,                             | Wiltm Tubbs,              |
| Phillip Delanoy,                         | George Kennerick,         |
| Francis Billington,                      | Thomas Halloway,          |
| Henry Willis,                            | John Irish,               |
| Perregine White,                         | John Jenkins,             |
| Caleb Hopkins,                           | Jacob Cooke,              |
| Samuell Nash,                            | Giles Hopkins,            |
| Robte Mendall,                           | John Phillips,            |
| Henry Sampson,                           | Thomas Goarton.           |

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GOŨNO<sup>rs</sup>.

Such as will goe if they be prest.

|                  |              |
|------------------|--------------|
| Mr Thomas Hill,  | James Coale. |
| Thomas Boardman, |              |

\*It is also enacted by the Court, that Mr Hopkins and John Winslow for the towne of Plymouth, Mr Howland and Jonathan Brewster for the towne of Ducksborrow, and Mr Gilson and Edward Forster for the towne of Scituate, shalbe added to the Goŭnor and Assistant℥ to asesse men toward℥ the charges of the souldiers that are to be sent forth for the ayde of the Mattachusett℥ Bay and Connectacutt. [\*118.]

The P<sup>r</sup>sentment℥ of the Grand Enquest.

|                                                                                     |                      |                  |
|-------------------------------------------------------------------------------------|----------------------|------------------|
| Edward Forster, of Scituate, for selling lesse then a Winchester                    | } xij <sup>d</sup> . | P <sup>a</sup> . |
| quart for ij <sup>d</sup> , in regard it was ignorantly done, the fyne was assessed |                      |                  |
| but at . . . . .                                                                    |                      |                  |
| James Coale, of Plymouth, for the like, but not of ignorance, . .                   | x <sup>s</sup> .     | P <sup>a</sup> . |

There is tyme giuen to Scituate and Ducksborrow to make their pound℥ in vntill the next Court, and for their stocks vntill this tyme twelue months; and if they faile in either at the s<sup>d</sup> tymes limmitted, then to be fyned by the Court for their default℥.

The like liberty is graunted to Plymouth for a pound makeing.

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GOV<sup>R</sup>.

It is also agreed by the bench that all that haue not brought in their eare marks of their cattle betwixt this and the next Court shalbe fyned in default thereof at the descretion of the bench.

Mr Tilden is adjudged by the Court to pay Henry Ewell tenn shillings for summoning him to the Court, and had not entred an action against him.

[\*119.]

\*It is enacted by the Court, that if any man haueing any p̄cells or vessells of herings at the weare growing noysome, and shall lett them remayne there one day after they shalbe warned thereof, the p̄tie so delinquent shall forfait ten shillings for the said p̄cell of hearings, be it firkin, barrell, or hodshead, or any other vessell, and to haue no more hearings vntill they haue payd the fyne.

Whereas Wil<sup>m</sup> Hatch, of Scituate, is p̄sented for an eneroachment vpon a peece of ground on this side the riuer w<sup>th</sup>out lycence of this Court, it is therefore enacted by the Court that the said Wil<sup>m</sup> Hatch shall reape the eropp therevpon this yeare onely, and leaue the land, w<sup>ch</sup> is the mulct layd vpon him for his p̄sumption therein.

Whereas the trade of beauer, &c, is now likely to goe to decay, in regard that they w<sup>ch</sup> haue had it will not any longer hold yt, the Court hath referred it to the Gov<sup>r</sup>nor and Assistant<sup>l</sup> to advise and consider of a way and course how the said trade may be vpholden for the good of the whole eolony; and for the better advisement therein haue joyned to the Gov<sup>r</sup>nor and Assistant<sup>l</sup> Mr Hopkins, Mr Atwood, Mr Done, Thomas Willet, & John Winslow for Plymouth, Mr John Howland and Jonathan Brewster for Ducksborrow, and Josias Winslow for Scituate; and what way and course they shall agree and conclude vpon, the whole eolony doth consent vnto.

It is enacted by the Court, that Ducksborrow shall become a towneship, and vnite together for their better securitie, and to haue the p<sup>r</sup>veledges of a towne; onely their bounds & limmit<sup>l</sup> shalbe sett and appoynted by the next Court.

It is also ordered by the Court that there shalbe a guard of twelue musketiers to attend the pson of the Gov<sup>r</sup>nor on the Lords day, and other tymes when it shalbe required.

[\*120.]

\*Whereas, according to the order of the Court, the Gov<sup>r</sup>nor and Assistant<sup>l</sup>, w<sup>th</sup> the help of Mr Hopkins and John Winslow for the towne of Plymouth, Mr Howland and Jonathan Brewster for the towne of Ducksborrow, and Mr Gilson & Edward Foster for the towne of Scituate, haue mett together & considered of the charge in setting forth the souldiers, and fynd that it will amount vnto the sume of two hundred pound<sup>l</sup>, the w<sup>ch</sup> is appoynted & concluded to be payd in manner following, viz<sup>t</sup>: one hundred pounds by the towneship of Plymouth & the liberties thereof, fifty pounds by the towneship of Duckborrow, and thother fifty pound<sup>l</sup> by the towneship of Scituate.

A warrant was made to Mr Hatherley & the inhabit℥ of Scituate p̄sently to make an equall assessment whereby the said sūme may be p̄sently made vp for the p̄sent expedition.

xxij<sup>th</sup> June, 1637. Thomas Butler, of Ducksborrow, laboř, ac-  
knowledgeth to owe vnto o<sup>r</sup> soūaigne lord the King, &c, to  
levyed, &c, . . . . . } lxxx<sup>li</sup>.

1637.

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22 June.

John Done, of Plymouth, gent., as his suretie, . . . . . xi<sup>li</sup>. P<sup>d</sup> all. Releas<sup>d</sup>.

The condiçōn that Thomas Butler shall keepe the peace towards our soū-  
aigne lord the King, & all his leige people, & especially toward℥ Sanneret B.,  
and appeare at the next Geñall Court to be holden for this goūment, and not  
deſt the same w<sup>th</sup>out lycence; that then, &c.

July xij<sup>th</sup>, 1637. Marke Mendall, of the Eele Riuer, laboř, }  
acknowledgeth to owe vnto o<sup>r</sup> soūaigne lord the King, &c, to be } lxxx<sup>li</sup>.  
levyed, &c, . . . . . }

12 July.

Richard Church, of the same, yeoṃ, his surety, . . . . . xi<sup>li</sup>.

Released.

The condiçōn that the said Marke Mendall shalbe of the good behauior  
toward℥ our soūaigne lord the King, & all his leigh people, & appeare at the  
next Geñall Court to be holden for this colony, & not deſte the same w<sup>th</sup>out  
lycence; that then, &c.

July xij<sup>th</sup>, 1637. John Richards, of the Eele Riuer, laboř, ac- }  
knowledgeth to owe vnto o<sup>r</sup> s<sup>d</sup> soūaigne lord the Kinge, &c, to be } xl<sup>li</sup>.  
levyed, &c, . . . . . }

12 July.

Thom. Little, of the same, yeoṃ, his surety, . . . . . xi<sup>li</sup>.

Released.

The condiçōn that the said John Richard℥ shall keepe the Kings peace  
toward℥ o<sup>r</sup> said soūaigne lord the King, & all his leigh people, and especially  
toward℥ Marke Mendall, and appeare at the next Geñall Court to be holden  
for this colony, and not deſte the same w<sup>th</sup>out lycence; that then, &c.

\*Thomas Pope and Anne Fallowell were marryed the xxvij<sup>th</sup> of July,  
1637, before the Goūnor.

28 July.

[\*122.]

*At a Court of Assistant℥ held the third of July, in the xiiij<sup>th</sup> Yeare of  
the Raigne of o<sup>r</sup> sou<sup>a</sup>igne Lord, Charles, &c.*

3 July.

TENN acres of lands are graunted to Thomas Burges, lying on Ducksbor-  
row side, bounded as followeth, viz<sup>t</sup>: haueing a common marsh on the  
south side, the lands of Wil<sup>m</sup> Basset on the east side, the lands of Mr John

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3 July.  
BRADFORD,  
GOVERNOR.

Vincent on the north side, and the commons towards the woods on the west side; to have and to hold the said lands vnto the said Thomas Burges, his heires and assignes foref, & to their onely proper vse and behoofe foref.

6 August.  
[\*124.]

*\*At a Court of Assistantℓ, held the vj<sup>th</sup> of August, in the xiiij<sup>th</sup> Yeare of the Raigne of o<sup>r</sup> Souaigne Lord Charles, &c.*

**W**ILLIAM MORRIS, of Royston, in the county of Hartford, butcher, by his indenture beareing date the fourth day of Aprill, in the xiiij<sup>th</sup> yeare of King Charles, &c, bound to Wilm Collier, gent, for fve yeares next ensuing after the date of the said indenture, w<sup>th</sup> diuers other couenantℓ & condiçons on both ptℓ to be pformed, as by the said indenture it doth and may more plainly appeare: Now, the said Wilm Morris is contented and agreed, w<sup>th</sup> consent of the s<sup>d</sup> M<sup>r</sup> Collyer, to dwell and abide as a servant w<sup>th</sup> Loue Brewster, of Ducksborrow, yeofm, for & during all the residue of the said fve yeares yet vnexpired, the said Loue Brewster pformeing such condiçons to the s<sup>d</sup> Wilm as on his pt are to be pformed, as also the said Wilm Morris seruing the said Loue as his m<sup>r</sup> the residue of the said terme.

John Allexander & Thomas Roberts were both exāned and found guilty of lude behaviour and uncleane carriage one w<sup>th</sup> another, by often spendinge their seede one vpon another, w<sup>ch</sup> was proued both by witnesse & their owne confession; the said Allexander found to haue beene formly notoriously guilty that way, and seeking to allure others therevnto. The said John Allexander was therefore censured by the Court to be seuerely whipped, and burnt in the shoulder w<sup>th</sup> a hot iron, and to be ppetually banished the gouernment of New Plymouth, and if he be at any tyme found w<sup>th</sup>in the same, to bee whipped out againe by the appoyntment of the next justic, &c, and so as oft as he shall be found w<sup>th</sup>in this gouernment. W<sup>ch</sup> penalty was accordingly inflicted.

Thomas Roberts was censured to be severely whipt, and to returne to his m<sup>r</sup>, M<sup>r</sup> Atwood, and serue out his tyme w<sup>th</sup> him, but to be disabled hereby to enjoy any lands w<sup>th</sup>in this goument, ‡except hee manefest better desert.‡

John Derby is graunted threescore acres of landℓ at Mounts Hill, if yt shalbe found convenient vpon view to be taken thereof by M<sup>r</sup> Edward Winslow & M<sup>r</sup> John Jenney.

‡Edward Dotey is to haue the like there also, if it be thought fitt vpon their view as aforesaid.‡

William Paddy is graunted a garden place next to Thomas Willetℓ, on the east side.

*\*At a Court of Assistant℄, held the xxj<sup>th</sup> August, in the xiiij<sup>th</sup> of  
King Charles, &c.* 1637.

21 August.  
BRADFORD,  
GOVERNOR.  
[\*125.]

JOHN BUNDY was exāned and found guilty of lude behavio<sup>r</sup> & vnciuill carriage towards Elizabeth Haybell, in the house of her m<sup>r</sup>, M<sup>r</sup> Wiltm Brewster, and is therefore adjudged to be seuerely whiped, w<sup>ch</sup> was executed vpon him accordingly.

Whereas, the fourteenth day of Septemb<sup>r</sup>, 1637, Mathew Osborne, by his indenture beareing date the third day of May, in the xiiij<sup>th</sup> yeare of his maties now raigne, &c, hath bound himself apprentice to John Reade, of Waymouth, for the terme of six yeares next after the date of the said indenture, w<sup>th</sup> diuers other couenant℄ on both pts to be pformed, contained & expressed in the said indenture. Now, the said John Read, for and in consideraçon of the sume of eight pounds to him in hand payd by John Done, of New Plymouth, hath, with & by the consent of the s<sup>d</sup> Mathew Osborne, put him ouer to the said John Done, to serue all the residue of his tyme, according to the s<sup>d</sup> indenture.

*\*At a Court of Assistant℄, held the second of Octob<sup>r</sup>, in the xiiij<sup>th</sup>  
Yeare of the Raigne of our Sou<sup>raigne</sup> Lord, Charles, of Eng-  
land, &c, 1637.* 2 October.  
[\*126.]

IT is graunted by the Court that M<sup>r</sup> John Atwood, Thomas Armitage, and John Shawe, to haue enlargement of lands next vnto the lands abutting aboute their lotts at Playne Dealeing, to the northward, w<sup>ch</sup> lands are to be first viewed, and afterwards to be deuided to them.

‡Tenn acres of lands are graunted to M<sup>r</sup> John Atwood, lying from Winslowes Walk northward towards the Cedar Swampe, to lye to his house in Plymouth, and to be therew<sup>th</sup>all used, and not sould from it so long as the house shalbe inhabited.‡

‡Tenn acres of lands are graunted to M<sup>r</sup> John Done, lying in the same place, northward from Winslowes Walk toward℄ the Cedar Swampe, to belong to his house at Plymouth, & to be therew<sup>th</sup>all vsed, and not sould from it.‡

‡Seauen acres of lands are graunted to Georg Russell, lying in the same place, to belong to his house to be built in Plymouth, and not to be sould from yt.‡

1637.

2 October.  
BRADFORD,  
GOVERNOR.

One hundred acres of lands are graunted to M<sup>r</sup> John Done, lying at Joanes Riuer, to haue & to hold to him and his heires foreuer.

The two lotts of lands on Ducksborrow side, formly graunted to Christopher Wadsworth, containeing fourty acres and vpwards, ranging north & northwest, four acres in length, from the lot of Job Cole to the brooke leading to Mortons Hole in breadth, and lying to the lott of the s<sup>d</sup> Job Cole in the east, & to the s<sup>d</sup> brooke leading to Mortons Hole in the west, and to the seaward or marshes in the north, and to the common lands in Ducksborrow aforesaid in the south — the ouerplus of the said fourty acres are allowed the said Christopher in considera<sup>o</sup>n of some p<sup>t</sup> of his said lotts, w<sup>ch</sup> were taken from him to make a common feild, all w<sup>ch</sup> said lands were viewed by Captaine Miles Standish and Jonathan Brewster, and are this day confirmed by the Court, as they are now bounded vnto the said Christopher Wadsworth, his heires & assignes fore<sup>u</sup>: To haue & to hold the said lands, to him & his heires for euer, and to his & their ownely pp use & behoofe for e<sup>u</sup>.

Twenty acres of lands are graunted to John Vobes, lying at Greens Harbors Payth.

[\*127.] \*Twenty acres of lands are graunted to Georg Partridg, lying at Greenes Harbor Payth.

Twenty acres of landℓ are graunted to Wil<sup>m</sup> Merick, lying at Greenes Harbor Payth.

Tenn acres of landℓ are graunted to Edmond Hunt, lying acrossse to Greenes Harb<sup>r</sup> Payth.

Tenn acres of lands are granted to Edward Hall, lying crosse to Greenes Harb<sup>r</sup> Payth.

Tenn acres of lands are graunted to John Tisdall, lying crosse to Greenes Harbor Payth, haueing the co<sup>m</sup>on lands on the east and west sides, the lands of Georg Hall lying on the south side, and the lands of Edward Hall lying on the north side.

‡Tenn acres of lands are graunted to Georg Hull, lying crosse to Greenℓ Harbor Path.‡

Ten acres of vplands are graunted to Edmond Hawes, lying crosse Greens Harbor Path, next to Wil<sup>m</sup> Mullens on the south side.

[\*128.] \*Lands to erect a house vpon and a garden place are graunted to Raph Goarame, of some p<sup>t</sup>e of the waste grounds about Edmond Bumpas, or Philip Delanoys house.

‡Seauen acres of lands are graunted to Wil<sup>m</sup> Hodgkinson vpon the north side of Winslowes Walk, towardℓ the Cedar Swamp, where M<sup>r</sup> Atwood & M<sup>r</sup> Done haue landℓ.‡

A proporcion of land is graunted to John Carew, about the land℥ graunted to Robte Mendall, contayneing x acres.

‡A garden place is graunted to Richard Wright, by John Barnes house, to build vpon.‡

Fourty acres of land are graunted to Phillip Delanoy, lying on Duxborrow side, rangeing in length east and west, and breadth north and south, haueing the marsh at the farr end of Duxborrow lying on the north side, and the lands of Mr John Alden lying on the south side, the sea on the east side, and the lands of Edward Bumpasse on the west side : To haue and to hold the said land℥ to the said Phillip, his heires and assignes foref, & to his & their pper vse and behoofe foref.

1637.

2 October.  
NEW  
PLYMOUTH,  
BRADFORD,  
GOVN.

*\*At a Geñall Court of oʳ Souʳaigne Lord the King, held at New Plymouth afores<sup>d</sup>, the second Day of Octobʳ, in the xiiij<sup>th</sup> Yeare of the Raigne of our Souʳaigne Lord, Charles, by the Grace of God, of England, Scotland, France, & Ireland, King, Defendor of the Fayth, &c.*

2 October.

[\*130.]

BEFORE Wilm Bradford, gent, Goſ,  
Edward Winslow,  
Thomas Prince,  
Wilm Collyer,

Captaine Miles Standish,  
John Alden,  
Tymothy Hatherley, &  
John Jenney, gent.,

And Assistant℥, &c.

**W**ILLM GILSON, of Scituate, is fyned xx<sup>s</sup> for his non appearance vpon the grand inquiry, whereby his maties service might be hindred. The fine is remitted by order of the Court held in March 6<sup>th</sup>, 1637.

Mr John Vincent admitted a freeman this court, & sworne.

Whereas diuers were appoynted to take a view of the meadow grounds betwixt the Eele Riuer and South Riuer, that there might be an equall diuision of them to eich man, and fynding the same by estimacon to amount vnto fue hundred acres, or thereabouts, the Court doth order, that Mr Wilm Brewster, Mr Steephen Hopkins, Mr John Done, and John Winslowe, for the towne of Plymouth, Edward Banges for the Eele Riuer, Mr John Browne for Joanes Riuer, and Jonathan Brewster and Edmond Chaundler for Ducksborrow, shalbe added to the Goſnor and Assistant℥, to agree vpon an equall course for the diuision of them, and to depute some certaine psons afterwards to make the said diuision.



**1637.**

2 October.  
BRADFORD,  
GOVERN<sup>r</sup>.

It is enacted by the Court that the graunt of lands at Scituate, made to M<sup>r</sup> Tymothy Hatherly, M<sup>r</sup> Andrewes, M<sup>r</sup> Sherley, & M<sup>r</sup> Beauchamp, shall extend three miles vp into the woods from the heigh water marke, provided that vpon the view of M<sup>r</sup> Prince & M<sup>r</sup> Collyer, it doe not too much pjudice the towne of Scituate.

It is enacted by the Court, that the milner of Scituate shall not take aboute the twelfth part for the toule of grinding corne.

Presentment℥ by the Grand Inquest.

M<sup>r</sup> Stephen Hopkins, first p<sup>s</sup>entment, (for suffering men to drink in his house vpon the Lords day, before the meeting be ended, and also vpon the Lords day, both before & after the meeting℥, servant℥ & others to drink more then for ordinary refreshing) is respited vntill the next Court, that the testimony of John Barnes be had therein.

M<sup>r</sup> Steephen Hopkins, p<sup>s</sup>ented for suffering servant℥ and others to sit drinkeing in his house, (contrary to the orders of this Court,) and to play at shouell board, & such like misdemeanors, is therefore fined fourty shillings.

A warrant is to be directed to the constable of Plymouth to apphend Abraham Hooper, al<sup>s</sup> Pottle, to answere for takeing of fish out of Georg<sup>e</sup> Watsons boate vpon the Lord's day w<sup>th</sup>out his consent.

[\*131.] \*Abraham Pottle, al<sup>s</sup> Hooper, Walter Deuell, Webb Adey, and Thomas Robert℥ are p<sup>s</sup>ented for disorderly liucing, & therefore to be required to giue an account how they liue.

Samuell Chaundler is to be warned to appeare at the next Court to answere for shooteing off three guns in the night tyme, as if were an alarum.

2 November. Constant Southwood and Elizabeth Collyer married the second of Nouemb<sup>r</sup>, 1637.

9 November. William Tubbs and Mercy Sprague married the ninth of Nouemb<sup>r</sup>, 1637.

William Corrannell oweth o<sup>r</sup> soſaigne lord the King x<sup>li</sup> sterl.

The condiçõn that the said William shall frame & p<sup>f</sup>er, or cause to be framed and p<sup>f</sup>erred, two bills of indictment at the next Genall Court to be holden for this goũment against Edward Shaw as principall, and Marke Mendall as accessary, for the felonious takeing of certaine money priuily from the pson of the said William ; that then, &c.

*\*At a Court of Assistant℥ held at New Plymouth, the fourth Day of December, in the thirteenth Yeare of his Ma<sup>ties</sup> now Raigne, &c.* 1637.

4 Deeember.

BRADFORD,  
GOVN<sup>R</sup>.

[\*132.]

BEFORE Wilkm Bradford, gent., Gouen<sup>r</sup>,      Captaine Miles Standish, &  
Edward Winslow,                              John Alden,  
Thomas Prince,  
Gentlemen, justic of o<sup>r</sup> said soūaigne lord the Kinge, &c, 1637.

**E**DWARD SHAWE, of Ducksborrow, acknowledgeth to  
owe o<sup>r</sup> soūaigne lord the Kiñ . . . . . xl<sup>li</sup> sterl.

Released.

Thomas Clarke, of the Ele Riuer, yeom., . . . . . xx<sup>li</sup> sterl.

The condiçon is, that, if the said Edward Shawe shall psonally appeare at the next Geñall Court, to be holden for the goūment of New Plymouth, to answere to all such matters as on his ma<sup>ties</sup> behalf shalbe objected against him concerneing the felonious takeing of certaine money from the person of Wilkm Cornelly priuily, and abide the further order of the Court, and not dep<sup>te</sup> the same w<sup>th</sup>out licence, that then, &c.

Marke Mendloue, of the Ele Riuer, carpenter, oweth the

King . . . . . xl<sup>li</sup> sterl.

Released.

Richard Church, of the same, carpenter, . . . . . xx<sup>li</sup> sterl.

The condiçon that if the said Marke Mendall doe psonally appeare at the next Geñall Court, to be holden for the goūment of New Plymouth, to answere to all such matters as shalbe objected against him concerning the felonious concealeing of the foresaid felony, coṃitted by the s<sup>d</sup> Edward Shawe, and abide the further order of the Court, and not dep<sup>te</sup> the same w<sup>th</sup>out lycence, that then, &c.

Tenn acreses of lands are graunted vnto M<sup>r</sup> John Done, lying about Web old feild toward the Fresh Lake, & to range along the heigh way.

M<sup>r</sup> John Derbys forṃ graunt at Mounts Hill is confirmed.

Edward Dotey and Tristram Clark, his father in law, are to take Josiah Winslow, Nathaniell Sowther, & Josuah Pratt, and to view a ꝑcell of land by M<sup>r</sup> John Derbies graunt at Mounts Hill, that vpon their report thereof to the Goūnour and Assistant℥, they may haue ꝑcells thereof graunted them.

A garden place is graunted to Georg Soule, on Ducksborrow side, by Samuel Nashes, to lye to his ground at Powder Poynt.

\*M<sup>r</sup> Raph Smyth and William Fallowell are to haue pportions of land to their houses in Plymouth, out of the lands lyinge betwixt the towne of Plymouth and the new feild reserueing a portion for the milne there. [\*133.]

1637.

4 December.  
BRADFORD,  
GoŮN<sup>r</sup>.

A garden place is graunted to George Russell in the neighborhood by Mr John Weeks, and to haue that pcell of land lying on Woberry Playne, he lately bought of Richard Wright, to be made vp seauen acres, and to be to him and his heires foreuer.

Thomas Atkinson is graunted to enlarge his garden place at his now dwelling house towards the brook side.

Fourty acres of lands are graunted to Richard Church, at the head & on the south side of the Eele Riuer Swampe, to haue & to hold to him and his heires foreuer.

The pcell of land containeing about 60 acres, lying at the Eele Riuer, in a place there called the Whoop Place, formerly graunted to Thomas Clarke, is now confirmed to him and his heires foreuer, and is to be layd forth so as it may be least pjudiciall to Thomas Little, Robte Bartlett, M<sup>rs</sup> Warren, & the neighbourhood there.

A garden place is graunted to John Wood by Josuah Pratts, and to abutt north and south.

All that surplusage of lands lyinge at the ends of M<sup>r</sup> Wilm Brewsters & Francis Eatons lotts, on Ducksborrow side, is graunted vnto Captaine Miles Standish, in consideraçõ of the want of lands he should haue had to his pportion.

[\*134.]

\*One hundred acres of lands, are graunted to M<sup>r</sup> Thomas Burne, lying at Greenes Harbör, vpon condiçõ that the said farme shall belong to the towne of Plymouth, and to pay his pporçõ of such charges as may accedentially fall vpon it for the purchase thereof, w<sup>th</sup> said lands are to be viewed and layd forth for him from his house to the seaward.

A garden place also in Plymouth, to build vpon, is also graunted vnto the said M<sup>r</sup> Thomas Burne.

One hundred acres of lands, also lying at Greenes Harbour, are graunted vnto Josias Winslow, vpon the same condiçõs that M<sup>r</sup> Burnes is, and to lye next to him.

Fourty acres of lands are graunted to M<sup>r</sup> John Howland, lying at the Iland Creeke Pond at the western end thereof, w<sup>th</sup> the marsh grownd that he vseth to mow there.

An enlargement of lands at Stony Brook is graunted to M<sup>r</sup> William Bradford, to be viewed and layd forth in conveyent place for him, by two of the Assistants, and to adjoyne to the lands he hath there already.

Seauen acres of lands are graunted to Gyles Ricard, lying on the south side, next to the lands graunted formlly to James Davis, to lye his house in Plymouth, and not to be sould from yt, but when the house shall not be habitable to returne to the towne againe.

Seaucn acres of lands are graunted to John Barnes, lying on the north side, next to the lands formly graunted to James Davis, to lye to his house at Plymouth, & not to be sould from it, but when the house shall not be habitable to returne to the towne againe.

1637.

4 December.  
BRADFORD,  
GoũN<sup>r</sup>.

\*M<sup>r</sup> Edward Winslow haueing formly a graunt of diuers lands at or vpon a neck of land called Green Harbor Neck, (alīs) Carsewell, the said graunt was confirmed, together w<sup>th</sup> all and singuler the vpland vpon the said neck, & seūall branches thereof, bounded & marked by M<sup>r</sup> Thomas Prince & M<sup>r</sup> John Alden, Assistant to this goũment, viz<sup>t</sup>, westward vpon a marsh called Carsewell Marsh, and from thence with a smale ridg of hills to the great marsh on Greene Harbors Riuer, according to seūall marks by them made & caused to be made, eastward, abutting vpon or neere the riuer called Greene Harbour Riuer, and on the north and south side w<sup>th</sup> great marshes on either side the same, w<sup>ch</sup> lands so bounden are giuen & confirmed to the said Edward Winslow, his heires and assignes for eũ.

[\*135.]

[The two following paragraphs are subsequent entries.]

‡The bounds of the land of M<sup>r</sup> John Aldin, of Duxbery, as it was layed out by Goũ Bradford, M<sup>r</sup> Edward Winslow, Joshua Pratt, and Edward Banges. It begins, for the breadth of it, att a place where formerly an old pine tree stood, where now there is a grauelly hole, and from thence to a burnt walnutt stump, and runinge for the length, and from thence to take its length vnto a white oake tree standing a little within the land of Phillip Delano deceased, the root of that tree still remaining, and from thence for the breadth att the head of the lott, vp to the old Greens Harbor Path; on the southerly side bounded with the meddow of the said John Aldin in pte, and with the land of Experience Michell att the vper end.‡

The bounds of a p̃sell of marsh meddow, bought of Edward Hall in the yeer 1651, which meddow was p̃marily M<sup>r</sup> William Collyiars, and by him given to M<sup>r</sup> Constant Southworth, and by him sold to Edward Hall aforesaid, and bought by mee, John Alden, & is as followeth, viz.: layed out att the first for fīue acres, and bounded with a creek, coũonly called and knowne by the name of Indian Creeke; and from thence to run to the meddow land of Phillip Delano, deceased; and soe it runs on the northerly side as the riuer runs to the Mill Creike.

1637-8. *\*At a Court of Assistant℥ held the first Day of January, 1637, in the xiiij<sup>th</sup> Yeare of the Raigne of our now Sou'aigne Lord, King Charles of England, &c., before the Gov<sup>r</sup>, & all the Assistant℥ except M<sup>r</sup> Hatherley.*

1 January.  
BRADFORD,  
GOV<sup>R</sup>.  
[\*136.]

THE ouerplus on the south side of the lands besides Henry Howlands three shares is graunted vnto Henry Sampson, to belong to his lott.

James Hurst is to haue a portion of land lying about his house, to be viewed by some of the Assistant℥, and to be set forth for him, to haue and to hold to him and his heires foreuer.

Tenn acres of land are graunted to John Paybody, on Duxborrow side, lying betwixt the lands of William Tubs on the north side, and the lands of Experience Michell on the south side, and from the sea in the west, and from Blew Fish Riuer in the easte.

Whereas certaine freemen of Scituate, viz<sup>t</sup>, M<sup>r</sup> Tymothy Hatherley, M<sup>r</sup> John Lathrop, Wilm Gilson, Anthony Annable, James Cudworth, Edward Foster, Henry Cobb, Isaack Robinson, Georg Kennerick, Henry Rowley, Samuel Fuller, John Cooper, Bernard Lumberd, Georg Lewes, & Humfrey Turner, haue complayned that they haue such smale proporçons of lands there allotted them that they cannot subsist vpon them, the Court of Assistant℥ haue this day graunted them all that vpland & neck of land lying betweene the North & South Riuers, and all the meadow grounde between the said riuers from the North Riuer to the Beauer Pond, and all along by the North Riuer side, and to hold the breadth from the South Riuer trey, or passage, by a straight line to the North Riuer, so far vp into the land as it shalbe marked and set forth vnto them. Alwayes provided and vpon condiçôn that they make a towneship there, & inhabit vpon the said land℥, and that all differenc℥ betwixt them & M<sup>r</sup> Vassell or others of Scituate be composed & ended before the next Court, or if any doe then remayne, that they bee referred to the consideraçôn of the Gouvern<sup>r</sup> & Assistant℥ that their remooueall from Scituate may be w<sup>th</sup>out offence. And also prouided and vpon condiçôn that whereas a proporçon of two or three hundred acres of the lands abouesaid should haue \*beene graunted to M<sup>r</sup> Vassall, vpon condiçôn he should haue erected a ferry to transport men and cattell ouer the North Riuer at these rates, viz<sup>t</sup>, for a man a penny, for a horse foure penç, and for euery beast four pence; and to make causes or passages through the marshes on both sides the said ferry both for man & beast to passe by, w<sup>ch</sup> he was willing to doe, and to answere all

[\*137.]

damages w<sup>ch</sup> might happen in default thereof; and the Court in their judgment did conceive it more expedient to p<sup>r</sup>fer the necessities of a number before one priuate pson. That the said freemen of Scituate aboue named do so erect a ferry ouer the North Riuer, to transport men and beast℥ at the rates abouesaid, and make such passages on both sides through the marshes to the ferry, & p<sup>r</sup>uide a sufficient man to attend the same, that may answere all damages w<sup>ch</sup> may happen through his neglect thereof, or els the graunt abouesaid to be voyde.

1637-8.

1 January.  
BRADFORD,  
GOV<sup>R</sup>NOR.

A parcell of land is graunted to M<sup>r</sup> Raph Partrich, lying on Ducksborough side, containeing fourty acres & vpwards, ranging west and by north, east & by south, in length, west & by south for the breadth, one end abutting on a swamp adjacent to the west end of the lott of Wilm<sup>m</sup> Merick in the west, the other end abutting vpon a swamp adjacent to the south corner of the ground of M<sup>r</sup> Wilm<sup>m</sup> Collyer, called North Hill, in the east, and one side enclosed w<sup>th</sup> a swamp adjoyneing to the foresaid ground of M<sup>r</sup> Wilm<sup>m</sup> Collyer in the south, the other side abutting vpon the comon ground of Ducksborrow in the north.

[The following paragraph is of a more modern insertion.]

The bound of the lands of M<sup>r</sup> John Alden att Duxburrow, as it was layed forth by Go<sup>v</sup> Bradford, M<sup>r</sup> Edward Winslow, Joshuah Prate, Edward Banges, as followeth: from an old pine tree by the meddow, which meddow afterwards was allotted vnto mee, the said John Alden; and for the breadth of the said land buting vpon and ranging allong the said Blew Fish Riuer to a burnt walnut stump; and from thence for the length to a walnut tree ranging from the abouesaid stump west north west, which was sum t<sup>im</sup>e after run by Joshuah Prate and Phillip Delano, Senior, vnto a white oake tree, standing a little within the bounds of Phillip Delanoes land, there being a stump or root of that tree still remaining, and from thence for the bredth att the head, vp to Greens Harbour, old path; and on the southerly side of the land bounded p<sup>r</sup>tly with my owne meddow, and with the land of Experience Michell toward the vper end.

1637-8. \**At the Geñall Court of our Sou'aigne Lord the Kinge, held at New Plymouth aforesaid, the second Day of January, 1637, in the xiiij<sup>th</sup> Yeare of the Raigne of our Sou'aigne Lord Charles, by the Grace of God of England, Scotland, Franc, & Ireland King, Defendor of the Fayth, &c.*

2 January.  
NEW  
PLYMOUTH.  
BRADFORD,  
GOVERNOR.  
[\*138.]

BEFORE Wiltm Bradford, gent., Governour,      Capt. Miles Standish,  
Edward Winslow,      John Alden,  
Thomas Prince,      Tymothy Hatherly, &  
W<sup>m</sup> Collier,      John Jenney, gen.,  
Justiç of our sou'aigne lord the King, &c.

**M**<sup>R</sup> EDMOND FREEMAN, M<sup>r</sup> Wiltm Leuerich, M<sup>r</sup> Thomas Besbidge, M<sup>r</sup> Thomas Burne, Constance Southerne, Samuell Hinckley, John Lewes, Thomas Armitage, John Paybody, William Tubs, & Henry Bourne were sworne and admitted freemen this Court.

Edward Shaw was indicted for the felonious takeing of xv<sup>s</sup> from the pson of William Corvannell, and was found guilty, and had his censure to be seuerely whipt, and burnt in the shoulder w<sup>th</sup> a hot iron ; w<sup>ch</sup> was accordingly executed vpon him.

The jurys names that went vpon him were these :—

|                    |           |                  |           |
|--------------------|-----------|------------------|-----------|
| John Browne, gen., | } sworne. | Thomas Burne,    | } sworne. |
| Francis Cooke,     |           | James Cudworth,  |           |
| Henry Howland,     |           | Josias Winslow,  |           |
| James Coale,       |           | Samuel Hinckley, |           |
| Wiltm Paddy,       |           | John Paybody,    |           |
| Georç Kenñick,     |           | Thomas Besbidg,  |           |

Marke Mendloue was also indicted as accessory to the felony so comitted by Edward Shaw, and was found guilty, and was censured to be whipt ; w<sup>ch</sup> was accordingly pformed.

The juries names that past vpon him were these :—

|                  |           |                   |           |
|------------------|-----------|-------------------|-----------|
| John Browne,     | } sworne. | Thomas Burne,     | } sworne. |
| Francis Cooke,   |           | James Cudworth,   |           |
| James Cole,      |           | Josias Winslow,   |           |
| Anthony Annable, |           | Samuell Hinckley, |           |
| Wiltm Paddy,     |           | Thomas Besbidge,  |           |
| Georç Kennerick, |           | John Paybody,     |           |

\*Presentment℥ by the Grand Jury.

1637-8.

1. William Renolds is p̄sented for being drunck at M<sup>r</sup> Hopkins his house, that he lay vnder the table, vomitting in a beastly manner, and was taken vp betweene two. The witnes hereof is Abraham Warr, al<sup>s</sup> Hoop, al<sup>s</sup> Pottle, and sayth that there was in company Francis Sprague, Samuell Nash, & Georg̃ Partrich.

2 January.  
BRADFORD,  
GOV<sup>N</sup>.

[\*139.]

Renolds fined  
& discharged  
June 5<sup>th</sup>, 1638.  
6<sup>s</sup> 8.

2. M<sup>r</sup> Hopkins is p̄sented for sufferinge excessiue drinking in his house, as old Palmer, James Coale, & William Renolds.

John Winslow, Widdow Palmers man, } witness<sup>s</sup> & Stepheen Tracy. Acquitted.  
Widdow Palmer, Thomas Little, }

3. Wee p̄sent Francis Sprague ||fined vi<sup>s</sup> viii<sup>d</sup>|| for beating W<sup>m</sup> Halloway, Fined.  
||fined v<sup>s</sup>|| late servant to W<sup>m</sup> Basset. Witnesse, W<sup>m</sup> Halloway.

4. We p̄sent Richard Knowles for bringing a barke from Greenes Harbor on the Lord℥ day. Discharged.

5. Wee p̄sent Wiltm Corvannell for receiueing stolne goods againe. Discharged.

6. Wee p̄sent Edward Dotey for breakeing the Kings peace, in *in* assaulting Georg̃ Clarke. Fined x<sup>s</sup>.

7. We p̄sent Georg̃ Bowers for leaueing no passage for man or beast, neither by the sea side, nor for cattell through his ground.

The last will and testament of John Cole was proued this Court, vpon the oathes of John Maynard & Edward Hall.

\*William Corvannell, of Ducksburrow, yeom., acknowledgeth to . [\*140.]  
owe vnto o<sup>r</sup> soūaigne lord the King, to be levyed of his land℥, Released.

goods, &c, . . . . . xl<sup>li</sup>.

John Barnes, of Plymouth, yeom., . . . . . xx<sup>li</sup>.

Giles Rickett of the same, yeom., . . . . . xx<sup>li</sup>.

The condiçon that if the said Wiltm Corvannell shall appeare at the next Generall Court to be holden for this goūment, to answere all such matters as shalbe objected against him on his mat<sup>ies</sup> behalf, for receiueing his money againe of Edward Shaw, before he was bound to p̄secute against him for the felonious takeing of the same priuily from him, and not de<sup>p</sup>t the Court w<sup>th</sup>out lycence, &c.

It is ordered by the Court, that those w<sup>ch</sup> were chosen the last yeare to bee added to the Goūnor & Assistant℥ to assesse men to the publike charges of the colony shall also doe it this yeare; and shall likewise consider what charge will erect a prison at Plymouth, and forthw<sup>th</sup> also leavy the same, that a prison may be p̄sently erected.



1637-8. *\*At a Court of Assistant held at New Plymouth, the fift Day of February, in the xiiij<sup>th</sup> Yeare of his Ma<sup>ties</sup> now Raigne, of England, &c.*

5 February.  
BRADFORD,  
Gov.

[\*141.]

A GARDEN place at Willingsley, and seauen acres of land vpon Woberry Plaine, are graunted to John Smaley, the garden place to be that next vnto Georg Russell.

A garden place at Wellingsley, and six acres of land vpon Woberry Playne, are graunted vnto Margret Toothaker, widdow.

Fourty acres of lands are graunted vnto Thurston Clarke, and a garden place lying at the southwest end of Derbys Pond, on the south side of Monts Hill chase.

Threescore acres of lands are graunted vnto Edward Dotey, and a garden place lying at the westerne end of Derbys Pond.

George Moore is graunted xxv acres of lands and a garden place there also.

William Pontus desireth vj acres of lands to be layed to his house as neere as conveyently may be.

Thomas Little desireth to haue a graunt of lands at Mannomet Ponds, when those lands are graunted, w<sup>ch</sup> was p<sup>r</sup>mised him.

Mr Stephen Hopkins requesteth a graunt of lands towards the Six Mile Brooke.

Kenelme Winslow requesteth a graunt of lands at Greens Harbor.

Mr John Holmes desires enlargment aboute his house, & the wood to be stayed *to be stayed* from felling & carrying away.

Willm Sherman is graunted a garden place on Ducksborrow side, & fve acres of lands at Pouder Poynt, if it can be there had.

Raph Wallen acknowledgeth to haue receiued of Thomas Clark eighteene pounds, in full payment for the lands he bought of him.

[\*142.]

\*Foure acres of lands more are graunted vnto Nathaniell Sowther, & his range to goe in length to Woberry Playne.

A pcell of land containeing about foure acres are graunted to Georg Watson, lying next to Mr Thomas Hill, on the north side.

A graunt of certaine lands at Greens Harbor is made to Mr John Alden, w<sup>ch</sup>, vpon view thereof taken, is to be bounden and confirmed vnto him.

‡Mr Thomas Hill is graunted a pcell of land lying on the north side of Wellingsley Brooke, to lye to his house there, w<sup>ch</sup> is bounden in manner following, viz<sup>t</sup>: twenty pole at east end from the swamp northward, and twenty

pole at west end from the swampe on the north side Mr Weeks goathouse, northward, and to range by a straight line on the north side in length from the head of the acres (through w<sup>ch</sup> the Eele Riuer Payth goeth) w<sup>th</sup>in a pole of Mannamett Payth.‡

1637-8.

5 February.  
BRADFORD,  
Gov.

Six acres of landℓ are graunted vnto Richard Wright, lying at the west end of M<sup>r</sup> Dones landℓ, towardℓ the Fresh Lake.

All the lands remayneing betwixt M<sup>r</sup> Burnes lands at Greenes Harbour and a little creeke or certaine passage of water ruñing through betwixt the two riuers of Greenes Harbour and South Riuer, on the western side of his lands, towards Scituate Path, and the hey grounds adjoyneing to the said lands, except those hey grounds on the south side, and also a smale pcell of vpland lying on the western side of the said lands, by the side of the South Riuer, and environed w<sup>th</sup> swamps on the south west side, and the said South Riuer on the north side, are graunted vnto M<sup>r</sup> Thomas Prince, to haue and to hold vnto the said M<sup>r</sup> Thomas Prince, his heires and assignes, foref, &c.

M<sup>r</sup> Princes  
graunt.

M<sup>r</sup> Thomas Hill is graunted a pcell of lands lying on the north side of Wellingsley Brooke, to lye to his house there, w<sup>ch</sup> is bounded in manner following, viz<sup>t</sup>: twenty pole at the east end from the swamp lying on the north side of the said brook, and twenty pole at the west end from the swamp on the north sid M<sup>r</sup> Weekes goate house, and to runn in length from the head of the acres, through which the Eele Riuer Payth goeth by a straight line on the north side, w<sup>th</sup>in a pole of Mannomett Payth, and on the south side to the said brook, & through the said swamp on the backside of M<sup>r</sup> Weeks goate house.

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*\*At a Court of Assistantℓ held at New Plymouth the fift Day of March, in the thirteenth Yeare of the Raigne of our Sou<sup>er</sup>aigne Lord, Charles, by the Grace of God of England, Scotland, France, and Ireland King, Defendor of the Fayth, &c. 1637.*

5 March.  
[\*144.]

ONE hundred and fifty acres of landℓ are graunted vnto M<sup>r</sup> John Jenney, lying on the east side of the Six Mile Brooke, in the way to Namascutt, to bee a farme belonging to the towne of Plymouth, and to be called by the name of Lakenhame. And wheras there was not enough found on the east sid of the said brooke, the Court graunted vnto him a certaine necke which is bounded as followeth, viz: by Lakenham Brooke one the one side, and with a swamp on the other side, with a smale brooke in it.

1637-8.

5 March.  
BRADFORD,  
GOVERNOR.

Seauen acres of lands are graunted to M<sup>r</sup> John Atwood, lying on the north side the landℓ graunted to James Coale, the swampe to be p<sup>t</sup>, and to be ranged in length w<sup>th</sup> James Coales land.

William Bassot was deposed to the last will and testament of William Palmer, thelder, deceased this Court.

All that pcell of land remayneing of that neck of land lying on the east side of the lands lately graunted to Josias Winslow, at Greenes Harbor, are graunted to Kenelme Winslow and Loue Brewster, to be devided betwixt them, provided that Kenelme Winslow haue that p<sup>t</sup> next adjoyneing to his brother Josias, vpon the condiçons the landℓ are there graunted vpon.

Six acres & half of lands more, lying on Woberry Playne, are graunted vnto John Allen, to be added to that he hath at Wellingsley, by M<sup>r</sup> Weeks, w<sup>ch</sup> is three acres and a halfe, or thereaboutℓ, so that the whole is x acres granted him.

Fourty acres of landℓ are graunted to Josias Cooke, lying crosse to Aggowame path, betwixt foure ponds and the meadow that adjoynes to the west end of the pond w<sup>ch</sup> lyeth at the easterly end of the said lands.

Fourty acres of landℓ are graunted to Richard Sparrow, lying at the north end of the Fresh Lake, and a pcell of a marsh for meaddow lying on the south side of the Fresh Lake, to be viewed and layd forth for him.

A garden place at Wellingsley is graunted to Thomas Whitton, and seauen acres of land vpon Woberry Playne that he hath to be p<sup>t</sup> of yt.

A garden place is graunted to Richard Wright in the meadow by Thomas Atkinsons.

[\*145.]

\*Twenty acres of land are graunted to Richard Beare, lying on Duxborow side, ranging in length north and south, and in breadth east and west, and lying on the west side of Greenes Harbor path, adjoyneing to the cedar swampe.

Whereas, by a Gefall Court long since, two lotts of lands containeing fourty acres, w<sup>th</sup> all the treys, wood, & tymber groweing & being therevpon, lying at Thorp, nere Windberry Hill, were graunted to William Pontus, whereon hee hath built a house, and for the more comodious receipt of people into the towne of New Plymouth the said W<sup>m</sup> Pontus hath relinquished the said two lotts, except the quantitie of fve acres, or thereaboutℓ, w<sup>ch</sup> he hath reserued vnto himself & his heires, as the same was or is now enclosed: Now the Court hath confirmed vnto the said Wilhm Pontus the said house and lands, and hath also graunted vnto him six acres more of lands lying towards the new feild, haueing the lands of John Dunham the yeonger lying on north side, the lands of John Dunhame thelder lying on the east side, and the

commons, lying on the south and west sides : To haue and to hold all & singuler the said lands, woods, and tymber, w<sup>th</sup> all and singuler their appurtenc<sup>ℓ</sup>, vnto the said Wil<sup>m</sup> Pontus, his heires & assignes foreuer, & to the onely pper use of the said W<sup>m</sup>, his heires & ass<sup>s</sup> foref<sup>r</sup>.

1637-8

5 March.  
BRADFORD  
Go<sup>u</sup>N<sup>r</sup>.

‡Nine acres of land, be it more or lesse, are graunted vnto M<sup>r</sup> John Wicks, lying on the head of Willingsley Brooke, to haue & to hold to him his heires for euer.‡

Nine acres of lands, be it more or lesse, and a goat house, as the same are now enclosed, are graunted vnto M<sup>r</sup> John Wicks, lying on the head of Willingsley Brook, to haue and to hold to him and his heires for e<sup>ℓ</sup>.

*\*At the Ge<sup>n</sup>all Court held at New Plymouth the sixt Day of March, in the thirteenth Yeare of the Raigne of our Sou<sup>er</sup>aig<sup>n</sup>e Lord, Charles, by the Grace of God of England, Scotland, Franc, & Ireland King, Defendor of the Fayth, &c.*

6 March.  
NEW PLYM.  
[\*146.]

M<sup>R</sup> JOHN REYNOR and M<sup>r</sup> Raph Partridg were admitted freemen this Court, and were sworne according to the forme.

John Derby, John Hewes, Giles Ricard, and Nehemiah Smyth desired to be admitted freemen this Court.

M<sup>r</sup> Thomas Prince was elected Go<sup>u</sup>rnor for the yeare following.

- |                                     |   |                                       |
|-------------------------------------|---|---------------------------------------|
| 1. M <sup>r</sup> William Bradford, | } | were elected Assistant <sup>ℓ</sup> . |
| M <sup>r</sup> Edward Winslow,      |   |                                       |
| 2. Captaine Miles Standish,         |   |                                       |
| 3. M <sup>r</sup> John Alden,       |   |                                       |
| M <sup>r</sup> John Jenney,         |   |                                       |
| ‡M <sup>r</sup> Tymothy Hatherley,‡ |   |                                       |
| 4. M <sup>r</sup> John Atwood,      |   |                                       |
| 5. M <sup>r</sup> John Browne,      |   |                                       |

Whereas M<sup>r</sup> Thomas Prince is this Court elected Go<sup>u</sup>rnor, and in regard of an act of the Court requiring his residency and gouernment to be held at Plymouth, and that M<sup>r</sup> Prince was very vnwilling, and refused to vndergoe the same, yet takeing the same into further considera<sup>o</sup>n, was willing (at the request of the Court) to condiscend therevnto, vpon two condi<sup>o</sup>ns, w<sup>ch</sup> were these ; first, that M<sup>r</sup> Bradford would still continue Gouernor vntill M<sup>r</sup> Prince could p<sup>r</sup>uide himself in some measure fitt for the place, wherevnto M<sup>r</sup> Brad-

1637-8.

6 March.  
BRADFORD,  
GOVERNOR.

ford condiscended, so that it might not be longer then the next quarterly Court; and the second condiçon was, that the Court would dispence w<sup>th</sup> the said act, and that he might reside at Duxborrow, (if w<sup>th</sup>out manefest detryment he cannot remooue to Plymouth,) the w<sup>ch</sup> he p<sup>m</sup>iseth to doe if possibly he cann, and in the meane season to keepe his Quarterly Court℥ at Plymouth, wherevnto the Court did consent, laying aside the force of the said act for this p<sup>s</sup>ent, but not to be a p<sup>s</sup>ident for tyme to come.

It is also agreed vpon, by the whole consent of the Court, that M<sup>r</sup> Bradford shall continue Gou<sup>r</sup>nor vntill the next Court, and the Assistants also to continue in their places, vpon their form<sup>l</sup> oathes, vntill then, and likewise that the grand jury and constables doe continue in their places & offices vntill the next Court also.

Josuah Pratt elected constable for Plymouth.

Christopher Wadesworth elected constable for Duxborrow.

Anthony Annable elected constable for Scituate.

[\*147.]

\*M<sup>r</sup> John Vincent is elected constable for Sanditch, and was sworne to serue in the said office from this Court to thend of the next gouernment, viz<sup>t</sup>, for a yeare and a quarter.

Francis Sprague was fined vj<sup>s</sup> viij<sup>d</sup> for makeing an assault vpon W<sup>m</sup> Halloway.

William Halloway was fined v<sup>s</sup> for abuseing & pvoaking Francis Sprague.

Edward Dotey is fined x<sup>s</sup> for breakeing his mat<sup>ies</sup> peace in assaulting Georg<sup>e</sup> Clarke.

Whereas Georg<sup>e</sup> Bower was p<sup>s</sup>ented for not suffering heigh wayes through his ground, it is referred to be considered vpon, and a view to be taken by some especially appoynted that there may be wayes layd forth through his ground, so as it may be least p<sup>j</sup>udiciall to M<sup>r</sup> Bower, and yet sufficient for the passage of his mat<sup>ies</sup> subject℥.

It is agreed vpon by the Court, that Captaine Standish and M<sup>r</sup> John Alden shall, w<sup>th</sup> all convenient speede, goe to Sanditch, and set forth their bounds of the land℥ graunted to them.

Forasmuch as, by former order of this Court, M<sup>r</sup> Prince & M<sup>r</sup> Collyer were appoynted to set bounds of lands at Scituate graunted to M<sup>r</sup> Hatherley, M<sup>r</sup> Andrewes, M<sup>r</sup> Shurley, and M<sup>r</sup> Beauchamp, three miles from the heigh water mark vp into the land, w<sup>ch</sup> was in p<sup>te</sup> accordingly p<sup>f</sup>ormed by them, and they measured aboute two miles from the heigh water mark, and found that by reason of the crookednes of the riuer, the land will so wynd towards Conahasset that it will not much p<sup>j</sup>udice the towneship of Scituate,—the Court doth therefore confirme the said lands vnto the said M<sup>r</sup> Hatherly, M<sup>r</sup>

Andrewes, M<sup>r</sup> Shurley, and M<sup>r</sup> Beauchamp, to haue & to hold to them and their heires & assignes foreuer. 1637-8.

[The following entries were made subsequently to the recording of the proceedings of the Court held in March, 1637-8.]

6 March.  
BRADFORD,  
Gov.

Whereas these landes mentioned in the yeare 1633 before in this booke weare tendered vnto M<sup>r</sup> Hatherly, M<sup>r</sup> Andrewes, M<sup>r</sup> Shurly, & M<sup>r</sup> Beauchamp, vpon their axception, which afterwarde, as appeares in this booke, was axcepted, vpon notise wheareof, in the yeare 1637, the grante was more fully exprest; but because the line that we runn was not exprest, therefore M<sup>r</sup> Collier, at the appoyntment of the Courte, went to Scitewate, & on the second day of June, 1649, & fownd that the line formerly runn betweene the towne & this grante of land was weste, alowinge a poynt & half of the compase towards the north for the variation.

May the 24<sup>th</sup>, anno 1652.

Whereas wee were appointed by the Court to view a range formerly layed out by vs att Scittuate, as bounds to the lands graunted to M<sup>r</sup> James Sherley, M<sup>r</sup> Richard Andrewes, M<sup>r</sup> John Beachamp, and M<sup>r</sup> Timothy Hatherly, about which lands their hath been diuers contestations, the which view wee haue this day p<sup>r</sup>formed; and wee doe certify the Court, and all others whom it doth or may conserne, that wee found vndoubtedly the old marked trees formerly ranged by vs and M<sup>r</sup> William Varssell, and proueing the said range by M<sup>r</sup> Varssels instrument, by which it was formerly ranged by vs, the space of two miles, wee find it to bee west northerley. P<sup>r</sup>formed in the p<sup>r</sup>sence and with the healp of M<sup>r</sup> Timothy Hatherley, M<sup>r</sup> Humphry Turner, M<sup>r</sup> John Varssall, M<sup>r</sup> Richard Garrett, James Cudworth, M<sup>r</sup> Joseph Tilden, Edward Jenkins, and Peeter Collymore.

WILL<sup>AM</sup> COLLYARE,  
THOMAS PRENCE.

The Court, haueing heard and seen the review abouesaid, cannot but allow and ratifie the aforsaid linne done by their order.

*\*At a Court of Assistant<sup>℞</sup> held the second Day of Aprill, 1638, in the fourteenth Yeare of the Raigne of <sup>^</sup> Sou<sup>raigne</sup> Lord, Charles, of England, &c.* 1638.

2 April.  
[\*148.]

**J**OH<sup>N</sup> COOP, of Scittuate, is p<sup>r</sup>misid lands at Scittuate for his conuenient accommoda<sup>ç</sup>on when the differenc<sup>℞</sup> betwixt this colony and the Matta-

1638.

2 April.  
BRADFORD,  
Gov.

chuset<sup>t</sup> Bay are decided, but so as his lands be appoynted to belong to some township.

‡Two hundred acres of vpland, and a competency of meadow land<sup>l</sup> to be layd to yt, are graunted to M<sup>r</sup> W<sup>m</sup> Vassell, to keepe a ferry ouer the north, where the old Indian ferry was, and to transport men & beast<sup>l</sup> at these rates, viz<sup>t</sup>: for a man j<sup>d</sup>, & for a beast 4<sup>d</sup>, a horse and his rider 4<sup>d</sup>, and to make the way passable for man & beaste through the marshes on both sides the riuier at his owne charges, and to keepe them in repaire from tyme to tyme, & Captaine Standish & M<sup>r</sup> Alden are appoynted to set the said land<sup>l</sup> forth for him.‡

The lands that were p<sup>r</sup>portioned to M<sup>r</sup> Atwood and John Shaw are to stand as they are layd forth for them, provided thē doe not p<sup>r</sup>judice the graunt formerly made to M<sup>r</sup> Prince & M<sup>rs</sup> Fuller.

A garden place is graunted to Gabriell Fallowell in the meadow by Thomas Atkinsons, and a p<sup>r</sup>cell of fiue or six acres of the lands appoynted for the milne, (w<sup>ch</sup> M<sup>r</sup> Jenney consented vnto,) to lye to the house he is to build vpon the said garden plott, and not to be sould from it, &c. All the residue of the land<sup>l</sup> reserued for the millne, whereof the fiue or six acres afores<sup>d</sup> is a p<sup>t</sup>, is, w<sup>th</sup> M<sup>r</sup> Jennys consent, graunted to Gabriell Fallowell; and M<sup>r</sup> Jenney hath other land<sup>l</sup> graunted him in lue thereof at Lakenhame. The p<sup>r</sup>cell is bounded as followeth: from the millne brooke southward from the land<sup>l</sup> of John Dunhame thelder, & of John the yeonger westward & northward, & from the land of Will<sup>m</sup> Falloway eastward.

The land<sup>l</sup> formly appoynted to Tristram Clarke, lying by James Skiff<sup>l</sup> land<sup>l</sup>, w<sup>ch</sup> was foure acres in length and two in breath, lying on the south side M<sup>r</sup> Coomes lands, are now graunted to Will<sup>m</sup> Hodgkinson, together w<sup>th</sup> a garden place in some convenient place nere the said lands to be set forth for him.

Threescore acres of land<sup>l</sup> are graunted to Edmond Chaundler, lying on Duxborrow side, and to be layd forth for him by Captaine Standish & M<sup>r</sup> Alden, w<sup>ch</sup> was accordingly layd forth on the northeast side of the lands graunted to Moyses Symons, & ranging as his doth in length north & by east and south & by west from the marked trees.

Will<sup>m</sup> Maycumber, of Dorchester, coop, is lycensed to dwell w<sup>th</sup>in this gofment, at Plymouth or elsewhere, vpon the testimony of his good behauior hee hath brought w<sup>th</sup> him.

Henry Madesly, of the same towne, carpenter, is also lycensed to dwell w<sup>th</sup>in this colony.

[\*149.]

\*All that p<sup>r</sup>cell of land called Slowly Feild, as it is now enclosed, formly

in the tenure of Mr Edward Winslowe, is graunted to Thomas Clark, to haue & to hold the said p<sup>r</sup>miss<sup>s</sup> to the said Thomas Clark, his heires & assignes foref<sup>r</sup>.

1638.

2 April.

BRADFORD,  
Gou<sup>r</sup>.

Whereas Mr Edward Winslow hath a p<sup>r</sup>cell of land lying at the Eele Riuer, it is graunted by the Court that none shall head the said lands to come betwixt them & the Pyne Hills.

It is ordered by the Court, that there shalbe no more land<sup>l</sup> graunted about the towne vntill there be a view taken of the lands already graunted, & what more may be conveniently graunted, from hindring the passage of the cattle to the co<sup>m</sup>ons.

Mr Thomas Prence is graunted the garden place betwixt the Spring Lane and Mr John Reynors, to haue & to hold to him and his heires foreuer.

*\*At a Court of Assistant<sup>l</sup> held the vij<sup>th</sup> Day of May, in the fourteenth Yeare of the Raigne of our now Sou<sup>r</sup>aigne Lord, Charles, by the Grace of God of England, &c., 1638.*

7 May.

[\*150.]

**R**ICHARD CLOUGH desireth lands at the South Ponds, by Josias Cooke.

Anthony Snow desireth a p<sup>r</sup>cell of land, about three acres, lying on the north side of Mr Dones lands, towards the Fresh Lake.

Nathaniell Sowther desires lands towards the Six Mile Brook.

|                           |   |                                                       |
|---------------------------|---|-------------------------------------------------------|
| Josuah Pratt,             | } | desire land <sup>l</sup> towards the Six Mile Brooke. |
| Nehemiah Smyth,           |   |                                                       |
| Geor <sup>g</sup> Watson, |   |                                                       |
| Nicholas Snow,            |   |                                                       |
| John Rouse,               |   |                                                       |

Soloman Lenner is p<sup>r</sup>miss<sup>d</sup> lands on Duxburrow side, (in p<sup>r</sup>te of those due to him for his service,) in some convenient place.

One acre of land is graunted to Geor<sup>g</sup> Soule at the watering place, in lue of another acre w<sup>ch</sup> was taken from him for other vse, p<sup>r</sup>vided it be so layd forth that it be least p<sup>r</sup>judiciall to the neighbourhood there; and also that p<sup>r</sup>cell of Stony Marsh at Pouder Poynt, containeing two acres, be it moore lesse, compassed about w<sup>th</sup> the lotts of lands there graunted vnto him.

Gabriell Fallowell requesteth to haue the swamp lying on the north side



1638.

7 May.  
BRADFORD,  
GoŨN<sup>r</sup>.

the heigh way leading to Thom. Atkinsons house, w<sup>ch</sup> is to be viewed & so graunted as it shall seeme good.

M<sup>ris</sup> Fuller requesteth to be enlarged w<sup>th</sup> foure acres of lands at the New Feild.

Liberty of enlargement is graunted vnto John Winslow at the vpper end of his lot at Playne Dealeing, as farr as the lesser swamp, where they used to saw spruce trees.

An enlargement of a garden place is graunted to Josuah Pratt, to bee layd forth for him vpon view.

[\*151.]

This order is  
new drawne.

\*‡Whereas diuers of the brethren of this church of Plymouth, now ymploying lands on Duxborrow side, are to repaire to this place, by w<sup>ch</sup> meanes the neighbourhood there wilbe weakened and those there remayneing are for the most p<sup>te</sup> yeong men, the Court doth order this day vpon a petiçōn exhibited by M<sup>r</sup> Partridg, in the behalf of the neighbourhood there, that the lands on Duxborrow side shall not be disposed to any but to such new commers as M<sup>r</sup> Collyer, Mr. Partrich, Jonathan Brewster, & Wiltm Basset shall approue of to be fitt for their societie; as also the lands lying betwixt the North Riuer and the South Riuer (except those lands w<sup>ch</sup> are graunted to Captaine Standish & M<sup>r</sup> John Alden,) to be reserued for farmes for *for* such new commers as shall be thought fitt to sitt downe w<sup>th</sup> them at Duxborrow.‡

Vpon a petiçōn p<sup>r</sup>ferred to vs by M<sup>r</sup> Partrich in the behalf of the church and neighbourhood of that side, wherein they shewed the danger of the desolution of their church estate, except the Court would bee pleased to consider their necessity, and help them therein; that seing the church of Plymouth now called home their members who held much land<sup>l</sup> on that side, and they being but few, and the lands there were disposed in a great part to servants and other yeong men, from whom they could expect little help, they humbly requested that such lands as were yet vngraunted betwixt the North and South Riuer might be reserued for farmes to such fitt men as they should approue of, and might be fitt and helpfull vnto them. It was therefore graunted vnto them by the Court, that not any of those lands should be graunted but such as these foure, viz<sup>t</sup>, M<sup>r</sup> W<sup>m</sup> Collyer, M<sup>r</sup> Raph Partrich, Jonathan Brewster, and Wiltm Basset should approue of as fitt for their societie.

*\*At a Court of Assistant℞ held the fourth Day of June, in y<sup>e</sup> fourteenth Yeare of the Raigne of o<sup>r</sup> Sowaigne Lord, Charles, by the Grace of God of England, Scotland, France, & Ireland King, Defendor of the Fayth, &c.*

1638.

4 June.  
BRADFORD,  
GOV<sup>R</sup>.

[\*152.]

**I**T is ordered by the Court, that no more lands shalbe graunted on Duxborrow side vntill there be a view taken thereof, that such lands may be graunted as shalbe found fitt, not to p<sup>r</sup>judice the graunt℞ already made to the neighbourhood there.

Jonathan Brewster is graunted to haue a p<sup>r</sup>cell of land on Duxborrow side, when they are viewed.

Job Cole is p<sup>r</sup>misid the like.

Joseph Rogers is to be remembred for some lands when they are viewed.

Wil<sup>m</sup> Corvannell, of Duxborrow, lab., acknowledgeth to }  
owe o<sup>r</sup> so<sup>u</sup>laigne lord the King, to be leavyed, &c, . . . } lxxx<sup>li</sup>.

John Washburne, of the same, taylor, his surety, &c, . . . . xli<sup>li</sup>.

Released ;  
quit by p<sup>e</sup>la-  
mac<sup>n</sup>.

The condi<sup>o</sup>n is, that if thaboue bounden W<sup>m</sup> Corvannell doe appeare at the next Ge<sup>n</sup>all Court to be holden for this go<sup>u</sup>ment, and answere all such matters as on his ma<sup>t</sup>ies behalf shalbe objected against him for the felonious breakeing of the house of Ro<sup>b</sup>te Paddock, and takeing out of a chest therein xiijs viij<sup>d</sup>, and abide the further order of the Court, and not dep<sup>t</sup>e the same w<sup>th</sup>out lycence, that then, &c.

Ro<sup>b</sup>te Paddock, of Duxborrow, smyth, &c, oweth the King, &c, xli.

The condi<sup>o</sup>n, that if thaboue bounden Ro<sup>b</sup>te Paddock shall frame & p<sup>r</sup>ferr, or cause to be framed & p<sup>r</sup>ferred, one bill of indictm<sup>t</sup> at the next Ge<sup>n</sup>all Court holden for this go<sup>u</sup>ment against Wil<sup>m</sup> Corvannell, for the sus-  
pi<sup>o</sup>n of the breaking of his house, and takeing out xiijs viij<sup>d</sup> out of a chest therein, and giue euedence therevnto, as well to the grand jury as to the petty, that then, &c.

Released.

Robert Paddock is graunted the garden place next to Thomas Willet, w<sup>ch</sup> Wil<sup>m</sup> Paddy should haue had. This graunt is remitted to John Groomes.

1638. *\*At the Geñall Court held at New Plymouth the fift Day of June, in  
the fourteenth Yeare of the Raigne of our Sou'aigne Lord,  
Charles, by the Grace of God of England, Scotland, France,  
& Ireland King, Defendor of the Fayth, &c.*

5 June.

NEW  
PLYMOUTH.  
PRENCE,  
GOŪNOR.

[\*154.]

BEFORE Thomas Prence, gen<sup>t</sup>, Goŭnor, John Alden,  
Willm Bradford, John Atwood, &  
Captaine Miles Standish, John Browne, gen<sup>t</sup>,  
Justic<sup>l</sup> of o<sup>r</sup> soŭaigne lord, &c.

**M**<sup>R</sup> THOMAS PRENCE, being the last Court elected Goŭn<sup>r</sup>, was sworne  
this Court.

|                          |                                      |
|--------------------------|--------------------------------------|
| Mr William Bradford,     | } were sworne Assistants this Court. |
| Captaine Miles Standish, |                                      |
| Mr John Alden,           |                                      |
| Mr John Atwood,          |                                      |
| Mr John Browne,          |                                      |

Forasmuch as Mr Edward Winslowe & Mr John Jenney were elected  
Assistant<sup>l</sup> the last Court, and were now absent, & so could not bee sworne, the  
Court doth order that the Goŭn<sup>r</sup> and rest of the Assistant<sup>l</sup> shall administer  
the oath vnto them if they retorne hoame before the next Court.

Because that Mr Tymothy Hatherley was elected to the office of an  
Assistant the last Court, & will not take the said place vpon him, Mr John  
Browne, being the next in the number of votes, was by the geñall consent  
elected to the office of an Assistant in his stead; and for the fyne Mr Hather-  
ley is thereby lyable vnto, the Court will further consider whether the same  
shalbe esteated or noe.

Josuah Pratt stands vpon his form<sup>l</sup> oathes constable of Plymouth, and  
messenger of the colony.

Christopher Waddesworth sworne constable of Duxborrow.

Anthony Annable sworne constable of Scituate.

[\*155.]

\*Presentment<sup>l</sup> by the Grand Jury.

Censured &  
whipt.

Web Adey is p<sup>r</sup>sented for workeing vpon the Lords day in his garden.  
Witnesse, Josias Cooke, M<sup>r</sup> Raph Smyth.

John Holmes, gen<sup>t</sup>, is p<sup>r</sup>sented for keeping three swine vnringed.

Gyles Ricards is p<sup>r</sup>sented for the like for two swine.

William Lathame is p<sup>r</sup>sented for entertaineing of John Phillips into his house contrary to the acte of the Court. Jonathan Brewster, witnes. Fined 40<sup>ss</sup>. 1638.

John Stockbridge, of Scituate, is p<sup>r</sup>sented for disgracefull speeches, tending to the contempt of the go<sup>v</sup>ment, & for jering speeches to them that did reprove him for yt. Witnesse, Edward Foster & James Cudworth. 5 June.  
PRENCE,  
GO<sup>v</sup>NOR.  
Fined for yt.

M<sup>r</sup> Steephen Hopkins is p<sup>r</sup>sented for selling beere for ij<sup>d</sup> the quart, not worth j<sup>d</sup> a quart. Witness, Kenelme Winslow. Fined.

Item, for selling wine at such excessiue rates, to the oppressing & im- Fined.  
po<sup>r</sup>ishing of the colony. Kenelme Winslow & John Winslow, witnesse.

William Renolds being formly p<sup>r</sup>sented for drunkennesse, and it vpon euidence giuen it appeareth that hee was ouertaken w<sup>th</sup> drinke in some degree, was censured by the Court to pay for a fyne vj<sup>s</sup> viij<sup>d</sup>.

Web Adey, being p<sup>r</sup>sented for breach of the Saboth, as aboue, by workeing two sefall Saboth dayes, one after another, and for disorderly lueinge in idlenesse & nastynes, is censured by the bench to sitt in the stocks during the pleasure of the bench, and that if he cannot pcure himself a master that will take him into his service betwixt this and the next Court of Assistant<sup>l</sup>, that then the Go<sup>v</sup>n<sup>r</sup> & Assistant<sup>l</sup> p<sup>r</sup>vide a master for him; and for the convenient apparelling of him to be fitt for service, either to lett or sell his house & garden to any that will either take or purchase the same.

Edward Fitzrandle desireth to be admitted a freeman the next Court.

\*The Names of the Grand Inquest.

[\*156.]

|                                      |           |                                      |           |
|--------------------------------------|-----------|--------------------------------------|-----------|
| Jonathan <sup>•</sup> Brewster, geñ, | } sworne. | Francis Cooke,                       | } sworne. |
| Thomas Burne, geñ,                   |           | John Dunhame,                        |           |
| Manasseth Kempton,                   |           | Henry Howland,                       |           |
| Edward Banges,                       |           | John Cooke, Junior,                  |           |
| William Basset,                      |           | Thomas Armitage, pcut <sup>r</sup> , |           |
| Thomas Willett,                      |           | Richard Burne,                       |           |
| Wilm Paddy,                          |           | Thomas Cushman,                      |           |
| Kenelme Winslowe,                    |           | Samuell Nash,                        |           |
| ‡Georg <sup>~</sup> Bower, ‡,        |           | Josias Cooke,                        |           |
| James Hurst,                         |           | Nicholas Snowe,                      |           |
| M <sup>r</sup> Thomas Beisbidg,      |           | Henry Bourne, pcut <sup>r</sup> ,    |           |

1638. *An Inquisiçõn taken at New Plymouth aforesaid, at the Geñall Court there held, the fift Day of June, in the Yeare of our Sou'aigne Lord, Charles, by the Grace of God of England, Scotland, France, and Ireland Kinge, Defendor of the Fayth, &c., the fourteenth.*

5 June.  
NEW PLYM.  
PRINCE,  
GOVNOR.

BEFORE Thomas Prince, gent, Gouñor,      John Alden,  
Wilm Bradford,                              John Atwood, &  
Captaine Miles Standish,                  John Browne,  
Gentlemen, and Assistant℥ of the gouñment aforesaid.

WHEREBY it is manefest and appeareth by the oathes of John Done, John Barnes, Nicholas Snow, Richard Burne, Richard Sparrow, Giles Ricards, Josias Cooke, Anthony Snow, William Hiller, Richard Clough, Wilm Fallowell, Thomas Atkinson, Richard Wright, John Smaley, Walter Horton, & John Wood, honest and lawfull men of the colony aforesaid, who being sworne, and charged vpon the view taken of the body of John England, found dead vpon the flatts of the shores of Plymouth aforesaid, dilligently to enquire how the said John England came to his death, vpon their oath aforesaid, doe say that the said John England, sayleing in a canow of M<sup>r</sup> Thomas Burnes betwixt Greenes Harbor and Plymouth aforesaid, by reason of the insufficiency of the said canow, to make way in stormy weather, was ouer sett, and so the said John England was drowned. And so they say all that the said cannow was the cause of the death of the said John England, and do fynd the said cannow to be forfeited to our sou'aigne lord the Kinge, and doe apprise it at tenn shillings ster℥, and haue committed the same to the keeping of the gouñment of New Plymouth aforesaid. In witnesse whereof they haue herevnto put their hand℥, the day & yeare first aboue written, 1638.

[\*158.] \*An Answer to the Proposiçõns made by M<sup>r</sup> Lefidge & others, of Sandwiche, conc'ning the Land℥ there.

Pro: 1. Whether the vndertakers haue a full guift of the lands at Sandwiche, or whether a condiçõnall graunt onely, for the setting of such a convenient number there that may be vsefull for the common wealth, & cheify fitt for church fellowship ?

Ans: To the first we answere, for yo<sup>r</sup> terme of vndertakers, we rather put instead thereof committies, as suting more pply w<sup>th</sup> the relaçõn twixt

them and vs, their graunt being condiçonall, and not absolute ; and the trust committed to them being for the ease of the goũment, and more convenient accommodaçõn of such people as shalbe quallified according to the condiçõn and intent of the graunt, and their joynt p̃mise.

1638.

5 June.  
PRENCE,  
GOṼNOR.

Pro: 2. Whether such of them as are still at Saugust shall haue any power at all there, either to dispose of thinges, or to possesse any lands at all, in case they come not to inhabite ?

Ans: To the second we answere negatiuely ; for when they made suite to us, it was as a people streitened & p̃tending remoueall really w<sup>th</sup> all possible conveniency.

Pro: 3. Whether it may not be thought convenient to ad some others in their stead to the rest in case they come not ? such as are of y<sup>e</sup> church there, or neighbours of good report ?

Ans: To the third we answere affirmatiuely, if need require, p̃uided you make choyce of such as the goũment shall approue of, for they are but committies.

Pro: 4. Whether they may substitute any in their roomes, in case they bee necessarily called to be absent ?

Ans: To the fourth we answere as to the third.

Pro: 5. Whether if this power be abused, how it may be reformed ?

Ans: To the fift, as abuses shall arise vpon due complaint, the majes-  
trat<sup>ſ</sup> must do justice, as in other cases.

Pro: 6. Whether in p̃ticuler it be not an abuse of the power in case they should monopolize the cheife places of conveniency for lands, woods, meadowes, &c, to the p̃judice of the towne in geñall ?

Ans: To the sixt we answere, such the case may be, and the damage so great to the whole as not to be suffered ; but if the committees be faythfull and able of estate, their paynes will not be small. Now their estates must be p̃uided for, and their paynes will require more then ordinary accomodaçõn.

To the quere in the ðre, whether two townships, &c, wee answere, we made the graunt of the lands to one ; neither can there be any other w<sup>th</sup>out the allowance of the goũment ; but if the land farr of be disposed of for farmes to men of estate, we see no cause of dislike.

1638.

2 July.

NEW

PLYMOUTH.

PRENCE,

GOVERNOR.

[\*160.]

*\*At a Court of Assistantē held the 2<sup>d</sup> Day of July, in the fourteenth Yeare of the Raigne of our Souaigne Lord, Charles, by the Grace of God of England, Scotland, France, & Ireland King, Defender of the Fayth, &c.*

BEFORE Thom. Prence, gen<sup>tl</sup>, Gov<sup>nr</sup>,

Willm Bradford,

Edward Winslow,

Captaine Miles Standish,

Gen<sup>tl</sup>, Assistantē, &c.

John Alden,

John Atwood, and

John Browne,

**M<sup>r</sup> EDWARD WINSLOWE** was sworne to execute the office of an Assistant, according to the elec<sup>cion</sup> of the former Court, and the order of the last Court.

Experience Michell is graunted a little p<sup>cell</sup> of meadow lying at his land<sup>e</sup> end, (being about three quarters of an acre,) betweene M<sup>r</sup> Holmes & John Willis.

Nathaniell Sowther, John Smaley, Georg<sup>e</sup> Russell, & M<sup>r</sup> Thomas Hill request for a swamp w<sup>ch</sup> lyeth betwixt p<sup>t</sup> of some of their lands at Willingsby Brooke.

Nicholas Snow requesteth some more hey ground, and is allowed to cutt hey this yeare vpon the meadow reserued for the towne of Plymouth.

The like liberty is graunted to Manasseh Kempton & Josias Cooke.

Manasseh Kempton, Nathaniell Morton, & the rest of the neighbourhood there request enlargment at thend of their lott<sup>e</sup> where they dwell.

Georg<sup>e</sup> Partrich requesteth for a p<sup>cell</sup> of land about the Iland Creeke Pond, lying about M<sup>r</sup> Hicks ground, if hee leaue his form<sup>e</sup> graunt, & it be not p<sup>jud</sup>iciall to M<sup>r</sup> Bradford when it is viewed, to be graunted.

Joseph Rogers requesteth for land<sup>e</sup> in the same place, if it be not p<sup>jud</sup>iciall to M<sup>r</sup> Bradford.

Christopher Waddesworth requesteth a p<sup>cell</sup> of land in the woods at the head of the Great Marsh, nere M<sup>r</sup> Collyers woolf trap.

Liberty is graunted to M<sup>r</sup> Starr to cutt hey this yeare at <sup>^</sup>, or els vpon the hey ground graunted to Captaine Standish & M<sup>r</sup> Alden, and to build a house there, if he please, to winter his cattle; & the captaine & M<sup>r</sup> Alden will pay him for it what it is worth when he hath donn w<sup>th</sup> yt.

[\*161.]

\*One hundred acres of lands are graunted to M<sup>r</sup> Jonathan Brewster, lying on the west side of the mouth of the South Riuer, and on the south side

of the North Riuer, to be viewed and layd forth for him by Captaine Standish and M<sup>r</sup> John Alden ; and likewise a pcell of meadow there, to be layd forth for him vpon their report to the Court when they haue viewed the same, w<sup>ch</sup> by order of the Court, was by Cap<sup>t</sup> Standish & M<sup>r</sup> Alden layd forth for him, and haue allowed him all the meddow land that lyeth in and about the said lands vpon the said North and South Riuers, for meddowing to the said farme.

Fourty acres of vpland are graunted to Job Cole lying at Greens Harbour, next to the lands graunted to M<sup>r</sup> Thomas Prence, w<sup>th</sup> some meddow land there, to be layd to yt vpon the view of M<sup>r</sup> Edward Winslow, Captaine Standish, & M<sup>r</sup> Alden.

Three hundred acres of vplands are graunted to Captaine Miles Standish and M<sup>r</sup> John Alden, lying on the north side of the South Riuer, the breadth whereof to begin at the easterly side of the Beaver Pond, (the said pond being included,) vnto the westerly side of the little brooke next Scituate Path of the South Riuer, and to range in length vpon a norwest line on both sides, vp into the land, and all that tract of meadow lying w<sup>th</sup>in or at thend of the fore said menconed breadth.

Concerning the order of the last Genall Court about Web Ady, the Court doth order that the said Web Ady shall serue M<sup>r</sup> Thom. Prince, the Gou<sup>n</sup>or ; but if the Gou<sup>n</sup>or shall dislike him vpon tryall, that then, vpon warneing thereof giuen to the Court, the said M<sup>r</sup> Prince to be discharged of him, and the Court to take order for another master for him. And for his house and lands to be sett to them that will giue most for them ; and his goods to be inventoried by the constable, and sould to pay such debt<sup>l</sup> as he oweth, & the remaynder to be vmployed to his vse.

Richard Clough, taylor, acknowledgeth to owe the King, &c, . . . xli.

John Holmes, gen<sup>t</sup>, . . . . . xxli.

James Cole, sayler, . . . . . xxli.

The condi<sup>c</sup>on that if the said Richard Clough shall appeare at the next Genall Court to be holden for this gou<sup>n</sup>t to answere to all such matters as shalbe on his mat<sup>ies</sup> behalf objected against him conc<sup>n</sup>ing the take away a Releas<sup>d</sup>. wascoat out of a shuite he had deliuered him to make for Edward Shaw, and not dep<sup>t</sup> the Court w<sup>th</sup>out lycence, &c ; that then, &c.

\*Thomas Clarke, of the Eele Riuer, yeom<sup>n</sup>, acknowledgeth that

[\*162.]

he oweth the King, &c, . . . . . xxli.

The condi<sup>c</sup>on that if the said Thomas Clark shall frame and pfer, or cause to be framed and pferred, one bill of indictm<sup>nt</sup> against Richard Clough, Releas<sup>d</sup>. for the fraudulent takeing of a wascoate out of a suite he had to make for

1638.

2 July.  
PRENCE,  
GOV<sup>N</sup>OR.



1638. Edward Shawe, & giue evedence therevnto at the next Genall Court to be holden for this gofū<sup>nt</sup>; that then, &c.

7 July.  
PRENCE,  
GOV<sup>R</sup>NOR.

The vij<sup>th</sup> of July, 1638, George Moore couenanted w<sup>th</sup> the Gov<sup>r</sup> & Assistant℄ (that vpon condiçōn hee may haue his xxv acres of land confirmed vnto him) to keepe a suffieient cannow, or ferry, to earry passengers ouer at Joanes Riuer for the space of two yeares if need require so long, and to haue a penny a man for transportaçōn, and to make causes on both sides, that passengers may be transported at all tymes of the tyde.

Web Adey was proued to haue p<sup>r</sup>faned diuers Lords dayes by working sondry times vpon them, & had beene for the like offence formly sett in the stocks, and was now againe found guilty thereof; was censured to be seuerely whipt at the post, w<sup>ch</sup> was accordingly p<sup>r</sup>formed.

Stephen Tracy hath hired John Price for foure months; his tyme was to begin the first week in June.

7 August.  
NEW PLYM.  
[\*164.]

*\*At a Court of Assistant℄ held at New Plymouth, the vij<sup>th</sup> Day of August, in the xiiij<sup>th</sup> Yeare of his Ma<sup>ties</sup> now Raigne, of England, &c., before the Goun<sup>r</sup> & Assistant℄.*

**M**<sup>R</sup> JOHN JENNEY was sworne for an Assistant, according to the form<sup>e</sup> elecçōn, and the order of the last Genall Court.

One hundred and twenty acres of lands are graunted vnto M<sup>r</sup> Comfort Starr, lying betwixt the North Riuer & the South Riuer, and such part of it to be meadow as shalbe thought meete & conuenient, and to be viewed and layd forth by M<sup>r</sup> Edward Winslow, Cap<sup>t</sup> Standish, & M<sup>r</sup> Alden; w<sup>ch</sup> was accordingly layd forth, and rangeth west south west in length, & south south-east in bredth, and butteth vpon the South Riuer.

Thirty acres of land lying neere the Iland Creek Pond, about the head of M<sup>r</sup> Hicks land℄, are graunted vnto Georg<sup>e</sup> Partrich, to be viewed and layd forth for him by Captaine Standish, M<sup>r</sup> Howland, Johnathan Brewster, & Josuah Pratt, p<sup>r</sup>uided that it be w<sup>th</sup> as little p<sup>r</sup>judice to M<sup>r</sup> Hicks as may be.

Whereas Richard Church wanteth an acre & a half of the p<sup>r</sup>portion of meadow ground w<sup>ch</sup> was assigned him, a p<sup>r</sup>cell of meadow ground, containeing about an acre & a half is graunted vnto the said Richard Church, lying vp the riuer, betwixt the two Mannamett Pond℄, w<sup>ch</sup> is to be viewed (by those that layd forth the meadow ground) and layd forth for him; & if that

ſcell be two little to make vp his measure, the rest to be made vp at Manna-mett Pondℓ

1638.

‡Joseph Rogers is graunted to haue a ſcell of land to make him a feild or two to plant corne vpon in the place where hee desireth; and to be viewed & appoynted him by M<sup>r</sup> Bradford, that it may not too much p<sup>r</sup>judice the comons of the neighbourhood there.‡

7 August.  
PRENCE,  
GoũN<sup>r</sup>.

Liberty is graunted to M<sup>r</sup> Steephen Hopkins to erect a house at Matta-cheese, and cutt hey there this yeare to winter his cattle, p<sup>r</sup>uided that it be not to w<sup>th</sup>draw him from the towne of Plymouth.

Fourty acres of landℓ are graunted to Thomas Little, lying at the nearer end of Mannamett Pondℓ, where he mowed grasse this yeare, w<sup>ch</sup> is to be viewed & layd forth for him.

\*A ſcell of marsh ground, containeing about three or four acres, be it more or less, lying at the head of Jones Riuer Swamp, is graunted vnto M<sup>r</sup> John Browne. [\*165.]

M<sup>r</sup> John Holmes requested 10 or 12 acres of landℓ at his lotts end, to be viewed & layd him forth; as also a little ſcell of meadow at the Reed Pond.

Nicholas Snow desireth 5 or 6 acres of land lying on the north side the landℓ graunted lately to M<sup>r</sup> Atwood.

Anthony Snow desireth 3 acres.

John Joyce a ſcell of land.

Francis Goulder a ſcell of land.

Raph Hill is graunted fve acres of landℓ at Woeberry Playne, and a garden place at Wellingsley, abutting vpon the landℓ of John Allen and Margrett Toothaker, vpon the south side thereof.

Whereas Thomas Boardman, liueing incontinently w<sup>th</sup> Luce, his now wyfe, and did begett her w<sup>th</sup> child before they were marryed together, w<sup>ch</sup>, vpon exāiaçõn, was confessed by them both, the said Thom. Boardman was censured to be seuerely whipt, w<sup>ch</sup> was p<sup>r</sup>formed accordingly, and to fynd sureties for his good behau<sup>r</sup>; and that he left the child (so vnlawfully begotten) liueing in England, & bring good testimony thereof; and the s<sup>d</sup> Luce, his wyfe, to be censured when shee is deliuered, as the Bench shall think fitt.

Thomas Hallowell was co<sup>m</sup>itted because he cannot bring forth where he had a paire of red silk stockings, now shewed in the Court, w<sup>ch</sup> afterwards he confessed that he tooke out of a window of a house in Boston, & was there-vpon sent to Boston to answere the fact.

‡Concerning the order for the leighter, it is thought meet by the Court to order it as followeth, viz<sup>t</sup>:—

1638.

7 August.  
PRENCE,  
GoŭN<sup>r</sup>.

That the leighter master shall haue tenn shillings for his man & his leighter for xxiiij howers; and if in case he happen to bee wind-bound, & so occasioned to be stayed longer then three days & three nights, he shall haue but half pay, that is, 5<sup>s</sup>, day & night, for the lighter & his man.†

[\*166.]

\*Thomas Boardman, of Sandwich, carpenter, acknowledgeth

to owe vnto o<sup>r</sup> soŭaigne lord the King, &c, . . . . lxxx<sup>li</sup>.

Edmond Hawes, of Duxborrow, yeom<sup>n</sup>, &c, . . . . lxxx<sup>li</sup>.

xi<sup>th</sup> August,  
before M<sup>r</sup>  
Bradford, re-  
leased.

The condiçon that the said Thom Boardman shalbe of the good behauior toward<sup>l</sup> our soŭaigne lord the King, & all his leige people, and appeare at the Gefnall Court to be holden for this gouernment in January next, & not dep<sup>t</sup> the same w<sup>th</sup>out lycence, and shall also bring testimony vnder the hand of the alderman of the ward and pish in London, or els some other sufficient testimony, that a man child, begotten vpon the body of Luce his now wyfe, before marriage, was liueing when he put forth the same to nurse, and to whome it was put, &c; that then, &c.

30 August.

William Renolds and Alis Kitson were maryed xxx<sup>th</sup> August, 1638.

31 August.

The xxxi<sup>th</sup> of August, 1638. Memorand. That whereas Wil<sup>m</sup> Snow was lately brought ouer out of Old England by M<sup>r</sup> Richard Derby, and is his couenant servant for fye yeares, as appeares by his indenture, beareing date the xx<sup>th</sup> of Februar., 1637, — now the said Richard Derby hath assigned ouer the said Wil<sup>m</sup> Snow vnto Edward Dotey, to serue him the residue of the said terme of fye yeares, and two yeares longer, that is to say, for the terme of seuen yeares from the xx<sup>th</sup> day of October next ensuing vnto the end of the terme of seauen yeares thence next ensuinge, the said Edward pformeing such condiçons as on his p<sup>t</sup> are to be pformed, and shall, in the end of the said terme, pay the said Wil<sup>m</sup> Snow one liuely cow calf of two months old, and eight bushells of Indian corne, and a sow pigg of 2 or 3 months old, w<sup>th</sup> two suits of apparell, and fynd him meate, drink, & apparell during his terme.

3 September.  
NEW PLYM.

[\*167.]

*\*At a Court of Assistant<sup>l</sup> held at New Plymouth, the third Day of Septembr, in the xiiij<sup>th</sup> Yeare of the now Raigne of o<sup>r</sup> Sou<sup>r</sup>aigne Lord, Charles, by the Grace of God of England, &c., before the Goun<sup>r</sup> & all y<sup>e</sup> Assistant<sup>l</sup>.*

**R**OBERT CARVER is graunted twenty acres of land<sup>l</sup> lying on the nor-west side Greenes Harbor Riuer, and a garden place vpon Stoney

Riuer, neere Edward Bumpasse, to be viewed & layd forth for him by M<sup>r</sup> Collyer, Jonathan Brewster, & W<sup>m</sup> Bassit, (w<sup>ch</sup> lands are layd forth on the northeast side of Francis Godfrey, and vpon the same poynts of the compas that his are.)

1638.

3 September  
PRENCE,  
GOVN<sup>r</sup>.

Francis Godfrey is graunted twenty acres of lands lying on the norwest side of Greenes Harbour Riuer, and a garden place at Stony Riuer, neere Edward Bumpasse, to be viewed & layd forth for him by M<sup>r</sup> Collier, Jonathan Brewster, & W<sup>m</sup> Basset, (w<sup>ch</sup> land was, the 28<sup>th</sup> October, 1640, by them layd forth as afores<sup>d</sup>, from a marked trey by the bridg ou<sup>r</sup> the riuer lying to the heigh way leading to Scituate, on the right hand, in length nor west & by north, & in bredth tenn acres, lying to another marked trey vpon the s<sup>d</sup> riuer noreast & by east.)

M<sup>r</sup> Rich: Derbye requesteth landℓ towardℓ the six miles brooke.

Walter Knight requesteth some landℓ on Duxborrow side.

M<sup>rs</sup> Fuller requesteth more meadow ground.

Francis Goulder and George Rowes are graunted foure acres of lands of the neerest to the towne that can be found vndisposed of.

Edmond Tilson is graunted a portion of landℓ at Woeberry Playne, to be viewed and layd forth for him if it be not pjudicial to the neighbourhood there.

Gregory Armestronge is graunted to goe dwell at Mattacheese, w<sup>th</sup> the leaue of the committees for that place, & to haue a lott there.

Gabriell Wheildon is lycensed to dwell at Mattacheese, w<sup>th</sup> consent of the co<sup>m</sup>ittes of the place, & to haue landℓ there.

Wil<sup>m</sup> Maycumber, a cooper, is graunted an iland lying on the north side Pouder Poynt, & containeing about three or foure acres of landℓ, p<sup>r</sup>uided that the co<sup>m</sup>ittes of Duxborrow doe consent therevnto, and that he doe not stop the townes cattle from the fresh water therevpon.

\*Nathaniell Morton is graunted a por<sup>c</sup>ōn of meadow land called the Long Poynt, lying against Experience Michells land, & next to John Willis. [\*168.]

Liberty is graunted to Wil<sup>m</sup> Maycumber, coop, to fetch tymber to make hoopes of for vessells for the colonies use at Clarks Iland & Sagaquash.

A little p<sup>r</sup>cell of land is graunted to M<sup>r</sup> John Alden, lying at the southerly side of his lott, bounded w<sup>th</sup> Greenes Harbor Payth, all alonge the western side thereof, and w<sup>th</sup> Hounds Ditch and the landℓ of Edward Hunt on the south side.

An iland called the Old Iland, alias Hatches Iland, lying on the south west side of the North Riuer, containeing aboute xx acres, is graunted Wil<sup>m</sup> Hatch, of Scituate.

1638.

3 September.  
 PRENCE,  
 GOV<sup>R</sup>.

An iland lying at North Riuer in New Harbor Marsh, called Coopers Iland, containeing aboute eighteene acres, be it more or lesse, w<sup>th</sup> the marshes about the same lying w<sup>th</sup>in the creeks, and south east from Hatches Iland, is graunted to John Cooper, of Scituate.

Josias Cooke is graunted fve and twenty acres of landℓ for Steeppen Deanes children, (in consideraçõn of a lott they had on Duxborrow side,) lying on the south side of the mouth of the Fresh Lake, as the same is measured and marked forth.

4 September.  
 NEW  
 PLYMOUTH.  
 [\*169.]

*\*At a Gen<sup>all</sup> Court of our Sou<sup>a</sup>igne Lord the Kinge held at New Plymouth, the fourth Day of September, in the fourteenth Yeare of the Raigne of our said Sou<sup>a</sup>igne Lord, Charles, by the Grace of God of England, Scotland, Fraunce, & Ireland King, Defendor of the Fayth, &c.*

|                                                                |                |
|----------------------------------------------------------------|----------------|
| BEFORE Thom. Prince, gen <sup>t</sup> , Gouvern <sup>r</sup> , | John Jenney,   |
| W <sup>m</sup> Bradford,                                       | John Alden,    |
| Edward Winslowe,                                               | John Atwood, & |
| Captaine Miles Standish,                                       | John Browne,   |
| Gen <sup>t</sup> , & Assistantℓ of the said gofiment.          |                |

**R**ICHARD SILLIS and Edward Fitzrandle, of Scituate, were admitted freemen this Court, and were sworne accordingly.

Mr Thom Besbeech & Henry Bourne were added to the grand enquest, & sworne.

Arthur Peach, Thomas Jackson, Richard Stinnings, & Daniell Crosse were indicted for murther & robbing by the heigh way. They killed and rob<sup>d</sup> one Penowanyanquis, an Indian, at Misquamsqueece, & took from him fve fadome of wampeux, and three coates of wollen cloth.

The jury's names that went vpon them were these : —

|                |           |                     |           |
|----------------|-----------|---------------------|-----------|
| William Hatch, | } sworne. | John Paybody,       | } sworne. |
| John Winslowe, |           | Richard Sillis,     |           |
| Wilm Pontus,   |           | Humfrey Turner,     |           |
| Edward Foster, |           | Samuell Hinckley,   |           |
| Richard Derby, |           | Giles Rickett,      |           |
| John Holmes,   |           | Gabriell Fallowell, |           |

They found the said Arthur Peach, Thomas Jackson, and Richard Stinnings guilty of the said felonious murdering & robbing of the said Penowanyauquis, but say that they, nor any of them, had any lands or tennement℥, goods or cattles, at the tyme of the said felonie comitted that they know of; and so they say all.

Daniell Crosse made an escape, & so had not his tryall; but Peach, Jackson, & Stinnings had sentence of death pronounced; viz<sup>t</sup>, to be taken from the place where they were to the place from whence they came, and thence to the place of execu<sup>ti</sup>on, and there to be hanged by the neck vntill their bodyes were dead, w<sup>ch</sup> was executed vpon them accordingly.

William Harlow was deposed to the last will & testament of Thomas Hampton, of Sandwich, deceased.

M<sup>r</sup> Tymothy Hatherley is to be allowed xiijs, w<sup>ch</sup> he hath disbursed for the whole collony for publicke charge.

\*Richard Clough, of Plymouth, taylor, acknowledgeth to owe

[\*170.]

the Kinge, &c, . . . . . xli<sup>li</sup>.

Richard Derby, of the same, gent, . . . . . xx<sup>li</sup>.

Released.

James Cole, of the same, inkeep, . . . . . xx<sup>li</sup>.

The condi<sup>ti</sup>on that if the said Richard Clough shall appeare psonally at the next Gefall Court of our said soſaigne lord the King, to answere concerning a coate he should purloyne from George Kennerick, of Scituate, out of certaine cloths w<sup>ch</sup> was deliured him to make two coat℥ of for his children, & in the meane tyme to be of the good behauior toward℥ our said soſaigne lord the King, & all his leige people, and not dep<sup>te</sup> the Court w<sup>th</sup>out lycence, that then, &c.

#### Fynes & P<sup>r</sup>sentment℥

John Stockbridg of Scituate, whelewright, is fyned tenn shillings, for contemptuous word℥ against the gou<sup>er</sup>nt, . . . } x<sup>s</sup>.

Christopher Winter, of Scituate, for publishing himself in marriage w<sup>th</sup> Jane Coop, contrary to order & custome of this goſument, is fyned . . . } x<sup>s</sup>.

M<sup>r</sup> Steephen Hopkins, vpon two p<sup>r</sup>sentm<sup>nts</sup> against him the last Court, and three p<sup>r</sup>sentm<sup>nts</sup> this Court, for selling wine, beere, strong waters, and nutmeggs at excessiue rates, is fyned . } v<sup>li</sup>.

It is ordered by the Court, that every man shall pay xij a swine for euery swyne he hath kept, & were neuer ringed before this Court.

Sandwich. All the rest of the towne is to <sup>^</sup> fyned in like manner for their swine not ringed.

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Richard Burne, 3 pigs vnringed, . . . . . xvij<sup>d</sup>.  
John Carman, j sowe & xj piggs vnringed, . . . . . xij<sup>s</sup>.  
Thom. Tupper, 5 swine vnringed, . . . . . v<sup>s</sup>.  
Thom. Armitage, 2 swine vnringed, . . . . . ij<sup>s</sup>.  
There was viij<sup>s</sup> vi<sup>d</sup> repayd to Carman, Tupper, & Armitage.  
Francis Baver, of Scituate, p<sup>s</sup>ented for offering to lye w<sup>th</sup> the wyfe of  
Wil<sup>m</sup> Holmes, & to abuse her body w<sup>th</sup> vncleanesse.  
[\*171.] \*Scituate men for swine vnringed.  
Nathaniell Tilden, for keepeing vi swine vnringed, . . 00 03 00  
Samuell Hinckley, for vi swine vnring<sup>d</sup>, . . . . . 00 03 00  
Georg<sup>e</sup> Ken<sup>n</sup>ick, ij swine vnringed, . . . . . 00 01 06  
Samuell Fuller, x swine vnring<sup>d</sup>, . . . . . 00 05 00  
John Lewis, 4 swine vnringed, . . . . . 00 02 00  
Rowland Leyhorne, for not ringing & yeoking his swine after due warne-  
ing, ij swine, xij<sup>d</sup>.  
Nathaniell Tilden p<sup>s</sup>ented for denying a land way that for<sup>m</sup>ly M<sup>r</sup> Bes-  
beeche & others had vsed by graunt from the towne of Scituate.  
Released. John Weekes, John Allen, & widdow Toothaker p<sup>s</sup>ented for stopping the  
heigh way that goeth to Mannomet.  
Released. Thomas Clark p<sup>s</sup>ented for stopping the heigh way going to the Eele  
Riuer.  
Released. M<sup>r</sup> John Jenney p<sup>s</sup>ented for diging downe the heigh way before his mill,  
to the endangering of man and beast.  
A breach of order, p<sup>s</sup>ented for want of surveyo<sup>rs</sup>, for the repaireing of  
the heighwayes, w<sup>ch</sup> turnes to the detryment of many.  
Whereas there was a heigh way layd forth through Captaine Standish  
& M<sup>r</sup> Wil<sup>m</sup> Brewsters ground<sup>e</sup> on Duxborrow side, w<sup>ch</sup> is not of use for the  
countrie, and they doe therefore refuse to repaire the same, the said Captaine  
Standish & M<sup>r</sup> Brewster doe vndertake to repaire the said way, and it to be  
onely for theire owne vse.  
20 September. Georg<sup>e</sup> Cleare & Abigall ^ married the xx<sup>th</sup> Septemb<sup>r</sup>, 1638.

*\*At a Court of Assistant℄, held the first Day of October, in the* 1638.  
*xiiij<sup>th</sup> Yeare of the Raigne of o<sup>r</sup> Sou<sup>er</sup>aigne Lord, Charles, by*  
*the Grace of God of England, &c., Kinge, &c.*

1 October.  
 PRENCE,  
 GOVN<sup>R</sup>.

**F**RAUNCIS GOULDER is graunted five acres of lands, to be viewed and layd forth for him at Woberry Playne. [\*172.]

Geor<sup>g</sup> Rowes is graunted five acres of land℄, to be viewed & layd forth for him at Woberry Playne.

Edmond Tilson is graunted five acres of land℄, to be viewed & layd forth for him at Woberry Playne, w<sup>ch</sup> was done accordingly.

A garden place is granted to Captaine Standish on Duxborrow side, w<sup>ch</sup> was formerly layd forth for him there.

A garden place next to M<sup>r</sup> Done is graunted to Edward Holman, p<sup>ro</sup>vided that he do erect a house therevpon w<sup>th</sup>in two months now next ensuing, or els the garden place to be forfeited.

Whereas sixtie acres of land℄ were graunted to Edward Dotey, lying at a pond neere Namassacutt Payth, vpon report that he had sould his house and land at Heigh Cliffe to M<sup>r</sup> Richard Derby, w<sup>ch</sup> bargaine is now relinquished, the said Edward Dotey doth also relinquish the said grant. And the Court hath graunted the said Edward Dotey six acres of meadow there, to lye to his house at Heigh Cliffe, and all that p<sup>ar</sup>cell of vpland lying before the said meadow, and to begin at the esterly end at the swampe, ranging vp westerly to another swampe, and to extend to Namascutt Path, southward, saueing that the said Edward shall allow a payth for carriages as shalbe thought meet to be layd forth.

\*The thirty acres of land℄ formerly graunted to Leiftennant Wil<sup>lm</sup> Holmes, lying at Iland Creeke, is now confirmed vnto him by the Court. It lyeth betwixt the land℄ of Constance Southerne & Joseph Biddle. What it wants in breadth at thone end must be allowed at thother. [\*173.]

Francis Sprague is lycensed to keepe victualling on Duxborrow side.

M<sup>r</sup> John Holmes is graunted tenn acres of land, lying at his lott end, p<sup>ro</sup>vided it bee not p<sup>re</sup>judiciall to M<sup>r</sup> Reynor nor James Hurst.

One hundred acres of land℄ are graunted vnto Leiftennant Wil<sup>lm</sup> Holmes, lying at the North Riuer, next to the lands lately graunted to M<sup>r</sup> Jonathan Brewster, ranging in breadth west southwest, & in length north and north west, w<sup>th</sup> a p<sup>ar</sup>cell of marsh ground lying to y<sup>t</sup>, & bounded as followeth, viz<sup>t</sup>: vpon the est side from his marked tree of his vpland, o<sup>u</sup> the creek next his house, & so right in the same range of his vpland, & on the west side from



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the vpland, the marked tree being the bound℄, & from the marked tree est to the creek, & so by the turneing of the creeke to the west end of the Pine Iland in the marsh, & so to follow the said creeke to meete *to meet* w<sup>th</sup> his east range in the meddow & marsh. Cap<sup>t</sup> Standish, & John Alden, gen<sup>t</sup>, layd it forth.

23 October. Octob<sup>r</sup> 23, 1638. Mathew Southerland, being proued to be drunken vpon the oath of Wil<sup>m</sup> Vincent, was sett in the stocks.

24 October. Octob<sup>r</sup> 24<sup>th</sup>, 1638. John Long is hyred w<sup>th</sup> M<sup>r</sup> Atwood, to serve him from the first of Septemb<sup>r</sup> last past, to March following, for iij<sup>li</sup> ster<sup>l</sup>, or co<sup>m</sup>modities worth so much.

Richard Clark, servant to M<sup>r</sup> Richard Derby, is turned o<sup>u</sup> to M<sup>r</sup> Atwood.

15 October. Gowen White, of Scituate, & Elizabeth Ward, were marryed the xv<sup>th</sup> of October, 1638.

John Winchester, of Hinghame, and Hannah Sillis, of Scituate, were marryed the xv<sup>th</sup> Octob<sup>r</sup>, 1638.

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5 November. \**At a Court of Assistant℄ held the fift Day of Novembr, in the xiiij<sup>th</sup>*  
[\*174.] *Yeare of the Raigne of o<sup>r</sup> Sou<sup>r</sup>aigne Lord, Charles, by the Grace*  
*of God of England, &c.*

Released.

SAMUELL GORTON, of Plym., yeo<sup>m</sup>, doth acknowledg to owe  
o<sup>r</sup> said so<sup>r</sup>aigne lord the King, . . . . . xl<sup>li</sup>.  
Edward Dotey, of the same, yeo<sup>m</sup>, . . . . . xl<sup>li</sup>.

The condi<sup>c</sup>on that if the said Samuell Gorton shalbe of the good behavio<sup>r</sup> toward℄ o<sup>r</sup> said so<sup>r</sup>aigne lord the King, & all his leige people, and appeare at the next Gefi<sup>a</sup>ll Court to be holden for this gou<sup>n</sup>t, and abide the further order of the Court, & not depart the same w<sup>th</sup>out lycence; that then, &c.

Whereas <sup>^</sup> Alderedg, widdow, was required psonally to appeare this day at the Court, to answere to all such matters as on his ma<sup>t</sup>ies behalf shalbe objected against her, and shee did willfully absent herself, & was conveyed away by the meanes and help of M<sup>r</sup> Samuell Gorton & his wyfe, whereby the Court was deluded, it is ordered, that if shee shalbe found w<sup>th</sup>in this gou<sup>n</sup>t, that <sup>^</sup> shalbe apphended, and after correc<sup>c</sup>on as the Bench shall thinke fitt, shee be sent from constable to constable to the place from whence shee came.

The tenn acres of land lying on Duxborrow side, formly vsed by Thomas Burges, is graunted to Nicholas Robins, and three acres more lying

on the south east pt of the said tenn acres, and also a garden place in the towneship to build vpon.

Joseph Rogers is graunted threescore acres of vpland & meadow, lying about a mile & a half from the brooke beyond Mr Bradford's farme, vpon Mattachusetts Payth, on the west side thereof, to be layd forth for him there by Mr Wilhm Collyer & Jonathan Brewster, w<sup>th</sup> the least pjudice to the neighbourhood there.

John Barker is graunted fourty acres of vpland, lying by Joseph Rogers, and to be layd forth by Mr Collyer & Jonathan Brewster, as shalbe thought most conuenient.

Whereas George Slawson had bestowed some labour in fenceing of x acres of land lying on Duxborrow side, & by consent sould the said labours to Thomas Heywood for iij<sup>li</sup> ster<sup>t</sup>, now the Court hath graunted the said tenn acres of land vnto the said Thomas Heywood, to haue & to hold to him & his heires for euer.

\*John Barker hath couenanted to keepe the ferry ou<sup>r</sup> Joanes Riuer, and is to haue two pence a peece for carrying a pson ou<sup>r</sup> vntill there be a bridge erected ou<sup>r</sup> the s<sup>d</sup> riuer. And if he make causes on eich side for passage to the boate, and do not hold the same so long as may recompence his labour & charg thereof, that then the countrey to allow him what shalbe thought fitt to countervaille his charges when hee leaues it, and is to beginn the xij<sup>th</sup> of Novemb<sup>r</sup>, & so to continue as fores<sup>d</sup>.

Francis Goulder is graunted the next garden place to Georg Russell, at Wellingsley, on the east side.

William Latham, of Duxborrow, yeom., oweth the King . . . xx<sup>li</sup>.

Loue Brewster, of the same, yeom., . . . . . x<sup>li</sup>.

Mr John Howland, of Plymouth, . . . . . x<sup>li</sup>.

The condiçon that if the said Wilhm Lathame do psonally appeare at the next Gefnall Court to be holden for this gou<sup>r</sup>ment, to answere to all such matters as on his ma<sup>ties</sup> behalf shalbe objected against him conçening his drunkenesse at Plymouth & Duxborrow, & abide the order of the Court, & not dep<sup>t</sup> the same w<sup>th</sup>out lycence; that then, &c.

Wilhm Burne, of Duxborrow, lab., oweth the King . . . . . xx<sup>li</sup>.

Richard Sparrow, of Plymouth, yeom., . . . . . x<sup>li</sup>.

Josuah Prat, of the same, yem., . . . . . x<sup>li</sup>.

The condiçon that if the said Wilhm Burne shall psonally appeare at the next Gefnall Court to be holden for this gou<sup>nt</sup>, to answere to all such matters as shalbe on his ma<sup>ties</sup> behalf objected against him for his disorderly

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[\*175.]

Released.

Released.

1638. liueing, and abide the further order of the Court, & not dep<sup>t</sup> the same w<sup>th</sup>out lycence ; that then, &c.

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GOV<sup>R</sup>.

John Richards is graunted five and twenty acres of land, lying at Man-namett Ponds, for the lands due to him by indenture for his service, p<sup>ro</sup>vided that it doe not entrench vpon the lands already there graunted.

John Tisdall, vpon the good report made of him, & of his good carryage, is allowed to keepe house and plant for himself, p<sup>ro</sup>vided that he so continue his carryage still.

Georg Moore is allowed the liue w<sup>th</sup> Edward Dotey, he carrying himself in good order, as he ought to doe, and to enjoy the bargaine betwixt them.

[\*176.] \*The iland called Spectacle, lying vpon Greens Harbor, is graunted to M<sup>r</sup> John Howland.

Tenn acres of landℓ in some conveyent place about the towne, are graunted to M<sup>r</sup> Thomas Prence, Gov<sup>r</sup>, p<sup>ro</sup>vided it ⁊ two much p<sup>ro</sup>judice the com<sup>on</sup>s for the cattell.

Six acres of landℓ are graunted to Josuah Pratt, lying at the east end of M<sup>r</sup> Dones land, except the Gov<sup>r</sup>nor make choyce of it for him self.

William Baker, of Water Towne, is lycensed to come to dwell w<sup>th</sup>in this gov<sup>nt</sup>, p<sup>ro</sup>vided he bring good testimony of his good con<sup>sa</sup>cion.

Robert Shelley & John Winter, of Scituate, desire to be admitted freemen the next Gefall Court.

5 November.

Novemb<sup>r</sup> 5. Memorand. That Wilm Edge, gen<sup>tl</sup>, doth acknowledg that for & in considera<sup>on</sup> of the sum of xij<sup>li</sup> sterl., to him in hand payd, by M<sup>r</sup> Thom. Prince, Gov<sup>r</sup>, hath assigned & sett ouer all his right and interest in the service of Robt Wicksen, w<sup>ch</sup> by indenture he ought to serue the s<sup>d</sup> M<sup>r</sup> Edge, to serue the same w<sup>th</sup> the s<sup>d</sup> M<sup>r</sup> Prince, now Gov<sup>r</sup> of New Plymouth, accord- ing to his said indenture, and the couenantℓ therein containd & expressed on both partℓ. And whereas p<sup>re</sup> of his tyme was past w<sup>th</sup> M<sup>r</sup> Edge, the s<sup>d</sup> M<sup>r</sup> Edge is to pay his wages for that tyme, and M<sup>r</sup> Prince for thensuing tyme af- terwardℓ, to thend of the said terme in the s<sup>d</sup> indenture expressed.

8 November.

Novemb<sup>r</sup> 8. Memorand. That whereas Elizabeth Watson, widdow, as- signed & turned ouer her servant, Henry Blage, vnto Thomas Watson, for the residue of the terme he had to serue her, w<sup>ch</sup> was foure yeares from Easter- day, 1638, paying her xj<sup>li</sup> x<sup>s</sup> p ann., that is to say, viij<sup>li</sup> to her, and ij<sup>li</sup> x<sup>s</sup> to the said Henry Blage, for his wages yearely, during the said terme, — now, the said Thomas Watson hath, w<sup>th</sup> and by the consent of the said Henry, as- signed his right & title in the said Henrys service, for the residue of the s<sup>d</sup> terme, to John Rogers, vpon the same condi<sup>on</sup>s that the s<sup>d</sup> Thomas should haue him, his tyme to begin the xvij<sup>th</sup> day of October last past, 1638.

Richard Paul and Margery Turner, of Cohannett, were married the viij<sup>th</sup> of Novemb<sup>r</sup>, 1638.

\*John Smyth, of Plym., lab<sup>r</sup>, doth acknowledg to owe o<sup>r</sup> so<sup>l</sup>-  
aigne lord the King, &c, . . . . . xl<sup>li</sup>.  
Edward Banges, of the same, yeom., . . . . . xx<sup>li</sup>.  
John Comes, of the same, gent., . . . . . xx<sup>li</sup>.

1638.  
8 November.  
PRENCE,  
GOV<sup>N</sup>.  
[\*177.]

Rec. ij<sup>a</sup>.  
Released in  
June, 1639.

The condiçon, &c, that if the said John Smyth shall psonally appeare either at the next Geñall Court to be holden for this goũment, or the Court of Assistants w<sup>ch</sup> shall first happen next after the byrth of a child begotten vpon the body of Bennett Moorecock, whereof the said John is the reputed father, and abide the further order of the Court, & not dep<sup>t</sup> the same w<sup>th</sup>out lycence ; that then, &c.

He married  
the weomā, &  
appear<sup>d</sup> & had  
his censure to  
be whiped, w<sup>ch</sup>  
was according-  
ly done.

George Partrich and Sarah Tracy married the ^ of Novemb<sup>r</sup>, 1638.

John Smaley & Ann Walden married the xxix<sup>th</sup> Novemb<sup>r</sup>, 1638.

29 November.

Thomas Williams & Elizabeth Tart married the xxx<sup>th</sup> Novemb<sup>r</sup>, 1638.

30 November.

*At a Court of Assistant℥ held at New Plymouth, the third of Decemb<sup>r</sup>, in the xiiij<sup>th</sup> Yeare of the Raigne of o<sup>r</sup> Sou<sup>a</sup>igne Lord, Charles, by the Grace of God of England, Scotland, France, & Ireland King, Defendor of the Fayth, &c.*

3 December.

BEFORE Thom. Prince, gent., Goũ,

John Alden,

W<sup>m</sup> Bradford,

John Atwood, &

Ed: Winslow,

John Browne,

Gent., Assistant℥ of the s<sup>d</sup> goũm<sup>nt</sup>.

ONE hundred & fifty acres of land℥ are graunted vnto M<sup>r</sup> Vassell, p<sup>ro</sup>vided he take the oath of fidelitie, &c.

M<sup>r</sup> Richard Smyth, of Cohannatt, tooke the oath of allegiance to the King, & fidelitie to the colony.

A pcell or tongue of land about an acre & a half broad at Smilt Riuer, lying betwixt the riuer & the land℥ of M<sup>r</sup> Thomas Prince, is graunted vnto M<sup>r</sup> Thomas Prince. It was graunted before to Franc℥ Cooke.

Richard Bushop hath hired himself w<sup>th</sup> Loue Brewster, for the terme of one whole yeare from the xxvj<sup>th</sup> of Novemb<sup>r</sup> last, & is to haue for his yeares service iij<sup>li</sup> in money, & twenty bushells of Indian corne.

1638.

3 December.

PRENCE,  
GOU<sup>R</sup>.Rec. in p<sup>t</sup> of M<sup>r</sup> Richard Smyth, 5<sup>li</sup> for corne.Of Sittuate constable for hoggs, 0.13<sup>s</sup>, & 10<sup>s</sup> for Winter℥ fyne.

Of Sandwich constable for hogg, . . . . . ^

Of M<sup>r</sup> Gilbert for corne, . . . . . ^

Of Duxborrow constable, . . . . . ^

Edward Shaw is hyred w<sup>th</sup> Rob<sup>te</sup> Bartlett for a yeare from the first of  
December, 1638, for eight pounds tenn shillings sterl., to be paid in money.

4 December.

[\*178.]

*\*Att a Gen<sup>r</sup>all Court held at New Plymouth, the fourth Day of  
Decemb<sup>r</sup>, in the xiiij<sup>th</sup> Yeare of the Raigne of our Sou<sup>r</sup>aigne  
Lord, Charles, by the Grace of God of England, Scotland,  
Franc., & Ireland King, Defend<sup>r</sup> of the Fayth, &c.*

BEFORE Thom. Prince, gent., Gou<sup>r</sup>,W<sup>m</sup> Bradford,

Edward Winslow,

Gent., Assistant℥ of the gou<sup>nt</sup>, &c.

John Alden,

John Atwood, &amp;

John Browne,

Released.

Released.

Sick.

Released.

Released.

Released.

WILL<sup>M</sup> GILSON,

John Comes, gen.,

Humfrey Turner,

James Cudworth,

Samuell Fuller,

Georg<sup>e</sup> Lewes,

Barnard Lumberd,

Franc. Sprague,

John Lewes,

Wilm<sup>m</sup> Gilson,

Humfrey Turner,

James Cudworth,

Samuell Fuller,

Georg<sup>e</sup> Lewes,

Barnard Lumberd,

John Lewes,

} fined 3<sup>s</sup> a peece for non apparenc.} fined 3<sup>s</sup> apeece for non apparence.

These 7 were called the third tyme and were absent, & are fined 3<sup>s</sup> a  
peece more.

|                                        |   |                                                              |
|----------------------------------------|---|--------------------------------------------------------------|
| M <sup>r</sup> William Thomas,         | } | were admitted freemen, & sworne<br>according to the custome. |
| M <sup>r</sup> Wil <sup>m</sup> Poole, |   |                                                              |
| M <sup>r</sup> John Gilbert, Sen.,     |   |                                                              |
| M <sup>r</sup> Henr. Andrewes,         |   |                                                              |
| John Strong,                           |   |                                                              |
| John Deane,                            |   |                                                              |
| Walter Deane,                          |   |                                                              |
| Edward Case,                           |   |                                                              |

1638.

4 December.

PRENCE,  
GOVN<sup>r</sup>.

John Strong is sworne constable of Cohannett vntill June next.

M<sup>r</sup> John Holmes is sworne messenger for the whole goūment.

Josua Pratt is sworne constable of Plymouth vntill June next, and the Court giues him the measureing of land℥, and sealeing of waights and measures, and the fees due for the same, w<sup>ch</sup> he was likewise sworne to pforme duly & faythfully.

L<sup>res</sup> of administraçōu of the goods and chattells of Phillip Lincks, late of Scituate, deceased, is graunted to M<sup>r</sup> Tymothy Hatherley.

|                                                              |   |                    |                      |
|--------------------------------------------------------------|---|--------------------|----------------------|
| *William Lathame, of Duxborrow, yeom., doth acknowledg to    | { | xl <sup>li</sup> . | [*179.]<br>Respited. |
| owe vnto our soūaigne lord the King, to be levyed, &c, . . . |   |                    |                      |
| John Barnes, of Plymouth, yeom., &c, . . . . .               |   | xl <sup>li</sup> . | Released.            |

The condiçōn that the said Wil<sup>m</sup> Lathame shalbe of the good behavio<sup>r</sup> toward℥ our soūaigne lord the King, & all his leigh people, and appeare at the next Geñall Court of our s<sup>d</sup> soūaigne lord the King, to be holden for this goūment, & not dep<sup>t</sup> the same w<sup>th</sup>out lycence ; that then, &c.

|                                                               |   |                    |           |
|---------------------------------------------------------------|---|--------------------|-----------|
| Francis Sprague, of Duxborrow, yeom., oweth the Kinge, &c, to | { | xl <sup>li</sup> . | Pa 4.     |
| be levyed, &c, . . . . .                                      |   |                    |           |
| Samuell Nash, of the same, yeom., to be levyed, &c, . . .     |   | xx <sup>li</sup> . |           |
| Henry Howland, of the same, yeom., . . . . .                  |   | xx <sup>li</sup> . | Released. |

The condiçōn that if the said Francis Sprague shalbe of the good behavio<sup>r</sup> toward℥ our soūaigne lord the King, & all his leighe people, and appeare at the next Geñall Court of our soūaigne lord the King, to be holden for this goūment, and not dep<sup>t</sup> the same w<sup>th</sup>out lycence ; that then, &c.

Samuell Gorton, of Plymouth, yeom., for his misdemean<sup>rs</sup> in the open Court toward℥ the elders, the Bench, & stirring vp the people to mutynie in the face of the Court, is fyned xx<sup>li</sup>, to be p<sup>s</sup>ently levyed, and to put in sureties for his good behavio<sup>r</sup> during the tyme he shall remayne at Plymouth, w<sup>ch</sup> is limitted by the Court to xiiij dayes, and if he stay aboue, then to abide the further censure of the Court.

Samuell Gorton, of Plym., yeom., acknowledgeth he oweth the

|                                   |                    |           |
|-----------------------------------|--------------------|-----------|
| King, to be levyed, &c, . . . . . | xl <sup>li</sup> . | Released. |
|-----------------------------------|--------------------|-----------|

1638.

4 December.  
PRENCE,  
GOV<sup>R</sup>.

Thomas Atkinson, of the same, yeom., to be levyed, &c., . . . xl<sup>li</sup>.

The condiçon that if the said Samuell Gorton shalbe of the good behauior toward℄ our soſaigne lord the King, & all his leigh people, and depart the towne of Plymouth, and the goũment thereof, w<sup>th</sup>in fourteene dayes next ensuing, or abide the further censure of the Bench at the next Geñall Court of our s<sup>d</sup> soſaigne lord the Kinge, to be holden for this goũment, & not dep<sup>t</sup> the same w<sup>th</sup>out lycenc, &c ; that then, &c.

A warrant to be directed to James Skiff, comãunding him to recarry Henry Eue and his wyfe, and their good℄, to the place from whence hee brought them.

Samuell Gorton is committed to ward for want of sureties for his good behauior.

[\*180.]

\*It is ordered by the Court, that the Goũnor and Assist<sup>nts</sup> shall appoynt some to view the heigh wayes, and repaire them where they are amisse, and to alter those that are not convenyently layd forth vnto a moore convenient place. And that they constables shall require some speciall help for the p̄sent repaire of them in the vnpassable plac℄, and those that help now to be spared in summer.

## Fines and p̄sentment℄.

Remitted  
to x<sup>li</sup>.

Samuell Gorton, . . . . . xx<sup>li</sup> sterl.

The men of Scituate for non apparence, vt antea.

†William Lathame for receiueing into his house John Phillips }  
& other his misdemeanor in lauish & slanderous speches, } xl<sup>s</sup>.†  
&c, fined, . . . . . }

Released the  
6<sup>th</sup> Januar.,  
1639.

Francis Sprague, of Duxborrow, for drinking oñ much, fined . . . . . x<sup>li</sup>s.

Robert Barker, of Jones Riuer, for breakeing the Kings peace }  
in drawing blood vpon Henry Blague, fined, . . . . . } xx<sup>s</sup>.

Released.

John Wakefeild, p̄sented for lueing out of service, hath tyme giuen him to p̄uide him a master, after he hath serued a month w<sup>th</sup> M<sup>r</sup> John Howland.

Francis Billington for drinking tobaccœ in the heighway, . . . . . xij<sup>d</sup>.

John Phillips, for the like, . . . . . xij<sup>d</sup>.

John Stockbridge, of Scituate,

Edward Fitzrandle, of the same,

Thomas Rawlins, of the same,

James Cushman, of the same,

Samuell Hinckley, of the same,

Thom. Chambers, of the same,

George Sutton, of the same,

John Handmer, of the same,

are all p̄sented for receiuing strangers & forreiners into their houses & land℄, w<sup>th</sup>out lycence of the Gov<sup>r</sup> or Assistant℄, or acquainting the towne of Scittuate therew<sup>th</sup>.

Were all discharged 5<sup>th</sup> month, 1638, [1639,] by the Court.

Christopher Osborne ||dead|| & Jeremiah Willis, ||released|| of Duxborrow, are p̄sented for lueing disorderly out of service, contrary to the order of the Court. 1638.

4 December.

PRENCE,  
GOVN<sup>R</sup>.

Abraham Sampson, of Duxborrow, p̄sented for strikeing & abusinge John Washbourne, the yeonger, in the meeting house on the Lord℥ day.

Released.

Leiftennant Wiltm Holmes p̄sented for inordinate drinking in the Bay, w<sup>ch</sup> was not directly prooued, & so he was discharged by order of y<sup>e</sup> Court.

\*John Barnes, p̄sented for inordinate drinking about foure months since, and in regard the euedence thereof was not adjudged sufficient euedence, it was remitted to better proofe. [\*181.]

|                                  |                         |                                                                           |
|----------------------------------|-------------------------|---------------------------------------------------------------------------|
| Edward Freeman,                  | Richard Kerby,          | } of Sandwich, being defectiue<br>in armes, fined x <sup>s</sup> a peece. |
| Georġ Slawson,                   | Peter Gaunt,            |                                                                           |
| John Dingley,                    | M <sup>r</sup> Stutely, |                                                                           |
| W <sup>m</sup> Harlow, . . . . . | 3 hoggs,                | } for keeping swine vnringed.                                             |
| M <sup>r</sup> Hedge, . . . . .  | i                       |                                                                           |
| Thom. Shellingworth, . . .       | i                       |                                                                           |
| W <sup>m</sup> Almy, . . . . .   | ij                      |                                                                           |
| Edward Freeman, . . . . .        | 6                       |                                                                           |
| Rich. Kerby, . . . . .           | 2                       |                                                                           |
| Robt Bodfish, . . . . .          | 2                       |                                                                           |
| John Dingley, . . . . .          | 2                       |                                                                           |
| Peter Gaunt, . . . . .           | 1                       |                                                                           |
| Richard Chadwell, . . . . .      | 6                       |                                                                           |
| John Burges, . . . . .           | 5                       |                                                                           |

John Smyth and Bennett Moorecock marryed the vij<sup>th</sup> Decemb<sup>r</sup>, 1638. 7 December.

Robte Waterman & Elizabeth Bourne marryed the xi<sup>th</sup> Decemb<sup>r</sup>, 1638. 11 December.

William Hodgskins & Ann Hynes marryed the 21<sup>th</sup> Decemb<sup>r</sup>, 1638. 21 December.

Raph Hill & Margreat Toothaker marryed the 21<sup>th</sup> Decemb<sup>r</sup>, 1638.

Decemb<sup>r</sup> 18<sup>th</sup>. M<sup>r</sup> John Crow & M<sup>r</sup> Thomas Howes, of Mattacheese, al<sup>s</sup> Yarmouth, tooke the oath of allegiance to the Kinge, and of fidelitie to the goun<sup>t</sup>; and likewise M<sup>r</sup> Anthony Thacher tooke the same oath the 7<sup>th</sup> Januar., 1638; and M<sup>r</sup> Marmaduke Mathews tooke the same oath the 7<sup>th</sup> Februar., 1638. 18 December.

M<sup>r</sup> John Groomes is graunted a garden place in Plymouth, lying on the east side next to Thomas Willett, guided he erect a house therevpon before the end of the next summer.

Memorand. the eight day of January, 1638. That M<sup>r</sup> Wiltm Brewster hath assigned ouer to Johnnathan Brewster, his sonn, all his interest and title into the service of John Bundy for the residue of his terme, w<sup>ch</sup> is fīue yeares from the fourteenth of March next. 1638-9.

8 January.



1638-9.

22 January.

PRENCE,  
GOÛR.

[\*182.]

Georġ Clarke & Allis Martin marryed the xxij<sup>th</sup> Januar., 1638.

\*A graunt of a plantaċōn called Seppekann, and the lands thereabout℄, for the seatinge of a towneship for a congregation there, is made vnto Mr Thomas Besbeeche, James Cudworth, William Gilson, Anthony Annable, Henry Rowley, Edward Foster, Henry Cobb, and Roġte Linnell, as committees to dispose of such lands lying there about℄ as shalbe limitted and bounded vnto them, reserueing a pcell of 300 or 400 acres for a farme, or to be disposed of as the gouernment here shall thinke meete.

Henry Ewell & Sarah Annable marryed the xxij<sup>th</sup> Novemb<sup>r</sup>, 1638.

17 January.

Thomas Ensigne & Elizabeth Wilder marry 17<sup>th</sup> Januar., 1638.

7 January.

[\*183.]

*\*At a Court of Assistant℄ held the vij<sup>th</sup> of January, in xiiij<sup>th</sup> Yeare of the Raigne of our Souaigne Lord, Charles, by the Grace of God of England, Scotland, France, & Ireland King, Defendant of the Fayth, &c.*

BEFORE Thom: Prence, gent℄., Goûnor,

Willm Bradford,

Edward Winslow,

John Alden,

John Atwood, and

John Browne,

Gentlem., Assistants, &amp;c.

THE names of those to whom the  
graunt of the land℄ at Matta-  
cheeset, now called Yarmouth,  
is made.

The names of those that are  
pposed to take vp their free-  
dome at Yarmouth.

Mr Anthony Thacher,  
Mr Thom: Howes,  
Mr John Crow.  
John Coite, to be enquired of.  
Mr Madrick Mathewes,  
Mr Anthony Thacher,  
Mr John Crowe,  
Mr Thomas Howes,  
Phillip Tabor,  
Willm Palmer,  
Samuel Rider,  
W<sup>m</sup> Lumpkin,  
Thom. Hatch.

Roġte Badfish, of Sandwich, desireth his freedome.

|                               |   |                     |
|-------------------------------|---|---------------------|
| Psons there excepted against. | { | Old Worden, (dead,) |
|                               |   | Burnell,            |
|                               |   | Wright,             |
|                               |   | Wat Deuille.        |

1638-9.

7 January.  
PRENCE,  
GOVERN.

Mr Raph Partrich is graunted to make vse of the lands lying on the south west end of the North Hill, requested by his tre, and if it proue such as will content him, & not graunted to any other before, then to be confirmed vnto him in lue of so many acres of the fourty formly graunted as the pcell will containe, and be also allowed hey ground, if he will take paynes to fynd out a conuenient place.

Mr Edward Winslow, Mr John Alden, Jonathan Brewster, & Wilkm Bassett are appoynted by the Court to veiue the North Hill land℥ graunted to Mr Wilkm Collyer, and to set forth the bound℥ thereof.

Mr Wilkm Kemp is graunted a pporcion of land a mile or two from the head of the South Riuer, to be viewed by Mr Winslow, Mr Alden, Mr Browne, Jonathan Brewster, and Wilkm Basset, and vpon their report of the nature of the land, the number of acres to be assigned by the Court.

\*Thomas Weybourne is graunted the tenn acres of land formly used by Mr John Vincent, and lying to the house he hath bought of the said Mr Vincent. [\*184.]

John Handmer is graunted tenn acres of land at the head of Mr Howland℥ land at the Iland Creek Pond.

John Gregory is graunted six acres of land at west end of the new feild, and the next garden place aboue Robte Paddock.

Jeremiah Willis is graunted a weeks tyme to pguide him a master, or els further course to be taken w<sup>th</sup> him.

Nathaniell Morton is graunted tenn acres toward℥ the head of his lott next to Richard Higgens, pguided that he doe not head Manasseth Kemptons land℥, & to be measured out by Josuah Pratt, by the ouersight & view of Mr John Browne & Georg Watson.

Richard Knowles is graunted a garden place next to John Barnes.

John Rowe is allowed to marry, and to haue a garden place by Scittuate Path, about Goodman Godfrayes.

Jonathan Brewster & Wilkm Basset are appoynted to lay forth Robte Mendlous & John Carews land, and the garden place for John Rowe.

The Court hath graunted that Clarkes Iland, the Eele Riuer beach, Sag-aquash, & Gournett℥ Nose shalbe & remayne vnto the towne of Plymouth, w<sup>th</sup> the woods therevpon.

Ann iland lying at Greenes Harbour, called      , is graunted to Mr Wilkm Bradford.

1638-9. Ann iland lying at Greenes Harbour, called Spectacle Iland, is graunted to Mr John Howland.

7 January.

PRENCE,  
GOV<sup>R</sup>NOR.

[\*185.]

\*Whereas a part of the marsh ground lying by Spectacle Iland, on the south side, was graunted to Mr Thomas Prince, to bee meadow belonging to Mr Allertons farme, the said Mr Prence hath relinquished the same to Mr John Howland, provided he be allowed meddowing elsewhere in lue thereof.

10 January.

The x<sup>th</sup> Januar., 1638. Whereas Wil<sup>m</sup> Barden was the couenant servant of Thom. Boardman for the terme of seauen yeares, now the said Thomas Boardman, w<sup>th</sup> the consent of the said Wil<sup>m</sup>, hath sould all his interest for the terme of yeares he should haue serued him vnto John Barker, bricklayer, w<sup>ch</sup> are yet vnexpired, viz<sup>t</sup>, six yeares and a half from the first of December last past before the date hereof. And the said John Barker is to teach the said Wil<sup>m</sup> Barden the trade of a bricklayer, and in thend of his terme to giue him twenty bushells of Indian corne, two suites of apparell, & an ewe goate lambe.

24 January.

The xxiiij<sup>th</sup> Januar., 1638. Memorand: That John Edward<sup>℥</sup> hath put himself apprentice to Edmond Chaundlor, of Duxborrow, yeom., and after the manner of an apprentice w<sup>th</sup> him to dwell from the last day of September next ensuing the date hereof vnto the end & terme of fve yeares thence next ensuing, to serue him in all such lawfull labours as the said Edmond shall ymploy him in during the said terme; the said Edmond Chaundler fynding vnto his said servant meate, drinke, and apparell during the said terme, and in thend thereof to giue him double apparell throughout, in conveyent manner, w<sup>th</sup> one suite for Lords dayes, and another for workeing dayes.

1 February.

Februar. the first, 1638.

|                                           |                              |                                                                                                                                           |
|-------------------------------------------|------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------|
| Mr Wil <sup>m</sup> Vassell, of Scituate, | Thomas Prior,                | } Inhabitant <sup>℥</sup><br>of Scituate,<br>tooke the<br>oath of al-<br>legiance to<br>the King,<br>and fidelitie<br>to the colo-<br>ny. |
| Henry Ewell,                              | Isaack Wells,                |                                                                                                                                           |
| Wil <sup>m</sup> Crocker,                 | W <sup>m</sup> Holmes, Sen., |                                                                                                                                           |
| Rob <sup>te</sup> Shelly,                 | Edmond Eddenden,             |                                                                                                                                           |
| P <sup>d</sup> . John Crocker,            | Henry Merick,                |                                                                                                                                           |
| Joseph Coleman,                           | Thomas Chittenden,           |                                                                                                                                           |
| Nicholas Wade,                            | Wil <sup>m</sup> Perry,      |                                                                                                                                           |
| Wil <sup>m</sup> Parker,                  | Rob <sup>te</sup> Linnell,   |                                                                                                                                           |
| Georg Willerd,                            | Josias Checkett,             |                                                                                                                                           |
| Thomas Hyland,                            | John Stockbridg,             |                                                                                                                                           |
| Thomas Pinson, p <sup>d</sup> ,           |                              |                                                                                                                                           |

23 January.

Wil<sup>m</sup> Sherman & Prudence Hill married the xxiiij<sup>th</sup> Januar., 1638.

*\*At a Court of Assistant℥ held the fourth of Febrar., in the xiiij<sup>th</sup> 1638-9.  
Yeare of the Raigne of o<sup>r</sup> Souvaigne Lord, Charles, by the Grace  
of God of England, &c.*

4 February.

PRENCE,  
GOV<sup>N</sup>R.

[\*186.]

|                                                 |                     |
|-------------------------------------------------|---------------------|
| BEFORE Thom. Prence, gent., Gov <sup>n</sup> r, | John Alden,         |
| Will <sup>m</sup> Bradford,                     | John Atwood, and    |
| Edward Winslow,                                 | John Browne, gent., |
| John Jenny,                                     | Assistant℥, &c.     |

**C**ONCERNING M<sup>r</sup> Steephen Hopkins and Dorothy Temple, his servant, the Court doth order, w<sup>th</sup> one consent, that in regard by her couenant of indenture shee hath yet aboute two yeares to serue him, that the said M<sup>r</sup> Hopkins shall keepe her and her child, or p<sup>u</sup>ide shee may be kept w<sup>th</sup> food and rayment during the said terme; and if he refuse so to doe, that then the collony p<sup>u</sup>ide for her, & M<sup>r</sup> Hopkins to pay it.

Josias Winslow haueing bought fifty acres of lands of Will<sup>m</sup> Phybs, w<sup>ch</sup> was due to him for his service, according to his couenant, w<sup>ch</sup> was affirmed vnto by M<sup>r</sup> Thomas Willet, who had often tymes seene the said couenant, the Court doth graunt him xxv acres, to be layd forth for him in some convenient place, to be in full satisfac<sup>o</sup>n of the said 50 acres.

Concerneing the differenc℥ about the measure of land℥ betwixt M<sup>r</sup> Thomas Burne, Josias Winslow, Kenelme Winslow, & Loue Brewster, the Court doth order, that if the said Kenelme Winslow and Loue Brewster wilbe at the charg to remeasure the same againe, that then allowing the said M<sup>r</sup> Burne and Josias Winslow theire hundred acres apeece, the said Kenelme & Loue to haue the surplusage of the said neck according to their graunt; and the Court appoynteth M<sup>r</sup> Edward Winslowe, M<sup>r</sup> John Browne, M<sup>r</sup> Vassall, if he please, John Winslowe, and Josuah Pratt, to sett the bound℥ betwixt them vpon the remeasureing thereof againe.

An enlargement of tenn pole is graunted to Abraham Peirce, from the lower end of his fence, to range vp by his land℥ west, w<sup>th</sup> as little p<sup>u</sup>judice to M<sup>r</sup> Done and M<sup>r</sup> Willet℥ land℥ there granted as may be.

Will<sup>m</sup> Paddy is graunted sixscore acres of vpland, lying on the south side of the Elele Riuer, w<sup>ch</sup> was form<sup>l</sup>y graunted to Kenelme & Josias Winslowe, but now relinquished by them vpon other land℥ graunted them at Greens Harbour.

\*Whereas one hundred acres of lands were formerly graunted to M<sup>r</sup> John Done, lying at Joanes Riuer, and for the accomodateing of M<sup>r</sup> Thomas [\*187.]

1638-9. Willett, the said Mr Done hath remitted thone half thereof to the said Thomas Willett, and another pcell thereof to enlarge Abraham Peirce. The Court doth graunt vnto the said John Done and Thomas Willett one hundred acres a peece of vpland and meddow more, lying betweene Jones Riuer and the pond to the north west of Joanes Riuer Swampe.

4 February.  
PRENCE,  
GOVN<sup>r</sup>.

A parcell of vpland lying at thend of Goodman Shawes land at Smilt Riuer is graunted to Francis Cooke, puided it doe not pjudice the graunts formly made to Mr Thomas Prince, M<sup>rs</sup> Fuller, and others, w<sup>ch</sup> lands are to be viewed and layd forth for him.

Mr Alden, Jonathan Brewster, & Wiltm Basset are appoynted to lay forth Edmond Chaundlers landℓ, and Moyses Symmons landℓ, as likewise the landℓ granted to Solomon Lenner.

Solomon Lenner is graunted twenty fiue acres of landℓ, to bee layd forth for him by Edmond Chaundlors, w<sup>ch</sup> was layd forth for him on the east side of the lands graunted to Edmond Chaundor, and ranging as his doth, north east in length, and south & by west from the marked treeys, and bounded at the vpper end w<sup>th</sup> a swampe.

A warrant graunted to distraine Thomas Bird & Isaack Stedman for not paying their assessmentℓ.

The Court appoynteth Mr Alden, Mr Collyer, Xpofer Waddesworth, & W<sup>m</sup> Basset, to view North Hill & the marsh adjoyneing, and to set marks and boundℓ vpon the poyntℓ thereof for Mr Collyer, according to the grant thereof formly made vnto him.

‡Fifty acres of vpland at the head of the South Riuer, and a porcón of marsh meddow lying before it from a swampe there, called Holly Swampe, to a rock, called the Otter Rock, is graunted to Christopher Waddesworth, and to be layd forth for him by Mr Collyer, Jonathan Brewster, and Josuah Pratt.‡

The pcell of the swampe at the end of the land granted to Mr Atwood, by Coles field, is graunted to the said Mr Atwood.

[\*189.] \*Edward Hall, of Duxborrow, is lycensed to build vpon his lott there, if Mr Collyer, Mr Partrich, Jonathan Brewster, and Wiltm Bassett shall thinke it meete, and appoynt some other neighbours also to build by him for the good of the towne.

See below.

Mr Steephen Hopkins is committed to ward for his contempt to the Court, and shall so remayne comitted vntill hee shall either receiue his servant Dorothy Temple, or els puid for her elsewhere at his owne charge during the terme shee hath yet to serue him.

Christopher Waddesworth is graunted fifty acres of vpland, lying about the head of the South Riuer, & beginning at the north side of a certaine

swampe there, called the Holly Swampe, & rangeing norwest & south east, in length two acres and a half, and in breadth twenty acres, the norwest end abutting vpon a riuer or brooke ruining out of the said Holly Swampe, called the South Riuer, and thother side abutting vpon the comon lands lying to the north, together w<sup>th</sup> all that pcell of meaddow or marsh ground lying on both sides the said riuer, and in pt against the said vpland from the said Holly Swampe, northerly, to a certaine rock there, called the Otter Rock, are graunted to Christopher Waddesworth.

1638-9.

4 February.  
PRENCE,  
GOVN<sup>R</sup>.

Moyses Symons is graunted fourty acres of land on Duxborrow side, lying next to the garden plotts, some comon lands being left betwixt, ranging north and by west, and south and by east in breadth, north east and by east, and south west and by west from the marked trees, and next to the land graunted to Edmond Chaunlor on the southwest side.

The viij<sup>t</sup> of Februar., 1638. Memorand: That whereas Dorothy Temple, a mayde servant dwelling w<sup>th</sup> M<sup>r</sup> Steephen Hopkins, was begotten w<sup>th</sup> child in his service by Arthur Peach, who was executed for murther and robbery by the heigh way before the said child was borne, the said Steephen Hopkins hath concluded and agreed w<sup>th</sup> M<sup>r</sup> John Holmes, of Plymouth, for three pound<sup>l</sup> sterl., and other consideracons to him in hand payd, to discharge the said Steephen Hopkins and the colony of the said Dorothy Temple and her child foreuer; and the said Dorothy is to serue all the residue of her tyme w<sup>th</sup> the said John Holmes, according to her indenture.

8 February.

p. 169.

John Didcutt, of Sandwich, marin<sup>r</sup>, tooke the oath of allegiance & fidelite the xij<sup>th</sup> Februar., 1638.

12 February.

\*A Forme of the Deputacon, or Committeeship, where w<sup>th</sup> any shalbe betruſted by the Gou<sup>r</sup>ment for the Disposall of any Land<sup>l</sup> w<sup>th</sup>in any pticuler Place or Limmit<sup>l</sup>, w<sup>ch</sup> is or shalbe thought meete for the erecting of a Plantacon, Neighbourhood, Colony, Towneship, or Congregacon w<sup>th</sup>in this Gou<sup>r</sup>ment.

NEW PLYM.

[\*190.]

Form of com-  
mitteeship.

Whereas our soſaigne lord the King is pleased to betruſt us, T. P., W. B., E. W., &c, w<sup>th</sup> the goſment of so many of his subject<sup>l</sup> as doe or shalbe pmitted to liue w<sup>th</sup>in this goſment of New Plym, and that it seemeth good vnto us to begin, set vp, & establish a neighbourhood, or plantacon, at a place called \_\_\_\_\_, being bounded \_\_\_\_\_, and lying \_\_\_\_\_ miles westward from the sd towne of New Plym; and whereas, by reason of the distance of place, and our many weighty occasions, we cannot so well see to the receiueing in of such psons as may be fitt to liue together there in the feare of God, and obeydyence to our said

1638-9.

12 February.  
PRENCE,  
GOV<sup>R</sup>.

soſaigne lord the King, in peace and loue, as becometh Christian people, all w<sup>ch</sup> we earnestly desire, — that our care therefore may appeare in the faythfull discharge of our duties towards God, the Kings ma<sup>tie</sup>, and the people of whom we are, wee haue thought good to betrust our welbeloued T. B., A. C., G. D., &c, w<sup>th</sup> receiueing in such people vnto them as may make good our desires before expressed, and therefore require of the said T. B., A. C., G. D., &c, that all and euery of them be conscionably faythfull, & carefull as well to receiue in peacable & faythfull people, according to their best discerning, as also faythfully to dispose of such equall & fitt por<sup>ti</sup>ōns of land vnto them, & euery of them, as the seſſall estates, ranck<sup>l</sup>, & qualities of such p<sup>er</sup>sons as the Almighty in his prouidence shall send in amongst them shall require, that so we may comfortably ratifye & confirme such said por<sup>ti</sup>ōns of land as they shall allot & set forth in our behalf to all and euery one that shalbe admitted into their societie w<sup>th</sup>in their s<sup>ai</sup>d limitt<sup>l</sup> and bound<sup>l</sup>, that so we may be free from all manner of comptt<sup>l</sup> & troubles thereupon, w<sup>ch</sup> may cause us to alter any thing w<sup>ch</sup> may seeme vnjustly or indiscreetly assigned by them or any the said deputies or com<sup>it</sup>tees : provided alwayes, that the s<sup>ai</sup>d T. B., A. C., G. D., &c, reserue for our disposall, at least                      acres of good land, w<sup>th</sup> meadow competent in place convenient, and be lyable from tyme to tyme, and at all tymes to receiue and follow such good & wholesome instruc<sup>ti</sup>ōns as they shall receiue from the go<sup>u</sup>rnment about the disposall of the said land<sup>l</sup>, and the well ordering of their neighbourhood, & conformitie to such good & wholesome lawes, ordinanc<sup>l</sup>, & officers as are or shalbe established vnder o<sup>r</sup> soſaigne lord the King, w<sup>th</sup>in this s<sup>ai</sup>d go<sup>u</sup>rnment of New Plym. In witenesse whereof, &c.

4 March.  
NEW PLYM.  
[\*191.]

\**At a Court of Assistant<sup>l</sup> held the fourth of March, in the xiiij<sup>th</sup> Yeare of the Raigne of o<sup>r</sup> Sou<sup>er</sup>aigne Lord, Charles, &c., of England, &c.*

BEFORE Tho<sup>m</sup> Prence, gent., Go<sup>u</sup>rn<sup>r</sup>,  
Wil<sup>m</sup> Bradford,  
Edward Winslow,  
John Alden,

John Jenney,  
John Atwood, &  
John Browne,

Gentlem., Assistant<sup>l</sup> of the said go<sup>u</sup>rn<sup>mt</sup>.

**W**HEREAS there is a bridg to be erected ouer Jones Riuer, w<sup>ch</sup> should haue beene onely for horse & man to passe, vpon due considera<sup>ti</sup>ōn, fynd-

ing that the charges will not be much more to make yt passable for a cart, it is resolved to make it passable for a cart to goe ouer. 1638-9.

Concerneing a prison, it is likewise resolved to build it xxij<sup>tie</sup> foote in lengh, and xvj<sup>teene</sup> foote in breadth, and ‡one story & a half ‡ two stories heigh, ‡as the workman may be agreed w<sup>th</sup>all to the best advantage, ‡ and to be erected vpon the wast ground betwixt M<sup>rs</sup> Fuller & M<sup>r</sup> Hicks. John Mynor is agreed to build the frame for yt for fourty six pound℥, a p<sup>ti</sup>cōn in the midst, & 3 floores.

4 March.  
PRENCE,  
GOV<sup>R</sup>.

M<sup>r</sup> John Browne is graunted

Six acres of meadow ground lying at Greenes Harbor Marsh, in some convenient place there, are graunted to M<sup>r</sup> Raph Partrich, except some other can be found fitt for him in some other place.

M<sup>r</sup> Alden, Willm Bassett, and Josuah Pratt are appoynted to view & lay forth M<sup>r</sup> Partrich land℥.

\*A little pcell of meaddow ground, lying vnder the northerly side of Piñacle Hill, is graunted vnto Josias Cooke. [\*192.]

Fourty acres of vpland lying at the south est side of the great South Pond, and two pcells of marsh ground for meaddow, lying southwest from the sd vpland, are graunted vnto Richard Higgins.

Six acres of land lying at Kenelmes Dingle are graunted to Richard Willis.

Six acres of land lying at Kenelmes Dingle are graunted to Willm Dennis.

Vpon heareing of the cause betwixt Richard Goodman, compl<sup>t</sup>, and Xpofer Winter, def<sup>nt</sup>, for a feather bed, the Bench doth adjudg the said feathered to be the said Richard Goodmans, and therefore do enioyne the said Xpofer Winter to deliuer the same to Leiftenn<sup>nt</sup> Willm Holmes to be conveyed to the said Goodman.

March 4<sup>th</sup>. James Leighorne is hyred to serue Francis Sprague for a yeare for vi<sup>li</sup> x<sup>s</sup>, and two pound℥ of tobaccoe. His tyme began the first of Februar. last past. 4 March.

The Agreement made w<sup>th</sup> John Mynnard, carpenter.

It is couenanted & agreed vpon w<sup>th</sup> John Mynnard, that he shall build a house for a prison, xxij<sup>tie</sup> long and xvj<sup>teene</sup> foote broad w<sup>th</sup>in the walls, & two stories heigh, and lay it w<sup>th</sup> three floores, & couer it w<sup>th</sup> board℥, & reare & finish the same, saue that the tymber is to be drawne together to the place where it must be framed, & help allowed him to reare it at the colonies charge, and brought to the place where it must ^ set up at their charges. In consid-  
eraçōn whereof he is to haue xlv<sup>li</sup> sterl. in money or comōdities that will passe



1638-9. for so much money, payd in manner and forme following, that is to say : xx<sup>s</sup>  
 4 March. PRENCE, Goũ.  
 payd in hand, & xv<sup>li</sup> more when the stuffe is sawne, and xv<sup>li</sup> when it is framed,  
 & thother xv<sup>li</sup> when it is erected and finished, the colony paying for the draw-  
 ing & carriage of the tymber & frame to the place where it must be framed &  
 erected, and fynd nayles & all iron worke about the same ; and the said John  
 Mynnard is to leaue such plac̃ for grates, doores, & windowes as shalbe direct-  
 ed him.

5 March. [\*193.] \**At a Gen<sup>r</sup>all Court of o<sup>r</sup> Sou<sup>r</sup>aigne Lord the Kinge, held at Plym<sup>th</sup>  
 aforesaid, the fift Day of March, in the xiiij<sup>th</sup> Yeare of the  
 now Raigne of our s<sup>d</sup> Sou<sup>r</sup>aigne Lord, Charles, by the Grace of  
 God of England, &c., King, &c.*

|                                            |                |
|--------------------------------------------|----------------|
| BEFORE Thomas Prence, gent., Goũr,         | John Jenney,   |
| William Bradford,                          | John Atwood, & |
| Edward Winslow,                            | John Browne,   |
| John Alden,                                |                |
| Gentlemen, Assistant℥ of the said goũment. |                |

**M**<sup>R</sup> WILLIAM BRADFORD elected Goũr.  
 Mr Thomas Prence,  
 Cap<sup>t</sup> Miles Standish,  
 Mr John Alden,  
 Mr John Browne,  
 Mr Wil<sup>m</sup> Collyer,  
 Mr Tymothy Hatherly,  
 Mr John Jenney,  
 } elected Assistant℥.  
 George Bower elected Constable for Plymouth.  
 Steephon Tracy, Constable for Duxborrow.  
 Humfrey Turner, Constable for Scituate.  
 Thomas Armitage, Constable for Sandwich.  
 John Stronge, Constable for Cohannet.  
 Wil<sup>m</sup> Chase, Constable for Yarmouth.

The Names of such as are p<sup>p</sup>osed to take vp their Freedom the next Court.

|                          |                             |
|--------------------------|-----------------------------|
| Thomas Hatch,            | Georg Sutton,               |
| oJohn Williams,          | Tho <sup>m</sup> Ensigne,   |
| oJohn Twisden,           | oTho <sup>m</sup> Chambers, |
| Tho <sup>m</sup> Lapham, | Steephon Vinall,            |

°John Lewis,  
 ‡Mr Comfort Starr, ‡  
 Mr Wilm Kemp,  
 Job Cole,  
 Robt Shelley,  
 John Winter,  
 Nehemiah Smyth,

Dolor Davis,  
 Thom Bonney,  
 John Rogers,  
 Georg Allen,  
 ‡Wilm Wad, ‡  
 Wilm Harlow.

1638-9.

5 March.  
 PRENCE,  
 GOVN<sup>r</sup>.

\*Mr Nicholas Sympkins, Heugh Tilly, and Giles Hopkins were deposed to the last will and testament of Peter Werden, thelder, of Yarmouth, deceased. [\*194.]

It is ordered by the Court, that the meadow landℓ at Sandwich, w<sup>th</sup> were layd forth, shalbe new deuided againe, by equall porcōns, according to eich mans estate, and some of the townes men to be joyned w<sup>th</sup> the comīttees in doing thereof.

It is ordered by the Court, that Yarmouth men shall haue liberty to keepe their swine vnringed, they keeping them w<sup>th</sup> a heardman, vntill complaint be made of some hurt they haue donne.

It is ordered by the Court that Mr Nicholas Sympkins, William Palmer, Phillip Tabor, and Josuah Barnes, of the towne of Yarmouth, shalbe added to Mr Anthony Thacher, Mr Thom Howes, & Mr John Crowe, comīttees of the said place, to make an equall diuision of the planting landℓ now to be deuided at this first diuision there, to eich man according to his estate and quallitie, and according to their instruccōns; and that Josuah Pratt, of Plymouth, and Mr John Vincent, of Sandwich, shall view the landℓ there, and make report thereof vnto the Court, that if those proporcōns w<sup>ch</sup> Mr Andrew Hellot hath assumed to himself there shalbe so pjudiciall to the whole, that then some just and equall order may be taken therein, to pvent the euell consequence it may be to the whole plantacon.

Mr Edward Winslow and Mr Wilm Collyer are requested to take a view of the heigh wayes towardℓ Greenes Harbor and Scituate from Plymouth, and to cause them to be amended that are in decay, or to alter them to more conueniency, and either of them to call one or two w<sup>th</sup> them to do yt.

Forasmuch as great complaint is made that the heigh wayes about the colony are in decay, it is ordered by the Court, that some shalbe joyned w<sup>th</sup> the constables to survey the wayes about eich towne, and cause men to repaire them, viz<sup>t</sup>, for Plymouth, Kenelme Winslow & John Barnes; for Duxborrow, John Washborne & Joseph Rogers; & for Scituate, Wilm Hatch and Edward Foster; and to call men to laboure thereat, as they shalbe found fitt, and if any shall refuse to help about the same, that they be psented by the grand enquest.

1638-9.

Mr Wilm Lefich was deposed to the last will & testament of Thom Hampton, of Sandwich, deceased.

5 March.

PRENCE,  
GOÛN<sup>r</sup>.

\*Presentments by the Grand Enquest.

[\*195.]

Ended, & an  
order made  
Sept., 1639.

Fined x<sup>s</sup>.

1. Isaack Steedman and John Emerson p<sup>s</sup>ented for extorting one yeare and a halfe service of James Till, servant to both, aboue the first agreement & couenant betwixt John Emson & the said James Till and his p<sup>s</sup>ent<sup>l</sup>.

2. Raph Goarame, thelder, p<sup>s</sup>ented for breakeing the Kinges peace in beateing of Webb Adey.

Released,  
June 4, 1639.

3. Joseph Windsor, of Sandwich, p<sup>s</sup>ented for keepeing house alone disorderly, after half a yeares warneing, or thereabouts.

4. Anthony Bessie p<sup>s</sup>ented for lueing alone disorderly, and afterward<sup>l</sup> for takeing in an inmate w<sup>th</sup>out order.

Released.

5. M<sup>r</sup> John Jenney p<sup>s</sup>ented for not grinding corne seruiceable, but to greate losse & damage, both in not grinding it well, as also causing men to stay long before it can be grounde, except his servant be feede.

Released.

6. And also for not keepeing his stampers going, w<sup>ch</sup> is much to the detryment of all.

Released.

7. We p<sup>s</sup>ent an abuse, that whereas Thomas Clarke accused Richard Cloofe of felony, and bound ouer to answeare it in Court, the said Thom Clarke was not in Court called to p<sup>s</sup>ecute the same for the Kinge.

Released.

8. And further, we p<sup>s</sup>ent that the said Thomas Clarke tooke another mans action against the said Cloofe, p<sup>vo</sup>akeing him, being therevnto vnwilling, & p<sup>s</sup>ecuted the said action in Court by way of barratrye.

Pd 12<sup>d</sup>.

9. John Roe, Wilm Sherman, Moyses Symons, p<sup>s</sup>ented for drinking tobaccoe contrary to order.

Discharged.

10. John Holmes, the messenger, p<sup>s</sup>ented for takeing fve shillings for serueing of a warrant.

Discharged.

11. John Holmes, the messenger, p<sup>s</sup>ented for takeing fve shillings for serueing a warrant vpon Thom Boardman, being def<sup>t</sup> in a case of tryall betwixt M<sup>r</sup> Hatherley and him.

Fined.

12. John Emerson p<sup>s</sup>ented for entertaineing of other mens servants at vnlawfull tymes, diuers & sondry tymes.

The s<sup>d</sup> John  
Bryan was dis-  
charged in  
Septemb<sup>r</sup>, 3,  
1639.

13. Gilbert Brookes, the servant of M<sup>r</sup> Wilm Vassell, & John Bryan, p<sup>s</sup>ented for drinking inordinately at John Emersons house.

[\*196.]

\*14. John Holmes, the messenger, p<sup>s</sup>ented for sitting vp in the night, or all the night, drinking inordinately, when he was sent about publike business.

15. As also for abuseing other mens names to p<sup>cu</sup>re wine to drinke amongst others inordinately.

16. Johnnathan Brewster p̄sented for neglecting the ferry at the North Riuer. Released. 1638-9.

17. M<sup>r</sup> Garrat, of Scituate, p̄sented for selling wyne by retale w<sup>th</sup>out order. Fynd xx<sup>s</sup>.

5 March.  
PRENCE,  
Goũ<sup>r</sup>.

The Grand Enquest℥ Inquerie.

1. Wee desire to be informed by what vertue and power the Gou<sup>r</sup> and Assistant℥ doe giue and dispose of lands either to p̄ticuler p̄sons or towne-shippes and plantaçōns.

2. Wee further desire to be informed what land℥ are to be had, or is reserved for the purchasers as hath beene formly agreed in Court too.

3. Wee further desire to be informed of the vnder takers of the trade what wilbe allowed to the colony for the vse of the said trade during the years past.

4. Wee further desire to be informed why there is not a Treasurer chosen for this yeare, as other officers, seing by an order in Court there should be yearely one chosen, to take vp the fynes & moneys w<sup>th</sup>in the whole colony.

March xij<sup>th</sup>, 1638. Memorand: that Wilłm Taylor, sonn of Wilłm Taylor, of Boddington, in Cornewell, carpenter, the couenant servant of M<sup>r</sup> John Atwood, hath, w<sup>th</sup> and by the consent of his said master, of his owne voluntary will, put himself to Thomas Little, to serue him seaven yeares from the first of March last past; the said Thomas fynding him meate, drink, apparell, & all other things necessary for him during the said terme, and at thend of foure yeares of the said terme to giue him a sowe pigg of two months old; and if hee doe the said Thomas good service, that then he will relinquish or abate one yeare of his service, and in thend of his terme giue him double apparel, and xij bushells of Indian corne. 12 March.

\*Wilłm Hiller, of Plym, carpent<sup>r</sup>, acknowledgeth to owe the { King, &c, . . . . . } xlii. [\*197.]

Josias Cooke, of the same, yeom., . . . . . xxii. Released.

Robte Waterman, of the same, yeom., . . . . . xxii.

The condiçōn that the said Wilłm Hiller shall keepe the peace toward℥ our soũaigne lord the King, and all his leigh people, and especially towards Richard Clough, and appeare at the next Geñall Court to be holden for o<sup>r</sup> s̄d soũaigne lord the King for this goũnt, & not dep<sup>t</sup> the same w<sup>th</sup>out lycence; that then, &c.

1639. *At a Court of Assistant℥ held the first of April, in the xv<sup>th</sup>  
Yeare of his Ma<sup>ties</sup> now Raigne, of England, &c.*

1 April.  
NEW PLYM.  
PRENCE,  
GOV<sup>N</sup>R.

BEFORE Thos<sup>m</sup> Prence, gen<sup>tl</sup>, Gou<sup>r</sup>,                      John Alden,  
Wil<sup>m</sup> Bradford,                                              John Atwood, &  
Edward Winslow,                                              John Browne,  
Gent., Assistant℥ of the said gou<sup>nt</sup>.

THE names of such as requested land℥ this Court : —

Wil<sup>m</sup> Sherman.  
John Mynard.  
Abraham Sampson.  
John Kidbye.  
Loue Brewster, for meadow ground.  
Thurston Clark, for meadow ground.  
Edmond Howes, for vpland & meadow.  
John Willis, for the like.  
John Barnes, for land℥.

It is ordered this Court, that, whereas the land℥ at Mattacheese were graunted to diuers psons that long since should haue inhabited vpon them, the w<sup>ch</sup> they haue not pformed ; and whereas the Court is informed that those psons to whom they were first graunted are not likely to come to inhabite there in their owne psons, and least such as are there should receiue in vnto them vnworthy psons, whereof the Court hath lamentable experience by comitting the disposall of land℥ in like case, the Court doth order, that onely such of them w<sup>ch</sup> at p<sup>s</sup>ent are there shall remayne & make use of some land℥ for their p<sup>s</sup>ent necessity, but shall not deuide any por<sup>co</sup>ns of lands there either to themselues or any others, nor receiue in vnto them any other psons, (then such as were nominated at the first,) w<sup>th</sup>out speciall lycence & approouement of the go<sup>u</sup>ment, that such inconueniences may be p<sup>u</sup>ented, w<sup>ch</sup> in like cases haue for<sup>m</sup>ly happened.

[\*198.]            \*It is ordered by the Court, that M<sup>r</sup> Wil<sup>m</sup> Bradford, M<sup>r</sup> Edward Winslowe, & M<sup>r</sup> John Browne shall take a view of the neck of land graunted vnto M<sup>r</sup> Wil<sup>m</sup> Vassell, & to set the same forth for him, except there be some such difficultie therein that will require the further considera<sup>co</sup>n of the Court.

2 April.            William Harvey & Joane Hucker, of Cohannett, married the second of  
Aprill, 1639.

16 April.            John Rogers and Ann Churchman married the xv<sup>j</sup><sup>th</sup> of Aprill, 1639.  
Richard Derby, gen<sup>tl</sup>, acknowledgeth to owe the King . . . xl<sup>li</sup>.

John Barnes, of Plym., yeom., . . . . . xx<sup>li</sup>.

Gyles Rickett, of the same, . . . . . xx<sup>li</sup>.

1639.

16 April.  
PRENCE,  
GOUN<sup>r</sup>.

The condiçon that the said Richard Derby shall psonally appeare at the next Geñall Court of our soſaigne lord the King, to be holden for this goũm<sup>nt</sup>, to answeere to all such matters w<sup>ch</sup> on his ma<sup>ties</sup> behalf shalbe objected against him, conc<sup>r</sup>ning the ympoysoning of the body of John Dunford, (whereby he is disabled to worke,) and not dep<sup>t</sup> the same w<sup>th</sup>out lycence ; that then, &c.

Released.

*\*At a Court of Assistant<sup>ℓ</sup> held the sixt of May, in the xv<sup>th</sup> Yeare of his Ma<sup>ties</sup> now Raigne, of England, &c.*

6 May.  
NEW PLYM.  
[\*199.]

BEFORE Thomas Prence, gen<sup>tl</sup>, Gour<sup>r</sup>,

Wilm Bradford,

Edward Winslow,

John Alden,

John Atwood, &

John Browne,

Gent., & Assistant<sup>ℓ</sup>, &c.

IT is ordered by the Court, that if M<sup>r</sup> Callecutt do come in his owne pson to inhabite at Mattacheese before the Geñall Court in June next ensuing, that then the graunt shall remayne firme vnto them ; but if hee fayle to come w<sup>th</sup>in the tyme p<sup>fix</sup>ed, that then their graunt be made voyde, and the land<sup>ℓ</sup> to be otherwise disposed of.

It is also ordered by the Court, that the pporçon of land<sup>ℓ</sup> graunted to M<sup>r</sup> Andrew Hellot, at Mattacheesett, shalbe and remayne vnto him, and that those that are appoynted to set forth the bound<sup>ℓ</sup> betwixt Mattacheese and Mattacheesett shall lay forth the said pporçon vnto him in a convenient place there.

The xvj<sup>th</sup> of May, 1639, the townesmen of Plymouth mett, & according to the order & act of the Court, elected foure com<sup>it</sup>tees to bee added to the Gou<sup>rn</sup>r & Counsell to make lawes, &c, viz<sup>t</sup>, M<sup>r</sup> John Done, Manaseth Kempton, John D<sup>h</sup>ame, & John Cooke, Jun.

16 May.

Memorand<sup>ℓ</sup>, the xvj<sup>th</sup> of May, 1639 : that M<sup>r</sup> John Atwood, for & in consideraçon that Job Cole payd for the passage of Tho<sup>m</sup> Gray, & found him some apparell, hath assigned and sett o<sup>ff</sup> all his right, title, & interest of and into the service of the said Tho<sup>m</sup> Gray during the remaynder of yt, according to his indenture, the said Job Cole pformeing the condiçons on his p<sup>rt</sup> to be pformed, and also p<sup>m</sup>iseth that if the said Tho<sup>m</sup> Gray approue himself

16 May.

1639.

25 May.

PRENCE,

GOŨN<sup>R</sup>.

[\*200.]

well & faythfull in his service, the ſd Job will remitt him a yeare or two of his terme.

\*Memorand, the xxv<sup>th</sup> of May, 1639: That Ro<sup>b</sup>te Eldred, the hyred ſervant of Nicholas Sympkins for the terme of three yeares from about the <sup>^</sup> of July next for 4<sup>li</sup> p ann. & an ewe goat at thend of his tyme. The ſaid Nicholas Sympkins, for and in considera<sup>o</sup>n of the ſum of x<sup>li</sup> ſterl. to him in hand payd by M<sup>r</sup> Tho<sup>m</sup> Prence, hath, w<sup>th</sup> and by the conſent of the ſaid Ro<sup>b</sup>te Eldred, assigned & ſet ouer the ſaid Ro<sup>b</sup>te Eldred vnto the ſaid M<sup>r</sup> Tho<sup>m</sup> Prence, to ſerue him all the ramaynder of the ſaid terme, the ſaid M<sup>r</sup> Prence paying him four pounds p ann. during the ſaid terme of three yeares; and whereas there is a difference betwixt the ſaid Nicholas Sympkins and the ſaid Ro<sup>b</sup>te Eldred about 10<sup>s</sup> p ann. more then the 4<sup>li</sup> for his yearely wages, if the bargaine ſhalbe proued to be 4<sup>li</sup> 10<sup>s</sup> the ſd Eldred ought to haue, that then the ſaid Nich. Sympkins ſhall pay yt, and the ſd Eldred is to come to dwell w<sup>th</sup> the ſd M<sup>r</sup> Prence the xv<sup>th</sup> of June next; and M<sup>r</sup> Prence lent the ſd Nich. Symkins 40<sup>s</sup> the ſame tyme.

27 May.

Memorand, the xxvij<sup>th</sup> May, 1639: That whereas M<sup>r</sup> John Combe had for<sup>m</sup>ly mortgaged, assigned, & ſet o<sup>u</sup> vnto M<sup>r</sup> Thomas Prence one browne cow called Berry, w<sup>ch</sup> was ſent him out of England, and that the ſaid M<sup>r</sup> Prence hath releaſed the ſame vnto him againe, now the ſaid M<sup>r</sup> John Combe, for and in considera<sup>o</sup>n that the ſaid M<sup>r</sup> Thomas Prence hath vnder taken to pay certaine ſumes of money for the ſaid John Combe vnto John Barnes, the firſt of February next, the ſaid John Combe hath againe assigned, ſet o<sup>u</sup>, and mortgaged the ſaid browne cove vnto the ſaid M<sup>r</sup> Tho<sup>m</sup> Prence, for his ſecurytie.

Richard Willis doth acknowledg to owe the Kinge, &c, . . . v<sup>li</sup>.

Released.

Gyles Rickett, . . . . . v<sup>li</sup>.

The condi<sup>o</sup>n that if the ſaid Richard Willis ſhall appeare at the next Genall Court of our ſd ſo<sup>u</sup>aigne lord the Kinge to be holden for this gou<sup>nt</sup>, to anſwere for takeing xvij<sup>d</sup> p day, & his dyet, for his day labour, contrary to the act & order of the Court, & abide the further order of the Court, & not de<sup>p</sup>te the ſame w<sup>th</sup>out lycence; that then, &c.

Released.

John Wakefeild, of Plym., lab., . . . . . v<sup>li</sup>.

Released.

Georg<sup>o</sup> Watson, of the ſame, yeom., . . . . . v<sup>li</sup>.

That the ſd John Wakefeild ſhall appeare vpon the ſame condi<sup>o</sup>n, &c.

*\*At a Court of Assistant℥ held the third Day of June, in the xv<sup>th</sup> Yeare of the Raigne of our Souaigne Lord, Charles, by the Grace of God King of England, Scotland, France, & Ireland, Defendor of the Fayth, &c.*

1639.

3 June.  
NEW PLYM.  
PRENCE,  
GOVN<sup>R</sup>.  
[\*201.]

|                                                                         |                  |
|-------------------------------------------------------------------------|------------------|
| BEFORE Tho <sup>m</sup> Prence, gent., Go <sup>v</sup> n <sup>r</sup> , | John Alden,      |
| Wilm <sup>m</sup> Bradford,                                             | John Jenney,     |
| Edward Winslowe,                                                        | John Atwood, and |
| Capt. Miles Standish,                                                   | John Browne,     |
| Gent., Assistant℥ of the said go <sup>v</sup> m <sup>t</sup>            |                  |

**W**HEREAS a por<sup>c</sup>ōn of land was graunted vnto M<sup>r</sup> John Browne in the Genall Court held the first day of March, in the xj<sup>th</sup> yeare of his māties now raigne of England, &c, lying at the Iland Creeke Pond, w<sup>ch</sup> in regard it was afterward℥ alleadged to be pjudiciall to the neighbourhood there, vpon further pmise made vnto the said John Browne, at the next ensuinge Court, that if hee would relinquish the said graunt, he should haue liberty to make choyce of any pcell of land w<sup>ch</sup> was not then disposed of, wherevnto the said John Browne condiscended, and made choyce of a pcell of land, pte whereof was graunted fomly to M<sup>r</sup> Tymothy Hatherley, the w<sup>ch</sup> the said M<sup>r</sup> Hatherley did relinquish, yeilding vp all his right and title therein vnto the said John Browne, in w<sup>ch</sup> considera<sup>c</sup>ōns the Court hath confirmed all the said pcell of land vnto the said John Browne, his heires and assignes fore<sup>u</sup>, as the same is bounded following, viz: All that pcell of land lying on the south side Joanes Riuer, ranging along the said riuer vp to the great swamp called Joanes Ri<sup>u</sup> Swampe, the land℥ of Clement Briggs and M<sup>r</sup> Thomas Prence lying on some pt of the south side thereof; and also that marsh ground layd forth to belong to the said pcell of land℥ lying at the easterly end thereof, and ru<sup>n</sup>ing along the said Joanes Riuer, tog<sup>e</sup>ther w<sup>th</sup> the long marsh adjoyneing therevnto, as the same are now bounded forth; & also one pcell of fresh marsh lying at the head of Joanes Riuer Swamp, containeing about foure acres, be it more or lesse, to haue & to hold the said pcell of vpland and marshes therevnto belonging, w<sup>th</sup> all and singuler their app<sup>t</sup>enc℥, vnto the said John Browne, his heires & assignes fore<sup>u</sup>, to the onely pp use & behoofe of him, the said John Browne, his heires and assignes fore<sup>u</sup>: provided alwayes, that the said pcell of vpland do not extend itself southerly vpon the land℥ of the said M<sup>r</sup> Thomas Prence as to head any pte of the same.

\*Whereas at a Court of Assistant℥ held the third day of Decemb<sup>r</sup>, in the [\*202.]



1639.

3 June.  
PRENCE,  
Gov.

fourteenth yeare of the raigne of our soſaigne lord, Charles, by the grace of God of England, Scotland, France, & Ireland King, defender of the fayth, &c, one hundred and fifty acres of land℥ were graunted vnto Mr Wil<sup>m</sup> Vassell, of Scituate, lying vpon the North Riuer ; and whereas, by a further order of the Court held the first of Aprill in the xv<sup>th</sup> yeare of his said ma<sup>ties</sup> now raigne, of England, &c, Mr Wil<sup>m</sup> Bradford, Mr Edward Winslow, & Mr John Browne were appoynted to view and lay forth the said pcell of land℥ vnto the said Wil<sup>m</sup> Vassall, the said Wil<sup>m</sup> Bradford & Edward Winslow haue, vpon view thereof taken the xvj<sup>th</sup> day of May last past, appoynted the bound℥ thereof to be in man<sup>r</sup> & forme following, viz<sup>t</sup>: to begin on that neck of land w<sup>ch</sup> lyeth vpon thother side of the North Riuer, right ouer against the lands of the said Wil<sup>m</sup> Vassall, which are scituate & being on Scituate side, that is to say, on that corner w<sup>ch</sup> lyeth toward℥ the northwest, and to extend towards the east two hundred roodd℥ or perches, vpon a straight lyne, & likewise begi<sup>n</sup>ing at the corner aforesaid, & so to extend vpon a straight lyne towards the south one hundred and twenty roodds, and from thend of the first men<sup>c</sup>oned lyne of two hundred rodds, to extend vpon a straight line southwards into the woods one hundred & twenty roodds, and from thend of the second men<sup>c</sup>oned lyne of one hundred & twenty rodds, to extend two hundred rodds vpon a straight line into the woodland towards the east, so that the two cross lynes meeteing in the woods land℥, will make the s<sup>d</sup> pcell of land to lye in forme of a longe square. And also all that marsh or moweing ground that abutteth vpon any or euery p<sup>t</sup> of the said vpland before men<sup>c</sup>oned, lying north & west & northwest, betweene the said vpland & the said North Riuer, & a certaine creek there ru<sup>n</sup>ing vpon the west side, & so farr on the north side as where the said North Riuer comes hoame to the said vpland, and so far vpon the west side as the said hundred & twenty rodd do extend, directly as the s<sup>d</sup> lynes do extend themselues out of the woods to the North Riuer and creeke aforesaid, now called or knowne by the name of West Newland, to haue & to hold the said pcell of vpland and marsh or mowing ground so butted and bounded as aforesaid, w<sup>th</sup>all & singuler their app<sup>r</sup>tenc℥ to the said Wil<sup>m</sup> Vassall, his heires & assignes fore<sup>eu</sup>r, and to the onely pp use and behoofe of him the said Wil<sup>m</sup> Vassall, his heires & assignes fore<sup>eu</sup>r.

\*1639. BRADFORD, GOUN<sup>R</sup>.

1639.

CONCERNEING the order for the leighter, the Court doth order as followeth :—

That the leighter master shall haue x<sup>s</sup> for his man and his leighter for xxiiij howers ; and if he happen to be windbound, and shalbe stayed longer then three dayes, that then he shall haue but half pay, that is, v<sup>s</sup> for euery day & night that hee shalbe stayed afterward℥, for his man & leighter.

3 June.  
BRADFORD,  
GOUN<sup>R</sup>.

[\*204.]

*\*At a Gen<sup>r</sup>all Court of o<sup>r</sup> Sou<sup>r</sup>aigne Lord the King, held the fourth Day of June, in the xv<sup>th</sup> Yeare of the Raigne of o<sup>r</sup> said Sou<sup>r</sup>-aigne Lord, Charles, by the Grace of God King of England, &c.*

4 June.  
NEW PLYM.  
[\*205.]

BEFORE Willm Bradford, gent., Goun<sup>r</sup>,  
Thomas Prence,  
Capt. Miles Standish,  
John Alden,

W<sup>m</sup> Collyer,  
John Browne,  
Tymothy Hatherley, &  
John Jenney,

Gent., Assist. of the said gout.

M<sup>R</sup> WILLM BRADFORD sworne Gounor.

|                       |   |                    |
|-----------------------|---|--------------------|
| Mr Thomas Prence,     | } | sworne Assistant℥. |
| Capt. Miles Standish, |   |                    |
| Mr John Alden,        |   |                    |
| Mr Willm Collyer,     |   |                    |
| Mr John Browne,       |   |                    |
| Mr Tymothy Hatherley, |   |                    |
| Mr John Jenney,       |   |                    |

Constables.

|                                                    |   |         |
|----------------------------------------------------|---|---------|
| George Bower for Plymouth,                         | } | sworne. |
| Steephen Tracy for Duxborrow,                      |   |         |
| Humfrey Turner for Scittuate,                      |   |         |
| George Allen,  <br>†Thom: Armitage,† for Sandwich, |   |         |
| John Stronge for Cohannett,                        |   |         |
| Willm Chase for Yarmouth,                          |   |         |
| Willm Casely for Barnestable,                      |   |         |

1639.

4 June.

BRADFORD,  
GOV<sup>R</sup>.

Preutr.

## The Grand Inquest, &amp;c.

|                              |   |         |                         |   |         |
|------------------------------|---|---------|-------------------------|---|---------|
| oMr Wil <sup>m</sup> Thomas, | } | sworne. | John Jenkine,           | } | sworne. |
| John Winslowe,               |   |         | oPhillip Delanoy,       |   |         |
| Christopher Waddesworth,     |   |         | oJohn Paybody,          |   |         |
| Geor <sup>g</sup> Watson,    |   |         | oWil <sup>m</sup> Wood, |   |         |
| Nathaniell Morton,           |   |         | oSamuell Fuller,        |   |         |
| Samuell Hinckley,            |   |         | Richard Church,         |   |         |
| Richard Sparrow,             |   |         | John Deane,             |   |         |
| Wil <sup>m</sup> Hoskine,    |   |         | Robt Linnell,           |   |         |
|                              |   |         | oIsaack Robinson,       |   |         |

[\*206.]

|                                         |   |                            |
|-----------------------------------------|---|----------------------------|
| *Mr Wil <sup>m</sup> Wood, of Sandwich, | } | admitted freemen & sworne. |
| Mr Comfort Starr, of Duxborrow,         |   |                            |
| Thomas Payne,                           |   |                            |
| Phillip Tabor, of Yarmouth,             |   |                            |

The Committees or Dep<sup>ties</sup> for eich Towne.

|                  |   |                                                  |                             |
|------------------|---|--------------------------------------------------|-----------------------------|
| For Plymouth,    | { | ‡Mr John Done,‡                                  |                             |
|                  | { | William Paddy,                                   |                             |
|                  | { | Manasseth Kempton,                               |                             |
|                  | { | John Cooke, Jun.,                                |                             |
| For Duxborrow,   | { | John Dunhame.                                    |                             |
|                  | { | Jonathan Brewster,                               |                             |
| For Scituate,    | { | Edmond Chaundler,                                |                             |
|                  | { | Anthony Annable,                                 |                             |
| For Sandwich,    | { | Edward Foster.                                   |                             |
|                  | { | Richard Burne,                                   |                             |
| For Cohannet,    | { | ‡Thomas Armitage,‡ Mr John Vincent.              |                             |
|                  | { | ‡Capt. Wil <sup>m</sup> Poole,‡ Mr John Gilbert, |                             |
| For Yarmouth,    | { | Henry Andrewes.                                  |                             |
|                  | { | Thomas Payne,                                    |                             |
| For Barnestable, | { | Phillip Tabor.                                   |                             |
|                  | { | Mr Joseph Hull,                                  |                             |
|                  | { | Mr Thom <sup>m</sup> Dimmack,                    | made in Decemb <sup>r</sup> |
|                  |   |                                                  | Court, 1639.,               |

Memorand: that Mr Wil<sup>m</sup> Bradford and his ptners doe giue the colonies warneing that they will hold the trade no longer then Nouemb<sup>r</sup> next, that some other course may be thought vpon against that tyme for the continuance of yt.

Mr Henry Feake, of Sandwich, desireth to be admitted a freeman the next Court.

John Smyth, for vncleanes w<sup>th</sup> his wyfe before marriage, is censured to be whipt : was accordingly executed.

Dorothy Temple, for vncleanes and bringing forth a male bastard, is censured to be whipt twice ; but shee faynting in the execu<sup>co</sup>n of the first, thother was not executed.

M<sup>r</sup> John Done is allowed to draw wine vntill the next Court, that further order may be taken therein.

\*It is ordered, by the consent of the whole Court, that a com<sup>is</sup>sion shalbe made and directed to M<sup>r</sup> Wilm Bradford & M<sup>r</sup> Edward Winslow, for the decideing of the contro<sup>u</sup>sie betwixt us and the Bay, conce<sup>r</sup>ning the bound<sup>l</sup>e of the patents, w<sup>ch</sup> was drawne and approued by Court, in these words following, viz<sup>t</sup> : —

To all X<sup>p</sup>ian people to whome these p<sup>r</sup>nt<sup>l</sup>e shall come, greeting, &c.

Whereas, for the avoyding and p<sup>r</sup>venting of all differenc<sup>e</sup> and contro<sup>u</sup>sies that might arise about or conc<sup>r</sup>ning the exten<sup>t</sup>l and limmitt<sup>l</sup>e of the patent<sup>l</sup>e of New Plymouth and Massachusett<sup>l</sup> Bay, and for the continuance and mayntenance of the auncient loue and amytie wee, the said inhabit<sup>s</sup> of the gou<sup>r</sup>ment of New Plymouth, haue alwayes most zealously desired to hold, obserue, and keepe w<sup>th</sup> our neighbour<sup>s</sup>, the inhabit<sup>s</sup> of the said Massachusett<sup>l</sup> Bay, know you that we, the Gou<sup>r</sup>n<sup>r</sup>, Counsell of Assistant<sup>l</sup>, and the rest of the whole com<sup>in</sup>altie and body of freemen of the s<sup>d</sup> gou<sup>r</sup>nt of New Ply<sup>m</sup>, being this day in publike Court su<sup>m</sup>oned and assembled together, haue, w<sup>th</sup> mutual and joynt assent and consent made, constituted, deputed, assigned, and authorised our right trusty & welbeloued Wilm Bradford, gent., and our Gou<sup>r</sup>nor, and Edward Winslow, gent., our joynt and pp deputies, agent<sup>l</sup>, and com<sup>is</sup>sion<sup>rs</sup>, to sollicite, conferr, com<sup>u</sup>ne, and entreate w<sup>th</sup> the dep<sup>ties</sup>, agent<sup>l</sup>, & com<sup>rs</sup>, deputed, constituted, authorised, and appoynted by the gou<sup>er</sup>nt & inhabit<sup>s</sup> of the said Mattachusett<sup>l</sup> Bay appoynted for the like purpose on their p<sup>ts</sup> & behalf, and finally to finish, determine, & sett forth the exten<sup>t</sup>l, limmitt<sup>l</sup>, and boundaries of the lands betwixt the two said pattent<sup>l</sup> and gou<sup>r</sup>nts, so as they may remayne and bee fore<sup>u</sup> hereafter v<sup>n</sup>alterable & invyolable p<sup>p</sup>etually w<sup>th</sup>out any further question, contention, contro<sup>u</sup>sie, debate, or difference whatsoe<sup>u</sup>. And whatsoe<sup>u</sup> our said deputies, agent<sup>l</sup>, & com<sup>ers</sup> shall doe, conclude, determine, & finish, or cause to be donne, concluded, determined, & finished, in, about, and concerning the said p<sup>r</sup>miss<sup>s</sup>, shalbe, and euer taken to bee, as ample, authentically, & effectually to all the said end<sup>l</sup>, intent<sup>l</sup>, & purposes as if the same had beene done & p<sup>r</sup>formed by the whole body & com<sup>in</sup>alty of the Gou<sup>r</sup>n<sup>r</sup>, Counsell of Assistant<sup>l</sup>, & freemen of the gou<sup>nt</sup> & corpora<sup>co</sup>n of Ply<sup>m</sup> afore-

1639.

4 June.  
BRADFORD,  
GOU<sup>R</sup>.

[\*207.]

1639.

4 June.  
BRADFORD,  
Gov<sup>r</sup>.

sd in their owne psons, and so to remayne absolutely w<sup>th</sup>out any contredic<sup>ti</sup>on or question whatsoe<sup>u</sup> hereafter, and to be entred vpon record at the next Gef<sup>n</sup>all Court after the returne of our said com<sup>rs</sup>, &c; provided this warrant & com<sup>is</sup>sion remayne in force the space of six months next after the date hereof, & no longer.

In witness whereof, &c.

[\*208.]

\*Richard Derby, of Plym<sup>th</sup>, gent., acknowledgeth to owe the

King, &c, . . . . . xl<sup>li</sup>.

Released.

John Combes, of the same, gent., . . . . . xx<sup>li</sup>.

Edward Dotey, of the same, yeom., . . . . . xx<sup>li</sup>.

The condi<sup>ti</sup>on that if the said Richard Derby shall appeare at the Gef<sup>n</sup>all Court to be holden in June next to answe<sup>r</sup>e to all such matters as on his mat<sup>ies</sup> behalf shalbe objected against him conc<sup>r</sup>neing the giueing of an empy-soned potion of drinke to John Dunford & diuers others at his comeing out of England, whereby they were endangered of their liues, and abide the further order of the Court, and not dep<sup>t</sup>e the same w<sup>th</sup>out lycence; that then, &c.

#### Fines & Censures.

John Dunford, for his slaunders, clamors, lude & euell carriage, p<sup>u</sup>ed as well by his owne confession as otherwise, is censured to dep<sup>t</sup>e the go<sup>u</sup>ment w<sup>th</sup>in the space of three months next ensuing, and in the meane tyme well to behaue himself, and if after his dep<sup>t</sup>ure he shalbe found w<sup>th</sup>in the go<sup>u</sup>ment againe, to be whipt & sent from constable to constable out of the go<sup>u</sup>ment.

Raph Gooame, for breakeing the Kings peace vpon Web }  
Ady, fin<sup>d</sup> . . . . . } x<sup>s</sup>.

John Wakefeild, for takeing xvij<sup>d</sup> p day, & dyett 16 days, }  
is fyned . . . . . } xij<sup>s</sup>.

Richard Willis, for the like, for ij dayes, . . . . . xvij<sup>d</sup>.

11 June.

Memorand<sup>o</sup>, the xj<sup>th</sup> of June, 1639: that whereas vpon a form<sup>r</sup> contract James Bushop was absent from the service of his m<sup>r</sup>, M<sup>r</sup> Thof<sup>n</sup> Farrall, of Cohannat, the space of one yeare or thereabout<sup>l</sup>, it is this day concluded & agreed vpon betwixt them, that the said James Bushop shall serue his said m<sup>r</sup>, Thomas Farrall, half a yeare after the term<sup>e</sup> is expired, w<sup>ch</sup> by his inden-  
ture the said James is to serue the said Thomas, and to come to the said Thomas the xxij<sup>th</sup> of this instant moneth of June.

24 June.

[\*209.] \*Memorand<sup>o</sup>, the xxiiij<sup>th</sup> of June: that Mary Moorecock hath of her owne voluntary will, w<sup>th</sup> consent of her father in law, Thomas Whitton, put herself

apprentice w<sup>th</sup> Richard Sparrow, of Plymouth, and Pandora, his wyfe, and after the manner of an apprentice w<sup>th</sup> them to dwell from the day of the date hereof vnto thend & terme of nyne yeares now next ensuing, & fully to be compleate & ended; the s<sup>d</sup> Richard Sparrow fynding his said servant meate, drink, & apparell during the said terme, and shall also keepe her a ewe lambe w<sup>ch</sup> her said father in law will bestow vpon her during the said terme, and shall haue the thir<sup>d</sup> p<sup>te</sup> of thencrease thereof for his charg<sup>e</sup> & labour: provided that if the said Richard & his wyfe shall dye & dep<sup>te</sup> this life before thend of the said terme, that then the said Mary shalbe free; and in the meane tyme that the said Richard nor his wyfe shall assigne or set ouer the s<sup>d</sup> Mary for her service during the s<sup>d</sup> terme to any other, w<sup>th</sup>out consent and likeing of the s<sup>d</sup> Mary & her frend<sup>e</sup>. And if it shall happen that the said Mary shall haue a motion of marriage before thend of the said terme, that then it shalbe referred to two indifferent men to arbitrate what the said Richard shall haue for his charges he shall haue beene at w<sup>th</sup> her.

1639.

24 June.  
BRADFORD,  
GOVN<sup>r</sup>.

Memorand, the xiiij<sup>th</sup> day of August, 1639: that John Barnes hath, w<sup>th</sup> 13 August.  
and by the consent of the w<sup>th</sup>in bounden Symon Trott, in considera<sup>o</sup>n of the s<sup>u</sup>me of eight pound<sup>e</sup> ster<sup>t</sup>, to be payd in March next, hath assigned and set ouer the terme of service of the said Symon, yet vnexpired, vnto Thomas Clark; the said Thomas p<sup>o</sup>rformeing the couenant<sup>e</sup> w<sup>ch</sup>, on the p<sup>t</sup> of the said John Barnes, are to be p<sup>o</sup>rformed. And the said Symon Trott doth further couenant & agree to and w<sup>th</sup> the said Thomas Clark, to serue him the space of seauen yeares from the seauenth day of this instant August next ensuing, and fully to be compleat, the said Thomas Clarke giueing him a heiffer calf of eight week<sup>e</sup> old when that six yeares of the said terme are expired, and keepe it him till his tyme be expired, and giue him the xij bushells of Indian corne at thend of the said terme; and if the said Symon do happen to dep<sup>t</sup> his said masters service w<sup>th</sup>out lycence, by ru<sup>n</sup>ing away, the said Symon doth p<sup>o</sup>mise to serue the s<sup>d</sup> Thomas two yeares ouer and aboue his terme for cuery tyme that hee shall so runn away before the expira<sup>o</sup>n of the said terme of seauen yeares.

[\*210.]

\*Tho<sup>m</sup> Riddings & Ellene Penny marryed the xx<sup>th</sup> July, 1639.

20 July.

Richard Knowles and Ruth Bower marryed the xv<sup>th</sup> August, 1639.

15 August.

Memorand, the last day of August, 1639: that Richard Higgens for & in considera<sup>o</sup>n that John Smaley shall teach Samuell Godbertson the trade of a taylor, as farr as in him lyeth, & principally imploy him therein, hath assigned & set ouer all the residue of his terme, w<sup>ch</sup>, by indenture, he is to serue the said Richard Higgens, vnto the said John Smaley, w<sup>ch</sup> is vntill Aprill, w<sup>ch</sup> shalbe in the yeare of our Lord 1641, the said Richard Hig-

31 August.

1639.

31 August.  
BRADFORD,  
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gens fynding the said Samuëll apparell during the said terme, and the said John Smaley meate, drinke, & lodginge.

3 September.  
NEW PLYM.  
[\*211.]

*\*At the Geñall Court of oʳ Souʳaigne Lord the King, held at Plym̃ afores<sup>d</sup>, the third Day of Septembr, in the xv<sup>th</sup> Yeare of the Raigne of our s<sup>d</sup> Souʳaigne Lord, Charles, by the Grace of God of England, Scotland, France and Ireland King, Defendor of the Fayth, &c.*

|        |                                                       |                                       |
|--------|-------------------------------------------------------|---------------------------------------|
| BEFORE | Wiltm Bradford, gen <sup>t</sup> , Goũ,               | Wiltm Collyer, gen <sup>t</sup> ,     |
|        | Thoũ Prence, gen <sup>t</sup> ,                       | Tymothy Hatherley, gen <sup>t</sup> , |
|        | Cap <sup>t</sup> Miles Standish, gen <sup>t</sup> ,   | John Jenney, gen <sup>t</sup> , &     |
|        | John Alden, gen <sup>t</sup> ,                        | John Browne, gen <sup>t</sup> ,       |
|        | Assistant <sup>l</sup> of the s <sup>d</sup> goũment. |                                       |

**J**OHN BLAKEMORE allowed to exercise the inhabitant<sup>l</sup> of the towne of Sandwich in the use of armes.

Wiltm Palmer allowed the like for Yarmouth.

Georg Allen admitted freeman, & after also sworne constable of Sandwich for the remaynder of this yeare.

It is ordered by the Court, that the corne seised vpon, w<sup>ch</sup> M<sup>r</sup> Callecutt bought of the Indians about Teightaucutt and Cohannet, contrary to the order of the Court, shalbe thone half giuen to the s<sup>d</sup> M<sup>r</sup> Callecutt, he allowing the charges.

Vpon the peti<sup>c</sup>on of George Morrell the Court doth order, that M<sup>r</sup> Collyer and Jonathan Brewster shall conferr and conclud w<sup>th</sup> John Handmore, or any other, to keepe him vpon such reasonable condi<sup>c</sup>ions as they shall think fitt, and to allow a por<sup>c</sup>on of lande toward<sup>l</sup> the mayntenance of him.

It is graunted by the Court, that M<sup>r</sup> Andrew Hellot shall haue his greate lott of two hundred acres at Yarmouth 80 pole in breadth, at the first beginning at the head of the cōe from the marked trey, & to beare vp that breadth fourty pole in leng<sup>h</sup>, and afterward<sup>l</sup> to bee enlarged in breadth in the ranging of yt toward<sup>l</sup> thother end, w<sup>ch</sup> was afterward<sup>l</sup> layd forth in forme following, viz<sup>t</sup>: from the s<sup>d</sup> tree on the east sid vpon a southerly line 40 pole, and then enlarged in breadth toward<sup>l</sup> the east 20 pole, & extending in leng<sup>h</sup> 60 pole, and from thence in breadth 38 pole, and from thence extends still in leng<sup>h</sup> 100

pole beyond a great pond to thend thereof; and on the north & norwest side from the said trē, 80 pole in breadth, and in length first 40 pole, & then enlarged to the westward 50 pole in breadth, & thence extending itself 160 pole, and the south side thereof vpon a straight line 188 pole.

\*For the towne of Yarmouth, it is ordered by the Court, that it shall not be lawfull for any man dwelling there to purchase two house lott℥ or more, to lay them together & mayntaine but one house vpon them; but if any doe so, the bargaine & sale to be voyde.

Whereas, by complaint, it is very pbable that diuers of the committees of Sandwich hane not faythfully discharged that trust reposed in them, by receiueing into the said towne diuers psons vnfit for church societie, w<sup>ch</sup> should hane beene their cheife care in the first place, and hane disposed the greatest p<sup>t</sup> of the land℥ there already, and to very few that are in church societie or fit for the same, so that w<sup>th</sup>out speedy remedy our cheifest end wilbe vtterly frustrate, — these are to require such of the committees as are herein faulty to appeare at the next Court of Assistant℥, to answere the complaint, and in the meane tyme not to dispose of any more land℥ there, w<sup>th</sup>out further order from the Court, nor make sale nor convey any of their land℥ they hane assumed to themselves to any pson.

It is ordered by the Court, that a ‡herring‡ ware to take fish shalbe erected at Joanes Riuer.

The like liberty is graunted for a ware to take fish at Mortons Hole, Eagles Nest, and Blewfish Riuer.

It is ordered by the Court in regard that many do want lands w<sup>ch</sup> were heare when the diuision of land℥ and goods were made about twelue yeares since, shall hane liberty to go & seeke out a conuenient place, or two, or three, for their accomōdaçon, that, vpon report thereof vnto the Court, the s<sup>d</sup> land℥ may be confirmed vnto them.

Vpon the p<sup>s</sup>entment ag<sup>t</sup> Isaack Stedman & John Emerson conc<sup>n</sup>ing James Till, the Court doth order, that the said Isaack Stedman shall returne the said Till thē lamb or goate, w<sup>th</sup> the encrease, w<sup>ch</sup> was deliued to him, he paying for the keepeing thereof, and that the said James Till shall serue out the remaynder of his fīue yeares terme w<sup>th</sup> John Emerson, but no longer, except vpon new agreement.

\*Isaack Steedman, of Scituate, for not appeareing at the Court, }  
 & contemning the Goūn's warrant, is fyned . . . . . } x<sup>l</sup>s.  
 John Emerson, for suffering disorders in his house by drinking, }  
 is fyned . . . . . } v<sup>li</sup>.

1639.

3 September.  
 BRADFORD,  
 Goū.

[\*212.]

[\*213.]



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3 September.  
BRADFORD,  
GOV<sup>R</sup>.

Mr John Holmes, the messenger, for drinking inordinately, }  
fyned . . . . . } xl<sup>s</sup>.

Mr Nathaniel Thomas, for being drunken, fyned . . . . . v<sup>d</sup>.

Robte Waterman, for the like, fyned . . . . . xl<sup>s</sup>.

Mr John Combe, for being drunken, is disfranchised of his freedome.

James Till, for lying, & allureing John Bryan to drinking, and slander-  
ing his dame Emson, saying he would go whome & lye w<sup>th</sup> her, is censured  
to be whipt.

John Bryan discharged, w<sup>th</sup> admoniçon.

Mary, the wyfe of Robte Mendame, of Duxborrow, for using dallyance  
diuers tymes w<sup>th</sup> Tinsin, an Indian, and after committing the act of vnclean-  
esse w<sup>th</sup> him, as by his owne confession by sefall interpters is made appar-  
ent, the Bench doth therefore censure the said Mary to be whipt at a cart<sup>l</sup>  
tayle through the townes street<sup>l</sup>, and to weare a badge vpon her left sleecue  
during her abroad w<sup>th</sup>in this goũt ; and if shee shalbe found w<sup>th</sup>out it abroad,  
then to be burned in the face w<sup>th</sup> a hott iron ; and the said Tinsin, the Indian,  
to be well whipt w<sup>th</sup> a halter about his neck at the post, because it arose  
through the allurement & inticement of the said Mary, that hee was drawne  
therevnto.

Xpofor Winter, of Scituate, for committing vncleanesse w<sup>th</sup> Jane, his  
wyfe, before marriage, is censured to be whipt at the post at the Goũn<sup>rs</sup> discre-  
tion ; and the said Jane, his wyfe, to be whipt at a carts tayle w<sup>th</sup> the said  
Mary Mendame.

Such as are pposed to be Freemen the next Court.

|                               |   |               |
|-------------------------------|---|---------------|
| Richard Smith,                | } | of Cohannett. |
| Wil <sup>m</sup> Parker,      |   |               |
| John Smyth,                   |   |               |
| Mr Thom <sup>l</sup> Farrall, |   |               |
| Mr David Kerwythy,            |   |               |
| Mr     ^     Hallowell,       | } | of Yarmouth.  |
| Mr Thomas Howes,              |   |               |
| Wil <sup>m</sup> Palmer,      |   |               |

25 September.

[\*214.] \*The xxv<sup>th</sup> Septemb<sup>r</sup>, 1639. Memorand: that Mr Henry Feake, of  
Sandwich, w<sup>th</sup> and by the consent of Edmond Edward<sup>l</sup>, his servant, hath  
assigned and made ouer vnto John Barnes, of Plym<sup>l</sup>, all the residue of the  
terme w<sup>ch</sup> by indenture the said Edmond is to serue the s<sup>d</sup> Mr Feake, to serue  
it forth w<sup>th</sup> the said John Barnes, the said John Barnes fynding vnto the said  
Edmond meate, drinke, lodging, & washing, during the terme ; and instead

of apparell, pay him for the first three pound℥ sterl., and for euery yeare after three pound℥ tenn shillings ster℥, during the 3<sup>d</sup> terme ; & in thend thereof, double apparell him w<sup>th</sup> one suite for Lord℥ dayes, & another for workeing dayes, & pay him six pound℥ ster℥.

1639.

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BRADFORD,  
GOVN<sup>r</sup>.

Memorand : that this Court, Vssamequin and Mooanam, his sonn, came into the Court in their owne p<sup>er</sup> p<sup>er</sup>sons, and desired that the auncient league & confederacy formerly made w<sup>th</sup> this gouernment, wherein he acknowledgeth himself subject to the King of England, & his successors, may stand and remayne inviolable. And the said Vssamequin and Mooanam, his sonn, for themselves and their successors, do faythfully p<sup>ro</sup>mise to keepe and obserue the couenant℥ and condi<sup>ti</sup>ōns therein expressed & contayned, w<sup>ch</sup> on their part℥ are to be kept and observed. And the said Vssamequin & Mooanam, his sonn, do now also p<sup>ro</sup>mise to the whole Court, that he nor they shall or will needlesly or vnjustly raise any quarrells or doe any wronge to other natiues, to p<sup>ro</sup>voke them to warr against him ; and that hee or they shall not giue, sell, or convey away any of his or their land℥, territories, or possessions whatsoeu<sup>r</sup>, to any person or persons whomsoeuer, w<sup>th</sup>out the priuitie & consent of this gouernment, other then to such as this go<sup>u</sup>rn<sup>mt</sup> shall send and appoynt, all w<sup>ch</sup> condi<sup>ti</sup>ōns the said Vssamequin and Mooanam, his sonn, for themselves and their successors, do faythfully p<sup>ro</sup>mise to obserue & keepe. And the whole Court, in the name of the whole go<sup>u</sup>rn<sup>mt</sup>, for eich towne respectiue, do likewise ratifie and confirme the foresaid auncient league and confederacy, and do also further p<sup>ro</sup>mise to the said Vssamequin & Mooanam, his sonn, and their successors, that they shall and will from tyme to tyme defend the said Vssamequin & Mooanam, his sonn, & their successors (when neede & occation shall require) against all such as shall vnjustly rise vp against them to wrong or oppresse them vnjustly.

\*At a meeting at Sandwich the 3<sup>d</sup> of Octobr, 1639, wherein M<sup>r</sup> Thomas Prence and Captaine Standish were appoynted by the go<sup>u</sup>rn<sup>mt</sup> to heare and determine all differenc℥ & contro<sup>u</sup>ersies amongst the co<sup>m</sup>ittees and inhabit<sup>s</sup> of the said towne of Sandwich.

3 October.

[\*215.]

Whereas Joseph Winsor hath a lott in the towne of viij pole broad, & xij pole long, or there about℥, w<sup>ch</sup> he purchased of Tho<sup>m</sup> Shillingsworth, w<sup>ch</sup> was Tho<sup>m</sup> Hamptons, deceased, and that the place is fitt for a publike vse, it is ordered, that the towne shall haue it for other use, they giueing the 3<sup>d</sup> Joseph Winsor as much as the same is worth ; and in the meane season the 3<sup>d</sup> Winsor to keepe his possession thereof vntill he be p<sup>ro</sup>vided for elsewhere.

Forasmuch as the neck of land called Moonuscaulton is by all or most p<sup>ar</sup>t of the inhabitants adjudged to be fitt for breeding vp yeong cattell, it is

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concluded and agreed vpon by the geñall consent of the inhabit<sup>s</sup> of Sandwich, that the said neck of land called Moonuscaulton shalbe reserued to the towne as a common, for the breeding of their yeong cattell, and not to be appropriated to any mans p̃ticular, w<sup>th</sup>out consent of the whole towne, and approba<sup>c</sup>õn of the goũt, saue that the wood therevpon shalbe free for all to take of, p̃uided it be w<sup>th</sup>out wast and spoyle thereof.

The like is concluded and agreed vpon for the other neck of land called Shaume Neck, lying betwixt the Riuers of Shaume & Manuscussett, to be reserued for a comon for the towne, and not to be appropriated to any mans p̃ticular w<sup>th</sup>out consent of the whole towne, and approba<sup>c</sup>õn of the goũment, saue that the wood therevpon shalbe free for all to take thereof, p̃uided it be w<sup>th</sup>out waste & spoyle thereof.

It is also concluded & agreed vpon both by the com̃ittees & other the inhabit<sup>s</sup> of Sandwich, that for the redressing of the negligence of the com̃ittees in receiueing into the towne many inhabit<sup>s</sup> that are not fitt for church societie, & for p̃venting of like euell for ensuinge tyme, it is ordered, that none hereafter shalbe admitted into the towne, or haue landℓ assigned them by the com̃ittees, w<sup>th</sup>out consent & approba<sup>c</sup>õn of M<sup>r</sup> Leſlich & the church first had & obtayned. And likewise that such of the now inhabit<sup>s</sup> as are disposed to sell their estatℓ and deſt the towne, they shall not sell their labours to any p̃son except he be geñally approoued of by the whole towne.

And lastly, for the p̃uenting of dangers, euells, & discordℓ, that may happen in the disposall of landℓ, or other occations w<sup>th</sup>in the towne, it is concluded and agreed vpon, that the towne shall from tyme to tyme make choyce of some one of the Assistantℓ, and at p̃sent of M<sup>r</sup> Thom̃ Prence, to be joyned w<sup>th</sup> the com̃ittees to whom from tyme to tyme they shall haue recourse to aduise w<sup>th</sup>, and receiue direc<sup>c</sup>õns from, in all such occations as hereafter shalbe needfull.

[\*216.]

- |              |                                                                                                                                    |
|--------------|------------------------------------------------------------------------------------------------------------------------------------|
| 8 October.   | *Heugh Norman & Sarah White married the viij <sup>th</sup> Octob <sup>r</sup> , 1639.                                              |
| 9 October.   | Gyles Hopkins & Katherine Wheldon married the ix <sup>th</sup> Octob <sup>r</sup> , 1639.                                          |
| 11 October.  | Richard Willis & Amey Glasse married the xj <sup>th</sup> Octob <sup>r</sup> , 1639.                                               |
|              | Samuell Tompkins & Lettis Foster married the xj <sup>th</sup> Octob <sup>r</sup> , 1639.                                           |
| 16 October.  | Morris Truant & Jane     ^     married the 16 <sup>th</sup> Octob <sup>r</sup> , 1639.                                             |
| 8 November.  | Anthony Snowe and Abigall Warren married the viiiij <sup>th</sup> Novemb <sup>r</sup> , 1639.                                      |
| 10 November. | Thomas Pynson & Joane Stanley married the x <sup>th</sup> Novemb <sup>r</sup> , 1639.                                              |
| 20 November. | Samuell Jackson & Hester Silis married the xx <sup>th</sup> Novemb <sup>r</sup> , 1639.                                            |
| 24 November. | William Paddy, of Plymouth, m̃chant, & Alice Freẽman, of Sandwich, married the xxiiij <sup>th</sup> of Novemb <sup>r</sup> , 1639. |
| 22 November. | Thomas Whitton and Winyfride Harding married 22 <sup>th</sup> Nouemb <sup>r</sup> , 1639.                                          |

*\*At a Court of Assistant℥ held the viij<sup>th</sup> of October, in the xv<sup>th</sup> Yeare of his Ma<sup>ties</sup> now Raigne, of England, &c.* 1639.

7 October.  
BRADFORD,  
GOV<sup>R</sup>.  
[\*217.]

BEFORE Wilm Bradford, gent., Go<sup>vr</sup>,      Wilm Collyer,  
Thom<sup>as</sup> Prence,                                  John Jenney, &  
Capt. Miles Standish,                        John Browne,  
John Alden,  
Gent., Assistant℥, &c.

**W**ILLM CLARK, of Yarmouth, tooke the oath of allegiance & fidelity, and was also sworne to execut the office of a constable at Yarmouth vntill June next.

It is ordered by the Court, that a paire of stock℥ & a pound shalbe p<sup>re</sup>sently erected in Yarmouth, and the constable to see them done, & haue a warrant to distrayne such as shall refuse to pay what he shalbe assessed to the charg thereof, as also a warrant to levy the charges of the co<sup>m</sup>ittees of the said towne that attend the Court℥.

Edward Morrell, being sworne, deposeth & sayth, that W<sup>m</sup> Chase (at his returne hoame from the Court when M<sup>r</sup> Mathewes & hee were here together) did report that M<sup>r</sup> Mathewes had nothing to say for himself, & that he marvelled how any durst joyne w<sup>th</sup> him in the fast, & further said that some being then in p<sup>re</sup>sence w<sup>th</sup> the ma<sup>trats</sup>, did hold vp his hand, & cryed, Fye fye! for shame!

Captaine Miles Standish, M<sup>r</sup> Alden, & M<sup>r</sup> Ed. Winslow are appoynted to lay forth the land℥ and meadow graunted to Job Cole, as also the land℥ graunted to Francis Godfray & Robert Carver, and to p<sup>ro</sup>portion their number of acres.

Thomas Clarke is graunted liberty to erect a house at Mannamett Pond℥, to fodder his cattle in this winter, vntill some land℥ be there layd forth for him.

It is ordered by the Court, that the seauenteene acres of meadow lying at the Stoney Coe, in Yarmouth, shalbe layd forth for M<sup>r</sup> Andrew Hellot, on the southwest side of the sd coe, & if it want of that p<sup>ro</sup>portion, then to be made vp on th<sup>o</sup>ther side, and ten acres more vpon the Stoney Coe Neck.

It is ordered, that there shalbe six men of the towne of Plym<sup>outh</sup>, and three men of the towne of Duxborrow, chosen to asseesse the charges of both townes for the charges of the bridg<sup>e</sup> ou<sup>er</sup> Joanes Riuer.

John Carew is allowed to be for himself vpon the continuance of the

1639. good report of his carriage & demean<sup>r</sup>; & at a Court of Assistant℥ held the  
 fourth of Novemb<sup>r</sup> next after, Edmond Weston is lycenced to liue w<sup>th</sup> John  
 Carew, & to be p̃tner w<sup>th</sup> him in workeing and planting vpon the s̃d John Ca-  
 rews land, vpon their good demean<sup>r</sup> together.

7 October.  
 BRADFORD,  
 GOV<sup>N</sup><sup>R</sup>.

2 December. \**At a Court of Assistant℥, held the second of Decemb<sup>r</sup>, in the xv<sup>th</sup>*  
 [\*218.] *Yeare of the Raigne of o<sup>r</sup> Sou<sup>a</sup>igne Lord, Charles, by the*  
*Grace of God King of England, &c.*

|                                        |                                             |                            |
|----------------------------------------|---------------------------------------------|----------------------------|
| BEFORE W <sup>m</sup> Bradford, gent., | Go <sup>u</sup> <sup>n</sup> <sup>r</sup> , | Will <sup>m</sup> Collyer, |
| Thomas Prence,                         |                                             | Tymothy Hatherley,         |
| Capt. Miles Standish,                  |                                             | John Jenney, and           |
| John Alden,                            |                                             | John Browne,               |
| Gent <sup>l</sup> , Assistant℥, &c.    |                                             |                            |

WIL<sup>m</sup> FALLOWELL, Robert Finney, John Finney, & Thomas Lettis  
 are to haue garden places assigned them about Webbs feild, when  
 the Go<sup>u</sup><sup>n</sup><sup>r</sup>, M<sup>r</sup> Prence, & M<sup>r</sup> Jenney haue viewd yt.

M<sup>r</sup> Thomas Prence is graunted the p̃cell of ground lying betwixt John  
 Barnes garden and Geor<sup>g</sup> Watsons feild.

3 December. \**At a Gen<sup>r</sup>all Court held the third of Decemb<sup>r</sup>, in the xv<sup>th</sup> Yeare of the*  
 [\*219.] *Raigne of o<sup>r</sup> Sou<sup>a</sup>igne Lord, Charles, by the Grace of God*  
*of England, &c., Kinge, &c.*

|                                        |                   |                            |
|----------------------------------------|-------------------|----------------------------|
| BEFORE W <sup>m</sup> Bradford, gent., | Go <sup>u</sup> , | Will <sup>m</sup> Collyer, |
| Thomas Prence,                         |                   | Tymothy Hatherley,         |
| Capt. Miles Standish,                  |                   | John Jenney, &             |
| John Alden,                            |                   | John Browne,               |
| Gent <sup>l</sup> , Assistant℥, &c.    |                   |                            |

LYCEN<sup>Č</sup> or liberty is graunted to M<sup>r</sup> Will<sup>m</sup> Vassell to make an oyster  
 bank in the North Riuer, sixty rods in lenth, & crosse the said riuer,  
 in some conuenient place nere his farme there, called the West Newland, and

to appropriate it to his owne vse, forbidding all others to use the same w<sup>th</sup>out his lycence.

1639.

3 December.  
BRADFORD,  
GOU<sup>r</sup>.

M<sup>r</sup> Joseph Hull, M<sup>r</sup> Tho<sup>m</sup> Dimmack, Wilm Caseley, Robert Linnett, John Williams, John Twisden, Thomas Chambers, John Hewis, M<sup>r</sup> Anthony Thacher, & M<sup>r</sup> Wilm Kemp, admitted freemen this Court, & sworne accordingly.

Wilm Casely sworne constable w<sup>th</sup>in the ward of Barnestable, vntill June next.

The differenc<sup>e</sup> betwixt M<sup>r</sup> Samuell Gorton & Thomas Clarke are referred by consent of the said Tho<sup>m</sup> Clarke, and appoyntment of the Court, to Richard Church & Edward Banges as arbitrat<sup>rs</sup>, and John Dunhame as vmpire, to be decided & ended by them.

M<sup>r</sup> Joseph Hull & }  
M<sup>r</sup> Tho<sup>m</sup> Dimmack, } com<sup>i</sup>tees for Barnestable.

Thomas Lumbert is allowed to keepe victualling, or an ordinary, for entertainement of passengers, and to draw wyne at Barnestable, he keepinge good order in his house.

M<sup>r</sup> Steephen Hopkins, vpon his p<sup>s</sup>entment for selling a lookeing glasse for 16<sup>d</sup>, the like whereof was bought in the Bay for ix<sup>d</sup>, is referred to further informa<sup>ti</sup>on.

Joseph Beedle and Francis Sprague to be both warned to answe<sup>r</sup>e their p<sup>s</sup>entment<sup>e</sup> ag<sup>st</sup> them se<sup>u</sup>ally.

\*M<sup>r</sup> Garrat, of Scittuate, is fyned vpon a form<sup>r</sup> p<sup>s</sup>entm<sup>t</sup> for drawing wyne w<sup>th</sup>out lycence, xx<sup>s</sup>. [\*220.]

Thomas Clark, for extortion, in buy. a paire of boot<sup>e</sup> & spurrs for x<sup>s</sup>, & selling them againe for xv<sup>s</sup>, is fyned xxx<sup>s</sup>.

Jonathan Brewster, for neglect of the ferry at the North Riuer, is fyned xx<sup>s</sup> to the colony, & x<sup>s</sup> a peece to M<sup>r</sup> Groomes & Edmond Weston, if they will take yt.

M<sup>r</sup> Steephen Hopkins, for selling strong water w<sup>th</sup>out lycence, proued & confessed in Court, is fyned iij<sup>li</sup>.

Samuell Chaundler, of Duxborrow, planter, acknowledgeth to

owe the King . . . . . xli<sup>li</sup>.

Richard Higgens, of Plym<sup>th</sup>, taylor, . . . . . xx<sup>li</sup>.

James Hurst, of the same, plant<sup>r</sup>, . . . . . xx<sup>li</sup>.

Released.

The condi<sup>ti</sup>on that if the said Samuell Chaundler shall p<sup>s</sup>onally appeare at the next Gef<sup>al</sup>l Court of our so<sup>u</sup>aigne lord the King, to be holden for this go<sup>u</sup>m<sup>nt</sup>, to answe<sup>r</sup>e to all such matters as on his mat<sup>ies</sup> behalf shalbe objected against him, concerneing opprobrious & slanderous word<sup>e</sup> spoken by him



Memorand: the same day the said Richard Sparrow sould vnto Josias Winslow, of Plym, two of the foresaid steeres and the bull, for the sume of fifty pounds, of like current money, to be payd the same day, viz<sup>t</sup>, the second of Februar., anno Dñi 1641, to the said Richard, his execut<sup>rs</sup>, administrat<sup>rs</sup>, or assignes, at his now dwelling house in Plym aforesaid; provided alwayes, that when the said steeres are brought from Yarmouth, they shalbe equally matched into two paire by the said Josias, and what thone paire shalbe adjudged better then thother by the sd Josias, the said Richard shall either giue or refuse, at the choyce of the said Richard, and the said difference betwixt the said paire is to be payd at the day & place where thother money is to be payd. And it is further agreed vpon betweene the said Josias & Richard, that the said Richard shalbe at the charge to bring them from Yarmouth to Plym, and the said Josias shall keepe them all at Greenes Harbour at his charge, vntill thend of September following.

1639-40.

12 January.  
BRADFORD,  
GOVN<sup>r</sup>.

Witnes, NATHANIELL SOWTHER.

There was fourty shillings difference in the matching & paireing the said steers, w<sup>ch</sup> 40<sup>s</sup> the said Josias Winslow is to pay the said Richard Sparrow at the day & place where thother money is to be payd; viz<sup>t</sup>, the 2<sup>d</sup> of Februar., 1641. Quitt & payd.

\*The xiiij<sup>th</sup> Februa<sup>r</sup>, 1639. Memorand: that whereas James Glasse, servant to Henry Coggen, of Barnestable, is to serue the said Henry for the terme of fve yeares from the fourteenth day of June next ensuing, — now, the said Henry Coggen, for and in considera<sup>õ</sup>n of the sume of fifty shillings ster<sup>t</sup>, and twenty bushells of Indian corne, to him in hand payd by Manasseth Kempton, of Plym, hath, w<sup>th</sup> and by the consent of the said James Glasse, sould and assigned vnto the said Manasseth Kempton all the resedue of the terme of yeares w<sup>ch</sup> the said James is to serue him, the said Henry Coggen, to be serued forth w<sup>th</sup> the said Manasseth Kempton, and vntill the first of October following longer, the said Manasseth Kempton fynding the said James Glasse meate, drink, and apparell during the said terme. 13 February.  
[\*222.]

Francis Weston & Margery Reeues married the 27<sup>th</sup> of Februar., 1639. 27 February.

Samuell Kinge is graunted liberty to plant his land he bought of Mr Derby, & to build a house vpon it; but to lue in house, w<sup>th</sup> his father in law, Giles Rickett.

The last of Februar., 1639. Memorand: that whereas Wil<sup>m</sup> Honywell is to serue Mr Thomas Prence vntill June next, and some further tyme w<sup>ch</sup> he should also serue for absenting himself diners tymes from his seruice, — now, in considera<sup>õ</sup>n that they said Wil<sup>m</sup> Honywell shall wholly imploy 28 February.



1639-40.

28 February.  
BRADFORD,  
Go<sup>u</sup><sup>r</sup>.

himself in setting, planting, and weeding the acres of the said M<sup>r</sup> Tho<sup>m</sup> Prence, newly taken in on the south side of the towne Ply<sup>m</sup>, or as much thereof as hee cann, & not loyter or work w<sup>th</sup> any other man except it be for worke againe, or by lycence from M<sup>r</sup> Prence. The said M<sup>r</sup> Thomas Prence hath released the said Wil<sup>m</sup> Honywell all the terme he should haue serued him, and shall fynd him seede corne to set the land w<sup>th</sup>all; and the s<sup>d</sup> Wil<sup>m</sup> Honywell shall haue thone half of the crop at haruest for his paynes. And it is agreed vpon that the said W<sup>m</sup> Honywell shall remayne in house w<sup>th</sup> Thomas Atkinson, and that M<sup>r</sup> Prence shall allowe him so much in corne as hee shall agree w<sup>th</sup> the said Tho<sup>m</sup> Atkinson for, for his dyett & being in his house; and the said W<sup>m</sup> Honywell shall pay the corne againe to M<sup>r</sup> Prence out of his share of the crop at haruest, and that M<sup>r</sup> Prence will spare his goathouse to gather & dresse vp the corne in at haruest; and that herevpon the xij bushells of corne, w<sup>ch</sup> the s<sup>d</sup> Wil<sup>m</sup> should haue had at thend of his terme, is relinquished, onely the said Wil<sup>m</sup> is to haue the xxv acres of land according to his couenant.

3 March.  
NEW PLYM.  
[\*223.]

*\*At the Ge<sup>n</sup>all Court of o<sup>r</sup> Sou<sup>a</sup>igne Lord the K<sup>i</sup>nge, held at New Ply<sup>m</sup>, the third of March, in the xv<sup>th</sup> Yeare of his said Ma<sup>ties</sup> now Raigne, of England, &c.*

|                                                                           |                                  |
|---------------------------------------------------------------------------|----------------------------------|
| BEFORE Wil <sup>m</sup> Bradford, gen <sup>t</sup> , Go <sup>u</sup> ,    | Cap <sup>t</sup> Miles Standish, |
| Tho <sup>m</sup> Prence,                                                  | Tymothy Hatherley,               |
| Wil <sup>m</sup> Collyer,                                                 | John Jenney, &                   |
| John Alden,                                                               | John Browne,                     |
| Gen <sup>t</sup> , & Assistant <sup>l</sup> of the said go <sup>u</sup> . |                                  |

**M**<sup>R</sup> JOHN MAYO, of Barnestable, & Job Cole admitted freemen this Court & sworne.

M<sup>r</sup> Wetherell, M<sup>r</sup> Mathewe, Tho<sup>m</sup> Falland, & Gabriell Fallowell ppounded to take vp their freedome the next.

M<sup>r</sup> Wil<sup>m</sup> Bradford elected Gouvernor.

|                                          |                                |                                    |
|------------------------------------------|--------------------------------|------------------------------------|
| M <sup>r</sup> Thomas Prence,            | M <sup>r</sup> John Jenney,    | } elected Assistant <sup>l</sup> . |
| M <sup>r</sup> Wil <sup>m</sup> Collyer, | M <sup>r</sup> John Browne,    |                                    |
| Cap <sup>t</sup> Miles Standish,         | M <sup>r</sup> Edmond Freeman, |                                    |
| M <sup>r</sup> Tymothy Hatherley,        |                                |                                    |

M<sup>r</sup> Tymothy Hatherley elected Treasurer.

|                        |                                                                                        |                                                   |                                           |
|------------------------|----------------------------------------------------------------------------------------|---------------------------------------------------|-------------------------------------------|
| Plymouth, . . .        | Richard Sparrow,                                                                       | } Sworne.                                         | 1639-40.                                  |
| Duxborrow, . . .       | Joseph Rogers,                                                                         |                                                   |                                           |
| Scittuate, . . .       | Geor̃ Kennerrick,                                                                      | } Constables nominated<br>for the seſuall townes. | 3 March<br>BRADFORD<br>GOV <sup>R</sup> . |
| Sandwich, . . .        | M <sup>r</sup> W <sup>m</sup> Wood,                                                    |                                                   |                                           |
| Yarmouth, . . .        | W <sup>m</sup> Lumpkin,  <br>‡James Mathews,‡                                          |                                                   |                                           |
| Taunton, (not sworne,) | M <sup>r</sup> John Gilbert, Sen.,                                                     |                                                   |                                           |
| Barnestable, . . .     | ‡Willm: Caseley,‡<br>  John Cooper,                                                    |                                                   |                                           |
|                        |                                                                                        |                                                   |                                           |
| Plymouth, . . .        | { Nicholas Snow,<br>Richard Sparrow, &<br>Josiah Cooke, &<br>Tho <sup>m</sup> Cushman, | } Surveyors of the<br>heighwayes.                 |                                           |
| Duxborrow, . . .       | { Experience Michell &<br>Constant Southwood,                                          |                                                   |                                           |
| Scittuate, . . .       | { Richard Sillis &<br>John Lewes,                                                      |                                                   |                                           |
| Sandwich, . . .        | { Geor̃ Allen &<br>Richard Burne,                                                      |                                                   |                                           |
| Yarmouth,              | ^                                                                                      |                                                   |                                           |
| Taunton,               | ^                                                                                      |                                                   |                                           |
| Barnestable,           | ^                                                                                      |                                                   |                                           |

\*Thomas Ricard and Willm Crocker sworne this Court to the last will & testament of Daniell Stanleck, of Scittuate, deceased. [\*224.]

Geor̃ Kenrick & Willm Crocker sworne also to the last will & testam<sup>t</sup> of Thomas Pryor, of Scittuate, deceased.

John Pryor, execut<sup>r</sup> of the said Tho<sup>m</sup> Pryor, deposed to the inventory exhibited to the Court of the goodℓ & chattells of the s<sup>d</sup> Tho<sup>m</sup> Pryor.

Whereas M<sup>r</sup> Gilson, of Scittuate, is lately deceased, & that Edward Foster, who should haue prooued his will, and M<sup>r</sup> Gilsons wyfe, who should haue exhibited an inventory of his goods, were both dangerously sick, a co<sup>m</sup>ission is graunted to M<sup>r</sup> Tymothy Hatherley, Willm Hatch, & Henry Cobb, to take the p<sup>b</sup>ate of the said will & inventory by sufficient witness<sup>s</sup>, and to returne the same the next Court.

Forasmuch as John Crocker, of Scittuate, is proued to haue corrected his servant boy, Roger Glasse, in a most extreame & barbarous manner, the Court vpon due considera<sup>c</sup>on hath taken the said Roger Glasse from the said John Crocker, and placed him w<sup>th</sup> John Whetcombe, of Scittuate, to serue out his tyme w<sup>th</sup> the said John Whetcombe, w<sup>ch</sup> is six yeares from the fourteenth of June next; the said John Whetcombe paying the said John Crocker three

1639-40. pound℥, deducting fve shillings for his charges, & the said Crocker to deliuer vp his cloathes to the said Whetcombe.

3 March.  
BRADFORD,  
Gov<sup>r</sup>.

Whereas there is controūsy betwixt Greens Harbour & Duxborrow about the land℥ betweene the fresh of Greens Harbour Riuer and the South Riuer, it is ordered and graunted by the Court of Freemen to M<sup>r</sup> Edward Winslowe & the rest of the neighbourhood of Greens Harbour, a competent p<sup>or</sup>cion of vpland℥ and meddowe betwixt the said riuers for a farme for a minister, and one other competent p<sup>or</sup>cion of land nere vnto the said lot for the minister, either for Nehemiah Smyth or some other, as the said inhabitant℥ of Greens Harbour shall place in. And whereas M<sup>r</sup> Tho<sup>m</sup> Prence hath a p<sup>or</sup>cion of land there graunted to him for a farme, it is ordered also that those that view the foresaid land℥ shall likewise view M<sup>r</sup> Princes land℥, and if they fynd it not competent for a farme, that they shall add thereto such further p<sup>or</sup>cion of land℥ of those that lye next it as shalbe thought competent.

Concerning the prison, John Barnes & Georg<sup>e</sup> Bower are appoynted by the Court to see the tymber & frame of the said prison, to be brought to the place where it shalbe erected, & to p<sup>ro</sup>uide the leighter to fetch yt, but Duxborrow men to layd it into the leighter, and they to receiue yt here & se it vnloaden, & p<sup>ro</sup>uide carriage to bring it to the place where it is to be set vp, & to get hand℥ & help to finish the same.

[\*225.]

\*Whereas M<sup>r</sup> Thacher, M<sup>r</sup> Crowe, & M<sup>r</sup> Howes, the committees of Yarmouth, were complayned of to haue made vnequall diuisions of lands there, wherevpon the said cōmittees haue exhibited a very formall diuision of the said lands vnto the Court, w<sup>ch</sup> is well approoued of, and the Court doth further order, that the said cōmittees shall receiue no more inhabitant℥ into the said towne, except they bring certificate from the places whence they come, vnder sufficient mens hand℥ of the s<sup>d</sup> plac℥, of their religious and honest carriage, w<sup>ch</sup> certifiyate shall first be allowed by the gov<sup>n</sup>r and assistant℥ before such psons be admitted there.

Whereas the inhabitant℥ of Cohannett, now called Taunton, haue complayned of thire greate want of meddow ground℥, the w<sup>ch</sup> hath beene seriously weighed and considered vpon by speciall order of the whole body of the Court, and fynding their want℥ to be such that vlesse they be supplied of meddow land℥ they cannot comfortably there subsist, the Court doth therefore now order and graunt the meddow land℥ at Assonett, and betwixt Taunton and Assonett on both sides the riuer, vnto the said inhabitant℥ of Taunton, prouided alwayes that the ministers and people now there which are fitt & do pceede & continue in a church estate there the space of seauen yeares next ensuing, (except some speciall hand of God doe hinder the same,) that

then the meddow land℥ aforesaid shalbe to them and their heires, to haue & to hold to them & their heires foreuer. And the Court doth further order, that they will see M<sup>r</sup> Hooke, M<sup>r</sup> Streete, & M<sup>rs</sup> Poole shall haue competent meddow & vplands for farmes layd forth for them about May next, by Captaine Standish & such others w<sup>th</sup> him as shalbe especially assigned therevnto.

1639-40.

3 March.  
BRADFORD,  
GOVNO<sup>r</sup>.

## Fynes &amp; Censures.

James Till, of Scittuate, for purloyneing corne & a shirt from W<sup>m</sup> Parker, of Scittuate, when he was servant to him in his house, as also for purloyneing corne from John Emson & others, when he was servant to them, w<sup>ch</sup> were confessed by him in Court, was censured to be whipt & burnt in the shoulder, and to make restitucon to his master Emerson, for the corne he stole from him, viz<sup>3</sup>, six bushells of corne, either in service, corne, or otherwise.

Francis Sprague, of Duxborrow, for draweing & retayleing wine at Duxborrow, contrary to the expresse order of the Court, is fyned by the Bench xx<sup>s</sup> ster℥.

Joseph Biddle, of Duxborrow, for suffering men to drinke drunken in his house, is censured xx<sup>s</sup> ster℥.

A writt of diuision of land℥ is graunted to M<sup>r</sup> Tymothy Hatherley.

\*William Hurst, of Sandwich, and Katherine Thickston married the 17<sup>th</sup> March, 1639. 17 March.  
[\*226.]

Thomas Gilbert & Jane Rossiter, of Taunton, married the xxiiij<sup>th</sup> of March, 1639. 23 March.

*\*At a Court of Assistant℥ held at Plym, the vj<sup>th</sup> of Aprill, in the xvj<sup>th</sup> Yeare of the now Raigne of o<sup>r</sup> Souaigine Lord, Charles, by the Grace of God King of England, &c.* 1640.

6 April.  
NEW PLYM.  
[\*227.]

BEFORE Wilkm Bradford, gen<sup>tl</sup>, Govnor, John Alden,  
Thom<sup>s</sup> Prence, John Jenney, &  
Wilkm Collyer, John Browne,  
Cap<sup>t</sup> Standish,  
Gen<sup>tl</sup>, Assistant℥, &c.

A PCELL tenn acres of meddow in the long meddow by Edward Doteys is graunted to M<sup>rs</sup> Bridgitt Fuller, to be layd forth for her of that w<sup>ch</sup> lyeth next to Edward Doteys meddow, and a pcell of vpland to yt.

An acre of meddow land formly layd forth for Geor<sup>g</sup> Hales at the

1640. Blewfish Riner, & lying next to M<sup>r</sup> Partrich, is graunted vnto the s<sup>d</sup> M<sup>r</sup> Raph Partrich, in regard the s<sup>d</sup> Hales comes not to enjoy yt.

6 April.  
BRADFORD,  
GOVERNOR.

M<sup>r</sup> William Wetherell, John Willis, Nicholas Robins, Thomas Weyborne, Thomas Hayward, Thomas Bonney, Dolor Davis, and Wil<sup>m</sup> Brett are graunted the lands lying on the norwest side of the Northhill in Duxborrow, w<sup>th</sup> the lands by Christopher Waddesworths farme, and the meddow there to be deuided amongst them by the appoyntment of M<sup>r</sup> Collyer, M<sup>r</sup> Partrich, Jonathan Brewster, and Wil<sup>m</sup> Bassett, and to haue liberty to sett corne at Namassacusset, and to mowe grasse for their cattell there, and to build a house on the south side of the brooke there.

Wil<sup>m</sup> Bassett, of Duxborrow, is graunted one hundred acres of vpland, w<sup>th</sup> meddow conveynient to be layd to yt, lying betweene the lands graunted to M<sup>r</sup> Comfort Starr and the Beaver Ponds, & to begin at the creeke by the iland or thereabout℄, and M<sup>r</sup> Alden, to be added to M<sup>r</sup> Collyer, M<sup>r</sup> Partrich, and Jonathan Brewster, to view it and lay it forth.

That M<sup>r</sup> Wil<sup>m</sup> Kemp haue a portion of land to be layd forth betwixt M<sup>r</sup> Starr lands and the lands graunted to William Bassett, w<sup>th</sup> a porcōn of meddow land to be laid to yt, vpon the view of M<sup>r</sup> Collyer, Jonathan Brewster, & Wil<sup>m</sup> Bassett.

Constant Southwood and Thomas Southwood, his brother, Joseph Rogers and John Rogers, his brother, are graunted fifty acres apeece of vpland, next where M<sup>r</sup> Vassells farme is at the North Riuer, w<sup>th</sup> pportionable meddow ground, to be layd forth to eich of them vpon the view of M<sup>r</sup> Collyer, ‡M<sup>r</sup> Partrich, ‡ Johnathan Brewster, and Wil<sup>m</sup> Bassett.

[\*228.]

\*John M<sup>y</sup>nard, Francis Sprague are graunted the lands lying betweene Jonathan Brewster℄ land at the North Riuer and M<sup>r</sup> Comfort Starr, w<sup>th</sup> competent meddow, to be layd forth vnto them by M<sup>r</sup> Collyer, Jonathan Brewster, and Wil<sup>m</sup> Bassett; the Court adjudginge there wilbe fifty acres a peece & not aboue.

Henry Sampson is graunted the comōn lying at the head of his lott, and to be layd forth for him by M<sup>r</sup> Collyer, Jonathan Brewster, & Wil<sup>m</sup> Bassett, p<sup>r</sup>vided that a heigh way be left for cattell to passe to and fro to the comōn.

Daniell Cole is graunted fifty acres of vpland, lying next Wil<sup>m</sup> Bassett, beyond the South Riuer, if there wilbe spare land℄ left of either side his lott when M<sup>r</sup> Kems land is layd forth there, & to be don<sup>n</sup> by M<sup>r</sup> Collyer, Jonathan Brewster, & Wil<sup>m</sup> Bassett, w<sup>ch</sup> is accordingly layd forth from the marked tree of Wil<sup>m</sup> Bassetts, the iland or necke of land lying in the marsh on the south side of the said tree and the meddow land lying afore the s<sup>d</sup>

iland, 5 acres in breadth, beginning at the hammock where Wil<sup>m</sup> Basset leaues to the head of a coue on the west side the sd iland.

1640.

Wil<sup>m</sup> Sherman is graunted a meadstead about the Stony Brooke, in Duxborrow, and the said Wil<sup>m</sup> & John Washborne to haue such accomodations of land as may be spared in the place where they desire, when M<sup>r</sup> Collyer, Jonathan Brewster, & Wil<sup>m</sup> Basset haue viewed the place.

6 April.  
BRADFORD,  
GOV<sup>r</sup>.

The land at Carsewell Creek, desired by John Rowse, is to be viewed by Captaine Standish & M<sup>r</sup> Alden, and if they shall adjudg it to bee competent for the said John Rowse and Abrahame Sampson, vpon their certyficate to the Court thereof, they to haue it.

John Phillips and James Lindell are graunted eich of them a garden place vpon Stony Brooke in Duxborrow, by Phillip Delanoyes, and to be layd forth for them by M<sup>r</sup> Collyer, Jonathan Brewster, & Wil<sup>m</sup> Bassett.

John Tisdall is graunted enlargement at the lower end of his lott, if there shalbe found any spare land, when M<sup>r</sup> Collyer, Jonathan Brewster, and Wil<sup>m</sup> Bassett haue view the place, puided that there be a heigh way left for cattell to passe to and from the comon by.

Captaine Standish and M<sup>r</sup> Alden are to view the meddow lying by the land<sup>e</sup> graunted to Leiftennant Wil<sup>m</sup> Holmes, and to allow him a pporcion thereof to his vpland there.

Wil<sup>m</sup> Hiller & Georg Pollerd are graunted a pporcion of land containing about fourty acres, be it more or lesse, abutting vpon the Stony Brooke, in Duxborrow, & lying on the north side thereof; to be viewed and layd forth for them by M<sup>r</sup> Collyer, Jonathan Brewster, & W<sup>m</sup> Bassett, w<sup>ch</sup> was bounded thus, viz<sup>t</sup>: lying on the south side of a swampe about the homesteads on Stony Brooke, or the Milne Brooke, from a marked tree on the north side of the said swamp to another marked tree south & by west along the said riuer side, in breadth containeing 80 pole, and in lenth to another marked tree, west south west, ruining to a pcell of land graunted to John Washborne, thelder, on thone side of the said land, & on thother side to runn all along by the said swamp as the marked tres are marked on the north side thereof, ruining to the head of the said swampe, then from other marked trees to an arme at Greens Harbour Brooke; and also all the meddow land that lyeth before the said land vppon the said Stony Brooke on that side the brooke.

\*M<sup>r</sup> Wil<sup>m</sup> Collyer, Cap<sup>t</sup> Standish, M<sup>r</sup> Alden, M<sup>r</sup> Browne, M<sup>r</sup> Winslow, and Jonathan Brewster are appoynted to set forth the two farmes at the South Riuer, graunted to belong to Greenes Harbour, and likewise to view M<sup>r</sup> Princes farme there, and to add to it such a pportion as shalbe thought fitt by them, according to the order of the Court, and to allow one hundred acres for

[\*229.]

1640.

6 April.  
BRADFORD,  
GOVERNOR.

thone farme and fourscore acres for the other, w<sup>th</sup> competent hey ground to them as conveyent as may bee, and in case there shalbe any difference arising about the pmiss<sup>s</sup>, that the greater number carry it; and likewise to take view of the water course that should be turned to the milne, and make report of it, how pjudiciall it may bee; and to view Job Coles meddow land there.

Memorand : that the pcell of land, graunted to William Bassett, of one hundred acres of vpland, w<sup>th</sup> meddow conveyent, was veiwed and layd forth by M<sup>r</sup> William Collyer, Jonathan Brewster, and M<sup>r</sup> John Alden, viz<sup>s</sup> : from a marked tree vpon the north side of the iland graunted to Daniell Cole, to the marked tree of M<sup>r</sup> Comfort Starrs land, for the breadth and the lengh to runn vpon the same poynt of compasse that M<sup>r</sup> Starrs doth, viz<sup>s</sup>, west south-west in lengh and south south east in breadth, together w<sup>th</sup> all the meddow land lying before the said vpland from the foresaid boundary tree of M<sup>r</sup> Starr, vpon both sides of a certaine creeke, ruñing vp to the foresaid marked tree to a certaine hammock of land lying on the south side of the said creeke.

Tenn acres of vpland lying crosse Greens Harbour Path, betweene the lands of Edmond Hawes and John Fisdall, are graunted to Wilm Mullings, to haue and to hold to him & his heires for eñ.

[\*230.]

\*Francis Sprague his fifty acres of land, to him graunted at the North Riuer, is layd forth for him by M<sup>r</sup> Collyer, Jonathan Brewster, & W<sup>m</sup> Bassett, according to the order of the Court, and is bounded as followeth, viz<sup>s</sup> : from the stake of John Maynards vttermost bonds northerly to the southermost bound tree of Jonathan Brewsters land, lying next to him, for the breadth; and the lengh ruñing vpon the same poynt of the compasse, on both sides the said Francis Spragues lott that M<sup>r</sup> Starrs lott ruñeth, w<sup>th</sup> all the meddow land that lyeth afore the said land vpon the South Riuer.

John Maynards fifty acres of land graunted him was also layd forth by the said M<sup>r</sup> Collyer, Jonathan Brewster, & W<sup>m</sup> Bassett, and lyeth on the north side the land<sup>l</sup> of M<sup>r</sup> Comfort Starr, northward along the marsh to a stake set vp in the said marsh for the breadth, and the lengh ruñing as the said Comfort<sup>l</sup> lott runs, w<sup>th</sup> all the meddow land lying afore yt.

The foresaid hundred acres of vpland, graunted to Constant Southwood & Thom<sup>s</sup> Southwood, his brother, at the North Riuer, were layd forth for them, according to the order of the Court, the 12<sup>th</sup> of Novemb<sup>r</sup>, 1640, in manner and forme following, viz<sup>s</sup> : to the said Constant & Thomas one hundred acres of vpland at the said North Riuer, from M<sup>r</sup> Vassalls range, in bredth east & by north along the said North Riuer, to a marked tree vpon the foresaid range.

And to Joseph Rogers the fifty acres graunted to him there, from the

aforesaid marked tree, in breadth east and by north to another marked tree vpon the same range, neere to a certaine creeke that ruñeth vp southward, pvided that the smale quantitie of ouerplus vpland lying betwixt the said Constant, Thomas, & Joseph, be equally diuided amongst them three, the said creeke being the boundℓ of yt; as also the marsh ground or meddow lying vpon the north side of the said vplands, to be equally diuided as it lyeth afore the said lands to eich seſually by equall pporcōn, w<sup>th</sup> a litle hammack of vpland, lying in the said marsh, w<sup>th</sup> the meddow land about it, to eich of them joyntly.

And also to John Rogers the fifty acres of vpland graunted to him from the foresaid creeke, ruñing in lenth southwest, and in breadth southeast, to a certaine marked tree vpon the said range, w<sup>th</sup> the one half of the marsh land abutting vpon the aforesaid vpland, together w<sup>th</sup> a smale hammack of vpland lying in thaforesaid marsh, w<sup>ch</sup> landℓ lye next to the landℓ graunted to Francis Cooke and John Cooke.

1640.

6 April.  
BRADFORD,  
Gov<sup>r</sup>.

\*At a geñall meeting of the townesmen of Sandwich, held the xvj<sup>th</sup> day of Aprill, in the xvj<sup>th</sup> yeare of the raigne of our soſaigne lord, Charles, by the grace of God King of England, Scotland, France, & Ireland, defender of the fayth, &c., before Thoñ Prence, gen<sup>t</sup>, one of the Assistantℓ of the Gov<sup>t</sup>ment of New Plyñ, by vertue of a comiſſion to him & John Alden, gen<sup>t</sup>, or either of them, directed for the calling before them, or either of them, the said inhabit<sup>s</sup> of Sandwich, & to heare and determine all causes of differenç & controſie now depending amongst them, in geñall, or betwixt p<sup>t</sup>icular p<sup>sons</sup>, or diuision of vplandℓ & meddow, or betwixt them & the Indians, and to sett downe some orders conçning the diuision of the said meddow landℓ, that the p<sup>miss</sup><sup>s</sup> w<sup>ch</sup> are agreed vpon may be comi<sup>t</sup>ted to publike record, & so remayne inviolable, w<sup>ch</sup> is as followeth :—

16 April.

[\*231.]

Imprimis, for decideing of the differenc<sup>s</sup> about the meddow grounds, & to make an equall diuision thereof, it is agreed vpon by the consent both of the comi<sup>t</sup>tees and the townesmen of Sandwich, that, together with M<sup>r</sup> Prence, there shalbe fve of the comi<sup>t</sup>tees, viz<sup>ſ</sup>, M<sup>r</sup> Edmond Freeman, M<sup>r</sup> Henry Feake, M<sup>r</sup> Edward Dillinghame, Richard Chadwell, & John Carman, and fve of the townesmen to be joyned w<sup>th</sup> them, viz<sup>ſ</sup>, M<sup>r</sup> John Vincent, Richard Burne, Georg Allen, Rob<sup>t</sup> Botfish, & Joseph Hollyway, to view and appoynt the said meddow landℓ, and to consider as well the estate & quallty of euery p<sup>son</sup>, as also the quallty & condiçōn of the meddowes, and to appoynt to euery man such a pporcōn as shalbe esteemed equall and sutable to his neces-  
syty & abillity.



1640.

16 April.  
BRADFORD,  
Gov<sup>r</sup>.

And that in the diuision of the said meddow landℓ, these rules & orders shalbe obserued : —

1. First, that those that haue meddow allotted to them in the meddow betwixt Moonnoonenususset and Shaume shall onely haue such pportions there assigned them as in the judgment of the foreſd tenn men appoynted shalbe thought meete, and that further accomodaçõn be added elsewhere as there shalbe cause & their necessity & condiçõn shall require.

2. That for the rest of the meddowes, w<sup>ch</sup> shalbe layd forth to euery man, by the aforeſd tenn men appoynted, according to eich mans estate and condiçõn, reserueing such a pporçõn as in the judgment of the said ten men shalbe thought fitt.

3. That the said tenn men haueing appoynted the psons & placℓ, that then Josuah Pratt, of Plymouth, shall measure forth to euery man the pporçõn he shalbe appoynted.

4. That such a pporçõn of meddow landℓ as shalbe thought fitt by the tenn men aboue said to be left and reserued, be not disposed of vntil the comittees be satisfyed their charges disbursed for the towne, w<sup>ch</sup> if it shalbe donne before the next moweing tyme, that then the said pporçõn of meddow so reserued shalbe to the towne to be deuided according to eich mans condiçõn & quallitie; but if the committees be not satisfyed their said charges before that tyme, that then the comittees haue the use of the said meddowe lands to cutt the grasse thereof.

[\*232.]

\*5. That there be sixty or eighty acres of meddow lands reserued, according to the form order, on this side Moonnoonenuscaulton Riuer, or thereabout.

6. That if any man desire to hold the meddow landℓ assigned him, (being not in the meddowes betwixt Moonnoonenusussett & Shaume,) he may.

7. That all such pporçõns of meddow landℓ as shalbe assigned to euery pson in p̃ticular shalbe to haue & to hold to them, their heires & assignes foreuer.

It is also agreed vpon, lastly, that those that had meddow landℓ formly assigned them in the meddow landℓ betwixt Moonnoonenusussett & Shaume shall onely haue the one half of those pporçõns w<sup>ch</sup> they had there, and the rest of their pporçõns to be layd forth elsewhere, saue that they shall haue the whole odd acre there if it fall so to be in such ſd diuision.

That six pence an acre be allowed for the surveying, measureing, and laying forth the said meddow landℓ to them that are appoynted to survey, measure, and lay forth, the same, the[y] paying Josuahs charges.

The Names of the Psons to whom the Diuidend of Meddow Land  
is made.

|                                            | Acres. |
|--------------------------------------------|--------|
| Richard Chadwell, . . . . .                | 15     |
| John Carman, . . . . .                     | 28     |
| Peter Gaunt, . . . . .                     | 04     |
| Willm Hurst, . . . . .                     | 03     |
| Richard Kerby, . . . . .                   | 04     |
| John Dingley, . . . . .                    | 05½    |
| Thomas Burges, . . . . .                   | 07½    |
| John Briggs, . . . . .                     | 07½    |
| Benjamin Noy, . . . . .                    | ^      |
| Mr Henery Feake, . . . . .                 | 20     |
| Thomas Tupper, . . . . .                   | 06½    |
| Thomas Armitage, . . . . .                 | 06½    |
| Mr John Vincent, . . . . .                 | 07     |
| Robt Botfish, . . . . .                    | 05     |
| Mr Leüich, } the same he had,              | 05     |
| The Pastor, }                              |        |
| Mr Ed Freeman, . . . . .                   | 42     |
| Mr Almey, . . . . .                        | 08½    |
| Mr Wood, . . . . .                         | 08     |
| Joseph Winsor, . . . . .                   | 01     |
| Mr Willis, . . . . .                       | 04     |
| Anthony Bessy, . . . . .                   | 01     |
| Michael Turner, . . . . .                  | 03     |
| Mr Edge, . . . . .                         | 14     |
| Georg Knott, . . . . .                     | 04     |
| Mr Potter, . . . . .                       | 10     |
| John Frend, . . . . .                      | ^      |
| Georg Allen, . . . . .                     | 06½    |
| Joseph Halloway, . . . . .                 | 15     |
| William Newland, to be added to, . . . . . | 06     |
| Andrew Hellot, . . . . .                   | 07½    |
| Georg Slawson, . . . . .                   | 02     |
| Willm Braybrooke, . . . . .                | 01     |
| George Blisse, . . . . .                   | 01½    |
| George Buitt, . . . . .                    | 01     |

1640.

16 April.  
BRADFORD,  
Gov<sup>r</sup>.

1640.  
16 April.  
BRADFORD,  
Gov<sup>r</sup>.

|                                                                          |     |
|--------------------------------------------------------------------------|-----|
| Georg <sup>o</sup> Cole, i. e. to be considered further when he          |     |
| brings his estate, . . . . .                                             | 01  |
| Henry Eue, . . . . .                                                     | 01  |
| Jonathan Fish, . . . . .                                                 | 02  |
| Edmond Clarke, . . . . .                                                 | 02  |
| Tho <sup>m</sup> Shillingsworth, . . . . .                               | 02½ |
| Will <sup>m</sup> Harlow, . . . . .                                      | 04  |
| James Skiffe, . . . . .                                                  | 04  |
| M <sup>r</sup> Dillinghame, . . . . .                                    | 08  |
| John Winge, . . . . .                                                    | 06  |
| M <sup>r</sup> Tho <sup>m</sup> Dexter, if he come to liue here, . . . . | 26  |
| For his millne, . . . . .                                                | 06  |
| M <sup>r</sup> Wolleston, if he reside here and bring his estate,        | 13  |
| Thomas Butler, . . . . .                                                 | 02  |
| Nicholas Wright, . . . . .                                               | 02½ |
| John Miller, . . . . .                                                   | 01  |
| Thomas Launder, . . . . .                                                | 01  |
| John Fish, . . . . .                                                     | 01½ |
| Nathaniell Fish, . . . . .                                               | 01½ |
| Tho <sup>m</sup> Boardman, . . . . .                                     | 03  |
| Peter Wright, . . . . .                                                  | 02½ |
| Anthony Wright, . . . . .                                                | 02  |
| Richard Burne, . . . . .                                                 | 07  |
| Richard Wade, . . . . .                                                  | 03  |
| John Joyce, . . . . .                                                    | 02½ |
| M <sup>r</sup> Blakemore, . . . . .                                      | 03  |
| To M <sup>r</sup> Feaks house, . . . . .                                 | 01  |

Subscribed by THO: PRINCE,  
ED: FREEMAN,  
EDW: DILLINGHAM,  
JOHN CARMAN,  
RICHARD CHADWELL,  
JOHN VINCENT,  
GEORG<sup>o</sup> ALLEN,  
RICHARD BURNE,  
JOSEPH HALLOWAY,  
ROB<sup>TE</sup> BOTFISH,  
HENRY FEAKE.

*\*At a Court of Assistant℥ held at Plym̃ aforesaid, the fift Day of May, in the xvj<sup>th</sup> Yeare of the Raigne of o<sup>r</sup> Sou<sup>r</sup>aigne Lord, King Charles, of England, &c.*

1640.

5 May.  
NEW PLYM.  
BRADFORD,  
GOV<sup>R</sup>NOR.  
[\*233.]

BEFORE Wilm Bradford, gent<sup>r</sup>, Gov<sup>r</sup>,

Thomas Prence,

Capt<sup>r</sup> Standish,

Wilm Collyer,

Gentl<sup>e</sup>, Assistant℥, &c.

John Alden,

Tymothy Hatherly,

John Jenney, and

John Browne,

**W**HEREAS M<sup>rs</sup> Elizabeth Glouer, widdow, executrix of the last will and testament of M<sup>r</sup> Joseph Glouer, deceased, constituted M<sup>r</sup> Tymothy Hatherley her attorney, to p<sup>ro</sup>secute John Combe, of Plymouth, gentl<sup>e</sup>, for a debt vpon a bond of twelue pound℥, for w<sup>ch</sup> diuers suit℥ would haue beene p<sup>ro</sup>duced by reason of diuers engagement℥ of diuers p<sup>er</sup>sons therein, the charge of all w<sup>ch</sup> would haue falne vpon the said John Combe, — now, for th<sup>er</sup>ending & decideing whereof, it is concluded and agreed vpon, in considera<sup>ti</sup>on that the said John Combe hath, in the open Court, bargained, sould, assigned, & made ouer vnto M<sup>r</sup> Thomas Prence all his corne now planted and groweing vpon his land about his house at Rockeynooke, to haue and to hold all the said corne vnto the said Thomas Prence, his execut<sup>rs</sup> and assignes, w<sup>th</sup>out any lett or denyall of him, the said John Combe, his execut<sup>rs</sup>, administrat<sup>rs</sup>, or assignes, or any of them, and hath deliuered possession thereof vnto the said M<sup>r</sup> Tho<sup>m</sup> Prence, by deliui<sup>ng</sup> of xij<sup>d</sup> in the name of possession in the open Court, the said M<sup>r</sup> Thomas Prence hath vndertaken to pay the said debt to M<sup>rs</sup> Glouer, and either to deliuer the sixteene bushells of wheate and eighteene bushells of rye at M<sup>rs</sup> Glouers house in Cambridg, in Mattachewsetts Bay, at or before the twentyeth day of August next ensuing, or els pay her tenn pounds two shillings ster<sup>t</sup>; p<sup>ro</sup>vided always, that if the corne be payd as afore<sup>se</sup>d, that then M<sup>rs</sup> Glouer shall allow the one halfe of the charges of the transporta<sup>ti</sup>on thereof from hence to her house in Cambridg.

The Gov<sup>r</sup>nor,

M<sup>r</sup> Prence,

M<sup>r</sup> Browne,

W<sup>m</sup> Paddy, &

Nath Sowther,

John Winslow,

Nicholas Snowe,

Nehemiah Smyth,

Geor<sup>g</sup>e Soule,

Josuah Pratt,

} are appoynted to view the meddow at Joanes Riuer,  
and to make report of the number of acres there-  
of the next Court.

} are appoynted to view all the meddowes at Greens  
Harbour, w<sup>ch</sup> are not graunted forth, & to measure  
them, and to make report thereof the next Court.

1640.

5 May.  
BRADFORD,  
GOVERNOR.

Mr John Jenney,  
Mr John Atwood,  
Francis Cooke,  
John Barnes,  
Richard Sparrow,  
John Cooke, &  
Josuah Pratt,

are appoynted to view the meddows about Edward Doteys, & to compute the number of acres, & make report thereof to the next Court.

[\*234.]

\*Twelve acres of vpland are graunted to Josuah Pratt, lying at the Cedar Swampe, and the meddow aboute a ponde beyond Triangle Pond.

John Jenkine is graunted a pcell of meddow land, w<sup>ch</sup> Richard Higgins & Manasseth Kempton mowed the last yeare, lying betweene the South Ponds and the Ele Riuer head, containeing three acres or thereabouts, be it more or lesse, and fourty acres of vpland there by it, and six acres of vpland lying on the west side of Raph Hills ground aboute Wellingsly.

Gabriell Fallowell is graunted the swamp lying on the north side of his house.

Richard Knowles is graunted a pcell of meddow ground at the head of Georg Bowers meddow, by the Ele Riuer head.

The neck of land lying betwixt the Fresh Lake and the Little Pond is graunted to the towne of Plymouth to be a place to put workeing cattell into in the night tyme.

Thomas Lettis is graunted six acres of vpland lying betweene James Hurst<sup>l</sup> and John Holmes, if there be any land there to spare when their ground is layd forth.

Richard Church, Robt Bartlett, Thomas Little, & M<sup>rs</sup> Elizabeth Warren are graunted enlargement<sup>l</sup> at the head<sup>l</sup> of their lotts to the foote of the Pyne Hills, leaueing a way betwixt them and the Pyne Hills, for cattell & cart<sup>l</sup> to passe by.

Thomas Little is graunted liberty to mowe the grasse groweing about the ponds vpon the heigh way to Sandwich.

It is ordered by the Court, that whereas there was a heigh way vp into the woods appoynted for the neighbourhood of Rockey Nooke by M<sup>r</sup> Combes land, that if it shalbe needfull to lay it through his ground, he to haue allowance for it elsewhere.

Vpon report made to the Court by M<sup>r</sup> Wilm Collyer, Capt Standish, & M<sup>r</sup> John Browne, (who were appoynted to take a view of the water passage desired to be turned to the milne to be erected at Stony Brooke, in Duxborrow, for the good & benefit of the said towne of Duxborrow,) that the same will not be any way prejudiciall to any man, the Court doth *doth* graunt that Wilm Hiller and Georg Pollerd shall haue liberty to turne that part of the said streame so viewed vnto the said milne.

\*James Cole, of Plymouth, is phibited by the Court to draw any wine or strong water vntill the next Gefñall Court, nor then neither w<sup>th</sup>out speciall lycence from the Court.

1640.

5 May.  
BRADFORD,  
Gov.

[\*235.]

Francis Sprague, of Duxborrow, is phibited by the Court to draw any wyne or strong water vntill the next Gefñall ^, w<sup>th</sup>out speciall lycence from the Court so to doe.

Georġ Pidcock & Sarah Ricard marryed the xvj<sup>th</sup> May, 1640.

16 May.

John Mynard & Mary Starr marryed.

William Fallowell & Martha Beels marryed.

Benjamin Noye and Katherne Tupper marryed the xix<sup>th</sup> October, 1640.

19 October.

Wiltm Hiller and ^

William Nelson and Martha Forde marryed the xxix<sup>th</sup> of Octobr, 1640.

29 October.

*\*At a Court of Assistant℥ held at Plym̃ afores<sup>d</sup>, the first Day of June, in the xvj<sup>th</sup> Yeare of the now Raigne of o<sup>r</sup> Sou<sup>r</sup>aigne Lord, Charles, by the Grace of God King of England, &c.*

1 June.  
NEW PLYM.  
[\*236.]

BEFORE Wiltm Bradford, gen<sup>t</sup>, Gov<sup>r</sup>,

John Alden,

Thomas Prencé,

Tymothy Hatherley,

Wiltm Collyer,

John Jenney, and

Cap<sup>t</sup> Miles Standish,

John Browne,

Gen<sup>t</sup>, Assistant℥, &c.

THE Court doth order that M<sup>r</sup> Collyer & M<sup>r</sup> Alden do shew what land was appoynted to M<sup>r</sup> Thomas at Greens Harbour; and then M<sup>r</sup> Prencé, Cap<sup>t</sup> Standish, Edward Bangs, Wiltm Paddy, Jonathan Brewster, John Winslow, Josias Cooke, Thomas Little, and Josuah Pratt to view & measure the meddow land℥ at Greens Harbour, betwixt this and the next Court; and then to make report of the number of acres there, that they may be afterward℥ disposed of; and if they fynd any bound mark℥ to be pulled vp, to set vp others in their stead.

John Phillips,

James Lindall,

Wiltm Sherman,

Edmond Weston,

Samuell Tompkins,

Arthur Harrison,

Raph Chapman,

of Duxborrow, are graunted foure acres a peece of vpland, abutting vpon the Stony Brooke, in Duxborrow, by the milne, and to rang south and north in lengh, and east & west in breadth.

1640.

1 June.  
BRADFORD,  
Goſſn<sup>r</sup>.

A parcell of land lying at Carswell Creeke is graunted to John Rouse and Abraham Sampson, w<sup>ch</sup> they for<sup>m</sup>ly desired.

Richard Sparrow is graunted five acres of meddow, &c, by Edward Dotey, in the west meddow next aboue him, at the vpper end of that meddow.

Manasseth Kempton is graunted an enlargment at the head of his ground, to extend vp into the woods as farr as Nathaniell Mortons tenn acres last granted him.

John Barnes is graunted one hundred acres of vpland, and tenn acres of meddow next beyond the Six Mile Brooke, in the way to Namascutte, two acres of meddow lying at the said brooke to be p<sup>t</sup> of the said tenn acres of meddow.

†Mr John Done, Thomas Willett, Mr John Reynor are graunted tenn  
^ of meddow a peece in the meddow by Joanes Riuier, called ^ ,  
and Nathaniell Sowther a pcell of ^ acres, Phineas Pratt fūe acres,  
Manasseth Kempton ^ acres, & Mr Hopkins ^ .†

2 June.  
NEW PLYM.  
[\*237.]

*\*At the Geñall Court of our Sou<sup>a</sup>igne Lord the King, held at Plymouth the second Day of June, in the xvj<sup>th</sup> Yeare of the now Raigne of o<sup>r</sup> Sou<sup>a</sup>igne Lord, Charles, by the Grace of God, King of England, &c.*

BEFORE Wiltm Bradford, gen<sup>t</sup>, Goſſn<sup>r</sup>, &c.

**M<sup>R</sup> WILLM BRADFORD** sworne Goſſn<sup>r</sup> for this p<sup>s</sup>ent yeare.

|                                   |                                               |
|-----------------------------------|-----------------------------------------------|
| M <sup>r</sup> Wiltm Collyer,     | } formly elected Assistant℥, now also sworne. |
| Cap <sup>t</sup> Miles Standish,  |                                               |
| M <sup>r</sup> Tymothy Hatherley, |                                               |
| M <sup>r</sup> John Jenney,       |                                               |
| M <sup>r</sup> John Browne,       |                                               |
| M <sup>r</sup> Edmond Freeman,    |                                               |

M<sup>r</sup> Thomas Prence also elected, being absent by reason of sicknes, is expected by the Goſſn<sup>r</sup>, Assistant℥, and the countrey when God shall restore him to health.

Committees for the seſſ Townes.

|                      |                                    |
|----------------------|------------------------------------|
|                      | { Manasseth Kempton,               |
| Plymouth, . . . . .  | { Wiltm Paddy,                     |
|                      | { John Cooke,                      |
|                      | { John Dunhame.                    |
| Duxborrow, . . . . . | { Wiltm Bassett,                   |
|                      | { Xp <sup>o</sup> fer Waddesworth. |

|                |                                                              |                                   |
|----------------|--------------------------------------------------------------|-----------------------------------|
| Scituate, . .  | { <u>Edward Foster,</u><br><u>Humfrey Turner,</u> }          | Richard Sillis,<br>John Williams. |
| Sandwich, . .  | { Richard Burne,<br>George Allen.                            |                                   |
| Yarmouth, . .  | { Phillip Tabor.                                             |                                   |
| Barnestable, . | { <u>James Cudworth,</u> Thomas Dimmack,<br>Anthony Annable. |                                   |
| Taunton, . .   | { Edward Case,<br>Walter Deane, }                            | absent.                           |

1640.

2 June.  
BRADFORD,  
GOV<sup>R</sup>.

Mr Thomas Dimmack, for the towne of Barnestable, and Mr John Crow, for the towne of Yarmouth, are elected and appoynted to joyne w<sup>th</sup> Mr Edmond Freeman, of Sandwich, to heare and determine all causes & controisies w<sup>th</sup>in the three townships not exceeding xx<sup>s</sup>, according to the form<sup>e</sup> order of the Court.

\*Mr Charles Chauncey, Mr John Crow, Thomas Tupper, & Thofm Burges, [\*238.] admitted freemen this Court, and sworne.

## The Grand Inquest.

|                     |           |                        |           |
|---------------------|-----------|------------------------|-----------|
| Mr John Done,       | } sworne. | Edward Banges,         | } sworne. |
| Jonathan Brewster,  |           | Thofm Chambers,        |           |
| Mr Wilkm Kempe,     |           | John Lewes,            |           |
| Henry Howland,      |           | Thomas Tupper,         |           |
| Experience Michell, |           | Thomas Burges,         |           |
| Francis Cooke,      |           | Edward Fitzrandle,     |           |
| James Hurst,        |           | Steephen Tracy,        |           |
| Mr Thofm Hill,      |           | Mr Henr Andrewes,      |           |
|                     |           | W <sup>m</sup> Palmer, |           |

## Constables of eich Towne.

|                        |                  |           |
|------------------------|------------------|-----------|
| Plymouth, . . . . .    | Richard Sparrow, | } sworne. |
| Duxborrow, . . . . .   | Joseph Rogers,   |           |
| Scituate, . . . . .    | Georg Kennerick, |           |
| Sandwich, . . . . .    | Mr Wilkm Wood,   |           |
| Yarmouth, . . . . .    | Wilkm Lumpkin,   |           |
| Barnestable, . . . . . | John Cooper,     |           |
| Taunton, . . . . .     | John Deane,      |           |

## Surveyors of the Heigh Wayes.

Plymouth, Nicholas Snow, Richard Sparrow, Josias Cooke, & Thofm Cushman.



1640.

2 June.  
BRADFORD,  
GOVN\*.

Duxborrow, . . . Experience Michell & Constant Southwood.

Scituate, . . . Richard Sillis & John Lewes.

Sandwich, . . . Richard Burne & George Allen.

Yarmouth, . . . ^

Taunton, . . . ^

Barnestable, . . . ^

Delinquentℓ. { John Joanes, } for the hoggs killed at the North  
                  { Peter Mecock, } Riuer.  
                  { John Harker, }

John Joanes and Peter Mecock are censured to be both whipt at the post, and to pay viij<sup>li</sup> a peece to the pties wronged, and the goods they haue at p̄sent to be valued towardℓ the payment thereof, and what is wanting to satisfy yt by their service when their tyme is expired. John Harker is censured to sitt in the stocks whilst thother are in whipping, and to pay fīue poundℓ restituōn to the pties wronged.

John Kerman deposeth & sayth that there was such disorder in James Coles house, by throweing stooles, & formes, and fyre, vntill w<sup>th</sup>in a hower of day, or there aboutℓ, that they could hardly sleepe, and in the morneing he found them on sleepe by the fyre.

[\*239.] \*Nicholas Sympkins, Peter Worden, and Wil<sup>m</sup> Chase are graunted a warrant to attach and deuide the goods of one Phillips Woodall, left in the said Nicholas Sympkins handℓ, who is dep̄ted the goūment some tyme since, being seſiually endebted to them & others, and to make satisfacōn so farr as the said goods will extend, to themselues and others.

#### Presentmentℓ.

The Ele Riuer  
people is to  
build a bridge  
there, & 50<sup>s</sup>  
repayd to Rich.  
Church & Rob<sup>t</sup>  
Bartlet.

Fyned 5<sup>s</sup>.

Inprimis. We p̄sent all whome it may concerne, for not makeing a bridg at the Eele Riuer, according to order.

We p̄sent M<sup>r</sup> Cudworth, of Scittuate, for selling & retayleing of wyne contrary to order. Witnes, M<sup>r</sup> Hatherley.

Also, we p̄sent M<sup>r</sup> Tarte, of Scittuate, for the like. Witnes, M<sup>r</sup> Hatherley.

Fined 5<sup>s</sup>.

Also, we p̄sent Francis Sprague, for the like. Witnes, Cap<sup>t</sup> Standish & Thomas Goodman.

Discharged.

‡Also, we p̄sent M<sup>r</sup> Done for selling wine contrary to order made by Court.‡ It was mistaken by the grand inquest, and so he was discharged by the Court the 3<sup>d</sup> Septemb<sup>r</sup>, 1640, and appoynted by the Court to be thus rased out.

*At the Court of Assistant℥ held the third of June, 1640.*

1640.

**M**EMORAND: that John Kerman, of Sandwich, is graunted one messuage, or dwelling house, in Sandwich aforesaid, and fiftene acres of vpland, be it more or lesse, adjoyneing therevnto, abutting vpon *vpon* the meddowes of Moonuscusset; sixteene acres of marsh meddow ground, be it more or lesse, w<sup>th</sup> two little ilands of vpland therein, (except the said ilands of vpland,) lying before the said towne of Sandwich eastward, and faceing the riuer that comes vp to the said towne, the said John Kerman allowing a way for carryages by water onely; eight acres of marsh meddow, be it more or lesse, lying at the vpper end of the backside of the said townes-neck from the swamp towards the beach at the east end, and towards Richard Chadwells meddow at the west end; tenn acres of vpland, be it more or lesse, lying at Moonuscaulton, & adjoyneing to the land℥ of M<sup>r</sup> Edmond Freeman; and fourescore and tenn acres lying at the playnes, and abutting vpon the land℥ of M<sup>r</sup> Thomas Dexter & M<sup>r</sup> Edward Dillinghame, southerly from them, w<sup>th</sup> all and singuler thapptences to the said pmiss<sup>s</sup> belonging, and in any wise apptaineing, & euery p<sup>t</sup> & p<sup>cell</sup> thereof; to haue and to hold the said messuage or dwelling house, xv acres of vpland, xvj<sup>teene</sup> acres of marsh meddow, (except the two ilands of vpland therein before excepted,) and eight acres of marsh meddow, tenn acres of vpland at Moonuscaulton, and the said fourescore and tenn acres of vpland lying at the playnes, w<sup>th</sup> all and singuler their appten<sup>cs</sup>, & euery p<sup>t</sup> & p<sup>cell</sup> thereof, except before excepted, vnto the said John Kerman, his heires and assignes foreuer, to the onely proper use and behoofe of him, the said John Kerman, his heires and assignes foreuer.

3 June.  
BRADFORD,  
Go<sup>v</sup>.

*\*At a Court of Assistant℥ held at Plym<sup>th</sup> afores<sup>d</sup>, the vj<sup>th</sup> of July, in the xvj<sup>th</sup> Yeare of the now Raigne of our Sou<sup>raigne</sup> Lord, Charles, by the Grace of God King of England, &c.*

6 July.  
PLYM.  
[\*240.]

BEFORE Wil<sup>m</sup> Bradford, gen<sup>tl</sup>, Go<sup>v</sup>,  
Wil<sup>m</sup> Collyer,  
Gen<sup>tl</sup>, Assistant<sup>℥</sup>, &c.

John Jenney, and  
John Browne,

**I**T is graunted and concluded vpon by the Court, that there shalbe a competent por<sup>cion</sup> of land℥ lying about Shifting Coc and Mannamett Pond℥ &

1640.

6 July.  
BRADFORD,  
Goũ<sup>r</sup>.

there about℄, reserued and layd forth to be a cõmon belonging to the towne of Plymouth, for the inhabit<sup>s</sup> that liue betwixt Jones Riuer & the Eele Riuer, and vpon thother side of the Eele Riuer, to depasture their cattell vpon.

It is also graunted and concluded by the Court, that the land℄ on Duxborrow side, from a brook that falls into Black Water, and so along the back side of Iland Creeke Pond℄, and long to Houndsdich, shalbe reserued for cõmons for the inhabit<sup>s</sup> of Duxborrow to depasture their cattell vpon, and the bound℄ thereof to be further set forth hereafter.

Wiltm Fallowell, John Finney, & Robte Finney are graunted eich of them a garden place at Webbs feild, puided that Wiltm Fallowell haue the choyce of w<sup>ch</sup> he pleaseth.

Wiltm Hiller & Georg Pollerd are graunted a pcell of vpland by the heigh way at the Stony Brooke, in Duxborrow, containeing by estimaçon three or foure acres or there about℄, to set the mille vpon, puided that there be a sufficient way left & layd forth; and likewise haue liberty graunted to mowe the two acres of marsh meddow lying betwixt Rowland℄ Leighorns & Edmond Chaundlers marsh. The said land℄ lye betwixt John Irish & John Caruers meadstead℄, w<sup>th</sup> a pcell of cõmon land, lying from the said John Irish marked trees & Edward Bumpasse meddow land lying vpon the said brooke.

28 July.

The xxvij<sup>th</sup> July, 1640. Memorand: that John Winslow, for in consideraçon of the sum of twelue pound℄ ster℄, hath bargained and sould all his interrest and right in the service of Joseph Grosse, w<sup>th</sup> & by the consent of the said Joseph, w<sup>ch</sup> is for fye yeares from the thirteenth of August next after the date hereof, vnto Mr John Howland, the said John fynding his said servant, Joseph Grosse, meate, drinke, & apparell during the said terme, & in thend thereof to giue him two shuit℄ of apparell, one for working dayes & another for Lords dayes, and shall also giue him xij bushells of Indian corne, in thend of the said terme.

3 August.  
NEW PLYM.  
[\*241.]

*\*At a Court of Assistant℄ held the third of August, in the xvj<sup>th</sup> Yeare of the now Raigne of o<sup>r</sup> Souaigne Lord, King Charles, of England, &c.*

|                                    |                    |
|------------------------------------|--------------------|
| BEFORE Wiltm Bradford, gent., Goũ, | Tymothy Hatherley, |
| Cap <sup>t</sup> Miles Standish,   | John Jenney, and   |
| Wiltm Collyer,                     | John Browne,       |
| Gen <sup>l</sup> , Assistant℄, &c. |                    |

THE difference betwixt Richard Willis and Wilłm Renolds was ordeř by the Court, w<sup>th</sup> consent of both p̄ties, as followeth, viz: that the said Richard Willis shall pay the said Wilłm Renolds the sum of fiteene shillings in money, or money worth, in full of all demaunds and accounts betwixt <sup>1640.</sup> from the worldē beginiing to the p̄sent day.

3 August.  
BRADFORD,  
GOVN<sup>R</sup>.

Wilłm Godden, the servant of M<sup>r</sup> Comfort Starr, for <sup>his</sup> wrongfull complaint against his m<sup>r</sup>, is censured to sitt in the stocks, and to haue xx<sup>s</sup> for his service for the tyme past.

Forasmuch as it appeareth by the testimony of Josuah Pratt & otherwise, that the two acres of vpland lying at Wellingsly Brook, on the north side of the lottē giuen to Godbert Godbertson, were giuen by the said Godbert Godbertson to John Combe, gen<sup>t</sup>, & Phineas Pratt, in marriage w<sup>th</sup> their wiues, his daughters, the Court doth confirme the said two acres vnto the said John Combe & Phineas Pratt, their heires & assignes for eū.

Resolved White is graunted one hundred acres of vpland lying vpon the southerley part of M<sup>r</sup> W<sup>m</sup> Vassells land in Scituate, called the West Newland, and a p̄porcōn of meddow to be layd to yt, vpon view, w<sup>ch</sup> vpland is to range two hundred pole in breadth w<sup>th</sup> M<sup>r</sup> Vassells land, p̄uided that if, by reason of the bending of the coeue on the west side, it shall entrench vpon the landē graunted on the easterly side thereof, that then hee shalbe allowed his p̄porcōn vp into the woods on the southerly p̄te.

Thomas Willett is graunted six acres of vpland for his houselott at the little swamp on the north side M<sup>r</sup> Dones feild towards Fresh Lake.

Wilłm Nelson is graunted six acres of vpland, lying against John Cooks land, in the newfēld on the north side the Fresh Lake Brooke.

Richard Paul, of Taunton, is lycensed to keepe a victualling house at Taunton.

\*Wilłm Maycumber is graunted the wood fitt for coopery growing vpon Wood Island, to be used by him so long as he followeth his trade, and forbid- [\*242.]  
ding all others to cutt any there except for the loading of boatē and vessells xvij<sup>th</sup> of King  
Charles.  
to carry away the hey.

Wilłm Deuell desires a p̄cell of land lying betweene Edmond Chaundler, and John Rouse, & Abraham Sampson, such a p̄porcōn as the Court shalbe pleased to graunt him there.

The third of Septemb<sup>r</sup>, 1640. The Record of the Deede shewed in Court 3 September.  
betwixt Richard Standerwick & Nicholas Nurton.

Know all men by these p<sup>nt</sup>ē, that I, Richard Standerweek, of Broad-  
waye, in the county of Somsett, in Old England, clothyer, for and in consid-

1640.

3 September.  
BRADFORD,  
GOV<sup>r</sup>.

eracōn of the sūme of twelue poundℓ of lawfull money of England, payd vnto me by Nicholas Nurton, of Waimouth, in New England, haue graunted bargained, & sould, and by these p<sup>r</sup>ntℓ do freely and absolutely graunt, bargain, and sell vnto the said Nicholas Nurton, all the cattell, whether cowes, steeres, or calues whatsoeℓ I haue w<sup>th</sup> M<sup>r</sup> Hull in New England. In witnes whereof, I, the said Richard Standerwick haue herevnto set my hand and seale, the twentyeth day of February, in the yeare 1639.

RICHARD  
STANDERWICK.

His  
Seale.

Sealed in the p<sup>r</sup>ntℓ of us.

John Hawkins,

Peter Pinny,

John Dwelley,  signe,

Benedict  Alford,

John Purchase.

Benedict Alford & John Purchase, two of these witness<sup>s</sup>, haue taken thire oathes before me, Thomas Dudley, Gov<sup>r</sup> of Massachusetts, that they saw Richard Standerwick, aboue named, seale & deliuer this bill to the use of thaboue named Nicholas Nurton, & subscribed their names or markes as witness<sup>s</sup> thereof. Theire oaths were taken the xxv<sup>th</sup> day of August, 1640.

Before me, THOM: DUDLEY, Gov<sup>r</sup>.

31 August.  
[\*243.]

*\*At a Court of Assistantℓ held at Plymouth, the last of August, in xvj<sup>th</sup> Yeare of his Ma<sup>ties</sup> now Raigne, of England, &c.*

BEFORE Wilm Bradford, gen<sup>t</sup>, Gov<sup>r</sup>,

Capt Miles Standish,

Gen<sup>t</sup>, Assistantℓ of the said gov<sup>nt</sup>.

Wilm Collyer, gen<sup>t</sup>, &

John Jenney,

**A**RTHUR HARRISON is graunted twenty fve acres of vpland for the land due to him for his service, lying on the west side of the lands graunted to Christopher Waddesworth in the woods by Duxborrow.

Georg Morrey, of Duxborrow, is graunted a pcell of vpland to build a house vpon, and some to plant vpon, at the discretion of M<sup>r</sup> Wilm Collyer, to be layd forth for him at Duxborrow, some where aboute Tho<sup>m</sup> Weybornes house.

These sefall pcells of landℓ following, lying at Namassacuset Riuer, are

graunted to the psons hereafter named, and to be layd forth & viewed by M<sup>r</sup> Wil<sup>m</sup> Collyer, Cap<sup>t</sup> Standish, Jonathan Brewster, Wil<sup>m</sup> Bassett, and Josuah Pratt, in manner & forme following, that is to say: To beginn their admeasurement as farr aboue the path way as the land is good & fitt for planting, and to be layd forth on both sides the said riuer, and for euery twenty acres to haue fve acres in breadth by the riner side, and the rest to range in lenth.

1640..

31 August.  
BRADFORD,  
Go<sup>v</sup><sup>r</sup>.

|                                                           |              |
|-----------------------------------------------------------|--------------|
| To M <sup>r</sup> Wil <sup>m</sup> Wetherell fifty acres. | } 380 acres. |
| To John Willis fifty acres.                               |              |
| To Nicholas Robins fifty acres.                           |              |
| To Tho <sup>m</sup> Weyborne fifty acres.                 |              |
| To Tho <sup>m</sup> Heywood fifty acres.                  |              |
| To Dolor Davis fifty acres.                               |              |
| To Thomas Bonney thirty acres.                            |              |
| To Wil <sup>m</sup> Brett twenty fve acres.               |              |
| To John Kidbye twenty fve acres.                          |              |

And for such meddows as are found there about℄, to be distributed amongst them, so as thother lands there yet vngraunted may not be p<sup>j</sup>ced for want of meddow to be layd to them when they shalbe graunted.

M<sup>r</sup> Wil<sup>m</sup> Kemp is graunted fourescore acres of vpland at Namassacuset, w<sup>th</sup> some convenyent meddow, to be layd to yt at the discretion of M<sup>r</sup> Wil<sup>m</sup> Collyer, Cap<sup>t</sup> Standish, Jonathan Brewster, Wil<sup>m</sup> Bassett, & Josuah Pratt, who are appoynted by the Court to view and lay the same forth.

*\*At the Gen<sup>l</sup>all Court held the first Day of Septemb<sup>r</sup>, in the xvj<sup>th</sup> Yeare of the Raigne of our Sou<sup>ra</sup>igne Lord, Charles, by the Grace of God King of England, Scotland, Franc, & Ireland, Defender of the Fayth, &c.*

1 September.  
[\*244.]

|                                                                                                                                                                                                 |                                                                                                                                                     |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------|
| BEFORE Wil <sup>m</sup> Bradford, gen <sup>t</sup> , Go <sup>v</sup> ,<br>Thomas Prence, gen <sup>t</sup> ,<br>Cap <sup>t</sup> Miles Standish,<br>Wil <sup>m</sup> Collyer, gen <sup>t</sup> , | Tymothy Hatherley, gen <sup>t</sup> ,<br>John Jenney, gen <sup>t</sup> ,<br>John Browne, gen <sup>t</sup> , &<br>Edmond Freeman, gen <sup>t</sup> , |
| Assistant℄, &c.                                                                                                                                                                                 |                                                                                                                                                     |

**G**ABRIEL FALLOWELL & Wil<sup>m</sup> Palmer admitted freemen this Court, & were sworne, &c.

M<sup>r</sup> Tho<sup>m</sup> Prence, form<sup>ly</sup> elected an Assistant, now sworne.

1640.

1 September.  
BRADFORD,  
Goŭn<sup>r</sup>.

John Deane, of Taunton, sworne Constable for the towne.

The action betwixt John Chaundler & Josias Winslow is referred to Mr Thomas and ‡John Barnes,‡ to be decided by them, and they to choose a third man indifferent on both sides, if in case they cannot agree it themselves.

The action cōcerning the towne of Sandwich is to be tryed the next Court if they please.

Wil<sup>m</sup> Chase, of Yarmouth, is censured (for his miscarriages against Mr Mathewes, and disturbance of the pceedings of the church, Court, & countrey,) to fynd sureties for his good behau<sup>r</sup> during the tyme of his abroad there, w<sup>ch</sup> is six months, and then to deŭt the place.

× ×

Thomas Pynson & Joane, his wife, for incontinency before their marriage, are censured, the said Tho<sup>m</sup> to be whipt at the post, and Joane his wife to sit in the stocks.

Mr Tart, of Scituate, for drawing wine w<sup>th</sup>out lycence, is fyned v<sup>s</sup>.

Francis Sprague, of Duxborrow, for the like, v<sup>s</sup>.

Discharg<sup>d</sup>.

James Cole, for drawing wyne w<sup>th</sup>out lycence & contrary to the expresse phibi<sup>ti</sup>ōn of the Court, & for his contempt & disorders suffered in *in* his house, is fyned v<sup>li</sup>.

Released.

Wil<sup>m</sup> Chase, of Yarmouth, plan<sup>t</sup>, oweth the King, . . . xli<sup>li</sup>.

Tho<sup>m</sup> Starr, of the same, chirurgeon, . . . . . xxli<sup>li</sup>.

Andrew Hellot, of Ply<sup>m</sup>, gen<sup>t</sup>, . . . . . xxli<sup>li</sup>.

The condi<sup>ti</sup>ōn, &c, that the said Wil<sup>m</sup> Chase shalbe of the good behau<sup>r</sup> toward<sup>l</sup> our soŭaigne lord the King, & all his leigh people, vntill the Gen<sup>l</sup>all Court in March, &c.

An attachment for two lambes in John Foxwells hands is graunted, w<sup>ch</sup> were sould to John Wakefeild, at Foxwells suite.

5 October.  
[\*245.]

*\*At a Court of Assistant<sup>l</sup> held at Ply<sup>m</sup>, the fift of Octob<sup>r</sup>, in the xvj<sup>th</sup> Yeare of his Ma<sup>ties</sup> now Raigne, of England, &c.*

BEFORE Wil<sup>m</sup> Bradford, gen<sup>t</sup>, Go<sup>u</sup>,

Tho<sup>m</sup> Prence,

Wil<sup>m</sup> Collyer,

Capt Miles Standish,

Tymothy Hatherley, &

John Jenney,

Gen<sup>t</sup>, Assistant<sup>l</sup>, &c.

**R**ICHARD CALLYCUTT complaynes against John Holmes, the messenger, in an action of trespass vpon the case, to the da<sup>m</sup>n of xxli<sup>li</sup>.

Whereas Mr Edward Winslow, in the behalfe of the neighbourhood of Greeces Harbour, requesteth the lands the space of three miles from their meeting house vp the South Riuer, & from thence by a straight line to the north side of Greens Harbour Brooke, at the payth there, where the way goeth to Scituate, — now, the Court doth order, that Captaine Standish, Mr Edward Winslow, Jonathan Brewster, and Wil<sup>m</sup> Bassett shall view the said landℓ, & make report thereof to the next Court of Assistantℓ.

Mr Raph Partrich is graunted tenn acres of vpland vpon a square lyne before his meddow at Greens Harbour Marsh.

John Dunhame, Señ, is graunted a pcell of vpland lying at the head of his lott, and to the heigh way south east the woodℓ on the southwest, & Wil<sup>m</sup> Pontus landℓ on the northwest thereof.

The Court doth order, that Captaine Standish & Mr John Alden shall view and lay forth the meddow landℓ to Jonathan Brewsters farme at the North Riuer, so much as they shall adjudg competent for the said farme.

The Court doth graunt vnto Francis Cooke & John Cooke, Jun<sup>r</sup>, the pcell of vpland lying betwixt Leiftennant Holmes landℓ at the North Riuer, and the landℓ graunted to John Rogers, Constant Southwood, &c, & p<sup>r</sup>uided it doe not exceede two hundred acres of vplandℓ, & the meddow before yt, or so much as shalbe thought competent when the same is viewed & layd forth by Cap<sup>t</sup> Standish & Mr John Alden. There is a pcell of vpland moore there found, containing about 10 or 12 acres, be it moore or lesse, w<sup>ch</sup> the Court hath likewise graunted vnto them, the s<sup>d</sup> Francℓ & John.

Of this see  
more ouerleafe.

Jonathan Hatch, taken as a vagrant, and found purloyneing diuers thinges, is censured to be whipt at the post.

\*The Court doth order, that Mr John Howland, Francis Cooke, Josuah Pratt, and Tho<sup>m</sup> Cushman shall range the bounds of the landℓ betwixt Mr Tho<sup>m</sup> Prence & Clement Briggs at Joanes Riuer, and to set them forth according to the auncient boundℓ & markes formly made betwixt them.

[\*246.]

The foresaid graunt of two hundred acres of vpland were layd forth by Captaine Standish and Mr Alden, according to the order of the Court, to the said Francis Cooke & John Cooke, in manner following, viz<sup>t</sup>, all that pcell of vpland lying betwixt the landℓ of Wil<sup>m</sup> Holmes and the landℓ of John Rogers containeing 212 acres, be it more or lesse, w<sup>th</sup> the meddow lying before the said vpland, w<sup>th</sup> the one half of the meddow lying before, or any way bounding vpon the vpland of John Rogers ; and whereas Wil<sup>m</sup> Holmes hath p<sup>t</sup> of his meddow lands lying before part of the said vpland so graunted to Francℓ & John, we haue also layd vnto them, the said Francis & John, the meddow or marsh lying betweene the said Wil<sup>m</sup> Holmes his meddow or marsh ground and the said North Riuer.



1640. \**At a Court of Assistant℥ held at Plym, afores<sup>d</sup>, the second Day of  
Nouemb<sup>r</sup>, in the xvj<sup>th</sup> Yeare of the now Raigne of o<sup>r</sup> Sou<sup>r</sup>aigne  
Lord, Charles, King of England, &c.*

2 November.  
NEW PLYM.  
BRADFORD,  
Gov<sup>r</sup>.  
[\*247.]

BEFORE Wilm Bradford, gen<sup>t</sup>, Gov<sup>r</sup>, Timothy Hatherly, &  
Thom<sup>s</sup> Prence, John Jenney,  
Miles Standish,  
Gen<sup>t</sup>, Assistant℥, &c.

**F**RANCIS WEST and Margery, his wyfe, for incontenancy w<sup>th</sup> one another before marriage, were censured to be both set in the stocks ; and that Francis shall make a paire of stocks to be set vp in a convenient place in Duxborrow, w<sup>th</sup>in the space of two months now next ensueinge.

It is ordered by the Court, that Cap<sup>t</sup> Miles Standish, M<sup>r</sup> John Alden, and Jonathan Brewster shall lay forth Constant Southwood land℥ at the North Riuer.

In the difference betwixt Joseph Greene and Edmond Brough, the Court haueing seene the arbitrac<sup>o</sup>n made betwixt them by Cap<sup>t</sup> Standish, Jonathan Brewster, & M<sup>r</sup> Wilm Kemp, whereby the said Joseph is ordered to pay the said Edmond six pound℥, out of w<sup>ch</sup> the said Edmond is to allow the said Joseph xxj<sup>s</sup> for dyett, & xj<sup>s</sup> for two bushells of corne, (xxxij<sup>s</sup> in all,) w<sup>ch</sup> is to be deducted out of the said vj<sup>li</sup>, so that the said Joseph is to pay the said Edmond iiij<sup>li</sup> viij<sup>s</sup>, by order of the Court.

Peter Collymer is graunted twenty fve acres of land℥ to be layd forth for him at Namassacuset, next after the land℥ there graunted are layd forth, w<sup>th</sup>out any vacancy.

Plymouth  
bounded.

Whereas, by the act of the Gen<sup>l</sup>all Court held the third of March, in the xvj<sup>th</sup> yeare of his s<sup>d</sup> mat<sup>ies</sup> now raigne, the Gov<sup>r</sup>nor & Assistants were authorized to set the bound℥ of the se<sup>d</sup>all towneshipp, it is enacted and concluded by the Court, that the bound℥ of Plymouth towneshipp shall extend southward℥ to the bounds of Sandwich towneshipp, and northward to the little brooke running from Steephen Tracys to another little brooke falling into Black Water from the commons left to Duxborrow & the neighbourhood there about℥, & westward eight miles vp into the land℥ from any part of the bay or sea ; alwayes p<sup>u</sup>ided that the bounds shall extend so far vp into the wood lands as to enclude the South Meddowes toward℥ Aggawam, lately discoverd, and the conveyent vpland℥ there about℥.

George Soule is graunted the meddow he desires against Mr Princel land℥ 1640.  
 at Greens Harbour, if in case Mr Howland do not exchaung̃ five acres w<sup>th</sup> Mr  
 Bradford, and Mr Bradford take his further of to fitt him w<sup>th</sup>all, or make ex-  
 chaung w<sup>th</sup> Mr Burne & M<sup>rs</sup> Fuller, whereby he may be furnished.

2 November.  
 BRADFORD,  
 Go<sup>th</sup>.

\*The sefall psons following are graunted these quantities of land of [\*248.]  
 those land℥ that lye northward from Duxborrow Mill, towards Greens Har-  
 bour : —

To Roger Chaundlor twenty five acres.

To Samuell Tompkins twenty five acres.

To John Rouse xxv acres, w<sup>th</sup> his houslott, for the land due for his  
 service.

To Wil<sup>m</sup> Sherman twenty acres, his houslott to be ꝑt thereof.

To John Phillips twenty acres, his houslott to be ꝑt thereof.

To James Lindell twenty acres, his houslott to be ꝑt thereof.

To Edmond Weston twenty acres, his houslott to be ꝑt thereof.

To Raph Chapman twenty acres, his houslott to be ꝑt thereof.

To John Gardiner twenty five acres for his service.

To John Handmer fiteene acres.

Edmond Hawes is graunted thirty acres next Daniell Coles lands, beyond  
 the South River, w<sup>th</sup> meddow land to it, if it be there to be had.

These sefall psons following are graunted these quantities of land follow-  
 ing, at the North Riuer, w<sup>th</sup> meddow to yt : —

To John Winslowe fourscore acres, w<sup>th</sup> some meddow to yt.

To Stephen Tracy fourscore acres, w<sup>th</sup> some meddow to yt.

To Georg Partrich thirty acres, w<sup>th</sup> some meddow to yt by his fathers.

To Henry Sampson fifty acres, w<sup>th</sup> some meddow to yt.

To Experience Michell fifty acres, w<sup>th</sup> some meddow to yt.

To John Paybody thirty acres, w<sup>th</sup> some meddow to yt.

To Abraham Peirce fourty acres, w<sup>th</sup> some meddow to yt.

To Joseph Biddle thirty acres, w<sup>th</sup> some meddow to yt.

To Edmond Chaundlor fifty acres, w<sup>th</sup> some meddow to yt.

To Wil<sup>m</sup> Tubbs, fourty acres, w<sup>th</sup> some meddow to yt.

|                                |   |                                  |
|--------------------------------|---|----------------------------------|
| To John Foard thirty acres,    | { | and some meddow if it be there   |
| To Arthur Howland fifty acres, |   | to be had when the former lot℥   |
|                                |   | are layd forth ; if not, then in |
|                                |   | some other convenyent place.     |

1640.

2 November.

BRADFORD,

Gov<sup>r</sup>.

[\*249.]

\*These sefall psons following are graunted meddowing in the North  
Meddow by Joanes Riuer : —

To M<sup>r</sup> John Done twelue acres.To M<sup>r</sup> Thofm Willet twelue acres.

To John Reynor tenn acres, &amp; a hundred acres of vpland there about℥

To M<sup>r</sup> Charles Chancey tenn acres.To M<sup>r</sup> Stephen Hopkins twelue acres.

To Nathaniell Souther seauen acres.

To Phineas Pratt six acres.

To M<sup>r</sup> Wilkm Paddy tenn acres.

These sefall psons following are graunted meddowing in the South Med-  
dows toward℥ Aggawam, Colebrook Meddowes : —

To Edward Bangs tenn acres.

To Manasseth Kempton tenn acres.

To Josias Cooke tenn acres.

To Andrew Ring fue acres.

To Nicholas Snow tenn acres.

To John Morton fue acres.

To Ephraim Morton fue acres.

To Josuah Pratt fue acres.

To M<sup>r</sup> Robt Hicks tenn acres.

To Samuell Hicks fue acres.

To Nathaniell Morton six acres.

To John Faunce six acres.

To John Jenkine six acres.

To M<sup>r</sup> Raph Smyth eight acres.

To Thofm Pope fue acres.

To Richard Higgens six acres.

To John Smaley fue acres.

To Anthony Snow fue acres.

The west meddow called Lakenhame by Doteys.

To Richard Sparrow 5 acrees.

To Edward Dotey 6 acres, w<sup>th</sup> vpland.To Bridgit Fuller 10 acres, w<sup>th</sup> vpland.

To M<sup>r</sup> John Atwood 8 acres, w<sup>th</sup> vpland, the which said eight acres of  
meddow, the bounds therof as it was last bounded is as followeth, viz<sup>s</sup> : wheras

there is about eight or nine acres of meddow betwixt M<sup>rs</sup> Fullers and his att the lower end of the meddow, it is marked with a pine tree on the north side, and a red oake on the south side; and about it is bounded on the north side with a red oake on the hill and a pine tree on the south side:

To James Hurst the meddow that Goodman Cooke should haue had.

1640.

2 November.  
BRADFORD,  
Go<sup>u</sup>.

*\*.At a Court of Assistant℥ held the last Day of Nouemb<sup>r</sup>, in the xvj<sup>th</sup> Yeare of his Ma<sup>ties</sup> now Raigne of England, &c.*

30 November.  
NEW PLYM.  
[\*250.]

|                                                             |                     |
|-------------------------------------------------------------|---------------------|
| BEFORE Wilkm Bradford, gen <sup>t</sup> , Go <sup>u</sup> , | Wilkm Collyer,      |
| Tho <sup>m</sup> Prence,                                    | Tymothy Hatherly, & |
| Cap <sup>t</sup> Miles Standish,                            | John Jenney,        |
| Gen <sup>t</sup> , Assistant℥, &c.                          |                     |

**I**T is ordered by the Court, that John Barnes shall repay six shillings to Edward Holman, w<sup>ch</sup> he wrongfully tooke of him for not entring of two acres of meddow, w<sup>ch</sup> the s<sup>d</sup> John bought of the said Edward.

A pcell of marsh meddow, lying before the iland granted to M<sup>r</sup> Bradford at Greens Harbour, lying on the west side from the cedar tree to the west poynt thereof, containeing about thirteene acres, be it more or lesse, are graunted to M<sup>r</sup> Wilkm Bradford, for meddowinge to the said iland.

It is concluded & graunted by the Court, that all that tract of marsh meddow lying at Greens Harbour Marsh, from Turkey Poynt to the wall, M<sup>r</sup> Thomas hath made in the said marsh on the north side of M<sup>r</sup> Edward Winslows land, and so downe to the Great Riuer shalbe reserued for meddow ground to the towne of Plymouth.

|                            |                            |
|----------------------------|----------------------------|
| Anthony Snow,              | Tho <sup>m</sup> Little,   |
| Richard Church,            | Giles Rickett,             |
| Rob <sup>te</sup> Bartlet, | Fran <sup>c</sup> Goulder. |

George Watson is graunted six acres of marsh meddow in Greens Harbour Marsh.

Samuell Cutbert is graunted fve acres of marsh meddow in Greens Harbour Marsh.

Loue Brewster is graunted six acres of marsh meddow against his vp-lands at Green℥ Harbour, on the south side thereof.

1640.

33 November.  
BRADFORD,  
GOVERN.

Twenty three acres more of marsh meddow in Greens Harb<sup>r</sup> Marsh is reserued for p̃ticular p̃sons in Plymouth, who haue put in their billes for it, but tyme would not p̃mitt to assigne it vnto them in p̃ticular, and the remaynder to be for the neighbourhood of Greens Harb<sup>r</sup>.

John Browne is graunted thirty acres of vpland at Manassacuset.

Edward Hall is graunted twenty fve acres of land at Manassacuset.

John Rowse is graunted the p̃cell of meddow he desireth, lying at  
^ , if it be not for̃ly disposed of to another.

[\*251.] \*John Barnes and Edward Holman are agreed vpon the action of v<sup>li</sup>, commenced against the said Edward; and the said Edward hath payd the said John xx<sup>s</sup> in hand, and is to deliuer the boate at Plym<sup>th</sup>, w<sup>th</sup> her furniture, before the first day of March next, and the said John Barnes is to haue one third p̃te of the said boate, w<sup>th</sup> the said Edward hath sould vnto the said John.

Whereas it appeareth that twenty acres of land were for̃ly graunted long since to Richard Higgens, at Mannamett Pond<sup>ℓ</sup>, the Court doth now confirme the same vnto him, w<sup>th</sup> thenlargment at the head of his hoame lott, p̃t whereof is already taken in; and M<sup>r</sup> Thos<sup>m</sup> Prence, M<sup>r</sup> John Jenney, & Josuah Pratt are appoynted to lay forth the said xx acres for him at Mannamett Ponds.

Whereas there is no meddow ground vpon the iland, or neck of land, for̃ly graunted to M<sup>r</sup> John Howland, the Court doth graunt that if there be any meddowing lying betwixt M<sup>r</sup> Bradfords iland there & the said neck, that the said meddowing shalbe reserued to the said John Howland, or what meddow there abouts shalbe found vpon view.

Whereas the inhabitants of the towne of Scituate are greatly straitened for land<sup>ℓ</sup>, and there is a necessity that they should bee enlarged, and that at the North Riuer, where they desire to haue supply of their wants, there is fve hundred acres and vpwards graunted already *graunted* to diuers p̃sons of Plymouth and Duxborrow, the Court doth graunt, (that those p̃sons to whome the said lands are graunted, haueing their se<sup>u</sup>all graunt<sup>ℓ</sup> layd forth vnto them,) that the said inhabitant<sup>ℓ</sup> of Scituate shall haue two miles in lenth from the end of the said graunt<sup>ℓ</sup> vp the said North Riuer, and a mile in breadth, (if it be there to be had when the foresaid graunt<sup>ℓ</sup> are layd forth,) and if not, then to abate of that p̃porc̃on; and that M<sup>r</sup> Tymothy Hatherly, Edward Foster, & Humfrey Turner shall dispose the said lands to such p̃sons of Scituate as they shall thinke fitt to be supplied.

*\*At a Court of Assistant℥ held the vij<sup>th</sup> Day of January, in the xiiij<sup>th</sup> Yeare of the Raigne of our Sou<sup>r</sup>aigne Lord, Charles, by the Grace of God of England, Scotland, France, & Ireland, King, Defendor of the Fayth, &c.*

1640-1.  
7 January.  
NEW PLYM.  
BRADFORD,  
GOV<sup>R</sup>.  
[\*253.]

BEFORE Tho<sup>m</sup> Prince, gen<sup>t</sup>, Go<sup>v</sup>n<sup>r</sup>,

Wil<sup>m</sup> Bradford,

Edward Winslow,

Gen<sup>t</sup>, Assist<sup>s</sup> of the s<sup>d</sup> gou<sup>n</sup>t.

John Alden,

John Atwood, &

John Browne,

**M**EMORAND: that the Court hath graunted vnto Wil<sup>m</sup> Thomas, gen<sup>t</sup>, all those land℥ layd out by M<sup>r</sup> Edward Winslow, M<sup>r</sup> John Alden, and M<sup>r</sup> Wil<sup>m</sup> Collyer, viz<sup>s</sup>: all that whole neck of vpland w<sup>th</sup> all the poynt℥ extending themselues into any the marshes, as also those hammocks of vpland called iland℥ in the marshes before the same, from the vpper end of the great fresh marsh called Greens Harbour Riuer Marsh southward, and from Greenes Harbour Freshett east and by south, as it is marked forth by the said Edward Winslow, John Alden, & W<sup>m</sup> Collyer, to the southwest corner of a swamp abutting vpon Carswell Marsh, neere the heigh way leading betwixt Duxborough & Carsewell, the easterly side thereof adjoyneing to Carswell, being the land℥ of the said Edward Winslow; the said Edward Winslow, his heires & assignes, being allowed so much vpland wood stuff, or tymber, as to set and mayntaine a fence betweene Carswell Meddow, or Marish, and the vpland of the said Wil<sup>m</sup> Thomas; the northerly side of the said vpland hereby graunted abutting vpon Greens Harbour Riuer Marsh, and from the northwest poynt of vpland betweene the said Edward Winslow & Wil<sup>m</sup> Thomas, to an iland graunted to the said Wil<sup>m</sup> Thomas before their bounds vpon a straight line to Greens Harbour Riuer, w<sup>th</sup> the marsh land & meddow betweene that and a poynt of vpland called the Eagles Nest; the westerne bounds of the said lands abutting vpon Greens Harbour Fresh Marsh aforesaid; prouided, & alwayes reserued & excepted, that if any meddow be graunted to any that abut-teth vpon the vpland℥ hereby graunted, the said Wil<sup>m</sup> Thomas, his heires and assignes, do allow wood stuff, or tymber, from conveyent places of the said vpland to fence and mayntaine the same about the said meddowes; to haue and to hold all and singuler the said land℥, meddowes, marshes, and p<sup>r</sup>miss<sup>s</sup>, w<sup>th</sup> all and euery p<sup>t</sup> and p<sup>c</sup>ell thereof, and their app<sup>r</sup>tenc℥, vnto the s<sup>d</sup> Wil<sup>m</sup> Thomas, his heires & assignes fore<sup>u</sup>, (except the wood stuff, or tymber for

1640-1. fenceing before excepted,) and to the onely pper use & behoofe of him, the said  
 Wil<sup>m</sup> Thomas, his heires and assignes for e<sup>u</sup>.

7 January.

BRADFORD,  
 Gov.

[\*255.]

\*The Clarkes Fees agreed vpon by the Court of Assis<sup>t</sup>ℓ.

|                                                                                                         |                                                        |
|---------------------------------------------------------------------------------------------------------|--------------------------------------------------------|
| Inprimis, for euery recognizanc <sup>e</sup> of the peace, ij <sup>s</sup> the                          | } <sup>li</sup> <sup>s</sup> <sup>d</sup> 00 : 04 : 04 |
| takeing, & ij <sup>s</sup> the releaseing, & 4 <sup>d</sup> the cryer, . . .                            |                                                        |
| Recog <sup>n</sup> for the good behavio <sup>r</sup> , 4 <sup>s</sup> takeing, & 4 <sup>s</sup> releas- | } 00 : 08 : 00                                         |
| ing, and 8 <sup>d</sup> to the cryer, . . . . .                                                         |                                                        |
| A warr <sup>nt</sup> of the peace, or any other graunted by the                                         | } 00 : 02 : 00                                         |
| Court, . . . . .                                                                                        |                                                        |
| For a warrant of the good behau <sup>r</sup> , . . . . .                                                | 00 : 04 : 00                                           |
| For a copy of an order, 2 <sup>s</sup> .                                                                |                                                        |
| For an indictment, . . . . .                                                                            | 00 : 02 : 00                                           |
| For a repleuin, . . . . .                                                                               | 00 : 02 : 04                                           |
| For entring of an action, . . . . .                                                                     | 00 : 00 : 06                                           |
| For a declarac <sup>o</sup> n, . . . . .                                                                | ^                                                      |
| For a warrant to summon a jury, . . . . .                                                               | 00 : 00 : 06                                           |
| For an answe <sup>r</sup> , . . . . .                                                                   | ^                                                      |
| For recording the verdict, . . . . .                                                                    | 00 : 01 : 06                                           |
| For an ordinary warrant from the Gov <sup>t</sup> , . . . . .                                           | 00 : 00 : 06                                           |
| For recording a bargaine, or guift of house or lands, .                                                 | 00 : 02 : 06                                           |
| For entring a bargaine of beastℓ or cattle, . . . . .                                                   | 00 : 00 : 06                                           |
| For entring & drawing the copy of an eueden <sup>e</sup> of                                             | } 00 : 05 : 00                                         |
| lands graunted by the Court, . . . . .                                                                  |                                                        |
| For regestring a will, . . . . .                                                                        | 00 : 02 : 06                                           |
| For regestring the inventory, . . . . .                                                                 | 00 : 02 : 06                                           |
| For a subpena for witnesses, . . . . .                                                                  | 00 : 00 : 06                                           |
| For entring the marks of cattle, . . . . .                                                              | 00 : 01 : 00                                           |
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| For a search of any order, will, &c, . . . . .                                                          | 00 : 00 : 04                                           |
| For a copy of a will, . . . . .                                                                         | 00 : 01 : 00                                           |
| For a copy of an inventory, . . . . .                                                                   | 00 : 01 : 00                                           |
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| For recording of a marriage, . . . . .                                                                  | 00 : 00 : 06                                           |
| For recording of contractℓ for servantℓ, . . . . .                                                      | 00 : 00 : 04                                           |
| ‡For a presentment vnder x <sup>s</sup> , xij <sup>d</sup> ; and for aboue, ij <sup>s</sup> ,.          | 00 : 00 : 00‡                                          |

# GENERAL INDEX.





# GENERAL INDEX.

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RECORDS  
OF  
PLYMOUTH COLONY.  
COURT ORDERS.  
VOL. II.  
1641—1651.



RECORDS  
OF THE  
COLONY  
OF  
NEW PLYMOUTH  
IN  
NEW ENGLAND.

PRINTED BY ORDER OF THE LEGISLATURE OF THE  
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VOL. II.  
1641—1651.



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## REMARKS.

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THE original manuscript from which the following pages are copied comprises the portion of the acts of the General Court and the Court of Assistants of the Colony of New Plymouth, generally known and designated as the second volume of Court Orders, and includes the records of about ten years, commencing with the proceedings held on the first day of December, 1640, and closing with those of the seventh of October, 1651. The first entry more appropriately belongs to the first volume, being recorded out of place in respect to strict chronological order.

A considerable part of the volume is written only on one side of the paper, which will account for the omission in many instances of the usual marginal entry denoting the pages of the original. The chirography is chiefly by Nathaniel Souther and Nathaniel Morton, the well known secretaries of the colony; a few pages, however, are in an unknown hand.

Dispersed throughout the original volume are very imperfect indexes, which have been rejected in printing, and others very carefully prepared have been substituted in their place.

The general remarks which are printed as an introduction to the first volume apply equally well to this, as the same plan has been adhered to in conducting it through the press.

N. B. S.



## MARKS AND CONTRACTIONS.

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A Dash - (or straight line) over a letter indicates the omission of the letter following the one marked.

A Curved Line ~ indicates the omission of one or more letters next to the one marked.

A Superior Letter indicates the omission of contiguous letters, either preceding or following it.

A Caret ^ indicates an omission in the original record.

A Cross x indicates a lost or unintelligible word.

All doubtful words supplied by the editor are included between brackets, [ ].

Some redundancies in the original record are printed in *Italics*.

Some interlineations, that occur in the original record, are put between parallels, || ||.

Some words and paragraphs, which have been cancelled in the original record, are put between ‡ ‡.

Several characters have special significations, namely:—

|                                             |                                                                                                                                                   |
|---------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------|
| @, — annum, anno.                           | õ, — mõ, month.                                                                                                                                   |
| ā, — an, am, — curiā, curiam.               | ř, — par, por, — řt, part ; řtion, por-<br>tion.                                                                                                  |
| ā, — mātate, magistrate.                    | p, — per, — pson, person.                                                                                                                         |
| ĥ, — ber, — numĥ, number ; Robĥ,<br>Robert. | ř, — pro, — řporcõn, proportion.                                                                                                                  |
| č, — ci, ti, — acčõn, action.               | ř, — pre, — řsent, present.                                                                                                                       |
| čõ, — tio, — jurisdicčõn, jurisdiction.     | q, — qstion, question.                                                                                                                            |
| č, — cre, cer, — ačs, acres.                | ř, — esř, esquire.                                                                                                                                |
| đ, — đđ, delivered.                         | ř, — Apř, April.                                                                                                                                  |
| ě, — Trěr, Treasurer.                       | ř, — ř, session ; řd, said.                                                                                                                       |
| ē, — committē, committee.                   | ř, — ser, — řvants, servants.                                                                                                                     |
| ĝ, — ĝñal, general ; Georgĝ, George.        | ř, — ter, — neuf, neuter.                                                                                                                         |
| h, — chr, charter.                          | ř, — capř, captain.                                                                                                                               |
| ĩ, — begĩg, beginĩg, beginning.             | ũ, — uer, — seũal, seueral.                                                                                                                       |
| ł, — łre, letter.                           | ũ, — abouũ, aboue, above.                                                                                                                         |
| m̄, — nm, mn, — com̄ittee, commit-<br>tee.  | ř, — ver, — seřal, several.                                                                                                                       |
| m̄, — recom̄dacõn, recommendation.          | ř, — řn, when.                                                                                                                                    |
| m̄, — mer, — form̄ly, formerly.             | y <sup>e</sup> , the ; y <sup>m</sup> , them ; y <sup>n</sup> , then ; y <sup>r</sup> , their ;<br>y <sup>s</sup> , this ; y <sup>t</sup> , that. |
| m̄, — month.                                | z, — us, — vilibz, vilibus.                                                                                                                       |
| n̄, — nn, — Peñ, Penn ; año, anno.          | ℓ, — es, et, — statutℓ, statutes.                                                                                                                 |
| ñ, — Dñi, Domini.                           | ℓč, &c, &c <sup>a</sup> , — et cætera.                                                                                                            |
| n̄, — ner, — manñ, manner.                  | viz <sup>o</sup> , — videlicet, namely.                                                                                                           |
| õ, — on, — mentiõ, mention.                 | / — full point.                                                                                                                                   |



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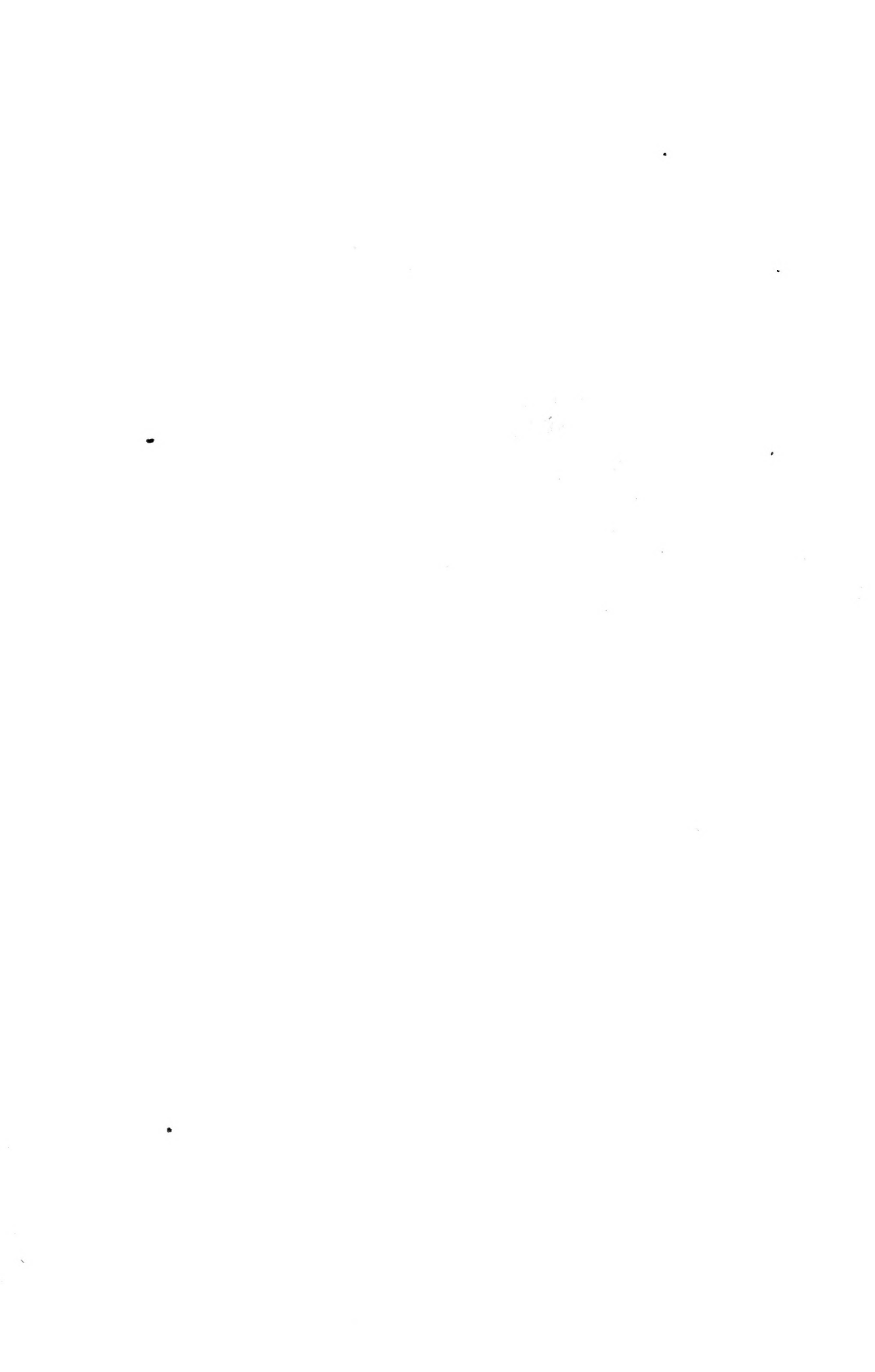
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# PLYMOUTH COURT ORDERS.

1641—1651.





# PLYMOUTH RECORDS.

## THE RECORDS OF THE COLONY OF NEW PLYMOUTH IN NEW ENGLAND.

[The second volume of the Plymouth Court Orders commences here, with the record of the proceedings of the General Court held on the first of December, 1640, and ends with that of the meeting held on the seventh of October, 1651, containing the acts of the General Court, grants of land, and other entries of a miscellaneous character. The first 141 pages are in the handwriting of Mr. Secretary Souther; pages 143 to 158 inclusive are in an unknown hand, and the remainder of the volume is in the well-known chirography of Mr. Nathaniel Morton, Secretary of the colony. The imperfect indexes of the original volume are incorporated in the general index, prepared for the printed volume.]

## ACTS AND PASSAGES OF COURT AND GRANTS OF LAND FROM THE YEAR 1641 UNTIL THE YEAR 1651.

NEW PLYM. BRADFORD, GOU<sup>R</sup>.

*\*At the Gen<sup>all</sup> Court of our Sou<sup>r</sup>aigne Lord, Charles, by the Grace  
of God King of England, Scotland, France, & Ireland, De-  
fendor of the Fayth, &c., held at Ply<sup>m</sup> afores<sup>d</sup>, the first of  
Decemb<sup>r</sup>, in the xvj<sup>th</sup> Yeare of his said Ma<sup>ties</sup> now Raigne, of  
England, &c.*

1640.  
1 December.  
[\*1.]

BEFORE Wil<sup>m</sup> Bradford, gent<sup>r</sup>, Gou<sup>r</sup>,      Wil<sup>m</sup> Collyer,  
Tho<sup>m</sup> Prence,      Tymothy Hatherley, and  
Cap<sup>t</sup> Miles Standish,      John Jenney,  
Gen<sup>t</sup>, Assistant<sup>l</sup> of the said gou<sup>r</sup>ment.

Walter Woodward,  
Edmond Eddingden,  
Tho<sup>m</sup> Ensigne,  
Edmond Freeman, Jun<sup>r</sup>,  
Wil<sup>m</sup> Nicholson,  
James Cade,  
Wil<sup>m</sup> Parker,      } proposed to be made freeman the next Court.

1640.

1 December.  
BRADFORD,  
Gov.

Presentment. Thomas Atkins and John Wood presented for deliv<sup>ing</sup> but fivescore herings to the hundred, whereas they should haue deliv<sup>ed</sup> sixscore and twelue, are censured by the Court to make restitu<sup>cion</sup> to the psons so wronged, and so are discharged of their presentment.

John Dammon for takeing tobaccoe contrary to the act of the Court, xij<sup>d</sup>.

Walter Knight for the like, xij<sup>d</sup>.

Marke Mendlowe discharged of his presentment in regard it appeared to be donn of necessitye meerely — drawing eele pott<sup>le</sup> on the Lord<sup>ly</sup> day.

Sympkins  
fined 40<sup>s</sup>.  
Remited to  
him Decembr  
16, bec. she  
neither had  
shoes nor was  
in health to  
come.

M<sup>r</sup> Nicholas Sympkins is discharged of his presentment for attempting to lye with an Indian weoman, but is enjoyned to bring Jonathan Hatch to the next Court to receiue punishment for slandering him; and for not bringing his Indian mayde servant to the court, contrary to the Gou<sup>rnors</sup> com<sup>mand</sup>, is fined xl<sup>s</sup>.

Kenelm Win.  
fine remitted  
him.

Kenelme Winslowe, being elected surveyor of the heigh wayes for the towne of Plym<sup>th</sup>, and neglecting the same, is fyned x<sup>s</sup>.

[\*2.]

\*Whereas the trade is not now followed by any man, and there may be some smale thinges some tymes had of the Indians in the planta<sup>cions</sup> w<sup>th</sup>in the gou<sup>rnment</sup>, and that an auncient act doth restraine all psons, w<sup>th</sup>out the consent of such as haue the trade, to trade or traffic with the Indians or natiues, it is thought meete by the Court, that if any inhabitants w<sup>th</sup>in the gou<sup>rn</sup>t shall trade w<sup>th</sup> the natiues in any of the planta<sup>cions</sup> w<sup>th</sup>in the patent, for corne, beades, veneson, or some tymes for a beaver skine, hee shall not be reputed nor taken to be a transgressor of the said acte.

Also, concerneing the trade, it is thought meete, that if any man be disposed to vndertake the same for some yeares, they shall bring in their names before the next Court of Assistant<sup>le</sup>, that if the Gou<sup>ern</sup>r do approue of them, and the condi<sup>cions</sup> on w<sup>ch</sup> they will vndertake the same, they may be approued of, or els the Gou<sup>r</sup> to vndertake the same, w<sup>th</sup> such p<sup>tners</sup> as he shall like of for the mannageing of it, in such wise for the summer season as he shall thinke best for the space of one yeare.

Their names,  
244.

Whereas by the act of the Gen<sup>all</sup> Court held the third day of March, 1639, it was agreed vpon that the purchasers, or old comers, shall make choyce of two or three planta<sup>cions</sup> for themselues & their heires by this December Court, — now the said purchasers, or old comers, do signifie vnto the Court that accordingly they haue made choyce of these three places, viz: First, from the bounds of Yarmouth, three miles to the eastward of Naemskeckett, and from sea to sea crosse the neck of land. The second place, of a place called

Acconquesse, al<sup>s</sup> Acokcus, w<sup>ch</sup> lyeth in the bottome of the bay, adjoyneing to the west side of Poynt Perrill, and two miles to the westerne side of the said riuer, to another place, called Acquissent Riuer, w<sup>ch</sup> entreth at the westerne end of Nickatay, and two miles to the eastward thereof, and to extend eight miles vp into the countrey. The third place, from Sowamset Riuer to Patuckquett Riuer, w<sup>th</sup> Causumpsit Neck, w<sup>ch</sup> is the cheefe habitacon of the Indians, & reserued for them to dwell vpon, extending into the land eight miles through the whole breadth thereof, the which choyce beinge made as aforesaid, and allowed in the Court, Mr Wilm Bradford, for himself and his associat℥; doth tenter a surrender to the body of freemen of all the rest of the lands w<sup>th</sup>in the patent℥, (w<sup>ch</sup> are not graunted to plantacons in genall, or psons in p<sup>t</sup>icular.) And the said Wilm Bradford is ready further to confirme the same, on the p<sup>t</sup>e and behalf of himself & his associat℥, to the body of the freemen, when he shalbe required.

1640.

1 December.  
BRADFORD,  
Gov<sup>r</sup>.

## \*Presentment℥

[\*3.]

John Barnes, for exaction in takeing rye at foure shillings p bushell, and selling it againe for fiue, w<sup>th</sup>out adventure or long forbearance in one and the same place. Witnes, Cap<sup>t</sup> Standish.

Trauersed;  
found not  
guilty.

Thomas Atkins & John Wood discharged.

Richard Knowles, for denying passage of cattell in the heigh way. Witnes, Ed Banges.

Thomas Coachman, Nicholas Snow, & Josias Cooke, for not mending the heigh wayes at the Second Brooke, Smylt Riuer, New Bridge, and other places.

Discharged,  
vpon condicon  
that they shall  
repaire the  
heigh wayes  
this yere.

John Jordaine, for takeing stuff to line a dublet throughout, & yet lyned not the skirts, & restored not the rest. Witnes, Jonathan Brewster, Raph Chapman.

Acquit, but to  
pay for a yard  
of stuffe to  
Raph Chap-  
man, as he  
payd Jonathan  
Brewster for  
yt.

Jonathan Brewster, for neglecting the ferry. Witnes, John Lewis, John Bryant, Thof<sup>m</sup> Pinchin, & his wyfe.

1640-1. *\*At a Court of Assistant℄, held the fift Day of January, in the xvj<sup>th</sup> Yeare of his Ma<sup>ties</sup> now Raigne, of England, &c.*

5 January.  
NEW PLYM.  
BRADFORD,  
Gov.  
[\*4.]

BEFORE Wilm Bradford, gent, Govr,      W<sup>m</sup> Collyer,  
Thom Prence,      Tymothy Hatherley, &  
Capt Miles Standish,      John Jenney.  
Gent, Assistant℄, &c.

THE differenc℄ betwixt Georg Bower & Georg Bonum, by the consent of both p<sup>ties</sup>, are referred to foure arbitrat<sup>rs</sup>, viz<sup>s</sup>, John Winslow and Wilm Paddy on George Bowers p<sup>t</sup>, and Manasseth Kempton and James Hurst on Georg Bonums p<sup>t</sup>; and if they cannot agree, then the said foure arbitrators to choose a fift man vnto them, to make a fynall end thereof.

Thomas Robert℄, of Duxborrow; is ordered by the Court that hee shall lodge no more w<sup>th</sup> Georg Morrey, a diseased pson, and betwixt this and the next Court of Assistant℄ p<sup>uide</sup> himself of lodging; and then make report to the Court how it may be p<sup>b</sup>able he may liue w<sup>th</sup>out being chargeable.

It is ordered by the Court, that Wilm Hiller shall pay vnto John Holmes, the messenger, liij<sup>s</sup> iiij<sup>d</sup> in corne, for his man wages.

It is ordered by the Court, that Francis Billington & Christian, his wyfe, shall giue Jonathan Brewster & Loue Brewster possession of her thirds the lands bought of them; & then Jonathan Brewster to pay him in corne the remaynder, which is xxxviij<sup>s</sup> vj<sup>d</sup>.

The differenç betwixt M<sup>r</sup> Jonathan Brewster & John Ford, for the crop of corne at Ferry, vpon the North Riuer, is referred, by consent of p<sup>ties</sup>, to be arbitrated and ended by Leiftennant W<sup>m</sup> Holmes and Samuell Fuller; and if they cannot end it, then they to choose a third man, and what end they shall make, they, s<sup>d</sup> p<sup>ties</sup>, to stand to it.

5 January.      Jañ 5<sup>th</sup>, 1640. Memorand: that John Cooke, for good consideraçõn, hath, w<sup>th</sup> & by the consent of Phillip Dais, assigned & set ouer the residue of the terme of yeares w<sup>th</sup> the said Phillip Dais is to serue the said John Cooke, vnto Henry Sampson, to be serued out w<sup>th</sup> the said Henry Sampson, the said Henry Sampson paying the said Phillip Dais thirteene bushells of Indian corne in thend of the said terme. His indenture beares date the xx<sup>th</sup> of Aprill, 1638, & is to serue for eleauen yeares & two months from the first day of his arriual in New England. Taken before Cap<sup>t</sup> Standish.

Richard Bushop hyred to dwell w<sup>th</sup> Nathaniell Sowther for vij<sup>li</sup> p añ, and came the xx<sup>th</sup> of January.

*\*At a Court of Assistant℥ held at Plymouth aforesaid, the first Day 1640-1.  
of Februar., in the xvj<sup>th</sup> Yeare of his Ma<sup>ties</sup> now Raigne, of  
England, &c.*

1 February.  
NEW PLYM.  
BRADFORD,  
Go<sup>vt</sup>.  
[\*5.]

BEFORE Wilm Bradford, gent, Go<sup>vt</sup>,      Wilm Collyer, &  
Thom Prence,                                  John Jenney,  
Capt Miles Standish,  
Gent, Assistant℥, &c.

A JURY was impannelled and sworne to lay forth certaine heigh wayes now in difference, and to set forth the bounds and land markes betwixt John Shawe, Kenelme Winslowe, and M<sup>r</sup> John Atwood, at Playne Dealeinge, and the heigh wayes from the towne of Plymouth to Wellingsley, and through Georg Bowers ground, and a heigh way for John Dunhame and Wilm Pontus, from their meddows at the waterside, and a heighway for Nathaniell Sowther, from his field to the towne.

The Names of the Jury.

|                           |           |                  |           |
|---------------------------|-----------|------------------|-----------|
| M <sup>r</sup> John Done, | } sworne. | John Cooke,      | } sworne. |
| Edward Banges,            |           | Josuah Pratt,    |           |
| Wilm Paddy,               |           | Josias Cooke,    |           |
| Thom Willett,             |           | Richard Sparrow, |           |
| Francis Cooke,            |           | George Watson,   |           |
| Thom Cushman,             |           | John Jenkine,    |           |

It is ordered by the Court, that the twenty acres of land w<sup>ch</sup> Thom Clarke bought of Raph Wallen shalbe layd forth at the lower end of the two lott℥ of 40 acres that he hath at the Eele Riuer, and that Edward Banges, Nicholas Snowe, & Josuah Pratt shall also lay forth Sarah Mortons lott there, and after they are layd forth, the bounds to be entred in the booke of record℥, that there may be no more controūsy about them.

*\*At a Court of Assistant℥ held the first Day of March, 1640, in  
the xvj<sup>th</sup> Yeare of his Ma<sup>ties</sup> now Raigne, of England, &c.*

1 March.  
[\*7.]

BEFORE Wilm Bradford, gent, Go<sup>vt</sup>,      Miles Standish, &  
Thom Prence,                                  John Jenney,  
Wilm Collyer,  
Gent, Assistant℥, &c.

1640-1.

1 March.  
BRADFORD,  
Gov.

IT is ordered and graunted by the Court, that the bounds of Duxborrow township shall begin where Plymouth bounds do end, namely, at the brooke falling into Black Water, and so along Mattachusetts Payth to the North Riuer; the said payth to be the westerne bounds thereof, (excepting & reserueing all those landℓ graunted w<sup>th</sup>in the said limmitℓ to p<sup>t</sup>icular psons in Plymouth, Greens Harbour, and Scituate, whose cattell may likewise depasture vpon the said co<sup>m</sup>mons w<sup>th</sup> them.

2 March.  
NEW PLYM.  
[\*8.]

*\*At a Gen<sup>r</sup>all Court of our Souaigne Lord the Kinge, held at Ply<sup>m</sup>, afores<sup>d</sup>, the second Day of March, in the xvj<sup>th</sup> Yeare of his said Ma<sup>ties</sup> now Raigne, of England, &c.*

|                                                                         |                    |
|-------------------------------------------------------------------------|--------------------|
| BEFORE Wil <sup>m</sup> Bradford, gen <sup>t</sup> , Gov <sup>r</sup> , | Tymothy Hatherley, |
| Thom <sup>s</sup> Prence,                                               | John Jenney,       |
| W <sup>m</sup> Collyer,                                                 | John Browne, and   |
| Miles Standish,                                                         | Edmond Freeman,    |
| Gen <sup>t</sup> , Assistantℓ, &c.                                      |                    |

**W**ILLM PARKER & Walter Woodward were admitted freemen, & sworne, &c.

|                      |                                                              |
|----------------------|--------------------------------------------------------------|
| Mr Richard Blindman, | } were p <sup>p</sup> ounded to be made free the next Court. |
| Mr Heugh Prychard,   |                                                              |
| Mr Obadiah Brewen,   |                                                              |
| John Sadler,         |                                                              |
| Heugh Cauken,        |                                                              |
| Walter Tibbott,      |                                                              |

Mr William Bradford is elected Gov<sup>r</sup>.

|                              |                           |
|------------------------------|---------------------------|
| Mr Thom <sup>s</sup> Prence, | } are elected Assistantℓ. |
| Mr Wil <sup>m</sup> Collyer, |                           |
| Mr Miles Standish,           |                           |
| Mr Edward Winslow,           |                           |
| Mr John Browne,              |                           |
| Mr Tymothy Hatherly,         |                           |
| Mr Edmond Freeman,           |                           |

Mr Francis Doughty, of Taunton, for selling a pound of gunpowder to the natiues, (contrary to the actℓ & orders of the Court,) w<sup>ch</sup> was confessed by himself, is fyned xxx<sup>s</sup>.

| Constables elected. |                                                  | Surveyors of heigh wayes.                                                                           | 1640-1.                       |
|---------------------|--------------------------------------------------|-----------------------------------------------------------------------------------------------------|-------------------------------|
| Plymouth,           | Josias Cooke,                                    | The same that were the last yeare,<br>beç they neglected.                                           | 2 March.<br>BRADFORD,<br>Gov. |
| Duxborrow,          | { ‡Job Cole, ‡<br>Constant Southw <sup>d</sup> , |                                                                                                     |                               |
| Scituate,           | Samuell Fuller,                                  | Joseph Bidle & Sa <sup>m</sup> Nash.                                                                |                               |
| Sandwich,           | Nathaniell Willis,                               | Tho <sup>m</sup> Chambers & John Williams.                                                          |                               |
| Taunton,            | Wil <sup>m</sup> Parker.                         | Edward Dillingham & Ro <sup>b</sup> te Botefish.                                                    |                               |
| Barnestable,        | Henry Rowley.                                    |                                                                                                     |                               |
| Yarmouth,           | Edward Sturgess.                                 | Wil <sup>m</sup> Clark & Emanuell White.                                                            |                               |
| Rexame,             | Josias Winslow,                                  | who was now also sworne to execute the<br>office of constable there vntill June come twelue months. |                               |

Edward Hall, servant to Francis Doughty, for sweareing pfanely, is censured to be set in the stocks, w<sup>ch</sup> was accordingly donn.

The Court appoyntē M<sup>r</sup> Edward Winslow & Nathaniell Sowther to draw vp a conveyance, or surrender, for the landē w<sup>th</sup>in the patentē vngranted, for M<sup>r</sup> Bradford to surrender into the handē of the whole body of freemen.

\*The Court hath graunted a competent porōn of vpland & hey ground to yt, sufficient for a plantacōn at Mattapoyst, to M<sup>r</sup> Charles Chauncey, M<sup>r</sup> John Atwood, & Thomas Cushman, and to be bounded by *by* such as the Court shall especially assigne therevnto, w<sup>ch</sup> were nominated to be M<sup>r</sup> Thomas Prence and Captaine Miles Standish ; puided alwayes, that such of the purchasers as shall take vp their lands there shall not haue it elsewhere also. [\*9.]

It is concluded and agreed betwixt Captaine Miles Standish, M<sup>r</sup> John Alden, Jonathan Brewster, & Wilñm Basset, and M<sup>r</sup> Edward Winslowe, the xxviiij<sup>th</sup> day of December, 1640, that from a great rock that is flatt on the topp, called Parting Rock, shalbe the p<sup>s</sup>ent bounds betweene Greenes Harbour & Duxborrow, and shall rangē from thence norwest, to the South Riuer, & on the contrary south east to the payth betweene Scituate & Duxborrow, and from thence, the payth to deuide them, to the bridgē ouer Greens Harbour Fresh.

Wilñm Chase, of Yarmouth, plant, oweth the King . . . xx<sup>li</sup>. Released.

The condiōn, that he shall psonally appeare at the next Genall Court of o<sup>r</sup> soūaigne lord the R., to answeare such matters as shalbe objected against him, & abide the further order of the Court, & not depte the same w<sup>th</sup>out lycence ; that then, &c.

Roñte Dennis, of Yarmouth, plant, acknowledgē, &c, . . . x<sup>li</sup>. Released.

The condiōn, that the said Roñte shall frame & pferr, or cause to be framed & pferrred one bill of indictment against Edward Morrell, at the next



1640-1. Geñall Court, &c, for the stealeing of certaine corne out of an house in Yarmouth aforeſd, & giue euedence there vnto ; that then, &c.

2 March.  
BRADFORD,  
Gov.

It is also agreed and concluded vpon by the Court, that the twenty pound℥ for this yeares benefit of the trade comeinge to the colonies, shalbe giuen to the Gouvern<sup>r</sup>.

It is also concluded and agreed vpon by the whole Court, that Nathaniell Sowther, the clark of the Court, shalbe & is authorized, in the name of the whole Court & body of freemen to receiued & take the surrender of the residue of the land℥ vngranted, (w<sup>ch</sup> M<sup>r</sup> Bradford is to surrender into their hands,) w<sup>ch</sup> are w<sup>th</sup>in the patent℥.

[\*10.]

\*Whereas diuers and sondry treaties haue beene in the publike & Geñall Court℥ of New Plymouth, his ma<sup>tie</sup>, our dread soſaigne, Charles, by the grace of God King of England, Scotland, France, and Ireland, &c, concerning the p<sup>pp</sup>er right and title of the lands w<sup>th</sup>in the bounds and limmitt℥ of his said ma<sup>ties</sup> h<sup>res</sup> patent℥, graunted by the right hon<sup>ble</sup> his ma<sup>ties</sup> counsell for New England, ratified by their co<sup>mm</sup>on seale, and signed by the hand of the Right Hon<sup>ble</sup> Earle of Warwick, then president of the said counsell, to William Bradford, his heires, associat℥, and assignes, beareing date, &c ; and whereas the said Wiltm Bradford and diuers others, the first instrument℥ of God in the begi<sup>nn</sup>inge of this greate work of planta<sup>ti</sup>on, together w<sup>th</sup> such as the alorderinge hand of God, in his p<sup>ro</sup>vidence, soone added vnto them, haue beene at very greate charges to p<sup>ro</sup>cure the said lands, p<sup>ro</sup>vides, & freedoms, from all entanglements, as may appeare by diuers and sundry deeds, enlargements of graunt℥, purchases, payments of debts, &c, by reason whereof the title to the day of this p<sup>re</sup>nt, remayneth in the said Wiltm, his heires, associat℥, and assignes, — now, for the better setling of the state of the said land℥ aforesaid, the said Wiltm Bradford and those first instrument℥ termed and called in sondry orders vpon publike record, the purchasers, or old comers, witnes two in especiall, thone beareing date the third of March, 1639, thother in Decemb<sup>r</sup> y<sup>e</sup> first, 1640, wherevnto these p<sup>re</sup>nt℥ haue speciall rela<sup>ti</sup>on & agreement, and whereby they are distinguished from other℥ the freemen and inhabitant℥ of the said corporation, — be it knowne vnto all men, therefore, by these p<sup>re</sup>nt℥, that the said Wiltm Bradf<sup>ord</sup>, for himself, his heires, together w<sup>th</sup> the said purchasers, do onely reserue vnto themselues, their heires and assignes, those three tract℥ of land℥ men<sup>ti</sup>oned in the said resolu<sup>ti</sup>on, order, & agreement, beareing date the first day of December, 1640, viz<sup>z</sup>, first, from the bounds of Yarmouth, three miles to the eastward of Naem-skeckett, and from sea to sea, crosse the said neck of land ; the second, of a place called Acconquesse, al<sup>s</sup> Acockcus, w<sup>ch</sup> lyeth in the bottome of the bay,

adjoyneing to the west side of Poynt Perrill, and two miles to the westerne side of the said riuer, to another place, called Acquissent Riuer, w<sup>ch</sup> entreth at the westerne end of Nickatay, and two miles to the eastward thereof, and to extend eight miles vp into the countrey; the third place from Sowamsett Riuer to Patucquett Riuer, w<sup>th</sup> Causumpsit Neck, w<sup>ch</sup> is the cheef habita<sup>o</sup>n of the Indians, and reserued for them to dwell vpon, extending into the land eight miles through the whole breadth thereof, together w<sup>th</sup> such other smale p<sup>o</sup>cells of land<sup>l</sup> as they or any of them are p<sup>o</sup>sonally possessed of or interested in by vertue of any former titles or graunt<sup>l</sup> whatsoeuer. And the said Wil<sup>m</sup> Bradford doth, by the free and full consent, approba<sup>o</sup>n, and agreement of the said old planters or purchasers, together w<sup>th</sup> the likeing, approba<sup>o</sup>n, & accepta<sup>o</sup>n of the other part of the said corpora<sup>o</sup>n, surrender into the hand<sup>l</sup> of the whole Court, consistinge of the freemen of this corpora<sup>o</sup>n of New Plymouth, all that ther right & title, power, authorytie, p<sup>o</sup>riledges, immunities, & freedomes granted in the said t<sup>res</sup> patent<sup>l</sup> by the said right hon<sup>ble</sup> counsell for New England, reserueing his & their p<sup>o</sup>sonall right of freemen, together w<sup>th</sup> the said old planters aforesaid, except the said lands before excepted, declaring the freemen of this present corpora<sup>o</sup>n, together w<sup>th</sup> all such as shalbe legally admitted into the same, his associat<sup>l</sup>. And the said Wil<sup>m</sup> Bradford, for him, his heires and assignes, doe further hereby p<sup>o</sup>mise and graunt to doe & p<sup>o</sup>forme \*whatsoeuer further thinge or thinges, act or acts, w<sup>ch</sup> in him lyeth, which shalbe needfull and expedient for the better confirmeing & establishinge the said p<sup>o</sup>misses as by counsell learned in the lawes shalbe reasonably aduised and deuised, when he shalbe therevnto required. In witnes whereof, the said Wil<sup>m</sup> Bradford hath in publike Court surrendred the said t<sup>res</sup> patent<sup>l</sup> actually into the hand<sup>l</sup> and power of the said Court, bynding himself, his heires, execut<sup>rs</sup>, administrat<sup>rs</sup>, and assignes, to deli<sup>u</sup> vp whatsoeuer specialties are in his hand<sup>l</sup> that do or may concerne the same.

Memorand: that the said surrender was made by the said Wil<sup>m</sup> Bradford, in publick Court, to Nathaniell Sowther, especially authorized by the whole Court to receiue the same, together w<sup>th</sup> the said t<sup>res</sup> patent<sup>l</sup>, in the name and for the use of the whole body of freemen.

It is ordered by the Court, that M<sup>r</sup> Wil<sup>m</sup> Bradford shall haue the keepeing of the said t<sup>res</sup> patent<sup>l</sup>, w<sup>ch</sup> were afterwards deli<sup>u</sup>ed vnto him by the said Nathaniell Sowther in the publike Court.

Presentm<sup>nts</sup> by the Grand Inquest.

We p<sup>o</sup>sent Georg<sup>e</sup> Bowers, for defama<sup>o</sup>n of the  
gou<sup>o</sup>ment. { Cap<sup>t</sup> Standish,  
M<sup>r</sup> Collier,  
M<sup>r</sup> Done.

1640-1.

2 March.  
BRADFORD,  
Go<sup>u</sup>.

[\*11.]

1640-1. We p̄sent the aforesaid Geor̄g Bowers, for a defamaçõn against M<sup>r</sup> John Browne, Assistant, the w<sup>ch</sup> defamaçõn doth or may appeare by t̄res vnder his owne handℓ.

2 March.  
BRADFORD,  
Gov̄.

June 1<sup>st</sup>, 1641, discharged. We p̄sent Geor̄g Pidcock, that whereas there was deliſed to him one yard or ellne of canvasse, the said Geor̄g detayned or vnjustly w<sup>th</sup>held from the owner some part thereof, the w<sup>ch</sup> first he denyed, & after acknowledged. Witnes, Thoñ Goodman.

We p̄sent John Bryant & Daniell Pryor, of Barnestable, for drinking tobacco vpon the heigh way. Witnes, Hen<sup>r</sup> Bourne.

We p̄sent Edward Hall, of Taunton, for sweareing. Censured.

We p̄sent ^, the sonne of widdow Hoble, for swearing. Witnes, Wilhm Evans, John Golope.

We p̄sent John Barnes, for selling black & browne threed at fve shillings foure pence p<sup>i</sup>. Witnes, M<sup>r</sup> Prence. Trauersed ; found not guilty.

1641. \**At a Court of Assistantℓ held at Plym̄ aforesaid, the fift Day of Aprill, in the xvij<sup>th</sup> Yeare of his Ma<sup>ty</sup> now Raigne, of England, &c.*

5 April.  
NEW PLYM.

[\*12.]

BEFORE Wilhm Bradford, gen<sup>t</sup>, Gov̄, Cap<sup>t</sup> Miles Standish, &  
Thomas Prence, John Jenney,  
Wilhm Collyer,  
Gen<sup>t</sup>, Assistantℓ, &c.

WHEREAS Geor̄g Lewes attached certaine corne of Thomas Robertℓ in the handℓ of Captaine Standish, and neither came nor any one for him to p̄secute his suite, was nonsuited, & the corne released.

Whereas seſiall p̄cells of landℓ are graunted to diuers p̄sons in Duxborrow, lying betwixt Stoney Brook, in Duxborrow, & Greenℓ Harbour & thereaboutℓ, and John Washborne should haue 40 acres thereaboutℓ; also the Court doth order that when those p̄cells are layd forth to the seſiall p̄sons abouesaid, that then the said John Washbourne shall haue the said 40 acres, if it be there to be had.

Whereas it appeareth to the Court, by the testimony of John Rowse, that John Irish and Henry Wallis did make a couenant in the life tyme of the said Henry, that the longer liuer of them should haue eich others fve acres

of land℥ lying by the Stony Brooke, in Duxborrow, the Court doth therefore order, that the said John Irish, the survivour of them, shall haue the said fiue acres of land w<sup>ch</sup> were the said Henry Wallis, deceased.

The fift of Aprill, 1641. Memorand: that whereas John Barnes hath sould his house and land℥ w<sup>ch</sup> he lately bought of Marke Mendloue, at the Eele Riuer, vnto Wil<sup>m</sup> Baker, now, the said Wil<sup>m</sup> Baker hath relinquished the said bargain vnto the said John Barnes; and the said John Barnes hath set, & to farme lett, vnto the said W<sup>m</sup> Baker, the said house and land℥, w<sup>th</sup> thapp<sup>t</sup>enc℥ therevnto belonging; to haue & to hold the said house & land from the day of the date hereof vnto the last day of October now next ensuing; the said Wil<sup>m</sup> Baker yeilding & paying therefore vnto the said John Barnes, his execut<sup>r</sup> & assignes, the sum of fifty shillings in money, or corne as the price goes, when it℥ merchantable, the said corne to be deliued at John Barnes house in Ply<sup>m</sup>; and the said Wil<sup>m</sup> is to leaue the house tenanable, and the fence vnbroken, at thend of the said terme; and the said John Barnes is to haue the rye now sowne vpon some p<sup>te</sup> of the said land℥.

\*The xxiiij<sup>th</sup> Aprill, 1641. Memorand: that it is agreed vpon betwixt M<sup>rs</sup> Bridgitt Fuller, widdow, and Nehemiah Smyth, concerning certaine sheepe w<sup>ch</sup> the said Nehemiah hath of the said Bridgitt℥ to keepe to the halfes, vpon the condiçõs following: Inprimis, the said Bridgitt hath deliued four ewe sheepe to the said Nehemiah, w<sup>ch</sup> hee is to keepe vntill the xxiiij<sup>th</sup> of June, 1643, and then the encrease is to be deuided, and the said M<sup>rs</sup> Fuller to haue one half, and the said Nehemiah thother half thereof; and the wooll to be yearely diuided, and thone half sent to M<sup>rs</sup> Fuller yearely, to Ply<sup>m</sup>, or where shee shall dwell, and likewise the stock at thend of the termes. It<sup>m</sup>: It is agreed vpon betwixt the said p<sup>ties</sup>, that the said Nehemiah, after the said xxiiij<sup>th</sup> June, 1643, shall haue the said foure ewes againe, w<sup>th</sup> her half of thencrease, for the terme of six yeares longer, saue that there shalbe a diuision of thencrease at thend of the first three yeares, and thother diuision to be made at thend of the said terme of six yeares; alwayes provided, that the said Bridgitt shall haue thone half of the woll sent her yearely to Ply<sup>m</sup>, or where she shall dwell, and thone halfe of the money for such weathers as shalbe sould out of thencrease during the said terme.

1641.

5 April.  
BRADFORD,  
Goũ.

23 April.

[\*13.]

1641. \*At a Court of Assistant℥ held the third Day of May, in the xvij<sup>th</sup>  
Yeare of his Ma<sup>ties</sup> now Raigne, of England, &c.

3 May.  
NEW PLYM.  
BRADFORD,  
Gov.  
[\*14.]

BEFORE Willm Bradford, gen<sup>tl</sup>, Gov<sup>r</sup>,      Cap<sup>t</sup> Miles Standish,  
Thom<sup>s</sup> Prence,      Tymothy Hatherley, &  
Willm Collyer,      John Jenney,  
Gen<sup>tl</sup>, Assistant℥, &c.

IT is ordered that M<sup>r</sup> Raph Smyth and Edmond Tilson shall pay John Finney, for Henry Cramptons vse, for keepinge of their goates, that w<sup>ch</sup> due unto him, viz<sup>t</sup>, M<sup>r</sup> Smyth, ix<sup>s</sup>; and Edmond Tilson that w<sup>ch</sup> is due to him, all reckonings being deducted.

Released.

Thom<sup>s</sup> Chambers, of Scittuate, planter, acknowledgeth to owe } xlii.  
the King . . . . . }  
John Twisden, of the same, planter, &c, . . . . . xlii.

The condiçon, that if the said Thomas Chambers doe psonally appeare at the next Geñall Court of o<sup>r</sup> soũaigne lord the King, to be holden at Plym, to answere to all such matters as shalbe objected against him on his s<sup>d</sup> ma<sup>ties</sup> behalf, and not deſt the Court w<sup>th</sup>out lycence; that then, &c.

Released.

M<sup>r</sup> Hatherley  
pmised to pay  
the fees, 4<sup>s</sup>.

John Twisden, of Scituate, plant, acknowledgeth to owe the } xlii.  
King, &c, . . . . . }  
Thom<sup>s</sup> Chambers, of the same, plant, &c, . . . . . xlii.

The condiçon, that if the said John Twisden do psonally appeare at the next Geñall Court of o<sup>r</sup> said soũaigne lord the King, to be holden at Plym, to answere to all such matters as on his said ma<sup>ties</sup> behalf shalbe objected ag<sup>st</sup> him, & not deſt the same w<sup>th</sup>out lycence; that then, &c.

Released.

Georg<sup>e</sup> Willerd, of Scittuate, planter, acknowledg<sup>e</sup> to the king, xlii.  
Thomas Chambers, of the same, plant, &c, . . . . . xxlii.  
Dolor Daus, } of the same, plant, &c, . . . . . xxlii.  
John Twisden, }

The condiçon that the said Georg<sup>e</sup> Willerd shall appeare at the next Geñall Court of o<sup>r</sup> said soũaigne lord the King, and abide the further order of the Court, & not deſt the same w<sup>th</sup>out lycence, and in the meane tyme to be of the good behauio<sup>r</sup> toward℥ o<sup>r</sup> soũaigne lord the King & all his leigh people; that then, &c.

For Thom<sup>s</sup>  
Williams.

To enquire of Willm Brackenberry, of Charles Towne or elsewhere, for any goods that are sent out of England for M<sup>r</sup> Thomas Tart, of Scituate, and that Thom<sup>s</sup> Williams may haue them for the payment of his

wiues porcion, because he gaue an acquittance for yt vppon promise that the said M<sup>r</sup> Tart would procure her porcion to be payd; the sum is xxiiij<sup>li</sup> or there about<sup>l</sup>.

1641.

3 May.  
BRADFORD,  
Go<sup>vt</sup>.

*\*At the Genall Court of o<sup>r</sup> Souaigine Lord the Kinge, held at Plym afores<sup>d</sup>, the first Day of June, in the xvij<sup>th</sup> Yeare of his said Ma<sup>ties</sup> now Raigne, of England, &c.*

1 June.  
NEW PLYM.  
[\*15.]

BEFORE Wilm Bradford, gent, Go<sup>vt</sup>, Miles Standish,  
Edward Winslow, Timothy Hatherly,  
Thom Prence, John Browne, and  
Wilm Collyer, Edmond Freeman, gent,  
Assistant<sup>l</sup> of the said go<sup>vt</sup>.

**M**<sup>R</sup> WILM BRADFORD was sworne Go<sup>vt</sup> for this ensuing yeare.

|                                   |                                                                                     |
|-----------------------------------|-------------------------------------------------------------------------------------|
| M <sup>r</sup> Edward Winslow,    | } sworne Assistant <sup>l</sup> of this go <sup>vt</sup> for<br>this ensuing yeare. |
| M <sup>r</sup> Thom Prence,       |                                                                                     |
| M <sup>r</sup> Wilm Collyer,      |                                                                                     |
| M <sup>r</sup> Miles Standish,    |                                                                                     |
| M <sup>r</sup> Timothy Hatherley, |                                                                                     |
| M <sup>r</sup> John Browne,       |                                                                                     |
| M <sup>r</sup> Edmond Freeman,    |                                                                                     |

Edmond Eddenden, of Scittuate, admitted freeman & sworne.

Wilm Newland, Joseph Holly, & Wilm Nicholson tooke the oath of fidelity, &c.

Constables.

|                                   |                                  |
|-----------------------------------|----------------------------------|
| Plym, . . . . .                   | Josiah Cooke sworne.             |
| Duxbor <sup>th</sup> , . . . . .  | Constant Southwood sworne.       |
| Scittua <sup>th</sup> , . . . . . | Samuell Fuller sworne.           |
| Sandwich, . . . . .               | Nathaniell Willis sworne.        |
| Taunton, . . . . .                | Wilm Parker sworne.              |
| Barnestable, . . . . .            | Henry Rowley sworne.             |
| Yarmouth, . . . . .               | Edward Sturges sworne.           |
| Rexhame, . . . . .                | Josias Winslow, formerly sworne. |

1641.

1 June.  
BRADFORD,  
Gov.

## The Grand Enquest.

|                     |          |                   |          |                                                        |
|---------------------|----------|-------------------|----------|--------------------------------------------------------|
| John Dunhame,       | } sworn. | George Kenflick,  | } sworn. | { ‡except<br>Kenelm<br>Winslow<br>& Giles<br>Rickett.‡ |
| John Cooke,         |          | Wilm Newland,     |          |                                                        |
| Josuah Pratt,       |          | Joseph Holly,     |          |                                                        |
| Gyles Rickett,      |          | Henry Andrewes,   |          |                                                        |
| Gabriell Fallowell, |          | Wilm Nicholson,   |          |                                                        |
| Samuell Nash,       |          | Samuell Hinckley, |          |                                                        |
| Henry Sampson,      |          | Samuell Jackson,  |          |                                                        |
| Richard Sillis,     |          | Kenelme Winslowe, |          |                                                        |

[\*16.]

## \*Comittees of the seſſall Townes.

|              |           |                                                                            |                  |
|--------------|-----------|----------------------------------------------------------------------------|------------------|
| Plym,        | . . . . . | { Mr John Jenney,<br>Mr John Atwood,<br>Mr John Howland,<br>Mr Wilm Paddy. |                  |
| Duxborrow,   | . . . . . | { Mr John Alden,<br>Jonathan Brewster.                                     |                  |
| Scittuate,   | . . . . . | { Edmond Eddenden,<br>Humfrey Turner.                                      | { Edward Foster, |
| Sandwich,    | . . . . . | { Richard Burne,<br>George Allen.                                          |                  |
| Taunton,     | . . . . . | { Cap <sup>t</sup> W <sup>m</sup> Poole,<br>John Stronge.                  |                  |
| Barnestable, | . . . . . | { Mr Tho <sup>m</sup> Dimmack,<br>Anthony Annable.                         |                  |
| Yarmouth,    | . . . . . | { Mr John Crow,<br>Richard Hore.                                           |                  |
| Rexhame,     | . . . . . | { Mr Wilm Thomas,<br>Mr Tho <sup>m</sup> Bourne.                           |                  |

Concerneing the difference betwixt Richard Lambert & Gowen White, it is by mutuall assent referred to be ended by Thomas Rawlins and Richard Sillis on Lambert℄, and John Stockbridg and John Hollot on the said Whit℄ pte; & if they cannot decide it, then these foure to choose fifth man; and what end they shall conclude, the pties to abide yt.

It is agreed by the Court, that James Skiffe shall haue the lands due to him layd forth or assigned him in some new plantacon.

Wilm Honywell is to haue the land℄ due to him for his service layd forth or assigned him at Joanes Riuer, or some other conveyent place.

Francis Baker, a coop, is admitted to dwell at Yarmouth, but not to haue the land℥ that are assigned formly to others w<sup>th</sup>out their consent.

1641.

The names of those that are p<sup>p</sup>ounded this Court to be admitted freemen the next Court : —

1 June.  
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Go<sup>vt</sup>.

Josuah Barnes & W<sup>m</sup> Nicholson, of Yarmouth; Samuell Jackson, Thomas Hatch, Henry Ewell, Abraham Blush, & W<sup>m</sup> Betts, of Barnestable; John Parker & John Bushop, of Taunton; W<sup>m</sup> Newland.

The towne of Taunton is graunted the xxx<sup>s</sup>, the fine of M<sup>r</sup> Francis Doughty, vpon condiçon that the townesmen of Taunton shall make all the swamps betwixt Plym<sup>th</sup> & Taunton passable for man & horse.

\*Georġ Willerd, of Scittuate, planter, for his contemptuous wordes, proued vpon oath, in saying that they were fooles, & knaues, and gulls that payd the rate, or word℥ to that effect, and other p<sup>p</sup>hane & vngodly speeches against the churches, likewise prooued by diūs oathes, — viz<sup>s</sup>, in saying that the churches here & in the Bay held forth a deuclish practise in that they did not baptise children, & other words to that effect; and also, being demaunded his answere why he did so say, did very contumeliously aske the assistant℥, or some of them in p<sup>t</sup>icular, why they did not take the oath of supremacy before they entred vpon their plac<sup>s</sup> yesterday, — was therefore to be bound to his good behaū.

[\*17.]

Georġ Willerd, of Scittuate, planter, oweth the King, &c, . . . xl<sup>li</sup>.

Thomas Chambers, of the same, plant, . . . . . xx<sup>li</sup>.

John Twisden, of the same, plant, . . . . . xx<sup>li</sup>.

To be levyed of euery one of their good℥, cattells, &c, if he fayle in the condiçon followinge : —

The condiçon of, &c : That if the said Georġ Willerd shall appeare at the next Geñall Court of our said soūaigne lord the Kinge, to answere to all such matters as on his ma<sup>ties</sup> behalf shalbe objected against him conēning his contumelious speeches, &c, and abide the further order of the Court, & not deſt the same w<sup>th</sup>out lycenç; and in the meane tyme to be of the good behaū toward℥ our said soūaigne lord the King & all his leigh people; that then, &c.

Whereas there is an act against the selling of sheepe out of the collonies, and that Nehemiah Smyth, haueing some sheepe, is deſting the collonies, and would carry them away w<sup>th</sup> him, contrary to the said act, the Court doth order that the said Nehemiah Smyth shall bringe his sheepe to the towne of Plym-outh the next second day at night, or the morning following, and shall sell them to any pson or psons that is disposed to buy them, viz<sup>s</sup>, his ewes at fourty shillings a peece, and the lambes at twenty shillings a peece, to bee payd



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in money or such commodities as the said Nehemiah shall like ; of and for the rest that are not bought, he to be pmitted to carry them w<sup>th</sup> him whither he goes to dwell.

It is ordered, that Jonathan Brewster shall procure the horsboate of the North Riuer, to be brought out of the bay thither by the first of July next ; & if afterwards men goe oñ at M<sup>r</sup> Vassells ferry, & not there, then the said Jonathan Brewsters servantℓ to be discharged from their attendance at the said ferry, (further then they please,) and not engaged to answer for any damage for neglect thereof.

That the Court of Assistantℓ be held at Plym̄ euery first Teusday in the month, saue when the Genall Courts, and then to be kept the day before.

[\*18.]

\*Edward Morrell, late of Yarmouth, laboř, indicted for stealeing certaine corne for Robert Dennis there, is found guilty, but is runn away.

Georg̃ Bowers, for his defamaçõn of the gouernment, w<sup>ch</sup> notw<sup>th</sup>standing his trauers, was found ag<sup>st</sup> him, is fyned v<sup>li</sup>.

Georg̃ Bowers is p̄sented for a neusance in setting his fence towardℓ the Goose Poynt so neare the banke side that there is not roome for a cart to passe by.

L<sup>es</sup> of administraçõn are graunted vnto Katherine Hurst, the relict of W<sup>m</sup> Hurst, late of Sandwich, deceas<sup>d</sup>.

L<sup>es</sup> of administraçõn are graunted to J<sup>n</sup> Briggs, of Sandwich, the widdow of John Briggs, lately deceased.

Richard Burne vndertook & promised to make good & pay al such dañ as might happen if Thomas Applegate should by bringing the suite about againe recouer any thinge against W<sup>m</sup> Newland, who this Court hath recofied ag<sup>st</sup> the said Applegate viij<sup>li</sup> dañ, and the charges of the suite.

Georg̃ Allen, of Sandwich, became p̄tey to the action that Edward Dotey p̄fers ag<sup>st</sup> Wilłm Alney, of Sandwich.

The rates of the sefiall townes for the payment of the clark, & 30 bush-ells of corne for the messenger : —

|                  | li | s  | d  |                    | li | s  | d  |
|------------------|----|----|----|--------------------|----|----|----|
| Plymouth, . . .  | 05 | 00 | 00 | Taunton, . . .     | 02 | 10 | 00 |
| Duxborrow, . . . | 03 | 10 | 00 | Barnestable, . . . | 02 | 10 | 00 |
| Scituate, . . .  | 04 | 00 | 00 | Yarmouth, . . .    | 02 | 10 | 00 |
| Sandwich, . . .  | 03 | 00 | 00 | Rexhame, . . .     | 02 | 00 | 00 |
|                  |    |    |    |                    |    |    |    |
|                  |    |    |    |                    | 25 | 00 | 00 |

[\*19.]

See their  
names in the  
book before  
this new  
bound, p. 105.

\*Whereas those seauen first freemen, men of Taunton, that haue vndergone great trauell and charges about the attending of the Courtℓ, laying out of landℓ,

and other occasions for the tounē, it is thought meete by the gofiment that therefore they haue a pporcion of land in some conuenient place lying together assigned them, so that it excede not the quantyty of fourty acres apeece, besides thother pporcions of landℓ in other placℓ as other of the inhabiℓ of the said towne of Taunton haue, when the said landℓ shall come to be deuided hereafter.

1641.

1 June.  
BRADFORD,  
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It is ordered and enacted by the Court, that M<sup>r</sup> Edward Winslow, Cap<sup>t</sup> Miles Standish, M<sup>r</sup> John Browne, & M<sup>r</sup> Edmond Freeman, foure of the Assistantℓ, or any two or three of them, shall goe to Barnestable & Yarmouth, and set the boundℓ of the said townes, and to heare and determine all causes and comp<sup>t</sup>nts (of the inhabiℓs of Barnestable, Yarmouth, and Sandwich coming before them) according to justice & equitie; and what they shall doe in the pmisses to be as authentically & effectually (being committed to record by the clark) as if the same had beene donn in the publicke Court.

‡The boundℓ of Yarmouth Towneship. The boundℓ of Yarmouth on the easterly side are to a certaine brooke called by the Indians Shuckquan, but by the English Bound Brooke, and all that neck of land northward called by the Indians Acquind, aℓs Acquiat, w<sup>th</sup> all the landℓ and marsh medow w<sup>ch</sup> lye on the westerly side of the said brooke to the townewardℓ vnto the mouth of the said brooke, and at the parte of the said Bound Brook where it falls into Statuckquett Riuer, or into the sea, and at the path ouer the said Boundℓ Brooke from a marked tree, then to run vpon a straight line south & by east to the South Sea, if it excede not the lengh of eight miles, excepting and reserueing vnto Massatampaine ^ ^ ‡

\*Francis Baker & Isabell Twineing, of Yarmouth, married the xvij<sup>th</sup> day of June, 1641.

17 June.

[\*20.]

*\*At a Court held at Yarmouth the xvij<sup>th</sup> Day of June, in the xvij<sup>th</sup> Yeare of the Raigne of o<sup>r</sup> Souaigine Lord, Charles, by the Grace of God of England, Scott<sup>d</sup>, Franc, & Ireland Kinge, &c.*

17 June.  
NEW PLYM.  
[\*21.]

BEFORE Edward Winslow, Miles Standish, and  
Edmond Freeman, gentlem<sup>n</sup>,

three of the Assistantℓ of the gof<sup>nt</sup> aforesaid, by vertue of the order of the Gefall Court of the first of June last past, whereby the said Edward Winslow, Miles Standish, Edmond Freeman, and John Browne, or any two or three of them, were authorized to set the boundℓ of Yarmouth and Barnestable, and to heare & determine all causes & contro<sup>rs</sup>ies amongst the inhabiℓs of Yarmouth, Barnestable, & Sandwich, w<sup>ch</sup> shall come before them, &c.

1641.

17 June.  
BRADFORD,  
Gov.

**T**HE differenc<sup>s</sup> betwixt Nicholas Sympkins & Wilm<sup>m</sup> Chase, by consent of both p<sup>ties</sup>, are refered to the arbitrim<sup>t</sup> of M<sup>r</sup> Mayo & M<sup>r</sup> Tho<sup>m</sup> Dimmack, and haue entred into an assumpsit of v<sup>li</sup> to eich other to abide their award; & its to be ended w<sup>th</sup>in a month next comeing.

A warrant granted to distraine xij<sup>s</sup> vpon Emanuel White for keepeing cowes, and vpon M<sup>r</sup> Sympkins xvj<sup>s</sup>, and M<sup>r</sup> Howes 16<sup>s</sup>, if M<sup>ris</sup> Fuller will not pay the s<sup>d</sup> 16<sup>s</sup> for Howes.

It is ordered by the Court, that M<sup>r</sup> Andrew Hellot shall pay Massatumpaine one fadome of bea<sup>d</sup>l<sup>e</sup> w<sup>th</sup>in two moones, besides the nett he alleadgeth the s<sup>d</sup> Massatumpaine soold him, for the deare that M<sup>r</sup> Hellotts sonn bought of him about two yeares since.

It is ordered by the Court, that Walter Deuile shall pay two shillings to Massatumpaine for mending of the hole in his kettle, w<sup>ch</sup> the s<sup>d</sup> Deuile shott w<sup>th</sup> his gunn; its to be payd w<sup>th</sup>in one moone next ensuinge.

It is ordered by the Court, that Nicholas Symkins shall saue harmlesse the corne of Emanuell White, Tho<sup>m</sup> Falland, Roger <sup>^</sup> and the rest that haue planted corne w<sup>th</sup>in that fence w<sup>ch</sup> they pay for the makeing of.

[\*22.]

\*Whereas there was complaint made by Wilm<sup>m</sup> Chase, that Nicholas Symkins had so set his fence that he hath taken in some smale p<sup>te</sup> of the land<sup>e</sup> of the s<sup>d</sup> W<sup>m</sup> Chase, w<sup>ch</sup> vpon view appeared to be so,—it is now ordered and concluded by the Court, that notwithstanding the fence shall stand as now it is sett, and that M<sup>r</sup> Anthony Thacher, for peace sake, will allow the said W<sup>m</sup> Chase as much land out of his owne land<sup>e</sup> of those land<sup>e</sup> w<sup>ch</sup> lye next to the said Chases land<sup>e</sup>, and the land so taken in by Nicholas Symkins as afore<sup>s</sup>d shalbe his owne. And the said Nicholas Symkins is to allow the said Chase a little p<sup>cell</sup> of marsh meddow, lying next to the said Chase, from the end of his fence by a straight line to a creeke easterly, p<sup>uid</sup>ed that the said Wilm<sup>m</sup> Chase do fence the same in by March next ensuinge.

It is also ordered and concluded, that the inhabitant<sup>e</sup> of the towne of Yarmouth shall p<sup>s</sup>ently meete together, and make a rate for the defraying of all the publike charges w<sup>ch</sup> haue beene layd forth by any p<sup>t</sup>icular p<sup>son</sup> or p<sup>sons</sup> for the good of the whole, saue that in the co<sup>m</sup>ittees charges wher Wilm<sup>m</sup> Chase, Tho<sup>m</sup> Howe, & Josuah Barnes were sent as co<sup>m</sup>ittees for the towne, these are to be exempted out of those rates, viz<sup>t</sup>: M<sup>r</sup> Mathews, Wilm<sup>m</sup> Palmer, Thomas Payne, Anthony Thacher, Tho<sup>m</sup> Falland, Emanuell White, & Tho<sup>m</sup> Starr; but in all other rat<sup>e</sup> and charges to be rated p<sup>portion</sup>ably w<sup>th</sup> the rest of the inhabi<sup>t</sup>s; and that, by vertue of this order, it shalbe lawfull for the constable to distraine all such p<sup>sons</sup> as shall refuse to pay the sums they are rated vnto.

It is ordered by the Court, that the meddow appoynted to M<sup>r</sup> Hellots farme shalbe p<sup>s</sup>ently layd forth by the co<sup>m</sup>ittees according to his graunt.

It is ordered also by the Court, that the seſſall pporcōns of land allotted vnto the inhabiṡs ſhall pſently be layd forth by the comiṡtees to the ſeſſall pſons to whom they are ſo graunted.

1641.

17 June.

BRADFORD,  
Gov.

It is ordered by the Court, that Wilm Lumpkin & Hugh Tilly ſhall pay to Gabriell Wheildon xv<sup>s</sup> for his third pte of the ſkiffe or boate they were ptners in, & his damnaḡ ſuſtained in the want thereof to fetch fiſh to fiſh his corne w<sup>th</sup>all, and the boat or ſkiffe to be theirs.

It is ordered by the Court, that M<sup>r</sup> Thoṡ Starr ſhall haue two acres of land in ſome conuenient place assigned him, for one acre of his land giuen to the towne to gett clay vpon.

It is ordered and concluded vpon, by the joynt conſent of all the inhabitants of Yarmouth, that Captaine Standiſh ſhalbe joyned to the comiṡtees of the ſaid towne of Yarmouth for the diſpoſeing of landℓ there, and that not any lands hereafter be graunted or layd forth w<sup>th</sup>out his conſent, and that all landℓ hereafter to be layd forth ſhalbe assigned to euery pſon by lott, except thoſe w<sup>ch</sup> are already graunted & assigned in pṡticular, whereof ſale & exchaunḡ haue bene made.

\*The Boundℓ of Yarmouth.

[\*23.]

The bounds of Yarmouth on the eaſterly ſide are from the towne to a certaine brooke called by the Indians Shuckquam, but by the English Boundbrooke, and all that neck of land northward called by the Indians Atquiod, al<sup>s</sup>, Aquiaṡ, w<sup>th</sup> all the vplandℓ and marſh meddow w<sup>ch</sup> lye on the weſterly ſide of the ſaid brooke, to the townewardℓ vnto the mouth of the ſaid brooke; and from a marked tree at the payth oſt the ſaid Bound Brooke by a ſtraight line ſouth and by eaſt to the ſouth ſea, ſo it extend not in length aboue eight miles, excepting and reſerueing vnto Maſſatanpaine, the ſachem, the landℓ from Nobcuſſetpann weſterly, from a marked tree there vnto another marked tree at a ſwamp extending weſterly, and from thence to another marked trey northerly by a ſtraight line to the ſea, and from the northerly end of the ſaid Nobcuſſet pan to the ſea by a line from the weſterly ſide of the ſaid pan.

The bounds betwixt Yarmouth & Barnſtable are as folloiweth, viz<sup>t</sup>: that the river of Stoney Coue ſhalbe the bounds from the ſea as farr as it ruṡeth to the landwards, and from thence from the vpward pte thereof to begin at the eaſterly ſide of the lott of Andrew Hellōt, at a knowne marked tree, by the heigh way leading betwixt Barnſtable and Yarmouth aforeſaid, and from the eaſterly ſide of the vpward pt of the ſaid lot to runn vpon the ſouth ſouthweſt poynt of the compaſſe to the ſouth ſea, pvided alwayes that the meddow land that was allotted and appoynted to the ſaid M<sup>r</sup> Hellōts farme be ſtill reſerued vnto the ſaid farme, according to the forṡ intent & graunt thereof; excepting & reſerueing vnto Nepaiton & Twacommacus, & their

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heires and assignes, if they shall dwell vpon yt, all that pcell of playne land bordering to the seawardℓ from a pond to a tree by the wood side, marked by M<sup>r</sup> Winslow, Cap<sup>t</sup> Standish, & M<sup>r</sup> Freeman, and from thence easterly by the wood side to another marked tree, & from thence northerly to the sea, puided that if the said Nepaiton shall at any tyme sell the same, he shall sell it to the inhabi<sup>t</sup>s of Barnestable before any other.

The Agreement betwixt Nepaiton & Twacommacus & their Heires and the Inhabitants of Barnestable.

In considera<sup>c</sup>õn besides what the said Nepaiton hath had already of the said inhabi<sup>t</sup>s of Barnestable, that they shall build the said Nepaiton one dwelling house, w<sup>th</sup> a chamber flored w<sup>th</sup> bordℓ, w<sup>th</sup> a chimney and an ouen therein, the said Nepaiton hath giuen and graunted vnto the said inhabi<sup>t</sup>s of Barnestable all the rest of his landℓ lying about Barnestable aforesaid, w<sup>ch</sup> were his & his owne pper inheritance, excepting & reserueing vnto the said Nepaiton and Twacommacus & their heires & assignes foreuer, if they shall dwell vpon it, all that pcell of playne lands bordering vpon the sea, from a pond to a tree by the wood side marked by M<sup>r</sup> Winslow, Cap<sup>t</sup> Standish, and M<sup>r</sup> Freeman, & from thence easterly \*by the wood side to another marked tree, and from thence northerly to the sea; provided alwayes, that if the said Nepaiton shall at any time sell the said landℓ, he shall sell them to the inhabi<sup>t</sup>s of Barnestable before any other, and shall from tyme to tyme giue leaue for a draught to come through his ground when they shall desire it; and lastly, that they shall haue liberty to gett wood for fenceing a fyer out of the woods there, and enjoy and reap the corne this yeare w<sup>ch</sup> they haue set out of the foresaid boundℓ,     ^   and in winter to liue where he pleaseth.

6 July.  
NEW PLYM.  
[\*25.]

*\*At a Court of Assistantℓ held at Plym̃ afores<sup>d</sup>, the vj<sup>th</sup> Day of July, in the xvij<sup>th</sup> Yeare of his Ma<sup>ty</sup> now Raigne of England, &c.*

BEFORE W<sup>m</sup> Bradford, gen<sup>t</sup>, Gov<sup>r</sup>,  
Edward Winslow,  
Tho<sup>m</sup> Prence,

W<sup>m</sup> Collyer, &  
Cap<sup>t</sup> Miles Standish,

Gen<sup>t</sup>, Assistantℓ, &c.

**A**N action was tryed betwixt Leiftennant Holmes & James Luxford.  
M<sup>r</sup> Parker, of Weymouth, had a view of the patent and that clause in writing w<sup>ch</sup> concerned the boundℓ from Narragansetts Bay to the vtmost

pts & limmits of the countrey called Pockanockett, in regard the Bay men would haue had Sicquncke from us. 1641.

James Luxford agreed to lett the attachment rest vpon the sowe attached at at M<sup>r</sup> Aldens suite vntill he be satisfyed, the said Luxford ruining the adventure. 6 July  
BRADFORD,  
Goũ.

At a townes meeting for the towne of Plym, held the xvij<sup>th</sup> August, in the xvij<sup>th</sup> yeare of the now raigne of o<sup>r</sup> souaigne lord, Charles, King of England, &c, it was ordered and agreed as followeth, viz: — 16 August.

That the second day of the weeke after the Genall Court, the matrats and comittees shall meete to graunt landℓ, and then to appoynt a certaine tyme when to meete againe.

That a pcell of land lying betweene the Ele Riuer swamps shalbe reserued to the towne of Plymouth, for the inhabi<sup>ts</sup> to sowe hempe and flax vpon, puided that W<sup>m</sup> Paddy haue other landℓ graunted him in lue thereof, be<sup>c</sup> the said landℓ were forimly graunted to him.

\*Thomas Southerne and Elizabeth Reynor marryed the first of September, 1641. 1 September.  
[\*26.]

Robert Finney & Phebe Ripley marryed the first of September, 1641.

M<sup>r</sup> W<sup>m</sup> Hanbury & Hannah Sowther marryed the xxvij<sup>th</sup> September, 1641. 28 September.

Henry Sirkman & Bridgitt Fuller marryed the xxx<sup>th</sup> September, 1641. 30 September.

It is agreed that the prison be erected, & that Cap<sup>t</sup> Standish and Jonathan Brewster shall see it laden into the leighter on Duxborrow side, & the Court to see them payd for their charge about yt; that M<sup>r</sup> Atwood & M<sup>r</sup> Paddy shall vndertake the receipt thereof on this side, & that M<sup>r</sup> Paddy will lay forth 5<sup>li</sup> or 6<sup>li</sup> aboute it, puided the Court take order he shalbe payd againe in due tyme, and not put him to gather it himself.

*\*At the Gen<sup>r</sup>all Court of o<sup>r</sup> Sou<sup>a</sup>igine Lord the Kinge, held at Plym aforesaid, the vij<sup>th</sup> of Septemb<sup>r</sup>, in the xvij<sup>th</sup> Yeare of the Raigne of o<sup>r</sup> said Sou<sup>a</sup>igine Lord, Charles, King of England, &c.* 7 September.  
NEW PLYM.  
[\*27.]

BEFORE Wil<sup>m</sup> Bradford, gent, Goũ,  
Edward Winslow,  
Tho<sup>m</sup> Prence,

Wil<sup>m</sup> Collyer,  
Cap<sup>t</sup> Miles Standish, &  
Tymothy Hatherly,

Assistantℓ, &c.

**M<sup>R</sup>** MARMADUKE MATHEWES, Thomas Falland, Richard Hore, Wil<sup>m</sup> Newland, John Parker, Giles Rickett admitted freemen this Court, & sworne.

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|                   |   |                 |   |                                             |
|-------------------|---|-----------------|---|---------------------------------------------|
| Samuell Hicks,    | } | Thomas Lambert, | } | ppounded to be made<br>free the next Court. |
| John Smaley,      |   | John Rogers,    |   |                                             |
| John Dunhame, Jñ, |   | Oliuer Purchas, |   |                                             |
| Wilłm Fallowell,  |   |                 |   |                                             |
| Edmond Tilson,    |   |                 |   |                                             |

All differencē now depending betwixt Thomas Chettenden & Xpōfer Winter are, by consent of both pties, referred to be ended by Thomas Raulins and Edward Foster; and the said pties haue entred into assumpsitt to eich other of 40<sup>li</sup> to abide their end & order.

The dep<sup>ti</sup>cōn of Wilłm Holmes taken by and affirmed in the open Court: This depo<sup>nt</sup> sayth, Wilłm Hatch used these wordes, or the like effect, viz<sup>s</sup>, that the warrantē sent from the gouern<sup>r</sup> were nothing but a stincking cōmissary warrantē or attachmentē, and that the warrantē sent in that kynd are no better than cōmissary court warrantē; and that the warrant sent to the constable to warne him, the sd Hatch, to appeare at the Court of o<sup>r</sup> soūaigne lord the Kinge was but a cōmissary warrant, and ^ ^

The messenger, being deposed cōcerning the words that Wilłm Hatch used, sayth that ^ ^ ^

[\*28.] \*Wilłm Hatch, of Scittuate, cōmitted to the goale for want of sureties for his good behaū.

It is ordered by the Court, that M<sup>r</sup> Edmond Freeman, one of the Assist-antē, shall, at the next Court holden towardē Yarmouth & Barnestable, inflict such punishment upon M<sup>r</sup> Crowes mayde servant, for pilfering goods in his house, as according to her fault shalbe just & equall.

M<sup>r</sup> John Done, M<sup>r</sup> Wilłm Paddy, & Nathaniell Sowther, are appoynted by the Court to view James Luxfordē bookes, and to certify the Court what they find therein.

George Allen & M<sup>r</sup> Edward Dillingham are nominated, by consent of both pties, to apprise the swyne Wilłm Newland hath in execuōn of Thoñ Applegatē, and what the want in value of eight pounds & charges the said Applegate is to giue his bill to the said Newland for payment thereof.

James Coles fyne of fīue pounds, vpon due consideraōn had thereof, is by the Court remitted the said Cole, allowing the dyett of John Mynard during the tyme he was erecting the prison.

It is ordered by the Court, that John Mynard shall haue iij<sup>li</sup> more allowed him, besides his dyett, for his worke donn about the prison ouer & aboue the *the* bargaine.

Gowen White, of Scittuate, for his assault vpon Wilłm Holmes, is fyned by the Court fīue shillings.

|                                                                        |                      |
|------------------------------------------------------------------------|----------------------|
| Wilm Hatch, of Scittuate, planter, acknowledgeth to owe o <sup>r</sup> | } xl <sup>li</sup> . |
| soſuaigne lord the Kinge, &c, . . . . .                                |                      |
| John Combe, of Plym, gent, . . . . .                                   |                      |
| Thom Cushman, of the same, ſant, . . . . .                             | xx <sup>li</sup> .   |

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The condiçon, that if thaboue bounden Wilm Hatch shall psonally appeare Released.  
at the next Geñall Court of o<sup>r</sup> ſd ſoſuaigne lord the Kinge, &c, to be holden  
at Plym, &c, and in the meane tyme to be of the good behaũ toward℥ o<sup>r</sup> ſaid  
ſoſuaigne lord the King and all his legh people, and abide the further order  
of the Court, & not deſte the same w<sup>th</sup>out lycence ; that then, &c.

\*At a townes meeting by the inhabitants of Plym, holden the xvj<sup>th</sup> of Sep- 16 September.  
temb<sup>r</sup>, 1641, xvij<sup>o</sup> Caroli, &c, for grant of lands w<sup>th</sup>in the ſaid town- [\*29.]  
ſhip of Plymouth, according to the order of the Court, by M<sup>r</sup> Wilm  
Bradford, M<sup>r</sup> Thomas Prince, and the then comittees, viz<sup>s</sup>, M<sup>r</sup> John At-  
wood, M<sup>r</sup> John Jenney, & M<sup>r</sup> Wilm Paddy.

The lands lying at Caughtacanteist Hill, betwixt Josias Cooks feild and  
M<sup>r</sup> John Howland℥ land, towards the brooke, is graunted to M<sup>r</sup> John Reynor,  
the teacher.

It is ordered, that the lands beyond the Second Brook, lying at the head  
of M<sup>r</sup> Bradford℥ land there, and the lands there about℥, shall not bee graunted  
forth to any man except to a pastor or a teacher.

It is also ordered, that the lands remaineing in Alkermans feild, & not  
belonging to p̄ticuler p̄sons, ſhalbe reſerued to be graunted to a pastor.

Richard Sparrow is graunted the meddow ground at the Wood Iland,  
w<sup>ch</sup> was M<sup>rs</sup> Fullers, containeing about two acres.

Andrew Ring is granted an enlargement at the west ende of his garden,  
to be viewed and set forth for him by M<sup>r</sup> Bradford, M<sup>r</sup> Jenney, & M<sup>r</sup> Paddy,  
or any two of them.

Edward Banges is graunted a p̄cell of fourscore acres of vpland about  
Warrens Wells, to be viewed and layd forth for him by M<sup>r</sup> Jenney, Manasseth  
Kempton, & Josuah Pratt.

Thomas Cushman is graunted a p̄cell ^ upland remayneing about Turners  
feild, and two acres nere the new feild betwixt M<sup>rs</sup> Fullers and the brooke, in  
lue of two acres lying by Georg<sup>e</sup>.Watsons & John Barnes.

Wilm Paddy, John Finney, Robte Finney, are graunted six acres  
apeece of vpland abutting vpon the brooke that comes from the Fresh Lake,  
p̄uided thẽ leaue convenyent passage for cattell by the brooke side, and M<sup>r</sup>  
Paddy to haue more then six acres, if it be there to be had.



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[\*30.]

Thurstone Clarke is graunted tenn acres of vpland at the head of Edward Doteys lott toward Mount Hill Payth.

\*John Groomes is graunted twelue acres of vpland at the head of Blackbrooke, to be layd forth next after John Winslowes enlargment, and Josuah Pratts xij acres are layd forth; and all to be viewed and layd forth by Mr W<sup>m</sup> Paddy, Nath<sup>l</sup> Sowther, & Josuah Pratt.

Francis Billington is graunted an enlargment where he desireth, if, vpon the view of Mr Prence, Mr Atwood, & W<sup>m</sup> Paddy, it shalbe there found to be had.

Wilhm Fallowell, John Wood, are graunted six acres a peece of vpland, at the Loute Pond.

Steeven Wood, Henry Wood, are graunted eight acres apeece of vpland, at Loute Pond.

John Dunhame, the yeonger, is graunted twenty acres of vpland about the north easterly side of Josias Cook Haystack Pond, and the odd hobs of meddowing he desireth thereabouts.

John Dunhame, the elder, is graunted threescore acres of vpland lying at the Swann Holt on the north side thereof, and eight acres of meddow to yt there.

Samuell Eddy is graunted six acres of vpland lying on the northwest side of Fresh Lake, about the fishing place, and thirty acres of vpland at the Narrogansett Hill, and foure acres of meddow, or els half the meddow ground there to yt.

Edward Doteys pcell of vpland at Lakenham is graunted to be made vp fourty acres.

Mr John Atwood is graunted one hundred acres of vpland to his meddow at Lakenhame, and to abut vpon the said meddow as neere as may bee.

M<sup>rs</sup> Bridgitt Fuller is graunted one hundred acres vpland to her meddow at Lakenhame, and to abutt vpon her meddow there, as nere as it can conveniently be layd forth.

Mr Wilhm Paddy is graunted 100 acres of vpland at the North Meddow by Jones Riuer vpon view to be layd forth.

& Nathaniell Sowther is to haue the next land.

Mr Thomas Prence is graunted an enlargment at the head of his lott at Joanes Riuer, to be layd forth vpon view.

[\*31.]

\*Mr John Jenney is graunted as much more vpland as will make his farme at Lakenhame two hundred acres, and when that is used, then to haue more added to yt, in lue of some land he hath yeilded vp at the towne to Gabriell Fallowell.

James Cole is graunted fifty acres of vpland at Lakenhame Meddow, and some meddow to be layd to yt vpon view.

Josuah Pratt is graunted a garden place about the house he hath bought of Thomas Savory, at Squerrell, and Mr Jenney & Mr Paddy to lay it forth. 1641.

Nathaniell Sowther is graunted a little pcell ^ vpland, taken in w<sup>th</sup> his meddow at the watering place, and also a garden place at Wellingsly, to be viewed by Mr Paddy. 16 September.  
BRADFORD,  
Go<sup>o</sup>.

*\*At a Court of Assistant℥ held the second of Novembr, in the xvij<sup>th</sup> Yeare of his s<sup>d</sup> Ma<sup>ts</sup> now Raigne, of England, &c.* 2 November.  
[\*32.]

BEFORE Wiltm Bradford, gent, Go<sup>o</sup>, Thomas Prence, and  
Edward Winslow, W<sup>m</sup> Collyer,  
Gent, Assistant℥, &c.

**L**RES of administraçõn are graunted to M<sup>rs</sup> Elizabeth Kemp, to administer vpon all the goods, cattells, and debt℥ w<sup>ch</sup> Wiltm Kempe, her late husband, dyed possessed of, or were due & apptaineing vnto him at the tyme of his decease, puided shee exhibite vpon oath a true inventory thereof w<sup>th</sup> all convenyent speed, or when shee shalbe therevnto required by the Court.

*\*At the Geñall Court of o<sup>r</sup> Souaigne Lord the King, held at Plym aforesaid, the vij<sup>th</sup> Day of Decembr, in the xvij<sup>th</sup> Yeare of the Raigne of o<sup>r</sup> Souaigne Lord, Charles, by the Grace of God King, of England, Scotland, France, & Ireland Defendr of the Fayth, &c.* 7 December.  
NEW PLYM.  
[\*33.]

BEFORE Wiltm Bradford, gent, Go<sup>o</sup>, Miles Standish,  
Edward Winslow, Tymothy Hatherley, and  
Tho<sup>m</sup> Prence, Edmond Freeman,  
Wiltm Collyer,  
Assist, &c.

**W**HEREAS compl<sup>nt</sup> is made by Francis Linceford, that Thomas Bray detayneth certaine goods from the said Francis, it is ordered by the Court, that Mr Anthony Thacher, Mr Nicholas Sympkins, and Richard Hore, or any two of them, shall see that the said Bray shall deliuer all the rest of the goods of the said Linceford℥ w<sup>ch</sup> are in his hands, except one white rugg, one bed and boulster, sword, musket, & bandilires, foure iron wedges, one

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hoggshead, one tubb, one kettle, & two iron ringes, w<sup>ch</sup> were made ouer to the said Bray, vpon condiçôn that he should pay iiij<sup>li</sup> to sefall psons, w<sup>ch</sup> the said Linceford was endebted vnto when he went from Yarmouth to go to the West Indies.

Released.

|                                                 |                      |                      |
|-------------------------------------------------|----------------------|----------------------|
| Wiltm Kersley, of Barnestable, plant,           | acknowledgeth to owe | } xx <sup>li</sup> . |
| the Kinge, &c.                                  |                      |                      |
| Henry Rowley, of the same, pl <sup>t</sup> ,    |                      |                      |
| Anthony Annable, of the same, pl <sup>t</sup> , |                      | x <sup>li</sup> .    |
|                                                 |                      | x <sup>li</sup> .    |

The condiçôn, &c, that the said Wiltm Kersley shall psonally appeare at the next Genall Court of or said soũaigne lord the King, to be holden for this goũment, to answee to all such matters as shalbe (on his said ma<sup>ts</sup> behalf) objected against him for vnclane carriages toward℄ men that he hath lyen w<sup>th</sup>all, and abide the further order of the Court, and not deſt the same w<sup>th</sup>out lycence ; that then, &c.

It is ordered by the Court, that there shalbe no wood felled or cutt downe vpon the heads of the lotts of the heires of John Adams at Playne Dealeing, vntill that the towne haue taken order that there shalbe some land layd forth in quaũty as shalbe thought meete to make vp their measure in lengh w<sup>ch</sup> is wanting in breadth.

An attachment of a calf, (in the hand℄ of Roſte Boatefish, of Sandwich,) of the goods of Wiltm Almey, was made this Court to answee the jury vj<sup>s</sup> vj<sup>d</sup>, and iij<sup>s</sup> to the clarke for the charges of a suite he left vnpayd when hee lefte the towne of Sandwich.

[\*34.]

\*Forasmuch as Thomas Bray, of Yarmouth, a single pson, and Anne, the wyfe of Francis Linceford, haue comitted the act of adultery and vnclannesse, and haue diuers tymes layne in one bed together in the absence of her husband, w<sup>ch</sup> hath beene confessed by both p̄tics in the publike Court, the Court doth censure them as followeth : That they be both seuerely whipt immediately at the publik post, & that they shall weare (whilst they remayne in the goũment) two letters, viz<sup>s</sup>, an AD, for Adulterers, dāly, vpon the outhside of their vppermost garment, in a most eminent place thereof ; and if they shalbe found at any tyme in any towne or place w<sup>th</sup>in the gouernment w<sup>th</sup>out them so worne vpon their vppermost garment as aforeſd, that then the constable of the towne or place shall take them, or either of them, omitting so to weare the said two letters, and shall forthw<sup>th</sup> whip them for their negligence, and shall cause them to be imēdiately put on againe, and so worne by them and either of them ; and also that they shalbe both whipt at Yarmouth, publikely, where the offence was comitted, in such fitt season as shalbe thought meete by M<sup>r</sup> Edmond Freeman & such others as are authorized for the keepinge of the Courts in these p̄tes.

A warrant to be directed to Edward Holman, John Whetston, of Scittuate, Willm Lumpkine, and Josuah Barnes, of Yarmouth, to answer at the next Gefnall Court for goods they tooke, w<sup>ch</sup> were found by shipwrecke.

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BRADFORD,  
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That if any man be disposed to take the trade for a yeare, or some yeares, that they bring in their names to the next Court of Assistant℥ in February next, and that the Goſnor, M<sup>r</sup> Winslow, M<sup>r</sup> Collyer, M<sup>r</sup> Prence, M<sup>r</sup> W<sup>m</sup> Thomas, M<sup>r</sup> John Howland, M<sup>r</sup> John Atwood, M<sup>r</sup> John Jenney, & Jonathan Brewster shall treat w<sup>th</sup> them about yt that will then adventure any thing therein, and that those that haue the trade shall take their corne that makes their biskett w<sup>th</sup>in this collony, and that the skins had by the trade shalbe vented for the collonys use.

\*At a townes meeting, held the last day of Decem<sup>br</sup>, in the xvij<sup>th</sup> yeare of his ma<sup>ts</sup> now raigne, of England, &c, before W<sup>m</sup> Bradford, gen<sup>tl</sup>, Goſ, Thomas Prence, gen<sup>tl</sup>, John Atwood, John Jenney, John Howland, and Willm Paddy, co<sup>m</sup>mittees authorized to graunt land℥ to the inhabi<sup>tl</sup>℥ of the towne of Plymouth. 31 December. [\*35.]

Willm Hoskine is graunted vj or viij acres of vpland at the head of James Hurst land, or neare his land, and a garden place by the brooke side, or by his house, to be viewed and layd forth for him by the Goſ, M<sup>r</sup> Prence, and Josuah Pratt.

Steeven Wood and Henry Wood are graunted cich of them a garden place in the neighbourhood at Wellingsly, ag<sup>st</sup> Francis Goulders fence, p<sup>u</sup>ided that it be not p<sup>u</sup>judicious either to the heigh wayes in gefnall, nor any man in p<sup>u</sup>ticuler, & M<sup>r</sup> Paddy to see them layd forth.

Willm Pontus is graunted two acres of vpland to his half acre of medow in the woods beyond his house about Agawem Payth.

‡John Groomes is graunted eight acres of vpland at the Lout Pond, to be layd forth for him by Josuah Pratt, p<sup>u</sup>ided that he relinquish his form<sup>l</sup> graunt at the Smylt Brooke.‡

Vacat.

Richard Sparrow is graunted a p<sup>u</sup>cell of vpland.

Gyles Rickett is graunted a p<sup>u</sup>cell of vpland, about two acres, lying on the south & east side of his feild.

M<sup>r</sup> John Combe is graunted a p<sup>u</sup>por<sup>o</sup>n of land at the head of his ground where he now dwelleth, in considera<sup>o</sup>n of a lott of land he had there form<sup>l</sup>ly graunted w<sup>ch</sup> he hath now yeilded vp.

John Cooke is graunted a p<sup>u</sup>or<sup>o</sup>n of land lying neere Georg<sup>e</sup> Clarkes, if it be there to be had, after M<sup>r</sup> Prence, M<sup>r</sup> Howland, & M<sup>r</sup> Jenney, & Joshua Pratt haue viewed it.

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John Smaley, Anthony Snow, are graunted five acres a peece of meddow in Cole Brooke Meddow.

John Dunhame is graunted a pcell of meddow at Swanholt, and some vpland to yt, at the discretion of those that shalbe appoynted to view yt.

Mr John Holmes is graunted fourty acres of vpland at Narrogansett Hill, lying betwixt the heighway and Derbys pond.

Robte Paddock is graunted foure acres of vpland where hee desired about Kenelmes dingle.

1641-2.

4 January.  
NEW PLYM.

[\*37.]

*\*At a Court of Assistant℥ held the fourth Day of January, in the xvij<sup>th</sup> Yeare of his Ma<sup>ties</sup> now Raigne, of Engl<sup>d</sup>, &c.*

BEFORE Wilm Bradford, gent, Gov, Thomas Prince, &  
Edward Winslow, Wilm Collyer,  
Gent, Assistant℥, &c.

CONCERNING the differenc℥ betwixt Edward Dotey and Thurstone Clarke, it is ordered by the Court, that the said Thurstone Clarke shall pay unto the said Edward Dotey xij bushells & j peck of Indian corne, and xij<sup>s</sup> in money, or iiij bushells of Indian and xj<sup>s</sup> for charges that the said Edward layd forth for the said Thurstone; and this to be payd before the next Court, or els to haue execu<sup>cion</sup>.

Thomas Byrd, servant to Mr James Cudworth, of Barnestable, for ru<sup>n</sup>-inge away from his s<sup>d</sup> master, and breaking a house or two in Barnestable, and takeing some apparell and victualls, is censured to be once whipt at Plym, and once whipt at Barnestable, before the next Court of Assistant℥; and when his s<sup>d</sup> master comes, then order to be taken for payment of his fees; and at the next Court of Assistant℥ following, the said Byrd remayneing in the messengers hand℥, vpon t<sup>res</sup> from Mr Freeman that the said Thomas Byrds father had agreed w<sup>th</sup> the said Mr Cudworth for the tyme he was to serue the said Cudworth, the said Thomas Byrd was released, paying the messenger his fees; and for thother p<sup>t</sup> of his censure, w<sup>ch</sup> should haue beene executed vpon him at Barnestable, in regard of the coldnesse of the p<sup>sent</sup> season, it is to be inflicted vpon him at Scituate, whither he goes to dwell, when it shalbe a conuenient season.

Mr John Jenney is graunted an attachment for the money in Clarkes hand℥, due to Edward Dotey. 31<sup>s</sup> 6<sup>d</sup> condeñ for Mr Jenney.

John Whetston confesseth that he had (of the good℥ taken vp in the bot- 1641-2.  
tome of the bay about Satuckquet) a paire of drawers, a wascoat, & a shirt.

Edward Holman had canvas to make a mayne saile, a pair drawer, a  
wascote, & a shirt.

Mr W<sup>m</sup> Lumkin a paire of breeches and a wascoate.

Joshua Barnes a suite of cloth.

John Diddcutt a cloath coate.

4 January.  
BRADFORD,  
Gov.

For w<sup>ch</sup> he hath  
made satisfac-  
cion at March  
Court, 1641, is  
thereof dis-  
charged.

\*At a townesmeeting held at the Gov<sup>s</sup> house the xxiiij<sup>th</sup> day of Janua<sup>r</sup>, in the [\*39.]  
xvij<sup>th</sup> yeare of his ma<sup>ty</sup> now raigne, of England, &c.

It is ordered and agreed vpon that the inhabi<sup>t</sup> on eich side of the  
towne, viz<sup>t</sup>, the Eccl<sup>e</sup> Riuer & Joanes Riuer, shall for eich side bring six  
muskett, w<sup>th</sup> shott, poud<sup>r</sup>, and the towne of Plym<sup>th</sup> other six euery Lord℥ day,  
to the meeting, w<sup>th</sup> their sword℥ & furniture to euery peece, ready for seruice  
if need require.

|                                |   |                                               |
|--------------------------------|---|-----------------------------------------------|
| Mr John Atwood,                | } | elected com <sup>it</sup> tees for the towne. |
| Mr John Done,                  |   |                                               |
| Mr W <sup>m</sup> Paddy,       |   |                                               |
| John Cooke, Jun <sup>r</sup> , |   |                                               |

The Contributors for building of a Bark of 40 or 50 Tunn, estimated at the  
Charge of 200<sup>li</sup>.

|                                      |             |                                             |                         |
|--------------------------------------|-------------|---------------------------------------------|-------------------------|
| Wil <sup>m</sup> Paddy, . . . j      | eight part. | Mr Wil <sup>m</sup> Bradford, . . . j       | xvj <sup>th</sup> part. |
| Mr Wil <sup>m</sup> Hanbury, . . . j | eight part. | Mr John Jenney, . . . j                     | xvj <sup>th</sup> part. |
| John Barnes, . . . j                 | eight part. | Mr John Atwood, . . . j                     | xvj <sup>th</sup> part. |
|                                      |             | Samuell Hicks, . . . j                      | xvj <sup>th</sup> part. |
|                                      |             | Geor <sup>g</sup> Bower, . . . j            | xvj <sup>th</sup> part. |
|                                      |             | John Cook & his fath <sup>r</sup> , . . . j | xvj <sup>th</sup> part. |
|                                      |             | Samuell Jenney, . . . j                     | xvj <sup>th</sup> part. |
|                                      |             | Thomas Willet, . . . j                      | xvj <sup>th</sup> part. |
|                                      |             | Mr Hopkins, . . . j                         | xvj <sup>th</sup> part. |
|                                      |             | Edward Bangs, . . . j                       | xvj <sup>th</sup> part. |

Appoynted to vndertake the pcureing her to be built, are Mr Tho<sup>m</sup>  
Prence, Mr W<sup>m</sup> Paddy, Mr Tho<sup>m</sup> Willett, & John Barnes.

It is agreed vpon that Mr Wil<sup>m</sup> Paddy shall haue liberty to set vp a  
stage for makeing fish at Sagaquash, and shall haue the use of the vpland

1641-2.

4 January.  
BRADFORD,  
Goũ.

there so long as he, or any for him, shall mayntaine the said stage there, puided they keepe no swyne there nor at Clarkℓ Iland; but vpon notice of harne donn by them, they shalbe taken away.

Mr John Jenney & Mr Wilkm Paddy are to be added to those that are to dispose of the poores stock, (formly nominated) instead of Mr Hopkins, and to haue liberty to alter or chaunge them or some of them for such cattell as may be most usefull for the help of the poore.

That the Assistantℓ within the towne, and the comittees, shall graunt landℓ this yeare.

Mr Wilkm Paddy, Mr Atwood, Nathan<sup>l</sup> Sowther, Mr John Jenney, John Dunham, thelder, Thomas Willett, John Barnes, & Josuah Pratt shall view the landℓ on both sides the towne, that convenyent heighwayes & passages for cattell into the woods being reserued & set forth, such landℓ as shall remayne, & may be spared, may be graunted to such as stand in need.

1 February.  
NEW PLYM.  
[\*41.]

*\*At a Court of Assistantℓ held the first Day of February, in the xvij<sup>th</sup> Yeare of his Ma<sup>ty</sup> now Raigne, of England, &c.*

BEFORE W<sup>m</sup> Bradford, gent, Goũ,      Wilkm Collyer, &  
Edward Winslow,                      Miles Standish,  
Tho<sup>m</sup> Prince,  
Gen<sup>t</sup>, Assistantℓ, &c.

CONCERNING y<sup>e</sup> deffences betwixt Mr John Jenney & Edward Dotey, the accountℓ were, —

|                    | li | s  | d  |               | li | s  | d  |
|--------------------|----|----|----|---------------|----|----|----|
| Mr Jenney demanded | 03 | 10 | 00 | Ed Dotey payd | 01 | 02 | 06 |
|                    |    |    |    |               | 00 | 04 | 00 |
|                    |    |    |    |               | 00 | 02 | 00 |
|                    |    |    |    |               | 00 | 10 | 00 |
|                    |    |    |    |               | 01 | 18 | 06 |

The Court ordered, that vpon attachment of the moneyes in Thurstons Clarkes handℓ, Mr John Jenney re<sup>c</sup> them; he should pay the said Edward Dotey fve bushells & a half of Indian mchantable corne, & iij<sup>d</sup> for so much remayned due to the s<sup>d</sup> Dotey vpon the account.

The Court ordereth, that Georg̃ Clarke shall pay foure bushells of Indian corne vnto Edward Dotey, vpon the differencē now depending betwixt them.

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1 February.  
BRADFORD,  
Go<sup>vt</sup>.

Whereas Edward Dotey hath two coves and a yeong steere of Thomas Symons to keepe for tyme, and that by reason the said Edward Dotey doth not put his cattell to a keep in the sūmer tyme, & that they use to break into mens corne, and may thereby be endangered either to be spoyld w<sup>th</sup> corne, or come to some other harme, whereby the said Symons may be endamnaged, the Court doth order, that the said Edward Dotey shall take order that his cattell be safely kept by a keep, or el̃s, if any damage befall the said Thomas Symons by default thereof, that the said Edward Dotey shall make good the same to the said Thomas Symons.

*\*At the Gen<sup>all</sup> Court of o<sup>r</sup> Sou<sup>raigne</sup> Lord the King, holden at Plym<sup>th</sup> afores<sup>d</sup>, the first Day of March, in the xvij<sup>th</sup> Yeare of the now Raigne of o<sup>r</sup> said Sou<sup>raigne</sup> Lord, Charles, by the Grace of God King of England, Scotland, France, & Ireland, Defendor of the Fayth, &c.*

1 March.  
NEW PLYM.  
[\*43.]

|                                                                          |                        |
|--------------------------------------------------------------------------|------------------------|
| BEFORE Wil <sup>m</sup> Bradford, gent <sup>l</sup> , Go <sup>vt</sup> , | Miles Standish,        |
| Edward Winslow,                                                          | Tymothy Hatherley, and |
| Thomas Prence,                                                           | Edmond Freeman,        |
| Wil <sup>m</sup> Collyer,                                                |                        |
| Gent <sup>l</sup> , and Assistant <sup>l</sup> , &c.                     |                        |

SAMUELL HICKS, John Dunham, Jun<sup>r</sup>, Edmond Tilson, John Smaley, & John Rogers admitted freemen and sworne.

Mr Wil<sup>m</sup> Bradford elected Go<sup>vt</sup>nor.

|                              |                                    |
|------------------------------|------------------------------------|
| Mr Edward Winslow,           | } elected Assistant <sup>l</sup> . |
| Mr Tho <sup>m</sup> Prence,  |                                    |
| Mr Wil <sup>m</sup> Collyer, |                                    |
| Mr Tymothy Hatherley,        |                                    |
| Mr W <sup>m</sup> Thomas,    |                                    |
| Mr Edmond Freeman,           |                                    |
| Mr John Browne,              |                                    |



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|                                              |                           |
|----------------------------------------------|---------------------------|
| Emanuell White, of Yarmouth,                 | } ppounded to be freemen. |
| M <sup>r</sup> Thomas Allen, of Barnestable, |                           |
| James Hamlen, of the same,                   |                           |
| Arthur Howland, of Marshfeild,               |                           |

## Constables &amp; Surveyors of the Heigh Wayes.

|                    |   |                                                  |                     |
|--------------------|---|--------------------------------------------------|---------------------|
| Plymouth, . . .    | { | Giles Rickett, constable & survey <sup>r</sup> , | } for Joanes Riuer, |
|                    |   | M <sup>r</sup> W <sup>m</sup> Hanbury,           |                     |
|                    |   | Francis Cooke,                                   |                     |
|                    |   | James Cole & the constable for the towne,        |                     |
|                    | { | & Thomas Clark, for the Eele Riuer.              |                     |
| Duxborrow, . . .   |   | Edmond Hawes.                                    |                     |
| Scituate, . . .    |   | Josias Checkett.                                 |                     |
| Sandwich, . . .    |   | Michaell Turner.                                 |                     |
| Taunton, . . .     |   | W <sup>m</sup> Parker.                           |                     |
| Barnestable, . . . |   | Thomas Lathrope.                                 |                     |
| Yarmouth, . . .    | { | Emanuel White,                                   | } surveyors.        |
|                    |   | W <sup>m</sup> Parker,                           |                     |
|                    |   | Gabriell Wheilden,                               |                     |
| Marshfeild, . . .  |   | Francis West.                                    |                     |

M<sup>r</sup> John Atwood elected Treasurer for this ensuing yeare.

That the clark shall haue xx<sup>li</sup> p añ, as forml<sup>y</sup> payd by the Treasurer, &c.

[\*44.]

## \*Grand Jurymen.

|                           |   |                                               |   |
|---------------------------|---|-----------------------------------------------|---|
| Plym <sup>ñ</sup> , . . . | { | John Winslow,                                 | } |
|                           |   | John Dunham, Señ,                             |   |
|                           |   | Edward Banges, &                              |   |
|                           |   | Richard Church.                               |   |
| Duxborrow, . . .          |   | M <sup>r</sup> Thomas Besbeeche, John Willis. |   |
| Scituate, . . .           |   | Thomas Raulins, Tho <sup>m</sup> Ensigne.     |   |
| Sandwich,                 |   | ^                                             |   |
| Taunton,                  |   | ^                                             |   |
| Barnestable, . . .        |   | Henry Bourne, Henry Euell.                    |   |
| Yarmouth, . . .           |   | James Mathews.                                |   |
| Marshfeild, . . .         |   | †Kenelme Winslow, ‡ Francis West.             |   |

Concerning the differenc<sup>l</sup> betwixt the townes of Duxborrow & Marshfeild, about the bound<sup>l</sup> of Marshfeild, the co<sup>m</sup>ittees of Duxborrow are to acquaint their townesmen w<sup>th</sup> yt, and that Duxborrow elect some man or men

to conferr w<sup>th</sup> Marshfeild men about their boundℓ, that so they may know the boundℓ of their towne of Marshfeild. 1641-2.

All differencℓ betwixt M<sup>r</sup> Nicholas Symkins & Walter Devile are by mutuall consent and order of the Court referred to be decided and ended by M<sup>r</sup> Edward Dillingham & M<sup>r</sup> Thomas Dimmack ; and if they cannot end them, then they two to choose a third man vnto them, and so to make an end ; but if any losses fall vpon the said Symkins goods in other mens handℓ, to make report thereof to the Court. And if any need be of witness<sup>s</sup>, to proue any thing on either p<sup>t</sup>, they may be sworne before M<sup>r</sup> Freeman, that a finall end may be made betwixt them.

1 March.  
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Gov.

Edward Holmans demaundℓ for his paynes about a chest of goods found at Mannamoyit, —

|                                                 | li    | s  | d  |
|-------------------------------------------------|-------|----|----|
| For fetching the chest to Yarmouth, . . . .     | 00    | 05 | 00 |
| For charges of an Indian at boatside, . . . .   | 00    | 06 | 00 |
| For fetching the chest after to Barnes, . . . . | 00    | 05 | 00 |
| For a hatchet giuen to the Indn, . . . .        | 00    | 01 | 06 |
| For drying the goods at the boateside, . . . .  | 00    | 12 | 00 |
| For bringing the chest to Plym, . . . .         | 00    | 08 | 00 |
|                                                 | <hr/> |    |    |
|                                                 | 01    | 17 | 06 |

besides xvj<sup>s</sup> allowed M<sup>r</sup> Lumpkins for washing & drying of the goods, w<sup>ch</sup> was payd out of the goods.

M<sup>r</sup> William Paddy and Thomas Willet are appoynted by the Court to value these goods, and to exhibite an inventory of them to the Court. And the Court doth allow the said Edward Holman xx<sup>s</sup> for his paynes and demaundℓ about them.

Memorand: that the said Edward Holman did account w<sup>th</sup> the Gourn<sup>r</sup> and Assistantℓ for the said goods, according to an inventory thereof exhibited, and is thereof discharged according to the said inventory.

\*Lydia Hatch, for suffering Edward Michell to attempt to abuse her body by vncleanesse, & did not discouer it, & lying in the same bed w<sup>th</sup> her brother Jonathan, is censured to be publickly whipt ; was accordingly donn. [\*45.]

Edward Michell, for his lude & sodomiticall practices tending to sodomye w<sup>th</sup> Edward Preston, and other lude carryages w<sup>th</sup> Lydia Hatch, is censured to be p<sup>s</sup>ently whipt at Plymouth, at the publike place, and once more at Barnestable, in conveyent tyme, in the p<sup>s</sup>ence of M<sup>r</sup> Freeman and the com<sup>i</sup>ttees of the said towne.

Edward Preston, for his lude practises tending to sodomye w<sup>th</sup> Edward Michell, and pressing John Keene therevnto, (if he would haue yeilded,) is

1641-2. also censured to be forthw<sup>th</sup> whipt at Plym, and once more at Barnestable, (when Edward Michell is whipt,) in the p<sup>s</sup>ence of Mr Freeman & the com-  
 ittees of the same towne.

1 March.  
 BRADFORD,  
 Gov.

John Keene, because he resisted the tempta<sup>co</sup>n, & vsed meanes to discover it, is appoynted to stand by whilst Michell and Preston are whipt, though in some thing he was faulty.

Jonathan Hatch was taken as a vagrant, & for his misdemeanors was censured to be whipt, & sent from constable to constable to Leiftennant Dauenport at Salem.

Forasmuch as the inhabit<sup>s</sup> of Barnestable complayne that they are streitned betwixt two planta<sup>co</sup>ns, and desire enlargement into the depth of the land southerly, they are graunted to view the same and make report thereof at the next Court, that they may haue the lands w<sup>ch</sup> they desire, when they are again viewed by speciall appoyntment; p<sup>ro</sup>vided they be not p<sup>ro</sup>judiciall to thother two planta<sup>co</sup>ns, or fitt to be a planta<sup>co</sup>n itself.

Mr Thomas Star, of Yarmouth, Heugh Tilley, of the same, Joshua Barnes, of the same, W<sup>m</sup> Nicholson, of the same, are complayned of to be scoffers & jeerers at religion, &c, and making disorders in their towne meetings, &c; are to be sent for to answeere the next Court, &c.

Tristram Hull, of Yarmouth, for vnclean practises.

17 March.  
 [\*46.]

\*The xvij<sup>th</sup> day of March, 1641, Alexander Williams, servant to Mr Wilkm Thomas, of Marshfeild, was exānd for ruīng away from his said m<sup>r</sup> foure sefall tymes, and long absenting himself from his service; could not say any thing for himself wherefore he should not be punished; was therefore censured to be whipt at the publike place, w<sup>ch</sup> was accordingly donn.

1 March.  
 Committed to  
 prison &  
 clothed, & 5 to  
 Capt. Standish.  
 Tyme giuen to  
 do yt within vi  
 weeks vpon  
 penalty of 5<sup>th</sup>.  
 Discharged.  
 Discharged.

Presentment<sup>℥</sup>, March 1<sup>st</sup>, 1641, by the Grand Jury.

Wee p<sup>re</sup>snt Webb Adey for his licentious and disorderly manner of liueing.

Wee p<sup>re</sup>snt the towne of Duxborrow for not haneing a pound or penn for cattell.

Wee p<sup>re</sup>snt the towne of Plymouth for the same default.

Wee p<sup>re</sup>snt Mr Edmond Freeman, of Sandwich, for lending a gun to an Indian.

Wee p<sup>re</sup>snt John Wing, of Sandwich for lending a gun to an Indian.

Remitted the  
 same Court.

Wee p<sup>re</sup>snt Nicholas Symkins, of Yarmouth, for lending a pistoll to an Indian.

Wee p<sup>re</sup>snt Thomas Tupper, of Sandwich, for misdemeanor in lācivious & vncleane carriages towards Linceford<sup>℥</sup> wyfe, late of Yarmouth.

We p̄sent Linceford℥ wyfe for the same miscarriage.

We p̄sent Mr Gray, of Yarmouth, for sweareing. Com̄itted to prison.

We p̄sent John Caseley, of Barnestable, & Alis, his wyfe, for fornicac̄on, in vnlawfull companying before their marriage. John to be whipt, & Alis to be set in the stocks.

A quere. The plantaçon of Puidence haucing in it many honest & peacable people, w<sup>ch</sup> groane vnder the want of goũment and the ryotts and disorders falling out therevpon, the place being reputed w<sup>th</sup>in the goũment of Plym̄, least worse thinges may fall out to the further and greater trouble of the colony, or honest people there, being ouerpressed by vyolent and turbulent p̄sons should submitt or subject the place to another goũment, we desire that a seasonable consideraçon may be had thereof, for p̄vention of future mischeefs, if the place be w<sup>th</sup>in this gouernment, as it is geũally reputed.

1641-2.

1 March.  
BRADFORD,  
Goũ.

Man to be  
whipt, the  
weoman stocks  
during the  
whiping.

*\*At a Court of Assistant℥ held the fift of April, in the xxvij<sup>th</sup> Yeare of the now Raigne of our Soueraigne Lord, Charles, King of England, &c.*

1642.

5 April.  
[\*47.]

BEFORE Willm Bradford, gent̄, Goũ,  
Edward Winslow,  
Thomas Prence,

Willm Collyer,  
Cap̄ Miles Standish,

Assistant, &c.

**M**<sup>RIS</sup> ELIZABETH KEMP exhibited, vpon her oath, an inventory of all her husbands good℥, debt℥, and cattell℥, this Court.

The Court, vpon heareing the differrenç betwixt Thomas Clarke & Mathew Fuller about a share, ordereth that the said Fuller shall deliũ the said Clarke the said share, because it appeareth by seũall testimonies that it is Clarks share; and the said Fuller to haue a war̄nt to require Phillip Dellanoy to testyfy that he deliũed the said Fullers share, sent by him to Goodman Hill in the Bay, that the said Fuller may recover the said share of him.

It is ordered, that Mr Jenney shall allow Raph Goarome ten bushells of Indian corne, at ij<sup>s</sup> & vj<sup>d</sup>, and the rest at iij<sup>s</sup>, & rye for xx<sup>s</sup>, for Tristram Clark, & that Tristrame is discharged for the two pigges.

Whereas Raph Goarume demaund℥ of Mr John Comb a debt of three pound℥ foure shillings and six pence, w<sup>ch</sup> the said Combe acknowledgeth due, the said Gorame is content to deliuer foure or fve bushells of wheate to the

1642.

5 April.  
BRADFORD,  
Goũ.

said M<sup>r</sup> Combe, to sowe his ground w<sup>th</sup>all this spring, so that hee may haue his said debt of 3<sup>li</sup> 4<sup>s</sup> 6<sup>d</sup> payd him out of the crops, & so much wheat then againe also as now he lendℓ. And the Court doth order, by both their consentℓ, that the said crop shall remayne securitie to the said Gorame for his said debt vntill it be payd, w<sup>th</sup> the wheat he now lends, and the rest or ouer-pluℓ to be the said M<sup>r</sup> Combs.

Memorand : that M<sup>r</sup> John Combe, for & in consideraçõn of the sum of xij<sup>li</sup>, and fourty shillings more in corné, payd him by M<sup>r</sup> W<sup>m</sup> Thomas, hath, w<sup>th</sup> and by the consent of Wil<sup>m</sup> Launder, assigned & set ouer all the residue of his terme of yeares w<sup>ch</sup> he is to serue the said M<sup>r</sup> Comb to be serued forth w<sup>th</sup> the said M<sup>r</sup> Wil<sup>m</sup> Thomas ; and that the said M<sup>r</sup> Thomas shall pay the said Launder six poundℓ of the tenn mençõned in his indenture, at thênd of his terme, in good cloaths, corne, or goates, according to his said indenture.

Jonathan Hatch, by the consent of the Court, is appoynted to dwell w<sup>th</sup> M<sup>r</sup> Steephen Hopkins, & the said M<sup>r</sup> Hopkins to haue a speciall care of him.

18 April.

[\*48.]

\*Memorand, the xvij<sup>th</sup> day of Aprill, 1642: that Francis Billington and Christian, his wyfe, haue put Elizabeth, their daughter, apprentis to John Barnes and Mary, his wyfe, to dwell w<sup>th</sup> them and to do their service vntill shee shall accomplish the age of twenty yeares, (shee being now seaven yeares of age the x<sup>th</sup> of July next,) the said John Barnes & Mary, his wyfe, finding her meate, drink, & cloathes during the said terme.

Relesed.

John Stockbridg de Scituate, wheelwrt, . . . . . xx<sup>li</sup>.

W<sup>m</sup> Holmes, . . . . . x<sup>li</sup>.

ꝑ bona portu & comprehend, &c.

3 May.  
NEW PLYM.  
[\*49.]

\**At a Court of Assistantℓ held at Ply<sup>m</sup> afores<sup>d</sup>, the third of May, in the xvij<sup>th</sup> Yeare of his Ma<sup>ties</sup> now Raigne, of England, &c.*

BEFORE Wil<sup>m</sup> Bradford, gent, Goũ,

Thomas Prence,

Edward Winslow,

Wil<sup>m</sup> Collyer,

Miles Standish, &

Edmond Freeman,

Gen<sup>t</sup>, Assistantℓ, &c.

CONCERNING the differenc<sup>s</sup> betwixt M<sup>r</sup> John Jenney, Samuell Sterte-  
vaunt, & Joseph Ramsden, about their corne in p<sup>t</sup>ishipp, the Court doth  
order, w<sup>th</sup> consent of all p<sup>t</sup>ies, that the fve bushells and halfe of corne, w<sup>ch</sup>  
M<sup>r</sup> Jenney should pay to the said Dotey for Thurston Clark, and also eight

bushell w<sup>ch</sup> the said Joseph Ramsden should pay the said Edward Dotey, shalbe payd to the said John Jenney, by the said Joseph, w<sup>ch</sup> said fiue bushells & half and the said viij bushells do make vp the thirteene bushells & half w<sup>ch</sup> Edward Dotey was to pay the said Samuell for his p<sup>t</sup> of the said cropp, and so the said Edward Dotey to be freed from any further incumbrance therein.

1642.

3 May.  
BRADFORD,  
Go<sup>v</sup>.

Mr Wilm Collyer, Captaine Standish, & Jonathan Brewster are ordered by the Court to set the auncient bound<sup>l</sup> right betwixt the lands of Mr Thomas Beesbeach and John Washbourne, and to require the help and knowledg<sup>e</sup> of any that can giue them informa<sup>ti</sup>on about the same.

In the suite co<sup>m</sup>enced ag<sup>st</sup> James Luxford for 5<sup>li</sup> debt & 11<sup>s</sup> 6<sup>d</sup> charges, —

|                                                              | li    | s  | d  |
|--------------------------------------------------------------|-------|----|----|
| Mr Pren <sup>č</sup> hath had of Luxford in swyne, . . . . . | 03    | 00 | 00 |
| of Mr Wilm Hanbury, for Luxford, . . . . .                   | 00    | 19 | 04 |
| of John Chaundlers debt, . . . . .                           | 01    | 12 | 02 |
|                                                              | <hr/> |    |    |
|                                                              | 05    | 11 | 06 |
|                                                              | <hr/> |    |    |

There remaynes due to Luxford more by John Chaundler 16<sup>s</sup> 11<sup>d</sup>, w<sup>ch</sup> Edward Dotey is to haue.

The said Mr Prence & Edward Dotey are to receiue the šd sums of John Chaundlor, vpon condi<sup>ti</sup>on that if John Chaundlor can proue there is errour in this account betwixt him & Luxford, then the said Mr Pren<sup>č</sup> & the said Dotey to repay so much againe to the said Chaundlor as shall manefestly appeare to be vnduly or vnjustly accounted.

---

*\*At the Gen<sup>l</sup>all Court of o<sup>r</sup> Sou<sup>er</sup>aigne Lord, Charles, by the Grace of God King of England, Scotland, France, & Ireland, Defendor of the Fayth, &c., held at Plym<sup>th</sup>, the vij<sup>th</sup> of June, in the xxvij<sup>th</sup> Yeare of his said Ma<sup>ty</sup>s now Raigne, of England, &c.*

7 June.  
NEW PLYM.  
[\*51.]

|                                                                      |                   |
|----------------------------------------------------------------------|-------------------|
| BEFORE W <sup>m</sup> Bradford, gen <sup>l</sup> , Go <sup>v</sup> , | Tymothy Hatherly, |
| Edward Winslow,                                                      | John Browne,      |
| Tho <sup>m</sup> Prence,                                             | Wilm Thomas, &    |
| Wilm Collyer,                                                        | Edmond Freeman,   |
| Gen <sup>l</sup> , Assistant <sup>l</sup> , &c.                      |                   |

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**M**<sup>R</sup> WILLIAM BRADFORD sworn Gofl for this ensuing yeare.  
 Mr Edward Winslow,  
 Mr Thomas Prence,  
 Mr Wilkm Collyer,  
 Mr Tymothy Hatherley,  
 Mr John Browne,  
 Mr W<sup>m</sup> Thomas,  
 Mr Edmond Freeman, } sworn Assistant℥ for this ensuing yeare.

## The Com̄ittees of the seſſall Townes.

Plymouth, . . . { Mr John Atwood, Mr John Done,  
 Mr W<sup>m</sup> Paddy, John Cooke.  
 Duxborrow, . . . { Mr John Alden,  
 Jonathan Brewster.  
 Scituate, . . . { Edmond Eddenden, } Humfrey Turner.  
 Georg̃ Kennerick. }  
 Sandwich, . . . { Richard Bourne, } Thoñ Burges,  
 Wilkm Newland, } Georg̃ Allen.  
 Taunton, . . . { John Strong,  
 John Parker.  
 Barnestable, . . . { Mr James Cudworth, Mr Thoñ Dimmack,  
 Anthony Annable.  
 Yarmouth, . . . { Mr John Crowe,  
 Richard Hore.  
 Marshfeild, . . . { Mr Thoñ Bourne,  
 Kenelme Winslowe.

Mr John Feake, of Sandwich, & Emanuel White, of Yarmouth, admitted freemen this Court, & sworn.

[\*52.]

## \*Constables.

## Surveyors.

Plymouth, Giles Rickett, sworn. . { Mr W<sup>m</sup> Hanbury,  
 Franc℥ Cooke,  
 James Cole, &  
 Thomas Clarke.  
 Duxborrow, Edmond Hawes, sworn.  
 Scittuate, Josias Checkett, sworn.  
 Sandwich, Michael Turner, sworn.  
 Taunton, Wilkm Parker.  
 Barnestable, Thomas Lathrope, sworn.

Surveyors.

Yarmouth, Emanuel White, sworn. { W<sup>m</sup> Palm, &  
 Marshfield, Francis West, sworn. { Gabriell Wheilden.

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## The Grand Inquest.

|                             |           |                                  |
|-----------------------------|-----------|----------------------------------|
| John Dunhame, Señ,          | } sworne. | John Winge,                      |
| John Winslowe,              |           | Walter Deane,                    |
| Richard Church,             |           | Henry Ewell,                     |
| John Willis,                |           | James Mathews,                   |
| Richard Sparrow,            |           | Josias Winslowe,                 |
| Thomas Rawline,             |           | Samuells Nash,                   |
| Thomas Ensigne,             |           | M <sup>r</sup> Anthony Thacher,  |
| Edward Case,                |           | Henry Bourne,                    |
| Humfrey Turner,             |           | Steuens Tracy,                   |
| M <sup>r</sup> Henry Feake, |           | X <sup>p</sup> ofer Waddesworth. |

|                                                          |                      |           |
|----------------------------------------------------------|----------------------|-----------|
| Thomas Starr, of Yarmouth, chirurgẽ, acknowledgth to owe | } xl <sup>li</sup> . | Released. |
| y <sup>e</sup> King, . . . . .                           |                      |           |
| Heugh Tilly, of the same, planter, . . . . .             |                      |           |

The condiçion, that the said Thomas Starr shalbe appeare at the next Geñall Court of our soſaigne lord the Kinge, to be held at Plym, and answere to all such matters as on his said Ma<sup>ty</sup> behalf shalbe objected ag<sup>st</sup> him, & in the meane season be of the good behaui toward℥ or soſaigne lord the King and all his leigh people, and not deſt the Court w<sup>th</sup>out lycence, and forbear comeing to the townes meetings during the pleasure of the Court, that then, &c.

Willm Nicholson, of Yarmouth, plant<sup>r</sup>, oweth the King, &c, xlii. Released.

Robte Dennis, of the same, carpenter, . . . . . xlii.

The same condiçõn as aboue, &c, p bona port̃.

Josuah Barnes, of Yarmouth, plant<sup>t</sup>, oweth the King, . . . xlii. Released.

Mr Thomas Howes, of the same, planter, &c, . . . . . xlii.

The same condiçõn as abouſd, &c, p bona port.

\*It is ordered by the Court, that there be conveyent gates made vpon all heigh wayes passable for cart & horse in all such places where they are needfull; and that Georg Pollerd shall make two competent gates vpon Robte Mendames land, and pay himself out of the rents for the said two gates. [\*53.]

It is ordered, that the towne of Duxborrow shall giue John Rowe satisfaccōn by land or otherwise for the water ouerflowing his house and ground.



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It is ordered, that M<sup>r</sup> Tymothy Hatherly shall haue power to administer a constables oath to Henry Merriott, of Scittuate, to serue the office of a constable w<sup>th</sup>in that ward of Scittuate; but this to be no p<sup>s</sup>ident for any other in like kynd.

Duxborrow hath six weeks to make a pound in, or el<sup>s</sup> to pay 5<sup>li</sup>.

M<sup>r</sup> Gray committed to prison for sweareing.

M<sup>r</sup> Hatherley, M<sup>r</sup> Freeman, and Captaine Standish are requested to view the land<sup>ℓ</sup> w<sup>ch</sup> Barnestable men desire, & to sett it forth for them, so that they doe not entrench vpon either planta<sup>co</sup>ns, or be a place fitt to be a planta<sup>co</sup>n of itself, and to see that there be a conveyent farme & meddowing to it reserued for publike vse.

5<sup>s</sup>.

M<sup>r</sup> Thomas Beesbeach, for de<sup>s</sup>ting the Court w<sup>th</sup>out lycence, being warned to serue on the grand inquest, is fined v<sup>s</sup>.

40<sup>s</sup> paid to  
M<sup>r</sup> Holmes.

Joseph Halloway, for breakeing the Kings peace, in strikeing Peter Handbury, for w<sup>ch</sup> he is indicted, is fyned xl<sup>s</sup>.

Web Adey committed to prison vpon the p<sup>s</sup>entment against him.

John Casley, of Barnestable, & Alis, his wyfe, for fornicac<sup>o</sup>n before marriage, is censured, the said John to be whipt, and Alis, his wyfe, to sit in the stocks whilst her husband is in whipping; w<sup>ch</sup> was accordingly executed.

[\*54.]

\*The p<sup>o</sup>sic<sup>o</sup>n of the Inhabitant<sup>ℓ</sup> of Marshfeild about their Bounds.

That the bounds of Marshfeild, from Greens Harbour Fresh, be from thence to the trey called Pooles, p<sup>u</sup>ided it come not vpon any part of M<sup>r</sup> Thomas p<sup>t</sup>iculer lands, and from Pooles by a line to the water side, takeing onely the lands of John Rowse. That the westerly bounds of Marshfeild, formly set by Captaine Standish, M<sup>r</sup> Alden, Jonathan Brewster, Wil<sup>m</sup> Bassett, & M<sup>r</sup> Edward Winslow, shalbe from a great rock flatt on the topp, norwest to the south riu<sup>e</sup>r, & from thence to the leiftennant<sup>ℓ</sup> ground by a straight line, provided that M<sup>r</sup> Starr, Job Cole, Daniell Cole, Wil<sup>m</sup> Bassett, John Mynard, &c, shall not by Marshfeild men be rated or assessed to any publike charges vntill they or any of them there come to inhabite and do close w<sup>th</sup> Marshfeild men.

This being the desire & p<sup>o</sup>sic<sup>o</sup>n of Marshfeild men, the Court doth order that M<sup>r</sup> Thomas Prence, M<sup>r</sup> Brewster, M<sup>r</sup> Paddy, and John Cooke to treat<sup>e</sup> w<sup>th</sup> Duxborrow men about their desire & p<sup>o</sup>sic<sup>o</sup>n, and to sett their bounds betwixt them; and what they shall doe therein all parties to rest fully satisfied therew<sup>th</sup>.

The towne of Yarmouth p<sup>s</sup>ented for want of a pound.

M<sup>r</sup> Thomas Burne had judgment ag<sup>st</sup> John Chaundler for seauen shillings and six pence.

*\*At a Court of Assistant℥, held the second Day of August, in the 1642.  
xviij<sup>th</sup> Yeare of his said Ma<sup>ty</sup> now Raigne, of England, &c.*

BEFORE Wilm Bradford, gen<sup>l</sup>, Go<sup>v</sup>,                      John Browne,  
Thomas Prence,                                              Wilm Thomas, &  
Wilm Collyer,                                              Edmond Freeman,  
Tymothy Hatherley,  
Gen<sup>l</sup>, Assistant℥, &c.

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[\*55.]

THERE was a request made by some, to sit down at Sickuncke, of Hinghame. Their names are these : John Porter, Thomas Lorine, Steeph Payne, Nicholas Baker.

It is ordered, that war<sup>nt</sup> be sent to fetch John Hasell, that liues at Sickuncke, to answere his contempt℥ at the Genall Court; w<sup>ch</sup> was made & signed by all the Assistant℥ p<sup>se</sup>nt.

Ephraim Tinckhame is to haue xxv acres of land℥, due for his service by indenture. Affirmed by M<sup>r</sup> Hatherley & John Winslowe, the indenture being lost.

Execu<sup>cion</sup> graunted John Joyce ag<sup>st</sup> Walter Deuell.

The differenc℥ betwixt Rob<sup>te</sup> Caruer & Wilm Hiller, about the payment of the corne, the Court doth order that the corne shalbe valued by two men chosen by either p<sup>ty</sup>; & if they cannot agree, then they two to choose a third man to apprise yt as corne will then passe when it is payable.

A warrant graunted ag<sup>st</sup> Walter Deuell, at Captaine Standish suite, to giue him securitie to pforme his worke he is payd for already.

Francis Sprague, of Duxborrow, inholder, doth acknowledg } c<sup>li</sup>.  
to owe the Kinge, &c, . . . . .

Respited to the  
next Court.

Jonathan Brewster, of the same, plant, . . . . . l<sup>i</sup>.

Respited to the  
next Court.

The condi<sup>cion</sup>, that if the said Francis Sprague do psonally appeare at the next Genall Court of our so<sup>l</sup>aigne lord the King, to answere to all such matters as shalbe objected against him for selling a fouleing peece to an Indian, and abide the further order of the Court, and not de<sup>p</sup>te the same w<sup>th</sup>out lycence; that then, &c.

Released  
June 3<sup>d</sup>, 1647.

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Gov.

[\*61.]

*\*At a Gen<sup>r</sup>all Court of o<sup>r</sup> Sou<sup>r</sup>aigne Lord, Charles, by the Grace of God of England, Scotland, France, and Ireland King, Defend<sup>r</sup> of the Fayth, &c, held at Ply<sup>m</sup> afores<sup>d</sup>, the vij<sup>th</sup> Septemb<sup>r</sup>, in the xviij<sup>th</sup> Yeare of his said Ma<sup>ty</sup> now Raigne.*

|                                   |                   |
|-----------------------------------|-------------------|
| BEFORE Wiltm Bradford, gent, Gov, | John Browne,      |
| Thom Prence,                      | Edmond Freeman, & |
| Wiltm Collyer,                    | Wiltm Thomas,     |
| Tymothy Hatherly,                 |                   |
| Gent, Assistant℥, &c.             |                   |

THE differenc℥ betwixt M<sup>r</sup> Wiltm Hanbury and Abraham Perse, about the lugging and killing M<sup>r</sup> Hanburies swine, are by mutuall consent fferred to be ordered and ended betwixt them, and all things concerning the same, by M<sup>r</sup> Wiltm Paddy and John Howland for the sd M<sup>r</sup> Hanbury, and Stephen Tracy and John Cooke the yeong<sup>r</sup> for the sd Pearse; and if they cannot agree, then the foure to choose a fift man, and so to end the same.

In the contro<sup>r</sup>sie betwixt Samuell Hinckley and M<sup>r</sup> Joseph Hull, about the land℥ the said Hinckley bought of the said Hull in Barnestable, it is ordered, by the consent of both pties and by the towne of Barnestable, being referred to the bench, that the said M<sup>r</sup> Hull, according to his owne pffer, shall abate fourty shillings of that the said Samuell Hinckley should haue payd him for the said land, and that the towne of Barnestable shall returne thone halfe of the land℥ they tooke away from the said Samuell Hinckley to him againe, and so a fynall end to be of all suit℥ & contro<sup>r</sup>sies about the same.

Thomas Graunger, late servant to Loue Brewster, of Duxborrow, was this Court indicted for buggery w<sup>th</sup> a mare, a cove, two goat℥, diuers sheepe, two calues, and a turkey, and was found guilty, and receiued sentence of death by hanging vntill he was dead.

|                                                             |                      |
|-------------------------------------------------------------|----------------------|
| John Hasell, of Seacuncke, acknowledgeth himself to owe the | } xl <sup>li</sup> . |
| King . . . . .                                              |                      |
| Kenelme Winslowe, of Marshfeild, plant,                     | xx <sup>li</sup> .   |
| Edward Dotey, of Ply <sup>m</sup> , plant,                  | xx <sup>li</sup> .   |

Released.

The condi<sup>r</sup>on, that if the said John Hasell shall psonally appeare at the next Court of o<sup>r</sup> so<sup>r</sup>aigne lord the King, to be holden at Ply<sup>m</sup> in Nouember next, and answe<sup>r</sup>e to all such matters as in his said ma<sup>ty</sup> name shalbe objected against him, and abide the further order of the Court, and not de<sup>r</sup>pt the same w<sup>th</sup>out lycence; that then, &c.

John Stockbridg, of Scittuate, whelewright, for his contemptuous speeches against the goũment, proued by oath against him, is fyned v<sup>li</sup>. Remitted the sum of xl<sup>s</sup>.

\*Elisha Beesbeach, of Scittuate, planter, acknowledgeth to }  
the King, &c, . . . . . } xx<sup>li</sup>.

The condiçõn, &c, that if the said Elisha Beesbeach do psonally appeare at the next Court of o<sup>r</sup> soũaigne lord the King, to be held at Plym the first Tewsdays in Nouember next, to answere to all such matters as on his said mat<sup>ies</sup> behalf shalbe objected against him concerning a libell made ag<sup>st</sup> Mr Charles Chauncey, and abide the further order of the Court, and not deſt the same w<sup>th</sup>out licence; that then, &c.

It is ordered by the Court, that the rates of the townes in this goũment for publike charges, for payment of the officers, shalbe made this yeare as they were the last yeare, and to be brought in to the milners of eich plantaçõn by the first of Decemb<sup>r</sup> next, and to be taken as corne is sold at Plym.

Mr Wilkm Hanbury, Thomas Southwood, John Burne, Robte Waterman, and Mathew Fuller p̄pounded to be freemen the next Court. James Mathewes, John Tisdall.

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[\*62.]

Released.

*At a Gen<sup>all</sup> Court of our Sou<sup>raigne</sup> Lord the King, held at Plym the xxvij<sup>th</sup> of Septemb<sup>r</sup>, in the xxvij<sup>th</sup> Yeare of his said Ma<sup>ty</sup> now Raigne, of England, &c.*

27 September.

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[\*63.]

BEFOR Wilkm Bradford, gent, Gov,

Edward Winslow,

Thom<sup>s</sup> Prence,Gent, Assistant<sup>l</sup>, &c; & Mr Browne was there the first day.

Tymothy Hatherley,

Wilkm Thomas, &amp;

Edward Freeman,

**T**HIS Court was occationed by the Indians to p̄uide forces against them for an offensive & defensiue warr; and though all the inh<sup>ts</sup> were warned, yet they appeared by their sefall deputies, as they had liberty to doe.

For Plymouth, . . . . .

{ Mr John Atwood,

{ Mr John Jenney,

{ Mr W<sup>m</sup> Paddy,

{ Mr John Done,

{ John Cooke,

{ Manasseth Kempton,

{ John Dunhame.

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|                            |                                                                                                                                                                                                           |
|----------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| For Duxborrow, . . . . .   | { Capt Miles Standish,<br>Mr John Alden,<br>Johathan Brewster,<br>Mr Comfort Starr,<br>Mr W <sup>m</sup> Wetherrell,<br>Wil <sup>m</sup> Basset,<br>Christopher Waddesworth,<br>Georg <sup>e</sup> Soule. |
| For Scittuate, . . . . .   | { Mr Wil <sup>m</sup> Vassell,<br>Wil <sup>m</sup> Hatch,<br>Thom <sup>s</sup> Rauline.                                                                                                                   |
| For Sandwich, . . . . .    | { Mr Edward Dillingham,<br>Richard Chadwell.                                                                                                                                                              |
| For Taunton, . . . . .     | { Capt Wil <sup>m</sup> Poole,<br>Henry Andrewes.                                                                                                                                                         |
| For Barnestable, . . . . . | { Anthony Annable,<br>John Cooper.                                                                                                                                                                        |
| For Yarmouth, . . . . .    | Wil <sup>m</sup> Palmer.                                                                                                                                                                                  |
| For Marshfeild, . . . . .  | { Mr Nathaniell Thomas,<br>Kenelme Winslowe.                                                                                                                                                              |

The Court, being mett together, & haucing intelligence of a genall conspiracy intended by the natiues to cutt of all the English in this land, tooke the same into serious consideraçon, and duly waying such informaçons w<sup>ch</sup> they haue receiued, together w<sup>th</sup> the circumstanc<sup>e</sup> concurring there w<sup>th</sup>all, do adjudge it absolutely needfull & requisite to make speedy pparaçon throughout the gouernment for a defensiu and offensiu warr against them, as if they were p<sup>s</sup>ently to be sent forth.

2. It is agreed and concluded, that Mr Edward Winslow, Mr Tymothy Hatherley, & Captaine Miles Standish shalbe sent into the Bay to, & haue power to agitate and conclude w<sup>th</sup> them for a p<sup>s</sup>ent combinaçon w<sup>th</sup> them in he p<sup>s</sup>ent warrs, and to treat w<sup>th</sup> them about a further combinaçon or league, but not to conclud<sup>e</sup> that w<sup>th</sup>out consent of the Court here.

Their comission is as followeth : —

Mr Edward Winslow, Mr Tymothy Hatherley, and Captaine Miles Standish are deputed and authorized by the Genall Court, this day, to treat and conclude w<sup>th</sup> such comissioners as the Gov<sup>r</sup>nor & Court of Massachusetts shall appoynt for that purpose, vpon such heads & pposiçons as the Lord shall direct them for our combineing together mutually in a defensiu and

offensiuē warr for our p̄sent defence against the intended surprisall of the natives; and also to treatē & conferr w<sup>th</sup> them about a further combinaçōn & league to be concluded betwixt vs for future tymes, & to certyfy this Court of the headē thereof, that vpon our approbaçōn of the same they may be confirmed by a Geñall Court.

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\*It is also agreed & concluded, that Captaine Miles Standish shall goe captaine to lead those forces that shalbe sent forth; and that M<sup>r</sup> Thomas Prence shall go w<sup>th</sup> him, to be his counsell and advise in the warrs, &c; and that Wilm<sup>m</sup> Palmer shalbe leiftennant, and Peregrine White the auncient bearer.

[\*64.]

It is agreed vpon & concluded, that the charges for & about y<sup>e</sup> souldiers w<sup>ch</sup> are to be sent forth shalbe payd by euery towneship according to their rates to the publike charges, viz<sup>s</sup> : —

|                             | li | s    | d    |                   |              |
|-----------------------------|----|------|------|-------------------|--------------|
| Plym <sup>m</sup> , . . . . | 05 | : 05 | : 00 | Barnestable, . .  | 02 : 10 : 00 |
| Duxboř, . . . .             | 03 | : 10 | : 00 | Yarmō, . . . .    | 02 : 10 : 00 |
| Scittuat, . . . .           | 04 | : 00 | : 00 | Taunton, . . . .  | 02 : 10 : 00 |
| Sandwood, . . . .           | 03 | : 00 | : 00 | Marshfeild, . . . | 02 : 00 : 00 |

And so according to this pporçōn, for a greater or lesser sum.

#### The Counsell of Warr.

|                                         |                                            |
|-----------------------------------------|--------------------------------------------|
| The Gouvern <sup>r</sup> ,              | M <sup>r</sup> W <sup>m</sup> Thomas,      |
| M <sup>r</sup> Edward Winslow,          | M <sup>r</sup> Edm <sup>m</sup> Freeman,   |
| M <sup>r</sup> Tho <sup>m</sup> Prence, | M <sup>r</sup> W <sup>m</sup> Vassell,     |
| M <sup>r</sup> W <sup>m</sup> Collyer,  | Capt <sup>t</sup> Standish,                |
| M <sup>r</sup> Tymothy Hatherley,       | M <sup>r</sup> Tho <sup>m</sup> Dimmack,   |
| M <sup>r</sup> John Browne,             | M <sup>r</sup> Antho <sup>m</sup> Thacher. |

If any of these be absent when they should come together, the townes where such dwell are to send other sufficient men in their stead.

Whereas the towneshippes w<sup>th</sup>in the goũment are maruelously vnprovidēd of leade and powder to secure our p̄sent dangers, and that to supply the extreame wants thereof, and to p̄cure pōder and lead, no cōurse can be found out but by sale of some moose skins and other skins out of the gouernment, w<sup>ch</sup> those that hold the trade are phibited to doe by a certaine clause in their graunt, the Court, takeing the same into serious consideraçōn, and fynding the danger to be so great, and euery mans life in such hassard, the Court doth, vpon due caution, order, that no advantage shalbe taken against the said p̄tners of the trade for the p̄cureing of leade and pōder for p̄sent supply by sale of moose

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skins or other skins out of the goſſiment. And the Court doth further order, that the ſtnerſ ſhall forthw<sup>th</sup> do the ſame to procure theſe wants ſupplied, p<sup>ro</sup>vided that the townes bring in corne for them, to be deli<sup>ver</sup>ed vpon the receipt of the p<sup>ro</sup>d<sup>r</sup> & lead, and that when p<sup>ro</sup>d<sup>r</sup> & lead is p<sup>ro</sup>cured, thoſe townes ſhalbe firſt p<sup>ro</sup>vided that are in greateſt want<sup>l</sup>.

17 October.

[\*65.]

\*At a townes meeting, held the xvij<sup>th</sup> of Octob<sup>r</sup>, 1642, held before M<sup>r</sup> Wil<sup>m</sup> Bradford, M<sup>r</sup> Thomas Prence, M<sup>r</sup> John Jenney, M<sup>r</sup> Wil<sup>m</sup> Paddy, John Winslowe, & John Cooke, Jun<sup>r</sup>, appoynted to graunt lands this day for the towne of Plymouth.

Andrew Ringe is graunted foure acres of vpland at the vpper end of his, and adjoyneing to it, w<sup>th</sup> as much conveyency as may be.

Nathaniell Sowther, M<sup>r</sup> Wil<sup>m</sup> Hanbury, Richard Sparrow, and Samuell Hicks are graunted foure acres a peece of vpland lying at the head of M<sup>r</sup> Hicks feild, p<sup>ro</sup>vided that M<sup>r</sup> Hanbury and Samuell Hicks do keepe their residency in the towne, or elſ to be voyd.

M<sup>r</sup> John Groome is graunted foure acres there alſo, if it be there to be had, when thother are layd forth.

John Heyward is graunted a garden place next Andrew Ringe, and tenn acres of vpland at the Fresh Lake by the fishing poynt.

M<sup>r</sup> John Groome is graunted the garden place next to his vpon condi<sup>ti</sup>on that he build a dwelling houſe vpon it, or elſ, if another do it before, then they to haue it; but for the p<sup>re</sup>ſent cropp Richard Knowles to haue it, except John Groome compound w<sup>th</sup> him for it.

Mathew Fuller is graunted tenn acres of vpland, by Thurston Clarks.

James Cole is graunted an enlargement at the head of his lott, to be ſet forth vpon view.

M<sup>r</sup> Prence, M<sup>r</sup> Paddy, M<sup>r</sup> Done, M<sup>r</sup> Jenney, & Joſuah Pratt are appoynted to lay forth all the land<sup>l</sup> aboue graunted.

Ephraim Tinckhame is graunted tenn acres of vpland by Thurston Clark<sup>l</sup>, and to be layd forth by thoſe aboue named, and the reſt of his land<sup>l</sup> to be layd forth in ſome other place.

James Hurst, John Winslow, & Joſhua Pratt appoynted to lay forth M<sup>r</sup> Groomes land<sup>l</sup>, and thoſe graunted at Thurston Clarks lott.

Gyles Rickett is graunted ſix acres of meddow and fifty acres of vpland beyond Mount<sup>l</sup> Hill Playne, the place where he deſireth.

[\*66.]

\*Whereas foureſcore acres of vpland are formly graunted to Edward Banges at Warrens Wells, he now deſireing to haue ſome land<sup>l</sup> neere his houſe, it is graunted that he ſhall looke out a p<sup>ar</sup>cell of land<sup>l</sup>, w<sup>ch</sup> vpon view

shalbe layd forth for him, and to be deducted out of the 80 acres he should haue at Warrens Wells. 1642.

These seſſall pſons following are graunted theſe ſeſſall pporſions of meddow at the North Meddow by Joanes Riuer, of that w<sup>ch</sup> remaynes : — 17 October.  
BRADFORD,  
Goſ.

For the church fue acres next to w<sup>ch</sup> is layd forth.

|                                |   |                                                                |
|--------------------------------|---|----------------------------------------------------------------|
| Mr Thomas Prence,              | } | to eich of them six acres a peece, if it be there to be had.   |
| Mr W <sup>m</sup> Hanbury,     |   |                                                                |
| John Cooke, Jun <sup>r</sup> , |   |                                                                |
| Mr John Howland,               |   |                                                                |
| Francis Cooke,                 | } | to eich of them foure acres a peece, if it be there to be had. |
| Thomas Southwood,              |   |                                                                |
| Thomas Cushman,                |   |                                                                |
| Nathaniell Morton,             |   |                                                                |
| John Shawe,                    |   |                                                                |
| John Winslow,                  |   |                                                                |

And that they appoynt a conuenient tyme to lay it forth, and agree amongst themſelues, w<sup>th</sup> Joſuah to do it.

*\*At a Court of Assistant℥ held at Plym afores<sup>d</sup>, the first Day of Novemb<sup>r</sup>, in the xviij<sup>th</sup> Yeare of the now Raigne of o<sup>r</sup> Sou<sup>r</sup>-aigne Lord, Charles, by the Grace of God King of Eng-land, &c.* 1 November.  
NEW PLYM.  
[\*67.]

|                                                         |                           |
|---------------------------------------------------------|---------------------------|
| BEFORE W <sup>m</sup> Bradford, gen <sup>l</sup> , Goſ, | Wil <sup>m</sup> Collyer, |
| Edward Winslow,                                         | John Browne, &            |
| Thomas Prence,                                          | Edmond Freeman,           |
| Gentlemē, Assistant℥, &c.                               |                           |

**J**OHN HASSELL affirmeth that Vssamequine chose out x fathome of beads at M<sup>r</sup> Williams, and put them in a baskett, and affirmed that he was fully satisfied therew<sup>th</sup> for his land℥ at Seacunck, but he stood vpon it that he would haue a coat more, & left the bead℥ w<sup>th</sup> M<sup>r</sup> Williams, & willed him to keepe them vntill M<sup>r</sup> Hubberd came vp.

He affirmed the bound℥ were to Redstone Hill, viij miles into the land, & to Annawamscoate, vij miles downe the water.



1642.

1 November.  
BRADFORD,  
Gov.

John Hassell doth acknowledg himself to owe the King, to  
be levyed of his landℓ, goodℓ, & cattels, &c, if he fayle in } xx<sup>li</sup>.  
the condiçon following, &c. . . . . }

The condiçon, that if the said John Hassell shall either take the oath of  
allegiance to the King, & fidelitie to the goũment, betwixt this and March  
Court next, or elſ remoue his dwelling from Seacunck ; that then, &c.

1642-3.

3 January.  
NEW PLYM.

[\*69.]

*\*At a Court of Assistantℓ holden at Plym, the third Day of Jan-  
uar., in the xviii<sup>th</sup> Yeare of his Ma<sup>ty</sup> now Raigne, of Eng-  
land, &c.*

BEFORE Wil<sup>m</sup> Bradford, gen<sup>t</sup>, Gov<sup>r</sup>,      Thomas Prence, &  
Edward Winslow,                      Wil<sup>m</sup> Collyer,  
Gen<sup>t</sup>, Assis<sup>t</sup>, &c.

THE controũsy betwixt M<sup>rs</sup> Bridgitt Fuller & Josias Winslow about a  
boare resteth for want of better euedence.

In the difference betwixt M<sup>r</sup> Comfort Starr & Thomas Clark, for tenn  
shillings remayneing of xx<sup>li</sup> x<sup>s</sup> for a cowe, the Court doth order that the said  
Thomas Clark shall pay the said Comfort Starr the said x<sup>s</sup>.

Thomas Clark doth enter his traucerse to the judgment at the next Geñall  
Court.

Execuçon is graunted to Richard Church, ag<sup>st</sup> Mathew Fuller for xx<sup>s</sup> dañ,  
and the charges of the suite.

Execuçon is graunted to John Shawe ag<sup>st</sup> John Barnes, for Richard  
Derby, &c.

Whereas Richard Willis is endebted vnto Richard Derby the sum of  
fourty shillings for a bedd, the which bed not being seene by the said Willis,  
but taken vpon the said Derbys word, and it now appeareing, by the oath of  
Wil<sup>m</sup> Nelson, that the said bed was not answerable to that goodness the  
said Derby affirmed it to be of, nor of such waight by sixteene pounds as he  
affirmed also it was, and that the tick of the said bed was full of patches, for  
w<sup>ch</sup> the said Willis was to haue payd three pounds fve shillings, whereof xxv<sup>s</sup>  
is payd, — now, the Court doth order that twenty shillings more shalbe payd  
in full satisfacçon for it, & no more.

Eres of administraçon are graunted to M<sup>r</sup> Tymothy Hatherly & Edward

Eddenden, of the goods & chattells of Thomas Granger, of Scituate, in the behalf of his wyfe & children, and to pay debts, as farr as it will goe, & to guide for her & her children.

M<sup>r</sup> Holmes account on thother side.

1642-3.

3 January.  
BRADFORD,  
Go<sup>vt</sup>.

\*M<sup>r</sup> John Holmes, the Messengers Account this Court.

[\*70.]

|                                                  | li | s  | d  |
|--------------------------------------------------|----|----|----|
| Remayneing for the first yeares wages, . . . .   | 1  | 06 | 08 |
| For the second yeare, . . . . .                  | 0  | 10 | 00 |
| For the third yeare, . . . . .                   | 1  | 05 | 02 |
| For his goinge to Taunton, . . . . .             | 1  | 00 | 00 |
| For going to Sandwich, . . . . .                 | 0  | 10 | 00 |
| For whipping 3 malefactors, &c, . . . . .        | 1  | 02 | 06 |
| For two bushells of corne to the prison, . . . . | 0  | 06 | 00 |
| For going to Scittuate, . . . . .                | 0  | 10 | 00 |
| For a latch for the prison doore, . . . . .      | 0  | 00 | 06 |
| For x weeks dyett for Granger, . . . . .         | 1  | 00 | 00 |
| For executing Granger and viij beastℓ, . . . .   | 2  | 10 | 00 |

Summ total, . . . . . 10 : 00 : 08

P<sup>d</sup> hereof by the company out of the trade

of Kenebeck, . . . . . 01 : 03 : 00

P<sup>d</sup> to him by M<sup>r</sup> Hanbury, . . . . . 01 : 00 : 00

*\*At a ‡Generall‡ Court of Assistantℓ holden the vij<sup>th</sup> of March, in the xvij<sup>th</sup> Yeare of the now Raigne of o<sup>r</sup> Sou<sup>raigne</sup> Lord, Charls, King of England, &c.*

6 March.  
NEW PLYM.  
[\*71.]

BEFORE Wilkm Bradford, gentlẽ, Go<sup>vt</sup>,

Edward Winslow,

Gen<sup>tl</sup>, Assis<sup>ts</sup>, &c.

Thomas Prence, &

Wilkm Collyer,

IT is ordered by the Court, that Wilkm Spooner shall pay for the debt of M<sup>r</sup> Combe, his master, vnto M<sup>r</sup> W<sup>m</sup> Hanbury, the sum of x<sup>s</sup>, w<sup>ch</sup> was attached in M<sup>r</sup> Prenceℓ hand, w<sup>ch</sup> M<sup>r</sup> Prence did acquit to M<sup>r</sup> Combe ; but the debt remayneing due to M<sup>r</sup> Hanbury as afore<sup>s</sup>d, the said Spooner shall pay it to M<sup>r</sup> Hanbury by a bushell of wheate, & a bushell & a half of barley.

It is also ordered by the Court, that M<sup>r</sup> John Holmes shall haue the saw

1642-3. he bought of Walter Deuell from Daniell Cole, paying him iiij<sup>s</sup> remayning due for it.

6 March.  
BRADFORD,  
Gov.

It is ordered, that Edward Dotey shall pay five bushells of Indian to M<sup>r</sup> Hanbury, & M<sup>r</sup> Hanbury to pay three bushells of wheat to John Jordaine, & what more it shall want of xiiij<sup>s</sup> viij<sup>d</sup>.

7 March.  
NEW PLYM.  
[\*73.]

*\*At the Gen<sup>r</sup>all Court of our Sou<sup>r</sup>aigne Lord, Charles, by the Grace of God King of England, Scotland, Franc, & Ireland, Defender of the Fayth, &c., holden at Plym<sup>th</sup> afores<sup>d</sup>, the vij<sup>th</sup> of March, in the xvij<sup>th</sup> Yeare of his Ma<sup>ty</sup> now Raigne, &c.*

|                                               |                        |
|-----------------------------------------------|------------------------|
| BEFORE Wilm Bradford, gen <sup>t</sup> , Gov, | Tymothy Hatherly,      |
| Edward Winslow,                               | John Browne,           |
| Thomas Prence,                                | Edmond Freeman, &      |
| Wilm Collyer,                                 | W <sup>m</sup> Thomas, |
| Gen <sup>t</sup> , Assistant℥, &c.            |                        |

M<sup>R</sup> WILLM BRADFORD elected Gouvernor.

|                                   |                       |
|-----------------------------------|-----------------------|
| M <sup>r</sup> Edward Winslow,    | } elected Assistant℥. |
| M <sup>r</sup> Thomas Prence,     |                       |
| M <sup>r</sup> Wilm Collyer,      |                       |
| M <sup>r</sup> Tymothy Hatherley, |                       |
| M <sup>r</sup> John Browne,       |                       |
| M <sup>r</sup> Edmond Freeman,    |                       |
| M <sup>r</sup> Wilm Thomas,       |                       |

M<sup>r</sup> Wilm Hanbury, Thomas Southwood, James Mathews, Rob<sup>te</sup> Waterman, & John Tisdall admitted freemen this Court, & are sworne.

Rob<sup>te</sup> Carver, of Marshfeild, John Russell, Edward Sturges, Richard Prichard, Wilm Holloway, Georg<sup>h</sup> Hall, Richard Williams, & Wilm Haiston ppounded to take vp their freedome the next Court.

Vpon the peti<sup>con</sup> of John Washburne, it is ordered by the Court, that M<sup>r</sup> Edward Winslow, Captaine Miles Standish, M<sup>r</sup> John Alden, & Jonathan Brewster shall view the bounds betwixt M<sup>r</sup> Thomas Besbeech & the said John Washbourne, and w<sup>th</sup> the help of M<sup>r</sup> Wilm Vassells instrument, according to their best informa<sup>con</sup> & judgment, set the bounds of their lands betwixt them ; and what bounds they shall sett shall so remayne ppetually, w<sup>th</sup>out any altera<sup>con</sup>.

\*It is ordered, that a warrant shalbe directed to the constable of Yarmouth, to apprehend M<sup>r</sup> Joseph Hull, (if he do either exercise the ministry amongst them or administer the seales,) to bring him before the next magistrate, to fynd sufficient sureties for his apperance the next Genall Court, to answer his doings, (heiß an excoṁmunicant.

1642-3.

7 March.  
BRADFORD,  
Gov.

[\*74.]

Constables for eich Towne, & Survey<sup>rs</sup> of the Wayes.

|                    |                                                             |               |
|--------------------|-------------------------------------------------------------|---------------|
|                    | { John Finney, constab,                                     |               |
|                    | { John Dunham, Richard Sparrow,                             | } grand jury. |
|                    | { Franč Cooke, & Richard Church,                            |               |
| Plymouth, . . .    | { John Barnes, Thoṁ Southwood,                              | } surveyors.  |
|                    | { for the towne,                                            |               |
|                    | { Thoṁ Clark for the Eele Riuer, &                          |               |
|                    | { John Shaw for Jones Riuer,                                |               |
| Duxborrow, . . .   | { Thoṁ Bonney, constable.                                   |               |
|                    | { Loue Brewster & Georg Soule, grand jury men.              |               |
| Scittuate, . . .   | { John Stockbridg & Roṁte Steedson, constā.                 |               |
|                    | { Humfrey Turner & Thoṁ King, grand jury men.               |               |
|                    | { Thomas Rauline & Henry Merriot, surveyors.                |               |
| Sandwich, . . .    | { Georg Knott, constab,                                     |               |
|                    | { James Skiffe & Richard Chadwell, grand jury m.            |               |
| Taunton, . . .     | { Wilṁ Parker, const,                                       |               |
|                    | { Edward Case, grand jury man.                              |               |
| Barnestable, . . . | { James Hamlen, const,                                      |               |
|                    | { Isaack Wells, Abraham Blush, grand juř.                   |               |
| Yarmouth, . . .    | { Emanuell White, const,                                    |               |
|                    | { Wilṁ Lumpkin, grand juř,                                  |               |
|                    | { Gyles Hopkins, Andrew Hellot, Juñ, survey <sup>rs</sup> . |               |
| Marshfeild, . . .  | { John Russell, constā,                                     |               |
|                    | { Roṁte Waterman, Roṁte Caruer, grand juř.                  |               |

M<sup>r</sup> Edward Winslow & M<sup>r</sup> Wilṁ Collyer are elected by the Court to go to treat w<sup>th</sup> Massachusettḷ Bay, &c, about y<sup>e</sup> combynaṁṁ.

Joseph Rogers is graunted the pcell of meddowing containeing 4 or 5 acres lying aboue Massachusettḷ Path, about two miles from M<sup>r</sup> Bradfords farme.

Līes of administraṁṁ are graunted to Joane Swyft, of Sandwich, to administer vpon her husbandḷ estate, and to pay the debts as farr as the estate will amount vnto, by equall pporṁṁs, and is bound to the Gov & Assistantḷ to do it, & Daniell Wing w<sup>th</sup> her.

1642-3.

7 March.  
BRADFORD,  
Gov.

[\*75.]

Raph Chapman is graunted a pcell of land lying at Namassacuset, to that he hath bought of Peeter Collymer there.

\*Nathaniell Sowther is graunted a farne land of 200 acrees of vpland, w<sup>th</sup> competent meddowing to it, in some convenyent place, so that it do not much pjudice a plantaçon.

M<sup>r</sup> Wil<sup>m</sup> Bradford is granted liberty to seek forth a place for to place his children vpon, and when the Court doth know it, to be confirmed to him.

Resolved White is graunted all that marsh and meddow land that lyeth w<sup>th</sup>in the coue w<sup>ch</sup> is at the west end of the land<sup>l</sup> of M<sup>r</sup> Wil<sup>m</sup> Vassell, called the West New Land, by the North Riuer; that is to say, from a marked tree that is on thother side of the coue, ouer against the said West Newland, w<sup>ch</sup> tree standeth vpon the northermost poynt of the vpland there, vpwards to the head of the coue, so farr as there is any marsh or meddow, and so on both sides of the creeke w<sup>ch</sup> runneth vp the coue, excepting all that marsh & meddow that was formerly graunted to the said Wil<sup>m</sup> Vassell.

It is ordered by the Court, that the bounds of Scittuate towneship, on the westerly side of the said towne, shalbe vp the Indian Head Riuer to the pond w<sup>ch</sup> is the head of the said riuer, and from thence to Accord Pond, and from thence to the sea by the lyne that is the bound betwixt Massachusetts & Plymouth.

It is concluded vpon by the Court, that the northerly bound<sup>l</sup> of Marshfeild shalbe from the rock that is flatt on the topp to the North Riuer by a norwest lyne from Greens Harbour Fresh to the tree called Pooles, & to take in Edward Bumpass land<sup>l</sup>. Puided that Duxborrow haue enlargement beyond Massachusetts Payth when they haue viev'd it.

[\*76.]

\*It is ordered by the Court, that M<sup>r</sup> Wil<sup>m</sup> Vassell shalbe allowed to take for setting ouer the North Riuer man & beasts as much as is to be payd at the old ferry place on the North Riuer.

John Barker, of the North Riuer, is fyned for his misdemean<sup>r</sup> v<sup>s</sup>.

Ro<sup>b</sup>te Barker, of the same, for his misdemean<sup>r</sup>, is fynd x<sup>s</sup>.

Ephraim Kempton, of Scituate, Seni<sup>r</sup>, for his misdemean<sup>r</sup> in vncleane speeches & carriages, is censured as followeth, viz<sup>t</sup>: for his miscarriage in words to M<sup>r</sup> Hatherley, a ma<sup>trate</sup>, is fyned xx<sup>s</sup>.

And for his other laciuous speeches & misbeha<sup>u</sup>, to sit in the stocks during such tyme as shalbe thought meete by the Court, w<sup>ch</sup> was ymmediately donn vpon him.

11 March.

The xj<sup>th</sup> March, 1642. Memorand<sup>t</sup>: that Joane Swyft, administratrix of W<sup>m</sup> Swyft, deceased, hath payd to John Barnes v<sup>li</sup> iij<sup>s</sup> & iiij<sup>d</sup> vpon the ad-

ministracon of her husband's estate, yt amounting to pay eich of his creditors vj<sup>s</sup> viij<sup>d</sup> in the pound, so that there is more due vnto him vpon this payment x<sup>s</sup>, his debt being xvij<sup>li</sup> vj<sup>s</sup> viij<sup>d</sup>, and hath deliued vnto her her husband's bills & writings for that money, p<sup>r</sup>ouided that if there doe arise any more due vnto him, others being payd according to the like p<sup>r</sup>oporcon, that he haue his p<sup>r</sup>oporcon as it will come to.

1642-3.

11 March.  
BRADFORD,  
Go<sup>o</sup>.

*\*At a Court of Assistant's holden in Plym aforesaid, the second of May, in the xix<sup>th</sup> Yeare of the now Raigne of o<sup>r</sup> Sou<sup>r</sup>aig<sup>n</sup>e Lord, Charles, by the Grace of God King of England, &c.*

1643.

2 May.  
NEW PLYM.  
[\*77.]

BEFORE Willm Bradford, gen<sup>l</sup>, Go<sup>o</sup>vr,  
Edward Winslow,  
Thomas Prence,  
Gentlem<sup>e</sup>, Assistant's, &c.  
W<sup>m</sup> Collyer,  
John Browne, and  
Willm Thomas,

IN the case betwixt Willm Newland, compl<sup>nt</sup>, ag<sup>st</sup> M<sup>r</sup> W<sup>m</sup> Thomas, deffen<sup>t</sup>, for a debt of iiij<sup>li</sup> x<sup>s</sup>, w<sup>ch</sup> he vndertooke to pay for the towne of Marshfeild, and whereas the Court is informed that M<sup>r</sup> Thomas p<sup>r</sup>ferreth the payment thereof in a cowe to Thomas Shillingsworth, for the said W<sup>m</sup> Newlands use, the Court doth order, that M<sup>r</sup> John Alden and John Winslowe shall indifferently prize the said cowe accordingly as shee will passe betwixt man and man, and if the cowe shall come to more, that Thomas Shillingsworth shall satisfye M<sup>r</sup> Thomas for yt, as the said arbitrators shall in equitie judg<sup>e</sup> fitt, if the said M<sup>r</sup> Thomas & the said Thom<sup>s</sup> Shillingsworth do not agree themselves.

It is ordered by the Court, first, con<sup>c</sup>neing Edward Manton, of Seacunck, whereas he challengeth his house lott vpon the neck at Seacunck to be xij acres, as he sayth, the rest of the lots were at the first diuision, were, that if it be so, that then he haue his xij acres accordingly there; but if it were but six acres to a house lott, then he to haue no more, or el<sup>s</sup> valuable considera<sup>c</sup>on for his labours, according to M<sup>r</sup> Winslowes agreement w<sup>th</sup> him, whether it be six or twelue, and a lott el<sup>s</sup>where; and for Rob<sup>t</sup>e Morris, that hee haue the six acres his house stands vpon, and six acres el<sup>s</sup>where in some conuenient place, for the six acres he hath cleared on Watchymoquett side, and to haue as much donn vpon it as is vpon that on Watchymoquett side, and for other lands that they shall haue an equall p<sup>r</sup>oporcon w<sup>th</sup> the rest there

1643.

2 May.  
BRADFORD,  
Gov.

when the diuision of lands are there made; and the Courte requesteth M<sup>r</sup> Browne to see the same pformed on their behalfe according to the same rule that the diuision is made by.

6 June.  
NEW PLYM.  
[\*79.]

*\*At a Gen<sup>r</sup>all Court holden at Plymouth, aforesaid, the vj<sup>th</sup> of June, in the xix<sup>th</sup> Yeare of the Raigne of o<sup>r</sup> Sou<sup>r</sup>aigne Lord, Charles, by the Grace of God King of England, Scotland, Franc, & Ireland, Defend<sup>r</sup> of the Fayth, &c.*

BEFORE Wiltm Bradford, gen<sup>t</sup>, Gov<sup>t</sup>,      Wiltm Collyer,  
Edward Winslow,      Tymothy Hatherley, &  
Thomas Prence,      Wiltm Thomas,  
Gentlem<sup>e</sup>, Assistant<sup>l</sup>, &c.

M<sup>R</sup> WILLIAM BRADFORD, Gov<sup>t</sup>, sworne.

|                                          |                                   |                                    |
|------------------------------------------|-----------------------------------|------------------------------------|
| M <sup>r</sup> Edward Winslow,           | M <sup>r</sup> Tymothy Hatherley, | } Assistant <sup>l</sup> , sworne. |
| M <sup>r</sup> Tho <sup>m</sup> Prence,  | M <sup>r</sup> Wiltm Thomas,      |                                    |
| M <sup>r</sup> W <sup>m</sup> Collyer,   |                                   | } absent.                          |
| M <sup>r</sup> John Browne, . . . . .    |                                   |                                    |
| M <sup>r</sup> Edmond Freeman, . . . . . |                                   |                                    |

It is ordered and concluded by the Court, that M<sup>r</sup> Edward Winslow and M<sup>r</sup> Wiltm Collyer shall haue full co<sup>m</sup>ission & authority, in name of the whole Court, to subscribe the articles of confederac<sup>o</sup>n (now read in the Court) w<sup>th</sup> the Massachusetts, Co<sup>n</sup>ectacutt, and New Haven, and to subscribe the same in name of the whole, and to affix thereto the co<sup>m</sup>on seale of the go<sup>v</sup>ment.

#### The Grand Inquest.

|                           |           |                                          |           |
|---------------------------|-----------|------------------------------------------|-----------|
| John Dunhame,             | } sworne. | Richard Chadwell,                        | } sworne. |
| Gabriell Fallowell,       |           | Edward Case,                             |           |
| Richard Sparrow,          |           | M <sup>r</sup> Tho <sup>m</sup> Gilbert, |           |
| Francis Cooke,            |           | Isaack Wells,                            |           |
| Loue Brewster,            |           | Abraham Blush,                           |           |
| Georg <sup>e</sup> Soule, |           | Rob <sup>t</sup> e Waterman,             |           |
| Humfrey Turner,           |           | Job Cole,                                |           |
| Thomas Kinge,             |           | Wiltm Lumpkine,                          |           |
| James Skiffe,             |           | W <sup>m</sup> Hoskine.                  |           |

Mr Thomas Gilbert ppounded to be a freeman.

\*Thomas Rauline, of Scituate, } are fyned x<sup>s</sup> a peece for non appar-  
James Mathewes, of Yarmouth, } ance vpon the grand inquest.

1643.

6 June.  
BRADFORD,  
Goſt.

[\*80.]

Coſmittees for eich Towne.

|                        |                                                                                         |
|------------------------|-----------------------------------------------------------------------------------------|
| Plymouth, . . . . .    | { Mr John Atwood,<br>Mr John Done,<br>Mr Wilkm Paddy,<br>John Cooke, Jun <sup>r</sup> . |
| Duxborrow, . . . . .   | { Mr Thoſi Besbeeche,<br>Wilkm Bassett.                                                 |
| Scittuate, . . . . .   | { Thomas Chambers,<br>Edmond Eddenden.                                                  |
| Sandwich, . . . . .    | { Wilkm Newland,<br>Mr Henry Feake.                                                     |
| Barnestable, . . . . . | { John Coop,<br>Anthony Annable.                                                        |
| Yarmouth, . . . . .    | { Mr Anthony Thacher,<br>Mr Crowe, Sen.                                                 |
| Taunton, . . . . .     | { Mr Henry Andrews,<br>John Stronge.                                                    |
| Marshfeild, . . . . .  | Josias Winslow.                                                                         |

Mr John Howland, of Duxborrow, acknowledgeth to owe the King xx<sup>li</sup>. Released.

The condiçon, that if John Walker, sonn in law of Arthur Howland, do psonally appeare before the Goſt and Assistant℄ at the next Geſnall Court, to be holden for this goſtment, to answere to all such matters as shalbe objected against him on his ſd maties behalf, conçening lying w<sup>th</sup> a bitch, and abide the further order of the Court, & not deſt the same w<sup>thout</sup> lycence; that then, &c.

\*Whereas there is a suite depending this Court betwixt Mr John Jenney, compl<sup>nt</sup>, and Samuell Stertevaunt and Joseph Ramsden, deff<sup>nt</sup>, by the consent of both pties, it is referred to be decided & fully ended by the bench. [\*81.]

Whereas Mr David Offley did by warrant ſummon Thomas Payne, of Yarmouth, to appeare here to answere to a suite, and had neither entred action against him nor appoynted any to psecute for him, but onely to vex the said Payne, & put him to charges, the Court doth order and award the said David Offley to pay the said Thomas Payne xij<sup>s</sup>, according to the rate of ij<sup>s</sup> p day for vj dayes.



1643.

6 June.

BRADFORD,  
Goff.

Released.

Mr Andrew Hellott, for the like, is awarded by the Court to pay Mr John Alden and Mr John Howland v<sup>s</sup> a peece.

Wilm Halloway, of the South Riuer, plant, . . . . . xx<sup>li</sup>.

W<sup>m</sup> Bassett, of Duxborrow, plant, . . . . . x<sup>li</sup>.

Josias Winslowe, of Marshfeild, . . . . . x<sup>li</sup>.

The condiçon, that if the said Wilm Halloway shall psonally appeare at the next Gefall Court to be holden for this gofiment to answere to all such matters as on his sd ma<sup>ties</sup> behalf shalbe objected against him concerning eating of certaine stolne herins, and for suspiçon of stealing some corne from Edward Brough, and abide the further order of the Court, and not deþt the same w<sup>th</sup>out lycence ; that then, &c.

Concerning the request of the inhab<sup>lts</sup> of Taunton for wood and land.

The Court is willing to condiscead thus farr, viz<sup>t</sup> : that those lands w<sup>ch</sup> belong to Hesbone may be pcured them by all due meanes, and w<sup>th</sup> what conveyent speede may be ; also, that the best & speediest meanes be used to pcure them further enlargment on that side the mayne riuer to answere Mr Hooks and Mr Streets farmes on thother side ; and whereas they desire the neck of Assonett for pastureing yeong beasts, it is also graunted by the Court, puided leaue can be pcured from Vssamequin, and all payments to be made by themselues, w<sup>th</sup>out any charg<sup>e</sup> to the countrey ; but whereas the tymber is requested below the said bounds, that we cannot graunt w<sup>th</sup>out great detryment to another plantaçon intended belowe that.

The first Tewsdays in July the ma<sup>trats</sup> meete, and eich towne are to send such men as they shall think fitt to joyne w<sup>th</sup> them to consult about a course to saueguard ourselues from surprisall by an enemie.

4 July.

NEW PLYM.

[\*83.]

*\*At a Court of Assistant<sup>e</sup> holden the fourth Day of July, in the xix<sup>th</sup> Yeare of the now Raigne of o<sup>r</sup> Sou<sup>er</sup>aigne Lord, Charles, by the Grace of God King of England, Scotland, France, & Ireland, Defendor of the Fayth, &c.*

BEFORE Wilm Bradford, gen<sup>t</sup>, Goff,

Edward Winslowe,

Gentlem<sup>e</sup>, Assis<sup>t</sup> of the said gofiment, &c.

Wilm Collyer, and

Wilm Thomas,

**W**HEREAS Joseph, the sonn of Francis Billington, according to the order of the Court, was by the towne of Plymouth placed w<sup>th</sup> John

Cooke the yonger, and hath since beene enveagled, and did oft deſte his ſaid maſters ſervice, the Court, vpon longe heareing of all that can be ſaid or alleadged by his ſent℄, doth order and appoynt that the ſaid Joſeph ſhalbe returned to his ſaid maſter againe immediately, and ſhall ſo remaine w<sup>th</sup> him during his terme; and that if either the ſaid Francis, or Chriſtian, his wyfe, do receiue him, if he ſhall againe deſt from his ſaid maſter w<sup>th</sup>out his lycence, that the ſaid Francis, and Chriſtian, his wyfe, ſhalbe ſett in the ſtocks euery lecture day during the tyme thereof, as often as he or ſhee ſhall ſo receiue him, vntill the Court ſhall take a further courſe w<sup>th</sup> them; and alſo, that if Benjamin Eaton, now liueing w<sup>th</sup> the ſaid Francis Billington, ſhall counſell, entice, or enveagle the ſaid Joſeph from his ſaid maſter, that then he ſhall haue the ſame puniſhment w<sup>th</sup> his father and mother.

1643.

4 July.  
BRADFORD,  
Go<sup>u</sup>.

*\*At the Gen<sup>r</sup>all Court of o<sup>r</sup> Sou<sup>a</sup>igne Lord the King, holden at Plym the xxix<sup>th</sup> of Auguſt, in the xix<sup>th</sup> Yeare of the now Raigne of our Sou<sup>a</sup>igne Lord, Charles, by the Grace of God King of Eng- land, Scotland, France, & Ireland, Defendor of the Fayth, &c.*

29 Auguſt.  
NEW PLYM.  
[\*85.]

BEFORE Wil<sup>m</sup> Bradford, gent℄, Go<sup>u</sup>, Timothy Hatherley,  
Edward Winslow, John Browne, &  
Wil<sup>m</sup> Collyer, W<sup>m</sup> Thomas,  
Gentlemē, Assistant℄, &c.

**M<sup>R</sup>** JOHN BROWNE, formly elected an Assistant, was now ſworne this Court.

The Co<sup>m</sup>ittees of the ſeuall Townes.

|                        |                                                                                                   |
|------------------------|---------------------------------------------------------------------------------------------------|
| Plym, . . . . .        | { Mr John Atwood,<br>Mr Wil <sup>m</sup> Paddy,<br>Mr John Done,<br>John Cooke, Ju <sup>n</sup> . |
| Scittuate, . . . . .   | { Georg <sup>e</sup> Ken <sup>n</sup> ick,<br>John Williams.                                      |
| Barnestable, . . . . . | { Henry Rowley,<br>Henry Bourne.                                                                  |
| Taunton, . . . . .     | { Henry Andrewes,<br>John Strong.                                                                 |

1643.

29 August.  
BRADFORD,  
Gov.

|                     |   |                                      |
|---------------------|---|--------------------------------------|
| Duxborrow, . . . .  | { | Wilm Bassett,<br>Edmond Chaundlor.   |
| Sandwich, . . . .   | { | Mr Henry Feake,<br>Wilm Newland,     |
| Yarmouth, . . . .   | { | Wilm Palmer,<br>Thomas Falland.      |
| Marshfeild, . . . . | { | Kenelme Winslowe,<br>Robte Waterman. |

Whereas \_\_\_\_\_, an Indian of Barnestable, accedentially tooke a cowe of Thomas Hinckleys in a trapp, and lay so longe therein that the flesh was lost, onely the hide was saued; and yet because the Indian did so ingeniously & playnely confesse the fault, and made dilligent enquiry whose the cow was, the Court doth order the said Indian to pay the said Hinckley fifty shillings in full satisfacōn, and do desire him to be therew<sup>th</sup> content.

Mowers that haue taken excessiue wages, viz<sup>s</sup>, 3<sup>s</sup> p diē, are to be p<sup>s</sup>ented, if they make not restituōn.

It is ordered, that the cōmissioners, viz<sup>s</sup>, Mr Winslow & Mr Collyer, shall p<sup>o</sup>cure a bushell and a half bushell, to be made by the Bay standard, that our measures made be all made according to them.

[\*86.]

\*Tyme is giuen to the townes of Barnestable and Yarmouth vtill the next Court to amend their heigh wayes, or el<sup>s</sup> to be fyned vpon their p<sup>s</sup>entment<sup>l</sup>.

Tyme is giuen to Mr Done and the rest of that jury to giue in their verdict for the heigh wayes to the Eele Riuer, &c, before the next Court, or el<sup>s</sup> those to be fyned that refuse to come in to do yt.

Concerning the differenc<sup>e</sup> betwixt Mr Wilm Thomas & W<sup>m</sup> Newland, for the 4<sup>th</sup> 10<sup>s</sup> he vndertooke to pay for the towne of Marshfeild to Richard Church and Robte Bartlett, it is ordered, by consent of both parties, that a cow of Mr Wilm Thomas, now in the hands of Christopher Waddesworth, of Duxborrow, shalbe prized by John Winslow and another man, chosen by the s<sup>d</sup> Christopher, and be deliuered vnto Thomas Shillingsworth; and the said Thomas to giue a note vnder his hand to the said Mr Thomas to pay him so much more as the said cowe comes to, at or before March next; and so all differenc<sup>e</sup> betwixt the said Mr Thomas, Wilm Newland, and Thomas Shillingsworth, to be fynally decided and ended.

The Court hath allowed & established a millitary discipline to be erected and mayntained by the townes of Plymouth, Duxborrow, & Marshfeild, and haue also heard their orders and established them, viz<sup>s</sup> : —

Officers chosen by the Company & allowed by the Court.

That Miles Standish shalbe captaine for this yeare.

Nathaniell Thomas leiftennant for this yeare.

Nathaniell Sowther clark of the band or company.

Mathew Fuller, }  
Samuell Nash, } serjeant.

#### Orders.

1. That the exercise be alwayes begunn and ended with prayer.
2. That there be one procured to preach them a sermon once a yeare, viz<sup>s</sup>, at the elec<sup>o</sup>n of their officers, and the first to begin in Septemb<sup>r</sup> next.
3. That none shalbe receiued into this millitary company but such as are of honest and good report, & freemen, not servants, and shalbe well approued by the officers & the whole company, or the major part.

\*4. That euery pson, after they haue recorded their names in the military list, shall from tyme to tyme be subject to the comāunds and orders of the officers of this millitary company in their places respectiue.

[\*87.]

5. That euery delinquent shalbe punished at the discretion of the officers and the millitary company, or the major part thereof, according to the order of millitary discipline & nature of the offence.

6. That all talking, and not keepeing sylence, during the tyme of the exercise, jereing, quarrelling, fighting, de<sup>p</sup>ting collers w<sup>th</sup>out lycence, or dismission, &c, or any other misdemeanor, so adjudged to be by the officers and the company, or the maj<sup>r</sup> part thereof, to be accounted misdemeanors, to be punished as aforesaid.

7. That euery man that shalbe absent, except he be sick or some extraordinary occation or hand of God vpon him, shall pay for euery such default ij<sup>s</sup>. And if he refuse to pay it vpon demannd, or w<sup>th</sup>in one month after, then to appeare before the company, & be distrayned for it & put out of the list.

8. That if any man shall, vpon the dayes appoynted, come w<sup>th</sup>out his armes or w<sup>th</sup> defectiue armes, shall forfeite for euery trayneing day as followeth:—

For want of a muskett or a peece approued, euery tyme, . . . vj<sup>d</sup>.

For want of a sword, . . . . . vj<sup>d</sup>.

For want of a rest, . . . . . vj<sup>d</sup>.

For want of bandelires, . . . . . vj<sup>d</sup>.

Six months tyme giuen to guide in.

9. That euery man that hath entred himself vpon the millitary list, and hath not sufficient armes, & doth not or will not p<sup>c</sup>ure them w<sup>th</sup>in six monthes next ensuing, his name to be put out of the list.

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10. That there be but xvj<sup>teene</sup> pikes in the whole company, or, at the most, for the third pt, viz<sup>s</sup> : viij for Plymouth, vj for Duxborrow, and two for Marshfeild.

11. That all that are or shalbe elected cheefe officers in this millitary company shalbe so titled and foreuer afterwards be so reputed, except he obtayne a heigher place.

12. That euery man entred into the millitary list shall pay vj<sup>d</sup> the quarter to the vse of the company.

13. That when any of this millitary company shall dye or depart this life, the company, vpon warneing, shall come together w<sup>th</sup> their armes, and interr his corps as a souldier, and according to his place and quallytye.

[\*88.]

\*14. That all that shalbe admitted into this millitary company shall first take the oath of fydellyty, if they haue not taken it already, or el<sup>s</sup> be not admitted.

15. That all postures of pike and muskett, motions, rankes & files, &c, messengers, skirmishes, seiges, batteries, watches, sentinells, &c, bee alwayes pformed according to true millitary discipline.

16. That all that will enter themselues vpon this company shalbe ppounded one day, receiued the next day, if they be approued.

The like liberty is graunted to the townes of Sandwich, Barnestable, and Yarmouth for the erecting of a millitary discipline amongst them, guided they be men of honest and good report and freemen.

Concerning the differenc<sup>e</sup> betwixt M<sup>r</sup> Hedg<sup>e</sup> and Richard Hore, of Yarmouth, for the meddow ground at Yarmouth, first giuen to the church there, the Court doth order that the said sixe acres shall so remayne to the church according to the first graunt, and that M<sup>r</sup> Hedg<sup>e</sup> may take his remedy against him or them that sould him the same, being formly disposed of to the church as aforesaid.

Proposicōns this Court by the Co<sup>m</sup>ittees for o<sup>r</sup> Lawes.

That the Gov<sup>r</sup>nor and M<sup>r</sup> Prence at Plymouth, & M<sup>r</sup> Collyer and whom he pleaseth w<sup>th</sup> him at Duxborrow, M<sup>r</sup> Winslow & M<sup>r</sup> Thomas at Marshfeild, do puse the lawes of this go<sup>v</sup>ment, that such as are necessary may be established, such as are vnecessary may be repealed, and such as are defectiue may be altered, and such as are wanting may be ppared, and penalties to be fixed to eich law as far as may be ; that, vpon the approba<sup>c</sup>ōn of them by the Court, they may be confirmed at the Ge<sup>n</sup>all Court.

Woolues : a muster master spoken of.

*At a Gen<sup>r</sup>all Court holden at Plymouth afores<sup>d</sup>, the x<sup>th</sup> Day of October, in the xix<sup>th</sup> Yeare of the now Raigne of o<sup>r</sup> Sou<sup>r</sup>aigne Lord, Charles, by the Grace of God King of England, &c.*

1643.

10 October.  
NEW PLYM.  
BRADFORD,  
Gov.  
[\*89<sup>a</sup>.]

BEFORE Wilm<sup>o</sup> Bradford, gent, Gov<sup>r</sup>,      John Browne,  
Edward Winslow,      Wilm<sup>o</sup> Thomas, &  
Thom<sup>o</sup> Prence,      Edmond Freeman,  
Wilm<sup>o</sup> Collyer,  
Gentlem<sup>e</sup>, Assistant<sup>e</sup>, &c.

**M**<sup>R</sup> EDMOND FREEMAN, form<sup>ly</sup> elected Assistant, &c, was sworne this Court.

W<sup>m</sup> Hatch, of Scittuate, elected by the townesmen to be their leiftennant for trayneing their men, was p<sup>s</sup>ented by their then co<sup>m</sup>ittees to the Court, and allowed, according to the order of the Court.

M<sup>r</sup> Thomas Dimmack was likewise allowed leiftennant for the towne of Barnestable, for the like seruice, &c.

M<sup>r</sup> W<sup>m</sup> Palmer was likewise allowed leiftennat for the towne of Yarmouth, for the like service, &c.

The Co<sup>m</sup>ittees of the se<sup>u</sup>all Towneshippis.

|              |   |                                      |             |   |                            |
|--------------|---|--------------------------------------|-------------|---|----------------------------|
| Plymouth,    | { | M <sup>r</sup> John Done,            | Duxborrow,  | { | Capt Miles Standish,       |
|              |   | M <sup>r</sup> W <sup>m</sup> Paddy, |             |   | Jonathan Brewster,         |
|              |   | John Cooke, Ju <sup>r</sup> ,        |             |   | M <sup>r</sup> John Alden. |
|              |   | John Dunhame.                        | Taunton,    | { | John Stronge,              |
| Sandwich,    | { | M <sup>r</sup> Edward Dillingham,    |             |   | Richard Williams.          |
|              |   | Wilm <sup>o</sup> Newland.           | Scittuate,  | { | Thomas Robinson,           |
| Barnestable, | { | M <sup>r</sup> Thomas Dimack,        |             |   | Thomas Raulins.            |
|              |   | Anthony Annable.                     | Marshfeild, | { | Kenelme Winslow,           |
| Yarmouth,    | { | M <sup>r</sup> Anthony Thacher,      |             |   | Josias Winslowe.           |
|              |   | Wilm <sup>o</sup> Palmer.            |             |   |                            |

This Court was called, vpon occation of the insurrection of the Indians ag<sup>st</sup> the Dutch and English there, and haue plotted to cutt of the English, and to beginn w<sup>th</sup> the Dutch, many of whom they haue already cutt off.

It is concluded and agreed vpon by the Court, that thirty men, according to our p<sup>o</sup>por<sup>o</sup>n w<sup>th</sup> the confederates, shalbe forthw<sup>th</sup> made ready for the warr, and be sufficiently p<sup>u</sup>ided w<sup>th</sup> armes compleate & other p<sup>u</sup>isions, and to be in continuall readynes to go forth w<sup>th</sup> the confederat<sup>e</sup> when they shalbe called.

1643.

10 October.  
BRADFORD,  
Gov.

[\*89<sup>b</sup>.]

\*The rule w<sup>ch</sup> was thought most equall for number of psons in euery township was to take one of a score in euery township, as they are to make ready as followeth in euery towne : —

|                         |                           |                                    |
|-------------------------|---------------------------|------------------------------------|
| Plymouth, . . . seauen. | Taunton, . . . three.     | } xxx <sup>tie</sup> psons in all. |
| Duxborrow, . . . fve.   | Barnestable, . . . three. |                                    |
| Scituate, . . . fve.    | Yarmouth, . . . two.      |                                    |
| Sandwich, . . . three.  | Marshfeild, . . . two.    |                                    |

The rates of euery township to this charge are as followeth : —

|            | li | s  | d  |              |    |                                                                   |
|------------|----|----|----|--------------|----|-------------------------------------------------------------------|
| Plymouth,  | 04 | 05 | 00 | Taunton,     | 02 | 10 00                                                             |
| Duxborrow, | 03 | 00 | 00 | Barnestable, | 02 | 10 00                                                             |
| Scituate,  | 04 | 10 | 00 | Yarmouth,    | 02 | 10 00                                                             |
| Sandwich,  | 03 | 05 | 00 | Marshfeild,  | 02 | 10 00                                                             |
|            |    |    |    |              |    | According to these<br>pporçons to the<br>hundred pound<br>chargē. |

It is ordered and agreed vpon by the Court, that the comittees of euery township do speedily make their number of men ready and furnished w<sup>th</sup> sufficient armes and pusion, and send their names to the Gov<sup>r</sup> & counsell of warr hereafter named w<sup>th</sup> all conveyent speed, and a cattalogue of their armes.

The counsell of warr, elected & authorized by the Court, are, —

The Gouvernor, who is also president thereof,

Mr Edward Winslow,

Mr Thomas Prence,

Mr Wil<sup>m</sup> Collyer,

Cap<sup>t</sup> Miles Standish.

It is ordered and concluded vpon by the Court, that the counsell of warr shall haue full power to order all things concerning the ge<sup>n</sup>all warrs for the go<sup>v</sup>ment, especially in these p<sup>t</sup>iculers following, viz<sup>s</sup> : —

That the counsell of warr shall haue full power to yssue out warrants to presse such a number of men in euery towne as by pporçon the said towne is to set forth ; and also to yssue forth warrants to the said townes for armes & pusion for them, and so for a greater or lesser number or pporçon as occasion shall require, according to the number of psons and rates now agreed vpon in this Court for eich township.

That when complaint is made to the counsell of warr, either by the officers or souldiers, of any offences donn in the tyme of service, the said counsell of warr shall haue full power to heare, & determine, & punish such offenders.

\*The armes w<sup>ch</sup> shalbe accounted sufficient for the furnishing of a souldier are these : —

A muskett, either firelock or matchcock, so that they p<sup>u</sup>ide match w<sup>th</sup>all, a paire of bandeliers, or a pouch for p<sup>ö</sup>der and bullets, a sword and a belt, a wor<sup>m</sup>e & scowrer, a rest & a knapsack.

That the counsell of warr shall haue full power to choose a treasurer or treasurers for the p<sup>re</sup>sent service, to make p<sup>ro</sup>vision for them, and shall giue an account to the countrey of their receipt<sup>℥</sup> and payment<sup>℥</sup> when they shalbe required.

That the losse of armes w<sup>ch</sup> shall happen in this expedition shalbe borne *shalbe borne* by the countrey according to their se<sup>u</sup>all p<sup>ro</sup>por<sup>ti</sup>ons.

That all the armes w<sup>ch</sup> shalbe used in this expedition shalbe valued by the counsell of warr, and a record of them taken and to whom they are deli<sup>u</sup>ed by one therevnto appoynted.

That the co<sup>m</sup>mittees do send a list of their souldiers names w<sup>th</sup> their armes to the counsell of warr to Plymouth on Munday the xxij<sup>th</sup> of this instant Octob<sup>r</sup>, or before.

That the counsell of warr shall haue full power to make choyce of a leader that shall leade this company, and one to goe w<sup>th</sup> him for counsell.

That euery souldier shall haue xvij<sup>s</sup> p month, & dyett & pillage.

That euery souldier shall haue a months p<sup>ro</sup>vision sent w<sup>th</sup> him, viz<sup>t</sup> : for euery souldier xxx<sup>t</sup> of biskett, xij<sup>t</sup> of pork or xx<sup>t</sup> of beefe, and half a bushell of peas or meale ; and that euery towne p<sup>ro</sup>vide according to this p<sup>ro</sup>por<sup>ti</sup>on for so many men as they are to send forth.

That the leader of this company shall haue fourty shillings p month, and the serjeant xxx<sup>s</sup> p month.

It is ordered by the Court, that if the townesmen of Yarmouth cannot p<sup>re</sup>sently agree to appoynt a place for defence of themselues, their wiues, and children, in case of a suddaine assault, that then the Court doth order and appoynt Leiftennant Wilm Palmer, Anthony Thacher, Nicholas Symkins, and Samuell Rider, w<sup>th</sup> the constable, to appoynt a place, and forthw<sup>th</sup> to cause the same to be fortyfied w<sup>th</sup> all speede.

It is bare still.

\*It is ordered by the Court, that if the townesmen of Barnestable doe not p<sup>re</sup>sently agree to appoynt a place or places for the defence of themselues, their wiues, and children, against a suddaine assault, that then y<sup>e</sup> Court doth order, that Mr Thomas Dimmack, Anthony Annable, Henry Cobb, Henry Coggen, & Barnard Lumberd, w<sup>th</sup> the constable, shall forthw<sup>th</sup> appoynt a place or plac<sup>℥</sup> for their defence, and cause the same to be speedily fortyfied for their defence.

1643.

10 October.  
BRADFORD,  
Gov.

[\*89<sup>e</sup>.]

[\*90.]



1643.

6 October.  
BRADFORD,  
Goſ.

9 October.  
2 November.

11 November.

Henry Adford & Tomson Manson, of Scituate, married the vij<sup>th</sup> of Octob<sup>r</sup>, 1643.

John Stockbridg and Elizabeth Sone, of Scituate, married the ix<sup>th</sup> Octob<sup>r</sup>, 1643.

James Torrey & Ann Hatch, of Scittuate, married the second of Novemb<sup>r</sup>, 1643.

The xj<sup>th</sup> of Novemb<sup>r</sup>. Memorand<sup>t</sup>: that Wil<sup>m</sup> Launder, formly the servant of M<sup>r</sup> John Combe, and sithence by his consent turned ouer to M<sup>r</sup> Wil<sup>m</sup> Thomas, and sithence, also, in considera<sup>co</sup>n of the sum of xj<sup>li</sup>, payd by M<sup>r</sup> Tho<sup>m</sup> Burne vnto the said M<sup>r</sup> Thomas, is, by the said Lauanders consent, turned oſi to serue the residue of his tyme w<sup>th</sup> the said Thomas Burne, according to his indenture; the said Tho<sup>m</sup> Burne fynding him meate, drinke, and apparell during the said terme, and in thend thereof to pay him, the said Launder, the sume of three pounds in countrey commodities, as they will then passe from man to man.

7 November.  
NEW PLYM.  
[\*91.]

*\*At a Court of Assistant<sup>e</sup> holden at Ply<sup>m</sup> afores<sup>d</sup>, the vij<sup>th</sup> of Novemb<sup>r</sup>, in the xix<sup>th</sup> Yeare of the now Raigne of o<sup>r</sup> Souaigne Lord, Charles, King of England, &c.*

BEFORE Wil<sup>m</sup> Bradford, gen<sup>t</sup>, Goſ,  
Edward Winslow,  
Thomas Prence,

Wil<sup>m</sup> Collyer, &  
W<sup>m</sup> Thomas,

Gen<sup>t</sup>, Assis<sup>t</sup>, &c.

**W**HEREAS there was a suite comēced by John Hearer against M<sup>r</sup> Josias Checkett for a house & land<sup>e</sup> in Scittuate, the w<sup>ch</sup> was psecuted by Jonathan Brewster as attorney for the said Hearer, and Samuell Fuller, attorney for the said Checkett, it is ordered and agreed vpon, by the consent of both p<sup>t</sup>ies, that the said Hearer shall haue house and lands againe, and that the charges w<sup>ch</sup> haue beene really disbursed vpon the said lands to be payd out of the rent of the sayd lands; and the said land<sup>e</sup> to be further confirmed to the said Hearer against any title the said Checkett or his assigns shall make therevnto.

John Barnes, proued to be drunken, both in the Bay and at  
Scituate, vpon the oathes of John Morton & Nathaniell } v<sup>li</sup>.  
Masterson, is fyned . . . . . }

Whereas Mr Henry Andrewes hath exhibited a bill of compl<sup>nt</sup> ag<sup>st</sup> Mr John Gilbert, Señ, for a pcell of goods, viz<sup>l</sup>, a pack of linnen cloth, to the value of fourty pound<sup>l</sup> or there about<sup>l</sup>, the said John Gilbert, being now required to answere therevnto vpon his oath, hath refused, but hath taken tyme to answere at March Court next, or els the Court to pceede against him for payment thereof.

1643.

7 November.  
BRADFORD,  
Gov.

Mr John Gilbert, Señ, acknowledgeth to owe the King, . lxxx<sup>li</sup>. Released.

Upon condiçon that he shall answere at March Court next to the bill of compl<sup>nt</sup> of Mr Henry Andrewes.

*\*At a Court of Assistant<sup>l</sup> holden at Plym, aforesaid, the second of January, in the xix<sup>th</sup> Yeare of the Raigne of o<sup>r</sup> Sou<sup>r</sup>aigne Lord, Charles, by the Grace of God King of England, Scotland, France, and Ireland, Defendor of the Fayth, &c.*

1643-4.

2 January.  
NEW PLYM.  
[\*93.]

BEFORE W<sup>m</sup> Bradford, gentl<sup>e</sup>, Gofinor,      Wilm Collyer, and  
Edward Winslow,                      Wilm Thomas,  
Thomas Prence,  
Gentlem<sup>e</sup>, Assistant<sup>l</sup>, &c.

V<sup>P</sup>ON certyfcate made to the Court, that Geor<sup>g</sup> Pidcock, of Duxborrow, taylor, by reason of a cold palsy that his body is subject vnto, is vnable to beare armes to exercise w<sup>th</sup> a peece,    is therefore by the Court freed from such service, and not to be fyned for not trayneing hereafter, but to pay his fynes for the tyme past, because the Court was not so informed form<sup>ly</sup>, provided that the said Geor<sup>g</sup> Pidcock pforme all other publicke services as to watch and ward w<sup>th</sup> such weapons as he can use, when hee shalbe therevnto required.

It is ordered by the Court, that Edward Dotey shall pay fve bushells of Indian corne to Mr John Groome, for Manaseth Kemptons use, by the end of the next week, & pay the messenger his fee & charges of the Court.

The xvij<sup>th</sup> day of January, 1643. William Hoskine, of Plymouth, hath put Sarah, his daughter, to Thomas Whitney, and Winefride, his wyfe, to dwell w<sup>th</sup> them vntill shee shall accomplish the age of twenty yeares, the said Thomas, and Winyfride, his wyfe, vseing her as their child, and being vnto her as father and mother, and to instruct her in learneing and soweing in reasonable manner, fynding vnto her meate, drink, and apparell &

18 January.

1643-4. lodging during the said terme ; and if it shall happen the said Sarah to marry  
 18 January. before she shall haue accomplished the said age of twenty yeares, (she being  
 BRADFORD, six yeares of age the xvj<sup>th</sup> of September last past,) that then the sayd Thomas  
 GOD. shall haue such satisfaction for her tyme then remayneing as shalbe adjudged  
 reasonable & equall by two indifferrent men.

Ordered to  
 dwell w<sup>th</sup> Mr  
 Hatherley.

[\*94.]

\*James Till, of Scittuat, acknowledgeth to owe the Kinge, &c, xx<sup>li</sup>.

Georg Sutton, of the same, plat, . . . . . x<sup>li</sup>.

Symon Sutton, of the same, plant, . . . . . x<sup>li</sup>.

¶ bona port.

The Court judge him to haue broken his bond℥, because that Mr Hanbury sent the said Till to Scittuate w<sup>th</sup> two hides to Humphrey Turner to be tanned ; & the said Till sold the said hides to Joseph Tilden for xij<sup>s</sup>, one of them being neere vpon worth so much.

5 March.  
 NEW PLYM.  
 [\*95.]

\**At the Gen'all Court of o<sup>r</sup> Sou'aigne Lord the King, holden at Plym afores<sup>d</sup>, the fift Day of March, in the xix<sup>th</sup> Yeare of his said Ma<sup>s</sup> now Raigne, of England, &c.*

|                                              |                              |
|----------------------------------------------|------------------------------|
| BEFORE Wil <sup>m</sup> Bradford, gent, God, | Tymothy Hatherley,           |
| Edward Winslow,                              | John Browne,                 |
| Thomas Prence,                               | Wil <sup>m</sup> Thomas, and |
| Wil <sup>m</sup> Collyer,                    | Edmond Freeman,              |
| Gentlemē, Assistant℥, &c.                    |                              |

THE co<sup>m</sup>mittees of the se<sup>m</sup>all towneshippes :—

|            |                                                                                                                  |              |                                                    |
|------------|------------------------------------------------------------------------------------------------------------------|--------------|----------------------------------------------------|
| Plymouth,  | { Mr John Done,<br>Mr Wil <sup>m</sup> Paddy,<br>Manasse <sup>th</sup> Kempton,<br>John Cooke, Ju <sup>n</sup> . | Duxborrow,   | { Wil <sup>m</sup> Bassett,<br>Edmond Chaundlor.   |
| Scittuate, | { John Williams,<br>Thomas Chambers.                                                                             | Sandwich,    | { Richard Burne,<br>Wil <sup>m</sup> Newland.      |
| Taunton,   | { Henry Andrewes,<br>John Strong, absent.                                                                        | Barnestable, | { Anthony Annable,<br>Henry Bourne.                |
| Yarmouth,  | { Mr Anthony Thacher,<br>Wil <sup>m</sup> Palmer.                                                                | Marshfeild,  | { Josias Winslowe,<br>Rob <sup>t</sup> e Waterman. |

These psons following were propounded to take vp their freedome the 1643-4.  
next Court : —

|                              |                   |
|------------------------------|-------------------|
| Mr Nathaniell Thomas,        | + Robte Caruer,   |
| p <sup>d</sup> John Dingley, | + George Hall,    |
| + James Pitney,              | Wiltm Halloway,   |
| James Skiffe,                | Wiltm Hailstone,  |
| Thomas Shillingsworth,       | Richard Williams. |
| John Russell,                |                   |

5 March.  
BRADFORD,  
Gov.

John Smyth, of the Eele Riſſ, planter, acknowledgeth to } xx<sup>li</sup>.  
or ſouaigne lord the King, to be levyed, &c, . . . . . }  
Edward Banges, of the ſame, plant<sup>r</sup>, . . . . . x<sup>li</sup>.  
Edward Dotey, of Plym<sup>r</sup>, plant<sup>r</sup>, . . . . . x<sup>li</sup>.  
P bona port<sup>r</sup>.

Released the  
5<sup>th</sup> June, 1644.

John Irish is to haue his xxv acres of land, due for his ſervice, mad vp by Duxborrow men, because it is agreed vpon formlly that ſuch ſervantℓ as are to haue landℓ by their couenantℓ at the expiraçõ of their terme are to be puided for in the townes where they liue or are receiued as inhabitantℓ; but if it cannot be there had, then to make it knowne to the Gouvern<sup>r</sup> & Assist-antℓ, that they be puided for elſwhere.

Vpon heareing of the difference betwixt Wiltm Hatch, of Scittuate, & his ſervant Hercules, for the terme he ſhould ſerue him, whether ſix or ſeaunen yeares, the Court, haueing heard the euedencℓ on both ſides, do order that the ſaid Hercules is to ſerue the ſaid Wiltm ſix yeares, w<sup>ch</sup> wilbe vntill the third day of July next, & then to be free from him.

\*Concerning the difference betwixt James Skiffe & Samuell Jenney for the ſayle, it is ordered by the Court, that the ſaid Samuell Jenney ſhall cauſe the ſaid ſayle to be brought ſpeedyly to the towne; and that Mr Prence, for the ſaid Samuell Jenney, and Georg<sup>e</sup> Watson, for the ſaid James Skiffe, ſhall view and appraiſe the ſame, and to allow what damage ſhalbe thought juſt & equall betwixt them; and that the ſaid James Skiff ſhall haue the ſaid ſayle & the damage to deliſſ to Robte Waterman, w<sup>th</sup> the boate hee hath ſold him.

[\*96.]

It is ordered by the Court, that James Till ſhall dwell two yeares now next enſuing w<sup>th</sup> Mr Tymothy Hatherley, and ſhall haue ſix pounds p añ, and to ſee it beſtowed vpon him for his neceſſary apparell, and to giue an account thereof to the Court, that if any thing thereof remayne, it may be payd to the countrey towardℓ the ſatisfacçõ of his bonds for breach of his good behauior.

1643-4.

5 March.  
BRADFORD,  
Gov.

Whereas Scittuate is presented for not exercising of armes according to the order of the Court, it is ordered, that they shall exercise eight tymes this yeare, according to the act of the Court, and that it shalbe in the liberty of the military officers of that towne to call forth such squadrons or files as hee shall think fitt to be exercised eight tymes ouer more.

It is ordered, that M<sup>r</sup> Wilm Thomas his half bushell shalbe brought to Plym, and to be the standard, and all measures to be made according to yt, vntill a standard can be procured from the Bay.

M<sup>r</sup> Nathaniell Thomas, of Marshfeild, is allowed to be captaine, to trayne the inhabit<sup>s</sup> of Marshfeild in the vse of armes, when he hath taken vp his freedome.

Whereas the Court is informed that M<sup>r</sup> North, called Captaine North, who came oñ this summer, gaue out some speeches tending to sedition & mutyny, viz<sup>t</sup>, that if he had some of them there he would make garters of their gutts, and that as little a while as he had beene here he could haue a hundred men at his comāund, or words to the like effect, w<sup>th</sup> some other vnciuille cariages, the Court, calling the said Cap<sup>t</sup> North before them, tooke knowledg of the acknowledgment of his offence, and w<sup>th</sup>all do require him to remooue himself out of this goument w<sup>th</sup>in a month or two next ensuing, when his occations may best suite for his conuenyency, and in the meane season to carry himself inoffensiue.

[\*97.]

\*Whereas informa<sup>ti</sup>on is giuen to the Court that there is a cowe or a heifer in calue giuen or disposed by M<sup>r</sup> Andrew Hellot, Señ, of Yarmouth, for the benefitt of the poore of the said towne of Yarmouth, which for the ordering thereof was referred to the Court by the said M<sup>r</sup> Hellot, by his letter vnder his hand, beareing date the first day of March, 1643, — the Court doth therefore order that the said cowe or heiffer in calue shalbe on Mayday next deliuered to Thomas Payne, of Yarmouth, who shall haue her for three yeares next ensuing, and the milk and thone half of the increase during that tyme, and after the said three yeares are expired, the poore of Yarmouth shall haue her & thencrease, to be disposed of by the townesmen of Yarmouth from tyme to tyme to other poore persons dwelling in the said towne as they shall think fitt, and for such terme, reserueing the benefitt of the said stock for the benefitt of their poore, and not be alienated to any other use.

The towne of Marshfeild is graunted liberty to haue two constables, one on the other side of the South Riuer.

\*At the Gen<sup>r</sup>all Court of our Sou<sup>r</sup>aigne Lord the Kinge, holden at Plymouth aforesaid, the fift Day of June, in the xx<sup>th</sup> Yeare of his said Ma<sup>ties</sup> now Raigne, of England, &c. 1644.

5 June.  
NEW PLYM.  
WINSLOWE,  
GO<sup>U</sup>NOR.  
[\*99.]

BEFORE Edward Winslowe, gen<sup>t</sup>, Go<sup>U</sup>, Timothy Hatherley,  
Wil<sup>m</sup> Bradford, John Browne,  
Tho<sup>m</sup> Prence, Wil<sup>m</sup> Thomas, and  
Wil<sup>m</sup> Collyer, Edmond Freeman,  
Gentlemen, Assistant<sup>ℓ</sup>, &c.

M<sup>R</sup> EDWARD WINSLOW elected Go<sup>U</sup>nor, and sworne.

|                               |                             |                                                   |
|-------------------------------|-----------------------------|---------------------------------------------------|
| Mr Wil <sup>m</sup> Bradford, | Mr John Browne,             | } elected Assistant <sup>ℓ</sup> ,<br>and sworne. |
| Mr Tho <sup>m</sup> Prence,   | Mr Wil <sup>m</sup> Thomas, |                                                   |
| Mr Wil <sup>m</sup> Collyer,  | Mr Edmond Freeman,          |                                                   |
| Mr Tymothy Hatherley,         |                             |                                                   |

Mr Buckley, Mr Nathaniell Thomas, John Dingley, James Skiffe, Thomas Shillingsworth, John Russell, Wil<sup>m</sup> Halloway, William Hailston, Richard Williams, Mr John Combe, Richard Prichard [were admitted freemen.]

|                          |                           |                                                                |
|--------------------------|---------------------------|----------------------------------------------------------------|
| John Finney, (admitted,) | Thomas Clapp,             | } ppounded to<br>take vp theire<br>freedome the<br>next Court. |
| †Gowen White,†           | †Wil <sup>m</sup> Reade,† |                                                                |
| Richard Wright,          | Francis Goulder,          |                                                                |
| Daniell Cole,            | Edmond Hawes, (admitted,) |                                                                |
| W <sup>m</sup> Crocker,  | Thomas Hinckley,          |                                                                |

The Go<sup>U</sup>nor and Mr John Browne are elected commissioners for this yeare, and to treat w<sup>th</sup> the confederates of the Vnited Collonies.

Plymouth is graunted to haue two constables.

Mr Nathaniell Thomas is allowed to be the captaine for trayneing of the inhabit<sup>s</sup> of Marshfeild in armes.

\*The Grand Inquest.

[\*100.]

|                                   |           |                                                            |           |
|-----------------------------------|-----------|------------------------------------------------------------|-----------|
| Wil <sup>m</sup> Newland,         | } sworne. | Joseph Tilden, ex <sup>p</sup> ju <sup>r</sup> sdition for | } sworne. |
| John Finney,                      |           | misdemeanor amongst them,                                  |           |
| Tho <sup>m</sup> Southworth,      |           | Ro <sup>b</sup> te Boatfish,                               |           |
| Richard Higgens,                  |           | Richard Prichard,                                          |           |
| Ro <sup>b</sup> te Bartlett,      |           | Edmond Hawes,                                              |           |
| Constant Southworth,              |           | Henry Coggen, <sup>o</sup>                                 |           |
| Wil <sup>m</sup> Merick,          |           | Tho <sup>m</sup> Hinckley,                                 |           |
| John Tisdale,                     |           | Wil <sup>m</sup> Hailstone, <sup>o</sup>                   |           |
| Tho <sup>m</sup> Robinson, sworne |           | Wil <sup>m</sup> Brooke.                                   |           |
| in March Court,                   |           |                                                            |           |

1644.

5 June.

WINSLOWE,  
GOVERNOR.

The Constables of eich Towne sworne this Courte.

|                      |                |                    |
|----------------------|----------------|--------------------|
| Plymouth, . . . .    | James Cole,    | John Jenkins, Señ. |
| Scittuate, . . . .   | Wiltm Reade,   | Gowen White.       |
| Yarmouth, . . . .    | Thoñ Howes,    | not sworne.        |
| Taunton, . . . .     | James Wiat.    |                    |
| Duxborrow, . . . .   | Thomas Bonney. |                    |
| Sandwich, . . . .    | Joseph Holly.  |                    |
| Barnestable, . . . . | Wiltm Crocker. |                    |
| Marshfeild, . . . .  | John Dingley.  |                    |

Comittees for eich Towne.

|                      |                                                                                                                                                             |                                                                                                |
|----------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------|
| Plymouth, . . . .    | $\left\{ \begin{array}{l} \text{Mr } \text{W}^m \text{ Paddy,} \\ \text{‡John Done,} \\ \text{‡John Winslowe,} \\ \text{John Dunhame,} \end{array} \right.$ | $\left\{ \begin{array}{l} \text{Manasseth Kempton,} \\ \text{John Cooke.} \end{array} \right.$ |
| Scittuate, . . . .   | John Williams,                                                                                                                                              | Humfrey Turner.                                                                                |
| Yarmouth, . . . .    | $\left\{ \begin{array}{l} \text{Mr Anthony Thacher,} \\ \text{‡Mr Wiltm Palmer,} \end{array} \right.$                                                       | $\left\{ \begin{array}{l} \text{‡Job Cole.} \\ \text{‡} \end{array} \right.$                   |
| Taunton, . . . .     | ^                                                                                                                                                           |                                                                                                |
| Duxborrow, . . . .   | Mr John Alden,                                                                                                                                              | Jonathan Brewster.                                                                             |
| Sandwich, . . . .    | Thoñ Tupper,                                                                                                                                                | James Skiffe.                                                                                  |
| Barnestable, . . . . | $\left\{ \begin{array}{l} \text{Anthony Annable,} \\ \text{‡Henry Bourne,} \end{array} \right.$                                                             | Henry Cobb.                                                                                    |
| Marshfeild, . . . .  | Kenelme Winslow,                                                                                                                                            | Robte Waterman.                                                                                |

The action depending betwixt Henry Coggen, ptiffe, & Robert Waterman, deffen<sup>t</sup>, for a cannow, is, by consent of both parties, referred to Anthony Thacher and Mr Thomas Dimmack, to be ended by them.

Thomas Hinckley & Henry Coggen tooke the oath of fidellyty.

[\*101.]

\*Surveyors for the Heigh Wayes in eich Towne this yeare.

|                      |                                                                                                                                                                                          |                |
|----------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------|
| Plymouth, . . . .    | $\left\{ \begin{array}{l} \text{John Barnes,} \\ \text{Thoñ Southworth,} \\ \text{Thoñ Clarke for the Eele Riuer, and} \\ \text{John Shawe, Señ, for Joanes Riuer.} \end{array} \right.$ | for the towne, |
| Duxborrow, . . . .   | John Rogers & Wiltm Sherman.                                                                                                                                                             |                |
| Scittuate, . . . .   | Henry Meritt & Thomas Raulins.                                                                                                                                                           |                |
| Sandwich, . . . .    | Richard Chadwell & Thomas Boardman.                                                                                                                                                      |                |
| Barnestable, . . . . | Mr Thoñ Allen and Samuell Hinckley.                                                                                                                                                      |                |

Yarmouth, . . . . Mr Anthony Thacher & Heugh Hillier.  
 Taunton, . . . . James Wyatt.  
 Marshfeild, . . . . ^

1644.

5 June.  
 WINSLOWE,  
 GOVERNOR.

It is ordered by the Court, that Mr John Crow, for Yarmouth, & Mr Tho<sup>m</sup> Dimmack, for Barnestable, shall assist Mr Edmond Freeman in keeping the Court & decideing the causes & suit<sup>l</sup> in Sandwich, Barnestable, and Yarmouth, not aboue ^ .

Eres of administrac<sup>o</sup>n of all the goods and cattells of Mr Wil<sup>m</sup> Brewster, deceased, are graunted by the Court to Jonathan Brewster and Loue Brewster, and a true inventory thereof was exhibited to the Court vpon the oathes of the said Jonathan & Loue.

It is ordered by the Court, that Manasseth Kempton, Edward Banges, & Rob<sup>t</sup>e Bartlett, or any two of them, shall price the two oxen of Wil<sup>m</sup> Powells, reco<sup>l</sup>ed by due course of law by Thomas Clarke and Clement Campion, John Barnes beinge Campions attorney, and the surplusage of the ox<sup>e</sup> w<sup>ch</sup> Tho<sup>m</sup> Clarke reco<sup>l</sup>ed to be payd to Campions use, w<sup>th</sup> th<sup>o</sup>ther ox<sup>e</sup>, as they are prised.

Mr Anthony Thacher is lycensed to draw wine at Yarmouth.

Henry Cobb is lycensed to draw wine at Barnestable.

W<sup>m</sup> Parker is lycensed to draw wine at Taunton.

† Wil<sup>m</sup> Newland is lycensed to draw wine at Sandwich. ‡

Edmond Eddenden is lycensed to draw wine at Scittuate.

Mr Tymothy Hatherley is authorized by the Court to take the oathes of the witness<sup>s</sup> for Edward Forsters will, and the executrix<sup>s</sup> her oath to the inventory, and to returne them to the Court, that they may be recorded.

\* Wil<sup>m</sup> Shertcliffe, for breaking the peace vpon John Smyth, is fyned v<sup>s</sup>. [\*101<sup>a</sup>.]

Samuell Jenney, for strikeing of Tho<sup>m</sup> Dunhame, is fyned iiij<sup>s</sup> iiij<sup>d</sup>.

Thomas Dunhame, for challenging Samuell Jenney to fight w<sup>th</sup> him, and came to his bed side to do it, & c, is fyned x<sup>s</sup>.

Peter Hambrow, for stealeinge a shirt of John Presburies, is censured to be whipt at the post, w<sup>ch</sup> was accordingly donn.

Charles Thurstone, for abuseing his m<sup>rs</sup>, & c, is censured to bee whipt at the post. Vppon a peti<sup>o</sup>n exhibited by the yeong men of Plym, it was remitted vpon tryall of his good carryage vntill the next Court.



1644. *At a Court of Assistant℥ holden at Plym, the third of July, in the xx<sup>th</sup> Yeare of the now Raigne of our Sou'aigne Lord, King Charles, of England, &c.*

3 July.  
NEW PLYM.  
WINSLOW,  
Gov.

BEFORE Edward Winslow, gen<sup>t</sup>, Gov<sup>r</sup>, Timothy Hatherley,  
Wil<sup>m</sup> Bradford, John Browne, and  
Thomas Prence, Wil<sup>m</sup> Thomas,  
Wil<sup>m</sup> Collyer,  
Gen<sup>t</sup>, Assist<sup>t</sup>, &c.

Released.

Wil<sup>m</sup> Maycumber, of Duxborrow, coop, acknowledgth to owe } x<sup>li</sup>.  
o<sup>r</sup> sou'aigne lord the King . . . . . }  
Kenelme Winslow, of Marshfeild, plant, . . . . . x<sup>li</sup>.  
To be levy<sup>d</sup>, &c.

The condiçon, that if Wil<sup>m</sup> Maycumber do appeare at the next Gen<sup>l</sup>all Court of o<sup>r</sup> said sou'aigne lord the King, &c, to answere to all such matters as on his said ma<sup>ts</sup> behalf shalbe objected against him conðning word℥ spoken against the natiues, tending to the breach of the league betwixt us, &c, and not deþt the Court w<sup>th</sup>out lycence, but abide the further order of the Court; that then, &c.

20 August. \**At a Gen<sup>r</sup>all Court of o<sup>r</sup> Sou'aigne Lord the King, holden at Plym*  
NEW PLYM. *aforesaid, the xx<sup>th</sup> of August, in the xx<sup>th</sup> Yeare of his said Ma<sup>ts</sup>*  
[\*101<sup>b</sup>.] *now Raigne, of England, &c.*

BEFORE Edward Winslowe, gen<sup>t</sup>, Gov<sup>r</sup>, Timothy Hatherly,  
Wil<sup>m</sup> Bradford, John Browne,  
Thomas Prence, Edmond Freeman, &  
Wil<sup>m</sup> Collyer, W<sup>m</sup> Thomas,  
Gentlemen, Assistant℥, &c.

The Com<sup>it</sup>tees for the sefall Towneshippis.

Plymouth, . . . { Mr W<sup>m</sup> Paddy, Manasseth Kempton,  
John Dunhame, John Cooke.  
Scituate, . . . . Humfrey Turner, John Williams.  
Taunton, . . . . Cap<sup>t</sup> W<sup>m</sup> Poole.  
Yarmouth, . . . Mr Anthony Thacher, James Mathews, absent.

|                    |                              |                        |                                |
|--------------------|------------------------------|------------------------|--------------------------------|
| Duxborrow, . . .   | Mr John Alden,               | Jonathan Brewster.     | 1644.                          |
| Sandwich, . . .    | George Allen,                | Thom Burges.           | 20 August.<br>WINSLOW,<br>Gov. |
| Barnestable, . . . | Anthony Annable,             | Henry Bourne.          |                                |
| Marshfeild, . . .  | ¶ <sup>Kenelm</sup> Winslow, | Robt Waterman, absent. |                                |

Captaine Miles Standish & Mr Wil<sup>m</sup> Bradford depost to the last will & testament of Mr Steephon Hopkins, deceased. Caleb Hopkins, constituted execut<sup>r</sup> thereof, exhibited an inventory ^ all his goods & cattells vpon his oath.

Mr Tymothy Hatherley, Richard Sillis, Edmond Eddenden depost by order of Court to the last will & testament of Edward Foster, and a true inventory exhibited vpon their oaths this Court.

John Finney admitted a freeman this Court, & was sworne.

Mr John Groomes, }  
Joseph Holly, } pposed to be freemen.

Wil<sup>m</sup> Maycumb<sup>r</sup>, of Duxborrow, coop, . . . . . xl<sup>li</sup>,      Respited.  
Samuell Nash, of the same, plan<sup>t</sup>, . . . . . xx<sup>li</sup>.      Released.

The condi<sup>o</sup>n, that Wil<sup>m</sup> Maycumb<sup>b</sup> shalbe of the good behaiou<sup>r</sup> toward<sup>e</sup> our so<sup>l</sup>aigne lord the King, & all his leigh people, and appeare here at the next Ge<sup>n</sup>all Court, &c ; that, &c.

\*Attachment<sup>e</sup> are to be sent forth to bring in the bodys of George Massy, [\*102.]  
John Maycumber, Thomas Coggen, & Jacob Wilson, for non app<sup>a</sup>rance this Court, for making the allarum at Taunton.

A warrant to be sent forth to bring in the bodies of Jonathan Fish and Mary, his wyfe, Nathaniell Fish, Jane, the wyfe of Mr Wil<sup>m</sup> Wood, Rose, the wyfe of Joseph Holly, ^ , the wyfe of Richard Kerby, ^ , the wyfe of Michael Turner, & Joane Swyft, widdow, to giue euedence in John Ellis & his wifes case.

Mr John Howland and John Cooke for Plymouth, Joseph Rogers and John Rogers for Duxborrow, are appoynted to lay forth the heigh way p<sup>s</sup>ented by Mr Bradford<sup>e</sup> farme into the Bay, and to be donn forthw<sup>th</sup>, and if they cannot agree, then to choose a fift man to them.

It is ordered by the Court, that Mr Done and the rest of that jury, for laying forth the heigh wayes to the Eele Riuer, shall giue in their verdict the first Tewsd<sup>a</sup>y in October, that they may be repaired that want mending before winter.

Robt Boatfish is lycensed to draw wyne at Sandwich ; and when he is at any tyme w<sup>th</sup>out, it shalbe lawfull for Wil<sup>m</sup> Newland to sell wyne to p<sup>s</sup>ons for their neede.

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M<sup>r</sup> John Groome & Joseph Tilden tooke the oath of fidellity this Court. M<sup>rs</sup> Jenney, vpon the p<sup>s</sup>entment ag<sup>st</sup> her, p<sup>r</sup>miseth to amend the grinding at the mill, and to keepe the morters cleane, and baggs of corne from spoyleing and looseing.

Georg<sup>e</sup> Allen, of Sandwich, is lycensed to cutt hey at the pond<sup>l</sup> beyond Sandwich Playnes, so he giue not the Indians any thinge for yt w<sup>th</sup>out approba<sup>o</sup>n of the Bench.

Captaine Standish elected Treasurer.

M<sup>r</sup> Anthony Thacher, M<sup>r</sup> Thomas Howes, & M<sup>r</sup> Wiltm Lumpkin, of Yarmouth, or any two of them, are appoynted by the Court to lay forth the farme land graunted to Natha<sup>l</sup> Sowther neere Billingsgate; and the Court confirmes the same vnto him.

[\*103.]

\*Vpon the peti<sup>o</sup>n of Duxborrow men, it is thought good by the Court that there be a view taken of the land<sup>l</sup> desired by them, namely, xij miles vp into the woods from Plymouth bound<sup>l</sup> at Joanes Riuer, and if it proue not p<sup>r</sup>judiciall to the planta<sup>o</sup>n to be erected at Teightaquid, nor to the meddowes of Plymouth at Winnytuckquett, it may be confirmed vnto them, provided alwayes that the Hering or Alewyfe Riuer at Namassachusett shalbe equally betwixt the two townes of Duxborrow and Marshfeild.

M<sup>r</sup> Thomas Robinson, of Scittuate, for non app<sup>r</sup>arance this Court, to serue vpon the grand inquest, is fyned xx<sup>s</sup>. Remitted the 3<sup>d</sup> of March, in regard that it appeared

10 October.

Memorand<sup>l</sup>, the tenth of October, 1644: that whereas M<sup>r</sup> John Doane had some tyme since xv<sup>th</sup>, the childs por<sup>o</sup>n of Mary Browne, whom he was to keepe and bring vp vntill shee should accomplish the age of seaventeene yeares, and should haue the use of the said p<sup>o</sup>n vntill then — now, the said terme being expired, the said John Doane hath deli<sup>u</sup>ed, w<sup>th</sup> the consent of the said Mary Browne, and by order of the Court, vnto John Browne, of Duxborrow, two coves at xiiij<sup>th</sup>, and fourty shillings in swyne and wheate, and is by the Court discharged of the said xv<sup>th</sup>; and the said John Browne is to keepe the said two coves and their encrease for their milk, w<sup>th</sup> the rest of the stock as afore<sup>s</sup>d, vntill the said Mary shalbe marryed, or thought fitt to marry, wherevnto the said Mary hath consented.

4 November.

The fourth Novemb<sup>r</sup>, 1644. Memorand<sup>l</sup>: that James Adams doth acknowledg<sup>e</sup> that he hath receiued fourty pound<sup>l</sup> of M<sup>r</sup> Tymothy Hatherley, of Scittuate, for the vse of M<sup>r</sup> James Shurley, of London, merchant, according to the said M<sup>r</sup> Shurleys appoyntment, by his writing vnder his hand; and the said James Adams doth verily beleue that the said fourty pounds is payd for the said M<sup>r</sup> Shurleys share of land lying at Scittuate, w<sup>ch</sup> the said M<sup>r</sup> Hatherley bought of the said M<sup>r</sup> Shurley.

*\*.At a Court of Assistant℥ holden at Plym̃ aforesaid, the fift Day of Nouembꝛ, in the xx<sup>th</sup> Yeare of the now Raigne of oꝝ Sou- aigne Lord, Charles, by the Grace of God King of England, Scotland, Franc, and Ireland, Defendor of the Fayth, &c.*

1644.

5 November.  
NEW PLYM.  
WINSLOW,  
Goꝝ.

[\*105.]

BEFORE Edward Winslowe, gen<sup>t</sup>, Goũnor, Timothy Hatherly, and  
Wilm Bradford, Wilm Thomas,  
Thomas Prence,  
Gentlemē, Assistant℥, &c.

**J**OSEPH PRYOR, now dwelling w<sup>th</sup> John Rogers, of Duxborrow, not yet fully xxj<sup>tie</sup> yeares of age, chooseth M<sup>r</sup> Timothy Hatherley to bee his guardian vntill he shall accomplish the age of xxj<sup>tie</sup> yeares; and whereas he had comēced an action against Daniell Pryor & Mary, his wyfe, for a legacy of fine pound℥, w<sup>ch</sup> was bequeathed him by his father, deceased, and is now in the hand℥ of the said Daniell Pryor and Mary, his wyfe, whereof the said Joseph hath receiued twelue shillings, and thother foure pound℥ & eight shillings is put into M<sup>r</sup> Hatherley his said guardians hand℥, to be payd the said Joseph when he shall accomplish his said age; and the said Daniell Pryor and Mary, his wyfe, are thereof discharged from payment of the said legacy hereafter, this being so ordered by the Court, w<sup>th</sup> consent of all p<sup>t</sup>ies.

Whereas there was a suite comēced by Arthur Howland against Rob<sup>te</sup> Mendame for the sum of six pound℥, for goods w<sup>ch</sup> the said Rob<sup>te</sup> Mendams wyfe brought for the said Arthur Howland out of England, and did not deliū them, but sould them, and conuerted the money to her owne use, as was proued in the Court; and whereas the said Rob<sup>te</sup> Mendame hath authorized Thomas Clarke, of the Eele Riuer, to sell a p<sup>c</sup>cell of land the said Rob<sup>te</sup> Mendam hath at Duxborrow, viz<sup>t</sup>, tenn acres of vpland, and two acres of meddow, the w<sup>ch</sup> the said Thomas Clark had p<sup>f</sup>ormed for him, and made sale thereof vnto Wilm Hiller, of Duxborrow, for one Dutch cowe, valued at six pound℥, and hath confirmed the same vnto the said Wilm Hiller, his heires and assignes foref<sup>r</sup>, by quiet and peaceable liuery and seisin by twigg & turffe of the p<sup>m</sup>isses, as appeareth by the oathes of Phillip Delanoy and Thomas Chillingsworth, the same being donn in their p<sup>s</sup>ence; and that the said Arthur Howland comēced his suite as aforesaid by attaching the said cowe; and vpon tryall the jury found the said six pound℥ due to the said p<sup>t</sup>iff Howland, and the charges of the suite. The Court hath, therefore, graunted judg<sup>nt</sup> and execu<sup>ōn</sup> vpon the said cowe for the said p<sup>t</sup>iff Howland, and do order and confirme

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the said lands, viz<sup>s</sup>, the tenn acres of vpland, & two acres of meddow, w<sup>th</sup> their appurtenc<sup>l</sup>, to be and remayne vnto the said Wiltm Hiller, his heires and assigns fore<sup>u</sup>, according to the said bargaine and sale made thereof vnto him by Thomas Clarke: to haue and to hold the said tenn acres of vpland and two acres of meddow, w<sup>th</sup> their appurtenc<sup>l</sup>, vnto the said Wiltm Hiller, his heires and assigns fore<sup>u</sup>, and to their onely p<sup>er</sup> use and behoofe fore<sup>u</sup>, provided it shalbe lawfull for the said Robt Mendam to bringe the suite about againe at any tyme w<sup>th</sup>in a yeare and a day now next ensuing if he please.

5 November.

[\*106.]

\*The fift of Novemb<sup>r</sup>, 1644. Memorand: that Thomas Bunting, dwelling w<sup>th</sup> Phineas Pratt, hath, w<sup>th</sup> and by the consent of the said Phineas, put himself as a servant to dwell w<sup>th</sup> John Cooke, Jun<sup>r</sup>, from the fifteenth day of this instant Novemb<sup>r</sup>, for and during the terme of eight yeares now next ensuing, and fully to be compleate and ended, the said John Cooke fynding vnto his said servant meate, drink, and apparell during the said terme, and in thend thereof double to apparell him throughout, and to pay him twelue bushells of Indian corne, the said John Cooke haueing payd the said Phineas for him one melch cowe, valued at v<sup>li</sup>, and fourty shillings in money, and is to lead the said Phineas two loades of hey yearely during the terme of seauen yeares now next ensuinge.

21 November.

The xxj<sup>th</sup> of Novemb<sup>r</sup>, 1644. Whereas M<sup>r</sup> Wiltm Hanbury hath farmed out his house and lands lying at Joanes Riuer, w<sup>ch</sup> he purchased of M<sup>r</sup> John Browne, vnto Francis Goole, and had w<sup>th</sup>all letten a stock of vj drawing beast<sup>l</sup> and two coves and a horse, w<sup>th</sup> plowes, yeokes, cheanes, and weane, &c; and that the said Francis neglected his businesse, so as he was vnlikely to pay the rent, but p<sup>er</sup>ferred to sell p<sup>rt</sup> of the stock, and diuers other thinges w<sup>ch</sup> were in difference, and allegated on both sides before the Go<sup>u</sup>n<sup>r</sup>; and in regard the said Francis could not giue the said W<sup>m</sup> Hanbury securty for his said stock, it is ordered and concluded vpon by consent of both p<sup>ties</sup>, that the said Francis shall yeild vp peacable possession of the said farme and cattell, and all the rest of the said goods vnto the said Wiltm Hanbury againe; and all the articles, couenant<sup>l</sup>, and agreements made betweene them concerneing the said p<sup>misses</sup> to be immediately cancelled and made voyde to all intent<sup>l</sup> and purposes.

James Cole vndertooke to pay xxij<sup>s</sup> for the said Francis Goole, vnto the said Wiltm Hanbury, before the Go<sup>u</sup> & Nathl Sowther.

21 November.

The xxj<sup>th</sup> Novemb<sup>r</sup>, 1644. Memorand: that whereas Francis Billington is endebted vnto Caleb Hopkins, as executor vnto M<sup>r</sup> Steeven Hopkins, his naturall father, deceased, the sum of three pound<sup>l</sup> ster<sup>t</sup>, in considera<sup>co</sup>n that the said Caleb Hopkins shall forbear the said Francis Billington the said three

pounds vntill the first of December come twelue months, the said Francis Billington assigneth, mortgageth, and maketh ouer vnto the said Caleb Hopkins, for the securing of the said debt of three pound℥, one blacke cowe now in the hand℥ of the said Francis, not to be sold or alliened any wayes to any man vntill the said debt of three pound℥ be satisfied vnto the said Caleb Hopkins, or his assignes.

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21 November.  
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Goð.

\*John Gorome and Desire Howland married.

[\*107.]

Richard Wright and Hester Cooke married the

Stephen Wood and Abigall Dunhame married the vj<sup>th</sup> Novemb<sup>r</sup>, 1644.

6 November.

Ephraim Morton & Ann Coop married the xvij<sup>th</sup> Novemb<sup>r</sup>, 1644.

18 November.

Richard Bushop and Alis Clark married the v<sup>th</sup> Decemb<sup>r</sup>, 1644.

5 December.

John Churchall and Hannah Pontus married the xvij<sup>th</sup> Decemb<sup>r</sup>, 1644.

18 December.

Georg Bonum and Sarah Morton married the xx<sup>th</sup> Decemb<sup>r</sup>, 1644.

20 December.

Henry Wood & Abigall Jenney, the xxvij<sup>th</sup> Aprill, 1644.

28 April.

John Carew and Elizabeth married the June, 1644.

June.

Wilhm Paybody and Elizabeth Alden married the xxvj<sup>th</sup> Decemb<sup>r</sup>, 1644.

26 December.

Ephraim Kempton and Rauline married the

\**At a Court of Assistant℥ holden at Plym afores<sup>d</sup>, the vij<sup>th</sup> Day of January, in the xx<sup>th</sup> Yeare of his said Ma<sup>ties</sup> now Raigne, of England, &c.*

7 January.  
NEW PLYM.

[\*109.]

BEFORE Edward Winslow, gen<sup>t</sup>, Goð, Thoñ Prence, and  
Wilhm Bradford, Wilhm Collyer,  
Gentlemen, Assistant℥, &c.

**F**RANCIS GOOLE complained ag<sup>st</sup> John Shawe, Juñ, in an action of trespass, vpon the case to the dañ of xxj<sup>s</sup>; the debt was prooued to be xv<sup>s</sup> & viij<sup>d</sup>, whereof there remaned vnpayd iij<sup>s</sup> iiij<sup>d</sup>, and the charges of the suite iij<sup>s</sup> ij<sup>d</sup>. The Court doth award the said John Shawe to pay the said pñtiff Goole vj<sup>s</sup> vj<sup>d</sup>.

Samuell Eaton deposed that his meaneing was to confirme the acre of land M<sup>r</sup> W<sup>m</sup> Brewster bought of his mother vnto Loue Brewster. See the great booke where it is entred one against another at large.

Whereas M<sup>r</sup> John Done is lycensed to draw wyne in Plymouth, and that James Cole is likewise lycensed to keepe the ordinary there, w<sup>ch</sup> is very

1644-5. inconvenyent to many passengers, the Court hath, therefore, lycenced the said James Cole from this day forward to draw wyne, if he shall agree w<sup>th</sup> M<sup>r</sup> Done to take off those wynees hee now hath in his hands. Agreement was after made betwixt them.

7 January.  
WYNSLOW,  
Gov.

16 January. January xvj<sup>th</sup>, 1644. Wil<sup>m</sup> Perry, of Scittuate, plant, acknowl- }  
edgeth to owe o<sup>r</sup> so<sup>l</sup>aigne lord the King, to be levyed, &c, }<sup>xli</sup>.

Respited.  
This respited  
vntill she is  
able to come.

The condi<sup>ti</sup>on, &c, that if Susanna, his wyfe, shall & doe make her psonall appearean<sup>ce</sup> at the next Gen<sup>l</sup>all Court of o<sup>r</sup> said so<sup>l</sup>aigne lord the King, at Ply<sup>m</sup>, to answe<sup>r</sup> to all such matters as on his said ma<sup>s</sup> behalf shalbe objected against her, con<sup>ce</sup>ning the spoyleing & defileing of a well of water in Scittuate, and abide the order of the Court, and not de<sup>sp</sup>t the same w<sup>th</sup>out lycence, &c; that then, &c.

3 March.

\*Anthony Annable and Ann Elcock marryed the third of March, 1644.

[\*110.]

Thomas Boreman, of Barnestable, & Hannah Annable, marryed the third of March, 1644.

3 March.  
NEW PLYM.  
[\*111.]

\**At the Gen<sup>l</sup>all Court of o<sup>r</sup> Sou<sup>er</sup>aigne the King, holden at Ply<sup>m</sup> afore-  
said, the third Day of March, in the xx<sup>th</sup> Yeare of the now  
Raigne of our said Sou<sup>er</sup>aigne Lord, Charles, by the Grace of  
God King of England, Scotland, France, & Ireland, Defendor  
of the Fayth, &c.*

BEFORE Edward Winslowe, gen<sup>t</sup>, Gov,  
Wil<sup>m</sup> Bradford,  
Thomas Prence,

Wil<sup>m</sup> Collyer, and  
Wil<sup>m</sup> Thomas,

Assistant<sup>l</sup>, &c.

**T**HOMAS ROBINSON, of Scittuate, tooke the oath of fidelity, &c, this Court.

Thomas Heyward deposeth that James Torey did affirme vnto him that John Amees did come out of England for stealeing of a calf; and the said Thom<sup>as</sup> Heyward further enquireing of the said Torey of the said matter, the said Torey answered him that it was so co<sup>m</sup>only reported in the shipp that they came ouer together in; and further deposeth, that since he haueing spoken w<sup>th</sup> the said Torey about the said matter, the said Torey said that hee made no question but he could proue what he had sayd.

Edmond Hawes, of Yarmouth, admitted freeman this Court, & sworne.

It is ordered by the Court, that the goods of Georg̃ More, attached by Thomas Rickerd and John Rogers, shalbe sold to the best advantage, and the money due to them for his keepeing to be payd them as farr as it will extend ; *and* & if there be any ouerplus, it be payd for his further mayntenance.

1644-5.  
3 March.  
WYNSLOW,  
GOVN<sup>R</sup>.

It is ordered and enacted by the Court, that whereas by an act of the Court, made the vj<sup>th</sup> of May, 1639, M<sup>r</sup> Richard Callicutt was either to come in pson and inhabite at Mattacheese, now called Barnestable, by June Court next following, or el̃s the graunt to be voyde, the w<sup>ch</sup> hee hath altogether fayled in, and neſu vnto this day came there in pson to inhabite, it is therefore concluded and enacted by the Court, that all such lands in Barnestable as he hath there taken vp, or belong & appertaine vnto the said Richard Callicutt shalbe p̃sently ceased by the constable there to the colonies use ; and that Captaine Standish, now Treasurer, shall sell and ymproue the moneys gotten or comeing of them to the collonies use.

|                                         |   |                                                                |                 |
|-----------------------------------------|---|----------------------------------------------------------------|-----------------|
| Released. James Shawe,                  | { | are bound one for another in x <sup>li</sup> a peece for their | James Shaw      |
| Released. John Shawe, Ju <sup>r</sup> , |   | app̃arences at the next Ge <sup>n</sup> all Court, &c, and to  | released.       |
| Released. Francis Billington,           |   | abide the further order of the Court, and not deſt             | John Shaw       |
| Discharged. Charles Thurston,           |   | the same w <sup>th</sup> out lycence, and in the meane tyme to | released.       |
| Discharged. Samu <sup>el</sup> Cutbert, | { | be of the good behauior toward℥ o <sup>r</sup> soſaigne lord   | Francis Bil-    |
|                                         |   | the King & all his leigh people ; that then, &c.               | lington re-     |
|                                         |   |                                                                | leased.         |
|                                         |   |                                                                | Charles Thurs-  |
| George Crispe,                          | { | x <sup>li</sup> a peece for Georg̃ Crispe vpon the same condi- | ton discharged. |
| Rob <sup>t</sup> e Wickson,             |   | tiōn, p̃ bona port̃.                                           | Sam. Cutberd    |
| Steeven Bryan,                          | { | x <sup>li</sup> a peece for the s̃d Steven Bryan vpon the same | discharged.     |
| Edward Dotey,                           |   | conditiōn, p̃ bona port̃.                                      | Released.       |
| *John Tompson,                          | { | bound in tenn pound℥ a peece vpon the same con-                | Released.       |
| James Hurst,                            |   | diōn. Default p̃sently made of this recog <sup>n</sup> .       | [*112.]         |
| John Tompson,                           | { | bound in x <sup>li</sup> a peece vpon the same condiōn, p̃     | Released.       |
| Thomas Willett,                         |   | bona port̃, for John Tompson.                                  |                 |
| John Shawe, Sen.,                       | { | bound in x <sup>li</sup> a peece vpon the same condiōn, p̃     | Released.       |
| James Cole,                             |   | bona port̃, for John Shawe.                                    |                 |

The Court doth graunt vnto the church of New Plymouth, or those that goe to dwell at Nossett, all that tract of land lying betweene sea and sea, from the Purchasors bounds at Naumskeckett to the Hering Brooke at Billingsgate, w<sup>th</sup> the said Hering Brook and all the meddowes on both sides the said brooke, w<sup>th</sup> the great Basse Pound there, and all the meddowes and ilands lying w<sup>th</sup>in the said tract.

It is ordered by the Court, that M<sup>r</sup> Thomas Starr shall haue p̃sently layd forth for him at Yarmouth fifty acres of vpland, either next to Elder Hores or M<sup>r</sup> Howes land℥ at Seshewit, on w<sup>ch</sup> side he will, so that it adjoyne to one



1644-5. of them, and six acres of meddowe lying in Nobscusset Meddowes, (late Wilhm Nicholsons,) and foure acres more of meddow on the south side of the plantaçõn towards the South Sea. And the Court doth further order, that if the cõmittees of Yarmouth do not w<sup>th</sup> all convenyent speede lay it forth, that then M<sup>r</sup> Thacher shall do it himself, he paying for the laying of it forth as other men doe.

3 March.  
WYNSLOW,  
Gov.

Whereas a motion is made this Court for a geñall trade w<sup>th</sup> the other gouernment<sup>l</sup> in confederacõn w<sup>th</sup> vs, wee do thankfully acknowledg<sup>e</sup> their loue and respect to vs therein; but we conceiue such a disproportion in our estates to theirs, and so many thousands required therein, the w<sup>ch</sup> wee are not able to reach vnto, and w<sup>th</sup>all are very doubtfull whether it may conduce to such a geñall good and answeare the ends w<sup>ch</sup> are expected, we cannot concurr w<sup>th</sup> the rest of the goũment<sup>l</sup> to adventure an estate therein.

It is ordered, that M<sup>r</sup> Miles Standish, M<sup>r</sup> John Done, & John Dunhame shall take the account<sup>l</sup> of M<sup>r</sup> Thomas Prencce for his treasurership of his receipts and payment<sup>l</sup>, and certefye the Court thereof.

[\*113.] \*Informacõn was giuen vnto the Court, by M<sup>r</sup> Browne, that John Gilbert, Jun<sup>i</sup>, of Taunton, was vehemently suspected of felony for diuers thinges, and, obtayneing leaue to go for England, made ouer his estate in Taunton & elſewhere, amounting to the sum of 40<sup>li</sup>, or thereabout<sup>l</sup>, vnto Nathaniell Sowther, for and on the behalf of the goũment of New Plymouth, for saueing this goũment harmelesse conẽning such thinges as might or may be objected against him for or concerneing any matter or thing of such like nature, and for the answeering of all such matters the next Court, or elſ the next Geñall Court after his returne out of England, to answeare in his owne p<sup>erson</sup>, w<sup>ch</sup> is to be in two yeares next ensuing.

1645. The third of Aprill, 1645.

3 April.

Memorand: that Samuell Eddy hath put his sonn, John Eddy, to dwell w<sup>th</sup> Francis Goulder, and Katherne, his wyfe, vntill he shall accomplish the age of xxj<sup>tie</sup> yeares, (being seaven yeares of age the xxv<sup>th</sup> of December last past,) the said Francis, and Katherne, his wyfe, fynding vnto the said John, their servant, meat, drink, and apparell during the said terme, and either in the end thereof, or elſ at the day of the death of the said Francis, or of the said Katherne, his wyfe, whether shall last happen, to pay him fīue pounds in countrey pay; or, if it please God so to disable the said Francis, or Katherne, his wyfe, that they shall not be then able to pay so much, then to pay him so much as I shall haue left: And if it happen that both the said Francis, and Katherne, his wyfe, shall dye before thēde of the said terme, that then the said John shalbe at liberty to be disposed of as his p<sup>re</sup>sent<sup>l</sup> shall thinke fitt;

but if either of them doe live out the said terme, then the said John to dwell w<sup>th</sup> the longer liuer of them vntill he shall accomplish the age of xxj<sup>th</sup> yeares, as aforesaid.

1645.

3 April.  
WYNSLOW,  
Gov.

*\*At the Gen<sup>all</sup> Court holden at Plymouth, the iij<sup>th</sup> of June, in the xxj<sup>th</sup> Yeare of his Ma<sup>ty</sup> now Raigne, of England, &c.*

4 June.  
NEW PLYM.  
BRADFORD,  
Gov.

[\*114.]

**M<sup>R</sup> W<sup>M</sup> BRADFORD** elected Gov<sup>n</sup>or, and sworne.

|                       |                                  |
|-----------------------|----------------------------------|
| Mr Edward Winslowe,   | } chosen Assistants, and sworne. |
| Mr Thomas Prence,     |                                  |
| Mr William Collyer,   |                                  |
| Mr Myles Standish,    |                                  |
| Mr Tymothy Hatherley, |                                  |
| Mr John Browne,       |                                  |
| Mr Edmond Freeman,    |                                  |

Mr Thomas Prence and Mr John Browne chosen com<sup>is</sup>sioners for this yeare, to treat<sup>e</sup> w<sup>th</sup> the com<sup>is</sup>sioners of the Vnited Colonies, according to the articles of the confederac<sup>o</sup>n, at the tyme & place appoynted, &c.

It is ordered by the Court, that the Gov<sup>n</sup>or and Assistant<sup>l</sup> shall giue the two com<sup>is</sup>sioners aboue named instruc<sup>o</sup>ns about the occations they shall deale in and agitate w<sup>th</sup> them about; and that the Treasurer, Mr Alden, and Mr Paddy shall giue money and horses for the defraying of their charges & the charges of their servant<sup>l</sup> for that journey, &c.

The constables chosen by the se<sup>l</sup>all towneship, & p<sup>re</sup>sented to this Court and sworne, are, viz<sup>s</sup>:—

|              |         |                                         |
|--------------|---------|-----------------------------------------|
| Plymouth,    | . . . . | Thomas Pope, Rob <sup>t</sup> e Finney. |
| Duxborrow,   | . . . . | John Tisdale.                           |
| Scittuate,   | . . . . | Thomas Clapp, John Allen.               |
| Sandwich,    | . . . . | Geor <sup>g</sup> e Bewyt.              |
| Rehoboath,   | . . . . | Steeven Payne.                          |
| Taunton,     | . . . . | George Hall.                            |
| Yarmouth,    | . . . . | Richard Templer.                        |
| Barnestable, | . . . . | John Bursley.                           |
| Marshfeild,  | . . . . | John Rowse, Gilbert Brooke.             |

Mr John Gilbert, Junior, of Taunton, was called vpon this Court; but neither hee nor any for him made answere.

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[\*115.]

\*Surveyors of the Heighways.

|                      |                                                                                |
|----------------------|--------------------------------------------------------------------------------|
| Plymouth, . . . .    | { Francis Cooke, M <sup>r</sup> Leigh,<br>Robte Bartlett, and Richard Sparrow. |
| Duxborrow, . . . .   | John Maynard, Edmond Hunt.                                                     |
| Scittuate, . . . .   | John Stockbridg & Walter Woodward.                                             |
| Sandwich, . . . .    | Thomas Burges, Anthony Wright.                                                 |
| Taunton, . . . .     | James Burt.                                                                    |
| Barnestable, . . . . | Abraham Blush, Nathaniell Bacon.                                               |
| Yarmouth, . . . .    | Emanuell White, James Bursell.                                                 |
| Marshfeild, . . . .  | Thomas Chillingworth & Robte Barker.                                           |
| Rehoboth,            |                                                                                |

The Grand Enquest.

|                                       |           |                            |           |
|---------------------------------------|-----------|----------------------------|-----------|
| Gabriell Fallowell,                   | } sworne. | Wil <sup>m</sup> Halloway, | } sworne. |
| Gyles Rickett,                        |           | Thomas Tupper,             |           |
| John Washborne,                       |           | Jonathan Fish,             |           |
| Henry Howland,                        |           | Dolor Davis, (sick,)       |           |
| Wil <sup>m</sup> Brett,               |           | Nathaniel Bacon,           |           |
| (Excused.) Edm <sup>d</sup> Eddenden, |           | Daniell Cole,              |           |
| Thom <sup>s</sup> Ensigne,            |           | Robte Dennis,              |           |
| John Dingley,                         |           |                            |           |

Daniell Cole, Thomas Hinckley, Thomas Clapp, Richard Wright, Steeven Payne, Wil<sup>m</sup> Carpenter, & Georg<sup>e</sup> Hall admitted freemen, and were sworne.

The Names of those p<sup>p</sup>ounded this Court to take vp their Freedome the next Court.

|                                            |                  |
|--------------------------------------------|------------------|
| Nathaniell Bacon, +                        | Thomas Blisse,   |
| Andrew Ring, +                             | Robte Tytus,     |
| Dolor Davis, +                             | William Sabine,  |
| M <sup>r</sup> Samu <sup>l</sup> Newman, + | Abraham Martine, |
| Richard Wright,                            | Richard Bowine,  |
| Walter Palmore, (admitted,)                | Thomas Hitt, +   |
| Robte Martine,                             | Zachary Roades,  |
| Steeven Payne, (admitted,)                 | Edward Smyth,    |
| W <sup>m</sup> Carpenter, (admitted,)      | Peter Hunt,      |
| W <sup>m</sup> Cheesborrough, +            | Joseph Peck,     |
| Allexander Winchester, +                   | Henry Smyth,     |
| Wil <sup>m</sup> Smyth,                    | Thomas Cooper.   |
| Edward Bennett,                            |                  |

\*It was ordered by the Court, that a committee should be elected & authorised for the p̄pareing of some p̄sent lawes for redresse of some p̄sent abuses, and for p̄venting of future, wherevpon these p̄sons following were elected and nominated, viz̄: Mr Wil̄m Collyer, Mr John Browne, Mr John Alden, Mr Wil̄m Paddy, Nathaniell Souther, Jonathan Brewster, Josias Winslow, Edward Case, Edmond Eddenden, Anthony Annable, Richard Burne, Mr Anthony Thacher, Steeven Payne, and Wil̄m Carpenter.

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Whereas Kenelme Winslow complained that he had injustice, in that hee could not be heard in the suite betwixt John Mynard and himself, the Court appoynted a committee to examine and enquire thereinto, and to make report thereof to the Court as they shall fynd the same, viz̄: Captaine Miles Standish, Mr Wil̄m Paddy, Edmond Eddenden, Edward Case, Anthony Annable, Mr Anthony Thacher, and Thomas Tupper, who, vpon due and serious examinaçõn thereof, do report that the sayd charge of injustice is altogether vntrue, and that the Bench and jury are free and cleare of any injustice therein, notw<sup>th</sup>standing of whatsoever the said Kenelme could alleadg̃. And therefore the Court do adjudg̃ him to bee committed to prison during the countreys pleasure and to be fyned x<sup>li</sup>.

Kenelme Winslow was committed to prison and fyned x<sup>li</sup>.

x<sup>li</sup> fine.

Kenelme Winslow, by his petiçõn exhibited to the Court, wherein was sett forth his acknowledgment of his offence and his sorrow for the same, was released of his ymprisonment, and his fyne to stand still for one whole yeare, and vpon his good carryage then to be remitted or el̄s to be estreated.

Remitted  
June 4<sup>th</sup>, 1647.

Whereas, in the case betwixt Ephraim Kempton, Senior, deceased, and Ephraim Kempton, Ju<sup>n</sup>, of Scittuate, it appeared to the Court that the said Ephraim, Ju<sup>r</sup>, and his father laboured together in p̄tnership since their coming ouer into this countrey, and no diuision was made of what they gott, the Court doth order and appoynt Thomas Robinson and Walter Woodward to make an equall diuision of the goods now in p̄tnership betwixt them, and to deliuer thone half thereof vnto the said Ephraim, Junior, as his owne p̄per goods; and the Court doth appoynt the said Ephraim, Ju<sup>n</sup>, to exhibite a true inventory of the estate remayneing to the said Ephraim, Se<sup>n</sup>, unto the next Court of Assistant̄, that such debts as are oweing to any be payd so farr as the estate of the said Ephraim Kempton, Sen<sup>r</sup>, will amount vnto, and an administrator thereof to be then appoynted by the Court.

John Ellis, of Sandwich, for abuseing himself w<sup>th</sup> his now wyfe by committing vncleanesse w<sup>th</sup> her before marryage, is censured to be whipt at publike post, and Elizabeth, his wyfe, to stand by whilst execuçõn of the sentence is p̄formed; w<sup>ch</sup> was accordingly donn. And the said John Ellis,

v<sup>th</sup> fine.

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for his long and tedious delayes, occasioning much trouble & charge to the country, for that he would not confesse the truth vntill this p̄sent, is fyned v<sup>li</sup>.

\*Whereas Thomas Riddings, about a yeare since, came to Scittuate, and is deſtēd thence, leaueing a man child about fūe yeares of age w<sup>th</sup> Gowen White, p̄miseing him to pay him xvij<sup>d</sup> p weeke for his keepeing & dyetting of him, but hath hitherto payd him nothing; and the said Gowen hath since found him meate, drinke, and cloathes at his owne charge; the Court doth order and appoynt that the said child shalbe w<sup>th</sup> the said Gowen White vntill he shall accomplish the age of twenty and foure yeares; but if his father shall come and desire to take him away before thēd of the said terme, that then he shall pay the said Gowen White for the keepeing of him for such tyme as he shall haue beene w<sup>th</sup> him; and so also if hee shalbe placed w<sup>th</sup> another man.

Whereas M<sup>r</sup> Thomas Broughton and M<sup>r</sup> Wil<sup>m</sup> Thomas haue mutually referred the cause depending in Court about the suite of a bond of one hundred and twenty pounds, for payment of threescore and one pound℥ and twelue shillings due in August, 1638, to be ended and decided by the Bench; and what end they shall make therein, they p̄mise mutually to stand vnto and abide, so that judgment and execu<sup>cō</sup>n shall immediately yssue from this Court vpon the yssue as if it were vpon a verdict by a jury. And therevpon the Bench, vpon much delibera<sup>cō</sup>n and serious agita<sup>cō</sup>n, w<sup>th</sup> a due respect vnto what both the parties had pleaded and alleadged in the pleading of the case, wee do order, determine, and decree as followeth: That the said M<sup>r</sup> Wil<sup>m</sup> Thomas shall pay to the said M<sup>r</sup> Broughton sixtye one pounds twelue shillings principall, and for damages sustayned twenty foure pounds eight shillings & three pence, w<sup>ch</sup> ariseth as followeth, viz<sup>l</sup>: sixteene pounds eighteene shillings & three pence, after the rates of v<sup>li</sup> p centū since the money to haue beene payd vpon exchaung was heere demaunded, and for charges in trauell since the plaintiff had power to demaund and acquitt yt; seauen pounds tenn shillings for fūe journeys, in all amounting vnto the sūme of fourscore and six pounds and three pence, w<sup>ch</sup> wee order and appoynt to be p̄sently payd by the said M<sup>r</sup> Wil<sup>m</sup> Thomas vnto the said Thomas Broughton. Judg<sup>nt</sup> graunted for 86<sup>li</sup> & 3<sup>d</sup>, and the charges of the Court.

The Court doth order that Leiftennant W<sup>m</sup> Palmer shall continue in his place to exercise the townesmen of Yarmouth in armes vntill hee shalbe allowed by the Court to lay it downe; and that the towne make choyce of another constable, and p̄sent him to the Court, and that M<sup>r</sup> Freeman administer the constables oath to him, &c.

Vpon request made to the Court by the townesmen of Plymouth, the Court doth graunt vnto them the five pounds for the fine of John Hassell, of Seacunck, due to the countrey towards their charges in searching for a delf of coales, whereof there is great pbability; and if it be found and proue beneficiall, then to be repayd againe when the delf shalbe able.

\*Mathew Fuller, of Plym, plant, }  
Richard Church, carpenter, } bond in xx<sup>li</sup> a peece.

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[\*118.]

Released.

That the said Mathew Fuller shalbe of the good behavior towards our soſaigne lord the King and all his leigh people, and appeare here againe at the next session of this Court, and abide the further order of the Court, and not deſt the same w<sup>th</sup>out lycence, &c; that then, &c.

John Shawe, Señ, of Plymouth, vpon his pſentment, fyned . . . ij<sup>li</sup>.

James Sawe, for the like, . . . . . ij<sup>li</sup>.

John Shawe, Juñ, for the like, . . . . . ij<sup>li</sup>.

Mathew Fuller, for the like, . . . . . ij<sup>li</sup> x<sup>s</sup>.

Steeven Bryan, for the like, . . . . . xxx<sup>s</sup>.

John Tompson, for the like, . . . . . xx<sup>s</sup>.

Francis Billington, for the like, xx<sup>s</sup> or corporal punish<sup>t</sup>.

Samuell Cutbert, for the like, . . . . . xx<sup>s</sup>.

George Crispe, for the like, . . . . . xx<sup>s</sup>.

Charles Thurstone, for the like, ij<sup>li</sup> or corporal punish<sup>t</sup>;

and to stand vpon their bonds of good behaũ vntill their fines be pd.

Francis Goole, vpon his pſentment, is fyned, . . . . . ij<sup>li</sup>.

Francis Goole, of Duxborrow, planter, . . . . . xx<sup>li</sup>.

John Paybody, of the same, plant, . . . . . x<sup>li</sup>.

Experience Michell, of the same, plant, . . . . . x<sup>li</sup>.

That the said Francis Goole shalbe of the good behauior towards our soſaigne lord the King and all his leigh people, and appeare here againe the next Geñall Court, &c, and abide the further order of the Court, and not deſt the same w<sup>th</sup>out lycence; that then, &c.

Released pay-  
ing his fyne &  
fees.

The Court is adjourned to Tewsdays come fortnight, viz<sup>s</sup>, the xxv<sup>th</sup> of this instant June, and from thence to the last Tewsdays but one in Octob<sup>r</sup> following, and the Geñall Court to be the last Tewsdays in October.

John Maycumber, of Taunton, fined v<sup>li</sup> for abusing the majestrat<sup>l</sup>, in v<sup>o</sup>. concealeing and misinformeing the last Gouñor & M<sup>r</sup> Browne, and diuers other of the Assistant<sup>l</sup>, in the case of John Gilbert, Junior, impeached for suspicō of diuers felonies, whereby hee is at large, and diuers psons are hereby depriued of recoſing their goods againe, and the said Gilbert is gone into England.

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Whereas Jonathan Brewster desireth a pcell of land at Namassacheesett, w<sup>ch</sup> Mr Collyer, Mr Alden, & Georg̃ Soule are appoynted to view and make report thereof vnto the Court; and as the Court shall approue, it so to be graunted vnto him.

[\*119.]

\*John Maycumber, of Taunton, carpenter, oweth the King, &c, xx<sup>li</sup>.

Willm Parker, of the same, inkeep, . . . . . x<sup>li</sup>.

Released.

Richard Williams, of the same, plant, . . . . . x<sup>li</sup>.

The condiçõn, that if the aboue bounden John Maycumber be of the good behauior towards or soũaigne lord the King and all his leigh people, and appeare at the next Geñall Court, &c, & not deþt the same w<sup>th</sup>out lycence, &c; that then, &c.

William Newland is allowed to trayne the townesmen of Sandwich in armes, if the townesmen shall choose him.

Mr Tymothy Hatherley is chosen to supply Mr Princes roome in the comission for the United Collonies, if Mr Prence be not able, who is now sick.

11 September.

Samuell Hicks and Lydia Done married the xj<sup>th</sup> of Septemb<sup>r</sup>, 1645.

20 October.

John Aymes and Elizabeth Heyward married the xx<sup>th</sup> of October, 1645.

Samuell Nash was psented to the Court to be a leiftennãte at Duxborrow, & is allowed by the Court.

The inhabitants of the towne of Duxborrow are graunted a competent pporçõn of lands about Saughtuckquett, towards the west, for a plantaçõn for them, and to haue it foure miles euery way from the place where they shall sett vp their center, (puided it entrench not vpon Winnetuckquett, formly graunted to Plymouth,) and haue nominated Captaine Miles Standish, Mr John Alden, Georg̃ Soul, Constant Southworth, Joseph Rogers, and Willm Brett to be feoffees in trust for the equall deuideing and laying forth of the said lands to their inhabitant̃.

Mr Jonathan Brewster is graunted three hundred acres of land, to him & his heires foreuer, either in the place where hee desireth or in some other place nere, w<sup>ch</sup> may be least p̃judice to the plantaçõn graunted to Duxborrow, w<sup>ch</sup> is to be layd forth for him by two men chosen by the majestrats of those six men w<sup>ch</sup> shall be nominated and appoynted by Duxborrow men to order and lay forth their land̃ about Satuckquett to p̃ticulers pson.

31 October.

[\*120.]

\*James Glasse & Mary Pontus married the 31st of Octobr, 1645.

*\*At the Gen<sup>all</sup> Court of o<sup>r</sup> Sou<sup>eraine</sup> Lord the King, holden at Plym<sup>th</sup> aforesaid, the xxvij<sup>th</sup> of Octob<sup>r</sup>, in the \*xxj<sup>th</sup> Yeare of his said Ma<sup>ty</sup> now Raigne, of England, &c.*

1645.

28 October.  
NEW PLYM.  
BRADFORD,  
Gov.

[\*121.]

BEFORE Wilm Bradford, gen<sup>t</sup>, Gov<sup>r</sup>,  
Edward Winslow,  
Thomas Prence,  
Miles Standish,

John Browne,  
Tymothy Hatherley, and  
Edmond Freeman,

Gen<sup>t</sup>, Assistant<sup>l</sup>, &c.

**W**ALTER PALMER, of Rehoboth, admitted a freeman, and was sworn.

Robt Barker, of the North Riuer, made it appeare to the Court that there was due vnto him for carrying prisoners and passengers ouer the North Riuer, w<sup>ch</sup> the countrey p<sup>m</sup>ised to pay him iiij<sup>s</sup> ij<sup>d</sup>.

Thomas Heyward, of Duxborrow, is ordered by the Court to pay vnto Wannapooke, a Neipnet Indian, half a bushell of Indian corne for veneson he tooke of him.

Priscilla Browne, daughter of Peter Browne, deceased, haueing accomplished the terme shee was to dwell w<sup>th</sup> W<sup>m</sup> Gilson, of Scittuate, who was to pay her xv<sup>li</sup> in thend of her terme; now the said Priscilla came into the Court, and hath chosen John Browne, her vnckle, to be her guardian, and to haue the placing and disposing of her vntill the Court shall judg<sup>e</sup> her meete to be at her owne disposing; and likewise to take her por<sup>cion</sup>, viz<sup>t</sup>, xv<sup>li</sup>, and to ymprove it by putting it into a breeding stock, and keepe them, and giue her half thencrease, or els to use it as his owne, and to pay her the said xv<sup>li</sup> when the Court shall judg<sup>e</sup> it meete for her to haue it at her owne disposing.

Manasseth Kempton and Ephraim Kempton are appoynted by the Court administrat<sup>rs</sup> of the goods and cattells of Ephraim Kempton, of Scittuate, deceased, and to pay debts oweing by the said Ephraim at his decease so farr as the estate will amount vnto. There appeared to the Court that twenty-one pounds was due vnto the said Manasseth Kempton out of the said estate, w<sup>ch</sup> the Court allowed should be payd him, and to giue a just account of the rest when the Court shall require them.

M<sup>r</sup> Richard Wright, of Rehoboth, for refus<sup>ing</sup> to come to the Court as a co<sup>m</sup>ittee for their towne, being by them chosen for that end, is fyned xx<sup>s</sup>.



1645.

28 October.

BRADFORD,  
Gov.

[\*122.]

\*The Pporcion and Names of the Souldiers in eich Towne sent forth in the late Expedition against the Narrohigganset & their Confederatℓ

The first company, viz, xvj<sup>teene</sup>, went forth the xv<sup>th</sup> August, 1645.

|                                                                                                                                          |                                                               |                                         |
|------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------|-----------------------------------------|
| Plymouth, viij men : six<br>w <sup>th</sup> those that went<br>out first, and two w <sup>th</sup><br>those y <sup>t</sup> went out last. | John Tompson,<br>Richard Foster,                              | } These vj were forth xvij<br>dayes.    |
|                                                                                                                                          | John Bundy,<br>Nicholas Hodges,                               |                                         |
|                                                                                                                                          | John Shawe,<br>Samuell Cutbert.                               | } These two were forth<br>xiiij dayes.  |
|                                                                                                                                          | John Jenkins,<br>John Harman.                                 |                                         |
| Duxborrow, six men, w <sup>ch</sup><br>went w <sup>th</sup> those that<br>went out first. . .                                            | Serjeant Sañ Nash,<br>Wilkm Brewster,                         | } These six were forth<br>xvij dayes.   |
|                                                                                                                                          | Wilkm Clarke,<br>John Washborne,                              |                                         |
| Marshfeild, foure men,<br>w <sup>ch</sup> went forth w <sup>th</sup><br>those that went out<br>first. . . . .                            | Nathaniell Chaundler,<br>Edward Hall.                         | } These foure were forth<br>xvij dayes. |
|                                                                                                                                          | Luke Lillye,<br>Twyford West,<br>Wilkm Hayle,<br>Roger Cooke. |                                         |

These following went forth the xxiiij<sup>th</sup> of August, 1645.

|                                                                                                  |                                                                                                                   |                                              |
|--------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------|----------------------------------------------|
| Sandwich, fue men, w <sup>ch</sup><br>went forth w <sup>th</sup> those<br>that went last. . .    | Thomas Burges,<br>Thom <sup>s</sup> Greenfeild,                                                                   | } These fue men were<br>forth xiiij dayes.   |
|                                                                                                  | Laurance Willis,<br>Thomas Johnson,<br>Robte Allen.                                                               |                                              |
| Scittuate, eight men, w <sup>ch</sup><br>went forth w <sup>th</sup> those<br>that went last. . . | John Turner,<br>Georg Russell,                                                                                    | } These eight men were<br>forth xiiij dayes. |
|                                                                                                  | Jeremiah Burrowes,<br>Hercules Hill,<br>Edward Saunders,<br>Nathaniell Moate,<br>John Robinson,<br>Richard Toute. |                                              |
| Barnestable, foure men,<br>w <sup>ch</sup> went forth w <sup>th</sup><br>those that went last,   | John Foxwell,<br>John Russell,                                                                                    | } These foure men were<br>forth xiiij dayes. |
|                                                                                                  | Jonathan Hatch,<br>Francis Crocker.                                                                               |                                              |

|                                                                                                |   |                      |                                           |                                           |
|------------------------------------------------------------------------------------------------|---|----------------------|-------------------------------------------|-------------------------------------------|
| Yarmouth, five men, w <sup>ch</sup><br>went forth w <sup>th</sup> those<br>that went last. . . | { | Wilm Northcoate,     | These five men were<br>forth xiiij dayes. | 1645.<br>28 October.<br>BRADFORD,<br>Gov. |
|                                                                                                |   | Wilm Twyneing,       |                                           |                                           |
|                                                                                                |   | Teague Joanes,       |                                           |                                           |
|                                                                                                |   | Henry Wheildon,      |                                           |                                           |
|                                                                                                |   | Wilm Chase, drummer. |                                           |                                           |

These all returned the 2<sup>d</sup> of September, being Tewsdays, and were disbanded the day following, being Wensday.

\*There was deliv<sup>d</sup> to eich souldier j<sup>lb</sup> of pōder, and 3<sup>lb</sup> of bullett a p<sup>eece</sup>, and j<sup>lb</sup> of tobaccoe, at their going forth. [\*123.]

The townes of Taunton and Rehoboth, al<sup>s</sup> Seacunck, were freed from sending forth any men in regard they are frontire townes, and billited the souldiers during the tyme they were forth.

#### The Charges of this Expedition.

|                                                                                    |   |    |    |    |
|------------------------------------------------------------------------------------|---|----|----|----|
| Inpri <sup>s</sup> , giuen to the captaine, but not to be a president              | { | li | s  | d  |
| for after tymes, for himself & his man, . . . .                                    |   | 10 | 00 | 00 |
| To Serjeant, now Leiftennant Nash, . . . . .                                       |   | 02 | 10 | 00 |
| To Plymouth for vj men 17 dayes, . . . . .                                         |   | 05 | 02 | 00 |
| To Duxborrow for v men 17 dayes, . . . . .                                         |   | 04 | 05 | 00 |
| To Marshfeild for iiij men 17 dayes, . . . . .                                     |   | 03 | 08 | 00 |
| To Plym <sup>n</sup> for two men more 13 dayes, . . . . .                          |   | 01 | 06 | 00 |
| To Scittuate for eight men 13 dayes, . . . . .                                     |   | 05 | 04 | 00 |
| To Sandwich for five men 13 dayes, . . . . .                                       |   | 03 | 05 | 00 |
| To Barnestable foure men 14 dayes, . . . . .                                       |   | 02 | 16 | 00 |
| To Yarmouth five men 14 dayes, . . . . .                                           |   | 03 | 10 | 00 |
| And to the drummer, w <sup>ch</sup> was one of Yarmouth, oū                        | { | 00 | 05 | 00 |
| & aboue, 5 <sup>s</sup> , . . . . .                                                |   | 41 | 11 | 00 |
| It, for a line to M <sup>r</sup> Hanbury, . . . . .                                |   | 00 | 02 | 00 |
| It, $\frac{1}{2}$ dussen of kniues giuen to messengers, . . . .                    |   | 00 | 02 | 06 |
| It, for casting of shott, . . . . .                                                |   | 00 | 05 | 00 |
| It, for drumheads, . . . . .                                                       |   | 00 | 07 | 00 |
| It, spent of the money & beads the capt <sup>t</sup> had, . .                      |   | 02 | 05 | 05 |
| It, worke done by Gorame, . . . . .                                                |   | 00 | 04 | 00 |
| It, James Coles bill, . . . . .                                                    |   | 14 | 02 | 00 |
| It, A horsehire xj dayes, . . . . .                                                |   | 00 | 11 | 00 |
| It, 25 <sup>li</sup> of pōder taken at the barke by the captaine                   | { | 02 | 10 | 00 |
| to bring the men hoame againe, . . . . .                                           |   |    |    |    |
| It, 75 <sup>li</sup> of biskett the capt <sup>t</sup> had at the barke to vittaile | { | 00 | 16 | 00 |
| his men hoameward, for w <sup>ch</sup> is allowed j C waight,                      |   |    |    |    |

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BRADFORD,  
Gov.

|                                                                     |                |              |
|---------------------------------------------------------------------|----------------|--------------|
| It, allowed toward℥ the carriage of p̄uisions to                    | { 02 : 00 : 00 | 23 : 04 : 11 |
| Secunck, w <sup>ch</sup> came by sea out of the Bay,                |                |              |
| Tobaccoe afterward℥ allowed, 27 <sup>s</sup> 4 <sup>d</sup> , . . . | 01 : 07 : 04   |              |
| Sum total, . . . . .                                                | 66 : 03 : 03   |              |
|                                                                     | 41 : 11 : 00   |              |
|                                                                     | 23 : 04 : 11   |              |
|                                                                     | 64 : 15 : 11   |              |
|                                                                     | 01 : 07 : 04   |              |
|                                                                     | 66 : 03 : 03   |              |

The barrell of pōder the souldiers spent & deliued to diuers of the townes was not accounted, nor 300<sup>li</sup> of leade w<sup>ch</sup> M<sup>r</sup> Prence bought, nor the bullet℥ the souldiers had forth w<sup>ch</sup> was not returned, nor what losse would be required to take the p̄uisions againe, besid℥ the charge of euery p̄ticuler towne w<sup>th</sup> their souldiers in setting them forth, nor 5<sup>s</sup> M<sup>r</sup> Prenč payd for casting shott, and canvas bags for to put bread & p̄uision in.

The sale of euery towne to this chargē followeth. Verte.

[\*124.]

\*The Rates of the seſuall Townes to the Charges of the Warrs.

|                        | <sup>li</sup> | <sup>s</sup> | <sup>d</sup> |
|------------------------|---------------|--------------|--------------|
| Plymouth, . . . . .    | 12            | 02           | 03           |
| Duxborrow, . . . . .   | 08            | 11           | 00           |
| Scittuate, . . . . .   | 12            | 17           | 06           |
| Sandwich, . . . . .    | 09            | 07           | 09           |
| Taunton, . . . . .     | 05            | 02           | 06           |
| Barnestable, . . . . . | 06            | 02           | 06           |
| Yarmouth, . . . . .    | 07            | 02           | 06           |
| Marshfeild, . . . . .  | 07            | 02           | 06           |
|                        | 70            | 08           | 06           |

The Court, for speciall consideraçon, did abate xx<sup>s</sup> to Barnestable, and 40<sup>s</sup> to Taunton, w<sup>ch</sup> is the reason they are not equall w<sup>th</sup> Yarmouth and Marshfeild, but shall not be a president for after tymes; and Rehoboth was not rated at all, both because it was a new plantaçon, and billited all the souldiers freely during all the tyme they stayed there.

The Sumes the Townes are to pay their Souldiers, and what wilbe comeing to y<sup>e</sup> Treasurer.

|                      | Souldiers.                              | Treasurer.   |
|----------------------|-----------------------------------------|--------------|
|                      | <sup>li</sup> <sup>s</sup> <sup>d</sup> |              |
| Plymouth payes . . . | 06 : 08 : 00, & to the Treasurer        | 05 : 14 : 03 |
| Duxborrow, . . .     | 06 : 15 : 00, & to the Treasurer        | 01 : 16 : 00 |
| Scittuate, . . .     | 05 : 04 : 00, & to the Treas            | 07 : 13 : 06 |

|                    |                                 |              |
|--------------------|---------------------------------|--------------|
| Sandwich, . . .    | 03 : 05 : 00, & to the Treſ . . | 06 : 02 : 06 |
| Barnestable, . . . | 02 : 16 : 00, & to the Treſ . . | 03 : 06 : 06 |
| Yarmouth, . . .    | 03 : 10 : 00, & to the Treſ . . | 03 : 12 : 06 |
| Marshfeild, . . .  | 03 : 08 : 00, & to the Treſ . . | 03 : 14 : 06 |
| Taunton, . . .     | 00 : 00 : 00 . . . . .          | 05 : 02 : 06 |

1645.

28 October.  
BRADFORD,  
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Sum to<sup>z</sup>, 31 : 06 : 00, comeing to the Treaur<sup>r</sup>, 37 : 02 : 03  
& added to it w<sup>ch</sup> was remayning of the peage & 20<sup>s</sup>, 01 : 16 : 00

The captaine re<sup>c</sup> in peage, . . . . . 03 : 01 : 05

More in money, . . . . . 01 : 00 : 00

Spent thereof & layd out, . . . . . 02 : 05 : 05

Remayneth in his hand<sup>l</sup>, . . . . . 01 : 16 : 00

In the Treasurers hands, . . . . . 38 : 18 : 03

Due to himself, . . . . . 10 : 00 : 00

The remainder to the countrey is . . . . . 28 : 18 : 03

The Court doth order, that euery towne shall pay their owne souldiers what is due vnto them for their wages, and returne the rest to Plymouth, to the Treasurer, at Mr Paddys house, toward<sup>l</sup> the payment of other charges about the expedition, provided that euery souldier allow by deduction of his wages what hee hath taken vp of any man to furnish him for his seruice, and like to returne their armes and bullet<sup>l</sup> againe, or el<sup>s</sup> allow for them.

\*The p<sup>o</sup>sitions to be made to the townships are, that the co<sup>m</sup>issioners [\*125.] agree that eich sachem keepe w<sup>th</sup>in their owne bound<sup>l</sup>.

That the co<sup>m</sup>issioners haue power graunted them to punish such officers & messengers as shall fayle in their duties and messages.

That the assistant<sup>l</sup>, or any of them, shall haue power to take an ac- Confirmed.  
knowledg<sup>nt</sup> of a bargaine and sale of land<sup>l</sup>, &c, they <sup>^</sup> keepe a booke thereof, or cause them to be recorded w<sup>th</sup> all convenyent speed; that the wyfe hereafter shall also come in & acknowledge the sale also; but la<sup>ds</sup> formly sold to be firme to the buyer, notw<sup>th</sup>standing the wyfe came not in.

That the colonies shall allow ij<sup>d</sup> p day to mayntaine a prison<sup>r</sup> for felony Confirmed.  
or misdemeanor, (if they be not able to mayntaine themselues,) and the Treas-  
urer to pay it.

That the marshall haue ij<sup>s</sup> p<sup>s</sup> for gathering of fynes, if they be not Confirmed.  
brought in by the p<sup>t</sup>ies themselues.

‡That for correction by whipping, the marshall shall haue v<sup>s</sup>, in this man-  
ner to be payd by the offender, viz<sup>l</sup>, ij<sup>s</sup> vj<sup>d</sup> for his ymprisonment, & ij<sup>s</sup> vj<sup>d</sup> his  
releases.‡

1645.

## The Names of the Committees this Court.

28 October.  
BRADFORD,  
Goû.

|                    |                                                     |                    |
|--------------------|-----------------------------------------------------|--------------------|
| Plymouth, . . .    | { Mr John Howland,                                  | John Dunhame, Señ, |
|                    | { Manasseth Kempton,                                | John Cooke, Juñ.   |
| Scittuate, . . .   | { Before was Humfrey Turner & W <sup>m</sup> Hatch; |                    |
|                    | { but they had none this Court.                     |                    |
| Taunton, . . .     | Wilkm Parker,                                       | Richard Williams.  |
| Yarmouth, . . .    | Mr Anthony Thacher,                                 | Edmond Hawes.      |
| Rehoboth, . . .    | Walter Palmer.                                      |                    |
| Duxborrow, . . .   | Mr John Alden,                                      | George Soule.      |
| Sandwich, . . .    | Richard Burne,                                      | Thom Burges.       |
| Barnestable, . . . | Anthony Annable,                                    | Isaack Robinson.   |
| Marshfeild, . . .  | Mr Wilkm Thomas,                                    | Mr Thom Burne.     |

12 November.

John Turner and Mary Brewster married the xij<sup>th</sup> Nouemb<sup>r</sup>, 1645.

19 November.

Nathaniell Warren & Sarah Walker married the xix<sup>th</sup> Nouemb<sup>r</sup>, 1645.

6 December.

John Washborne & Elizabeth Mitchell married the vj<sup>th</sup> of Decemb<sup>r</sup>, 1645.

26 December.

John Tompson & Mary Cooke married the xxvj<sup>th</sup> Decemb<sup>r</sup>, 1645.

1645-6.

Joseph Ramsden &amp; Rachell Eaton married the second day of March,

2 March.

1645.

3 March.  
NEW PLYM.  
[\*127.]

\**At the Gen<sup>l</sup>all Court of o<sup>r</sup> Sou<sup>a</sup>igne Lord the King, holden at Plym, afores<sup>d</sup>, the third Day of March, in the xxj<sup>th</sup> Yeare of the now Raigne of o<sup>r</sup> Sou<sup>a</sup>igne Lord, Charles, by the Grace of God King of England, Scotland, France, & Ireland, Defendor of the Fayth, &c.*

. BEFORE Wilkm Bradford, gent, Goû,      Wilkm Collyer,  
Edward Winslow,      Timothy Hatherley, and  
Miles Standish,      Edmond Freeman,  
Gentlemē, Assistan<sup>t</sup>, &c.

THE committees of the seſſall townes : —

|                 |                     |                    |
|-----------------|---------------------|--------------------|
| Plymouth, . .   | { Mr Wilkm Paddy,   | Manasseth Kempton, |
|                 | { John Dunham, Señ, | John Cooke, Juñ.   |
| Sandwich, . . . | Wilkm Newland,      | James Skiff.       |
| Taunton, . . .  | None.               |                    |

|                  |                                 |                              |
|------------------|---------------------------------|------------------------------|
| Duxborrow, . .   | M <sup>r</sup> John Alden,      | Geor <sup>g</sup> Soule.     |
| Barnestable, . . | Henry Cobb,                     | Tho <sup>m</sup> Hinckley.   |
| Marshfeild, . .  | Josias Winslow,                 | Ro <sup>b</sup> te Waterman. |
| Scituate, . .    | Humfrey Turner,                 | John Lewes.                  |
| Yarmouth, . .    | M <sup>r</sup> Anthony Thacher, | Edmond Hawes.                |
| Rehoboth, . .    | None.                           |                              |

1645.

3 March.  
BRADFORD,  
Gov.

|                            |   |                                                    |
|----------------------------|---|----------------------------------------------------|
| William Brett,             | } | ppounded to take vp their freedome the next Court. |
| George Partrich,           |   |                                                    |
| John Vobes,                |   |                                                    |
| †John Washborne,†          |   |                                                    |
| Ro <sup>b</sup> te Carver, |   |                                                    |
| John Bourne,               |   |                                                    |
| John Allen,                |   |                                                    |

Nathaniell Bowman is awarded to pay ijs to Morris Truant for not psecuting his action against him.

It is ordered, that Major Gibbens shall take order to answer M<sup>r</sup> Combes declaracōn against Morton and M<sup>r</sup> Combs attorney to write vnto him.

M<sup>r</sup> Allerton, vpon a motion made in the Court by Thomas Cushman, is allowed a yeares tyme for recoūing his debt℥ in this goūment, vpon book℥ and papers.

Whereas vpon a petiōn to the Court, it appeareth that Richard Templer, the now constable of Yarmouth, in vndertakeing to pay fifty shillings for W<sup>m</sup> Chase, to set him forth in the last expedition, and hath receiued satisfacōn to the value of xxx<sup>s</sup> or thereabout℥, it is requested by the Court, that the towne of Yarmouth would pay one third p<sup>t</sup> thereof, and the said Chase another third p<sup>t</sup>, and the countrey thother third p<sup>t</sup> of what remaynes, to satisfye the said fifty shillings.

Concerneing the difference about M<sup>r</sup> Starrs rate at Marshfeild, the Court doth not see but that it is right and equall that M<sup>r</sup> Starr should be rated at Marshfeild pportionable to his land℥ improoued and stock there, and shall now pay his rate there vntill that Duxborrow can make it appeare that it was vnderstood that he should not be rated there vntill hee came totally w<sup>th</sup> his family to dwell there, and that Marshfeild condiscended therevnto.

The Court requesteth M<sup>r</sup> Prence & M<sup>r</sup> Freeman to heare the differenc℥ betwixt the towne of Yarmouth, M<sup>r</sup> Lumpkine, and M<sup>r</sup> Palmer, about the mayntenance of Will<sup>m</sup> Growse, and to order the same.

\*Whereas the tyme being this Court wherein order is to be taken for letting of the trade at Kennebeck, el<sup>s</sup> it would endanger the losse of this yeares [\*128.]

1645-6. benefitt, by reason whereof the Court is constrayned to nominate and authorize a committee to lett forth the same to the best advantage of the gouernment, and for the tyme of       ^      yeares, to such as will giue the most for yt, haue therefore nominated and authorized the Gouñor and Assistant℥, w<sup>th</sup> M<sup>r</sup> John Alden, M<sup>r</sup> Wilm Thomas, M<sup>r</sup> John Howland, Jonathan Brewster, and Josias Winslow, as a committee to lett forth the same vnto them the first Tewsday in May next.

3 March.  
BRADFORD,  
Gov.

The company for the Kennebeck trade brought in an account into the Court for the yeare 1644, w<sup>ch</sup> came that yeare but to thirty pound℥, and also an account how it was disbursed for the countreyes use, w<sup>ch</sup> the Court accepted and allowed, and they are thereof discharged; and likewise toward℥ the rent for the yeare 1645 there was an account exhibited whereby there appeared to be in the store for the countreys use six barrells of powder, three hundred waight of leade, and       ^      pound℥ of bullet℥, and foure pound℥ nineteene shillings and six pence remayneing due to the countrey from them, besides thirty shillings for a case of bottells, w<sup>ch</sup> was not cleared that they were spent for the countreys use; but the 300 waight of leade is not yett payd for.

|                                                 |   |                                     |
|-------------------------------------------------|---|-------------------------------------|
| And xvj <sup>lb</sup> of powder to Marshfeild.  | { | These ꝑcells of pōder were remayne- |
| Iť, xx <sup>lb</sup> of powder to Taunton.      |   | ing of the seauenth barrell of      |
| Iť, xvj <sup>lb</sup> of powder to Barnestable. |   | pōder, the rest being spent by the  |
| And baggs to put pōder in.                      |   | souldiers in the last expedition.   |

ꝑposiçōns.

Confirmed.       ‡That the townes ꝑuide sufficient armes for so many men as their ꝑpor-  
tion wilbe to set forth, that they may be in ꝑsent readynesse if any suddaine  
occcation fall forth.‡

Confirmed.       ‡That the clarke, or some one in euery towne, do keepe a register of the  
day and yeare of euery marryage, byrth, and buriall, & to haue 3<sup>d</sup> a peece for  
his paynes.‡

ꝑsentment℥ this Court, by the Grand Enquest.

Released.       1. Wee do here ꝑsent Thomas Bonney, of the towne of Duxborrow, for  
vnciuill carriages and lacivious actions toward℥ weomen and maydes. Released.

Released.       2. Wee do ꝑsent Thomas Dexter, of Sandwich, for disobeying the Gouñ-  
ors warrant℥ in conveying away his horse, being prest for the countreys use.  
Discharged.

Released.       3. Wee do here ꝑsent Thomas Burges and Thofms Nicholls, for breach  
of the Kinges peace. Discharg<sup>d</sup>.

4. Wee do here ꝑsent Wilm Brookes, of the towne of Marshfeild, for  
the breach of his oath, in discloseing of his fellowes counsell and his owne,  
w<sup>ch</sup> hee through weaknes confesseth hee did, and is released.

5. Wee do here p̄sent John Gray, of Yarmouth, for abusing Ann, the wife of W<sup>m</sup> Eldred, in an injurious manner. 1645-6.

6. We do here p̄sent M<sup>r</sup> Symkins for the breach of the Kings peace, w<sup>th</sup> strikeing of Thomas Hinckley. Released. 3 March. BRADFORD, GOV.

7. We do here p̄sent Leiftennant Dimmack, of Barnestable, for neglecting to exercise their men in armes. Discharged. Released. Discharged.

\*Whereas an action of slaunder and defamaçõn was this Court cōmenced by M<sup>r</sup> John Farnyseede, and Elizabeth, his wyfe, against Thomas Bonney, by the arbitration and mediation of frend̄, it was vpon the said Bonneys acknowledgment withdrawne, w<sup>ch</sup> was shewed in Court, and ordered to be recorded as follow<sup>th</sup>, viz<sup>q</sup> : — [\*129.]

Know all men by these p̄nt̄, that whereas Thomas Bonney hath said that M<sup>rs</sup> Farnyseede did justle him in her house, and that hee tooke it as a temptation of him vnto lust, the said Thomas Bonney doth freely and humbly acknowledged, vnto the glory of God and vnto his owne shame, that it was his owne base heart that caused him to make that construction thereof, hee acknowledging that hee had no sufficient reason so to conceiue, but that euell suspition arose from the corruption of his owne heart ; and although the said Thomas Bonney did further accuse her in comeing bare legged vnto him, speaking vnto him, Thomas Bonney, will you mend my shooes ? shee vtterly denyeth that euer shee came to him in any such manner, the said Thomas Bonney dareing not say but that hee might be mistaken therein ; and whateuer interpretation Thomas Bonney did make thereof, the said Thomas Bonney acknowledgeth it to arise from his owne base, lustfull heart, and doth wholly condemne himself fr̄o speakeing or thinking any euell of her, the said Thomas Bonney not dareing to say or think any other of her but that shee is a very honest, modest, and chaste weoman, both in heart, worde, and deede, and doth therefore earnestly beseech the Lord to for giue him his many and great sinns therein, & doth humbly entreate M<sup>rs</sup> Farnyseede, her husband, p̄nt̄, and frends to forgiue him these so greate wronges & injuries done by him herein, p̄miseing to acknowledged these his wronges (donn vnto her) in or before the congregaçõn whenever it shalbe required of the said M<sup>rs</sup> Farnyseede, her husband, or frend̄ ; and also the said Thomas Bonney doth hereby testifye, that if euer hereafter hee shall in any measure speake any thing to any p̄son or p̄sons tending to her disgrace or defamaçõn, that then it shalbe lawfull for the husband of the said M<sup>rs</sup> Farnyseede to p̄secute his action of slaunder and defamaçõn, notw<sup>th</sup>standing this his acknowledgment ; the said Thomas Bonney also p̄miseing to put into the hand of the deacon of the church of Duxborrow



1645-6. five shillings, for to be by the said deacon distributed vnto the poore. In  
 3 March. witnesse whereof the said Thomas Bonney hath subscribed his hand this second  
 BRADFORD, day of March, 1645. THOMAS BONI.  
 God.

[\*130.]

Witnes, John Willis.

1646.

27 March.

22 April.

23 April.

29 May.

\*Richard Smyth and Ruth Bonum marryed the xxvij<sup>th</sup> March, 1646.

Edmond Freeman, Ju<sup>r</sup>, & Rebecca Prence marryed the xxij<sup>th</sup> of Aprill, 1646.

Andrew Ringe and Deborah Hopkins marryed the xxij<sup>th</sup> Aprill, 1646

Thomas Pope and Sarah Jenney marryed the xxix<sup>th</sup> May, 1646.

5 May.

[\*131.]

*\*At a Court of Assistant℥ holden the fift Day of May, in the xxij<sup>th</sup> Yeare of the now Raigne of o<sup>r</sup> Sou<sup>r</sup>aigne Lord, Charles, by the Grace of God King of England, Scotland, France, & Ireland, Defendor of the Fayth, &c.*

BEFORE Wilkm Bradford, gent℥, Gof℥,  
 Edward Winslow,  
 Wilkm Collyer,  
 Miles Standish,

Tymothy Hathereley,  
 John Browne, &  
 Edmond Freeman, Señ,

Gent℥, & Assistant℥.

V<sup>P</sup>ON heareing of the cause betwixt Roger Chaundler and Kenelme Winslow, for his daughters cloathes, w<sup>ch</sup> the said Kenelme detaineth, vpon p<sup>t</sup>ence of some further service w<sup>ch</sup> he required of her, whereunto the said Roger vtterly refused to consent, it is ordered by the Court, that the said Kenelme Winslowe shall deliuer the mayde her cloathes w<sup>th</sup>out any further delay.

Kenelme Winslowe, for opprobrious words against the church of Marshfeild, saying they were all lyers, &c, was ordered by the Court to fynd sureties for his good behauio<sup>r</sup>, w<sup>ch</sup> he refusing to doe, was committed to prison, where hee remayned vntill the Genall Court following.

Vpon the peti<sup>c</sup>on of M<sup>r</sup> John Gilbert, of Taunton, for a p<sup>c</sup>cell of meddow taken from him, the Court doth thinke it meete that in regard of former engagement℥ w<sup>ch</sup> haue passed betwixt him and some of the ma<sup>trates</sup>, the Bench do require the townsmen of Taunton to accomodate his sonn elſwhere, that M<sup>r</sup>

Gilbert may enjoy his meddow, p<sup>ro</sup>vided hee resigne vp his late graunt from the towne.

1646.

5 May.  
BRADFORD,  
Gov<sup>r</sup>.

Vpon informa<sup>ti</sup>on of an affray was made vpon Vssamequine and some of his men by Wil<sup>m</sup> Cheesborrow, of Seacunck, al<sup>s</sup> Rehoboth, and some others, the Court doth order, that a warrant shalbe forthw<sup>th</sup> directed to the constable of Rehoboth, to app<sup>re</sup>hend the body of the said William Cheesborrow, and to cause him to be brought from constable to constable, to his ma<sup>ty</sup>s goale at Ply<sup>m</sup>, there to remayne vntill he shalbe thence deli<sup>u</sup>ered by due course of law.

It is also ordered, that an attachment shalbe directed to the constable of Rehoboth, to attach the body of Thomas Hitt, to fynd sureties for his app<sup>ar</sup>ance at the next Ge<sup>n</sup>all Court, &c, to answe<sup>r</sup> for haueing a hand in the said affray made vpon Vssamequin, &c ; and also for his contempt in not appeareing this Court, according as he was appoynted by M<sup>r</sup> John Browne, one of the Assistant<sup>e</sup>.

\*May 29<sup>th</sup>, 1646. W<sup>m</sup> Cheesborrow, of Rehoboth, blacksmith, }  
oweth the Kinge, &c, . . . . . } xx<sup>li</sup>.  
Richard Paul, of Taunton, plan<sup>t</sup>, . . . . . x<sup>li</sup>.  
Aron Knap, of the same, plan<sup>t</sup>, . . . . . x<sup>li</sup>.

29 May.  
Released.  
[\*132.]

The condi<sup>ti</sup>on, that the said Wil<sup>m</sup> Cheesborrow shall appeare at the next Ge<sup>n</sup>all Court, to be holden at Ply<sup>m</sup> the first Tewsday in June next, to answe<sup>r</sup> to all such matters as on his ma<sup>ty</sup>s behalf shalbe objected against him, concerning an affray made vpon Vssamequin and some of his people, and in the meane season to toward<sup>e</sup> o<sup>r</sup> said so<sup>u</sup>laigne lord the King and all his leigh people, and abide the further order of the Court, and not depart the same w<sup>th</sup>out lycence ; that then, &c.

\*The limmits and bounds of the planta<sup>ti</sup>on of the towne of Taunton, al<sup>s</sup> Co<sup>h</sup>annet, w<sup>th</sup>in the go<sup>u</sup>lment of Plymouth, bounded and ranged for length and breadth, by order of Court, by Miles Standish & John Browne, gentle<sup>m</sup>, Assistant<sup>e</sup> in the go<sup>u</sup>lment, the xix<sup>th</sup> day of June, a<sup>n</sup>o D<sup>m</sup> 1640, in the xvj<sup>th</sup> yeare of our so<sup>u</sup>laigne lord, Charles, &c, as followeth, viz<sup>s</sup> : —

[\*133.]

Inpri<sup>s</sup> from two marked trees nere vnto Asonet, a neck of land being betweene Asonet and them, lying southerly, and from the said marked trees ranging east and by south foure miles ; rangeing also from the extent of the said foure miles north and by west ; also from two markt trees neere the Three Mile Riuer, lying southerly of Taunton, the rang<sup>e</sup> to runn foure miles west & by north ; and from the extent of this last men<sup>c</sup>oned foure miles, the rang<sup>e</sup> to runn north and by west eight miles ; moreo<sup>u</sup>, from the extent of this eight miles range, then the range to runn on the east and by south line, to meete w<sup>th</sup>

1646.

29 May.  
BRADFORD,  
Gov.

the former expressed north and by west lyne vpon a long square ; alwayes guided, that if these ranges do not take in a place called Schadingmore Meddowes, the said Schadingmore Meddowes to be included as belonging to the aforesaid towne of Taunton, w<sup>th</sup> one thousand acres of vpland neere and adjacent vnto the said meddowes ; provided likewise, that these lines do not intitle the said towne of Taunton to intermeddle w<sup>th</sup>in two miles of Teightaquid.

MILES STANDISH,  
JOHN BROWNE.

2 June.  
NEW PLYM.  
[\*135.]

*\*At a Gen<sup>r</sup>all Court holden at Ply<sup>m</sup> afores<sup>d</sup>, the second Day of June, in the xxij<sup>th</sup> Yeare of the Raigne of our Sou<sup>r</sup>aigne Lord, Charles, by the Grace of God King of England, Scotland, France, and Ireland, Defendor of the Fayth, &c.*

|                                              |                                     |
|----------------------------------------------|-------------------------------------|
| BEFORE Wil <sup>m</sup> Bradford, gent, Gov, | Capt <sup>n</sup> e Miles Standish, |
| Edward Winslow,                              | Tymothy Hatherly,                   |
| Thomas Prence,                               | John Browne, &                      |
| Wil <sup>m</sup> Collier,                    | W <sup>m</sup> Thomas,              |
| Gent, Assistant℥, &c.                        |                                     |

**M**<sup>R</sup> TYMOTHY HATHERLEY and M<sup>r</sup> John Browne were chosen com<sup>i</sup>ssioners for the United Colonies for this yeare, according to the articles of confederac<sup>o</sup>n.

The Counsell of Warr chosen & nominated by Court for this ensuing yeare.

Mr Edward Winslow, p<sup>r</sup>sident,  
Mr Thomas Prence,  
Captaine Miles Standish,  
M<sup>r</sup> Tymothy Hatherley,  
M<sup>r</sup> John Browne,  
M<sup>r</sup> John Alden,  
Cap<sup>t</sup> Wil<sup>m</sup> Poole.

It is enacted by the Court, that these, or any three of them, meeting together, shall haue power and authoryty to make orders for matters of warr, and to yssue forth warrants, &c ; but if but two of them do meete, then to haue the consent and approba<sup>o</sup>n of the Gov in what they doe ; and that when these do so meete together, they shall haue power to choose such p<sup>o</sup>ns

to their counsell and assistance as they shall think good, (if they please,) so they exceed not the number of foure psons ; and if any man shall refuse to doe the service when they are so warned or called therevnto, that then such pson or psons shalbe fyned as the counsell of warr shall think meete, so it exceede not fourty shillings to the colonies use ; and that these shall haue power to determine in any offence concerneing warr, either donn before this day or after, before thend of this ensuing yeare, and for all psons, as well strangers as our selues, for any thing donn w<sup>th</sup>in this goũment, and shall power to choose a psident amongst themselues, and to make orders about such thinges as shalbe needfull.

1646.

2 June.  
BRADFORD,  
Gov.

\*Captaine Miles Standish chosen Treasurer for this ensuing yeare.

[\*136.]

Mr Wilfm Collyer coroner.

Freemen admitted this Court, and sworne.

Mr Samuell Newman,  
Nathaniall Bacon,  
Dolor Davis,  
Georg Partrich,

John Washborne,  
Andrew Ring,  
Oliuer Purchase,  
Wilfm Brett.

These were ppounded to take vp their freedome the next Court : —

Wilfm Wills,  
Thomas Heyward,  
Edward Jenkine,

Thomas Huckens,  
James Wyatt.

The Court doth order, that one of a towne, viz<sup>s</sup>, Mr Thomas Willet, Mr John Alden, Mr Thomas Bourne, Thomas Chambers, Thomas Tupper, Henry Andrewes, Anthony Annable, Edmond Hawes, & Steeven Payne, shall, as a coĩmittee, consider of a way for the defraying the charges of the ma<sup>trates</sup> table, by way of excise vpon wyne & other thinges.

Clement Briggs, of Weymouth, made knowne to the Court that Mr Isaack Allerton was endebted vnto him the sum of seauen pounds, whereof he desires notice may be taken because of a late act made concerneing debt not demaunded w<sup>th</sup>in a yeare after they are due, in some cases are hardly recoĩfable, and for that he cannot speake w<sup>th</sup> Mr Allerton himself. M<sup>rs</sup> Fuller sayth that

\*The Constables of the seĩall Towneshippes for this Yeare.

[\*137.]

Plymouth, . . . Robert Paddock & Thomas Whitney.  
Duxborrow, . . . Georg Partrich.  
Sandwich, . . . Peter Gaunt.

1646.

2 June.  
BRADFORD,  
Gov.

Bästable, . . . Thomas Huckens.  
Marshfeild, . . . Thoñ Chillingsworth, Roñte Barker.  
Nawsett, . . . Samuell Hicks.  
Scittuate, . . . Ephraim Kempton & John Hollett.  
Taunton, . . . Oliver Purchase.  
Yarmouth, . . . John Joyce.  
Rehoboth, . . . Peter Hunt.

Nawsett is graunted to be a towneshipp, and to haue all the p<sup>r</sup>uiledges of a towneshipp, as other townes w<sup>th</sup>in this goũment haue.

## Surveyors of the Heighwayes.

Plymouth, . Robert Wickson, Robert Finney, and John Finney.  
Duxborrow, . Wilłm Merrick & Morris Truant.  
Scittuate, . . John Stockbridg & Walter Woodward.  
Sandwich, . Edmoñ Freeman, Ju<sup>r</sup>, & James Skiff.  
Taunton, .  
Barnestable, . Henry Rowley & Thomas Shawe.  
Yarmouth, . Yeluerton Crowe, Edward Sturges.  
Marshfeild, . John Dingley & William Brooke.  
Rehoboth, . Thomas Cooper.

## The Grand Enquest.

|                          |   |                   |   |                  |   |        |
|--------------------------|---|-------------------|---|------------------|---|--------|
| Mr Thomas Howes,         | } | ju <sup>r</sup> . | } | Michaell Turner, | } | sworn. |
| Roñte Lee,               |   |                   |   | Phillip Delanoy, |   |        |
| Nathaniell Morton,       |   |                   |   | Thomas Heyward,  |   |        |
| Roñte Bartlet,           |   |                   |   | John Hore,       |   |        |
| John Bourne,             |   |                   |   | Thomas Raulins,  |   |        |
| Joseph Biddle,           |   |                   |   | Thomas Hyland,   |   |        |
| Wilłm Carpenter,         |   |                   |   | Barnard Lumbert, |   |        |
| John Stronge, not swore. |   |                   |   | Henry Bourne,    |   |        |
| Georg Knott.             |   |                   |   | Emanuell White,  |   |        |

John Jenkine, not sworn, released of his fine.

[\*138.]

\*The Court doth graunt to the inhabi<sup>t</sup> of Taunton that they shall purchase the p<sup>r</sup>cell or neck of land, or yland, lying at Namaskett Pond, or w<sup>th</sup>in the šd pond, w<sup>th</sup> they desire for a calues pasture, and to haue the use of it vntill there shalbe a planta<sup>c</sup>õn erected there about<sup>e</sup> to whom it may be helpfull; and that then they, paying the purchase and the charg<sup>e</sup> that Taunton

inhit<sup>l</sup> shalbe at about the said pcell of land, shall haue such p<sup>t</sup> thereof as shalbe thought meete by the Court.

1646.

2 June.  
BRADFORD,  
Go<sup>o</sup>.

Whereas Wil<sup>m</sup> Halloway, of Taunton, complayned that an old woeman w<sup>th</sup> hee brought out of England was chargable to him, the Court tooke it into considera<sup>o</sup>n, & do request the said Wil<sup>m</sup> Halloway to deli<sup>u</sup> her to the towne, or whom they shall appoynt to receiue her, w<sup>th</sup> her cloathes and bedding, and such thinges as shee hath, and the towne to take order for her mayntenance ; and if hereupon the said Halloway shall refuse to deliuer her, w<sup>th</sup> her apparell & bedding, &c, that then he appeare here the next meeting, the first Tewesday in July next, to shew reason to the contrary, except the towne & the said Halloway shall agree otherwise.

William Cheesborrow, of Rehoboth, for mending two locks for peec<sup>l</sup> at three shillings a peece, and for his abuse of Vssamequin, as the case now stands betwixt us and him, and for his breach of ymprisonment and flying to a forraigne go<sup>u</sup>ment, and leauing this, is censured by the Court to be ymprisoned fourteene dayes, w<sup>th</sup>out bayle or mainprize, and to pay six pounds fine to the colonies use.

Cheesborro  
fin<sup>d</sup> 6<sup>l</sup>.

Thomas Hitt, of Rehoboth, for takeing p<sup>t</sup> with Cheeseborrow in the affray made vpon Vssamequin and his men, is fined twenty shillings, & for his contempt. \*

Hitt fined xx<sup>s</sup>.

The Rates agreed vpon for Excise.

‡That such strangers as haue liberty to fish at the Cape to pay fve shillings p share.‡

Vpon euery gallon of Spanish wine drawne by retayle by such as are allowed, eight pence.

Vpon euery gallon of French wine drawne by retayle by ^ as are allowed, foure pence.

Vpon euery hogshead of beere, two shillings.

Vpon euery gallon of strong water, eightene pence.

Vpon euery pound of tobaccoe retayled, j<sup>d</sup>.

Vpon euery gallon of oyle, j<sup>d</sup>.

This Court is adjourned to the first Tewesday in July next, when the se<sup>u</sup>all townes are appoynted to send their committees to do such businesses as are now left vndonn.

1646. *\*At the second Session of the Genall Court, begun the first Tewsday in June, and adjourned vnto the first Tewsday in July following, and now holden the said first Tewsday in July, in the xxxij<sup>th</sup> Yeare of the Raigne of our Sou<sup>r</sup>aigne Lord, Charles, by the Grace of God King of England, Scotland, France, and Ireland, Defendor of the Fayth, &c.*

7 July.  
NEW PLYM.  
BRADFORD,  
Gov.  
[\*139.]

BEFORE Wiltm Bradford, gen<sup>t</sup>, Gov., Miles Standish,  
Edward Winslow, Timothy Hatherley, and  
Wiltm Collyer, Wiltm Thomas,  
Gen<sup>t</sup>, Assistant℥, &c.

THE comittees of the sefall towneshippes : —

|                        |                                                                             |
|------------------------|-----------------------------------------------------------------------------|
| Plymouth, . . . . .    | { Mr John Howland, Manasseth Kempton,<br>John Dunham, Señ, Mr Thoñ Willett. |
| Scittuate, . . . . .   | Humphrey Turner, John Lewes.                                                |
| Taunton, . . . . .     | Richard Williams.                                                           |
| Yarmouth, . . . . .    | Mr Anthony Tächer, Edmond Hawes.                                            |
| Rehoboth, . . . . .    | None.                                                                       |
| Duxborrow, . . . . .   | Mr John Alden, George Soule.                                                |
| Sandwich, . . . . .    | Mr Edmond Freeman, Wiltm Newland.                                           |
| Barnestaple, . . . . . | Henry Cobb, Thoñ Hinckley.                                                  |
| Marshfeild, . . . . .  | Josias Winslow, Robte Waterman.                                             |
| Nowsett, . . . . .     | None.                                                                       |

In the difference betwixt Richard Church, complaynent, and M<sup>rs</sup> Jenney, widow, defeñt, the Court, vpon heareing the cause and examinaçõn of witness<sup>s</sup>, and view taken of his booke, there appeared due vnto Richard 1 ii<sup>s</sup>, w<sup>ch</sup> the Court doth award and order the said M<sup>rs</sup> Jenney to pay to the said Richard Church, saue that the said Richard Church is to hew a sett of coggs and rounds for her, according to the couenant.

In the case betwixt Teağ Jones and Raph Wheilden and his daughter, the Court, not fynding thinges fully cleared by reason of the absence of the said Wheilden and his daughter, it is referred to further heareing, either at the next Genall Court or some Court of Assistant℥ before, where the said Raph Wheilden and his daughter and the said Teağ are required by the Court to appeare, and vpon further heareing then to be decided.

Francis Sprague, of Duxborrow, is lycensed to keepe an ordinary and to draw wyne at Duxborrow.

Edward Jenkins, of Scittuate, is lycensed to keepe an ordinary and to draw wyne at Scittuate.

\*Edward Sturges, of Yarmouth, is lycensed to keepe an ordinary and draw wyne at Yarmouth, puided M<sup>r</sup> Thacher draw out his. Repeal<sup>d</sup> 20: 8: 1646.

Robte Barker is lycensed to keepe an ordinary at Marshfeild, and to draw wyne.

The action betwixt Tobias Taylor, compl<sup>nt</sup>, and John Shawe, defe<sup>nt</sup>, is referred to the ending of M<sup>r</sup> Hanbury and John Lewes for John Shawe, M<sup>r</sup> Alden and Thomas Clark for Tobias; and if they cannot end yt, they foure to choose a fift man vnto them, and as any three or more of them agree, so to stand.

M<sup>r</sup> William Collyer, M<sup>r</sup> Thomas Willett, M<sup>r</sup> Anthony Thacher, and Josias Winslow are appoynted by the Court as a co<sup>m</sup>itte<sup>e</sup> to draw vp the excise into due forme of an act, and also to p<sup>r</sup>s<sup>r</sup>ibe a way and meanes how it shalbe gathered, w<sup>th</sup> penalties vpon the delinquent<sup>ℓ</sup>, and p<sup>r</sup>sent it to y<sup>e</sup> Court to be confirmed.

Constant Southworth is allowed by the Court to be ensigne bearrer of Duxborrow company.

M<sup>r</sup> Thomas Dimmacke, of Barnestable, is allowed by the Court to bee leiftennant, to exercise their men in armes at Barnestable.

Whereas Charles Thurston, servant to M<sup>r</sup> Wilm<sup>am</sup> Hanbury, for his former misdemeanor, and revelling, & disguised daunceing, was fined l<sup>s</sup> or there about<sup>ℓ</sup>, for w<sup>ch</sup> his said m<sup>r</sup> did vndertake to pay, or el<sup>s</sup> he should haue beene whipt at the publike post, the said Charles Thurston p<sup>r</sup>mis<sup>d</sup> in the Court either to p<sup>r</sup>cure his said master security for the payment thereof, or el<sup>s</sup> to serue him so much longer after his tyme was out (w<sup>ch</sup> the said Charles acknowledged to be two yeares from the xxv<sup>th</sup> of this instant July) as would satisfye his master, and for other demaunds of losse of tyme for absenting himselfe from his service w<sup>th</sup>out his said masters consent.

The Men nominated and appoynted in euery Towne to recouer the Excise & gather it.

|                  |                  |   |
|------------------|------------------|---|
| Plymouth, . .    | John Finney.     | } |
| Duxborrow, . .   | John Willis.     |   |
| Scittuate, . .   | Samuell House.   |   |
| Sandwich, . .    | Peter Gaunt.     |   |
| Taunton, . .     | James Wyatt.     |   |
| Yarmouth, . .    | Edmond Hawes.    |   |
| Barnestable, . . | Isaack Robinson. |   |
| Marshfeild, . .  | Robte Waterman.  |   |
| Rehoboth, . .    | ^                |   |
| Nausett, . .     | ^                |   |
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These are to be for one yeare, and to be yearely renewed.

1646.

7 July.  
BRADFORD,  
Gov.

[\*140.]



1646.

7 July.  
BRADFORD,  
Gov.

[\*141.]

\*It is agreed vpon and ordered by the Court, that when the inhabitantℓ of Sandwich haue payd a debt of xvij<sup>li</sup> or xvij<sup>li</sup>, oweing to the old company, and payd the charg̃ & purchase of their towneship, or such a sūme as M<sup>r</sup> Thomas Prencce and Captaine Miles Standish shall agree vpon, that then the cõmittees or vndertakers shall yeild vp the lands vndesposed of to the towne, to be giuen forth and disposed by such psons as the towne shall appoynt, and that euery inhabitant haueing lands graunted him shall pay pportionably to the sd paymentℓ.

It is ordered by the Court, that the cõmittees of euery towne shall send the names of all their males, from xvi<sup>teene</sup> yeares of age to sixty, to the Goṽ, sealed vp, by the first of August next.

Vpon complaint, by some of the inhabitantℓ of Scittuate, that there was great want of heighwayes to be layd forth, and a form jury haue bene empaneled to haue donn the same who haue not yet, for diuers yeares, recorded their verdict, that the wayes might be knowne as the Court is informed, the Court doth therefore order that a warrant shalbe directed to the constables of Scittuate, requiring them to cause a sufficient jury to be empanelled before M<sup>r</sup> Tymothy Hatherley, who vpon their oathes shall lay forth all such wayes w<sup>th</sup> as much conveyency for the geñall, and as little pjudice to the p̃ticulers, as may be according to the act of the Court.

This Court is adjorney vnto the next Tewsdays before the Geñall Court in October next, w<sup>th</sup> wilbe the xx<sup>th</sup> day of the said month.

Memorand : that something be donn to mayntaine the libertys of the churches, w<sup>th</sup>out intermedleing or wronging eich other, according to the statutℓ of England, that they may liue in peace.

Defects in Apparence this Court by the Ma<sup>trates</sup> and Cõmittees.

|                                        |                      |                                       |
|----------------------------------------|----------------------|---------------------------------------|
| John Dunham, Señ, . . . .              | vj <sup>d</sup> .    | } iiij <sup>s</sup> vj <sup>d</sup> . |
| M <sup>r</sup> Edmond Freeman, . . . . | xviij <sup>d</sup> . |                                       |
| M <sup>r</sup> Thacher, . . . . .      | vj <sup>d</sup> .    |                                       |
| Edmond Hawes, . . . . .                | xij <sup>d</sup> .   |                                       |
| Henry Cobb, . . . . .                  | vj <sup>d</sup> .    |                                       |
| Thom <sup>h</sup> Hinckley, . . . . .  | vj <sup>d</sup> .    |                                       |

[Here the records cease to be in the handwriting of Mr. Souther. The following pages, as far as page 159, in the original manuscript, were written by Governor Bradford.]

\*The 10 of December, 1646.

John Barnes acknowledgeth himself to stand bound to oure soueraigne lord, King Charles, King of England, Scotland, France, & Ierland, Defendore of y<sup>e</sup> Faith, &c, for Thomas Shaue, of Bāstable, body for body, that y<sup>e</sup> said Thomas Shaue shall appeare at y<sup>e</sup> next Generall Courte, to be held at Plimouth for our said soueraigne lord y<sup>e</sup> King, the first Tuesday in March next insuing; and ther to continue till he hath answered all shuch maṽers as are alledged against him by John Crocker or others.

Likwise Thomas Huckins, of Bāstable afforsaid, planter, acknowledgeth himselfe to stand bound for y<sup>e</sup> aforesaid Thomas Shaue, body for body, to our soueraigne lord y<sup>e</sup> King, in all respects as y<sup>e</sup> said John Barnes, &c.

Taken by William Bradford & Captaine Myles Standish, the day & yeare aboue writen.

Vpon the day & time abouesaid, viz<sup>s</sup>, the 2<sup>d</sup> of March, y<sup>e</sup> pson appēd, & so y<sup>e</sup> sureties were released, &c.

1646.

10 December.  
BRADFORD,  
Goṽ.

[\*143.]

*\*Att a Courte of Assistant<sup>℞</sup> holden att Plimouth aforesaid, on Tewesday, the fourth of August, in y<sup>e</sup> xxij<sup>th</sup> Yere of y<sup>e</sup> now Raigne of o<sup>r</sup> Sou<sup>ṽ</sup>aigne Lord, Charles, by y<sup>e</sup> Grace of God of England, Scotland, &c, King, Defendor of y<sup>e</sup> Faith, &c.*

4 August.

NEW PLYM.

[\*144.]

BEFORE W<sup>m</sup> Bradford, gen<sup>tl</sup>, Goṽ,

John Browne, and

Edward Winslow,

W<sup>m</sup> Thomas,

Tymothy Hatherley,

Gent<sup>l</sup>, Assistants, &c.

**I**N the case betwixte Samuuell Eddy and John Dunham, Ju<sup>n</sup>, about y<sup>e</sup> said John Dunhams giving poyson to the said Samuuell Eddys dogg, the Court, having taken the same into serious considera<sup>ṽ</sup>on, vpon hearing what could be said on both sides, the Courte doth order y<sup>t</sup> y<sup>e</sup> said John Dunhame shall finde sureties for his good behavio<sup>r</sup> vnto y<sup>e</sup> next Court.

In the case betwixte Thomas Bonney, compt<sup>℞</sup>, and John Willis and M<sup>r</sup> John Farneseede, defend<sup>s</sup>, for damage don in the corne and garden of y<sup>e</sup> said compt<sup>℞</sup>, w<sup>ch</sup> damage was awarded to vij<sup>s</sup> by such as viewed the same, the Court, having heard the allegations of all the said p<sup>ties</sup>, doe determine, that the said vij<sup>s</sup> shalbe equally borne betwixte them, viz<sup>t</sup>: ij<sup>s</sup> iiij a peece; y<sup>t</sup> is, 2<sup>s</sup>

1646.

4 August.  
BRADFORD,  
GOVERNOR.

4<sup>d</sup> Bonny, 2<sup>s</sup> 4<sup>d</sup> John Willis, & 2<sup>s</sup> 4<sup>d</sup> John Farneside, & Thomas Bonney to pay y<sup>e</sup> charge of y<sup>e</sup> Courte.

In the case betwixte John Barnes, compt<sup>r</sup>, ag<sup>st</sup> Giles Rickett, for a bill of fve pounds and a pcell of silke w<sup>ch</sup> the said compt<sup>r</sup> hath bought of Samuell Harvey, the Court doth award the said Giles Rickett the pcell of silke for his paines taken in the busines, and John Barnes to haue the debte of 6<sup>li</sup> 5<sup>s</sup>, & 15<sup>s</sup> damage & xj<sup>s</sup> charges of y<sup>e</sup> suite, saue y<sup>t</sup> y<sup>e</sup> said John Barnes shall saue y<sup>e</sup> said Giles Rickett harmeles of y<sup>e</sup> said xj<sup>s</sup>, or pay it to him y<sup>t</sup> laid the same downe for y<sup>e</sup> said Harvey.

The Courte grants execu<sup>cion</sup> vpon the debte, &c.

The Court doth award execu<sup>cion</sup> against John Shaw to Tobias Tayler for 50<sup>s</sup>, in peeces of eight, according to y<sup>e</sup> ships account.

The ac<sup>con</sup> depending betwixte Tobias Tayler & John Shawe is re-ferd to ^ .

The foure aboue men<sup>cioned</sup>, not assenting, made choyse of Josias Winslow for the fiffe man; and we whose names are vnderwritten order as follow<sup>th</sup>, that is to say, John Shawe shall pay to Tobias Taylor fifty shillings, according to the seamens account, & the cost of y<sup>e</sup> Court excepting y<sup>e</sup> mony given to the jury.

15 July.

James Addams & Francis Vassall married y<sup>e</sup> 15<sup>th</sup> of Julie, 1646.

John Dunhame, Jun<sup>r</sup>, acknowledgeth to owe the Kinge xl<sup>li</sup>.

Released,  
paying his  
fees.

That the said John Dunhame shalbe of the good behavio<sup>r</sup> towards o<sup>r</sup> so<sup>u</sup>aigne lord y<sup>e</sup> Kinge & all his leigh people, and app<sup>re</sup> here at the nexte Gen<sup>all</sup> Court, and not de<sup>pte</sup> y<sup>e</sup> same w<sup>th</sup>out licence; that then, &c.

20 October.  
NEW PLIM.

[\*145.]

*\*Att the third Session of the Gen<sup>all</sup> Courte, begun the first Tewsday in June, holden the 20<sup>th</sup> of October, in y<sup>e</sup> xxij<sup>th</sup> Yere of y<sup>e</sup> Raigne of o<sup>r</sup> Sou<sup>aigne</sup> Lord, Charles, by y<sup>e</sup> Grace of God King of England, &c., Defender of y<sup>e</sup> Faith, &c.*

BEFORE W<sup>m</sup> Bradford, gen<sup>t</sup>, Go<sup>u</sup>nor,

Edward Winslow,

W<sup>m</sup> Collier,

Cap<sup>t</sup> Miles Standish,

Tymothy Hatherly,

John Browne, and

W<sup>m</sup> Thomas,

Gen<sup>t</sup>, Assistants.

ANTONY THACHER and George Sole were chosen a co<sup>m</sup>itte<sup>e</sup> to draw vp an order concerning disorderly drinking of tobacco.

Whereas Robt<sup>e</sup> Paddock complaines to this Court for and desires to haue an account of what is due unto <sup>^</sup> by the last will & testa<sup>nt</sup> of W<sup>m</sup> Palmer, deceased, the Court desires M<sup>r</sup> Thomas Prence either to come and giue in an account or send it vnto the Go<sup>u</sup>nor, y<sup>t</sup> so what is due vnto y<sup>e</sup> said Paddock may be satisfied vnto him, according to y<sup>e</sup> teno<sup>r</sup> of y<sup>e</sup> said will, as soone as w<sup>th</sup> conveniency he may, and that before this winter yf he canne.

The apportion of e<sup>u</sup>y townships rates for the raising of their publike charges, as by this Court is ordered and agreed, is : —

|           | li | s  | d |             |                    |                   |
|-----------|----|----|---|-------------|--------------------|-------------------|
| Plimouth, | 3  | 10 | 0 | Duxborough, | ij <sup>li</sup>   | x <sup>s</sup> .  |
| Sandwich, | 3  | 5  | 0 | Tanton,     | ij <sup>li</sup>   | x <sup>s</sup> .  |
| Yarmouth, | 2  | 10 | 0 | Marshfield, | ij <sup>li</sup>   | x <sup>s</sup> .  |
|           |    |    |   | Scituate,   | iiij <sup>li</sup> | x <sup>s</sup> .  |
|           |    |    |   | Bāstable,   | ij <sup>li</sup>   | x <sup>s</sup> .  |
|           |    |    |   | Rehoboth,   | iiij <sup>li</sup> | .                 |
|           |    |    |   |             | 28 <sup>li</sup>   | 15 <sup>s</sup> . |

Vpon complaint of Thomas Star, of Yarmouth, about fees of Court, in an accōn psecuted in the Court att Yarmouth aforesaid ag<sup>st</sup> Samuell Hincley, the Court ordereth, that the jury repay what they haue received frō the said Thomas Star as theire fees in y<sup>t</sup> case, & that Sa<sup>m</sup> Hincly pay all y<sup>e</sup> <sup>^</sup> belonging to y<sup>e</sup> clark of y<sup>e</sup> Court.

The two comittees for the towne of Taunton, viz<sup>t</sup>, Richard Williams and <sup>^</sup>, for theire non app<sup>r</sup>ance are fined xx<sup>s</sup> a peece.

Fine remitted  
June 2<sup>d</sup>, 1647.

Whereas the township of Taunton had a fine of 30<sup>s</sup> given vnto them for & towards y<sup>e</sup> amending of their highwaies in c<sup>et</sup>aine swamps; the Court, vnderstanding y<sup>t</sup> they having received y<sup>e</sup> said fine, but not don y<sup>e</sup> said work, doth order y<sup>t</sup> y<sup>e</sup> worke be forthwith sufficiently don, or elce that the mony be repaid by them to the Treasurer for y<sup>e</sup> Go<sup>u</sup>m<sup>ts</sup> vse by March Court next. M<sup>r</sup> Browne vndertooke y<sup>t</sup> y<sup>e</sup> one of y<sup>e</sup> two should be don.

*\*Att a Genn<sup>r</sup>all Courte holden Octob<sup>r</sup> 27<sup>th</sup>, in y<sup>e</sup> xxij<sup>th</sup> Yere of his Ma<sup>ties</sup> now Raigne, of England, &c.*

27 October.  
NEW PLIM.  
[\*147.]

BEFORE M<sup>r</sup> Bradford, Go<sup>u</sup>nor,                      M<sup>r</sup> Browne, &  
M<sup>r</sup> Colliare,                                              M<sup>r</sup> Thomas,  
Capt Miles Standish,  
Gen<sup>t</sup> & Assist<sup>t</sup>.

JOHN TOMPSON, coming into this Court and acknowledging his fault of incontineny w<sup>th</sup> his wife before marriage, but after contract, was fined

Fine v<sup>l</sup>.

1646.

27 October.

M<sup>r</sup>BRADFORD,  
GOV<sup>R</sup>NOR.

v<sup>i</sup> & imprisoned according to order, but paying his fees, was released of his imprisonment.

In a case of difference twixte John Dunham, Juñ, and Sam<sup>e</sup> Edie, the Court orders, & the said John Dunham agreed therevnto, that M<sup>r</sup> W<sup>m</sup> Paddie and John Cooke, Juñ, shall heare, end, & determine all former civill differences twixte them to this p<sup>r</sup>sent day.

In a case of difference twixte Thomas Savery and William Bradford, Juñ, about a canoo, the Court ordereth, that in case he be not found y<sup>t</sup> removed the said canoo frō M<sup>r</sup> Attwoods by the nexte Gen<sup>r</sup>all Court, that then the said Wil<sup>m</sup> Bradford shall satisfie & pay y<sup>e</sup> said Savery v<sup>s</sup>.

John Hore, Thomas Hiland, & John Jenkin, of the grand inquest, for default of app<sup>r</sup>ance at this Court, were <sup>^</sup> 20<sup>s</sup> a peece, according to order.

In the case betweene Gabriell Whelding and Richard Taylor, about his daughter Ruth, the said Gabriell p<sup>r</sup>miseth his free assent and consent to their marriage.

1646-7.

5 January.

NEW PLIM.

[\*148.]

*\*Att a Courte of Assistants holden the v<sup>th</sup> Day of January, in the xxiij<sup>th</sup> Yere of y<sup>e</sup> Reigne of o<sup>r</sup> Sou<sup>r</sup>aigne Lord, Charles, now of England, &c, King, &c.*

BEFORE M<sup>r</sup> Bradford, gen<sup>t</sup>, Gov<sup>r</sup>nor,Cap<sup>t</sup> Miles Standish,Gen<sup>t</sup>, & Assis<sup>t</sup>, &c.

Timothy Hatherly, &amp;

W<sup>m</sup> Thomas,

**W**HEREAS Edward Hall compt ag<sup>st</sup> Cap<sup>t</sup> Standish and Jonathan Bruster, &c, for iij<sup>li</sup> ij<sup>s</sup>, due to him for building, the Court ordereth, that they satisfie & pay him according to their agreem<sup>t</sup>, and they to reco<sup>u</sup>l y<sup>e</sup> same againe frō y<sup>e</sup> towne of Duxbury by way of distresse & sale of y<sup>e</sup> goods of such as refuse to pay their p<sup>r</sup>por<sup>o</sup>ns according to rate.

*\*Att a Gen<sup>r</sup>all Court holden March 2<sup>d</sup>, in y<sup>e</sup> xxij<sup>th</sup> Yere of his 1646-7.  
Mat<sup>ies</sup> now Raigne, of England, &c.*

BEFORE M<sup>r</sup> William Bradford, gent, & Go<sup>d</sup>,  
Cap<sup>t</sup> Standish,  
M<sup>r</sup> Colliare,

Mr Hatherly,  
Mr Browne, &  
Mr Thomas,

### Gentl & Assistants.

2 March.  
NEW PLIM.  
MR  
BRADFORD,  
GOUDNOR.  
[\*149.]

**W**HEREAS Abraham Sampson was presented by y<sup>e</sup> grand inquest for Fine v<sup>r</sup>. being drunke, he, trausing y<sup>e</sup> said present<sup>nt</sup>, made his plea at this Court, & by verdict of y<sup>e</sup> jury was found guilty ac<sup>t</sup> to y<sup>e</sup> present<sup>nt</sup>, and therevpon, ac<sup>t</sup> to order, was fined v<sup>s</sup> & the fees of Courte.

The jury for this triall were, —

|                |          |                    |          |
|----------------|----------|--------------------|----------|
| John Cooke,    | } jurat. | Gabriell Followay, | } jurat. |
| James Hurst,   |          | Giles Rickett,     |          |
| Joseph Rogers, |          | Edmond Tilson,     |          |
| John Finney,   |          | Roßt Finney,       |          |
| Thõ Cushman,   |          | Joshua Pratt,      |          |
| Roßte Wickson, |          | George Watson,     |          |

Att this Court John Crocker compt against Thomas Shawe for coming into his house by putting aside some loose pallizadoes on y<sup>e</sup> Lords day, about y<sup>e</sup> middle of the day, & tooke and carried out of his said house some venison, some beefe, some butter, cheese, bread, & tobacco, to the value of xii<sup>d</sup>, w<sup>ch</sup> y<sup>e</sup> said Thō Shaw openly in publike Court confessed, submitting himselfe to y<sup>e</sup> censure of the Court; wherevpon, his sureties being released, he was comitted to y<sup>e</sup> marshalls charge; and y<sup>e</sup> Court censured him to make satisfaccōn for y<sup>e</sup> goods stolen j<sup>s</sup>, being so valued, and 13<sup>s</sup> 4<sup>d</sup> a peece to y<sup>e</sup> two men y<sup>t</sup> attended on him to y<sup>e</sup> Court, and to be publicly whipt at y<sup>e</sup> post, w<sup>ch</sup> was accordingly don by y<sup>e</sup> publike officer.

Vpon compt of John Vassall vnto y<sup>e</sup> Court conēning John Lewis, app<sup>n</sup>-  
tice to his father for iiij yerēs, being y<sup>e</sup> remaine of vij yerēs in w<sup>ch</sup> he was  
bound to serue George Kenrick, the Court ordereth, y<sup>t</sup> y<sup>e</sup> said John Lewis  
shall dwell with y<sup>e</sup> said M<sup>r</sup> Vassall, and serue out y<sup>e</sup> full terme of his said  
indentures, as also for so long time as he hath absented himselfe w<sup>th</sup>out leaue  
from y<sup>e</sup> service of his said master or former masters in the foresaid seruice of  
vij yerēs, as by indenture app<sup>r</sup>eth.

George Wright and Joseph Tory were released paying their fees of their bonds for the good behavior, but not of attending the Court.

1646-7.

2 March.

M<sup>r</sup>BRADFORD,  
GOVERNOR.Fine x<sup>li</sup>.

[\*150.]

\*Whereas Steven Wing, of Sandwich, & Oseah Dillingham, were found to haue had carnall knowledge each of others body before contract of matrimony, w<sup>ch</sup> the said Steven Wing, coming into the face of y<sup>e</sup> Court, freely acknowledging, he was, according to order of Court, fined in x<sup>li</sup>, and so is discharged.

Whereas George Wright was p<sup>s</sup>ented by y<sup>e</sup> grand inquest for attempting the chastity of di<sup>v</sup>s women by lacivious words & carriages, he, tra<sup>f</sup>ising y<sup>e</sup> said p<sup>s</sup>ent<sup>nt</sup>, made his plea at this Court, & by verdict of a jury of 12 men was found guilty ac<sup>c</sup> to y<sup>e</sup> p<sup>s</sup>ent<sup>nt</sup>. The Court, having maturely considered y<sup>e</sup> matt<sup>s</sup> & circumstances, censured him to be bound to y<sup>e</sup> good behavio<sup>r</sup> to o<sup>r</sup> so<sup>u</sup>aigne lord y<sup>e</sup> King and all his leidge people vntill the next October Court, & then to app<sup>r</sup>e and attend the further pleasure of y<sup>e</sup> Court, & so co<sup>m</sup>itted him vntill he finde sureties.

The Jury for his Tra<sup>f</sup>is.

|                |                     |                            |                     |                           |                     |
|----------------|---------------------|----------------------------|---------------------|---------------------------|---------------------|
| John Finney,   | } ju <sup>r</sup> . | Rob <sup>t</sup> e Wicson, | } ju <sup>r</sup> . | Richard Wright,           | } ju <sup>r</sup> . |
| Joseph Rogers, |                     | Ga <sup>b</sup> Followay,  |                     | Giles Rickett,            |                     |
| Rich Sparrow,  |                     | John Morton,               |                     | Geor <sup>g</sup> Watson, |                     |
| John Crocker,  |                     | Joshua Prat,               |                     | Joseph Torey,             |                     |

William Forde, being p<sup>s</sup>ented for detaining and not deli<sup>f</sup>ting to y<sup>e</sup> own-ers their due weight & measure of corne fr<sup>o</sup> y<sup>e</sup> mill, is in Court admonished only for this first offence, that henceforth he be more carefull to vse diligence and faithfulness, y<sup>t</sup> men may no more haue occa<sup>s</sup>ion iustly to complaine, & to p<sup>r</sup>vide a place for scales & weights in his milne, (being p<sup>r</sup>vided by the towne,) y<sup>t</sup> so all may haue free lib<sup>r</sup>ty to weigh their corne & meale y<sup>t</sup> will, and to put away the dogge or doggs y<sup>t</sup> frequent his milne, & carefully to keepe away sheepe or any other cattle y<sup>t</sup> may annoy mens corne & meale.

Vpon peti<sup>c</sup>on of Francis Crooker, who desires in marriage Mary Gaunt, kinswoman to M<sup>r</sup> Coggin, of B<sup>a</sup>stable, the Court, having heard both p<sup>r</sup>ties & seriously weighed y<sup>e</sup> circumstances, doth order, y<sup>t</sup> yf y<sup>e</sup> said Crooker bring vnto y<sup>e</sup> Go<sup>v</sup>nor a c<sup>e</sup>tificate, vnder the hands of M<sup>r</sup> Chauncy & some other approved phisition, that that disease w<sup>th</sup> w<sup>ch</sup> he is sometimes troubled be not the falling sicknes, that then he, y<sup>e</sup> said Crooker, shall in convenient time haue in marriage the said Mary Gaunt.

Antony Thacher, being returned at this Courte register keeper for Yarmouth, was approved of by y<sup>e</sup> Court.

[\*151.]

\*Whereas Samuell Edeth, & Elizabeth, his wife, of y<sup>e</sup> towne of Plim<sup>th</sup> afore-said, having many children, & by reason of many wants lying vpon them, so

as they are not able to bring them vp as they desire, and out of y<sup>e</sup> good respect they beare to M<sup>r</sup> John Browne, of Rehoboth, one of y<sup>e</sup> Assistant<sup>e</sup> of this goũment, did both of them ioynly desire y<sup>t</sup> he, y<sup>e</sup> said M<sup>r</sup> Browne, would take Zachery, their son, being of the age of seven yeres, & bring him vp in his imploynt of husbandry, or any busines he shall see meete for y<sup>e</sup> good of theire ehild till he come to y<sup>e</sup> age of one & twenty yeres; wherevpon M<sup>r</sup> Browne did, in y<sup>e</sup> p<sup>s</sup>ence of M<sup>r</sup> Bradford, Goũnor, take into his service the said Zachary, & p<sup>m</sup>iseth to p<sup>r</sup>vide for & allow him during y<sup>e</sup> said terme all necessaries convenient & fitting such a servant, according to y<sup>e</sup> state & condiçõn of y<sup>e</sup> country, & doth furth<sup>r</sup>, of his owne will p<sup>r</sup>vide y<sup>t</sup>, yf in case he, y<sup>e</sup> said M<sup>r</sup> John Browne, & his wife, shall deþte this life before y<sup>e</sup> said Zachary shall attaine to y<sup>e</sup> end of his time of service, y<sup>t</sup> then his eldest son, y<sup>t</sup> shall haue y<sup>e</sup> goũnm<sup>t</sup> of him during y<sup>e</sup> residue of y<sup>e</sup> said time not attained vnto, shall not make sale of y<sup>e</sup> said residue of time not attained vnto, nor any p<sup>r</sup>te thereof to any p<sup>r</sup>son or p<sup>r</sup>sons whatsoever whereby he shall or may be wronged; and yf it shall so come to passe y<sup>t</sup> those to whomsoeũ he shalbe comitted vnto, after the death of y<sup>e</sup> said M<sup>r</sup> John Browne & his wife, shall not deale well w<sup>th</sup> him as such a servant ought to be dealt w<sup>th</sup>, then vpon the complaint of any of y<sup>e</sup> friends of y<sup>e</sup> said Zachery, it shalbe lawfull for y<sup>e</sup> deacons of y<sup>e</sup> church of Pliũ aforesaid, w<sup>th</sup> the Goũnor, y<sup>t</sup> then shalbe, to take him wholly away, & place him w<sup>th</sup> whom they shall see meete, p<sup>r</sup>vided y<sup>t</sup> no sale or marchandise be made of y<sup>e</sup> remaine of his time by any.

|                                                                              |          |              |
|------------------------------------------------------------------------------|----------|--------------|
| George Wright, of Rehoboth, plant <sup>r</sup> , acknowledgeth               | } li s d | 40 : 00 : 00 |
| to owe o <sup>r</sup> soũaigne lord y <sup>e</sup> King . . . . .            |          |              |
| Richard Church, of y <sup>e</sup> Eale River, plant <sup>r</sup> , . . . . . |          | 20 : 00 : 00 |
| Samuell Nash, of Duxborow, plant <sup>r</sup> , . . . . .                    |          | 20 : 00 : 00 |

The condiçõn, y<sup>t</sup> yf y<sup>e</sup> aboue bounden George Wright shall psonally app<sup>r</sup>e at y<sup>e</sup> nexte Gen<sup>r</sup>all Court of o<sup>r</sup> soũaigne lord y<sup>e</sup> King, to be holden att Pliũ, in October nexte, &c; & in the meane time to be of y<sup>e</sup> good behavior towards o<sup>r</sup> said soũaigne lord y<sup>e</sup> King and all his leigh people, and abide the further order of y<sup>e</sup> Court, & not deþte y<sup>e</sup> same w<sup>th</sup>out licence; y<sup>t</sup> then, &c.

October Court, 26<sup>th</sup>, 1647. He not ap<sup>p</sup>ing, Richard Church and Samuell Nash had licence and lib<sup>r</sup>ty granted them to bring in the aboue bounden George Wright at the nexte Gen<sup>r</sup>all Courte of o<sup>r</sup> soũaigne lord y<sup>e</sup> King, to be holden at Pliũ aforesaid y<sup>e</sup> first Tewesday in March nexte.

1646-7.

2 March.  
M<sup>r</sup>  
BRADFORD,  
Goũ.

26 October.



1647. *\*Att a Courte of Assistants holden May 4<sup>th</sup>, in the xxxij<sup>th</sup> Yere of his  
Ma<sup>ties</sup> now Raigne, of England, &c.*

4 May.

NEW PLIM.

M<sup>r</sup>

BRADFORD,  
Go<sup>vt</sup>.

[\*152.]

BEFORE M<sup>r</sup> Wilm Bradford, Go<sup>vt</sup>,  
Cap<sup>t</sup> Standish,  
M<sup>r</sup> Colliare,

M<sup>r</sup> Hatherlie, and  
M<sup>r</sup> Thomas,

Gen<sup>t</sup>, & Assis<sup>t</sup>.

IT was ordered, that the now constables of Scituate be by warrant re-  
quired to app<sup>r</sup>e at the next Gen<sup>l</sup>all Court, to giue their account con<sup>c</sup>erning  
y<sup>e</sup> officers wages.

1 June.

NEW PLIM.

[\*153.]

*\*Att a Genn<sup>l</sup>all Courte holden at Plim<sup>th</sup> aforesaid, the first Day of  
June, in the 23<sup>th</sup> Yere of the Raigne of o<sup>r</sup> Sou<sup>er</sup>aigne Lord,  
Charles, by the Grace of God King of England, Scotland, France,  
& Ireland, Defendor of the Faith, &c.*

BEFORE Wilm Bradford, gen<sup>t</sup>, Go<sup>vt</sup>nor, Timothy Hatherly,  
Thomas Prence, John Browne, and  
Wilm Colliare, Wilm Thomas,  
Cap<sup>t</sup> Miles Standish,

Gen<sup>t</sup>, Assistants, &c.

Freemen admitted this Court, and sworne.

Thomas Howes, Thomas Hayward,  
Edward Jenkine, John Allen.

The Names of such as were ppounded to take vp their Freedome at the next  
Gen<sup>l</sup>all Elec<sup>ti</sup>on Court.

|                         |                            |
|-------------------------|----------------------------|
| Ephraim Morton,         | Fran <sup>c</sup> Goulder, |
| Henry Wood,             | Thomas Dunhã,              |
| John Morton,            | John Bradford,             |
| Steven Wood,            | James Glasse,              |
| Richard Paul,           | Ephraim Heckes,            |
| Wilm Willes,            | Alexander Standish,        |
| John Wood,              | John Browne,               |
| Sa <sup>m</sup> Dunham, | John Allen,                |
| Robert Finney,          | Samuell Tomkins.           |
| Jacob Cooke,            |                            |

Mr Wilm Bradford was elected Governor.

1647.

Mr Edward Winslow,  
Mr Thomas Prence,  
Mr Willm Colliare,  
Capt Miles Standish,  
Mr Timothy Hatherly,  
Mr John Browne, &  
Mr Willm Thomas,

} were elected Assistants.

1 June.  
MR  
BRADFORD,  
GOVERNOR.

Mr William Bradford, Go<sup>r</sup>, and  
Mr John Browne, } were chosen Co<sup>m</sup>mission<sup>s</sup>;

and the third man in elec<sup>o</sup>n in case eithr of them faile, who was M<sup>r</sup> Prence,  
and in case he misse, then the 4<sup>th</sup>, viz<sup>t</sup>, M<sup>r</sup> Hatherley.

Capř Miles Standish is chosen Treasurer for this yeare.

The constables chosen by the seüall townes, and p'sented to this Court and  
sworne; are, —

|                  |                                                                                                    |
|------------------|----------------------------------------------------------------------------------------------------|
| Plimouth, . . .  | $\left\{ \begin{array}{l} \text{Andrew Ring,} \\ \text{Robert Wickson,} \end{array} \right\}$ juř. |
| Duxborough, . .  | Wilkm Merritt.                                                                                     |
| Sandwitch, . . . | Thomas Dexter, Juř.                                                                                |
| Yarmouth, . . .  | Tristrā Hull.                                                                                      |
| Marshfield, . .  | Kenelime Winslow & Peter Collimore.                                                                |
| Scituate, . . .  | Edward Jenkin & George Sutton.                                                                     |
| Taunton, . . .   | Oliver Purchis.                                                                                    |
| Bāstable, . . .  | John Hall.                                                                                         |
| Nawsett, . . .   | John Smaley.                                                                                       |
| Rehoboth, . . .  | W <sup>m</sup> Smith.                                                                              |

## Supvisors of the Highwaies.

|                   |                                                                     |
|-------------------|---------------------------------------------------------------------|
| Plimouth, . . .   | ^                                                                   |
| Duxborough, . .   | Edward Hall & John Browne.                                          |
| Scituate, . . .   | { John Williams, Thomas Chambers,<br>Humph Turner & Isaac Stockman. |
| Sandwich, . . .   | Joseph Holloway & George Buett.                                     |
| Taunton, . . . .  | Edward Slocomb & Edward Rew.                                        |
| Yarmouth, . . .   | Gabriell Whelding & John Darbie.                                    |
| Bästable, . . . . | Saſſi Hincley & Henry Rowley.                                       |
| Marshfield, . .   | Thomas Bourne & Thomas Tylden.                                      |
| Rehoboth, . . .   | Robte Tytus & Thomas Blisse.                                        |
| Nawsett, . . . .  | Nicolas Snow & Edward Banges.                                       |

1647.

1 June.

M<sup>r</sup>BRADFORD,  
Gov.

[\*154.]

For Plimouth towne, . . . Richard Sparrow and John Barnes.

For the Eell Riuer, . . . Thoñ Clarke.

For Joanses Riuer, . . . Jakob Cooke.

## \*The Grand Enquest.

|                                    |        |                   |           |
|------------------------------------|--------|-------------------|-----------|
| William Nickerson,                 | } juř. | Anthony Snow,     | } sworne. |
| Richard Church,                    |        | John Dingley,     |           |
| Giles Ricard, (cleared,)           |        | Thomas Tupper,    |           |
| John Morton,                       |        | Edmond Freeman,   |           |
| Edward Tylson,                     |        | John Burseley,    |           |
| John Farnisside,                   |        | Edw̃ Fitzrandall, |           |
| Snmuell Tompkins,                  |        | John Jenkin,      |           |
| Thomas Burd,                       |        | Thõ Gilbert,      |           |
| George Russell,                    |        | John Tysdall,     |           |
| John Daman,                        |        |                   |           |
| Thõ Coop, Thõ Clifton, not sworne. |        |                   |           |

## Receiſs of Excise in each ſeuall Township.

|             |           |                 |
|-------------|-----------|-----------------|
| Plim,       | . . . . . | John Finney.    |
| Scituate,   | . . . . . | Saſñ Jackson.   |
| Taunton,    | . . . . . | James Wyat.     |
| Bästable,   | . . . . . | Isaac Robinson, |
| Rehoboth,   | . . . . . | ^               |
| Duxbořw,    | . . . . . | John Willis.    |
| Sandwich,   | . . . . . | Peter Gaunt.    |
| Yarmouth,   | . . . . . | Edmond Hawes.   |
| Marshfield, | . . . . . | Joseph Beedle.  |
| Nawsett,    | . . . . . | ^               |

M<sup>r</sup> Colliar, M<sup>r</sup> Howland, W<sup>m</sup> Merrick, & George Partrich are appoynted to view an high way for y<sup>e</sup> avoyding of y<sup>e</sup> highway by y<sup>e</sup> Gofñors meadow past Jones River to y<sup>e</sup> vpper path to Mattacheesett, & make reporte of it to y<sup>e</sup> Court, & appoynt it out, & y<sup>e</sup> ſurveiors to lay it out.

James Cole, compt, ag<sup>st</sup> Thomas Pope, in an accõ ſcland<sup>r</sup>, dañ 100<sup>li</sup>. The defend<sup>t</sup> acknoledged his fault in Court, brought in his authors, who did y<sup>t</sup> same wherevpon y<sup>e</sup> compt let fall his accõ, the defend<sup>s</sup> equally paying the charges.

Cap<sup>t</sup> Miles Standish, compt, ag<sup>st</sup> Gilbert Brookes, in an accõ of trespas vpon the case; dañ v<sup>li</sup>. The jury found for y<sup>e</sup> defend<sup>t</sup> 2<sup>d</sup> dañ, & charge of y<sup>e</sup> Courte.

Thomas Prence, gent, compt, ag<sup>st</sup> Edward Holeman & Nicolas Hodges,  
def: Acōn, trespass vpon y<sup>e</sup> case; dañ 40<sup>s</sup>. The jury found for the plain<sup>t</sup>.  
his peece & locke made good by y<sup>e</sup> defend, & cost of Court, and iudgm<sup>t</sup> there-  
vpon was graunted.

1647.

1 June.  
M<sup>re</sup>  
BRADFORD,  
Gov.

The Petty Jury for these Trialles.

|                       |                     |                     |           |
|-----------------------|---------------------|---------------------|-----------|
| John Finney,          | } ju <sup>r</sup> . | John Allen,         | } sworne. |
| Rich Sparrow,         |                     | Joshua Pratt,       |           |
| Robte Wickson,        |                     | Experience Michell, |           |
| Sa <sup>m</sup> Nash, |                     | Rich Higgens,       |           |
| George Soule,         |                     | George Partrich,    |           |
| W <sup>m</sup> Wood,  |                     | Richard Wright,     |           |

\*The Co<sup>m</sup>ittees for this Courte.

[\*155.]

|                    |   |                       |                                |
|--------------------|---|-----------------------|--------------------------------|
| Ply <sup>m</sup> , | { | John Dunham,          | John Howland,                  |
|                    |   | James Hust,           | W <sup>m</sup> Paddy.          |
| Sandwich,          |   | Thō Tupper,           | W <sup>m</sup> Newland.        |
| Taunton,           |   | Henry Androuse,       | Edward Case.                   |
| Nawsett,           |   | Josias Cooke &        | Richard Higginson.             |
| Duxborough,        |   | M <sup>r</sup> Alden, | Const <sup>le</sup> Southward. |
| Scituate,          |   | Humphrey Turner &     | John Williams.                 |
| Yarmouth,          |   | Anthony Thacher,      | Edmond Hawes.                  |
| Bāstable,          |   | Anthō Anable,         | Henry Cob.                     |
| Marshfield,        |   | Josias Winslow,       | Robte Waterman.                |
| Rehoboth,          |   | Walter Palmer,        | Steven Paine.                  |

Joseph Rogers p<sup>o</sup>posed by the towne of Nawset to this Court for liuten-  
ant, to exercise theire men in armes, is by this Court appved & established  
liuetennant there. Willm Newland also liuetennant for Sandwich.

The Courte ordereth and requesteth M<sup>r</sup> Alden & John Washborne to view  
the bounds betwixte the lands of Cap<sup>t</sup> Standish & Frauncis Eaton, and sett  
them at rights.

M<sup>r</sup> Alden & M<sup>r</sup> Paddie were chosen and appoynted a co<sup>m</sup>ittee to take an  
account of y<sup>e</sup> Treasurer for y<sup>e</sup> last yere, & make reporte thereof at y<sup>e</sup> nexte  
Gen<sup>l</sup>all Court.

Whereas the towne of Marshfield was p<sup>o</sup>sented for not trayning accord-  
ing to order, the Court hath appoynted (vpon y<sup>e</sup> co<sup>m</sup>ittees answer) and in-  
treated Cap<sup>t</sup> Miles Standish to goe o<sup>u</sup>t and exercise the company, & vpon his  
tryall finding any pson of y<sup>e</sup> company in some good measure able to exercise  
y<sup>e</sup> body, to invest him w<sup>th</sup> power to do it, vntill y<sup>e</sup>y p<sup>o</sup>sent to y<sup>e</sup> Court a fit man

1647.

1 June.  
M<sup>r</sup>  
BRADFORD,  
Gov.

for to be their leader, & to attend to such further directions as the said capt shall give them, & y<sup>e</sup> seargeant of y<sup>e</sup> band, vpon notice given him by y<sup>e</sup> committees, to warne a trayning day y<sup>e</sup> 16 day of this moneth, & in case y<sup>t</sup> day shalbe rayny, then y<sup>e</sup> next faire day following.

It is enacted by this Courte, y<sup>t</sup> y<sup>e</sup> towne of Rehoboth shall haue lib<sup>r</sup>ty yerely to make choyse of two freemen of y<sup>r</sup> inhabitants to be Assistants vnto y<sup>e</sup> magistrate then in being, for the examining & trying of all matt<sup>rs</sup> in difference betwene p<sup>r</sup>ty & p<sup>r</sup>tie, by a jury of twelue men, not exceeding y<sup>e</sup> valew of tenne pounds, reserving lib<sup>r</sup>ty to any p<sup>r</sup>ty after triall for appeale to y<sup>e</sup> Gen<sup>r</sup>all Courts att Plimouth, p<sup>r</sup>vided y<sup>t</sup> y<sup>e</sup> appeale be made y<sup>e</sup> same day y<sup>e</sup> verdict is brought in, & he y<sup>t</sup> shall appeale doe giue security y<sup>t</sup> yf he be cast in the Court of Plimouth, then he shall pay double damages.

And further, for the avoyding of travell & charge, the freemen of the towne of Rehoboth shall for y<sup>e</sup> elec<sup>n</sup> of ma<sup>strates</sup> haue lib<sup>r</sup>ty to send their votes by proxies, p<sup>r</sup>vided their votes be orderly taken in y<sup>e</sup> towne meeting, and then immediately sealed vp and deli<sup>u</sup>id to y<sup>e</sup> committees or grand iurymen who shalbe sent to attend the affaires of y<sup>e</sup> Gen<sup>r</sup>all Court, and deli<sup>u</sup>id in Court by them, vnles vpon other weighty occations their p<sup>r</sup>sence be required by speciall warrant.

26 October.  
NEW PLIM.  
[\*157.]

*\*Att a Genn<sup>r</sup>all Court there holden, Octob<sup>r</sup> 26<sup>th</sup>, in y<sup>e</sup> 23<sup>th</sup> Yere of his Ma<sup>ties</sup> now Raigne, of England, &c.*

BEFORE M<sup>r</sup> W<sup>m</sup> Bradford, Gov<sup>r</sup>nor,  
M<sup>r</sup> Prence,  
M<sup>r</sup> Colliare,  
Capt Miles Standish,

M<sup>r</sup> Tymothy Hatherley,  
M<sup>r</sup> John Browne, &  
M<sup>r</sup> Wil<sup>m</sup> Thomas,

Gen<sup>tl</sup>, Assistants, &c.

**R**ICHARD SARES, compl<sup>t</sup>, ag<sup>st</sup> Nepoytam, Sachamas, and Felix, Indians. The Court ordered & gaue power to M<sup>r</sup> Thomas Prence, accompanied w<sup>th</sup> Anthony Thacher, to here his complaint at his house, at Nawsett, and determine the same, & both plain<sup>r</sup> & Nepoytam in Courte agreed to y<sup>e</sup> same.

M<sup>r</sup> Hath<sup>l</sup>ey here in Court acknowledgeth that Helene, the wife of Kanelme Winslow, acknowledged her free assent and consent to y<sup>e</sup> sale of all such lands as her said husband had sould vnto Samu<sup>el</sup> Sturdevant. Capt Miles Standish acknowledged likewise, y<sup>t</sup> she, the same Helene, acknowledged her

free assent & consent to y<sup>e</sup> sale of all such lands as her said husband had sould to Henry Sampson.

John Floyde, paying his fees, was released frō his bonds for y<sup>e</sup> peace ; but Xtopher Winter, refusing to pay his fees, was not released.

In a case of diffrence twixte John Floyde & Jane Duglas, his serv<sup>t</sup>, the Court ordereth y<sup>t</sup> the said Jane, or her assignes, pay vnto y<sup>e</sup> said John, or his ass<sup>s</sup> y<sup>e</sup> sum of iij<sup>li</sup> x<sup>s</sup> in good country pay w<sup>th</sup>in 30<sup>th</sup>e dayes after sight of this order, & so she is released frō y<sup>e</sup> service of her said master, Floyde, & hath her lib<sup>ty</sup> to serue elcewhere.

At this Court, W<sup>m</sup> Handbury, compt<sup>r</sup>, ag<sup>st</sup> Fran<sup>ç</sup> Billington, for v<sup>li</sup> xv<sup>s</sup>, or thereabouts, it was agreed vpon by them in y<sup>e</sup> Courte, that y<sup>e</sup> said Billington shall & will satisfie & pay vnto M<sup>r</sup> W<sup>m</sup> Handbury, or his ass<sup>s</sup>, two barrells of tarre, marchantable, at the house of James Cole, in Pli<sup>m</sup>, w<sup>th</sup>in y<sup>e</sup> space of eight dayes nexte insuing, and the remaine to him or his assignes by y<sup>e</sup> 20<sup>th</sup> day of March nexte, & in case he failes of eith<sup>r</sup> y<sup>e</sup> said paym<sup>ts</sup>, it shalbe lawfull for y<sup>e</sup> said W<sup>m</sup> Hanbury, or his ass<sup>s</sup>, to seize into his owne hands and possession so much in one cow, w<sup>ch</sup> he, y<sup>e</sup> said Billington, now stands possessed of, & hath not form<sup>ly</sup> ingaged y<sup>e</sup> said cow for.

Att this Court, M<sup>r</sup> W<sup>m</sup> Bradford, Go<sup>u</sup>, administrator of y<sup>e</sup> goods, and chattles, & cattles of Sarah, y<sup>e</sup> wife & relict of Cutbert Godberson, deceased, gaue in an account of his said administratorship, & requiring his discharge ; his accoumpt vpon view being accepted, he was likewise discharged.

\*The Courte ordereth, vpon peti<sup>ç</sup>on of Richard Burt, the sonne of Richard Burt, deceased, late of Taunton, that y<sup>e</sup> said Richard Burt shall make choyse of his owne gardian ; & whereas he makes choyse of his vncl<sup>e</sup>, James Burt, to be guardian vnto him, & to liue w<sup>th</sup> him during his minority, the Court appues of his choyse, & confirms the same.

[\*158.]

The Court ordereth, and giues full power vnto M<sup>r</sup> Bradford, Go<sup>u</sup>, to stay and seyze vpon all ye goods, corne, and graine y<sup>t</sup> are in and vpon his farme by Jones Riuer, vntill his tennants haue fully satisfied and payde vnto him, or his ass<sup>s</sup>, all such rents & oth<sup>r</sup> dues as are due and payable vnto him frō his now tennants there.

The Courte ordereth, that for ye raising of y<sup>e</sup> publike charge for officers wages for this last yere, to p<sup>ce</sup>ede according to y<sup>e</sup> rates & p<sup>po</sup>rtions of y<sup>e</sup> form<sup>l</sup> yere, only Nawset, being now to be added thereto, is now rated, & ordered to pay xl<sup>s</sup>.

|                                                                                         |                |
|-----------------------------------------------------------------------------------------|----------------|
| James Cole, of Pli <sup>m</sup> , acknowledgeth to owe o <sup>r</sup> so <sup>u</sup> - | { li   s   d   |
| aigne lord y <sup>e</sup> King . . . . .                                                | { 40 : 00 : 00 |
| Thomas Willett, of Pli <sup>m</sup> , . . . . .                                         | 20 : 00 : 00   |

1647.

26 October.

M<sup>r</sup>BRADFORD,  
Go<sup>u</sup>.

1647.

26 October.  
BRADFORD,  
Gov.

James Coall  
discharged of  
these bonds.

Antony Thacher, of Yarmouth, . . . . . 20 : 00 : 00

The condiçon, y<sup>t</sup> yf y<sup>e</sup> aboue bounden James Cole shall psonally app<sup>e</sup> at y<sup>e</sup> nexte Gen<sup>l</sup>all Court of o<sup>r</sup> so<sup>u</sup>laigne lord y<sup>e</sup> King, to be holden at Plim<sup>th</sup> in March nexte, and in y<sup>e</sup> meane time to be of y<sup>e</sup> good behavior tow<sup>ds</sup> our said so<sup>u</sup> lord y<sup>e</sup> King, and all his leidge people, & to abide y<sup>e</sup> further order of y<sup>e</sup> Court, & not de<sup>p</sup>te the same w<sup>th</sup>out licence ; y<sup>t</sup> then, &c.

John Groomes, of Plim<sup>th</sup>, acknoledgeth to ow o<sup>r</sup> so<sup>u</sup>- { u s a  
aigne lord y<sup>e</sup> King . . . . . { 40 : 00 : 00

Thomas Clarke, of y<sup>e</sup> Yele Riuer, plant<sup>r</sup>, . . . . . 20 : 00 : 00

Thomas Little, of y<sup>e</sup> Yele River, plant<sup>r</sup>, . . . . . 20 : 00 : 00

M<sup>r</sup> Groomes is  
aquited of  
these bonds.

The condiçon, y<sup>t</sup> yf y<sup>e</sup> aboue bounden John Groomes shall psonally app<sup>e</sup> at y<sup>e</sup> nexte Gen<sup>l</sup>all Court of o<sup>r</sup> so<sup>u</sup>laigne lord y<sup>e</sup> Kinge, to be holden at Plim<sup>th</sup> in March nexte, & in y<sup>e</sup> meane time to be of y<sup>e</sup> good behavior tow<sup>ds</sup> o<sup>r</sup> said so<sup>u</sup> lord y<sup>e</sup> King & all his leidge people, & to abide y<sup>e</sup> further order of y<sup>e</sup> Court, & not de<sup>p</sup>te y<sup>e</sup> same w<sup>th</sup>out licence ; y<sup>t</sup> then, &c.

[Here the records first appear in the chirography of Mr. Nathaniel Morton, Secretary of the Colony.]

7 December.

[\*159.]

This was at a  
Court of As-  
sistant{.

\*New Plimouth, this 7<sup>th</sup> of December, 1647. Wheras Samu<sup>el</sup> Cutbert complaineth against Edward Doty, for y<sup>t</sup> hee, the said Edward Doty, hath wronged the said Samu<sup>el</sup> in taking away so<sup>m</sup> wood from of his land, the Court haueing heard what can bee *be* said on both si<sup>d</sup>s, the said Court hath ordered y<sup>t</sup> the said Edward Doty shall pay vnto the said Samu<sup>el</sup> Cutbert 7 shill<sup>l</sup> damage, & the charges of the Court.

[\*160.]

\*Whereas the inhabitants of Rehoboth desire liberty to make vse of a quantity of marsh lying on the west syde of Sowames Riuer, w<sup>h</sup> they call the new meadowes, containing about one hundred accars, vntell there should bee a plantation at Sowames, leaue was graunted vnto them so to make vse of it, but no further ppriety to belong vnto them, but vntell a plantation should bee settled at Sowames ; and for the avoyding of all differences or contention amongst them about the same, it is left vnto the discretion of M<sup>r</sup> Browne for him to dispose of it amongst them, as hee should see them stand in need.

And for such pieces of marsh lying within the fence vpon the necke of land w<sup>h</sup> the Indians are possessed of, and doe inhabite, which doth not belong vnto the township of Rehoboth, M<sup>r</sup> Browne is allowed to make vse of the same for himself, without molestation from the inhabitants of Rehoboth, vntell there bee a plantation at Sowames, and then to require no further ppriety therin.

*\*Att a Generall Court holden the 7<sup>th</sup> of March, in the twenty third* 1647-8.  
*Yeare of his Ma<sup>ties</sup> now Raigne, of England, &c.*

BEFORE M<sup>r</sup> William Bradford, Gouverner, Capitaine Myells Standish, and  
 M<sup>r</sup> Prence, M<sup>r</sup> William Thomas,  
 M<sup>r</sup> Coliar,  
 Gen<sup>tl</sup>, Assistants, &c.

7 March.  
 NEW  
 PLIMOUTH.  
 M<sup>r</sup>  
 BRADFORD,  
 GOVER.  
 [\*161.]

THE military company of the towne of New Plimouth, haueing acord-  
 ing to order, propossed vnto the Court 2 men for euery espetiall offise  
 of thair band, the Court doe alow and aproue of—

M<sup>r</sup> Thomas Willit for capptain,  
 Of M<sup>r</sup> Thomas Southworth for lieuetenant,  
 Of M<sup>r</sup> Will<sup>m</sup> Bradford, Junior, for insigne.

The bridge at Joanses Riuer being dangerus to passe ouer it, both for man  
 and beast, the Court haue ordered y<sup>t</sup> Capitaine Myells Standish, Tresurer,  
 doe see the said bridge repaired forthwith.

A bill exhibbited vnto the Court by M<sup>r</sup> Charles Chanssy, complaining of  
 the neglect of payment of the charges of Roger Cooke, for his diet in the  
 time of his sicknes, and for his funerall expences, which is required of the  
 towne of Marshfeild, the Court hath ordered y<sup>t</sup> Josiā Winslow shall defraye  
 the said charges, being ingaged to doe the same.

Captain Myels Standish is deputed by the Court to haue the hearing, and  
 to put to an end all sutch differences as doe remayne in the towne of Yarmouth.

Leiuetenant Nashe and Serġant Church are respited vntell the next  
 Court, at which Court thay are to cauese to apere Captain Gorġ Wright in  
 person, for whose personall appearance and good behaiour thay stand bound.

*\*At a Court of Assistants holden the 2<sup>cond</sup> of May, 1648.*

BEFORE M<sup>r</sup> Bradford, Gouvernor, Captayn Miles Standish, and  
 M<sup>r</sup> Thomas Prenĉ, M<sup>r</sup> William Thomas,  
 M<sup>r</sup> William Coliar,  
 Gen<sup>tl</sup>, Assistants.

1648.  
 2 May.  
 NEW  
 PLIMOUTH.  
 [\*162.]

PETER HANBERY aknowlidgeth to owe vnto our souer- } 20<sup>l</sup>.  
 ain lord the King . . . . . }



1648.

2 May.  
NEW  
PLYMOUTH.  
M<sup>r</sup>  
BRADFORD,  
GOVERNOR.

The condition, y<sup>t</sup> if the aboue bounden Peeter Hanbery shall aſeere at the next Generall Court of our ſouerein lord the King, to bee holden at Plimouth aforesaid, the first Tusday in June next, and in the mean time prouið surtyes for his good behaviour ; that then, &c. This bond forfeit by non aper.

John Barnes, of Plimouth, is aſowed by the Court to brew and sell beere vnto comers and goers vntell the Court shall see reason to the contrary in regard of his intent to bake biscake, and for y<sup>t</sup> otherwise it would bee pre-jeditiall vnto him.

Whereas differences are between Captaine Miles Standish and Samuell Eaton, about the bounds of thayer lands, the Court haue aſoynted y<sup>t</sup> M<sup>r</sup> All-din, John Washburn, Senior, Henery Sampson, and Phillip Delanoy shall viue and set at rights sutch diferences as are between them.

Wheras contreversis have been between M<sup>r</sup> Gromes and Thomas Clarke, of Plymouth, about sundery acounts depending between them, the ſd differences haueing been heard by M<sup>r</sup> Bradford, M<sup>r</sup> Coliar, and Captaine Miles Standish, the ſd M<sup>r</sup> Gromes couenants to pay vnto the ſd Thomas Clarke 14 bushels of wheat, and five bushells of Indian corn, the wheat to bee payed on the 15<sup>th</sup> day of September next, and the Indian corne to be payed when it is marchantable ; allso, y<sup>t</sup> the ſd Thomas Clarke accepteth of 4<sup>s</sup> debt dew vnto M<sup>r</sup> Gromes from M<sup>r</sup> Prence, and so all mañer of debts and demaunds are cleared from the begeeing of the world to this day.

5 December. 1648, December fife. Vpon M<sup>r</sup> Coliars demaund of the aforsaid debt, theſ was payed by M<sup>r</sup> Gromes three pound fve shill and 4 pence.

7 June.  
NEW  
PLYMOUTH.  
[\*163.]

*\*Att a Generall Court holden at Plimouth aforsaid, the 7<sup>th</sup> of June, 1648, in the twenty fourth Yeare of his Ma<sup>ties</sup> now Raigne, of England, &c.*

|                                       |                                  |
|---------------------------------------|----------------------------------|
| BEFOR William Bradford, gent, Gouver, | M <sup>r</sup> Timothy Hatherle, |
| M <sup>r</sup> Thomas Prence,         | M <sup>r</sup> John Brown, and   |
| M <sup>r</sup> William Coliar,        | M <sup>r</sup> William Thomas,   |
| Captain Mils Standish,                |                                  |
| Gent, Aſiſtants.                      |                                  |

**F**REEMEN admitted this Court, and sworne :—

Isaak Stedman,  
Robert Caruer,

Robert Titus,  
William Cheesburow,

John Morton,  
Ephraim Morton,  
John Wood,  
Henery Wood,  
Samuell Dunham,  
Robert Finny,  
Jakob Cooke,  
James Glaſe,

Ephraim Hicks,  
Alexander Standish,  
Samuell Tomkins,  
John Aldin,  
James Wyate,  
Nicolas Hyde,  
Joſeph Tory.

1648.

7 June.  
M<sup>r</sup>  
BRADFORD,  
GOVERNOR.

This Court M<sup>r</sup> William Bradford was elected Gouverñ.

|                                   |   |                     |
|-----------------------------------|---|---------------------|
| M <sup>r</sup> Edward Winslow,    | } | elected Assistants. |
| M <sup>r</sup> Thomas Prence,     |   |                     |
| M <sup>r</sup> William Coliare,   |   |                     |
| Captain Mylls Standish,           |   |                     |
| M <sup>r</sup> John Brown,        |   |                     |
| M <sup>r</sup> Timothy Hatherlee, |   |                     |
| M <sup>r</sup> William Thomas,    |   |                     |

This Court M<sup>r</sup> William Bradford, Gouverner, and M<sup>r</sup> John Brown weer elected comiſſioners for the Vnited Colynies.

Captain Myls Standish elected Trésurer for this yeare.

\*The comiſſitees for this Court weer —

[\*164.]

|                     |                                          |                              |
|---------------------|------------------------------------------|------------------------------|
| For Plimouth, . .   | { M <sup>r</sup> John Howland,           | Mannasses Kemton,            |
|                     | { M <sup>r</sup> William Pady,           | John Cooke.                  |
| For Duxbery, . .    | M <sup>r</sup> John Alld <sup>a</sup> ,  | William Basset.              |
| Seteaat, . . . .    | { sent none this Court.                  | John Williams and            |
|                     | { Thomas Chambers, being present, serued |                              |
|                     | { in the rome of comiſityes.             |                              |
| For Sandwidg̃, . .  | Thomas Tupper and                        | Thomas Burgis.               |
| For Yarmouth, . .   | Leiuetenant Palmer and                   | M <sup>r</sup> Edmond Hawes. |
| For Barnstable, . . | M <sup>r</sup> Thomas Dimake and         | Thomas Hincklee.             |
| For Taunton, . .    | Richard Williams,                        | Edward Case.                 |
| For Marshfeild, . . | Thomas Chillingsworth,                   | Robert Waterman.             |
| For Rehoboth, . .   | Robert Titus,                            | John Dogged.                 |
| For Naussit, . . .  | Nicolas Snow,                            | Samuell Hicks.               |

\*The Cunstables of the seuerall Townes.

[\*165.]

For Plimouth, . . Ephraim Morton, sworn.  
For Duxbery, . . Thomas Heward, sworn.

1648.

7 June.  
M<sup>r</sup>  
BRADFORD,  
GOVERNOR.

For Seteaat, . . { Thomas Hyland, not sworn, and  
Isaake Stedman, sworn.  
For Sandwidg̃, . . James Skiffe, sworn.  
For Taunton, . . M<sup>r</sup> Thomas Gilbert, sworn.  
For Yarmouth, . . John Marchant, to bee sworn at home.  
\* For Barnstable, . . M<sup>r</sup> Thomas Allin, to bee sworn at home.  
For Marshfeild, . . { John Gorum and } both sworn.  
Thomas Tildin, }  
For Rehoboth, . . John Allin, to bee sworn at home.  
For Naussit, . . . Jobe Cole, to bee sworn at home.

## The Grand Inquest.

|                   |                    |                              |   |        |   |                        |
|-------------------|--------------------|------------------------------|---|--------|---|------------------------|
| Jury sworn.       | {                  | John Dunham, Señ,            | } | sworn. | { | John Barker,           |
|                   |                    | Isaak Wells,                 |   |        |   | Joseph Colman,         |
|                   |                    | Peeter Gant,                 |   |        |   | John Stokbridg̃,       |
|                   |                    | M <sup>r</sup> Thomas Burne, |   |        |   | John Allin,            |
|                   |                    | Isaake Robinson, absent,     |   |        |   | Thomas Bordman, absent |
|                   |                    | Robert Finny,                |   |        |   | and fiff,              |
|                   |                    | Henery Wood,                 |   |        |   | ‡Thomas Bursell,‡      |
|                   |                    | ‡Ephraim Hicks,‡             |   |        |   | James Bursell, absent, |
|                   |                    | James Walker,                |   |        |   | Joseph Tory,           |
|                   |                    | James Wyat,                  |   |        |   | Robert Sharpe,         |
| Loue Brewster,    | Mycæll Blackweell, |                              |   |        |   |                        |
| William Paybody.+ | Daniell Cole.      |                              |   |        |   |                        |

[\*166.]

\*Servayors for the Hyeways.

|                      |                  |                |
|----------------------|------------------|----------------|
| For Plimouth, . . {  | Richard Spařow,  | Thomas Clarke, |
| {                    | John Barnes,     | Jakob Cooke.   |
| For Duxbery, . . .   | Francis Sprage,  | Abram Sampson. |
| For Seteaat, . . . { | John Willis,     | Humfry Turner, |
| {                    | Thomas Chambers, | Thomas Burd.   |
| For Sandwidge, . .   | Thomas Dexter,   | John Fishe.    |
| For Taunton, . . .   | John Dean,       | Richard Stasy, |
| For Yarmouth, . .    | Richard Tayler,  | Francis Baker. |
| For Barnstable, . .  | Thomas Burman,   | Gorge Lewis.   |
| For Marshfeild, . .  | John Russell,    | Robert Barker. |
| For Rehoboth, . .    | John Miller,     | John Pellum.   |
| For Naussit, . . .   | Josias Cooke,    | Robert Vixon.  |

The names of those y<sup>t</sup> are to take vp the excise weer these : —

|                 |         |                             |
|-----------------|---------|-----------------------------|
| For Plimouth,   | . . . . | John Finny.                 |
| For Duxbery,    | . . . . | John Willis.                |
| For Seteaat,    | . . . . | Samuell House.              |
| For Sandwidg̃,  | . . . . | Peeter Gaunt.               |
| For Taunton,    | . . . . | James Wyat.                 |
| For Yarmouth,   | . . . . | M <sup>r</sup> Edmond Haws. |
| For Barnstable, | . . . . | Isaake Robinson.            |
| For Marshfeild, | . . . . | Joseph Beddle.              |
| For Rehoboth,   | . . . . | John Dogged.                |
| For Naussit,    | . . . . | Nicolas Snowe.              |

1648.

7 June.  
M<sup>r</sup>  
BRADFORD,  
GOVERNOR.

Constant Southworth allowed to sell wine at Duxbery.

Richard Sillis allowed to sell wine at Seteaat.

Josias Cooke allowed to sell wine at Nausset, and to be register keeper for the townne.

\*The names of those y<sup>t</sup> weer absent this Court y<sup>t</sup> should haue taken vp [\*167.]  
thaire freedom.

|                   |                |
|-------------------|----------------|
| Richard Paull,    | John Bradford, |
| William Phillips, | John Browne,   |
| Francis Goulder,  | Thomas Dunham. |

The names of those y<sup>t</sup> stand propounded vnto the Court to take vp thair freedom are these : —

|                 |              |
|-----------------|--------------|
| John Dogged,    | John Gorum,  |
| Obadia Holmes,  | Thomas Burd, |
| Thomas Clifton, | John Daman.  |

Samuell Mayo complains against John William, Señ, in an action of tresspas vpon the case, to the damage of fourty pounds.

Samuell House complains against Gowin White, in an action vpon the forfeiture of a bond, in a ma<sup>r</sup> of arbetracion, to the damage of fve pound.

Samuell House complains against Gowin White, in an action of tresspas vpon the case, to the damage of twenty pound.

Gowin White complainys against Samuell House, in an action of tresspas vpon the case, to the dama<sup>g</sup> of tenn pound.

These foure actions aboue written weer all non suted by reason of the plaintifes not a<sup>p</sup>peering to prosecute, and the charges of the Court awarded to bee payed by the plaintiffes.

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7 June.

M<sup>r</sup>BRADFORD,  
GOVERNOR.

Sertain debts demaunded of the ouerseers of the will of Thomas Howell, deseased, which the said Thomas Howell ought in his life time.

Vpon the demand of a debt by Captain Harding, the jury find for the plaintife the debt and the charges of the Court.

Vpon the demand of a debt of one pound 5 shilt, by John Barker, the jury find for the plaintife 16 shilling and the charges of the Court.

[\*168.] \*In the action of debt dew from Thomas Howell to Simon Sutton, the jury find for the plaintife the debt and the charges of the Court.

The jury for these trialls weer these fōlōing : —

|             |                                                                                                                                                                                         |               |                                                                                                                                                                                                |
|-------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Jury sworn. | {<br>M <sup>r</sup> Thomas Howes,<br>‡Samuell Nash, ‡<br>Christofer Waddsworth,<br>Experience Michell,<br>Phillip Delanoy,<br>Joshua Prate,<br>Richard Spañow,<br>Barnard Lumberd,<br>} | } jury sworn. | {<br>Thomas Chambers,<br>Robert Carver,<br>James Skiffe,<br>John Washburn,<br>Robert Bartlit a part<br>of the time, & being<br>nessesitated to depart,<br>John Thomson was<br>put in his rome. |
|-------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

M<sup>r</sup> Edmond Haws presenting a parssell of waights to the Court, to bee the standerd for the waights of Yarmouth, the Court doe ałow them so to bee.

The Court hath ordered, concerning the estate of M<sup>r</sup> Winchester, for the well disposing therof, for the good of his children, that M<sup>r</sup> Brown doe treat with the superuisors of his will and teastament, and to doe in y<sup>t</sup> behalfe what shall bee needfull.

Further, wheras it doth apeer by the late will and testament of M<sup>r</sup> Alexander Winchester, desseased, y<sup>t</sup> hee hath made his wife the sole executris of his will afořsaid, it is ordered by the Court, y<sup>t</sup> if M<sup>r</sup> Brown and the towne of Rehoboth shall see it needfull to make choise of another vnto himselfe and the superadvisers, for the well disposing of the afořsaid estate in the behalfe of the children of the afořsaid M<sup>r</sup> Winchester.

[\*169.] \*Nicolas Hyde petissions to the Court for a child's portion of the estař of Thomas Blisse, desseased, and the Court haue promised to take it into consideration.

That soñ one of the grandjurymen of Yarmouth doe keep a trew standerd to tryall waights in the townshipe by.

The Court doe ałow a fine of fūe pound dew from John Tomson to the towne of Plimouth, towards the mending of the causway at Joansses Riuer.

The Court doe ałow and request M<sup>r</sup> Howland, William Merrick, and John

Roggers to stake out the hyeway from Joansses Riuer Brîdge to Massachusets Path, by William Meñicks aforesaid.

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The inhabytants of the Eell Riuer haue propossed to the Court èther to haue thaire bridge now in building to bee a toalle bridg, or to haue soñ healpe towards the charge. The Court haue promised to take it into consideration vntel the next Court.

The Court haue ordered y<sup>t</sup> Nausset pay by rate fourty shilling for the last yeare, and fourty for this present yeare; and soe añually forty shillings.

And further, y<sup>t</sup> the seuerall townships are to pay thair rates according to the same proportion thay did the last yeare.

That by retaile of tobacco is to bee ment all y<sup>t</sup> sell it by retaile, whether in roule or any other wise, y<sup>t</sup> onely exsepted which men raise by planting at home.

\*Wheras it doth apeer y<sup>t</sup> theř is a debt of fîue pound and 8 shill aperiaining vnto Gorg Wright, in the hands of John Dogged, of Rehoboth, the Court haue ordered, y<sup>t</sup> the said debt remayne atached in the hands of John Dogged afořsaid, for the vse of Leiutenant Nash and Sergeant Church, in consideration of the damage befating them by the abouesaid Gorg Wright, the breaking of his bands for the good behavior.

[\*170.]

Lřes of adminestration are graunted vnto Edmond Weston, to adminester vppon the estate of Thō Howell, desseased, and to pay his debts as fare and by equall pporsions as the estate will amount vnto, and Phillip Delanoy and Robert Carver with him.

Josia Winslow, Junier, is atowed and aproued of by the Court to bee insyne bearer of the trayne band of Marshfeild.

The Court haue ordered, y<sup>t</sup> what the exsyse shall not defray of the charges by the magestrats table shall bee satisfied by the fines, and yet if theř bee want, the cuntry to make it vp.

M<sup>r</sup> Howland and M<sup>r</sup> Alldin to bee aded to the Trēsurer, to take an account of the trade of Cenebecke, and to yeild a trew account to the Court therof, betwext this and the sixteenth of July next.

Richard Burton, being açused for stealling of a calfe, and the same açusation orderly proued against him, was sensured by the Court to pay vnto the owener of the calfe sixteene shillings, and to bee publicly whipte, the laër whearof açordingly was performed.

M<sup>r</sup> Hatherle requesting to haue liberty to set vp an iron mille, the cuntry doe reffer it to bee determined by the Gouerner and Ařistants at the next Court of Ařistants.

Differences depending between William Sherman and John Barker about

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M<sup>r</sup>BRADFORD,  
GOVERNOR.

14 May.

[\*171.]

the bounds of thayer lands, the Cōrt doe appoint and requeste Captaine Myles Standish and M<sup>r</sup> Aldin, and to bee accompanied with Joshua Prat, to set at rights sutch differences as are betwext them.

\*At Yarmouth, the xiiij<sup>th</sup> day of May, 1648, by Captain Standish, who was authorised by the Court holden at Plimouth, the 7<sup>th</sup> of March, 1647, to haue the hearing, and to put an end to all differences as doe remayne in the towne of Yarmouth.

It is ordered by the said Captaine Standish, y<sup>t</sup> Thomas Payne shall inioy the first eight acars of land granted to him in the west feild, which hee denied to lay downe, and for the other twenty eight acars or therabouts, hee shall relinquish to the cōmons, as was formerly agreed vnto by the towne.

Also, y<sup>t</sup> M<sup>r</sup> Hawes shall enjoy 8 acars of vpland or therabouts, in the west feild, which hee bought of Goodman Chase.

Item, y<sup>t</sup> Robert Dennis shall enjoy 12 acars of vpland in the west feild, which hee bought of Peeter Worden, and 10 acars of M<sup>r</sup> Hawes, and 7 acars of M<sup>r</sup> Hallott, and 4 acars there giuen him by the towne.

Also, y<sup>t</sup> Thomas Flawne shall enjoy 13 acars of land, or therabouts, in the west feild, giuen him by the cōmittees.

Also, y<sup>t</sup> Andrew Hallott shall relinquish eight acres of land granted to him in the west feild, and to take it vp in soñ other place conuenient.

Also, y<sup>t</sup> M<sup>r</sup> Hawes shall relinquish eight acres of land granted to him in the west feild, and take it vp in soñ other conuenient place.

Also, it is ordered, y<sup>t</sup> the towne shall enjoy and posses the necke of land cōmonly called Nobscussett Necke, at Sasuet Necke, both vpland and medowe, notwithstanding all former graunts and sales of any part therof, exsepte what haue been graunted to M<sup>r</sup> Gray, about 6 yeares sence, being 10 acars of vpland and 4 acars of meadowe lying there, betwext the great rocke and harbors mouth, the vpland and the creeke.

Whereas M<sup>r</sup> Thatcher, M<sup>r</sup> Howes, and M<sup>r</sup> Crow, cōmittees of this plantation of Yarmouth, in consideration of thayer charges about the discovering, purchas, and other charges by them disbursed, about the same, haue clāmed and taken vp, viz, M<sup>r</sup> Thatcher, 130 acars of vpland, and twenty six acars of meadowe for a farme, and M<sup>r</sup> Howes 100 acars of vpland, and 20 acars of meadowe for his farme, or great lot, and M<sup>r</sup> Crow one hundred acars of vpland, and twenty acres of meadowe, for his farme or great lot, — the towne hath allowed M<sup>r</sup> Thatcher an hundred and tenne acres of vpland, and his twenty-six acres of meadowe, and hee hath layed downe to the towne the other twenty acres of vpland, and likewise the towne haue graunted vnto M<sup>r</sup>

Howes fourscore acars of vpland, and twenty acares of meadow, and hee hath layed downe to the towne, in lieu of the other twenty acares of land by him taken vp in his great lot, twenty acars lying in Rock Furland, next on the west side to Edward Sturges land, bought of Gabriell Wheildin; and likewise the towne hath allowed vnto M<sup>r</sup> Crow 4 score acars of vpland, and twenty acars of meadowe, wherof soñ part is taken vp allredy, and the rest to bee taken vp by him where hee shall find it conuenient, and twenty acars hee remits to the towne, which the towne accepts, and is satisfied in full in respecte of any differences y<sup>t</sup> hath been betwext the towne and them, and every one of them, in respecte of their farmes or great lots, or any greevances about the laying out of lands from the begiñing of the plantation to this 13<sup>th</sup> day of May, 1648, afořsaid.

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M<sup>r</sup>  
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\*Also, M<sup>r</sup> Thatcher and M<sup>r</sup> Howes hath layed down to the vse of the town, viz<sup>s</sup>, M<sup>r</sup> Thatcher 12 acares of vpland neare the Great Basse Pound, and M<sup>r</sup> Howes hath layed downe 10 acares of vpland in Nobscussett, lying there in a furland called Rabbits Ruine, in lieu of 12 acares a peece claimed by them, and taken vp heertofore, in consideration of charges about the laying out of lands in the winter 1638, which aſpeers in thayer aõmpte given into Court, año 1640, which the towne hath otherwise satisfied vpon agreement.

[\*172.]

Item, it is ordered, y<sup>t</sup> Richard Templar shall enjoy his fue acares of land at Nobscussett, layed out there in Snakes Furland, next the hyeway buting vpon M<sup>r</sup> Mathues land.

Item, it is ordered, y<sup>t</sup> Goodman Clarke shall enjoy three acares of vpland at Nobscussett, in the playn furland next beyonde fue acars late Thomas Hatches, and next vnto the fearme.

Item, it is ordeř, y<sup>t</sup> Robert Dennis shall enjoy 2 acares of vpland in Nobscussett there, in affurland called Rabbets Reuine, betweene M<sup>r</sup> Lumkins and Goodman Prichards, and abbuting vpon the Coy Ponde.

Item, it is granted vnto M<sup>r</sup> Nickerson to haue tenne acars of vpland, and 8 acares of meadow towards the South Sea, which is not for the present to the prejudice of the towne.

Item, it is graunted allso to John Darby to haue six acares of meadow in the Easteren Swan Pond Meadowe, in lewe of 4 acars dew to William Chase, for a debt the town owed him.

It is ordered, y<sup>t</sup> Richard Hore shall haue tenne acares of meadow in the Easterne Meadows in the Swan Pond, and in the easterne end therof

It is likewise granted y<sup>t</sup> M<sup>r</sup> Howes shall haue 17 acars in the Eastern Meadow, and at the easterne end in the Swan Ponds, in lieue of 17 acars of meadow M<sup>r</sup> Howes hath taken vp in Nobscussett, ats Sassuett Necke, and



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sould to Thomas Burman : hee hath layed downe to the townes vse  $7\frac{1}{2}$  acars of meadowe, late M<sup>r</sup> Hallotts, lying at the lower end of the rocke tree furland, and eight acres of meadow, late William Chases, lyeing next vnto Edward Sturges meadow, between the riuer and M<sup>r</sup> Simkins necke.

It is ordered, y<sup>t</sup> M<sup>r</sup> Miller bee sufficiently accomodated.

It is ordered, y<sup>t</sup> euery inhabytant haue his land, both vpland and meadow, sufficiently bounded in convenient time with stones.

15 May.

[\*173.]

\*The 15<sup>th</sup> day of May, 1648. It is agreed by Captaine Standish, M<sup>r</sup> Crow, M<sup>r</sup> Thatcher, and M<sup>r</sup> Howes, the comittees of this plantation of Yarmouth, and Richard Hore, M<sup>r</sup> Hawes, William Nicorsone, William Pallmer, and Robert Dennis, in the behalfe of the towne, that M<sup>r</sup> Staare, William Nichorsone, and Robert Dennis shall bee joyned to the comittees for this p<sup>r</sup>sent yeare, and thence after by the towne : thay haue thayer liberty to choose other three to the comittees afo<sup>r</sup>said, so y<sup>t</sup> the comittees shall not heerafter dispose of any lands, either vplands or meadow, without the conssemt of those three or tow of them, and if any difference arise between them which they cannot compose themselues, y<sup>t</sup> thay repayer to Captain Standish for his dyrection.

Wheras at a towne meeting, March 22<sup>cond</sup>, 1647, M<sup>r</sup> Thatcher freely layed downe and renounced all right, title, and interest to any manner of vpland as his dew by way of proportion, excepting 40 acars of vpland, more or lesse, lying and being about his dwelling house betwext M<sup>r</sup> Hawes and M<sup>r</sup> Millers, and the cart path to Barnstable, excepte also 20 acars giuen him by free gifte, commonly called the Reward, which hee acknowledgeth this fifteenth day of May, 1648, to stand vnto. Hee also demaunds 8 acres of vpland in West Feild, which hee bought of Thomas Hatch, and which is to bee layed out next vnto M<sup>r</sup> Hawes 8 acres of land there, which hee bought of Goodman Chase, vnto which the towne consenteth, and other vpland hee claimeth not.

17 May.

An agreement made the 17<sup>th</sup> of May, 1648, betweene Paupmunnuck, with the consent of his brother, and all the rest of his associats on the one part, and Captaine Myles Standish in the behalfe of the inhabitants of Barnstable on the other part, as followeth, viz<sup>t</sup> : —

That the said Paupmunnucke hath, with the free and full conssemt of his said brother and associats, freely, fully, and absolutely bargained and sould vnto the sd Captaine Myles Standish, in the behalfe and for the vse of the inhabytants of Barnstable afo<sup>r</sup>said, all his and thayer right, title, and intereste in all his and thayer lands lying and beeing within the p<sup>r</sup>incts of Barnstable afo<sup>r</sup>said, faring vpon the sea, comonly called the South Sea, buting home to Janno his land eastward, and a little beyond a brooke, called the First

Hearing Brooke, weastward, and to Nepoyetums and Seaquenneks lands northward, exseption thirty acars which hee, the said Paupmunnuck hath retained to the pper vse and behoofe of himselfe, his brother, and associates, for and in consideration of 2 brasse kittells and one bushell of Indian corn, to bee dewly and trewly payed vnto him, the s<sup>d</sup> Paupmunnuck, by the said inhabytants of Barnstable, between the date heerof and Noucmber next insewing ; allso, one halfe part of so mutch fence as will fence in the thirty acars of land affo<sup>r</sup>said for the said Paupmunnuck, to bee dewly and trewly made by the laste of Aprill next insewing the date heerof ; allso, the said Paupmunnuck and his a<sup>s</sup>ociates shall haue free leaue and liberty to hunt in the said lands, provided thay giue notice to the said inhabitants \*before thay sett any trappes, as allso fully and dilligenttly to see all thair trappes eury day, y<sup>t</sup> soe in case any are taken or intrapped therin, thaye shall speedyly lett them out, and a<sup>q</sup>uaint the said inhabytants forthwith therof ; as allso to a<sup>q</sup>uainte them if thay shall perceiue any cattell to haue broken out of thayer trapps before thay come vnto them.

1648.

17 May.

M<sup>r</sup>BRADFORD,  
GOUERNER.

[\*174.]

In wittnes of all and singuler the preemises heerof, thay haue heervnto sett thayer hands the day and yeare aboue written.

All which conditions, in case thay doe not dilligently obserue, thay shall pay whatsoever damage comes to any mans cattell through thayer default heerin.

*\*Att a Court of Asistants holden att New Plymouth, the first of August, 1648.* 1 August.

BEFORE M<sup>r</sup> William Bradford, Gouvernor, Capptayn Myles Staandish, and  
M<sup>r</sup> William Colyar, M<sup>r</sup> William Thomas,  
Gen<sup>t</sup>, Asistants.

**A**TT this Court it was ordered, y<sup>t</sup> Thomas Cushman shall haue and enjoy, without disturbance, the one third part of all the English corn due vnto Mis Combe, for her part, from William Spooner, for this p<sup>s</sup>ent yeare, excepting the rye, wherof hee is to haue the one halfe, and one part of fve of the Indian corn, and the one half of the frute, and the one half of the hemepe.

The said Court haue further ordered, concerning the children of the said M<sup>is</sup> Combe, now being with William Spooner, y<sup>t</sup> the said Spooner keepe them for the p<sup>s</sup>ent, and not dispose of them for the future, without further order from the Court.

Wheras it doth appeer, that M<sup>r</sup> John Combe was indebted to the estate

1648.

1 August.

M<sup>r</sup>BRADFORD,  
GOVERNOR.

Of this see  
more the 2<sup>cond</sup>  
page forward  
of this booke;  
the assignment  
being there  
entered.

of Cudbert Godbersom, as appeers by the account of the Go<sup>ff</sup>, M<sup>r</sup> William Bradford, adminestrator of the said estate, which said estate was debtor a considerable sume to M<sup>r</sup> Isacke Allerton, marchant, whoe by a letter of attorney doth giue the said debt to his son in law, M<sup>r</sup> Thomas Cushman, and im-powered him to the receiueing therof, whoe desires healp of the Court; and they finding that the said Combe was indebted to the abouesaid M<sup>r</sup> Allerton, they graunted, by way of extent vpon the lands of the said Combe, that a p<sup>te</sup> of the encrease therof for some time should bee payed to M<sup>r</sup> Cushman afo<sup>r</sup>said, to whom the moneyes was due, which accordingly being done as farr as they could judge, the said Combe stood indebted to the estate of the afo<sup>r</sup>said Cutbert Godbersom by any thinge that did then appeer, the land was freed from any further extent vpon that account.

[\*175.] \*These sheweth, that on July the 22<sup>cond</sup>, 1648, wee, whosse names are vnder-written, were sworne by M<sup>r</sup> Bradford, Gouverner, to make inquiry of the death of the child of Allis Bishop, the wife of Richard Bishop.

Wee declare, y<sup>t</sup> coming into the house of the said Richard Bisho<sup>p</sup>e, wee saw at the foot of a ladder w<sup>h</sup> leadeth into an vpper chamber, much blood; and going vp all of vs into the chamber, wee found a woman child, of about foure yeares of age, lying in her shifte vppon her left cheeke, with her throat cut with diuers gashes crose wayes, the wind pipe cut and stuke into the throat downward, and a bloody knife lying by the side of the child, with w<sup>h</sup> knife all of vs judg<sup>d</sup>, and the said Allis hath confessed to fue of vs att one time, y<sup>t</sup> shee murdered the child with the said knife.

JOHN HOWLAND,  
JAMES HURST,  
ROBERT LEE,  
JOHN SHAWE,  
FRANCIS COOKE,  
JOHN COOKE,

JAMES COLE,  
GYELLS RICKARD,  
RICHARD SPARROW,  
THOMAS POPE,  
FRANCIS BILLINGTON,  
WILLIAM NELSON.

Rachell, the wife of Joseph Ramsden, aged about 23 yeares, being examined, saith that coming to the house of Richard Bisho<sup>p</sup>e vppon an e<sup>r</sup>rand, the wife of the said Richard Bisho<sup>p</sup>e requested her to goe fetch her so<sup>m</sup> buttermilke at Goodwife Winslows, and gaue her a ke<sup>t</sup>le for that purpose, and shee went and did it; and before shee wente, shee saw the child lyinge abed asleepe, to her best deserning, and the woman was as well as shee hath knowne her att any time; but when shee came shee found her sad and dumpish; shee asked her what blood was that shee saw at the ladders foot; shee pointed vnto the

chamber, and bid her looke, but shee perseiued shee had kited her child, and being afraid, shee refused, and ran and tould her father and mother. Mofo-  
uer, shee saith the reason y<sup>t</sup> moued her to thinke shee had kited her child was  
y<sup>t</sup> when shee saw the blood shee looked on the bedd, and the child was  
not there.

1648.

1 August.  
M<sup>r</sup>BRADFORD,  
GOVERNER.

Taken vpon oath by mee, WILLIAM BRADFORD,  
The day and year aboue written.

At a Court of A<sup>s</sup>istants holden at New Plymouth, the first of Aguste,  
1648, before M<sup>r</sup> Bradford, Goue<sup>r</sup>, M<sup>r</sup> Coliar, Captain Miles Standish, and M<sup>r</sup>  
William Thomas, gen<sup>t</sup>, Assistants, the <sup>s</sup>d Alice, being examined, confessed  
shee did comite the affo<sup>r</sup>said murther, and is so<sup>r</sup>y for it.

\*An Assignment appointed heer to bee recorded.

[\*176.]

Know all men whom these p<sup>s</sup>ents may any waies concerne, that I, Isacke  
Allerton, of New Amsterdam, in the prouince of the New Netherlands, mar-  
chant, doe, by vertue heerof, absolutely, freely, and of my owne accord, as-  
signe, giue, and make ouer from mee, my heires and exequitors foreuer, vnto  
my welbeloued sonne in law, Thomas Cushman, of New Plymouth, in New  
England, his heires, exequitors, adminestrators, or assignes for euer, all my  
right, title, interest, and claime I can any waies make or pretend vnto a cer-  
taine debt of one hundred pound sterling due vnto mee from John Combe, gen<sup>t</sup>,  
and for which the land adjacent to the said New Plymouth, and appertaining  
to the said M<sup>r</sup> John Combe, was engaged to mee, as by the records may appeer,  
the said su<sup>m</sup>e of one hundred pounds sterling, more or lesse, being due vnto  
mee, the said Isacke, as may appeer by seuerall accounts, giueing and grant-  
ing, and by vertue heerof I doe giue and graunt full power and authoritie vnto  
my said son in law to vse all lawful meanes for the recouery of the said debt  
vnto the proper vse and behoofe of my said sonne in law, or his heires, with  
as large and ample power as is or may be giuen by vertue of any letter of at-  
torney or assignment, and as much as if myselfe were p<sup>s</sup>onally p<sup>s</sup>ent, ratifying,  
a<sup>t</sup>owing, and confeirming any acte that shalbee lawfully do<sup>n</sup> by my said son in  
law, for the recouery of the said debt against myselfe, or any other claiming  
for or vnder mee. In witnes wherof I haue heervnto sett my hand and seale,  
this twenty seauenth of October, 1646.

ISACKE ALLERTON, and a

Seale.

Sealed and deliuered in the p<sup>s</sup>ence of

Gorge Baxter,  
Thomas Willett,  
Gorg<sup>e</sup> Woolsey.

1648. *\*Att the Generall Court of our Soueraine Lord the King, holden at  
Plymouth aforesaid, the 4<sup>th</sup> of October, 1648.*

4 October.

NEW  
PLYMOUTH.  
M<sup>r</sup>  
BRADFORD,  
Gov.

BEFORE M<sup>r</sup> Bradford, Gouverner,      M<sup>r</sup> Timothy Hatherle, and  
M<sup>r</sup> Thomas Prence,      M<sup>r</sup> William Thomas,  
Captaine Miles Standish,  
Gen<sup>l</sup>, Assistants.

[\*177.]

**A**T this Court, Alice Bishope, the wife of Richard Bishope, of New Plymouth, was indited for felonius murther by her comited, vpon Martha Clark, her owne child, the frute of her owne body.

The names of the grand inquest that went on triall of the aforesaid bill of inditment, weer these : —

|                                 |                    |
|---------------------------------|--------------------|
| John Dunham, Sen <sup>r</sup> , | John Barker,       |
| Isaake Weels,                   | Joseph Colman,     |
| M <sup>r</sup> Thomas Burne,    | John Allin,        |
| Robert Finny,                   | Thomas Bordman,    |
| Henery Wood,                    | James Bursell,     |
| Ephraim Hickes,                 | Joseph Tory,       |
| James Walker,                   | Micaell Blackwell, |
| James Wyat,                     | Daniell Cole.      |
| Loue Brewster,                  |                    |

These found the bill a trew bill.

The petty jurys names that went vpon her tryall were these : —

|                                    |          |                               |           |
|------------------------------------|----------|-------------------------------|-----------|
| Josias Winslow, Sen <sup>r</sup> , | } sworn. | Gyells Rickard,               | } sworne. |
| Thomas Shillingsworth,             |          | John Shaw, Sen <sup>r</sup> , |           |
| Anthony Snowe,                     |          | Steuens Wood,                 |           |
| Richard Sparrow,                   |          | William Mericke,              |           |
| Gabriell Fallowell,                |          | William Brete,                |           |
| Joshua Prat,                       |          | John Willis,                  |           |

These found the said Alice Bishope guilty of the said felonius murthering of Martha Clarke aforesaid ; and so shee had the sentence of death pronounced against her, viz<sup>t</sup>, to bee taken from the place where shee was to the place from whence shee came, and thence to the place of execution, and there to bee hanged by the necke vntill her body is dead, which accordingly was executed.

## \*Presentments of the Grand Enquest.

1648.

Christofer Wadsworth, Nicolas Robbins, John Roggers, John Willis, Samuëll Eaton, Jonathan Brewster, Arther Haris, Thomas Gannet, being presented for being defectiue in ladders, vppon thayer now being better provided of them, are cleared.

4 October.  
MR  
BRADFORD,  
GOVERNER.  
[\*179.]

The towne of Seteaate haueing been presented for not chusing milletary offecers aċording to order, Mr Hathelē promising the Court to see the milletary company of the towne aforēd exercise in armes at times aċointed vntell they can conueniently make choise of offecers, are clered of this presentment.

The seruayors of Seteaate haueing been presented for not mending ther hyewayes aċording to order, vppon redresse therof are cleared of this presentment.

Seteaate presented for not puiding armes for publicke seruīs aċording to order, respeted vntell the next Court.

8<sup>th</sup> June, 1648.

The towne of Taunton was presented for not mending the hiewayes between Taunton and Plymouth, w<sup>ch</sup> they are ordered by the Court to doe, or to returne the xxx shillings finne of Francis Doughty allowed them for y<sup>t</sup> end.

The seruayors of Duxbery, haueing been presented for not mending the hyeway at Iland Creeke, vppon thayer sence mending therof, are cleared of this presentment.

These aboue written presentments weer presented vnto the Court on March the 7<sup>th</sup>, 1647, but examined on the third of October, 1648.

Christofer Winter and his wife haueing been presented, the 8th of June, 1648, for haueing knowlidg each of other before publicke mariage, the said Christofer, deliuering a bill vnder his hand vnto Captain Standish, Trēsurer, for the payment of his finne, is cleared of the said presentment.

Thomas Dexter, Junier, miller, of Sandwidg, haueing been presented for not haueing a toale dish sealled aċording to order, vppon the hearing of his deffence, was cleared.

\*James Walker, of Taunton, informing against William Hedggis, for y<sup>t</sup> the s<sup>d</sup> Hedgges, knowing of one y<sup>t</sup> that hath traded shote vnto the Indians, and refusing to declare who it is, by a sommons sent vnto him is required to aċpeer at the next Generall Court; aċordingly hee did, and was cleared. [\*180.]

Gorg Pitcocke, of Siteaate, being whoŷ defectiue in respecte of armes, is to provide armes compleat for one man, and constantly to pay his finnes, for y<sup>t</sup> hee beareth not armes.

Wheras differences haue been betwext Loue Brewster and Samuëll Eaton about the bounds of their lands, the Court hath ordered and doe requeste Mr

1648. Alldin, Henery Sampson, and Phillipe Delanoy to range out thayer lands  
 betweene them, begiñing at the lower end, and make report therof to the  
 Court how thay find it.

4 October.  
 M<sup>r</sup>

BRADFORD,  
 GOUERNER.

The Court haue ordered, concerning Thomas Dunham, that hee abstaine  
 from coming att or sending vnto Martha Knote, of Sandwidge, from this p<sup>s</sup>ent  
 day vntell the first Tusday of Desember next, vntell the Court can better de-  
 serue the treuth of his pretended contracte with the s<sup>d</sup> Martha Knot, vnles  
 the Gouerner, vpon clearing of thinges, shall giue him leaue.

1648-9. \**At the Generall Court of our Souerain Lord the King, holden at  
 Plymouth aforsaid, the sixt of March, 1648.*

6 March.

NEW  
 PLYMOUTH.

[\*181.]

BEFFORE M<sup>r</sup> William Bradford, Gouerner, M<sup>r</sup> Timothy Hatherle,  
 M<sup>r</sup> William Coliar, M<sup>r</sup> John Browne, and  
 Captaine Miles Standish, M<sup>r</sup> William Thomas,  
 Gent<sup>l</sup>, Assistant.

Fine.

CONCERNING William Cheesburow and William Palmer, of Rehoboth,  
 the Court haue ordered, that for thaire contempt of the Court, man-  
 ifested by theire p<sup>s</sup>eeding in the disposing of the children of M<sup>r</sup> Winchester,  
 contrary to order from the magestrats, and other miscarriages about the s<sup>d</sup>  
 children, thay are fined tenn pound.

Whereas fise shillings was demaunded and retained by William Chees-  
 burow as a leggasy giuen by M<sup>r</sup> Winchester, the Court find it not due, and  
 appoint him to returne it to them y<sup>t</sup> haue the disposing of the children of  
 the aforsaid M<sup>r</sup> Winchester.

Whereas William Cheesburow and William Palmer did demaund twenty  
 shillings charges for a jury to Plymouth about busines for the children of M<sup>r</sup>  
 Winchester, the Court haue a<sup>t</sup>owed vnto William Palmer tenn shill<sup>t</sup>, but vnto  
 William Cheesburow thay haue a<sup>t</sup>owed nothing, because it apeered y<sup>t</sup> the  
 said William Cheesburow cam to Plymouth at y<sup>t</sup> time vpon other o<sup>c</sup>ations.

Concerning the bridge at the Eele Riuer, the Court haue ordered, y<sup>t</sup>  
 wheras there hath been longe neglect and complaint for y<sup>t</sup> the said bridge  
 was not built a<sup>c</sup>ording to order of Court held the 4<sup>th</sup> of September, 1638,  
 thay haue thought good to signify vnto the townes whom it peticularly con-  
 cerns, — viz<sup>s</sup>, Yarmouth, Barnstable, and Sandwidg<sup>e</sup>, — y<sup>t</sup> a<sup>c</sup>ording to the

said order, thay ought at least to beare a considerable part of the chargẽ arising by the bridgẽ now built by the inhabitants of the Eel Riuer aforẽd ouer the riuer aforẽd, and the rather because it is found by late and comon experience y<sup>t</sup> trauellers doe make vse of the s<sup>d</sup> bridge as finding the way leading therunto most comodiũs for theire jurniing to and fro; and y<sup>t</sup> the townes aforẽd should consider of the perticulars aforẽd against the next Generall Court, y<sup>t</sup> thay may giue answare therunto, and make payment for the charge of the bridgẽ as aforẽd.

1648-9.

6 March.

M<sup>r</sup>BRADFORD,  
GOVERNOR.

\*William Bassit, of Duxbery, Senĩ, haueing been presented at the General Court holden at Plymouth aforẽd the 4<sup>th</sup> of October, 1648, for not mending of guns in seasonable time, aẽording to order of Court, is fined for his neglect heerin fwe shillings. [\*182.]

The Court haue graunted liberty vnto John Morton to draw and sell wine by retaile at Plymouth, and to lodgẽ and entertaine straingers and trauellers to bead and bord, for dew concideration for the same.

The Court haue graunted liberty vnto John Lewis to keep an ordinary, and to draw and sell wine, at Seteaat, or any other whom the towne of Seteaat aforẽd shall aẽow of, if the said John Lewis shall thinke meete not to keep it.

The Court aẽow vnto M<sup>r</sup> Leueridge for foure witnesses subpenaed by him this Court 3 shill<sup>t</sup> a peece, in all twelue shillings.

And vnto M<sup>r</sup> Thatcher, being subpenaed by M<sup>r</sup> Dexter, 4 shill<sup>t</sup>.

And vnto M<sup>r</sup> Dillingham and Richard Bourn, being subpenaed by M<sup>r</sup> Dexter, 3 shillings a peece.

## \*Presentments of the Grand Inquest.

[\*183.]

Wee p̄sent M<sup>r</sup> William Hedge, of the towne of Yarmouth, for leẽing of an Indian haue a gun, and poulther, and shot. Cleared.

Wee p̄sent M<sup>r</sup> Crow, Senĩ, for receauing stollen goods.

Cleared.

Wee p̄sent the wife of M<sup>r</sup> Hedge, of Yarmouth, for receauing of stollen goods. Cleared.

Wee p̄sent the wife of Hugh Norman, and Mary Hammon, both of Yarmouth, for leude behauior each with other vpon a bed. Of this more is entered in the conclusions of the Court held the 2<sup>cond</sup> of October, 1650, p. 226. Mary Hamon cleared with admonision.

Wee p̄sent Richard Bishope, of Plymouth, for stealing of a spade from Andrew Ring. Hee was sentenced to sit in the stocks, and to pay a new spade to Andrew Ring before the next June Court, or otherwise to bee publickli whipt.

Wee p̄sent the way wardens or survayors of Taunton for neglecting to mend the hyeways. Cleared.



1648-9.

6 March.

M<sup>r</sup>BRADFORD,  
GOUVERNEUR.

Wee p<sup>s</sup>ent Peregrin White, and Sara, his wife, both of Marshfeild, for fornication before marriage or contract. Cleared by paying the fine. Fined.

Wee p<sup>s</sup>ent William Sabin, the miller of Rehoboth, for not returning mens corn vnto them by two quarts in a bushell, allowing their toule. Cleared.

Fined. Robert Padduk, of Plymouth, and William Clark, of Duxbery, were both p<sup>s</sup>ented June the 4<sup>th</sup> for being drunk, and sence both cleared by the paiment of theair fine.

1649.

6 May.

NEW  
PLYMOUTH.  
[\*185.]

*\*At a Court of Assistants holden at Plymouth aforesaid, the first of May, 1649.*

|                                                    |                                   |
|----------------------------------------------------|-----------------------------------|
| BEFORE M <sup>r</sup> William Bradford, Gouverner, | M <sup>r</sup> Timothy Hatherlee, |
| M <sup>r</sup> William Coliar,                     | M <sup>r</sup> John Brown, and    |
| Captain Miles Standish,                            | M <sup>r</sup> William Thomas.    |
| Gen <sup>l</sup> , Assistant <sup>l</sup> .        |                                   |

**R**ICHARD BISHOPE, for stealing of a spade from Andrew Ringe, was sentenced to sit in the stocks, and to pay vnto the said Andrew Ring a new spade before the next Generall Court, or otherwise to bee whipt.

The Court haue ordered y<sup>t</sup> John Churchill, of Plymouth, shall haue the disposing of the house and land y<sup>t</sup> was Gorge Clarks for the vse and good of Abigaell Clarke, daughter vnto the said Gorg<sup>e</sup> Clarke, either to let or sell the said house and land with the Courts consent.

Wheras a sheepe of Captain Standishes was worried by a doge of Benjamin Eatons, the Court haue ordered, that the said Benjamin Eaton shall pay vnto Captaine Standish thirty shillings for the s<sup>d</sup> sheepe.

It is ordered by the Court, y<sup>t</sup> Benjamin Eaton abouesaid shalbee at his owne disposing vntell the next October Court, and in the mean time to provide himselfe a service; if not, the Court to provid<sup>d</sup> him one, and what bargan hee shall make with any man in this behalfe is to be brought and the conditions therof to bee recorded.

Execution graunted vnto Thomas Burd, of Sittuaat, against Gorg<sup>e</sup> Russell for fifty shilling dama<sup>g</sup> and the charges of the sute, ‡and y<sup>t</sup> the said Gorg<sup>e</sup> Russell is to make go     ,     pay the charges of the said execution.‡

*\*At the Generall Court holden at Plymouth, aforsaid, the sixt of June, 1649.*

6 June.  
NEW PLY.  
BRADFORD,  
GOUERNER.  
[\*187.]

BEFORE M<sup>r</sup> William Bradford, Gouerner, M<sup>r</sup> Timothy Hatherle,  
M<sup>r</sup> Thomas Prence, M<sup>r</sup> John Browne, and  
M<sup>r</sup> William Coliar, M<sup>r</sup> William Thomas,  
Captaine Miles Standish,  
Gen<sup>tl</sup>, Assistants.

THE whole body of freemen of the coliny of Plymouth aforsaid, or the maine part of them, being mete together, it was vnanimously concluded, that wheras things are much vnseteled in our natiue cuntry in regard of the affairs of the state, wherby the Court cannot so clearly prosseed in election as formerly, all offecers, wether magestrats or inferior offecers, shall continew in thaire places with as full power and authority as thay had the yeare last past for the space of a full yeare for the year foloing, vnles so<sup>m</sup> spesiall intellegent or order com<sup>e</sup> ouer w<sup>b</sup> shall at any time within the year aforsaid o<sup>c</sup>ation the calling the body of freemen together for a new election.

This Court, M<sup>r</sup> Bradford, Gouerner, & M<sup>r</sup> John Browne, were requested by the Court to continew com<sup>is</sup>sioners for this p<sup>re</sup>sent yeare; and a<sup>c</sup>ordingly thay condensedd thervnto.

Servayors of the Hiewayes.

|                      |           |                                                                      |
|----------------------|-----------|----------------------------------------------------------------------|
| Plymouth,            | . . . . . | M <sup>r</sup> Howland, M <sup>r</sup> Paddy, M <sup>r</sup> Willit. |
| Duxbe <sup>r</sup> , | . . . . . | John Staare, John Washburn.                                          |
| Seteaate,            | . . . . . | Walter Briggs, Edward Jenkins.                                       |
| Sandwidge,           | . . . . . | William Newland, Peeter Wright.                                      |
| Taunton,             | . . . . . | James Wiate, Gorge Maasse.                                           |
| Yarmouth,            | . . . . . | Samuell Ryder, Richard Templer.                                      |
| Barnstable,          | . . . . . | Thomas Lumbert, M <sup>r</sup> Lennit.                               |
| Marshfeild,          | . . . . . | Josias Winslow, William Brooks.                                      |
| Rehoboth,            | . . . . . | Richard Bowin, Robert Sharpe.                                        |
| Nawset,              | . . . . . | John Smalley, Thomas Williams.                                       |

\*Presentments of the Grand Inquest.

[\*189.]

Wee p<sup>re</sup>sent Gorg<sup>e</sup> Russell, of Settuat, for plowing and blocking vp the Cleared. hieway, y<sup>t</sup> men cannot conueniently pase.

Wee p<sup>re</sup>sent the servayors of Seteaat for not repairing the hieway ouer a Cleared. marsh called Rotten Marsh.

1649.

6 June.  
BRADFORD,  
GOVERNER.

Wee p̄sent the seruayors of Plymouth for not repaireing the hiewayes at Joanses Riuer and at Wellingsla. Cleared.

Wee p̄sent John Shaw, Junier, for profaining the Lords day for atēding on the tar pits.

John Shaw was sentenced this Court to sit in the stocks for this, which accordingly was executed.

Also wee p̄sent Steven Bryant for carrying a barrell to the said pits on the same Lords day. Steven Bryant, with admonission, is cleared.

Wee p̄sent the towne of Sandwidg̃ for not trayning for one whole yeare last past.

Cleared. Wee p̄sent Edward Bobbit, of Taunton, for receaueing pay for stollen wampom.

Cleared. Wee p̄sent Thomas Gillbert, cunstable of Taunton, for letting goe of one whom hee knew to haue stollen a quantity of wampampege, and was suspected of other things.

Fined. Wee present Thurstrum Clark for leſing an Indian to haue a gun, powder, & shott; the said Thurstrum Clark is fined for this 2<sup>s</sup>.

[\*190.] \*Wee p̄sent M<sup>r</sup> Samuell Newman, teacher of the church of Rehoboth, for dilliuering such things in publick preaching as tend to the defamation of the magistrats of this colony. For this see more in the 13<sup>th</sup> page forward in this booke. P. 207.

William Sabin, the miller of Rehoboth, was p̄sented on the sixt of March for not returning mens corn vnto them by two quarts in a bushell, allowing thaire toule.

This Court, the said William Sabin did trauerse this p̄sentment, & by verdict of the jury was cleared.

This Court, John Shaw, Jun<sup>r</sup>, and Steven Bryant, weer p̄sented for profanation of the Lords day; thay lickwise traused their p̄sentments, & weer found guilty & sentenced, as on the other side this leafe is spesified.

The jury's names y<sup>t</sup> tried these p̄sentments weer these foloing:—

|         |   |                                                                                                   |   |         |   |                                                                                                               |   |
|---------|---|---------------------------------------------------------------------------------------------------|---|---------|---|---------------------------------------------------------------------------------------------------------------|---|
| Sworne. | { | Josias Winslow,<br>James Hust,<br>Henery Cob,<br>Barnard Lumbert,<br>John Fenney,<br>Joshua Prat, | } | sworne. | { | Gorg̃ Lewis,<br>Phillip Delanoy,<br>Experience Mechell,<br>Henery Howland,<br>Henery Sampson,<br>Josias Cook. | } |
|---------|---|---------------------------------------------------------------------------------------------------|---|---------|---|---------------------------------------------------------------------------------------------------------------|---|

This Court, John Damman, of Settuaat, requested y<sup>t</sup> hee might orderly inioy his right in the lands of M<sup>r</sup> William Gillson, desseased; his proposition

or request was refered vnto the jury aboue written, which said jury found the said John Damman the lawfull heaire aþarent vnto all the lands of M<sup>r</sup> William Gillson, desseased. Of this see more in the fite page forward in this booke. 1649.

6 June.  
BRADFORD,  
GOV<sup>R</sup>NOR.

Liberty is graunted vnto the townsmen of Plymouth to make vse of the land att Sepecan for the hearding & keeping of cattell, & wintering of them there as they shall see cause.

\*Payed by Josias Cooke vnto Elizabeth Dean her full portion in a cow valleued at fve pound. [\*191.]

John Read allowed to draw and sell wine and strong waters, & to keep an ordenary, at Rehoboth.

John Crocker is allowed to keep an ordinary at Barnstable.

Edward Sturgis allowed to draw and sell wine at Yarmouth.

The Names of those who weer propounded to take vp thair Freedom.

|               |                                |
|---------------|--------------------------------|
| John Crocker, | M <sup>r</sup> Thomas Gilbert, |
| John Chipman, | James Walker,                  |
| John Smith,   | William Hedgges.               |

M<sup>r</sup> Coliar, Captain Standish, M<sup>r</sup> Hatherle, M<sup>r</sup> Browne, & M<sup>r</sup> Thomas was ordered to arbtrate a difference betwixt John Crabtree & Edmond West, as the executer of Thomas Howell, desseased; & thay order Edmond West aforsaid to pay vnto the said John Crabtree six pound eleuen shillt & 10 pence.

Captaine Standish & M<sup>r</sup> Browne weer ordered by the Court to view the lands & set out the bounds of Rehoboth, according to the trew entent of the first graunt.

John Hoare acknowledgeth to owe vnto the Court the } twenty pound. Released.  
sofm of . . . . . }

M<sup>r</sup> Thomas Tart the sofm of . . . . . 10<sup>t</sup>.

M<sup>r</sup> James Cudworth the sofm of . . . . . 10<sup>t</sup>.

The condition y<sup>t</sup> if the said John Hoare shall bee of good behavior towařs all mañer of psons, and aþeer at the next Generall Court, and not depart the said Court without licence; y<sup>t</sup> then, &c.

\*Whereas complaint was made concerning the lands of John Hazell, of Rehoboth, the Court hath ordered, y<sup>t</sup> the said John Hazell shall inioy without interuption all his former graunts of lands, and bounded as foloweth: His home lot, containing twelue acares, bounded on the east with the towne green, on the southwest with the mill coue, on the northwest with the land of James Ridway, on the southwest with the Gouverners lot, his salt marsh, containing [\*193.]

1649.

6 June.  
BRADFORD,  
GOUVERNER.

fouer acars, bee it more or les, with an iland in it, and a little vpland as it lyes now within his fence, bounded on the east with the oxe pasture, surrounded on the west, north, & south with Patucet Riuer; four acars of fresh meadow, bee it more or les, now within his occupation, bounded on the east with the brook, on the west and north with his owne land, on the sowth bounded with a linne y<sup>t</sup> runs between the towne land and his other allotment, being six hundred acars, bounded on the east with his fresh meadow & a litle run of water and a ceader swamp, on the west with Patucet Riuer, on the north with the woods, on the sowth with the towne land, only the iland & litle vpland aboue mensioned is part of the six hundred acars.

That the remainder of the cuntries stock vndisposed of bee employed by the Trësurer for the procuring of powlder to bee keep in stock for the cuntries vse.

That the Gouverner & Captain Standish doe concider of a conuenient place to keep the cuntries stock of powlder in, wher it may bee in safty.

Concerning the differenç betwixt Richard Chadwell & M<sup>r</sup> Thomas Dexter about the breach of the ma<sup>r</sup>ter of arbetratation, the said Dexter is to pay vnto the said Chadwell six shillings, & so the ma<sup>r</sup>ter is ended.

8 June. The Oath of M<sup>r</sup> Thomas Dexter, taken in open Court the 8<sup>th</sup> of June, 1649, conèning a psell of Corn receaued for a Barke sould by the said Dexter.

This I testifie, y<sup>t</sup> the barke y<sup>t</sup> was betwixt Richard Chadwell & myselfe I sould to Maior Gibbens for an hundred & fourty bushell of Verginnia corn, at fíue shilling a bushell, and no more.

Wittnes my hand this 8<sup>th</sup> of June, 1649.

THOMAS DEXTER.

[\*195.] \*This Court, John Damman, of Seteaat, required y<sup>t</sup> hee might inioy his right in the lands of M<sup>r</sup> William Gillson, of Seteaat, aforsaid, desseased.

To clear vp the aforsaid right, these folowing writings weer openly read & aproued vpon oath: —

Wee, whose names are heer vnderwritten doe giue testimony, vnder our hands, this 7<sup>th</sup> day of June, 1649, y<sup>t</sup> wheras William Gillson, late of Seteaat, desseased, in his life time did require earnestly of the townsmen aforsaid seuerall p̄cells of land for accomodation of the s<sup>d</sup> William Gillson, but being required of him by vs whose names are heer vnderwriten the reason of his desire of so mutch land, being ancient & haueing no isew of his body to inherite the same after him, his answare was, y<sup>t</sup> hee had brought ouer with him into New England two of his sisters children from thaire parrents, and was

bound in conscience both to take care & to guide for them as if thay weer his owne; and wee conceaue y<sup>t</sup> the land was graunted vnto him according vnto his desire in y<sup>t</sup> behalfe.

HUMFRY TURNER,      HENERY ROWLY,  
HENERY COBB,      BARNARD LUMBERT.

Vpon the oathes of Humphry Turner, Henery Cob, &c.

Further, I, Humfry Turner, being a townsman at y<sup>t</sup> time, & sence so remayning in Seteaat aformentioned, doe further testify y<sup>t</sup> William Gillson, desseased, did say vnto mee y<sup>t</sup> I aske this land y<sup>t</sup> my kinsfolks may inioy it when I am dead.

Wittness my hand,      HUMFRY TURNER.

Vpon the oath of Humfry Turner.

The 24<sup>th</sup> of May, 1649. These p<sup>s</sup>ents testifyeth to whom it may concern, y<sup>t</sup> I doe remember that M<sup>r</sup> Gillsons plea with vs for land was, y<sup>t</sup> although hee had no children of his owne, yet y<sup>t</sup> hee had two of his sisters children, w<sup>h</sup> hee looked vpon as his owne, & so did desire to leaue them so<sup>m</sup>thing after his dayes was ended; and so for John Damman I haue heard M<sup>r</sup> Gillson say y<sup>t</sup> hee should haue his land after his wiues dayes weer ended; and I haue lickwise heard M<sup>r</sup> Gillsons wife acknowlidg it, & further y<sup>t</sup> shee would not wrong the said John & Hanna of what was her husbands will about the lands, yet shee would not for so<sup>m</sup> reasons haue the said John & Hanna know her husbands will in y<sup>t</sup> busines for the p<sup>s</sup>ent. Thus mutch for the p<sup>s</sup>ent I doe call to mind to my remembrance, and can safly testify.

P mee,      ISAACK ROBENSON.

Concerning the abouesaid John Damman, for the clearing of his right and title vnto the abouesaid land of M<sup>r</sup> William Gillson, desseased, see more in the fift page bakward of this booke, p. 190.

\*M<sup>r</sup> Hatherle was ordered by the Court to set at right such thinges as concern Thomas Rawlins & John Damman, by reason of & concerning so<sup>m</sup> cost & charges bestowed by the said Thomas Rawlins vpon the lands of the aforsaid M<sup>r</sup> Gillson. [\*196.]

This Court, allso, open proclamation was made y<sup>t</sup> if any could lay any just claime or title to the lands of William Gillson, desseased, y<sup>t</sup> thay should co<sup>m</sup> in and should bee heard; but no claim or title was challenged.

Wheras sundery p<sup>s</sup>ons of Setuaat, viz<sup>s</sup>, Humfry Turner and others, find themselues agreeued concerning so<sup>m</sup> lands of thaires lying on the north side of the North Riuer, for y<sup>t</sup> thaire land marks are lost, and sundery errors weer

1649.

8 June.  
BRADFORD,  
GOVERNOR.

24 May.

1649.

June.  
BRADFORD,  
GOVERNER.

in the laying out of the said lands, the Court haue ordered, y<sup>t</sup> it shalbee lawfull for the p<sup>sons</sup> aforsaid to hyer a seruayor to measuer the said lands, beginning at y<sup>e</sup> rundlit of water called Stony Coue vnto the vttermost extent westward so fare as any lots weer giuen; and to set at rights sutch bounds as are misplaced, y<sup>t</sup> so euery of the p<sup>sons</sup> aforsaid may haue his proportion of marsh according to the number of the acars of vpland allowed to each p<sup>son</sup>, as is expressed in the towne book of Setuaat aforsaid.

The first Tusday in July is a<sup>p</sup>ointed for those to meet together w<sup>h</sup> are a<sup>p</sup>ointed to treat & order the letting of the trade.

The co<sup>m</sup>itte<sup>e</sup> a<sup>p</sup>ointed are M<sup>r</sup> Coliar, Captaine Standishi, M<sup>r</sup> Hatherlee, M<sup>r</sup> Brown, and M<sup>r</sup> Thomas, M<sup>r</sup> Allden, M<sup>r</sup> Cudworth, Constant Southworth, & Robert Waterman.

This Court is aiurned vnto the fift day of the last full weeke in October, and the foloing Court to bee the next 2<sup>cond</sup> day after.

[\*197.] \*The Names of the Co<sup>m</sup>itties of the seuerall Townships y<sup>t</sup> serued at this Court and the Aiornments thereof.

|             |       |                                                     |
|-------------|-------|-----------------------------------------------------|
| Plymouth,   | . . . | { M <sup>r</sup> Howland, M <sup>r</sup> Paddy,     |
|             |       | { Mannasses Kemton, John Dunham, Sen <sup>r</sup> . |
| Duxbery,    | . . . | M <sup>r</sup> John Alden, Constant Southworth.     |
| Settuaat,   | . . . | ‡ William Hatch, ‡ James Cudworth, Thomas Clapp.    |
| Sandwidg,   | . . . | M <sup>r</sup> John Vincent, William Newland.       |
| Taunton,    | . . . | M <sup>r</sup> Henery Andrews, Edward Case.         |
| Yarmouth,   | . . . | Leutenant Palmer, M <sup>r</sup> Edmond Hawes.      |
| Barnstable, | . . . | M <sup>r</sup> Thomas Dimmack, Thomas Hinckle.      |
| Marshfeild, | . . . | Kenelme Winslow, Robert Waterman.                   |
| Rehoboth,   | . . . | Steu <sup>n</sup> Payne, Robert Titus.              |
| Nawset,     | . . . | M <sup>r</sup> John Done, Samuell Hicks.            |

8 June.

[\*199.]

\*At the Generall Court holden at New Plymouth the 8<sup>th</sup> of June, 1649, a co<sup>m</sup>itte<sup>e</sup> was a<sup>p</sup>ointed in the behalfe of the cuntry to treat of and let out the trad at Ke<sup>n</sup>ebeck, which accordingly, on the 4<sup>th</sup> of July folowing, thay did as foloeth:—

Those y<sup>t</sup> weer a<sup>p</sup>ointed by the Court aforsaid to let the trade at Kenebeck,—viz<sup>s</sup>, M<sup>r</sup> William Coliar, Captaine Miles Standish, M<sup>r</sup> Timothy Hatherlee, M<sup>r</sup> John Browne, M<sup>r</sup> William Thomas, M<sup>r</sup> James Cudworth, and Constant Southworth; M<sup>r</sup> John Alden and Robert Waterman being absent,—the 4<sup>th</sup> of July, 1649, did let and set the said trade of Ke<sup>n</sup>ebeck vnto M<sup>r</sup> William Bradford, M<sup>r</sup> Edward Winslow, M<sup>r</sup> Thomas Prence, M<sup>r</sup> Thomas Willet, and

Mr William Paddy, vpon the like conditions as formerly thay haue had it, as is expressed in indentures formerly passed betwixt the pties aforsaid for the full tearme of three yeares, and couenants to bee drawne betwixt them as formerly.

1649.

8 June.  
BRADFORD,  
GOVERN.

*\*.At the 2<sup>cond</sup> Session of the Generall Court, begun the sixt of June,  
holden the twenty fift of October.*

25 October.

[\*201.]

BEFORE Wiltam Bradford, gen<sup>t</sup>, Gouver<sup>r</sup>, Timothy Hatherley,  
Wiltam Colyar, John Browne, &  
Captaine Miles Standish, Wiltam Thomas,  
Gentlemen, Assistants.

**I**T is ordered by the Court, y<sup>t</sup> the co<sup>m</sup>itties of Scittuaat shall take a view of the timber vpon or neare the range betwixt the Massachusetts & vs, & to make report therof vnto the next Court of Assistants, & for such timber as a<sup>p</sup>peers vndoubtedly within the pattent, to forbid such as are without the gouernment to make vse therof.

Wheras a request is made vnto the Court, by Mr Paddy & others, of the towne of Plymouth, in the behalfe of sundry of the said towne, for a tract of land to supply their wants & nessesities, lying ouer against Aquetnet Iland, the Court haue ordered Captaine Standish and Mr Browne to take a view of the sd lands, & vpon their viewall therof doe graunt it vnto them of Plymouth aforsaid, for the supply of them in want as aforsaid, if vpon their viewall therof thay find it not preiudiciall to the colyny; and the said Captaine Standish & Mr Browne are to set the bounds therof; and the said Court doe further order the Gou<sup>r</sup>, Mr Paddy, Captain Willet, Mr Howland, Elder Cushman, John Dunham, Sen<sup>r</sup>, and Leiuetennant Thomas Southworth, to order & dispose the said lands as thay shall see meetest for the ends aforsaid.

Wheras diuers sad, iniurius practises to the murthering of sum of the English haue been co<sup>m</sup>ited by the natiues to the westward, against the said English at Stanford & other places, with diuers insolent & threatening speaches by them allso spoken, wherby the co<sup>m</sup>issioners for the Vnited Colinyes are ocationed to vse their best endeauors for the rectifying of the said abuses; and being vncertaine whether there may bee need of a warr with the said natiues for y<sup>t</sup> end, & haue therefore signified vnto the seuerall Vnited Colinyes y<sup>t</sup> thay may bee in a redines if ocation should bee.

It is therfor ordered by the Court, y<sup>t</sup> forthwith due p<sup>u</sup>ision bee made,



1649.

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both of men and am̄nition, with poulder & shot, & victailes, and other nesseyes for fourty men for the space of three monthes, sutable for such an ocation, & y<sup>t</sup> euery towne respectiuely prouid̄ for their owne men.

The Court haue generally nominated and voted Captaine Standish to bee vnder the consideration of a generall offecer, or com̄issary generall, to haue the ouersight of the seuerall military companies within this gouernment, both for the viewall of their armes, & to com̄aund the said companies vpon spetiall ocations; & Captaine Standish aforesaid doth condecend therunto.

The Court haue graunted vnto M<sup>r</sup> Bradford, Gouver<sup>r</sup>, a p̄cell of meadow esteemed about as much as will winter ten head of cattell lying vpon the further side of Raged Playne, westward of the path going from Plymouth to Waymouth.

The abouesaid p̄cell of meddow granted to M<sup>r</sup> Bradford, Seni<sup>r</sup>, with another p̄cell of meddow lying att the end of John Faunces land, and his att Joaneses Riuier, which said latter mentioned p̄cell of meddow was sometimes the meddow of Joseph Rogers and Stephen Tracey; these two p̄cells of meddow the said M<sup>r</sup> Wilłam Bradford, Seni<sup>r</sup>, did in the time of his sicknes freely giue and make ouer vnto his son, M<sup>r</sup> John Bradford, to him and his heires for-euer, and was alsoe ratified and confeirmed vnto him by Mis Allice Bradford, Seni<sup>r</sup>. See Booke of Sales and Giufts of Lands, anno 1658.

29 October. \**At the Generall Court holden at New Plymouth, the 29<sup>th</sup> of October.*  
[\*203.]

|                                                                   |                    |
|-------------------------------------------------------------------|--------------------|
| BEFORE William Bradford, gen <sup>t</sup> , Gouver <sup>r</sup> , | Timothy Hatherley, |
| William Colyare,                                                  | John Browne, &     |
| Captaine Miles Standish,                                          | Wilłam Thomas,     |
| Gen <sup>t</sup> , Assistants.                                    |                    |

**W**HERAS Richard Berry acusseth Teage Joanes of sodomy, and y<sup>t</sup> the said p̄ties were both bound ouer vnto this Court, to answare the aforesaid acussation, the Court haueing heard what can bee said in the case for p̄sent, for want of further euidence, haue refered it for further hearing vnto the next Generall Court, & haue taken bonds for the apearance of the aforesaid p̄ties.

|                                                             |                     |
|-------------------------------------------------------------|---------------------|
| Edward Sturgis acknowledgeth to owe vnto the Court the som̄ | } 20 <sup>l</sup> . |
| of . . . . .                                                |                     |
| Richard Berry the som̄ of . . . . .                         |                     |

The condition, y<sup>t</sup> if the said Richard Berry doe aꝑeer at the Generall Court to bee holden at New Plymouth the first Tusday in March next, & not depart the said Court without lycence ; y<sup>t</sup> then, &c.

Emanuell White acknowledgeth to owe vnto the Court the } 20<sup>l</sup>.  
sofñ of . . . . . }

Teage Joanes the sofñ of . . . . . 20<sup>l</sup>.

The condition, y<sup>t</sup> if the said Teage Joanes doe aꝑeer at the next Generall Court, to bee holden at Plymouth aforsaid, the first Tusday in March next, & not depart the same without lycence ; y<sup>t</sup> then, &c.

Obadia Hullme, }  
Wiltam Carpenter, } are bound one for another in the sofñ of ten  
Joseph Tory, } pound a peece.

The condition, y<sup>t</sup> if the said parties doe aꝑeere at the next Generall Court of Election, to bee holden the first Tusday in June next, & not depart the same without lycence ; y<sup>t</sup> then, &c.

\*Presentments by the Grand Inquest.

[\*204.]

Wee p̄sent Wiltam Halloway and Peregrin White, both of Marshfeild, for fighting.

Cleared, with  
admission to  
take heed for  
the future.

Wee p̄sent John Hathawey, of Taunton, for lending a gun to an Indian.

Concerning the bridge at the Eel Riuer, the Court haue ordered y<sup>t</sup> a pposition bee made vnto the three townes, viz<sup>s</sup>, Yarmouth, Barnstable, and Sandwidg, y<sup>t</sup> if thay will make payment of the sofñ of fufteen pound in good & currant pay vnto the inhabitants of the Eel Riuer aforsaid, towards the charg̃ by them expended in the biulding of the aforsaid bridg, the said fifteen pound to bee paid by eich of the three townes aforsaid proportionable to theire rates in publick charges ; y<sup>t</sup> then the said inhabitants shall accept of the said sofñ towards the charg̃ aforsaid ; or otherwise the said inhabitants to haue libertie to coñence suit against the townes aforsaid, in respect of the perticular aforsaid as thay shall see reason.

The Court haue ordered M<sup>r</sup> Alden, Phillip Delanoy, & Henery Sampson to measure Samuell Eatons land at the vper end, & to make report therof vnto the Court.

L̄res of adminestration are graunted vnto Mis Abigail Coggin, of Barnstable, to adminester vpon the estate of her husband, & to pay the debts as fare as the estate will amount vnto, by equal pportions, & is bound to the Court to doe it, & M<sup>r</sup> Thomas Dimack & Thomas Hinckley with her.

1649.

29 October.  
BRADFORD,  
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The Accountt giuen in by the Treasurer at this Court.

|                                                     | i  | s  | d  |
|-----------------------------------------------------|----|----|----|
| The companye are indebted to the cuntry, . . . .    | 38 | 19 | 08 |
| The cuntry indebted to the company for building of  | }  |    |    |
| the house at Keñebeck, for the purchase of land     |    |    |    |
| with the Indians, and a barrell of poulder, . . .   |    |    |    |
| Reconed with the Treasurer for all accountts during | }  | i  | s  |
| the time of his being Treasurer, and rests due to   |    |    |    |
| the cuntry from the Treasurer, . . . . .            |    |    |    |
| Rests in the Treasurers hands in beads, . . . . .   | 10 | 00 | 00 |
| Edward Jenkins indebted for excise, . . . . .       | 06 | 00 | 00 |
| Christofer Winter, for a fine, . . . . .            | 05 | 00 | 00 |
| †Constant Southworth, for excise,† . . . . .        | 01 | 14 | 02 |
| Samuell Cutbert indebted, . . . . .                 | 01 | 00 | 00 |
| Wilłam Paybody indebted, . . . . .                  | 01 | 01 | 00 |

This 1<sup>st</sup> 14<sup>th</sup> 2<sup>d</sup>  
payed by Con-  
stant South-  
worth to Cap-  
taine Standish.

Memorandum: to giue accountt for James Coles excise, out of which to set of the comitties charges for this Court.

[\*205.]  
6 March.

\*Att the Generall Court holden att New Plym, the sixt of March, 1649.

BEFOR Wilłam Bradford, gen<sup>t</sup>, Goue<sup>r</sup>, & Wilłam Colliar, &  
Captaine Miles Standish,  
Gen<sup>t</sup>, Assistants.

WHERAS, att the Generall Court, holden at Plymouth aforsaid, the 29<sup>th</sup> of October, 1649, Richard Berry acussed Teage Joanes of sodomy, & other vnclean practisses also with Sara, the wife of Hugh Norman, & for y<sup>t</sup> cause the said p<sup>t</sup>ies were both bound ouer to answare att this Court, & accordingly appeered; the said Richard Berry acknowledged before the Court y<sup>t</sup> hee did wrong the aforsaid Teage Joanes in both the aforsaid p<sup>t</sup>iculars, & had borne false wittnes against him vppon oath; and for the same the said Richard Berry was sentenced to bee whipte at the poste, which accordingly was performed.

L<sup>res</sup> of adminestration are graunted vnto M<sup>rs</sup> Margeret Hicks, to administer vppon the estate of Ephraim Hicks, & to pay the debts as fare as the estate will amount vnto by equall pportions, & is bound to the Court to doe it, & M<sup>r</sup> Th<sup>o</sup> Willet with her.

The fourth of Aprell, 1650. Thō Wallen, Richard Carle, Gorgē Way, Katheren Warner, and Mary Mills were apprehended at Barnstable, in the jurisdiction of New Plym̃; and on the eight day of Aprell, aforsaid, they being examined before Wiltam Bradford, geñt, Gouer̃, Wiltam Collyar, and Wiltam Thomas, geñt, Assistants, confessed y<sup>t</sup> they, the said Thō Wallen, Richard Carle, & Gorge Way did healpe away Katheren Warner & Mary Mills, who were run away from their husbands; and for y<sup>t</sup> purpose y<sup>t</sup> Richard Carle aforsaid did steale his fathers boat, which they came away in; it was therfore ordered by the Gouer̃ & Assistants aboue mensioned, that the aforsaid Gorgē Way, Katheren Warner, & Mary Mills should bee sent from constable to constable to the place from whence they came, w<sup>h</sup> is a place called Winter Harbor, near Richmans Iland to the eastward; and y<sup>t</sup> Thō Wallen & Richard Carle aforsaid bee comitted to ward; all which accordingly was forthwith pformed.

1650.

4 April.  
BRADFORD,  
GOVER<sup>r</sup>.

*\*Att the Court of Asistants holden att Plym̃, the 7<sup>th</sup> of May, 1650.*

7 May.  
[\*206.]

BEFORE Wiltam Bradford, geñt, Gouer<sup>r</sup>, and Timothy Hatherley, and  
Wiltam Collyar, John Browne,  
Captaine Miles Standish,  
Geñt, Asistants.

**W**ILLLAM SHEPHERD, of Taunton, haueing confessed y<sup>t</sup> hee hath purloyned & stolen certaine goods from his mother in law, was senced to returne the said goods vnto his said mother in law againe, and to bee whipt at the post; the latter of which accordingly was forthwith performed.

An execution graunted vnto Edward Doty against James Shaw and John Shaw, Juñi, for thirty fve shillings damage and the charge of the suit, wherof the said James & John Shaw is convict by course of law.

New Plym̃, the 3<sup>d</sup> of October, 1650.

3 October.

According to an order of Court the day and yeare aboue written, that wheras John Alden, Senior, and Miles Standish, Senior, by order of the Court in the year 1640, were to lay out lands and meddows to John Cooke, Francis Cooke, and John Rogers, and sence sould by the said p̃ties to Thō Tilden, Moris Truant, and Wiltam Maycomber, and difference falling out betwixt the aforsaid Thomas Moris and Wiltam, by order aforsaid, wee, the

1650.

3 October.  
BRADFORD,  
GOVERN<sup>R</sup>.

said John and Miles, doe thus declare our entents when wee first layed out the said land and meddow; that the vpland range with the first trees that were marked: further, wee thuse expresse our selues for the meddow, that it rang̃ from the bound trees vpon the same range to y<sup>e</sup> North Riuer; the reason was because wee did not then know, neither yet doe, that ther was any meddow graunted to the two ilands, which, if it appeer by former graunt, wee must confese our ignorance. And wheras by the said order that wee should establish the bounds to continnew to future times, wee therfore order, that as wee find wee layed out the meddow that halfe the meddow before the land layed out to John Rogers bee equally deuided between Wiltam Maycomber and Moris Truant; and Thō Tilden the other halfe of the said meddow. Wee, therefore, by these p̃sents, doe request and order M<sup>r</sup> Richard Garrett, according to the mutuall agreement between Wiltam Maycomber, Moris Truant, and Thomas Tilden, assenting to the same afterward, to pay the said Richard Garrett for his paynes for the same, and that hee lay it out according to the mannifestacions of our entencions at our first laying out of the said lands and meddow abouesaid; which done, the said bounds to stand for the future and to continew. Wee haue vpon the place shewed the said Richard Garrett the first bounds. Wittnes our hands this 13<sup>th</sup> of March, 1650.

MILES STANDISH,  
JOHN ALDEN.

[\*207.]

\*Att the Generall Court holden att New Plym̃ the 29<sup>th</sup> of October, 1649, Obadia Hullme complained against M<sup>r</sup> Samuell Newman, in an action of slander to the dammage of an hundred pound; but the suite was not tried by jury, though ended as vnderneath is expressed.

P. 190.

Obadia Hullme, plaintife, & M<sup>r</sup> Newman, deffendant, in an action of slander: the said Hullme complained y<sup>t</sup> M<sup>r</sup> Newman had reported him tō haue taken a false oath in the Court at Plym̃; and in the examining the matter before the Gouver<sup>r</sup> and Asistants, M<sup>r</sup> Newman said hee could not charge him with it of his owne knowlidg̃, but as hee had receaued information from soñ others, which, not being true, hee did in the Court acknowlidg̃ hee had done him wrong, & promised to pay his charges. And the said Hullme rested satisfied; and thervppon M<sup>r</sup> Newman deliuered into the Court a wrighting, subscribed vnto by Thō Cooper, Stephen Payne, Robert Sharpe, Jonathan Blise, Thō Wilmoth, & Wiltam Sabin, the p̃ties from whom hee had his information. Hullme desired the Court to keepe the wrighting, saing y<sup>t</sup> it had been red in theire owne towne in the p̃sence of many straingers, to his great reproch, yet said if those men would but as openly acknowlidg̃ they had

done him wrong as M<sup>r</sup> Newman had then done, hee would rest therin ; the Court aproving of his willingnes to rest in so easie a satisfaction, and knowing the wrighting to bee false & scandalus, advised M<sup>r</sup> Newman to declare in soñi publick meeting in the towne, att his coming home, how those men had abussed him ; for the said Hullme had not given in the Court any such testimony as y<sup>t</sup> wrighting did import, & vppon his request the Court thought it just to record his clearing.

1650.

29 October.  
BRADFORD,  
GOVERN<sup>r</sup>.

Charges allowed vnto Obadia Hullme by the Court in Respect vnto the Suite  
aboue mensioned.

|                                              |          |
|----------------------------------------------|----------|
|                                              | s      d |
| It̃, to himselfe, . . . . .                  | 012 : 00 |
| It̃, to Wiltam Carpenter, wittnes, . . . . . | 012 : 00 |
| †It̃, to the clarke, . . . . .               | 02 : 00† |

\*Thō Cooke, aged about twenty yeares, late of Ipswidge, traueilling towards Equednett, accompanied with a youth about twelue yeares of age, both of them lodging att the ordenary att Taunton the 2<sup>cond</sup> day of May, 1650, and vppon the 10<sup>th</sup> day of the said month the body of the aforesaid Thō Cooke was found dead in the riuer of Taunton, about six miles from the towne. Whervppon a jury of twelue men was impannelled to inquire how and by what meanes hee came by y<sup>t</sup> vntimly death. The p̃ticular names of the jury are heer vnder expressed. [\*208.]

Henery Andrewes, foreman of the jury.

|                   |                      |
|-------------------|----------------------|
| Wiltam Parker,    | Richard Stacy,       |
| Richard Williams, | James Bortt,         |
| Walter Deane,     | John Tisdall,        |
| John Deane,       | Anthony Slocom,      |
| Hesekiah Love,    | Nathaniell Woodward. |
| Thō Linkon,       |                      |

The eleuenth day of May the jury brought in theire verdict y<sup>t</sup> the youth, by the aduise of the said Tho: Cooke, did take a cannowe, without the knowlidge of the owener therof, and making hast away lest hee should bee pursewed, did stand in the end of the canoowe to paddle it away, and did fall into the riuer, and so by y<sup>t</sup> accident was drowned and came to his end.

HENERY ANDREWES, Forman.

June the 9<sup>th</sup>, 1650. M<sup>r</sup> Wiltam Hedge and Robert Denis are respited vntell the next aiorment of the Court holden the day and yeare aboue said, to make John Besthope to apeere, for whose psonall apeerance they stand bound.

9 June.

1650.

9 June.

[\*209.]

\*The acknowledgiment of Strong Furnell, of Boston, concerning reproch by him cast vppon M<sup>r</sup> Prence and the towne of Nawset.

June the 9th, 1650. If it may please the honored Court now assembled to take a favorable concideration of these few linnes : —

Wheras there hath been entered an action of slander to the vallew of two hundred pound damage, and partly proceeded in, by the reverent and truely respected M<sup>r</sup> Prence, against mee, Strong Furnell, of Boston, —

I, Strong Furnill aforsaid, doe by these few words declare and testifye to this honored Court now p<sup>s</sup>ent assembled, and to all other p<sup>s</sup>ons whersoever, y<sup>t</sup> notwithstanding my former p<sup>s</sup>istance in this euell of slandering, it beeing justly charged vppon mee vppon due conviction of my guiltines in this great transgression, I desire therefore to adresse my selfe to remoue my great offence according to my power and the p<sup>s</sup>ent apprehensions I haue of this offence, and hope y<sup>t</sup> for the future I shall more sensably concider of the nature of my offence. I, Strong Furnell abouesaid, doe freely confesse my great transgression being directly against the Holy Scripture and the rules therof, & y<sup>t</sup> agreuated, it being against a ruler in place of justice, and a man of whom I am reuerently perswaded of, and doe not onely now, but haue seen his faithfullnes and integrity ; wherfore I am very sorry y<sup>t</sup> I should so justly offend against his p<sup>s</sup>on, against his honored office, so iniure the Bench and the whole honored Court assembled, confessing y<sup>t</sup> allthough M<sup>r</sup> Prence for his owne part hath so humbly expressed his lenity and redynes to take satisfaction, yet I am not in my owne apprehension able to make this p<sup>s</sup>ent and honored Court satisfaction according to the nature of my offence and wrong done vnto them neither by word or deed ; but my endeauors and humble desires are y<sup>t</sup> M<sup>r</sup> Prence will bee pleased to continew his willing acceptance of this my weake acknowledgiment, and y<sup>t</sup> this whole Court assembled wilbee pleased to accept therof as y<sup>t</sup> which may bee the least y<sup>t</sup> can bee done on my part in a transgression of this nature ; and for my owne part I doe further promise heerafter to looke better to my tongue, as the Scripture teacheth, and also heer and else where to put forth my endeauors to regaine and promote the honer of both M<sup>r</sup> Prence, who doeth more imēdiately suffer by my vngouerned tongue, and also this honored Court and corporation ; from whom, if I find this smale tender of myne to find acceptance, I cannot adiudge y<sup>t</sup> I haue, and shall so acknowlidg y<sup>t</sup> I haue, found more favour then I should haue found elsewhere vppon such a transgression, and shall so acknowlidg it, not onely now, but heerafter ; further I doe acknowlidg y<sup>t</sup> I know no vnfaithfullnes in the towne of Nawset in the pticulars aforsaid.

By mee,

STRONG FURNILL.

The Court, on the day and yeare aforesaid, did order concerning Strong Furnill aforesaid, that hee beare and defray all the charges arising by the suite of M<sup>r</sup> Prence against him as aforesaid ; and y<sup>t</sup> if hee, the said Strong Furnell, shall at any time reuiue the aboue said reproches & slanders againe, M<sup>r</sup> Prence hath his libertie to procecute against him as hee shall see reason.

1650.

9 June.

*\*Att the Generall Court of Election holden att Plym aforesaid, the fourth of June, 1650.*

4 June.  
NEW PLYM.  
[\*211.]

M<sup>R</sup> WILLAM BRADFORD elected Gouvernor, and sworne.

|                                   |   |                               |
|-----------------------------------|---|-------------------------------|
| M <sup>r</sup> Edward Winslow,    | } | chosen Assistants, and sworn. |
| M <sup>r</sup> Thō Prence,        |   |                               |
| M <sup>r</sup> Wilam Collyar,     |   |                               |
| Captain Miles Standish,           |   |                               |
| M <sup>r</sup> Timothy Hatherley, |   |                               |
| M <sup>r</sup> John Brown,        |   |                               |
| M <sup>r</sup> Wilam Thomas,      |   |                               |
| M <sup>r</sup> John Alden,        |   |                               |

M<sup>r</sup> Thō Prence and M<sup>r</sup> John Browne chosen coṃissioners for this yeare to treat with the coṃissioners of the Vnited Colonies according to the articles of confederation att the time and place appointed.

The Cunstables chosen by the seuerall Townships, and p<sup>s</sup>ented to this Court and sworne, viz<sup>g</sup> : —

|             |         |                                                 |
|-------------|---------|-------------------------------------------------|
| Plym,       | . . . . | John Tompson.                                   |
| Duxbery,    | . . . . | Francis Sprague.                                |
| Scittuate,  | . . . . | Gor̃ Russell, John Williams, Jun <sup>r</sup> . |
| Sandwidge,  | . . . . | Edmond Freeman.                                 |
| Taunton,    | . . . . | Gor̃ Maasy.                                     |
| Yarmouth,   | . . . . | M <sup>r</sup> Wilam Hedge.                     |
| Barnstable, | . . . . | Nathaniell Bacon.                               |
| Marshfeild, | . . . . | Joseph Bedle, Moris Truant.                     |
| Rehoboth,   | . . . . | John Read.                                      |
| Nauset,     | . . . . | Gor̃ Chrispe.                                   |



1650.  
4 June.  
BRADFORD,  
GOUVERNER.

Freemen admitted this Court.

|                  |                |
|------------------|----------------|
| Francis Goulder, | John Bradford, |
| John Gorum,      | John Crocker,  |
| Thō Burd,        | James Walker.  |

The Names of such as stand ppounded to take vpp theire Freedom.

|                              |                        |
|------------------------------|------------------------|
| M <sup>r</sup> Thō Robenson, | Thō Cooper,            |
| John Stockbridg,             | Robert Sharpe,         |
| James Bates,                 | Wilt Paybody,          |
| Ephraim Kemton,              | M <sup>r</sup> Miller, |
| Samuell Mayo,                | Edward Sturgis,        |
| Robert Wixon,                | Robert Dennis,         |
| John Read,                   | William Nicarson,      |
| John Churchill,              | Josiah Winslow.        |

[\*213.]      \*The comitties of the seuerall Townes that serued at this Court, and the aiornment therof, were as foloeth : —

|             |                                                                                                       |
|-------------|-------------------------------------------------------------------------------------------------------|
| Plym,       | { M <sup>r</sup> Paddy, absent,<br>M <sup>r</sup> Howland,<br>Mannasses Kemton,<br>John Dunham, Senī. |
| Duxbery,    | { Gorḡ Soule,<br>Constant Southworth.                                                                 |
| Scittuate,  | { M <sup>r</sup> James Cudworth,<br>Humphry Turner.                                                   |
| Sandwidḡ,   | { M <sup>r</sup> John Vincent,<br>Thō Tupper.                                                         |
| Taunton,    | { Richard Williams,<br>Oliuer Purchase.                                                               |
| Yarmouth,   | { Lieutenant Palmer,<br>Richard Hore.                                                                 |
| Bāstable,   | { M <sup>r</sup> Thō Dimacke,<br>Anthony Anable.                                                      |
| Marshfeild, | { Kanelme Winslow,<br>Robert Waterman.                                                                |
| Rehoboth,   | { Steuen Payne,<br>Robert Titus.                                                                      |
| Nauset,     | { M <sup>r</sup> John Done,<br>Nicolas Snow.                                                          |

## Survayors for the Hiewayes.

|                       |                                                                 |
|-----------------------|-----------------------------------------------------------------|
| Plym̃, . . . . .      | Captaine Willett, M <sup>r</sup> Howland, M <sup>r</sup> Paddy. |
| Duxborrow, . . . . .  | John Stare, John Washburn, Juñ.                                 |
| Scittuate, . . . . .  | Peeter Collimore, Richard Curtis.                               |
| Sandwidg̃, . . . . .  | Thō Dexter, Micaell Turner.                                     |
| Taunton, . . . . .    | Thō Linkcolne, Edward Case.                                     |
| Yarmouth, . . . . .   | Andrew Hallot, Richard Templer.                                 |
| Bāstable, . . . . .   | Gorge Lewis, Abraham Blush.                                     |
| Marshfeild, . . . . . | John Bourne, Richard Beare.                                     |
| Rehoboth, . . . . .   | Walter Palmer, Peeter Hunte.                                    |
| Nauset, . . . . .     | Edward Banges, Gyels Hopkins.                                   |

1650.

4 June.  
BRADFORD,  
GOVERNER.

## Receuers of the Exsise.

|                      |                                   |
|----------------------|-----------------------------------|
| Plym̃, . . . . .     | Richard Sparrow.                  |
| Duxberry, . . . . .  | Will Paybody.                     |
| Scittuate, . . . . . | Henery Meritt, Sen <sup>r</sup> . |

The Names of those who are deputed by the Court to marry in each Towne.

|                                      |                               |
|--------------------------------------|-------------------------------|
| For Taunton, . . . . .               | M <sup>r</sup> Willam Parker. |
| For Bāstable and Yarmouth, . . . . . | Thō Hinkley.                  |
| For Sandwidg̃, . . . . .             | Thō Tupper.                   |

## \*The Grand Inquest.

[\*215.]

|                              |           |                 |           |
|------------------------------|-----------|-----------------|-----------|
| M <sup>r</sup> Thō Robenson, | } sworne. | Thō Falland,    | } sworne. |
| M <sup>r</sup> Thō Cooper,   |           | Edward Sturgis, |           |
| Edward Case,                 |           | John Tisdall,   |           |
| Gyels Rickard,               |           | Henery Howland, |           |
| Henery Sampson,              |           | Gorg̃ Buett,    |           |
| Thō Burman,                  |           | Willam Gifford, |           |
| John Crocker,                |           | Steuon Wood,    |           |
| Thō Chillingsworth,          |           | Robert Wixon,   |           |
| John Dingley,                |           | Andrew Ringe,   |           |
| Robert Sharpe,               |           | Ephraim Kemton, |           |
| Edward Jenkins,              |           | Jacob Cooke.    |           |

Presentments by the former Grand Inquest, June the fift, 1650.

June 5.

Wee present Thō Tilden, the cunstable of Marshfeild, for not deliuering the two prisoners comitted vnto his charge to the cunstable of Scittuate, but gaue them the warrant in their hand, and let them depart.

Tho: Tilden  
fined 1<sup>u</sup> 10<sup>s</sup>.

1650.

5 June.  
BRADFORD,  
Gov.

Wee p̄sent Edward Hunt, of Duxburrow, for shooting vpon the Lords day at deare. Fined 2<sup>s</sup>.

Wee p̄sent John Barnes, of Plym̄, for being drunke. Cleared by paying the fine.

¶ Res of adminestration are graunted vnto M<sup>r</sup> Thō Howes and Samuell Mayo to adminnester vppon the estate of Samuell Hallot, and to pay the debts as fare as the estate will amount vnto by equall proportions.

¶ Res of adminestration are allso graunted vnto Sara, the wife of Thō Blossom, to adminester vppon the estate of the said Thō Blossom, and to pay the debts.

And, further, the said Sara, the wife of Thō Blossom aforsaid, doth by these p̄sents make ouer vnto her child that shee had by her said husband, whom shee calleth Sara, fūe pound sterling out of the estate aforsaid, to belong and appertaine vnto the said child as its owne p̄per right foreuer.

Obadia Hullme and Joseph Tory are bound one for an other in the sum of tenn pound a peece.

Cleared by  
apeerance att  
the said Court.

The condition, y<sup>t</sup> if the said Obadia & Joseph doe appeer at the Generall Court to bee holden at Plym̄ the first Tusday in October next, and not depart the same without licence ; y<sup>t</sup> then, &c.

4 June.  
[\*217.]

*\*Att the 2<sup>cond</sup> Session of the Generall Court, begun the 4<sup>th</sup> of June, 1650, and held the 10<sup>th</sup> of June aforsaid.*

BEFORE Wiltam Bradford, Goue<sup>r</sup>,  
Thō Prence,  
Wiltam Collyare,  
Captaine Miles Standish,

Timothy Hatherley,  
Wiltam Thomas, and  
John Alden,

Gen<sup>tl</sup>, Assistants.

**W**HERAS M<sup>r</sup> Hatherley hath made a motion to the Court to haue libertie to sett vpp an iron mill, and for that purpose hath requested a p̄cell of land lying betwixt Namassakeeset and Indian Head Riuer, lying aboue the path, the Court haue graunted vnto M<sup>r</sup> Hatherley aforsaid, according to his desire, all the land lying betwixt the path and the ponds betwixt

the two riuers aforsaid, with all and singulare the appurtenances and priu-  
lidges belonging thervnto; to haue and to hold vnto the said Mr Timothy  
Hatherley, with all and singulare the appurtenances, to him, his heaires, and  
assignes foreuer, vnto the onely proper vse and behoof of him, the said Mr  
Timothy Hatherley, to him, and his heaires, and assignes foreuer, prouided,  
that the said Mr Timothy Hatherley doe sett the said iron mill to work within  
the space of three yeares next ensewing the date heerof, or otherwise the said  
lands are to returne againe vnto the colonie.

The Court haue ordered y<sup>t</sup> a jury bee forthwith impanelled, or as soone  
as conueniently maybe, by Captain Standish, six wherof are to bee out of  
Plym, and six out of Duxburow, to lay out the way from Joanses Riuer to  
the Massachusits Path, so as it may bee most conuenient, and lest preiuditi-  
all to any; and if it so fall out y<sup>t</sup> it doe or may so bee laid out as it shalbe pre-  
iuditi-  
all to either Mr Bradford or John Rogers, that they, or either of them, so  
damnified, shall haue full satisfaction for the same.

1650.  
10 June.  
BRADFORD,  
Gov.

Of this see  
more the fift  
page forward  
of this booke

That an account be giuen by the cunstable of Marshfeild that were  
1646 how their rate was payed that yeare.

Pecunke, Ahivmpum, Catscimah, Webacowett, and Masbanomett doe all  
afferme, that Chickatawbutt his bounds did extend from Nishamagoquanett,  
near Duxbery mill, to Teghtacutt, neare Taunton, and to Nunckatatesett, and  
from thence in a straight linne to Wanamampuke, which is the head of Charles  
Riuer; this they doe all sollomly afferme, saing, God knoweth it to bee true,  
and knoweth their harts.

Dated the first of the fourth month, 1650.

Wittnes: Encrease Nowell,  
John Eliot,  
John Hoare.

Josiah Wampatuke, Indian, sagamore of the Massachusits, and Nahatan,  
the sonne of Jumpum, cam to Plym the 7<sup>th</sup> of June, 1650, and there did tes-  
tifye, that the land, according to a drafft in the keeping of Mr Hatherley and  
others, and the particulars therein specified, was the onely pper lands of  
Chickatawbutt, father to Josiah Wampatuke aforsaid; and this hee ac-  
knowledged before Captain Standish, Mr William Thomas, and Mr John  
Alden.

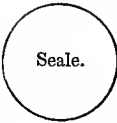
Mr Hatherley and others with him haue bought so much of the land  
aboue mensioned of the said Josiah Wampatuke as concerned them to  
buy.

1650.

10 June.  
[BRADFORD,  
GOVERNOR.]

[\*219.]

\*A Copie of the Comission from the Gouverment of the Massachusets.



Seale.

To our trusty and wellbeloued frinds, Captain Humphry Atherton  
and Captaine Eliazer Lusher.

You, being chosen comissioners by the Generall Court in p̄sent being, haue full power and authoritie, and are heerby inabled in their names, to consult, agree, and determine with the Generall Court at Plym̄ concerning the title of land called Shawwamett and Pautuxit, and protection of the English and Indians there according to our engagements, repayering all priuat iniuries according to law and justice.

Att a Generall Courte held att Boston the first of June, 1650.

Thō Dudley, Gouver<sup>r</sup>.

Wheras a comission was giuen to Captain Humphry Autherton and Captaine Eliezer Lusher by the Generall Court of the Massachusets, bearing date the first of June, 1650, and sealed with their com̄on seal, giueing them full power and authoritie to treat, debate, and determine with the Generall Court of Plym̄ about the controuersie concerning the title to the lands called Shawwamett and Pautuxet, and the protexion of the English and Indians, &c, as appears more att larg̃ by a copie of the said comission.

The aforesaid Generall Court of Plym̄, the sixt of June, 1650, chose Wilam Bradford Goue<sup>r</sup>, M<sup>r</sup> Thō Prence, M<sup>r</sup> Wilam Collyar, Assistants, and M<sup>r</sup> Howland, M<sup>r</sup> Dimack, M<sup>r</sup> Cudworth, M<sup>r</sup> Josiah Winslow, freemen, for a comittie, and gaue them full power and authoritie in their names, and on their behalfe, to treat with the aforesaid comissioners, and to determine and conclude the abouesaid controuersye, and to put a full end thereunto in any way y<sup>t</sup> should seem best vnto them.

The conclusion and agreement therabouts was as followeth on the 2<sup>cond</sup> page forward.

M<sup>r</sup> Wilam Bradford,

M<sup>r</sup> James Cudworth,

M<sup>r</sup> Thō Prence,

M<sup>r</sup> Thō Dimack,

M<sup>r</sup> Wilam Collyare,

M<sup>r</sup> Josiah Winslow.

M<sup>r</sup> John Howland,

[\*220.]

\*June the 7<sup>th</sup>, 1650. Forasmuch as there hath beene for some long time past some question depending betwixt the jurisdictions of the Massachusets and New Plym̄, concerning a certaine tract or tracts of land called Shawwamett and Pautuxett, and some places therabouts; and yt hath pleased the honored Court of the Massachusets to graunt a comission, vnder the hand and seale of the said Court, vnto Captaine Humphry Autherton and Captain

Eliezer Lusher, enabling & investing them with full power and authoritie to treat, consult, and determine together with the honored Court of Plym̄ aforsaid in all cases whatsoever doe or may concerne the tracts of land before specified; the Generall Court of Plym̄ haueing, in consideration of the p̄mises, as also for the preserving of mutuall loue, frendshipe, and amitie with their neighbors of the Massachusetts, haueing chosen and deputed M<sup>r</sup> Willam Bradford, Goue<sup>r</sup>, M<sup>r</sup> Thō Prence, and M<sup>r</sup> Willam Collyare, Assistants, M<sup>r</sup> John Howland, M<sup>r</sup> Thō Dimack, M<sup>r</sup> James Cudworth, M<sup>r</sup> Josiah Winslow, freemen, as a cōmittie of the said Court, and authorising and enabling them with full power for them and in their behalfe likewise to debate, resolute, and fully to determine together with the aforsaid cōmissioners of the Massachusetts all and euery of the cases or questions about or concerning the land aforsaid, which said cōmittie, vppon due consideration as aforsaid, doe resolute, conclude, and determine as foloeth, videlicet : —

That they doe fully and foreuer relinquish and yeild vpp vnto the gouernment of the Massachusetts aforsaid all their right, title, or claime whatsoever the said gouernment or jurisdiction of Plym̄ haue or might haue had, any way or by any meanes whatsoever, vnto y<sup>t</sup> whole tract or tracts of land knowne by the name of Shawwamett and Patuxett aforsaid, being such as are or were the just rights of Pumham & Socanoco, or either of them, att y<sup>t</sup> time that the said sachems subiected themselves and their lands to the jurisdiction of the Massachusetts aforsaid; their said rights being or to bee cleared according to euedent and aparent demonstration; and wee, the said cōmittie, by the authoritie aforsaid, doe in like manor relinquish vnto the jurisdiction of the Massachusetts all our rights, claime, or title vnto the lands justly and lawfully possessed by Willam Arnold, Robert Coale, and such of the other English as att that time together with themselves did in like manor subiecte to the Massachusetts as aforsaid; provided, that this shall in no sort hinder or p̄jeduce the due āc̄omplishment of the order of the honored cōmittie of Parlement in any other thing or case therein concerned; and also provided alwayes, that the bounds of these aforsaid lands shall not extend further towards Cowessett then the true, knowne, and approued limits of the lands of Pumham did extend at the time of their subiecting to the jurisdiction of the Massachusetts as aforsaid; and also further with \*this prouiso and condition, that what lands soeuer haue bene allredy or heerafter may bee made to āp̄eere to belong to the towne or inhabitants of Prouidence vnto this day by any just title shall not bee included in this relinquishment aboue specified, but shall notwithstanding remayne and wholly belonge to the inhabitants of Prouidence, freely to inioy as formerly they haue done; and also y<sup>t</sup> this jurisdiction of Plym̄ bee not

1650.

10 June.

[BRADFORD,  
GOVERNOR.]

[\*221.]

1650. in any thinge heerby put to more trouble or charge then any other of the two confederate jurisdictions, videlicet, Conictacott and New Hauen.

10 June.  
[BRADFORD,  
GOVERNOR.]

WILLAM BRADFORD, JOHN HOWLAND,  
THO: PRENCE, THO: DIMACK,  
WILLAM COLLIARE, JAMES CUDWORTH.

According to our order, wee haue found out and marked a new way from Joaneses Riuer to the Massachusetts Path through John Rogers his ground, and are all agreed the said way by vs marked out to bee most convenient and least preiuditiall.

Wittnes our hands heere vnder written.

This jury was impanelled according to an order extant in the fiftie page bakward of this book, p. 217.

JOHN HOWLAND, THO: HEWARD, Senĩ,  
FRANCIS COOKE, JOHN WASHBURNE, Senĩ,  
JOSHUA PRATT, HENERY SAMPSON,  
JOHN WOOD, GORG: PARTRIDGE,  
SAMUELL STURTIVANT, THO: LETTIS,  
HENERY HOWLAND, WILLAM PAYBODY.

All sworne.

7 August. \*Att a Court of Assistants holden att New Plym the seauenth of  
[\*222.] August, 1650.

BEFORE Willam Bradford, genť, Goueť, Tymothy Hatherley,  
Willam Collyare, William Thomas, and  
Captaine Standish, John Alden,  
Genť, Assistants.

WHERAS Isaake Buke, of Scittuate, did att this Court acuse John Hewes yť hee, the said Hewes, had stolen from him fouer hoes; the Court could not proceed against the said Hewes for want of further euedence; and therefore haue ordered, yť the cunstable of Scittuate doe keepe the said hoes in his custodie vntell further euedence can bee prodused for the clearing of the case, and then such order to bee taken therein as shall bee thought meet; and that the said Isaake Buke needeth not to apeare any more psonally about yť matter.

Isaake Stedman, the younger, for breaking into a house and from thence stealing out cheese and other things, was sentenced by the Court to bee publicly whipte att Scittuate att the descretion of Mr Hatherley.

Nathaniell Stedman, for purloining of an handkerchife, was onely admonished and cleared. 1650.

Edward Doty is ordered by the Court to pay vnto Edward Gray and Samuell Cutbert each of them a bushell of Indian corn for damage done by the calues and other cattell of the said Edward Doties in the corn of the šd Edward Gray and Samuell Cutbert.

7 August.  
[BRADFORD,  
GOVERNOR.]

An execution graunted the 2<sup>cond</sup> of September, 1650, vnto M<sup>r</sup> Thō Robenson against Isaak Stedman, Senī, for twenty pound damage and the charge of the suit, wherof the said Isaake Stedman is convict by course of law.

*\*Att a Generall Court holden att New Plym the 2<sup>cond</sup> of October.* 2 October.  
[\*224.]

BEFORE Wiltam Bradford, gen<sup>t</sup>, Gouer<sup>r</sup>, Timothy Hatherley,  
Thō Prence, Wiltam Thomas, and  
Wiltam Collyare, John Alden,  
Captaine Miles Standish,  
Gen<sup>t</sup>, Asistants.

IT was ordered, that wheras John Stone, of Hull, hath had leaue giuen him by the Goue<sup>r</sup> to make vse of our lands att Cape Cod these diuers yeares for basfishing, vntell such time as hee should haue any order from vs to the contrary, hee carrying himselfe peacably there, wee, hearing of sundry miscarriages this yeare past, and haueing now sundry of our owne that purpose to sett vpon the said basfishing, thought meet to giue order that the said John Stone bee forthwith warned to desist from making any vse of any of our lands there for y<sup>t</sup> purpose, that so our owne may without disturbance goe on in their intended basfishing.

2<sup>condly</sup>. Wheras M<sup>r</sup> Thō Prence and M<sup>r</sup> Wiltam Paddy haue desired leaue to sett vpon a constant course of basfishing att Cape Cod, supposing that if God please to blesse their proceedings, in time it may proue very beneficiall to this jurisdiction, the Court, hauing taken this their motion into serious consideration, thought good for p<sup>s</sup>ent, therefore, to condecend to their motion, and therefore haue judged it fitt to giue leaue to M<sup>r</sup> Thō Prence, Captaine Miles Standish, and M<sup>r</sup> Wiltam Paddy, with such other of the three townes of Plym, Duxburrow, and Nawsett as shall joyne with them vpon the said basfishing, and to that end to make vse of any of the lands, creeks, timber, &c, vpon the Cape land, in such convenient places as they shall chuse for y<sup>t</sup> purpose.



1650.

2 October.  
[BRADFORD,  
GOVERNOR.]

And wheras wee are informed y<sup>t</sup> two companies, with nett, boats, and other craft, is as much as the place can beare, it is therfore graunted y<sup>t</sup> the p<sup>t</sup>ies abouesaid, for the better managing of the said voyage, may suit themselves the most conuenientest they can for the seuerall companies out of the three townes, or any two of them, for fitt seting vppon the work intended ; and y<sup>t</sup> the first companie may make choise of the place to build vppon, and the 2<sup>cond</sup> companie to make choise when they are fitt, that so a due orderly course may bee obserued in the managing of it.

Furthermore, M<sup>r</sup> Thō Prence is a<sup>p</sup>ointed by the Court to purchase what lands yet remaineth on y<sup>t</sup> side Cape Cod vnurchased from the true proprietors of them for the vse aboue mensioned, and to make returne of his proceeding to the Court in June next, y<sup>t</sup> then the said Court may dispose of such p<sup>ce</sup>lls of the said land to the aboue mensioned p<sup>t</sup>ies for the ends proposed as aforsaid.

The 9<sup>th</sup> of June, 1651. The aboue mensioned p<sup>r</sup>uillidge is confermed vnto the aboue mensioned p<sup>t</sup>ies, together with M<sup>r</sup> Wiltam Bradford, in the behalf of the aforsaid townes, for the tearme of three years from the next October, and then to returne to the cuntrys disposing.

[\*225.]

\*Presentments by the Grand Inquest.

2 October.

October the 2<sup>cond</sup>, 1650. Wee, whose names are heer vnder written, being the grand inquest, doe present to this Court John Hazaell, M<sup>r</sup> Edward Smith and his wife, Obadia Holmes, Joseph Tory and his wife, and the wife of James Man, Wiltam Deuell and his wife, of the towne of Rehoboth, for the continewing of a meeting vppon the Lords day from house to house, contrary to the order of this Court enacted June the 12<sup>th</sup>, 1650.

|                  |                 |
|------------------|-----------------|
| THO: ROBENSON,   | THO: COOPER,    |
| HENERY SAMPSON,  | THO: BURMAN,    |
| JOHN CROKER,     | EDWARD JENKENS, |
| HENERY HOWLAND,  | ROBERT WIXON,   |
| JOHN TISDALL,    | THO: FALLAND,   |
| ROBERT SHARP,    | ANDREW RING,    |
| EPHRAIM KEMPTON, | GORG BUIT.      |

Cleared.

Wee present James Cole, of the towne of Plym, for making of a batterie vppon Wiltam Shirtley, of the aforsaid towne.

Cleared, with admonision.

Likewise wee present Thō Shereue, of the towne of Plym, for pilfering corn in Richard Sparrows barne, of the aforsaid towne.

Cleared.

Further, wee present Richard Sparrow, of the towne of Plym, for con.

cealling of the aforesaid acte of Thō Shereue, vppon an ingagement so to doe vnlesse called before authoritie.

1650.

Wee p̄sent the bridge vppon Joanes Riuer for being defectiue and very dangerous for cattell to goe ouer.

2 October.  
BRADFORD,  
GOVER<sup>R</sup>.

Wee present the townes of Plym, Duxburrow, Marshfeild, & Nawset for want of sufficient pounds.

|                 |                      |
|-----------------|----------------------|
| THO: ROBENSON,  | EDWARD JENKINS,      |
| HENERY SAMPSON, | ROBERT WIXON,        |
| JOHN CROKER,    | THO: FALLAND,        |
| HENERY HOWLAND, | ANDREW RINGE,        |
| JOHN TISDALL,   | GORGE BUITT,         |
| ROBERT SHARPE,  | GYELS RICKETT,       |
| EPHRAIM KEMTON, | STEUEN WOOD,         |
| THO: COOPER,    | THO: CHILLINGSWORTH, |
| THO: BURMAN,    | JACOB COOKE.         |

\*Wheras a sertaine skife came on drift out of the Massachusetts Bay, suposed to bee one y<sup>t</sup> āpertaineth to M<sup>r</sup> Hucheson, of the said Massachusetts, and taken vpp by Zacariah Soule, of Duxburrow, — [<sup>\*226.</sup>]

The Court haue ordered, that the said Zacariah Soule deliuer the said skife vnto M<sup>r</sup> Wilłam Paddy, who was āpointed to demaund the said skife in the behalfe of the said M<sup>r</sup> Hucheson, and y<sup>t</sup> M<sup>r</sup> Paddy doe pay the said Zacariah Soule for his paines about the said skife.

Wheras the wife of Hugh Norman, of Yarmouth, hath stood p̄sented diuers Courts for misdemenior and lude behauior with Mary Hammon vppon a bed, with diuers lasiuious speeches by her allso spoken, but shee could not āpeere by reason of soñ hinderances vntell this Court, the said Court haue therfore sentanced her, the said wife of Hugh Norman, for her vild behauior in the aforesaid p̄ticulars, to make a publick acknowldgment, so fare as conveniently may bee, of her vchast behauior, and haue allso warned her to take heed of such cariages for the future, lest her former cariage come in remembrance against her to make her punishment the greater.

Thō Clarke is ālowed to draw and sell a cask of strong waters.

Captaine Standish is ordered by the Court to impannell a jury when hee shall see convenient time, for to view and lay out a way to a peece of meddow belonging to Constant Southworth, which was soñtimes M<sup>r</sup> Collyars, lying ouer against Duk Hill, so as it may bee most convenient to Constant Southworth and *and* least preiuditall to Phillip Delanoy.

Ordered, that wheras Captaine Miles Standish and M<sup>r</sup> John Alden were

1650.

2 October.  
BRADFORD,  
Gov.

soñtimes ordered by the Court to lay out sertaine lands and meddows att North Riuer vnto Francis Cook, and John Cook, and John Rogers, the Court doth therfore further order the said Captaine Standish and Mr Alden to manifest what were theire intents about the bounds of the said lands and meddows when they formerly layed them forth, and to sett and establish the bounds of the said lands and meddowes soe as to continew for the futuer.

Mr Joseph Peck is ordered by the Court to adminester the ordinance of marriage att Rehoboth, in case Mr Browne can not bee perswaded thervnto.

1650-1. *\*.At the Generall Court holden at New Phym the 4<sup>th</sup> of March, 1650.*

4 March.  
[\*227.]

BEFORE Wiltam Bradford, gen<sup>t</sup>, Gov<sup>r</sup>,  
Wiltam Collyar,  
Miles Standish,

Timothy Hatherley,  
Wiltam Thomas,  
John Allden,

Gen<sup>t</sup>, Assistants.

**W**HERAS Mr Wiltam Bradford, the 7<sup>th</sup> of March, in the 18<sup>th</sup> yeare of the late Kings raigne, was graunted libertie to seeke forth a place to place soñ of his children vpon; and when the Court doth know it, that it shalbee confeirmed to him; hee hath now found a pcell of land within the bounds of Barnstable, soñtimes belonging to Napiatam, deseassed, and soñ of his frinds, the Court doth graunt and confeirme vnto the said Mr Bradford the said pcell of land, with all and singular the appurtenances therunto belonging, to haue and to hold vnto the said Mr Wiltam Bradford, his heires and assignes, foreuer; allso, if any of the Indians should bee yet liueing that can make any claime to any part therof, they giue him power and authoritie to buy the same of them, or otherwise to compound with them in the best sort hee may for the vse aforesaid.

Wheras a pcell of land about fourty or fifty acres, bee it more or lesse, was reserued by the Court within the liberties of Yarmouth vnderposed of; and wheras Captaine Miles Standish hath been at much trouble and paines, and hath gone sundry jurnies vnto Yarmouth aforesaid in the said townes busines, and likly to haue more in that behalfe; in respect wherunto the Court haue graunted vnto the said Captaine Standish the aforesaid pcell of land, with all the meddow lying before it or any way belonging therunto, of any kind, with all and singulare the appurtenances thervnto belonging, to haue and to

hold vnto the said Captaine Standish, to him and his heires and assignes 1650-1.  
foreuer.

4 March.

[BRADFORD,  
GOVERNOR.]

Presentments by the Grand Enquest.

Wee, of the grand enquest, doe p̄sent, —

Imprimus, John Palmer, of the towne of Scittuate, for lending of a gun and soñ powder and shot to an Indian. This was answered.

THO: ROBENSON,  
EPHRAIM KEMTON.

Wee present Gowin White and Zacharie Hick, of the towne of Scittuate, for traueling from Weymouth to Scittuate vpon the Lords day. This was cleared.

EDWARD JENKENS.

Wee present Robert Waterman, of the towne of Marshfeild, for offering an attempt of boddyly vncleanes to Sara Pittney, of the aforesaid towne. Fined fifty shill., or to suffer bodily punishment.

JOHN DINGLEY.

\*Wee present Ralph Chapman, of the towne of Marshfeild, for striking of Ferman Haddon. [\*228.]

Wee present John Starre and John Washburne, Sen̄, of the towne of Duxburrow, for neglecting the mending of the highwaies. Cleared.

JOHN DINGLEY.

Wee present Emanuell White, of the towne of Yarmouth, for villifying of Mr John Miller, minister of the aforesaid towne. Fined five shill., according to order.

Wee present Robert Allen, of the towne of Yarmouth, for villyfying of Mr John Millers minnistry.

EDWARD STURGIS.

The grandiurymen of Rehoboth and the grandiurymen of Nawsett are all absent.

*Att the Court of Assistants holden at New Plym̄, the 4<sup>th</sup> of May, 1651.*

4 May.

BEFORE Wiltam Bradford, gen̄, Gouer<sup>r</sup>,  
Wiltam Collyar,  
Miles Standish,

Timothy Hatherley,  
Wiltam Thomas, and  
John Alden,

Gen̄, Assistants.

1651. **J**OHN ROGERS, of Marshfeild, acknowledgeth to owe vnto the Court  
the sum of twenty pound.  
4 May. James Cole, . . . . . the sum of ten pound.  
[BRADFORD, Henery Howland, . . . . . the sum of ten pound.  
GOVERNOR.]  
Released, pay- The condition, that if the said John Rogers shalbee of good behavior  
ing his fees. towards all manor of psons, and appeere at the Generall Court to bee holden  
att Plym̃ aforsaid the first Thursday in June next, and not depart the same  
without lycence ; that then, &c.  
The said John Rogers is, att the Generall Court holden the 7<sup>th</sup> of June,  
1651, fined fve shill for villifing the minestry.

5 June. \**At the Generall Court of Election holden at New Plym̃, for the*  
[\*229.] *Jurisdiction of New Plym̃, the fift of June, 1651.*

|                                                                |                    |
|----------------------------------------------------------------|--------------------|
| BEFORE Wiltam Bradford, gen <sup>t</sup> , Goue <sup>r</sup> , | Timothy Hatherley, |
| Thō Prencce,                                                   | Wiltam Thomas, and |
| Wiltam Collyar,                                                | John Alden,        |
| Miles Standish,                                                |                    |
| Gen <sup>t</sup> , Assistants.                                 |                    |

**M<sup>r</sup>** WIL<sup>l</sup>AM BRADFORD elected Gouvernor, and sworne.  
M<sup>r</sup> Thō Prencce,  
M<sup>r</sup> Wiltam Collyar,  
Captaine Miles Standish,  
M<sup>r</sup> Timothy Hatherley,  
M<sup>r</sup> John Browne,  
M<sup>r</sup> John Alden,  
Captaine Thō Willet, } elected Assistants, and all sworn except  
M<sup>r</sup> John Browne and Captaine Willet.

Captaine Standish remaineth Treasurer for this yeare.  
M<sup>r</sup> John Browne and M<sup>r</sup> Timothy Hatherley chosen comiſſioners for this  
pſent yeare to treat with the comiſſioners of the United Collonies according  
to the articles of confederation at the time and place appointed.

Freemen adimted this Court, and sworne.  
Richard Bowin, Robert Vixon,  
Edward Sturgis, M<sup>r</sup> Josia Winslow,

|                  |                 |
|------------------|-----------------|
| Willam Paybody,  | Anthony Snow,   |
| John Churchill,  | John Burne,     |
| Willam Wills,    | Willam Hedgis,  |
| John Smith,      | Mr Thō Gilbert, |
| Roger Goodspeed, | Peeter Hunt.    |

1651.

5 June.  
BRADFORD,  
GOVERN.

Þpounded to take vp theire Freedom.\*

|                             |                      |
|-----------------------------|----------------------|
| Thō Huckens,                | John Whetcom,        |
| Tristrum Hull,              | John Woodfeild,      |
| Abram Blush,                | Rodulphus Elmes,     |
| Mr John Freeman,            | Isack Chettenden,    |
| Leiuetenant Perigren White, | Richard Beare,       |
| Willam Merrick,             | Elisha Besbee,       |
| Nathaniell Mayo,            | John Barker.         |
| Willam Twining,             | John Williams, Junī, |
| John Willis,                | John Daman,          |
| Willam Foard,               | John Hore,           |
| Thō Ensigne,                | Richard Silvester,   |

\*The Constables of the seuerall Townshipes.

[\*231.]

|                     |                                  |
|---------------------|----------------------------------|
| Plym̄, . . . .      | John Lettice.                    |
| Duxbeř, . . . .     | John Vobes.                      |
| Scittuat, . . . .   | Peeter Collymore, Gorġ Petcock.  |
| Sandwidg, . . . .   | Nathaniell Fish.                 |
| Taunton, . . . .    | William Hedges.                  |
| Yarmouth, . . . .   | Andrew Hallot.                   |
| Barnstable, . . . . | Gorġ Lewis.                      |
| Marshfeild, . . . . | John Burne and Jeremiah Burrows. |
| Rehoboth, . . . .   | Mr Thō Cooper.                   |
| Eastham, . . . .    | Willam Twiney, Junī.             |

The Comitties of the seuerall Townshipes.

|                   |                                                                                  |
|-------------------|----------------------------------------------------------------------------------|
| Plym̄, . . . .    | { Mr John Howland,<br>Mannasses Kemton,<br>Leiuetenant Southworth,<br>Thō Clark. |
| Duxbeř, . . . .   | { Gorge Soule,<br>Constant Southworth.                                           |
| Scituate, . . . . | { Mr James Cudworth,<br>Humphry Turner.                                          |

1651.

5 June.  
BRADFORD,  
GOVER<sup>R</sup>.

|                       |                                            |
|-----------------------|--------------------------------------------|
| Sandwī, . . . . .     | Mr John Vencent, Thō Tupper.               |
| Taunton, . . . . .    | { Mr Oliuer Purchase,<br>Richard Williams. |
| Yarmouth, . . . . .   | { Mr Anthony Thacher,<br>Mr Edmond Hawes.  |
| Barnstā, . . . . .    | { Anthony Annable,<br>Isaak Robenson.      |
| Marshfeild, . . . . . | { Kanelme Winslow,<br>Josiah Winslow.      |
| Rehoboth, . . . . .   | { Richard Bowin,<br>Steuken Payne.         |
| Eastham, . . . . .    | { Mr John Done,<br>Josiah Cook.            |

## The Surveyors for the Hiewaies.

|                       |                            |                                       |
|-----------------------|----------------------------|---------------------------------------|
| Plymouth, . . . . .   | { James Cole,<br>Thō Pope, | Samuell Sturtivant,<br>Joseph Warren. |
| Duxb, . . . . .       | Thō Gannet,                | John Aimes.                           |
| Scituate, . . . . .   | Thō Pinchon,               | John Turner, Senī.                    |
| Sandwī, . . . . .     | Nicholas Wright,           | Jonathan Fish.                        |
| Taunton, . . . . .    | Hezekia Hore,              | John Gallop.                          |
| Yarmouth, . . . . .   | Wiltam Clarke,             | Edward Sturgis.                       |
| Barnstable, . . . . . | Mr Thō Allen,              | Samuell Hinckley.                     |
| Marshfeild, . . . . . | Anthony Snow,              | Perigrin White.                       |
| Rehoboth, . . . . .   | John Read,                 | Wiltam Smith.                         |
| Eastham, . . . . .    | Edward Banges,             | Richard Higgens.                      |

[\*233.]

## \*The Grand Enquest.

|                |                  |                   |         |   |                  |
|----------------|------------------|-------------------|---------|---|------------------|
| sworne.        | {                | Mr Joseph Tilden, | sworne. | { | Roger Goodspeed, |
|                |                  | Mr John Bradford, |         |   | Richard Tayler,  |
|                |                  | Mr John Freeman,  |         |   | Gorge Maacy,     |
|                |                  | Edward Tillson,   |         |   | John Gorum,      |
|                |                  | John Willis,      |         |   | Elisha Besbey,   |
|                |                  | John Wood,        |         |   | Walter Palmer,   |
|                |                  | Walter Briggs,    |         |   | Peeter Hunt,     |
|                |                  | Samuell Hickes,   |         |   | John Ellis,      |
|                |                  | John Ellis,       |         |   | Peeter Wright,   |
| Peeter Wright, | Peeter Worden,   |                   |         |   |                  |
| John Smith,    | Wiltam Hailston. |                   |         |   |                  |

Liberty is allowed vnto the Gouer to make choise of and to depute any one of the Assistants whom hee shall think meet to bee in his rome, when hee is oçasioned to bee absent, as a deputie Gouer.

M<sup>r</sup> Olliuer Purchase is allowed and approued by the Court to bee ensigne bearer of the milletary companie of Taunton.

To the rates. Wheras Rehoboth was formerly rated 4 pounds, it is now by the Court rated 4 pound and ten shillings, Barnstable the sum of 2<sup>t</sup> 15<sup>s</sup>, and the towne of Plym the sum of 2 pound and 15 shillings.

Liberty is allowed vnto M<sup>r</sup> Hatherley to proue the will of Thō Lapham, deceassed, at Scittuate, in regard the widdow Lapham, through weaknes, is not able to coñ to the Court.

That the Gouer hath authority to lycence soñ whom hee shall think meet to keepe victalling houses at Court times in the towne of Plym for the releife of such as are in nessesity at such times.

Wheras a petition was formerly pferred vnto the Court by M<sup>r</sup> Hanbery against M<sup>r</sup> Browne, wherin the said M<sup>r</sup> Browne was much wronged, it is ordered, that if the said petition can bee found on any of the files, it shalbe deliuered to him.

It was afterwards found, and deliuered to him, & burned.

\*Wheras a promise was made vnto M<sup>r</sup> Collyar to consider him in that which might tend to his support in the way of maiestarcy, and that it hath not hetherto bene pformed, the coñitties haue therfore engaged in the behalfe of the seuerall townshipes to make good vnto the said M<sup>r</sup> Collyare the sum of twenty pound, to bee paied, as soone as conveniently may bee, in good and currant cuntry pay, and to bee raised vpon the seuerall townes pportionable to other publick charges.

[\*234.]

Wheras by a letter from Newhauen aide by them was requested and required in settleing a plantation at Delaware against such as doe oppose them in that respect, the Court, hauing considered therof, think it not meet to answere their desire in that behalfe, and will haue no hand in any such contreuersey about the same.

Wheras a request was made the last winter by a messenger from the French at Canada to assist them against the Mowhakes, or at lest to haue libbertie to goe vp through these p̄ts for their more comodius encountering with the said Mowhakes, the Court declare themselues not to bee willing either to aide them in their designe, or to graunt them libbertie to goe through their jurisdiction for the aforesaid purpose.

Wheras, by former order of Court, the children of M<sup>r</sup> Allexander Winchester were desposed of, to bee vnder the care and guidance of Richard Bowin





and cleared; onely to put in security for his appearence, if the Court shall see reason againe to call him in question at any time within a twelumonth, which accordingly hee did.

Gorge Allen, of Sandwidge, fined 20<sup>s</sup> for refusing to serue on the grand inquest.

\*The Court receiueing an answere from the Generall Court of the Massachusetts, how they were willing to resigne againe to this gouernment, according to the aduise of the commissioners, Showamet, as it was yeilded to them by an acte of this Court, bearing date June 7<sup>th</sup>, 1650, but on condicion to engage themselues to protect the English and Indians there, that haue submitted themselues to their jurisdiction, and to pform their engagements vnto them, — they, vpon consideracion heerof, finding themselues vnfit to take such a burthen vpon them as the pformance of those engagements of theirs, and for soñ other waighty reasons, thought better to let it remaine as it was, and pañed their vote for that end, and soe desired an answere to bee returned; as, aliso, that they desired that all faire and gentle meanes might bee vsed towards the inhabitants, that loue and peace might bee continued.

1651.

8 June.

BRADFORD,  
GOVER<sup>R</sup>.

[\*236.]

*At a Court of Asistants holden at New Plym, the 4<sup>th</sup> of August.*

4 August.

BEFOR Willam Bradford, gen<sup>t</sup>, Goue<sup>r</sup>, Timothy Hatherley, and  
Willam Collyar, John Alden,  
Captaine Standish,  
Gen<sup>t</sup>, Asistants.

IT was ordered, that wheras a petiçon was pferred vnto the Court holden at Plym aforsaid, the 4<sup>th</sup> of June last past, by sundry of the inhabitants of Scittuate, wherein they request that wheras certaine lands were formerly graunted vnto them in a towne meeting in Scittuate aforsaid, and that they could not haue the said lands layed out vnto them according to the aforsaid graunt, that the Court would take soñ order about it, which accordingly the Court did, and sent vnto those whom it conserved, requiring them either to lay forth such lands as were formerly graunted vnto the aforsaid pties as aforsaid, or otherwise to send their reasons to the Court why they doe not.

Warrents were signed and directed to the cunstable of seuerall townes for to leuy the fines for the defects in armes.

A warrent directed to require Ralph Allen, Sen<sup>r</sup>, psonally to appeer, to answere vnto such misdemeanors as wherof hee is accused.

1651. \**At the Generall Court holden at New Plym, the 7<sup>th</sup> of October,*  
*1651.*

7 October.

[BRADFORD,  
GOVERNOR.]

[\*237.]

BEFORE Wiltam Bradford, gen<sup>t</sup>, Go<sup>v</sup>, Miles Standish, &  
 Tho<sup>s</sup> Prence, Timothy Hatherley,  
 Wiltam Collyare,  
 Gen<sup>t</sup>, Assistants.

GORGE RUSSELL, of Scittuate, was bound ouer vnto this Court to answer for his vnciuell and vnreasonable beating of Katheren Winter; and for the same was sensured by the Court to pay twenty shillings forthwith vnto the cunstable of Scittuate, for to bee employed for the good of the said Katheren.

And wheras bond was taken for his good behaiour vntell this Court, the Court haue released him of the said bond, paying his fees.

And wheras the said Gor<sup>g</sup> Russell, at the Generall Court holden the 8<sup>th</sup> of June last past, was p<sup>s</sup>ented for encroaching on the vndeuided lands of Scittuate, hee is enioyned by the Court to demolish whatsoeuer fence hee hath on the said comons that haue stoped the hiewayes, and soe is cleared of this p<sup>s</sup>entment.

Isack Stedman was allsoe for the like encroachment p<sup>s</sup>ented at the said Court, and is likewise enioyned by the Court to reforme the said wrong to the satisfaction of such of his naighbors as are offended therat.

Wheras, at the Generall Court holden the 8<sup>th</sup> of June last past, John Shaw and James Shaw, Samuell Cutbert, and Beniamine Eaton, Goodwife Gannett, Martha Haward, and Wiltam Snow were p<sup>s</sup>ented for vaine, light, and lacivious carriage at an vnseasonable time of the night, the Court, not finding them alike faulty, haue fined James Shaw and Goodwife Gannett thirty shillings apeece, to be payed by the next Court of Assistants, & themselues then psonally to a<sup>p</sup>eece, or otherwise to receaue corporall punishment by whipping.

And Samuell Cutbert, Wiltam Snow, Beniamine Eaton, and Martha Haward are released, with admonishion to take heed of such euell carriages for the future.

And as for John Shaw, hee is lyable to punishment when oppertunitie serueth.

[\*237<sup>a</sup>.] \*At this Court Walter Palmer and Peeter Hunt, grandiurymen of Rehoboth, were fined for non appeerance, (according to the order of Court,) each twenty shillings.

[\*238.] \*Att this Court Ralph Allin, Sen<sup>r</sup>, of Sandwid<sup>g</sup>, and Richard Kerbey

were summoned to answere for theire deriding, vild speeches of and conserning Gods word and ordinances : they are bound ouer vnto the next Generall Court to make theire appeerance, and in the mean time to bee of good behavior towards all manor of psons, & not depart the said Court without lycence accordingly, as followeth : —

1651.

7 October.  
BRADFORD,  
GOVERNOR.

Ralph Allin, Senior, of Sandwidg, acknowledgeth to }<sup>z</sup>  
owe vnto the Court the sum of . . . . . } 20 : 00 : 00 Released.

Mr Thō Dexter, Senior, the sum of . . . . . 10 : 00 : 00

Wiltam Basset, the younger, the sum of . . . . . 10 : 00 : 00

The condicion, that if the said Ralph Allen shalbee of good behavior towards all mannor of psons, and appeere at the Generall Court to bee holden at Plym the first Tusday in March next, and not depart the Court without lycence ; that then, &c. Released.

Richard Kerbey acknowledgeth to owe vnto the Court }<sup>z</sup>  
the sum of . . . . . } 20 : 00 : 00

Thō Launder, the sum of . . . . . 10 : 00 : 00

Ralph Allen, Senior, the sum of . . . . . 10 : 00 : 00

The condicion, that if the said Richard Kerbey shalbee of good behavior towards all mannor of psons, and appeer at the Generall Court, to bee holden at Plym the first Tusday in March next, and not depart the said Court without lycence ; that then, &c.

The Court doe allow and approue of James Wyate to bee in the office of a leiuetenant in the milietary companie of Taunton.

Mr James Cudworth and Humphry Turner are allowed 25<sup>s</sup> for charges of attendance at June Court last past. Itz, for fve daies, videlecet, from Fry-day vntell the Tusday following, 2<sup>s</sup> 6<sup>d</sup> p day.

\*Presentments by the Grand Enquest.

[\*239.]

Wee p̄sent Samuell Hinckley and Jonathan Hatch for hiering land of the Indians.

Samuell  
Hinckley  
freed. Jona-  
than Hatch  
cleared.

Wee further p̄sent Ralph Allen, Senior, and his wife, Gorge Allen and his wife, Wiltam Allen and Richard Kerbey, Peeter Gaunt and his wife, Rose Newland, Edmond Freeman, Senī, and his wife, Goodwife Turner, and widdow Knott, all of the towne of Sandwidg, for not frequenting the publick worship of God, contrarye to order made the 6<sup>th</sup> of June, 1651.

These were re-  
ferred to confer-  
ance and fur-  
ther considera-  
ōn.

Wee further p̄sent the wife of Richard Knowles, of the towne of Plym, for retailing of strong waters contrarye to order.

Wee further p̄sent Elizabeth Eddy, Senī, of the towne of Plym, for laboring, that is to say, for wringing and hanging out clothes, on the Lords day, in time of publicke exercise. Fined 10<sup>s</sup>; but sence remited.

1651. Wee futher p̄sent the wife of Richard Knowles, of the towne of Plym̄,  
for retailing of strong waters contrarye to order.
- 7 October. Wee further p̄sent Goodwife Knowles for selling strong waters for fūe  
BRADFORD, or six shillings a bottle that cost but 35<sup>s</sup> the case. Fined 10<sup>s</sup>; to bee bestowed on y<sup>e</sup>  
Goß. poore of Plym.
- Fined 1<sup>u</sup> 10<sup>s</sup>. Wee further p̄sent Gorge Pidcocke, of Scittuate, for taking a false oath.
- Referred to con- Wee further p̄sent Arther Howland, of the towne of Marshfeild, for not  
ference and further admon- frequenting the publicke assemblies on the Lords daies.
- ished to labore Wee further p̄sent Goodwife Ramsden for lacivius goeing in the com-  
to walk inofen- panie of young men. Sence cleared with admonition.
- Released, with Wee further p̄sent Samuell Eaton and Goodwife Halle, of the towne of  
admonition. Duxburrow, for mixed daunsing.
- See more Wee further p̄sent Nathaniell Bassett & Joseph Pryor, of the towne of  
March Court, Duxburrow, for desturbing the church of Duxburrow on the Lords day.
- 1651.
- Released and Wee further p̄sent Edward Halle for felling of timber and selling of it  
aquite. out of the colloney, which timber is on the townes com̄ons.

10 June. \*Taunton, June the 10, anno 1651. The verdict of the inquest in the  
[\*240.] towne of Taunton, conserning the death of John Slocume, of Taunton, the  
sonn of Anthony Slocume, of Taunton, as followeth, viz<sup>t</sup> : —

Wee, whose names are heervnto subscribed, being, the day and yeare abouesaid,  
mett together to enquire and consider of the death of the said John, doe  
find as followeth : —

Imprimis, that on the 25<sup>t</sup> of Febreuary last, the said John, goeing with a  
companie of p̄sons, to the number of twenty, vnto a pond called the Fowling  
Pond, about two miles from the towne, to gather cramberies, in his returning,  
made soñ stay behind y<sup>e</sup> said companie, about a mile from his home, vpon con-  
fidence of his knowlidge of the way home, being nine yeares of age, but mis-  
ing of the path, strayed in the woods, and returned not againe.

Item, that immediately vpon the mise of him, his father went to the place  
wher hee made his stay to seeke for him ; and when hee could not find him, nor  
heare his voyce neare and of a good distance about, hee returned home, hop-  
ing that hee had taken soñ other path home ; but then finding him not, hee  
went againe about the woods, and yet not coming to any knowlidge of him,  
hee raised the towne, and with a considerable companie the whole night fol-  
lowing, with drum, guns, and loud voyces, and 3 daies after with great dilli-  
gence sought him, but could not find him.

Item, the 5<sup>t</sup> of January, that John Lincolne, in his following the heard  
of cattell, found the skull of the said John, haueing the braine not wholly  
consumed ; and January the 9<sup>th</sup>, hee found soñ other parts of the corpse, with

þte of his clothes scattered in smale peecees about the place by a certaine pond at the head of the Mill Riuer, 3 miles from the towne, and two miles from the said Fowling Pond.

Item, wee considering that the said John being thinly clothed because the day of his lose was temperate, and the next day stormy, and very cold, and soe likewise the fourth, and vpon view beholding a certaine place containing the length and breadth of his body, which was moist and black, and the weeds turned backward euery waies, and his clothes torne into smale peecees, and despersed into diuers places, as allsoe certaine bones found in sundry places, and in one place soffi part, as wee conseue, of his bowells not quite consumed, wee doe apprehend that the said John, when hee strayed away, wandred with much labour, and being spent with wearines and cold, perished among the brushy shrubs, and was deuoured and torne, and the þts of his carkeis despersed with rauenus creatures.

And heervnto wee subscribe our hands.

|                   |                          |
|-------------------|--------------------------|
| WILLAM PARKER,    | JONAH A. AUSTIN,         |
| GORGE HALL,       | JAMES WYATE,             |
| EDWARD CASE,      | JOHN DEANE,              |
| WALTER DEANE,     | NATHANIELL WOODWARD,     |
| RICHARD R. PAULE, | JAMES BATES,             |
| WILLAM HAILSTONE, | HENERY ANDREWES, Junier. |

\*The Information of the Inhabitants of Taunton concerning the Death of Wiltam England, about the age of ten Yeares, Seruant to Joseph Wilbor, of Taunton.

[\*241.]

Wee, whose names are heervnder subscribed, on the enquiry of the death of the said Wiltam, find as followeth : —

Imprimis, that the said Wiltam, on the sixt day of September, being the last day of the weeke, tooke a great cannoo towards the euening, to fetch home soffi wood from the further side of the riuer called y<sup>e</sup> Great Riuer, within a call of his masters house, as hee was accustomed, and not returning seasonably, his dame called to him, and not hearing his voyce nor seeing the cannoo, soe soone as his master came home, shee acquainted him with it, who immediately sought for him, but could not find him ; but about a quarter of a mile from the place wher hee was vsed to fetch wood, hee found the cannoo adrift, with the seazye and stick fastened to it lying in the cannoo.

The next morning, being the Lords day, hee, with diuers others, sought on the riuer for him, and found him not ; but James Walker and Richard Burt, pasing vp the riuer towards meeting, found the said Wiltam floating on the water, who made it known, and caused him to bee taken vp.

1651.

10 June.

BRADFORD,  
GOVERN<sup>r</sup>.

1651.

10 June.  
BRADFORD,  
GOVERN<sup>R</sup>.

Vpon view of his corpse, wee found no wound, but conseaue that the said Wiltam, striuing in the ordering of his cannoo, did fall ouer the said vessell, and soe perished in the water.

|                            |                 |
|----------------------------|-----------------|
| WILLAM OTWAY, alīs PARKER, | JAMES BATES,    |
| EDWARD CASE,               | WILLAM HARUY,   |
| OLIUER PURCHASE,           | ANTHONY SLOCUM, |
| JAMES WYATE,               | RICHARD STACY,  |
| RICHARD PAULE,             | THO: CASWELL.   |
| JAMES WALKER,              |                 |
| WILLAM HAILSTONE,          |                 |

[\*242.] \*In the difference betwixt Samuell Cutbert and Steuen Bryant, about a cow the said Cutbert sould to the said Bryant, and the difference betwixt Samuell Cutbert and Samuell King, about an heifer the said King sould vnto the said Cutbert, the said Steuen Bryant engageth to lend vnto the said Samuell Cutbert 2 bushells of Indian corn, and 2 barrells of tarr, to satisfy the said Samuell King, according to bargan for his heifer; and the said Cutbert is to haue the said heifer deliuered vnto him; and wheras there is soñ ouerplus due from Samuell King to Samuell Cutbert, when as the aforsaid corn and tarr is paid, the said King is to pay vnto the said Cutbert the 2 bushells of Indian corn the next haruist, that soe the said Bryant may bee satisfyed his corne hee hath lent according to promise made vnto him, and soe all differences amongst the said pties are ended by mutuall consent.

The pticulars payed to the said Kinge were, —

|                               | £     | s  | d  |
|-------------------------------|-------|----|----|
| It̃, in broadcloth, . . . . . | 01    | 05 | 00 |
| It̃, in holland, . . . . .    | 00    | 12 | 04 |
| It̃, in stuffe, . . . . .     | 01    | 14 | 00 |
|                               | <hr/> |    |    |
|                               | 03    | 11 | 04 |

[\*243.] \*Memorandum: that wheras Kanelme Winslow, of Marshfeild, soñtimes inhabitant of the towne of Plym̃, at the time of his mariage with Ellenor Adames, (soñtimes wife vnto John Adams, deceased,) did put in securitie to pay vnto James Adames, sonn of the said John Adams, the soñ of fīue pounds when hee should come to bee of age, these psents wittnesseth that James Adams aforsaid did come before the Gouverner, and did acknowlidg that hee hath receued from the said Kanelme Winslow the said fīue pound; and accordingly on the 26<sup>th</sup> of December, 1651, it was ordered to bee entered vpon publicke record as payed and receiued as aforsaid.

26 December.

*\*The Names of the Purchasers.*

[\*244]

|                             |                                |
|-----------------------------|--------------------------------|
| Mr W <sup>m</sup> Bradford, | Abraham Pearse,                |
| Mr Tho <sup>m</sup> Prence, | Steeven Tracy,                 |
| Mr W <sup>m</sup> Brewster, | Joseph Rogers,                 |
| Mr Ed <sup>w</sup> Winslow, | John Faunce,                   |
| Mr John Alden,              | Steeven Deane,                 |
| Mr John Jenney,             | Tho <sup>m</sup> Cushman,      |
| Mr Isaack Allerton,         | Rob <sup>t</sup> e Hicks,      |
| Capt Miles Standish,        | Tho <sup>m</sup> Morton,       |
| Mr W <sup>m</sup> Collyer,  | Anthony Annable,               |
| Mr John Howland,            | Samuell Fuller,                |
| Manasseth Kempton,          | Fran <sup>c</sup> Eaton,       |
| Francis Cooke,              | Wil <sup>m</sup> Basset,       |
| Jonathan Brewster,          | Francis Sprague,               |
| Edward Banges,              | The Heires of John Crackstone, |
| Nicholas Snow,              | Edward Bumpas,                 |
| Steven Hopkins,             | Wil <sup>m</sup> Palmer,       |
| Thomas Clarke,              | Peter Browne,                  |
| Raph Wallen,                | Henry Sampson,                 |
| Wil <sup>m</sup> Wright,    | Experience Michell,            |
| Elizabeth Warren, widdow,   | Phillip Delanoy,               |
| Edward Dotey,               | Moyses Symonson,               |
| Cutbert Cutbertson,         | Geor <sup>g</sup> Soule,       |
| John Winslow,               | Edward Holman,                 |
| John Shaw,                  | 53.                            |
| Josuah Pratt,               | Mr James Sherley,              |
| John Adams,                 | Mr Beauchampe,                 |
| ^ Billington,               | Mr Andrewes,                   |
| Phineas Pratt,              | Mr Hatherley,                  |
| Samuell Fuller,             | Mr W <sup>m</sup> Thomas.      |
| Clement Briggs,             | In all 58.                     |





# GENERAL INDEX.



# GENERAL INDEX.

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